ARTICLE III
JUDICIAL BRANCH

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ARTICLE III—JUDICIAL BRANCH

ArtIII.1 Overview of Article III, Judicial Branch

Article III of the U.S. Constitution establishes the Judicial Branch of the federal government. Section 1 of Article III, known as the Judicial Vesting Clause, confers the federal judicial power on "one supreme Court" and "such inferior Courts as the Congress may from time to time ordain and establish."[1] Through that language, the Constitution's Framers ensured the existence of a federal Supreme Court but left to Congress the decision of whether to establish lower federal courts.[2] The first Congress established lower federal courts in the first legislation related to the Federal Judiciary.[3] As the Nation expanded, Congress legislated to expand and restructure the Article III Judiciary[4] and also periodically created other tribunals known as "Article I courts" or "legislative courts."[5]

While Article III grants Congress significant authority to establish and structure federal courts, it also imposes key limitations designed to ensure the independence of the Judiciary. Article III, Section 1 provides that federal judges "shall hold their Offices during good Behaviour," which the Supreme Court has interpreted to grant federal judges life tenure, unless they voluntarily resign or are impeached and removed from the bench.[6] Section 1 also provides that federal judges shall receive compensation for their work, "which shall not be diminished during their Continuance in Office."[7] That provision prevents Congress from punishing unpopular judicial decisions by docking judges' pay.[8]

Article III, Section 2, Clause 1 authorizes the creation of federal courts with limited jurisdiction, providing that the "judicial Power shall extend" to certain enumerated categories of "Cases" and "Controversies."[9] Among other things, the Clause provides for federal court jurisdiction over cases "arising under" the Constitution or the laws or treaties of the United States (sometimes called "federal question jurisdiction")[10] and controversies between citizens of different states (known as "diversity jurisdiction").[11] Article III, Section 2, Clause 2 grants the Supreme Court original jurisdiction over a subset of federal cases, meaning that litigants may commence those cases in the Supreme Court rather than beginning the cases in a state court or a lower federal court and reaching the Supreme Court on appeal, if at all.[12] The Constitution's grant of Supreme Court original jurisdiction is self-executing, meaning that

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[1] U.S. Const. art. III, § 1.

[2] The Framers generally accepted that state courts would play a significant role in interpreting and applying federal law, but they debated whether to leave that role entirely to state courts, subject to review by the federal Supreme Court, or whether lower federal court were more likely to apply federal law correctly, uniformly, and without bias. *See* ArtIII.S1.6.2 Historical Background on Relationship Between Federal and State Courts.

[3] 1 Stat. 73.

[4] *See* ArtIII.S1.8.1 Overview of Establishment of Article III Courts.

[5] *See* ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts.

[6] U.S. Const. art. III, § 1; *see also* ArtIII.S1.10.2.1 Overview of Good Behavior Clause.

[7] U.S. Const. art. III, § 1.

[8] *See* ArtIII.S1.10.3.1 Historical Background on Compensation Clause. Article III's protections for federal judges do not apply to judges on Article I tribunals. *See* ArtIII.S1.9.2 Congressional Power to Structure Legislative Courts.

[9] U.S. Const. art. III, § 2, cl. 1.

[10] *See* ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction.

[11] *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction. Other examples of matters subject to federal court jurisdiction include admiralty and maritime cases, cases to which the United States is a Party, and controversies between states. *See generally* ArtIII.S2.C1.1 Overview of Cases or Controversies.

[12] U.S. Const. art. III, § 2, cl. 2; *see also* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction. Under current law, parties in most cases must seek Supreme Court review through a petition for a writ of certiorari, which the Court has discretion to grant or deny. *See* ArtIII.S2.C2.4 Supreme Court Appellate Jurisdiction.

Congress need not enact legislation to implement it.[13] None of the other grants of federal court jurisdiction are self-executing, however, so the lower federal courts can only hear cases to the extent Congress enacts legislation authorizing them to do so.[14] The Supreme Court has interpreted Article III as setting the outer bounds of federal court jurisdiction: Congress cannot grant jurisdiction beyond what Article III authorizes, but is not required to grant the federal courts the full authority it might choose to confer consistent with the constitutional authorization.[15]

The Supreme Court has also construed Article III to impose certain "justiciability" requirements that may limit federal courts' ability to hear cases that would otherwise fall within their jurisdiction.[16] Among other limitations, federal courts may not issue advisory opinions.[17] Relatedly, every federal court plaintiff must demonstrate standing to sue, which requires that the plaintiff possess a concrete and personal stake in the outcome of the case.[18] Federal courts may not hear cases that are not "ripe" for decision because the dispute has not developed enough for a court to decide the issues presented effectively[19] or those that have become "moot" and no longer present a live controversy.[20] The courts also cannot hear "political questions" best entrusted to the other branches of government[21] and generally avoid deciding constitutional questions when a case can be resolved on other grounds.[22]

The remainder of Article III governs specific judicial proceedings. Article III, Section 2, Clause 3 governs criminal trials, requiring a jury trial for the "Trial of all Crimes, except in Cases of Impeachment."[23] Article III, Section 3 governs trial and punishment for treason. Section 3, Clause 1 defines treason as "only . . . levying War against [the United States], or in adhering to their Enemies, giving them Aid and Comfort" and provides that conviction for treason requires the testimony of two witnesses "to the same overt Act" or "Confession in open Court."[24] Section 3, Clause 2 prohibits punishing treason by "Corruption of Blood."[25]

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[13] Relatedly, Congress may not enact legislation limiting the Court's original jurisdiction. *See, e.g.*, Marbury v. Madison, 5 U.S. (1 Cr.) 137, 174 (1803).

[14] *See, e.g.*, Romero v. International Terminal Operating Co., 358 U.S. 354, 364 (1959) (describing "enumerated classes of cases to which 'judicial power' was extended by the Constitution and which thereby authorized grants by Congress of 'judicial Power' to the 'inferior' federal courts"). Likewise, Article III provides that the Supreme Court's appellate jurisdiction is subject to "such Exceptions, and under such Regulations as the Congress shall make." U.S. Const. art. III, § 2, cl. 2; *see also* ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[15] *See, e.g.*, 28 U.S.C. § 1332 (bestowing less than the maximum amount of diversity jurisdiction by granting federal courts jurisdiction in civil actions between citizens of different states and between a citizen of a state and a subject of a foreign state if the amount in controversy exceeds $75,000).

[16] *See* ArtIII.S2.C1.3.1 Overview of Rules of Justiciability and Cases or Controversies Requirement.

[17] An advisory opinion is a non-binding interpretation of the law by a court, essentially the court providing advice on an abstract or hypothetical legal question. *See* ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[18] *See* ArtIII.S2.C1.6.1 Overview of Standing.

[19] *See* ArtIII.S2.C1.7.1 Overview of Ripeness Doctrine.

[20] *See* ArtIII.S2.C1.8.1 Overview of Mootness Doctrine.

[21] *See* ArtIII.S2.C1.9.1 Overview of Political Question Doctrine.

[22] *See* ArtIII.S2.C1.10.1 Overview of Constitutional Avoidance Doctrine.

[23] U.S. Const. art. III, § 2, cl. 3; *see also* ArtIII.S2.C3.1 Jury Trials.

[24] U.S. Const. art. III, § 3, cl. 1; *see also* ArtIII.S3.C1.1 Historical Background on Treason.

[25] U.S. Const. art. III, § 3, cl. 2; *see also* ArtIII.S3.C2.1 Punishment of Treason Clause. "Corruption of blood" refers to "perpetual forfeiture of the estate of the person attainted [for treason], to the disinherison of his heirs, or of those who would otherwise be his heirs." Wallach v. Van Riswick, 92 U.S. 202, 210 (1876).

Section 1—Vesting Clause

ArtIII.S1.1 Overview of Judicial Vesting Clause

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Article III, Section 1 of the Constitution vests the "judicial Power of the United States" in the federal courts.[1] Associate Justice Samuel Miller described judicial power as "the power of a court to decide and pronounce a judgment and carry it into effect between persons and parties who bring a case before it for decision."[2] The Supreme Court has explained that judicial power is "the right to determine actual controversies arising between diverse litigants, duly instituted in courts of proper jurisdiction."[3] Judicial power thus confers on federal courts the power to decide cases and to render a judgment that conclusively resolves each case.

While the Constitution provides that the judicial power "shall be vested" in the federal courts, the vesting of most of the judicial power is neither automatic nor mandatory. The Supreme Court exercises original jurisdiction over a limited class of cases, meaning that such cases may be filed directly in the Supreme Court rather than reaching the Court on appeal.[4] That original jurisdiction has been deemed to arise directly from the Constitution.[5] Outside the limited category of cases subject to original jurisdiction, the federal courts' authority to hear cases depends on both constitutional text and implementing statutes. Two prerequisites must be present before the federal courts may hear a case: first, the Constitution must have given the courts the capacity to receive jurisdiction, and, second, an act of Congress must have conferred it.[6] Congress has never vested in the federal courts all the jurisdiction that the Constitution would allow it to grant,[7] and the Supreme Court has not interpreted the Constitution to require that Congress confer the entire jurisdiction it might.[8]

One key feature of the federal judicial power is the power of judicial review, the authority of the federal courts to declare that federal or state government actions violate the Constitution.

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[1] U.S. Const. art. III, § 1.

[2] Justice Samuel Miller, On the Constitution 314 (1891).

[3] Muskrat v. United States, 219 U.S. 346, 361 (1911).

[4] U.S. Const. art. III, § 2, cl. 2.

[5] *See* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[6] The Mayor v. Cooper, 73 U.S. (6 Wall.) 247, 252 (1868); Cary v. Curtis, 44 U.S. (3 How.) 236 (1845); Sheldon v. Sill, 49 U.S. (8 How.) 441 (1850); United States v. Hudson & Goodwin, 11 U.S. (7 Cr.) 32, 33 (1812); Kline v. Burke Constr. Co., 260 U.S. 226 (1922). Some judges have expressed the opinion that Congress's authority is limited by provisions of the Constitution such as the Due Process Clause, so that a limitation on jurisdiction that denied a litigant access to any remedy might be unconstitutional. *Cf.* Eisentrager v. Forrestal, 174 F.2d 961, 965–966 (D.C. Cir. 1949), *rev'd on other grounds sub nom*, Johnson v. Eisentrager, 339 U.S. 763 (1950); Battaglia v. General Motors Corp., 169 F.2d 254, 257 (2d Cir. 1948), cert. denied, 335 U.S. 887 (1948); Petersen v. Clark, 285 F. Supp. 700, 703 n.5 (N.D. Calif. 1968); Murray v. Vaughn, 300 F. Supp. 688, 694–695 (D.R.I. 1969). The Supreme Court has had no occasion to consider the question.

[7] For discussion of constitutional and statutory grants of federal court jurisdiction in two key areas, see ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction and ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

[8] *See, e.g.*, Turner v. Bank of North America, 4 U.S. (4 Dall.) 8, 10 (1799) (Justice Chase). *But see* Martin v. Hunter's Lessee, 14 U.S. (1 Wheat.) 304, 328–331 (1816); 3 J. Story, Commentaries on the Constitution of the United States (1833) 1584–1590; Akhil Amar, *A Neo-Federalist View of Article III: Separating the Two Tiers of Federal Jurisdiction*, 65 B.U. L. Rev. 205 (1985).

ArtIII.S1.1
Overview of Judicial Vesting Clause

The two essays that follow discuss the historical background of judicial review and Supreme Court doctrine related to judicial review, particularly the seminal case *Marbury v. Madison*.[9]

The general judicial power also includes certain ancillary powers of courts such as the authority to punish for contempt of their authority,[10] to issue writs in aid of jurisdiction when authorized by statute,[11] to make rules governing their process in the absence of statutory authorizations or prohibitions,[12] to order their own process so as to prevent abuse, oppression, and injustice, and to protect their own jurisdiction and officers in the protection of property in custody of law,[13] to appoint masters in chancery, referees, auditors, and other investigators,[14] and to admit and disbar attorneys.[15] The inherent powers of the federal courts are discussed in more detail in later essays.[16]

ArtIII.S1.2 Historical Background on Judicial Review

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

One key feature of the federal judicial power is the power of judicial review, the authority of federal courts to declare that federal or state government actions violate the Constitution. While judicial review is now one of the distinctive features of United States constitutional law, the Constitution does not expressly grant federal courts power to declare government actions unconstitutional. However, the historical record from the Founding and the early years of the Republic suggests that those who framed and ratified the Constitution were aware of judicial review, and that some favored granting courts that power.

The concept of judicial review was already established at the time of the Founding. The Privy Council had employed a limited form of judicial review to review colonial legislation and its validity under the colonial charters.[1] There were several instances known to the Framers of state court invalidation of state legislation as inconsistent with state constitutions.[2] Practically all of the Framers who expressed an opinion on the issue in the Convention appear to have assumed and welcomed the existence of court review of the constitutionality of legislation.[3] Alexander Hamilton argued in favor of the doctrine in the *Federalist Papers*.[4] In

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[9] 5 U.S. (1 Cr.) 137 (1803). *See* ArtIII.S1.2 Historical Background on Judicial Review and ArtIII.S1.3 Marbury v. Madison and Judicial Review.

[10] Michaelson v. United States, 266 U.S. 42 (1924).

[11] McIntire v. Wood, 11 U.S. (7 Cr.) 504 (1813); *Ex parte* Bollman, 8 U.S. (4 Cr.) 75 (1807).

[12] Wayman v. Southard, 23 U.S. (10 Wheat.) 1 (1825).

[13] Gumbel v. Pitkin, 124 U.S. 131 (1888).

[14] *Ex parte* Peterson, 253 U.S. 300 (1920).

[15] *Ex parte* Garland, 71 U.S. (4 Wall.) 333, 378 (1867).

[16] *See* ArtIII.S1.4.1 Overview of Inherent Powers of Federal Courts.

[1] Julius Goebel, Antecedents and Beginnings to 1801, History of the Supreme Court of the United States 60–95 (1971).

[2] *Id.* at 96–142.

[3] 1 Max Farrand, The Framing of the Constitution of the United States 97–98 (1913) (Gerry), 109 (King); 2 Max Farrand, The Framing of the Constitution of the United States 28 (1913) (Morris and perhaps Sherman), 73 (Wilson), 75 (Strong, but the remark is ambiguous), 76 (Martin), 78 (Mason), 79 (Gorham, but ambiguous), 80 (Rutledge), 92–93 (Madison), 248 (Pinckney), 299 (Morris), 376 (Williamson), 391 (Wilson), 428 (Rutledge), 430 (Madison), 440 (Madison),

enacting the Judiciary Act of 1789, Congress explicitly provided for the exercise of the power,[5] and in other legislative debates questions of constitutionality and of judicial review were prominent.[6] Early Supreme Court Justices seem to have assumed the existence of judicial review.[7]

The Supreme Court first formally embraced the doctrine of judicial review in the 1803 case *Marbury v. Madison*.[8] Since *Marbury*, judicial review has become a core feature of American

589 (Madison); 3 Max Farrand, The Framing of the Constitution of the United States 220 (1913) (Martin). The only expressed opposition to judicial review came from Mercer with a weak seconding from Dickinson. "Mr. Mercer . . . disapproved of the Doctrine that the Judges as expositors of the Constitution should have authority to declare a law void. He thought laws ought to be well and cautiously made, and then to be uncontroulable." 2 Max Farrand, The Framing of the Constitution of the United States 298 (1913). "Mr. Dickinson was strongly impressed with the remark of Mr. Mercer as to the power of the Judges to set aside the law. He thought no such power ought to exist. He was at the same time at a loss what expedient to substitute." *Id.* at 299. Of course, the debates in the Convention were not available when the state ratifying conventions acted, so that the delegates could not have known these views about judicial review in order to have acted knowingly about them. Views, were, however, expressed in the ratifying conventions recognizing judicial review, some of them being uttered by Framers. 2 J. Elliot, Debates in the Several State Conventions on the Adoption of the Federal Constitution 131 (1836) (Samuel Adams, Massachusetts), 196–97 (Ellsworth, Connecticut), 348, 362 (Hamilton, New York): 445–46. 478 (Wilson, Pennsylvania); 3 J. Elliot, Debates in the Several State Conventions on the Adoption of the Federal Constitution 324–25, 539 , 541 (1836) (Henry, Virginia), 480 (Mason, Virginia), 532 (Madison, Virginia), 570 (Randolph, Virginia); 4 J. Elliot, Debates in the Several State Conventions on the Adoption of the Federal Constitution 71 (1836) (Steele, North Carolina), 156–57 (Davie, North Carolina). In the Virginia convention, Chief Justice John Marshall observed if Congress "were to make a law not warranted by any of the powers enumerated, it would be considered by the judge as an infringement of the Constitution which they are to guard . . . They would declare it void . . . . To what quarter will you look for protection from an infringement on the constitution, if you will not give the power to the judiciary? There is no other body that can afford such a protection." 3 *id.* at 553–54. Both Madison and Hamilton similarly asserted the power of judicial review in their campaign for ratification. The Federalist No. 39 (James Madison); *id.* Nos. 78, 81 (Alexander Hamilton). The persons supporting or at least indicating they thought judicial review existed did not constitute a majority of the Framers, but the absence of controverting statements, with the exception of the Mercer-Dickinson comments, indicates at least acquiescence if not agreements by the other Framers.

[4] The Federalist No. 78 (Alexander Hamilton) ("The interpretation of the laws is the proper and peculiar province of the courts. A constitution, is, in fact, and must be regarded by the judges, as a fundamental law. It therefore belongs to them to ascertain its meaning, as well as the meaning of any particular act proceeding from the legislative body. If there should happen to be an irreconcilable variance between two, that which has the superior obligation and validity ought, of course, to be preferred; or, in other words, the constitution ought to be preferred to the statute, the intention of the people to the intention of their agents.").

[5] In enacting the Judiciary Act of 1789, 1 Stat. 73, Congress chose not to vest "federal question" jurisdiction in the federal courts but to leave to the state courts the enforcement of claims under the Constitution and federal laws. In Section 25 of the Judiciary Act (1 Stat. 85), Congress provided for review by the Supreme Court of final judgments in state courts (1) "where is drawn in question the validity of a treaty or statute of, or an authority exercised under the United States, and the decision is against their validity;" (2) "where is drawn in question the validity of a statute of, or an authority exercised under any State, on the ground of their being repugnant to the constitution, treaties or laws of the United States, and the decision is in favor of their validity;" or (3) "where is drawn in question the construction of any clause of the constitution, or of a treaty, or statute of, or commission held under the United States, and the decision is against the title, right, privilege or exemption specially set up or claimed" thereunder. *Id.* § 25, 1 Stat. 73, 85–86.

[6] *See* in particular the debate on the President's removal powers, discussed in ArtII.S2.C2.3.15.1 Overview of Removal of Executive Branch Officers with statements excerpted in R. Berger, Congress v. The Supreme Court 144–150 (1969). Debates on the Alien and Sedition Acts and on the power of Congress to repeal the Judiciary Act of 1801 similarly saw recognition of judicial review of acts of Congress. C. Warren, *supra* at 107–124.

[7] Thus, the Justices on circuit refused to administer a pension act on the grounds of its unconstitutionally, *see Hayburn's Case,* 2 U.S. (2 Dall.) 409 (1792) , and ArtIII.S1.4.4 Inherent Power to Issue Judgments. Chief Justice Jay and other Justices wrote that the imposition of circuit duty on Justices was unconstitutional, although they never mailed the letter in *Hylton v. United States,* 3 U.S. (3 Dall.) 171 (1796), a feigned suit, the constitutionality of a federal law was argued before the Justices and upheld on the merits, in *Ware v. Hylton,* 3 U.S. (3 Dall.) 199 (1796), a state law was overturned, and dicta in several opinions asserted the principle. *See* Calder v. Bull, 3 U.S. (3 Dall.) 386, 399 (1798) (Justice Iredell), and several Justices on circuit, quoted in Julius Goebel, *supra* note 1, at 589–592.

[8] 5 U.S. (1 Cr.) 137 (1803).

constitutional law.[9] While the doctrine is well established, some legal commentators have criticized judicial review, and some who support it debate its doctrinal basis or how it should be applied.[10]

ArtIII.S1.3 Marbury v. Madison and Judicial Review

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Judicial review is one of the distinctive features of United States constitutional law. However, the Constitution does not expressly grant the federal courts the power to declare government actions unconstitutional. Instead, the Supreme Court established the doctrine in the 1803 case *Marbury v. Madison*.[1]

Marbury arose from a dispute over a government commission. Plaintiff William Marbury and others were appointed as justices of the peace while President John Adams was in office, and their commissions were signed but not delivered. When President Thomas Jefferson took office, the commissions were withheld on Jefferson's express instruction. Marbury sued Secretary of State James Madison in the Supreme Court, seeking a writ of mandamus compelling delivery of the commission. He invoked the Supreme Court's original jurisdiction under Section 13 of the Judiciary Act of 1789.[2] The Supreme Court, in an opinion by Chief Justice John Marshall, agreed with Marbury that Section 13 authorized the Court to issue writs of mandamus in suits in its original jurisdiction. However, the Court declined to issue the writ, concluding instead that the Section 13 authorization was an attempt by Congress to expand the Court's original jurisdiction beyond its constitutional limits and was therefore void.[3]

Chief Justice Marshall began his discussion of judicial review by opining, "The question, whether an act, repugnant to the constitution, can become the law of the land, is a question deeply interesting to the United States; but, happily, not of an intricacy proportioned to its interest."[4] In answering the question in the affirmative, Chief Justice Marshall first recognized certain fundamental principles. The people had come together to establish a government. They provided for its organization, assigned powers to its various departments, and established certain limits not to be transgressed by those departments. The limits were

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[9] *See* ArtIII.S1.3 Marbury v. Madison and Judicial Review.

[10] *See, e.g.*, G. Gunther, Constitutional Law 1–38 (12th ed. 1991); For expositions on the legitimacy of judicial review, see L. Hand, The Bill of Rights (1958); H. Wechsler, Principles, Politics, and Fundamental Law: Selected Essays 1–15 (1961); A. Bickel, The Least Dangerous Branch: The Supreme Court at the Bar of Politics 1–33 (1962); R. Berger, Congress v. The Supreme Court (1969). For an extensive historical attack on judicial review, see 2 W. Crosskey, Politics and the Constitution in the History of the United States chs. 27–29 (1953), with which compare Hart, *Book Review*, 67 Harv. L. Rev. 1456 (1954). A brief review of the ongoing debate on the subject, in a work that now is a classic attack on judicial review, is Westin, Introduction: Charles Beard and American Debate Over Judicial Review, 1790–1961, in C. Beard, The Supreme Court and the Constitution 1–34 (1962 reissue of 1938 ed.), and bibliography at 133–149. While much of the debate focuses on judicial review of acts of Congress, the similar review of state acts has occasioned much controversy as well.

[1] 5 U.S. (1 Cr.) 137 (1803).

[2] 1 Stat. 73, 80.

[3] 5 U.S. (1 Cr.) at 173–80.

[4] *Id.* at 176.

expressed in a written constitution, which would serve no purpose "if these limits may, at any time, be passed by those intended to be restrained[.]"[5] Because the Constitution is "a superior paramount law, unchangeable by ordinary means, . . . a legislative act contrary to the constitution is not law."[6]

The Chief Justice then asked, "If an act of the legislature, repugnant to the constitution, is void, does it, notwithstanding its invalidity, bind the courts, and oblige them to give it effect?"[7] The answer, thought the Chief Justice, was clear: "It is emphatically the province and duty of the judicial department to say what the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule. If two laws conflict with each other, the courts must decide on the operation of each."[8] If a statute and the Constitution both apply to a single case, and conflict with one another, "the court must determine which of these conflicting rules governs the case. This is of the very essence of judicial duty."[9] Because "the constitution is superior to any ordinary act of the legislature, the constitution, and not such ordinary act, must govern the case to which they both apply."[10] To declare otherwise, Chief Justice Marshall said, would be to permit the legislature to "pass[ ] at pleasure the limits imposed on its powers by the Constitution."[11]

The Chief Justice then turned from the philosophical justification for judicial review as arising from the very concept of a written constitution, to specific clauses of the Constitution. The judicial power, he observed, was extended to "all cases arising under the constitution."[12] It was "too extravagant to be maintained that the Framers had intended that a case arising under the constitution should be decided without examining the instrument under which it arises."[13] Suppose, he said, that Congress laid a duty on an article exported from a state or passed a bill of attainder or an ex post facto law or provided that treason should be proved by the testimony of one witness. Would the courts enforce such a law in the face of an express constitutional provision? They would not, he continued, because their oath required by the Constitution obligated them to support the Constitution and to enforce such laws would violate the oath.[14] Finally, the Chief Justice noted that the Supremacy Clause[15] gave the Constitution precedence over laws and treaties, providing that only laws "which shall be made in *pursuance* of the constitution shall be the supreme law of the land."[16]

Marbury v. Madison involved federal court review of a federal statute. Since the decision in *Marbury*, the Supreme Court has exercised its power of judicial review to examine the constitutionality of state statutes and federal and state executive actions.[17] State courts also

[5] *Id.*

[6] *Id.* at 177.

[7] *Id.*

[8] *Id.*

[9] *Id.* at 178.

[10] *Id.* at 177–78.

[11] *Id.* at 178.

[12] *Id.* at 178 (citing U.S. Const. art. III, § 2, cl. 1).

[13] *Id.* at 179.

[14] *Id.* at 179–80.

[15] U.S. Const. art. VI, cl. 2.

[16] 5 U.S. (1 Cr.) at 180.

[17] *See, e.g.*, Fletcher v. Peck, 10 U.S. (6 Cr.) 87 (1810); Little v. Barreme, 6 U.S. (2 Cr.) 170 (1804); Cooper v. Aaron, 358 U.S. 1 (1958).

have the authority to hear federal constitutional claims,[18] and may consider the validity of state action under the federal Constitution, subject to discretionary review by the U.S. Supreme Court.[19]

As *Marbury*'s doctrine of judicial review became settled law in federal court, state courts also embraced the doctrine, with state court judicial review under state constitutions established in all states by 1850.[20] The decision in *Marbury v. Madison* has never been disturbed. Although commentators have debated the merits and scope of judicial review throughout the Nation's history,[21] the Supreme Court continues to review the constitutionality of statutes and other government actions.[22]

ArtIII.S1.4 Inherent Powers of Federal Courts

ArtIII.S1.4.1 Overview of Inherent Powers of Federal Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Since the early years of the Republic, the Supreme Court has held that the federal courts possess certain inherent powers that are necessary for the courts to conduct their business and serve their constitutional function. In the 1812 case *United States v. Hudson*, the Court described inherent judicial powers as "certain implied powers [that] must necessarily result to our Courts of justice from the nature of their institution . . . which cannot be dispensed with in a Court, because they are necessary to the exercise of all others."[1] These powers are not expressly enumerated in the Constitution, nor are they "immediately derived from statute."[2] In 1821, in *Anderson v. Dunn*, the Court explained, "Courts of justice are universally

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[18] *See* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[19] *See, e.g.*, New York Times v. Sullivan, 376 U.S. 254 (1964) (U.S. Supreme Court case involving a First Amendment challenge to a state law libel claim that was originally litigated in the Alabama courts); Lawrence v. Texas, 539 U.S. 558 (2003) (challenge to a state law banning consensual sexual activity between people of the same sex before the U.S. Supreme Court on appeal from a state criminal conviction).

[20] E. Corwin, The Doctrine of Judicial Review 75–78 (1914); Nelson, *Changing Conceptions of Judicial Review: The Evolution of Constitution Theory in the State, 1790–1860*, 120 U. Pa. L. Rev. 1166 (1972).

[21] *See, e.g.*, G. Gunther, Constitutional Law 1–38 (12th ed. 1991); For expositions on the legitimacy of judicial review, see L. Hand, The Bill of Rights (1958); H. Wechsler, Principles, Politics, and Fundamental Law: Selected Essays 1–15 (1961); A. Bickel, The Least Dangerous Branch: The Supreme Court at the Bar of Politics 1–33 (1962); R. Berger, Congress v. The Supreme Court (1969). For an extensive historical attack on judicial review, see 2 W. Crosskey, Politics and the Constitution in the History of the United States chs. 27–29 (1953), with which compare Hart, *Book Review*, 67 Harv. L. Rev. 1456 (1954). A brief review of the ongoing debate on the subject, in a work that now is a classic attack on judicial review, is Westin, Introduction: Charles Beard and American Debate Over Judicial Review, 1790–1961, in C. Beard, The Supreme Court and the Constitution 1–34 (1962 reissue of 1938 ed.), and bibliography at 133–149. While much of the debate focuses on judicial review of acts of Congress, the similar review of state acts has occasioned much controversy as well.

[22] *See, e.g.*, Iancu v. Brunetti, 139 S. Ct. 2294, 588 U.S. ___ (2019); Matal v. Tam, 137 S. Ct. 1744, 582 U.S. ___ (2017).

[1] 11 U.S. 32, 34 (1812).

[2] *Id. See also* Link v. Wabash R. Co., 370 U.S. 626, 630–631 (1962) (Inherent powers are "governed not by rule or statute but by the control necessarily vested in courts to manage their own affairs so as to achieve the orderly and expeditious disposition of cases.").

acknowledged to be vested, by their very creation, with power to impose silence, respect, and decorum, in their presence, and submission to their lawful mandates."[3]

Multiple Supreme Court cases have recognized inherent powers of the federal courts,[4] including the power to manage court proceedings,[5] to issue sanctions or hold parties in contempt for failure to comply with court orders,[6] and to issue and vacate judgments.[7] The following essays discuss each of those inherent powers in more detail.

ArtIII.S1.4.2 Inherent Powers Over Judicial Procedure

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Constitution divides the authority to set court procedures between the legislative and Judicial Branches. Congress enjoys substantial authority to make procedural rules for the courts. That authority is not expressly granted in the Constitution. Instead, the Supreme Court has explained that the power arises from Congress's authority to structure the federal court system, supplemented by the Necessary and Proper Clause.[1] In the 1825 case *Wayman v. Southard*, the Court held it to be "completely self-evident" that Congress has the authority to establish procedural rules for the federal courts.[2] The Court has approved procedural statutes that left some discretion to the federal courts, but has held that the courts do not have the inherent authority to expand their jurisdiction or to issue or execute judgments beyond what Congress has authorized.[3]

In 1934, recognizing the limited competence of the legislature to regulate court procedure and acknowledging the inherent power of courts to regulate the conduct of their business, Congress enacted the Rules Enabling Act.[4] The Act authorizes the Supreme Court to "prescribe general rules of practice and procedure and rules of evidence" for cases in the federal courts.[5] Such rules may not "abridge, enlarge or modify any substantive right."[6] Procedural rules also

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[3] 19 U.S. 204, 227 (1821)

[4] *See* Chambers v. NASCO, Inc., 501 U.S. 32, 43–44 (1991) (collecting cases and surveying inherent powers).

[5] *See* ArtIII.S1.4.2 Inherent Powers Over Judicial Procedure.

[6] *See* ArtIII.S1.4.3 Inherent Powers Over Contempt and Sanctions.

[7] *See* ArtIII.S1.4.4 Inherent Power to Issue Judgments.

[1] Hanna v. Plumer, 380 U.S. 460, 472 (1965).

[2] 23 U.S. (10 Wheat.) 1, 4 (1825).

[3] Fink v. O'Neil, 106 U.S. 272, 278, 280 (1882).

[4] 28 U.S.C. §§ 2071–2077.

[5] *Id.* § 2072(a).

[6] *Id.* § 2072(b). The Rules Enabling Act requires the Court to notify Congress of proposed amendments to procedural rules for the lower federal courts, but amendments take effect automatically unless Congress enacts legislation to reject or modify a proposed change. *Id.* §§ 2073, 2074. The Act also empowers the Supreme Court to create its own procedural rules, which need not be submitted to Congress before they take effect. *Id.* § 2071(a).

may not alter the jurisdiction or venue of federal courts.[7] Subject to those limitations, the Court has rejected constitutional challenges to rules promulgated under the Rules Enabling Act.[8]

In addition to the legislative power to regulate court procedures, some of which Congress has delegated to the Judicial Branch, the courts themselves possess inherent equitable powers over their procedures. This inherent power serves to prevent abuse, oppression, and injustice, and to protect the courts' jurisdiction and officers.[9] The Supreme Court has explained that such power is essential to and inherent in the organization of courts of justice.[10]

While the Court has not precisely delineated the outer boundaries of the federal courts' inherent powers to manage their own internal affairs, the Court has recognized two limits on the exercise of such authority.[11] First, a court, in exercising its inherent powers over its own processes, must act reasonably in response to a specific problem or issue confronting the court's fair administration of justice.[12] Second, any exercise of an inherent power cannot conflict with any express grant of or limitation on the district court's power as contained in a statute or rule, such as the Federal Rules of Civil Procedure.[13] Thus, as with rules promulgated under the Rules Enabling Act, no court-made rule can enlarge or restrict jurisdiction or abrogate or modify the substantive law. This limit applies equally to courts of law, equity, and admiralty, to rules prescribed by the Supreme Court for the guidance of lower courts, and to rules that lower courts make for their own guidance.[14]

Applying the foregoing standards, the Supreme Court has recognized that a federal district court, as an exercise of its inherent powers, can, in limited circumstances, rescind an order to discharge a jury and recall that jury in a civil case.[15] The Court has also acknowledged that federal courts possess the inherent power to control other aspects of regulating internal court proceedings, hearing a motion in limine;[16] dismissing a case for the convenience of the parties or witnesses because of the availability of an alternative forum;[17] and staying proceedings pending the resolution of parallel actions in other courts.[18] The federal courts also possess inherent power to amend their records, correct the errors of the clerk or other court

[7] United States v. Sherwood, 312 U.S. 584, 589–590 (1941); Mississippi Pub. Corp. v. Murphree, 326 U.S. 438 (1946).

[8] *E.g.*, Sibbach v. Wilson, 312 U.S. 1, 14 (1941).

[9] Gumbel v. Pitkin, 124 U.S. 131 (1888); Covell v. Heyman, 111 U.S. 176 (1884); Buck v. Colbath, 70 U.S. (3 Wall.) 334 (1866).

[10] Eberly v. Moore, 65 U.S. (24 How.) 147 (1861); Arkadelphia Co. v. St. Louis S.W. Ry., 249 U.S. 134 (1919).

[11] *See* Dietz v. Bouldin, 579 U.S. ___, No. 15–458, slip op. at 4 (2016).

[12] *Id.* at 4–5.

[13] *Id.* at 4.

[14] Washington-Southern Nav. Co. v. Baltimore & P.S.B.C. Co., 263 U.S. 629, 635, 636 (1924). The Supreme Court does not prescribe how Courts of Appeals should exercise discretion vested in them. As long as a lower court keeps within the bounds of judicial discretion, its action is not reviewable. *In re* Burwell, 350 U.S. 521 (1956).

[15] Dietz v. Bouldin, No. 15–458, slip op. at 5–7 (acknowledging that while it is reasonable to allow a jury to reconvene after a formal discharge to correct an error and while such an exercise of authority does not conflict with a rule or statute, the exercise of the inherent power to rescind a discharge order needs to be carefully circumscribed to guarantee the existence of an impartial jury). The rule provided in *Dietz* extends only to civil cases, as additional constitutional concerns—namely, the attachment of the double jeopardy bar—might arise if a court were to recall a jury after discharge in a criminal case. *See id.* at 10.

[16] *See* Luce v. United States, 469 U.S. 38, 41 n.4 (1984). A motion *in limine* is a preliminary motion resolved by a court prior to trial and generally regards the admissibility of evidence. *See* Black's Law Dictionary 1171 (10th ed. 2014).

[17] *See* Gulf Oil Corp. v. Gilbert, 330 U.S. 501, 507–08 (1947). This doctrine is called *forum non conveniens*. *See* Black's Law Dictionary 770 (10th ed. 2014).

[18] *See* Landis v. N. Am. Co., 299 U.S. 248, 254 (1936).

officers, and rectify defects or omissions in their records.[19] The exercise of an inherent power can, at times, allow for departures from even long-established, judicially crafted common law rules; however, courts are not generally free to discover new inherent powers that are contrary to civil practice as recognized in the common law.[20]

Incident to the judicial power, federal courts possess inherent authority to supervise the conduct of their officers, parties, witnesses, counsel, and jurors by imposing rules to protect the rights of litigants and the orderly administration of justice.[21] Such supervision may be accomplished through a number of different means, including promulgation of general procedural rules as discussed in this essay, oversight of admission to the bar, imposition of contempt or sanctions for parties or attorney who disobey court orders or engage in misconduct, or case-by-case decisions to exclude individuals from the courtroom.[22]

ArtIII.S1.4.3 Inherent Powers Over Contempt and Sanctions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Supreme Court has repeatedly held that federal courts possess inherent authority to punish contempt—i.e., disobedience of a court order or obstruction of justice—and to impose other sanctions on parties or attorneys who engage in misconduct.

The Court's contempt decisions have often distinguished between criminal and civil contempt.[1] Whether a contempt is civil or criminal can be of great importance. For instance, criminal contempt implicates procedural rights attendant to prosecutions, while civil contempt does not.[2] In *Ex parte Grossman*, while holding that the President may pardon a criminal contempt, Chief Justice William Howard Taft noted in dicta that the pardon power did not

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[19] Gagnon v. United States, 193 U.S. 451, 456–59 (1904). The power to amend records conveys no power to create a record or recreate one of which no evidence exists. *Id.*

[20] *See Dietz*, slip op. at 12.

[21] McDonald v. Pless, 238 U.S. 264, 266 (1915); Griffin v. Thompson, 43 U.S. (2 How.) 244, 257 (1844). *See* Thomas v. Arn, 474 U.S. 140 (1985) (appeals court rule conditioning appeal on having filed with the district court timely objections to a master's report). In *Rea v. United States,* 350 U.S. 214, 218 (1956), the Court, citing *McNabb v. United States,* 318 U.S. 332 (1943), asserted that this supervisory power extends to policing the requirements of the Court's rules with respect to the law enforcement practices of federal agents. *But compare* United States v. Payner, 447 U.S. 727 (1980).

[22] *See* Chambers v. NASCO, Inc., 501 U.S. 32, 43–44 (1991) (collecting cases and surveying inherent powers). For further discussion of the contempt and sanctions powers, see ArtIII.S1.4.3 Inherent Powers Over Contempt and Sanctions.

[1] *But see* United States v. United Mine Workers, 330 U.S. 258 (1947). A civil contempt has been traditionally viewed as the refusal of a person in a civil case to obey a mandatory order. It is incomplete in nature, may be purged by obedience to the court order, and does not involve a sentence for a definite period. The classic criminal contempt is one where the act of contempt has been completed, punishment is imposed to vindicate the authority of the court, and a person cannot by subsequent action purge himself of such contempt. Gompers v. Bucks Stove & Range Co., 221 U.S. 418, 441–443 (1911); *Ex parte* Grossman, 267 U.S. 87 (1925). *See also* Bessette v. W.B. Conkey Co., 194 U.S. 324, 327–328 (1904).

[2] International Union, United Mine Workers of America v. Bagwell, 512 U.S. 821 (1994); Shillitani v. United States, 384 U.S. 364 (1966).

extend to civil contempt.[3] In *Turner v. Rogers*, the Court held that the Due Process Clause does not grant an indigent defendant a right to state-appointed counsel at a civil contempt proceeding.[4] Notwithstanding the importance of distinguishing between the two types of contempt, there have been instances where defendants have been charged with both civil and criminal contempt for the same act.[5]

The history of the contempt powers of the American Judiciary is marked by two trends: a shrinking of the courts' power to punish a person summarily and a multiplying of the due process requirements that must be met when finding an individual to be in contempt.[6] The power of the courts of the United States to punish contempts of their authority had its origin in the law and practice of England where disobedience of court orders was regarded as contempt of the King himself and attachment was a prerogative process derived from presumed contempt of the sovereign.[7] By the latter part of the eighteenth century, summary power to punish was extended to all contempts whether committed in or out of court.[8] In the United States, the Judiciary Act of 1789 broadly conferred power on all courts of the United States "to punish by fine or imprisonment, at the discretion of said courts, all contempts of authority in any cause or hearing before the same."[9] The abuse of this extensive power led to the passage of the Act of 1831, which limited the power of the federal courts to punish contempts to misbehavior in the presence of the courts "or so near thereto as to obstruct the administration of justice," misbehavior of officers of courts in their official capacity, and disobedience or resistance to any lawful writ, process or order of the court.[10]

Writing for the Court to sustain the Act of 1831 in *Ex parte Robinson*, Justice Stephen Field described the nature of the contempt power as follows:

> The power to punish for contempts is inherent in all courts; its existence is essential to the preservation of order in judicial proceedings, and to the enforcement of the judgments, orders, and writs of the courts, and consequently to the due administration of justice. The moment the courts of the United States were called into existence and invested with jurisdiction over any subject, they became possessed of this power.[11]

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[3] 267 U.S. 87, 119–120 (1925). In an analogous case, the Court was emphatic in a dictum that Congress cannot require a jury trial where the contemnor has failed to perform a positive act for the relief of private parties. Michaelson v. United States *ex rel.* Chicago, S.P., M. & Ry., 266 U.S. 42, 65–66 (1924). *But see* Bloom v. Illinois, 391 U.S. 194, 202 (1968).

[4] 564 U.S. 431 (2011); *cf.* Hicks v. Feiock, 485 U.S. 624 (1988) (holding that a state may place the burden of proving inability to pay child support on a defendant faced with civil contempt).

[5] *See* United States v. United Mine Workers, 330 U.S. 258, 299 (1947).

[6] Many of the limitations placed on the inferior federal courts have been issued on the basis of the Supreme Court's supervisory power over them rather than upon a constitutional foundation, while, of course, the limitations imposed on state courts necessarily are on constitutional dimensions. Indeed, it is often the case that a limitation that is applied to an inferior federal court as a superintending measure is then transformed into a constitutional limitation and applied to state courts. *Compare* Cheff v. Schnackenberg, 384 U.S. 373 (1966), *with* Bloom v. Illinois, 391 U.S. 194 (1968). The limitations then bind both federal and state courts alike. Therefore, in this section, Supreme Court constitutional limitations on state court contempt powers are cited without restriction for equal application to federal courts.

[7] Fox, *The King v. Almon*, 24 L.Q. Rev. 184, 194–195 (1908).

[8] Fox, *The Summary Power to Punish Contempt*, 25 L.Q. Rev. 238, 252 (1909).

[9] 1 Stat. 83, § 17 (1789).

[10] 18 U.S.C. § 401. Judge James H. Peck of the Federal District Court of Missouri was impeached for abuse of the contempt power, but was acquitted by the Senate. For a summary of the Peck impeachment and the background of the Act of 1831, see Felix Frankfurter & James Landis, *Power of Congress Over Procedure in Criminal Contempts in 'Inferior' Federal Courts: A Study in Separation of Powers*, 37 Harv. L. Rev. 1010, 1024–1028 (1924).

[11] 86 U.S. (19 Wall.) 505, 510 (1874).

While he expressed doubts concerning the validity of the 1831 Act as applied to the Supreme Court, Justice Field declared that there could be no question of its validity as applied to the lower courts because they are created by Congress and their "powers and duties depend upon the act calling them into existence, or subsequent acts extending or limiting their jurisdiction."[12] With the passage of time, later adjudications, especially after 1890, came to place more emphasis on the inherent power of courts to punish contempts than upon the power of Congress to regulate summary attachment.

By 1911, the Court was saying that the contempt power must be exercised by a court without referring the issues of fact or law to another tribunal or to a jury in the same tribunal.[13] In *Michaelson v. United States*, the Court narrowly interpreted sections of the Clayton Act relating to punishment for contempt of court by disobedience of injunctions in labor disputes.[14] The sections in question provided for a jury upon the demand of the accused in contempt cases where the acts committed in violation of district court orders also constituted a crime. Although Justice George Sutherland reaffirmed earlier rulings establishing the authority of Congress to regulate the contempt power, he went on to qualify this authority and declared that "the attributes which inhere in the power [to punish contempt] and are inseparable from it can neither be abrogated nor rendered practically inoperative."[15] The Court mentioned specifically "the power to deal summarily with contempt committed in the presence of the courts or so near thereto as to obstruct the administration of justice," and the power to enforce mandatory decrees by coercive means.[16] The Court has held that this latter power to enforce includes the authority to appoint private counsel to prosecute a criminal contempt.[17]

Although the contempt power may be inherent, it is not unlimited. In *Spallone v. United States*, the Court held that a district court had abused its discretion by imposing contempt sanctions on individual members of a city council for refusing to vote to implement a consent decree remedying housing discrimination by the city.[18] The Court held that, "in view of the 'extraordinary' nature of the imposition of sanctions against the individual councilmembers," the proper remedy was to proceed first with contempt sanctions against the city, and only if that course failed should it proceed against the council members individually.[19]

In addition to the contempt power discussed above, the federal courts possess other inherent authorities to deter and punish misconduct.[20] The Supreme Court has explained that courts are elements of an independent and coequal branch of government, so once they are

[12] *Id.* at 511.

[13] Gompers v. Bucks Stove & Range Co., 221 U.S. 418, 450 (1911). *See also In re* Debs, 158 U.S. 564, 595 (1895).

[14] 266 U.S. 42 (1924).

[15] *Id.* at 66.

[16] *Id.* at 65–66.

[17] Young v. United States *ex rel.* Vuitton, 481 U.S. 787, 793–801 (1987). However, the Court, invoking its supervisory power, instructed the lower federal courts first to request the United States Attorney to prosecute a criminal contempt and only if refused should they appoint a private lawyer. *Id.* at 801–802. Still using its supervisory power, the Court held that the district court had erred in appointing counsel for a party that was the beneficiary of the court order; disinterested counsel had to be appointed. *Id.* at 802–08. Justice Antonin Scalia contended that the power to prosecute is not comprehended within Article III judicial power and that federal judges had no power, inherent or otherwise, to initiate a prosecution for contempt or to appoint counsel to pursue it. *Id.* at 815. *See also* United States v. Providence Journal Co., 485 U.S. 693 (1988), which involved the appointment of a disinterested private attorney. The Supreme Court dismissed the writ of certiorari after granting it, however, holding that only the Solicitor General representing the United States could bring the petition to the Court. *See* 28 U.S.C. § 518.

[18] 493 U.S. 265 (1990).

[19] *Id.* at 280.

[20] United States v. Hudson & Goodwin, 11 U.S. (7 Cr.) 32, 34 (1812) ("Certain implied powers must necessarily result to our courts of justice, from the nature of their institution. . . . To fine for contempt, imprison for contumacy,

created and their jurisdiction established, they have the authority to do what courts have traditionally done in order to accomplish their assigned tasks.[21] Those inherent powers may be limited by statutes and by rules.[22] Nonetheless, the Court has asserted the power to act in areas not covered by statutes and rules and has held that Congress may regulate the courts' inherent sanctions power only by unmistakably enunciating its intention to limit the courts' inherent powers.[23]

Thus, in *Chambers v. NASCO, Inc.*, the Court upheld the imposition of monetary sanctions against a litigant and his attorney for bad-faith litigation conduct in a diversity case.[24] Some of the conduct was covered by a federal statute and several sanction provisions of the Federal Rules of Civil Procedure, but some was not. The Court held that, absent a showing that Congress had intended to limit the courts, they could use their inherent powers to impose sanctions for the entire course of conduct, including shifting attorneys' fees, which is ordinarily against the common-law American rule.[25] In another case, a party failed to comply with discovery orders and a court order concerning a schedule for filing briefs. The Supreme Court held that the attorneys' fees statute did not allow assessment of such fees in that situation, but it remanded for consideration of sanctions under both a Federal Rule of Civil Procedure and the trial court's inherent powers, subject to a finding of bad faith.[26] However, bad faith is not always required for the exercise of some inherent powers. For instance, courts may dismiss an action for an unexplained failure of the moving party to prosecute it.[27]

ArtIII.S1.4.4 Inherent Power to Issue Judgments

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Since 1792, the federal courts have emphasized finality of judgment as an essential attribute of judicial power. In that year, Congress authorized Revolutionary War veterans to file pension claims in circuit courts of the United States, directed the judges to certify to the Secretary of War the degree of a claimant's disability and their opinion with regard to the proper percentage of monthly pay to be awarded, but empowered the Secretary to withhold

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enforce the observance of order, &c., are powers which cannot be dispensed with in a court, because they are necessary to the exercise of all others: and so far our courts, no doubt, possess powers not immediately derived from statute.").

[21] *See* Anderson v. Dunn, 19 U.S. (6 Wheat.) 204, 227 (1821); *Ex parte* Robinson, 86 U.S. (19 Wall.) 505, 510 (1874); Link v. Wabash R.R., 370 U.S. 626, 630–631 (1962); Chambers v. NASCO, Inc., 501 U.S. 32, 43–46 (1991); *id.* at 58 (Scalia, J., dissenting); *id.* at 60, 62–67 (Kennedy, J., dissenting).

[22] *Chambers*, 501 U.S. at 47.

[23] *Id.* at 46–51.

[24] *Id.* at 35.

[25] *Id.* at 49–51. Nonetheless, the Court has clarified that because a court's order directing a sanctioned litigant to reimburse the legal fees and costs incurred by the wronged party as a result of bad faith conduct is compensatory, rather than punitive, in nature, a fee award may go no further than to redress the wronged party for losses sustained. *See* Goodyear Tire & Rubber Co. v. Haeger, 581 U.S. ___, No. 15–1406, slip op. at 5–6 (2017) (holding that a court, "when using its inherent sanctioning authority," must "establish a causal link—between the litigant's misbehavior and legal fees paid by the opposing party").

[26] Roadway Express, Inc. v. Piper, 447 U.S. 752, 764 (1980).

[27] Link v. Wabash R.R., 370 U.S. 626 (1962).

judicially certified claimants from the pension list if he suspected "imposition or mistake."[1] The Justices then on circuit almost immediately forwarded objections to the President, contending that the statute was unconstitutional because the judicial power was constitutionally committed to the Judicial department, the duties imposed by the act were not judicial, and the subjection of a court's opinions to revision or control by an officer of the Executive or the Legislature was not authorized by the Constitution.[2]

In addition to the power to issue judgments, each federal court also possesses an inherent power to "to vacate its own judgment upon proof that a fraud has been perpetrated upon the court" or enforcement of the judgment would otherwise create inequity, and to "conduct an independent investigation in order to determine whether it has been the victim of fraud."[3] By contrast, the Court has held that Congress may not enact legislation that directs courts to reopen a final judgment.[4]

Federal courts also have authority to issue writs, though it is not clear whether the courts have any inherent power in this area absent statutory authorization by Congress. Since the Founding, Congress has assumed—under its power to establish inferior courts, its power to regulate the jurisdiction of federal courts, and the Necessary and Proper Clause—the power to regulate the issuance of writs.[5] Section 13 of the Judiciary Act of 1789 authorized the Supreme Court "to issue writs of prohibition to the district courts, when proceeding as courts of admiralty and maritime jurisdiction, and writs of mandamus, in cases warranted by the principles and usages of law, to any courts appointed, or persons holding office, under the authority of the United States."[6] Section 14 provided that all "courts of the United States shall have power to issue writs of *scire facias*, *habeas corpus*, and all other writs not specially provided for by statute, which may be necessary for the exercise of their respective jurisdictions, and agreeable to the principles and usages of law."[7]

Although the Act of 1789 left the power to issues writs subject largely to the common law, it is significant as a reflection of the belief, in which the courts have generally concurred, that an act of Congress is necessary to confer judicial power to issue writs.[8] Whether Article III itself is an independent source of the power of federal courts to fashion equitable remedies for

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[1] Act of March 23, 1792, 1 Stat. 243.

[2] 1 American State Papers: Miscellaneous Documents, Legislative and Executive, of the Congress of the United States 49, 51, 52 (1832). President Washington transmitted the remonstrances to Congress. 1 Messages and Papers of the Presidents 123, 133 (J. Richardson comp., 1897). The objections are also appended to the order of the Court in *Hayburn's Case,* 2 U.S. (2 Dall.) 409, 410 (1792). Note that some of the Justices declared their willingness to perform under the Act as commissioners rather than as judges. *Cf.* United States v. Ferreira, 54 U.S. (13 How.) 40, 52–53 (1852). The assumption by judges that they could act in some positions as individuals while remaining judges, an assumption many times acted upon, was approved in *Mistretta v. United States,* 488 U.S. 361, 397–408 (1989).

[3] Chambers v. NASCO, Inc., 501 U.S. 32, 44 (1991) (citing Hazel–Atlas Glass Co. v. Hartford–Empire Co., 322 U.S. 238 (1944); Universal Oil Products Co. v. Root Refining Co., 328 U.S. 575, 580 (1946)); *see also* Plaut v. Spendthrift Farm, Inc., 514 U.S. 211, 234 (1995).

[4] *Plaut*, 514 U.S. 211; *see also* ArtIII.S1.5.2 Reopening Final Judicial Decisions.

[5] Frankfurter & Landis, *Power of Congress Over Procedure in Criminal Contempts in 'Inferior' Federal Courts—A Study in Separation of Powers*, 37 Harv. L. Rev. 1010, 1016–1023 (1924).

[6] 1 Stat. 73, 81. "Section 13 was a provision unique to the Court, granting the power of prohibition as to district courts in admiralty and maritime cases." Wright, Miller & Cooper, Federal Practice and Procedure: Jurisdiction 2d § 4005, p. 98 (1996). *See also* R. Fallon, et al., Hart and Wechsler's The Federal Courts and the Federal System (6th ed. 2009), Ch. III, p. 268. In *Marbury v. Madison*, the Supreme Court limited the authority of Congress to empower the Court to issue writs, striking down Section 13. *See* 5 U.S. (1 Cr.) 137 (1803) (holding that Section 13 was an attempt by Congress to expand the Court's original jurisdiction beyond its constitutional limits and was therefore void).

[7] 1 Stat. 73, 81–82. *See also* United States v. Morgan, 346 U.S. 502 (1954) (holding that the All Writs section of the Judicial Code, 28 U.S.C. § 1651(a), gives federal courts the power to employ the ancient writ of *coram nobis*).

[8] *See, e.g.*, Pennsylvania Bureau of Correction v. United States Marshals Service, 474 U.S. 34 (1985) (holding that a federal district court lacked authority to order U.S. marshals to transport state prisoners, such authority not being

constitutional violations or whether such remedies must fit within congressionally authorized writs or procedures is often left unexplored. In *Missouri v. Jenkins*, for example, the Court, rejecting a claim that a federal court exceeded judicial power under Article III by ordering local authorities to increase taxes to pay for desegregation remedies, declared that a court order directing a local government body to levy its own taxes is plainly a judicial act within the power of a federal court.[9] In the same case, the Court refused to rule on the difficult constitutional issues presented by the state's claim that the district court had exceeded its constitutional powers in a prior order directly raising taxes, instead ruling that the order had violated principles of comity.[10]

ArtIII.S1.5 Congressional Control Over Judicial Power

ArtIII.S1.5.1 Overview of Congressional Control Over Judicial Power

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Framers structured the Constitution to promote the separation of powers and, in particular, to protect the Judiciary from undue influence by Congress and the Executive Branch.[1] Nonetheless, the Constitution does not impose complete separation between the Judiciary and the political branches. Congress possesses substantial authority to regulate how the federal courts exercise judicial power, albeit subject to certain constitutional limitations.

For instance, the Supreme Court rejected a separation of powers challenge to legislation establishing the U.S. Sentencing Commission as an independent agency within the Judicial Branch.[2] On the other hand, while Congress can change the substantive law courts must apply and alter the jurisdiction of the federal courts, sometimes even with respect to pending cases,[3] it cannot direct the courts to reopen final judicial decisions.[4] The following essays discuss those two issues. Other issues related to congressional control over the Federal Judiciary, including

granted by the relevant statutes). While the Court has held that statutory authorization to issue writs is necessary, it has also held that such authorizing legislation is not effective if it exceeds constitutional limits on the federal courts' jurisdiction. *See Marbury*, 5 U.S. (1 Cr.) 137 (1803).

[9] 495 U.S. 33, 55 (1990) (citing Griffin v. Prince Edward County School Bd., 377 U.S. 218, 233–34 (1964)) (An order that local officials "exercise the power that is theirs" to levy taxes in order to open and operate a desegregated school system is "within the court's power if required to assure . . . petitioners that their constitutional rights will no longer be denied them.").

[10] *Id.* at 50–52.

[1] *See, e.g.*, 1 The Records of the Federal Convention of 1787, at 44 (Max Farrand ed., 1911) (discussion of how salary protection for judges could support judicial independence); *id.* at 429 (statement of Mr. Wilson in discussion of the Good Behavior Clause that "Judges would be in a bad situation if made to depend on every gust of faction which might prevail in the two branches of our Govt."); *cf.* The Federalist No. 78 (Alexander Hamilton).

[2] *See* ArtIII.S1.5.3 Imposing Non-Adjudicatory Functions on Courts.

[3] *See* ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[4] *See* ArtIII.S1.5.2 Reopening Final Judicial Decisions.

Congress's power to establish federal courts,[5] create court procedural rules,[6] set federal court jurisdiction,[7] and alter federal judges' tenure in office,[8] are discussed elsewhere in this volume.

ArtIII.S1.5.2 Reopening Final Judicial Decisions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The core of the judicial power is the authority to render dispositive judgments. Accordingly, the Supreme Court has held that Congress violates the separation of powers when it purports to alter, or allow the Executive Branch to alter, final judgments of Article III courts.[1]

In 1792, in *Hayburn's Case*, the Supreme Court considered a petition for a writ of mandamus to direct a federal circuit court to proceed on a claim seeking a federal pension.[2] The petitioner argued that the courts had failed to give effect to an act of Congress. The Court noted, however, that "the reasons assigned by the judges," including Supreme Court Justices sitting on the circuit courts, "for declining to execute the . . . act of Congress, involve a great constitutional question."[3] Specifically, those judges contended that pension decisions under the Act were not judicial duties that Congress could constitutionally assign to the courts because the act rendered such decisions subject to review by the political branches.[4] The Court heard argument on the mandamus petition but postponed its decision until the next term. While the case remained pending, Congress enacted legislation providing an alternative means of relief for the pensioners; the Court then dismissed the mandamus petition without deciding the underlying constitutional question.[5]

Although the Court in *Hayburn's Case* did not decide the constitutionality of legislation subjecting court judgments to review by the political branches, the Court has since cited that decision to reject efforts to give federal courts jurisdiction over cases in which judgment would be subject to Executive or Legislative revision.[6] For example, in the 1948 case *Chicago &*

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[5] *See* ArtIII.S1.8.1 Overview of Establishment of Article III Courts.

[6] *See* ArtIII.S1.4.1 Overview of Inherent Powers of Federal Courts

[7] *See, e.g.,* ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction; ArtIII.S2.C2.1 Overview of Supreme Court Jurisdiction; ArtIII.S2.C2.2 Supreme Court Original Jurisdiction; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[8] *See* ArtIII.S1.10.2.1 Overview of Good Behavior Clause.

[1] Plaut v. Spendthrift Farm, Inc., 514 U.S. 211, 218–19 (1995). Congress also cannot legislate to "prescribe a rule for the decision of a cause in a particular way." United States v. Klein, 80 U.S. 128 (1871); *see also* Bank Markazi v. Peterson, 578 U.S. 212, 231 (2016) (Congress may not enact legislation "that directs, in 'Smith v. Jones,' 'Smith wins.'"). However, Congress possesses substantial authority to amend substantive laws or alter federal court jurisdiction in ways that affect pending litigation. *See, e.g.*, Robertson v. Seattle Audubon Soc., 503 U.S. 429, 441 (1992); Patchak v. Zinke, 138 S. Ct. 897 (2018); *see also* ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[2] 2 U.S. (2 Dall.) 409 (1792).

[3] *Id.* at 410, footnote.

[4] *Id.* (noting objections that the statute "subjects the decisions of these courts . . . first to the consideration and suspension of the secretary at war, and then to the revision of the legislature").

[5] *Id.*

[6] *See* United States v. Ferreira, 54 U.S. (13 How.) 40 (1852); Gordon v. United States, 69 U.S. (2 Wall.) 561 (1865); *In re* Sanborn, 148 U.S. 222 (1893); *cf.* McGrath v. Kritensen, 340 U.S. 162, 167–168 (1950).

Southern Air Lines v. Waterman S.S. Corp., the Court held that an order of the Civil Aeronautics Board denying a certificate of convenience and necessity was not reviewable by the courts, despite statutory language to the contrary.[7] Congress had also rendered such an order subject to discretionary review and revision by the President, but the Supreme Court agreed with a lower federal court that the Judiciary did not have the authority to review the President's decision.[8] While the lower court had attempted to reconcile the statutory scheme by permitting presidential review of the order *after* judicial review, the Supreme Court rejected that interpretation, stating: "[I]f the President may completely disregard the judgment of the court, it would be only because it is one the courts were not authorized to render. Judgments within the powers vested in courts by the Judiciary Article of the Constitution may not lawfully be revised, overturned or refused faith and credit by another Department of Government."[9]

In the 1995 case *Plaut v. Spendthrift Farm, Inc.*, the Court held that legislation that directs courts to reopen a final judgment unconstitutionally intrudes on the Judiciary.[10] *Plaut* involved an amendment to the Securities Exchange Act of 1934 that Congress enacted after a pair of Supreme Court opinions announced a time limit for bringing certain civil actions seeking damages under the Act.[11] The amended statute, Section 27A of the Securities Exchange Act, directed courts (upon a timely filed petition) to reinstate cases that had been dismissed because of the Court's rulings but that would have been timely under the governing statute of limitations when initially filed.[12] In *Plaut*, the Supreme Court held that Section 27A's reopening provision violated the doctrine of separation of powers.[13] The Court explained that, by applying retroactively to final decisions, Section 27A "reverses a determination once made, in a particular case."[14] The Court distinguished the command in Section 27A from other retroactive laws that mandate "an appellate court [to] apply [the new] law in reviewing judgments still on appeal that were rendered before the law was enacted."[15] The Court emphasized the difference between attempting to alter a final judgment—one rendered by a court and either not appealed or affirmed on appeal—and legislatively amending a statute as applied to a decision that was on appeal or otherwise not final at the time a federal court reviewed the determination below. A court must apply the law as revised when it considers a case on appeal. However, the Court reasoned that "[h]aving achieved finality, . . . a judicial decision becomes the last word of the judicial department with regard to a particular case or controversy, and Congress may not declare by retroactive legislation that the law applicable to that very case was something other than what the courts said it was."[16] Thus, in directing courts to reopen nonpending, previously decided cases, Congress violates the separation of powers by "depriving judicial judgments of the conclusive effect that they had when they were announced."[17]

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[7] 333 U.S. 103 (1948).

[8] *Id.* at 111.

[9] *Id.* at 113.

[10] 514 U.S. 211 (1995).

[11] Lampf, Pleva, Lipkind, Prupis & Petigrow v. Gilbertson, 501 U.S. 350, 364 (1991); James B. Beam Distilling Co. v. Georgia, 501 U.S. 529, 544 (1991).

[12] *See* Federal Deposit Insurance Improvement Act of 1991, § 476, P.L. 102–242, 105. Stat. 2236.

[13] 514 U.S. at 240.

[14] *Id.* at 225.

[15] *Id.* at 226.

[16] *Id.* at 227.

[17] *Id.* at 227–28.

While Congress cannot require courts to reopen final judgments, it can "alter[ ] the prospective effect of injunctions entered by Article III courts."[18] Thus, in *Miller v. French*, the Court upheld a provision of the Prison Litigation Reform Act of 1995 that requires courts to stay a court-ordered injunction automatically for a specified period upon receiving a motion to terminate the injunction.[19] The Court ruled that the automatic stay provision did not amount to an unconstitutional legislative revision of a final judgment.[20] Rather, it merely altered the prospective effect of injunctions, and it is well established that such prospective relief "remains subject to alteration due to changes in the underlying law."[21]

ArtIII.S1.5.3 Imposing Non-Adjudicatory Functions on Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Supreme Court has struck down congressional attempts to reassign constitutional functions from one branch of government to another branch, but has "upheld statutory provisions that to some degree commingle the functions of the Branches, but that pose no danger of either aggrandizement or encroachment."[1] In *Mistretta v. United States*, the Supreme Court rejected a separation of powers challenge to legislation establishing the U.S. Sentencing Commission.[2] Through the Sentencing Reform Act of 1984, Congress created the Sentencing Commission as an independent agency in the Judicial Branch tasked with promulgating sentencing guidelines for federal judges to use when sentencing convicted offenders.[3] Under the Act, three Sentencing Commission members must be Article III judges. The President appoints all seven Commission members and can remove any member for cause.[4] In *Mistretta*, a criminal defendant sought to have the Sentencing Guidelines the Commission promulgated ruled unconstitutional, arguing in part that the Commission was constituted in violation of the doctrine of separation of powers.[5]

Upholding the constitutionality of establishing the Sentencing Commission as an independent body in the Judicial Branch, the Court acknowledged that the Commission is not a court and does not exercise judicial power.[6] Rather, its membership includes both judges and nonjudges, and its work has a "significantly political nature."[7] However, the Court held that the question of the Commission's constitutionality turns not on formal distinctions between

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[18] *Id.* at 222 (citing State of Pennsylvania v. The Wheeling & Belmont Bridge Co., 59 U.S. 421 (1855)).

[19] 530 U.S. 327 (2000); *see also* 18 U.S.C. § 3626(e)(2).

[20] 530 U.S. at 342.

[21] *Id.* at 344.

[1] Mistretta v. United States, 488 U.S. 361, 383 (1989).

[2] 488 U.S. 361.

[3] The Sentencing Reform Act was enacted as chapter II of the Comprehensive Crime Control Act, Title II of P.L. 98–473, 98 Stat. 1976 (1984).

[4] 28 U.S.C. § 991.

[5] 488 U.S. at 370. The challenger also asserted that Congress delegated excessive authority to the Commission to structure the Guidelines. *See id.* For additional discussion of *Mistretta*, see ArtI.S1.3.2 Functional and Formalist Approaches to Separation of Powers; ArtI.S1.6.1 Criminal Statutes and Nondelegation Doctrine.

[6] *Id.* at 384–85.

[7] *Id.* at 393.

"political" and "judicial" functions, but rather on a practical inquiry whether the agency's structure "undermin[es] the integrity of the Judicial Branch" or "expand[s] the powers of the Judiciary beyond constitutional bounds."[8] The Court held that "the placement of the Sentencing Commission in the Judicial Branch has not increased the Branch's authority" because, "[p]rior to the passage of the Act, the Judicial Branch . . . decided precisely the questions assigned to the Commission: what sentence is appropriate to what criminal conduct under what circumstances."[9] The Court also rejected the challenger's contention that participating in policymaking would inevitably weaken the Judiciary. The Court noted that "Congress placed the Commission in the Judicial Branch precisely because of the Judiciary's special knowledge and expertise" with respect to sentencing, and concluded that this arrangement could not "possibly be construed as preventing the Judicial Branch 'from accomplishing its constitutionally assigned functions.'"[10] The Court further held that "the principle of separation of powers does not absolutely prohibit Article III judges from serving on [non-judicial] commissions" such as the Sentencing Commission or from sharing power on the Commission with members who are not judges.[11]

ArtIII.S1.6 Federal and State Courts

ArtIII.S1.6.1 Overview of Relationship Between Federal and State Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Constitution's Supremacy Clause provides that the Constitution, federal statutes, and treaties "shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding."[1] The Supremacy Clause thus presumes that state courts will interpret—and be bound by—federal law.[2]

Under modern practice, both state and federal courts play an important role in interpreting and applying the Constitution and federal law.[3] However, at the time of the Founding it was not initially clear how that power would be divided between federal and state courts.[4]

In the years since the Founding, Supreme Court decisions have established that federal courts, particularly the Supreme Court, are the final authority on interpreting federal law, and federal courts possess the constitutional authority to review state court decisions that allegedly conflict with the Constitution or federal law.[5] Various statutory and court-made rules

[8] *Id.* at 393.

[9] *Id.* at 395.

[10] *Id.* at 395–96 (quoting Nixon v. Administrator of General Services, 433 U.S. 425, 443 (1977)).

[11] *Id.* at 404, 408.

[1] U.S. Const. art. VI, cl. 2.

[2] *See, e.g.*, Martin v. Hunter's Lessee, 14 U.S. 304, 342 (1816).

[3] *See* ArtIII.S1.6.3 Doctrine on Federal and State Courts.

[4] *See* ArtIII.S1.6.2 Historical Background on Relationship Between Federal and State Courts.

[5] *See id.*; *see also* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law; ArtIII.S1.6.9 Habeas Review.

govern when such review is available, however. In some circumstances, a complainant bringing a claim under federal law is required to exhaust available state legislative or administrative remedies before seeking relief in federal court; by contrast, exhaustion of state judicial remedies—for example, by first bringing related state law claims in state court—is not generally required.[6] There are also circumstances in which the federal courts have the power to assert jurisdiction over a case but decline to do so out of respect for the sovereign authority of state courts.[7]

As for state courts, they are generally authorized to hear claims involving federal law, except in areas where the federal courts possess exclusive jurisdiction.[8] Moreover, subject to limited exceptions, state courts are usually *required* to hear cases arising under federal law over which they have jurisdiction.[9] State courts generally lack the authority to enjoin proceedings in federal court or prevent the enforcement of federal court judgments.[10]

ArtIII.S1.6.2 Historical Background on Relationship Between Federal and State Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

At the time of the Founding, each state had its own system of courts, while the Articles of Confederation did not provide for an independent Federal Judiciary.[1] The delegates to the Constitutional Convention agreed early on that the new Constitution should establish a federal Judicial Branch including a Supreme Court; however, they debated other questions about how to balance federal and state judicial power.

The Framers generally accepted that state courts would play a significant role in interpreting and applying federal law.[2] However, some of the Framers also entertained concerns about whether state courts would apply federal law correctly, uniformly, and without bias. Then, as now, the specific structure of state courts varied significantly from state to state. State court judges often did not enjoy the safeguards that were afforded federal judges, such as

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[6] *See* ArtIII.S1.6.8 Exhaustion Doctrine and State Law Remedies; *but see* ArtIII.S1.6.9 Habeas Review (exhaustion of state judicial remedies is required before filing a federal habeas corpus petition).

[7] *See* ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention.

[8] *See* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[9] *See* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[10] *See* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[1] Article IX of the Articles of Confederation authorized Congress to "appoint[ ] courts for the trial of piracies and felonies committed on the high seas; and establish[ ] courts; for receiving and determining finally appeals in all cases of captures." The same Article further provided that Congress would be "the last resort on appeal, in all disputes and differences now subsisting, or that hereafter may arise between two or more states" and could appoint commissioners or judges to constitute a court to resolve such disputes.

[2] *See, e.g.*, 1 The Records of the Federal Convention of 1787, at 243 (Max Farrand ed., 1911) [hereinafter, Convention Records]. For example, the Convention considered proposals that would require federal questions to be decided first in state court, but with a right of appeal to federal courts. *See id.* at 243, 424. Likewise, during the debate over ratification, Alexander Hamilton wrote that "the State courts will RETAIN the jurisdiction they now have, unless it appears to be taken away in one of the enumerated modes. . . . [Thus,] the State courts would have a concurrent jurisdiction in all cases arising under the laws of the Union, where it was not expressly prohibited." The Federalist No. 83 (Alexander Hamilton).

life tenure during good behavior and salary protection. Certain delegates to the Constitutional Convention expressed concerns as to whether state court judges might therefore be subject to political pressures that could affect their decision-making.[3] Others raised the prospect of disputes between states, noting that a state court might issue decisions that were biased in favor of its home state.[4] Some Founders worried that the multiple state courts could interpret federal law differently, undermining the interest in having uniform federal laws.[5]

To mitigate those concerns, the Framers provided for a federal Supreme Court with the power to review state judicial decisions involving issues of federal statutory or constitutional law.[6] Debate arose, however, on the question of whether lower federal courts were also necessary. Some delegates argued that establishing lower federal courts would encroach on the power of the states.[7] Some argued that a right of appeal from state court to a federal appellate court would suffice to ensure uniformity and prevent bias.[8] Other delegates countered that a right to appeal would provide less effective protection of federal rights than the right to consideration by an impartial tribunal in the first instance.[9] The Convention discussed whether creating lower federal courts would lessen the burden on the Supreme Court and prevent it from being overwhelmed by numerous appeals.[10] Some delegates voiced an interest in flexibility, contending that lower federal courts might be needed in the future even if they were not immediately necessary.[11]

Ultimately, the Framers left the decision of whether to create lower federal courts to Congress. Article III of the Constitution provides for "one supreme Court, and . . . such inferior

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[3] James Madison expressed concern at the Convention about "improper Verdicts in State tribunals obtained under the biassed directions of a dependent Judge," and "disliked the election of the Judges by the Legislature or any numerous body" due to "the danger of intrigue and partiality" and the fact that legislators lacked the "requisite qualifications" to select suitable judges. Convention Records, *supra* note 2, at 120, 124. *See also* The Federalist No. 81 (Alexander Hamilton) ("State judges, holding their offices during pleasure, or from year to year, will be too little independent to be relied upon for an inflexible execution of the national laws.").

[4] *E.g.*, Convention Records, *supra* note 2, at 124 (statement of Madison expressing concern about "the local prejudices of an undirected jury"); The Federalist No. 80 (Alexander Hamilton) ("[T]he most discerning cannot foresee how far the prevalency of a local spirit may be found to disqualify the local tribunals for the jurisdiction of national causes.").

[5] As Hamilton wrote, "The mere necessity of uniformity in the interpretation of the national laws, decides the question. Thirteen independent courts of final jurisdiction over the same causes, arising upon the same laws, is a hydra in government, from which nothing but contradiction and confusion can proceed." The Federalist No. 80 (Alexander Hamilton).

[6] U.S. Const. art. III; 1 Stat. 73, 85; Martin v. Hunter's Lessee, 14 U.S. 304 (1816). *Cf.* Oliver Wendell Holmes, Collected Legal Papers 295–296 (1921) ("I do not think the United States would come to an end if we lost our power to declare an Act of Congress void. I do think the Union would be imperiled if we could not make that declaration as the laws of the several States.").

[7] *See, e.g.*, Convention Records, *supra* note 2, at 124–25.

[8] For example, John Rutledge argued that "State Tribunals might and ought to be left in all cases to decide in the first instance" and that lower federal courts would be "an unnecessary encroachment on the jurisdiction of the States, and creating unnecessary obstacles to their adoption of the new system." *Id.* at 124.

[9] *See, e.g.*, *id.* at 124–125 (statements of Madison, Wilson, & Dickinson); *see also* 25 The Papers of Alexander Hamilton 486 (Harold C. Syrett et al. ed 1977) ("The right of appeal is by no means equal to the right of applying, in the first instance, to a Tribunal agreeable to the suitor.").

[10] Madison observed at the Convention that without federal trial courts, appeals from state court "would be multiplied to a most oppressive degree." Convention Records, *supra* note 2, at 124. Even if a federal appeals court ordered a new trial, he asked, how could that provide an effective remedy when the case would be retried "under the biassed directions of a dependent Judge, or the local prejudices of an undirected jury? To remand the cause for a new trial would answer no purpose." *Id.* In a similar vein, another delegate argued that "the establishment of inferior tribunals [would] cost infinitely less than the appeals that would be prevented by them." *Id.* at 125; *but see id.* (statement of Sherman focused on "the supposed expensiveness of having a new set of Courts, when the existing State Courts would answer the same purpose").

[11] *See, e.g.*, *id.* at 125 (statement of Dickinson).

Courts as the Congress may from time to time ordain and establish."[12] The first Congress exercised its authority promptly, creating lower federal courts in the Judiciary Act of 1798, the first legislation related to the Federal Judiciary.[13]

ArtIII.S1.6.3 Doctrine on Federal and State Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

By specifying the extent of the "judicial Power," the Constitution authorized the creation of federal courts with limited subject matter jurisdiction. Article III identifies several categories of cases over which the Supreme Court possesses original jurisdiction.[1] In addition, the Constitution generally authorizes federal courts to hear "all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority," as well as admiralty cases, cases between citizens of different states, and cases between citizens of a state and a foreign state or its citizens.[2]

Within those broad categories, Congress has traditionally been understood to exercise significant discretion to decide which cases particular federal courts have jurisdiction to hear. The Constitution sets the maximum possible extent of federal court jurisdiction. Congress cannot expand such jurisdiction beyond the applicable constitutional limits, but is free to grant the federal courts authority over only a subset of constitutionally permissible cases. In practice, Congress has always granted the federal courts less expansive jurisdiction than the Constitution authorizes.[3] The first Judiciary Act granted the federal courts exclusive jurisdiction over matters including federal criminal cases, admiralty cases, and certain cases involving seizures of property under federal law.[4] The Act also granted the federal and state courts concurrent jurisdiction over other classes of cases, including certain tort suits brought by foreign nationals and common law suits brought by the United States government.[5] Since that time, Congress has periodically expanded the scope of federal court jurisdiction,[6] but has never provided for federal court jurisdiction in all possible cases that would be authorized under the Constitution's jurisdictional limits.[7]

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[12] U.S. Const. art. III, § 1; *cf.* Convention Records, *supra* note 2, at 125 ("Mr. Wilson & Mr. Madison then moved . . . to add . . . the words following 'that the National Legislature be empowered to institute inferior tribunals'. They observed that there was a distinction between establishing such tribunals absolutely, and giving a discretion to the Legislature to establish or not establish them.").

[13] 1 Stat. 73.

[1] U.S. Const. art. III, § 2, cl. 1.

[2] *Id.*

[3] *See, e.g.*, Merrell Dow Pharmaceuticals, Inc. v. Thompson, 478 U.S. 804, 807 (1986) ("Although the constitutional meaning of 'arising under' may extend to all cases in which a federal question is 'an ingredient' of the action, . . . we have long construed the statutory grant of federal-question jurisdiction as conferring a more limited power.") (internal citation omitted).

[4] 1 Stat. 73, 77.

[5] *Id.*

[6] For example, Congress amended the current federal question statute, 28 U.S.C § 1331, in 1976 and 1980 to eliminate the jurisdictional amount requirement. Pub. L. No. 94-574, 90 Stat. 2721; Pub. L. No. 96-486, 94 Stat. 2369.

ArtIII.S1.6.3
Doctrine on Federal and State Courts

In contrast to the federal system, the states operate courts of general jurisdiction, which are not subject to the constitutional jurisdictional limits placed on federal courts.[8] As part of such general jurisdiction, state courts have concurrent jurisdiction to hear most cases that raise issues under the Constitution or federal law.[9] Congress may enact legislation providing that certain claims arising under federal law may only be heard in federal court.[10] However, unless Congress provides for exclusive federal court jurisdiction, a case raising federal law claims may proceed in either state or federal court.[11]

If a plaintiff files in state court a case over which the federal courts could exercise jurisdiction, the defendant may elect to remove the case to federal court pursuant to federal statute.[12] In addition, a party may seek Supreme Court review of a decision of a state's highest court in cases where a state law, executive action, or judicial interpretation allegedly conflicts with the Constitution or a federal law or treaty.[13]

As the following sections discuss in more detail, other interactions between federal and state courts may occur as cases move through the judicial system. For example, because the federal Constitution, statutes, and treaties are the "the supreme Law of the Land," and federal courts are the final authority on the interpretation of federal law, state courts applying federal law are bound by controlling decisions of the federal courts.[14] Relatedly, federal courts may sometimes enjoin proceedings in state court,[15] and federal courts can hear challenges to state criminal convictions pursuant to petitions for a writ of *habeas corpus*.[16] By contrast, state courts have much more limited power to enjoin or otherwise affect federal proceedings.[17] Nonetheless, as a matter of federal-state comity,[18] federal courts will sometimes abstain from

On the other hand, Congress has also *limited* federal court jurisdiction by periodically raising the amount in controversy requirement for diversity suits. *See, e.g.*, Pub. L. 104-317 (104th Cong. 1996) (raising amount in controversy requirement from $50,000 to $75,000).

[7] For further discussion of the jurisdiction of the federal courts, see ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

[8] Court of General Jurisdiction, Black's Law Dictionary (11th ed. 2019) ("A court having unlimited or nearly unlimited trial jurisdiction in both civil and criminal cases."). States may also establish specialty courts with limited jurisdiction, such as family courts or land courts, but each state also has courts of general jurisdiction.

[9] *E.g.*, Claflin v. Houseman. 93 US 130, 136 (1876) ("[I]f exclusive jurisdiction be neither express nor implied, the State courts have concurrent jurisdiction whenever, by their own constitution, they are competent to take it."); Charles Dowd Box Co. v. Courtney, 368 U.S. 502, 507 (1962) ("We start with the premise that nothing in the concept of our federal system prevents state courts from enforcing rights created by federal law.").

[10] *See, e.g.*, 18 U.S.C. § 3231 (granting the federal district courts "original jurisdiction, exclusive of the courts of the States," over federal criminal proceedings); 28 U.S.C. § 1334 (granting district courts jurisdiction over bankruptcy cases); *id.* § 1337 (granting district courts jurisdiction over antitrust cases).

[11] *See* Gulf Offshore Co. v. Mobil Oil Corp., 453 U.S. 473, 477–84 (1981); Tafflin v. Levitt, 493 U.S. 455 (1990); Yellow Freight System, Inc. v. Donnelly, 494 U.S. 820 (1990). Federal courts have exclusive jurisdiction over the federal antitrust laws, even though Congress has not spoken expressly or impliedly. *See* General Investment Co. v. Lake Shore & Michigan Southern Ry., 260 U.S. 261, 287 (1922). For discussion of when state courts must hear federal claims, see ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[12] 28 U.S.C. § 1441. *See also* ArtIII.S2.C1.11.5 Removal from State Court to Federal Court.

[13] 28 U.S.C. § 1257.

[14] *See* ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law.

[15] *See* ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention.

[16] *See* ArtIII.S1.6.9 Habeas Review.

[17] *See* ArtIII.S1.6.6 Limits on State Court Control of Federal Proceedings.

[18] Comity is a self-imposed rule of judicial restraint whereby independent tribunals of concurrent or coordinate jurisdiction act to moderate the stresses of coexistence and to avoid collisions of authority. The Supreme Court has explained that comity is not a binding rule of law but "one of practice, convenience, and expediency," which persuades but does not command. Mast, Foos & Co. v. Stover Manufacturing Co., 177 U.S. 458, 488 (1900).

hearing cases raising novel questions of state law, and in some cases may require litigants to exhaust available remedies under state law before filing suit in federal court.[19]

ArtIII.S1.6.4 State Court Jurisdiction to Enforce Federal Law

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Unless the federal courts possess exclusive jurisdiction over a matter, state courts may hear cases over which federal courts would have also had jurisdiction.[1] However, it does not necessarily follow from the fact that state courts are *authorized* to hear claims arising under federal law that the state courts *must* agree to hear federal claims. In deciding multiple cases on this issue, the Supreme Court has ruled that state courts generally must hear federal law claims unless state law bars a state court from hearing a federal claim through a "neutral rule of judicial administration" that does not improperly burden claims arising under federal law.[2]

In the 1876 case *Claflin v. Houseman*, the Supreme Court held that state courts could hear cases arising under federal bankruptcy law.[3] The Court reasoned:

> The laws of the United States are laws in the several States, and just as much binding on the citizens and courts thereof as the State laws are. The United States is not a foreign sovereignty as regards the several States, but is a concurrent, and, within its jurisdiction, paramount sovereignty.[4]

The Court thus held that "the State courts have concurrent jurisdiction whenever, by their own constitution, they are competent to take it."[5] While *Claflin* concerned when state courts may exercise jurisdiction over federal claims, a number of subsequent cases have cited *Claflin* when considering when state courts may validly *decline* jurisdiction over federal claims.

In several cases, the Supreme Court has upheld state courts' refusal to hear federal claims, finding that state law provided a "valid excuse" to decline jurisdiction. For instance, in *Douglas v. New York, N.H. & H.R. Co.*, the Court upheld a state law that allowed state courts to decline jurisdiction over both state and federal law claims when neither party was a resident of the State.[6] The Supreme Court noted that there was nothing in the federal statute at issue "that

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[19] *See* ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention; ArtIII.S1.6.8 Exhaustion Doctrine and State Law Remedies; ArtIII.S1.6.9 Habeas Review.

[1] *See, e.g.*, Claflin v. Houseman. 93 U.S. 130, 136 (1876); Charles Dowd Box Co. v. Courtney, 368 U.S. 502, 507 (1962); Gulf Offshore Co. v. Mobil Oil Corp., 453 U.S. 473, 477–84 (1981).

[2] Howlett v. Rose, 496 U.S. 356, 374 (1990).

[3] 93 U.S. 130 (1876). Currently, federal law grants the federal courts exclusive jurisdiction over bankruptcy cases, 28 U.S.C. § 1334, but that was not true at the time of the events at issue in *Claflin*.

[4] 93 U.S. at 136.

[5] *Id.*

[6] 279 U.S. 377 (1929). *See also* Herb v. Pitcairn, 324 U.S. 117 (1945) (upholding state court's application of state venue laws to dismiss for want of jurisdiction of an action brought under federal law because the cause of action arose outside the city court's territorial jurisdiction); Missouri *ex rel.* Southern R. Co. v. Mayfield, 340 U.S. 1 (1950) (holding that a state's application of the forum non conveniens doctrine to bar adjudication of a federal claim brought by nonresidents was constitutional as long as the policy was enforced impartially); Johnson v. Fankell, 520 U.S. 911 (1997) (holding that a state rule limiting interlocutory jurisdiction did not discriminate against federal claims). A related question is whether federal procedural rules apply in state courts when they hear federal claims. The Supreme Court

purports to force a duty" to hear cases on state courts "as against an otherwise valid excuse."[7] In *Howlett v. Rose*, the Court summarized cases like *Douglas*, where states had validly declined to hear federal claims, as involving "neutral rule[s] of judicial administration."[8]

By contrast, in *Mondou v. New York, N.H. & H.R. Co.*, a Connecticut court declined to hear a case arising under federal law, in part because the state court held it was "at liberty to decline cognizance of actions to enforce rights arising under [the federal] act, because . . . the policy manifested by it is not in accord with the policy of the state."[9] The Supreme Court rejected that proposition and held that the state court must hear the case. In so holding, the Court emphasized that the case did not involve "any attempt by Congress to enlarge or regulate the jurisdiction of state courts, or to control or affect their modes of procedure," but only a question of when state courts must hear federal claims that fall within their "ordinary jurisdiction, as prescribed by local laws."[10]

Similarly, in *Testa v. Katt*, the Rhode Island Supreme Court declined to enforce a federal statute containing a punitive damages provision, finding that the law was penal in nature and the "state need not enforce the penal laws of a government which is 'foreign in the international sense.'"[11] The U.S. Supreme Court reversed, holding that the Rhode Island court must enforce the federal statute, and that a state policy of not enforcing penal statutes of other sovereigns was not a "valid excuse" under *Douglas*.[12] Among other things, the Court explained that "[i]t cannot be assumed, the supremacy clause considered, that the responsibilities of a state to enforce the laws of a sister state are identical with its responsibilities to enforce federal laws."[13]

In the 2009 case *Haywood v. Drown*, the Supreme Court considered a state statute that divested New York state courts of jurisdiction over suits under 42 U.S.C. § 1983 seeking money damages from corrections officers, as well as similar state law claims against corrections officers.[14] The Court held that the New York law violated the Supremacy Clause. Writing for the majority, Justice John Paul Stevens explained, "we have emphasized that only a neutral jurisdictional rule will be deemed a 'valid excuse' for departing from the default assumption" that state courts will hear federal claims.[15] Although the New York statute removed jurisdiction over both state and federal claims, the Court held, "equality of treatment" between state and federal claims "does not ensure that a state law will be deemed . . . a valid excuse for refusing to entertain a federal cause of action."[16] Rather, by distinguishing between Section 1983 claims against corrections officers and all other Section 1983 suits, New York undermined the federal policy of making relief under Section 1983 broadly available. The Court held that this was impermissible: "having made the decision to create courts of general jurisdiction that

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rejected that proposition in *Minneapolis & St. L. R. Co. v. Bombolis*, in which it declined to apply the Seventh Amendment's jury trial requirement to state courts enforcing a federal statute. 241 U.S. 211. The rule that state courts must entertain federal claims, the Court explained, did not imply that "for the purpose of enforcing the right, the state court was to be treated as a Federal court." *Id.* at 222.

[7] 279 U.S. at 388.

[8] 496 U.S. 356, 374 (1990).

[9] 223 U.S. 1, 55 (1912).

[10] *Id.* at 56–57. *See also* McKnett v. St. Louis & S.F. Ry., 292 U.S. 230, 233–34 (1934) ("[T]he Federal Constitution prohibits state courts of general jurisdiction from refusing to do so solely because the suit is brought under a federal law.").

[11] 330 U.S. 386, 388 (1947).

[12] *Id.* at 393.

[13] *Id.* at 389.

[14] 556 U.S. 729 (2009).

[15] *Id.* at 735.

[16] *Id.* at 738.

regularly sit to entertain analogous suits, New York is not at liberty to shut the courthouse door to federal claims that it considers at odds with its local policy."[17]

The question of state court enforcement of federal law is related to, but distinct from, the anti-commandeering doctrine.[18] In *Printz v. United States*, the Supreme Court distinguished between federal control over state courts and commandeering of the political branches of state government. Justice Antonin Scalia's majority opinion surveyed federal legislation from early Congresses that required state courts to take certain actions, such as recording applications for citizenship, but noted that state courts are bound by the Supremacy Clause, which expressly requires them to apply federal law. The Court thus concluded, "we do not think the early statutes imposing obligations on state courts imply a power of Congress to impress the state executive into its service."[19]

ArtIII.S1.6.5 Supreme Court Review of State Court Interpretations of Federal Law

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

As a substantive matter, state courts interpreting federal law are bound by applicable federal court precedents and subject to review by the Supreme Court. This rule dates back to Section 25 of Judiciary Act of 1789, which authorized the U.S. Supreme Court to review certain decisions of the states' highest courts involving the construction of the Constitution, a treaty, or federal law.[1]

The Supreme Court considered a constitutional challenge to Section 25 in the 1816 case *Martin v. Hunter's Lessee*.[2] In that case, litigation involving title to land in Virginia was appealed to the U.S. Supreme Court, which held that a treaty between the United States and Britain controlled the dispute. On remand, the Virginia state court of appeals refused to honor the Supreme Court's judgment, opining that "the appellate power of the supreme court of the United States does not extend to this court under a sound construction of the constitution of the United States," and that Section 25 was unconstitutional in that it "extends the appellate jurisdiction of the supreme court to this court."[3] The case returned to the U.S. Supreme Court, which upheld Section 25. Justice Joseph Story's majority opinion emphasized that the Constitution vests in the Supreme Court the authority to hear all cases subject to the federal

[17] *Id.* at 740.

[18] For further discussion of the anti-commandeering doctrine, see Amdt10.4.2 Anti-Commandeering Doctrine.

[19] 521 U.S. 898, 907 (1997).

[1] 1 Stat. 73, 85. The current statute authorizing Supreme Court review of "[f]inal judgments or decrees rendered by the highest court of a State" in cases arising under the Constitution or federal laws or treaties is 28 U.S.C. § 1257.

[2] 14 U.S. 304 (1816).

[3] *Id.* at 323–24.

judicial power, explaining that "the constitution not only contemplated, but meant to provide for cases within the scope of the judicial power of the United States, which might yet depend before state tribunals."[4]

Similarly, in *Cohens v. Virginia*, individuals convicted under Virginia state criminal law for selling lottery tickets argued that their convictions violated federal law. On appeal to the Supreme Court, the state argued that while the Virginia courts were constitutionally obliged to prefer federal law over conflicting state laws, the state courts, as courts of a separate sovereign, were bound only by their own interpretation of the supreme law.[5] The state further contended that the judicial power of the United States extended only to cases brought in the first instance in federal court. Chief Justice John Marshall's majority opinion rejected this narrow interpretation, holding that the words of the Constitution "give to the Supreme Court appellate jurisdiction in all cases arising under the constitution, laws, and treaties of the United States. The words are broad enough to comprehend all cases of this description, in whatever Court they may be decided."[6]

ArtIII.S1.6.6 Limits on State Court Control of Federal Proceedings

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

State courts have limited authority to issue orders that would affect the federal courts.[1] For instance, state courts cannot prevent the effectuation of federal court judgments.[2] Nor do state courts have the power to issue writs of habeas corpus ordering the release of persons in federal custody or writs of mandamus requiring action by federal officials.[3]

In addition, state courts generally lack the power to enjoin federal court proceedings.[4] One exception to that rule occurs in cases in which a state court has custody of property subject to proceedings in rem or *quasi in rem*:[5] in such cases, where the state court has exclusive jurisdiction to proceed, it may enjoin the parties from further action in federal court.[6]

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[4] *Id.* at 342. *See also id.* at 351 ("[T]he appellate power of the United States does extend to cases pending in the state courts; and . . . the 25th section of the judiciary act, which authorizes the exercise of this jurisdiction in the specified cases, by a writ of error, is supported by the letter and spirit of the constitution.").

[5] 19 U.S. 264 (1821).

[6] *Id.* at 416. *See also* Ableman v. Booth, 62 U.S. 506 (1859); Williams v. Bruffy, 102 U.S. 248 (1880).

[1] By contrast, federal courts may under certain circumstances enjoin actions in state courts. *See* ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention.

[2] McKim v. Voorhies, 11 U.S. 279, 281 (1812) ("the State Court had no jurisdiction to enjoin a judgment of the Circuit Court of the United States"). *Cf.* Riggs v. Johnson County, 73 U.S. 166, 195–96 (1868).

[3] Ableman v. Booth, 62 U.S. 506, 523 (1859) (when a prisoner is in federal custody, "neither the writ of habeas corpus, nor any other process issued under State authority, can pass over the line of division between the two sovereignties"); Tarble's Case, 80 U.S. 397 (1872); McClung v. Sillman, 19 U.S. 598 (1821) (holding that a state court could not issue a writ of mandamus to an officer of the United States).

[4] Donovan v. City of Dallas, 377 U.S. 408 (1964); General Atomic Co. v. Felter, 434 U.S. 12 (1977) (per curiam).

[5] In rem and quasi in rem proceedings involve the determination of property rights with respect to a thing within the court's jurisdiction. *See In Rem*, Black's Law Dictionary (11th ed. 2019).

[6] Princess Lida v. Thompson, 305 U.S. 456 (1939).

ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Perhaps the fullest expression of the concept of comity may be found in the abstention doctrine.[1] The abstention doctrine instructs federal courts to abstain from exercising jurisdiction if applicable state law, which would be dispositive to the controversy, is unclear and a state court's interpretation of the state law might make resolving a federal constitutional issue unnecessary.[2] Abstention is not proper, however, where the relevant state law is settled,[3] or where it is clear that the state statute or action challenged is unconstitutional no matter how the state court construes state law.[4] Federal jurisdiction is not ousted by abstention; rather it is postponed.[5] The Supreme Court has said that abstention can serve interests of federal-state comity by avoiding "a result in 'needless friction with state policies,'"[6] and can spare "the federal courts of unnecessary constitutional adjudication."[7]

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[1] For a definition and discussion of comity, see ArtIII.S2.C1.18.2 Suits Involving Foreign States.

[2] C. Wright, Handbook of the Law of Federal Courts 13 (4th ed. 1983). The basic doctrine was formulated by Justice Felix Frankfurter for the Court in *Railroad Comm'n v. Pullman Co.,* 312 U.S. 496 (1941). Another feature of the doctrine is that a federal court should refrain from exercising jurisdiction in order to avoid needless conflict with a state's administration of its own affairs, Burford v. Sun Oil Co., 319 U.S. 315 (1943); Alabama Public Service Comm'n v. Southern Ry., 341 U.S. 341 (1951); Great Lakes Dredge & Dock Co. v. Huffman, 319 U.S. 293 (1943); Martin v. Creasy, 360 U.S. 219 (1959); Moses H. Cone Hosp. v. Mercury Constr. Corp., 460 U.S. 1 (1983); New Orleans Public Service, Inc. v. Council of the City of New Orleans, 491 U.S. 350 (1989) (carefully reviewing the scope of the doctrine), especially where state law is unsettled. Meredith v. City of Winter Haven, 320 U.S. 228 (1943); County of Allegheny v. Frank Mashuda Co., 360 U.S. 185 (1959); Louisiana Power & Light Co. v. City of Thibodaux, 360 U.S. 25 (1959). *See also* Clay v. Sun Insurance Office Ltd., 363 U.S. 207 (1960). Also, although the sole fact that an action is pending in state court will not ordinarily cause a federal court to abstain, there are "exceptional" circumstances in which it should. Colorado River Water Conservation Dist. v. United States, 424 U.S. 800 (1976); Will v. Calvert Fire Insurance Co., 437 U.S. 655 (1978); Arizona v. San Carlos Apache Tribe, 463 U.S. 545 (1983). But, in *Quackenbush v. Allstate Ins. Co.,* 517 U.S. 706 (1996), an exercise in *Burford* abstention, the Court held that federal courts have power to dismiss or remand cases based on abstention principles only where relief being sought is equitable or otherwise discretionary but may not do so in common-law actions for damages.

[3] City of Chicago v. Atchison, T. & S.F. Ry., 357 U.S. 77 (1958); Zwickler v. Koota, 389 U.S. 241, 249–51 (1967). *See* Babbitt v. United Farm Workers Nat'l. Union, 442 U.S. 289, 306 (1979) (quoting Harman v. Forssenius, 380 U.S. 528, 534–35 (1965)).

[4] Harman v. Forssenius, 380 U.S. 528, 534–35 (1965); Babbitt v. United Farm Workers Nat'l., 442 U.S. 289, 305–12 (1979). Abstention is not proper simply to afford a state court the opportunity to hold that a state law violates the federal Constitution. Wisconsin v. Constantineau, 400 U.S. 433 (1971); Zablocki v. Redhail, 434 U.S. 374, 379 n.5 (1978); Douglas v. Seacoast Products, Inc., 431 U.S. 265, 271 n.4 (1977); City of Houston v. Hill, 482 U.S. 451 (1987) ("A federal court may not properly ask a state court if it would care in effect to rewrite a statute"). But if the statute is clear and there is a reasonable possibility that the state court would find it in violation of a distinct or specialized state constitutional provision, abstention may be proper, Harris County Comm'rs Court v. Moore, 420 U.S. 77 (1975); Reetz v. Bozanich, 397 U.S. 82 (1970), although not if the state and federal constitutional provisions are alike. Examining Bd. v. Flores de Otero, 426 U.S. 572, 598 (1976).

[5] American Trial Lawyers Ass'n v. New Jersey Supreme Court, 409 U.S. 467, 469 (1973); Harrison v. NAACP, 360 U.S. 167 (1959). Dismissal may be necessary if the state court will not accept jurisdiction while the case is pending in federal court. Harris County Comm'rs v. Moore, 420 U.S. 77, 88 n.14 (1975).

[6] La. Power & Light Co. v. City of Thibodaux, 360 U.S. 25, 33 (1959) (quoting R.R. Comm'n of Tex. v. Pullman Co., 312 U.S. 496, 500 (1941)).

[7] Harrison v. NAACP, 360 U.S. 167, 177 (1959).

During the 1960s, the Supreme Court disfavored the abstention doctrine, rejecting it in numerous cases, most of which concerned civil rights and civil liberties.[8] The Court cited time-consuming delays[9] and piecemeal resolution of important questions[10] as too-costly consequences of the doctrine. In addition to actions brought under civil rights statutes,[11] the Court, for a while, appeared to shelter cases involving First Amendment expression guarantees from the abstention doctrine, but this is no longer the rule.[12] *Younger v. Harris*[13] and its progeny signaled a trend toward the Court applying the absention doctrine more robustly.

As an alternative to abstention, the Supreme Court has sometimes encouraged or required lower federal courts to use certification procedures where they are available.[14] While this process is not grounded in the federal constitution, certification may allow federal courts to avoid relying on the abstention doctrine. Most states have adopted rules that allow federal courts to "certify," or refer, unsettled questions of state law to state courts.[15] The Court has sometimes required lower federal courts to certify to state courts questions which concern "novel issues of state law peculiarly calling for the exercise of judgment by the state courts," and involve construing a state law that is being challenged as unconstitutional.[16] The Court has also noted that certification may be appropriate where abstention would lead to undue "delay and expense"—although such concerns may not be sufficient to *require* a federal court to employ certification rather than abstention.[17]

ArtIII.S1.6.8 Exhaustion Doctrine and State Law Remedies

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and*

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[8] McNeese v. Cahokia Bd. of Educ., 373 U.S. 668 (1963); Griffin v. School Board, 377 U.S. 218 (1964); Hostetter v. Idlewild Bon Voyage Liquor Corp., 377 U.S. 324 (1964); Baggett v. Bullitt, 377 U.S. 360 (1964); Davis v. Mann, 377 U.S. 678 (1964); Dombrowski v. Pfister, 380 U.S. 479 (1965); Harman v. Forssenius, 380 U.S. 528 (1965); Zwickler v. Koota, 389 U.S. 241 (1967); Wisconsin v. Constanineau, 400 U.S. 433 (1971).

[9] England v. Louisiana Bd. of Medical Examiners, 375 U.S. 411, 426 (1964) (Douglas, J., concurring). *See* C. Wright, Handbook of the Law of Federal Courts 305 (4th ed. 1983).

[10] Baggett v. Bullitt, 377 U.S. 360, 378–379 (1964).

[11] *Compare* Harrison v. NAACP, 360 U.S. 167 (1959), *with* McNeese v. Cahokia Bd. of Educ., 373 U.S. 668 (1963).

[12] *Compare* Baggett v. Bullitt, 377 U.S. 360 (1964), *and* Dombrowski v. Pfister, 380 U.S. 479 (1965), *with* Younger v. Harris, 401 U.S. 37 (1971), and Samuels v. Mackell, 401 U.S. 66 (1971). *See* Babbitt v. United Farm Workers, 442 U.S. 289, 305–312 (1979).

[13] 401 U.S. 37 (1971). There is room to argue whether the *Younger* line of cases represents the abstention doctrine at all, but the Court continues to refer to it in those terms. *E.g.*, Ankenbrandt v. Richards, 504 U.S. 689, 705 (1992); Sprint Commc'ns, Inc. v. Jacobs, 571 U.S. ___, No. 12-815, slip op. (2013).

[14] *E.g.*, Mckesson v. Doe, No. 19-1108, slip op. at 5 (U.S. Nov. 2, 2020); Bellotti v. Baird, 428 U.S. 132, 151 (1976); Lehman Brothers v. Schein, 416 U.S. 386, 390–91 (1974); Clay v. Sun Insurance Office Ltd., 363 U.S. 207, 212 (1960).

[15] *See, e.g.*, Arizonans for Official English v. Arizona, 520 U.S. 43, 79 (1997) (describing certification and concluding that a federal appeals court erred when it "blend[ed]" the abstention inquiry with the certification inquiry).

[16] *Mckesson*, slip op. at 4–5; *see also Arizonans for Official English*, 520 U.S. at 79.

[17] Houston v. Hill, 482 U.S. 451, 470–71 (1987). *Cf., e.g.*, Expressions Hair Design v. Schneiderman, No. 15-1391, slip op. at 6–10 (U.S. Mar. 29, 2017) (Sotomayor, J., concurring) (comparing abstention with certification, and concluding that the lower court abused its discretion when it decided not to certify and instead "chose a convoluted course" by abstaining in part and deciding the question in part).

shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.

In some circumstances, when a person seeking to bring a claim under federal law also has a remedy available under state law, that person will be required to exhaust state law remedies before proceeding in federal court. For instance, as discussed further in the next section, prisoners challenging their detention by state authorities must generally exhaust state law remedies before seeking a writ of habeas corpus in federal court.[1]

As another example, a person seeking to challenge state legislative action must await completion of the state legislative process before suing in federal court.[2] In *Prentis v. Atlantic Coast Line Co.*, the Supreme Court declined to hear a claim that certain railroad rates that a state agency planned to promulgate were confiscatory in violation of the Fourteenth Amendment.[3] Writing for the majority, Justice Oliver Wendell Holmes noted that the Virginia state constitution allowed the railroads to challenge the new rates before the state Supreme Court of Appeals before they went into effect and explained that determination of rates, including review by the state court, amounted to a legislative process rather than a judicial one. Because completion of that legislative process might result in different rates and obviate the constitutional challenge, the Court concluded, the challengers "should make sure that the State in its final legislative action would not respect what they think their rights to be, before resorting to the courts of the United States."[4] Justice Holmes also emphasized that the Court's decision was grounded not in mandatory jurisdictional limits but rather in prudential considerations such as comity and efficiency.[5]

While complainants must generally exhaust available state legislative and administrative remedies before proceeding in federal court, they are not ordinarily required to seek a *judicial* remedy in state court before filing a claim in federal court.[6] Thus, in *Bacon v. Rutland R.R.*, the Supreme Court held that the federal courts could hear a Fourteenth Amendment challenge to an order of the Public Service Commission of Vermont concerning a passenger railway station.[7] Justice Holmes, again writing for the majority, distinguished the Virginia system in *Prentis*, where "the [state] court was given legislative powers," and the Vermont system, which did "not attempt to confer legislative powers upon the court" but instead created a remedy that was "purely judicial."[8] Likewise, in *Lane v. Wilson*, the court held that a Black man denied voter registration in Oklahoma could challenge the denial in federal court without first pursuing a state law challenge that "has all the indicia of a conventional judicial proceeding and does not confer upon the Oklahoma courts any of the discretionary or initiatory functions that are characteristic of administrative agencies."[9]

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[1] *See* ArtIII.S1.6.9 Habeas Review.

[2] *See, e.g.*, Porter v. Investors Syndicate, 286 U.S. 461 (1932).

[3] 211 U.S. 210 (1908).

[4] *Id.* at 230.

[5] *Id.* at 232 ("[O]ur decision does not go upon a denial of power to entertain the bills at the present stage but upon our views as to what is the most proper and orderly course in cases of this sort when practicable."). Comity is a self-imposed rule of judicial restraint whereby independent tribunals of concurrent or coordinate jurisdiction act to moderate the stresses of coexistence and to avoid collisions of authority. The Court has elsewhere explained that it is not a rule of law but "one of practice, convenience, and expediency," which persuades but does not command. Mast, Foos & Co. v. Stover Manufacturing Co., 177 U.S. 458, 488 (1900).

[6] An exception occurs when a state prisoner petitions in federal court for a writ of habeas corpus. *See* ArtIII.S1.6.9 Habeas Review.

[7] 232 U.S. 134 (1914).

[8] *Id.* at 137–38. *See also* City Bank Farmers' Trust Co. v. Schnader, 291 U.S. 24 (1934).

[9] 307 U.S. 268, 274 (1939).

Subject to limited exceptions, exhaustion of state remedies is not required before a person may seek relief under federal civil rights statutes such as 42 U.S.C. § 1983.[10] In *Monroe v. Pape*, the Supreme Court held that plaintiffs need not exhaust state judicial remedies before seeking relief in federal court under Section 1983.[11] In *McNeese v. Board of Education*, the Court extended that holding to state administrative remedies, holding that plaintiffs who sought to challenge school segregation need not first seek relief through a state administrative process.[12] In *Patsy v. Florida Board of Regents*, the Court reaffirmed that "exhaustion of state administrative remedies should not be required as a prerequisite to bringing an action pursuant to § 1983."[13]

ArtIII.S1.6.9 Habeas Review

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Federal courts can hear challenges to state criminal convictions pursuant to petitions for a writ of habeas corpus. While early Supreme Court cases interpreted that authority narrowly, subsequent cases allowed for broader federal review of state court convictions. More recently, however, the Court has adopted a more limited approach to habeas review, and Congress has also enacted legislation limiting federal habeas review of state convictions.

At English common law, the writ of habeas corpus was available to attack pretrial detention and confinement by executive order; it could not be used to question the conviction of a person pursuant to the judgment of a court with jurisdiction over the person. In early cases, the Supreme Court applied the common law understanding of the writ.[1] After the Civil War, the Court adopted a broader view of when a court lacked jurisdiction over a petitioner. Thus, in the 1874 case, *Ex Parte Lange*, a person who had already completed one sentence on a conviction was released from custody on a second sentence on the ground that the court had lost jurisdiction upon completion of the first sentence.[2] In the 1880s, the Court held that the constitutionality of the statute upon which a charge was based could be examined on habeas,

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[10] Courts may require exhaustion of state administrative remedies before filing a Section 1983 suit when there are pending state administrative proceedings in which an important state interest is involved. *See* Ohio Civil Rights Comm'n v. Dayton Christian School, Inc., 477 U.S. 619, 627 n.2 (1986). Under Title VII of the Civil Rights Act of 1964, which prohibits employment discrimination on racial and other specified grounds, the Equal Employment Opportunity Commission may not consider a claim until a state agency having jurisdiction over employment discrimination complaints has had at least sixty days to resolve the matter. 42 U.S.C. § 2000e–5(c); *see* Love v. Pullman Co., 404 U.S. 522 (1972). The Civil Rights of Institutionalized Persons Act contains a specific, limited exhaustion requirement for adult prisoners bringing actions pursuant to § 1983. Patsy v. Florida Board of Regents, 457 U.S. 496, 508 (1982).

[11] 365 U.S. 167, 183 (1961) (reversed on other grounds).

[12] 373 U.S. 668 (1963).

[13] 457 U.S. 496, 516 (1982). *See also, e.g.*, King v. Smith, 392 U.S. 309 (1968); Houghton v. Shafer, 392 U.S. 639 (1968); Damico v. California, 389 U.S. 416 (1967).

[1] *Ex parte* Watkins, 28 U.S. (3 Pet.) 193 (1830) (Marshall, C.J.); *cf. Ex parte* Parks, 93 U.S. 18 (1876). *But see* Fay v. Noia, 372 U.S. 391, 404–415 (1963). The expansive language used when Congress in 1867 extended the habeas power of federal courts to state prisoners "restrained of . . . liberty in violation of the constitution, or of any treaty or law of the United States . . . ," 14 Stat. 385, could have encouraged an expansion of the writ to persons convicted after trial.

[2] *Ex parte* Lange, 85 U.S. (18 Wall.) 163 (1874).

because an unconstitutional statute was said to deprive the trial court of its jurisdiction.[3] Other cases expanded the want-of-jurisdiction rationale.[4]

The Court started developing its modern approach to the writ of habeas corpus in the 1915 case *Frank v. Mangum*,[5] in which the Court reviewed on habeas a murder conviction in a trial in which there was substantial evidence of mob domination of the judicial process. This issue had been considered and rejected by the state appeals court. The Supreme Court indicated that, though it might initially have had jurisdiction, the trial court could have lost it if mob domination rendered the proceedings lacking in due process. The Court further held that, in order to determine if there had been a denial of due process, a habeas court should examine the totality of the process, including the appellate proceedings. Because the state appellate court had reviewed fully and rejected Frank's claim of mob domination, the Court held he had been afforded an adequate corrective process for any denial of rights, and his custody did not violate the Constitution.[6] Eight years later, in *Moore v. Dempsey*,[7] a case involving another conviction in a trial in which the court was alleged to have been influenced by a mob and in which the state appellate court had heard and rejected Moore's contentions, the Court directed that the federal district judge himself determine the merits of the petitioner's allegations.

In later cases, the Court abandoned its emphasis upon want of jurisdiction and held that the writ was available to consider constitutional claims as well as questions of jurisdiction.[8] The landmark case was *Brown v. Allen*,[9] in which the Court laid down several principles of statutory construction of the habeas statute. First, all federal constitutional questions raised by state prisoners are cognizable in federal habeas. Second, a federal court is not bound by state court judgments on federal questions, even though the state courts may have fully and fairly considered the issues. Third, a federal habeas court may inquire into issues of fact as well as of law, although the federal court may defer to the state court if the prisoner received an adequate hearing. Fourth, new evidentiary hearings must be held when there are unusual circumstances, when there is a "vital flaw" in the state proceedings, or when the state court record is incomplete or otherwise inadequate.

The Supreme Court authorized almost plenary federal habeas review of state court convictions in its famous "1963 trilogy."[10] First, in *Townsend v. Sain*, the Court dealt with the

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[3] *Ex parte* Siebold, 100 U.S. 371 (1880); *Ex parte* Royall, 117 U.S. 241 (1886); Crowley v. Christensen, 137 U.S. 86 (1890); Yick Wo v. Hopkins, 118 U.S. 356 (1886).

[4] *Ex parte* Wilson, 114 U.S. 417 (1885); *In re* Nielsen, 131 U.S. 176 (1889); *In re* Snow, 120 U.S. 274 (1887); *but see Ex parte* Parks, 93 U.S. 18 (1876); *Ex parte* Bigelow, 113 U.S. 328 (1885). It is possible that the Court expanded the office of the writ because its reviewing power over federal convictions was closely limited. Frankfurter & Landis, *Power of Congress Over Procedure in Criminal Contempts in 'Inferior' Federal Courts—A Study in Separation of Powers*, 37 Harv. L. Rev. 1010, 1016–1023 (1924). Once such review was granted, the Court began to restrict the use of the writ. *E.g.*, Glasgow v. Moyer, 225 U.S. 420 (1912); *In re* Lincoln, 202 U.S. 178 (1906); *In re* Morgan, 203 U.S. 96 (1906).

[5] 237 U.S. 309 (1915).

[6] *Id.*

[7] 261 U.S. 86 (1923).

[8] Walker v. Johnston, 312 U.S. 275 (1941). *See also* Johnson v. Zerbst, 304 U.S. 458 (1938).

[9] 344 U.S. 443 (1953). *Brown* coincided with the extension of most of the Bill of Rights to the states by way of incorporation and expansive interpretation of federal constitutional rights; previously, there was not a substantial corpus of federal rights to protect through habeas. *See* Wright v. West, 505 U.S. 277, 297–99 (1992) (O'Connor, J., concurring). In *Fay v. Noia,* 372 U.S. 391 (1963), Justice William Brennan, for the Court, and Justice John Harlan, in dissent, engaged in a lengthy, informed historical debate about the legitimacy of *Brown* and its premises. *Compare id.* at 401–24, *with id.* at 450–61. *See* the material gathered and cited in L. Hand, The Bill of Rights (1958); H. Wechsler, Principles, Politics, and Fundamental Law: Selected Essays 1220–1248 (1961).

[10] Sanders v. United States, 373 U.S. 1 (1963); Fay v. Noia, 372 U.S. 391 (1963); Townsend v. Sain, 372 U.S. 293 (1963). These cases dealt, respectively, with the treatment to be accorded a habeas petition in the three principal categories in which they come to the federal court: when a state court has rejected petitioner's claims on the merits, when a state court has refused to hear petitioner's claims on the merits because she has failed properly or timely to

established principle that a federal habeas court is empowered, where a prisoner alleges facts which if proved would entitle him to relief, to relitigate facts, to receive evidence and try the facts anew, and sought to lay down broad guidelines as to when district courts must hold a hearing and find facts.[11] The Court stated: "Where the facts are in dispute, the federal court in habeas corpus must hold an evidentiary hearing if the habeas applicant did not receive a full and fair evidentiary hearing in a state court, either at the time of the trial or in a collateral proceeding."[12] To "particularize" this general test, the Court further held that an evidentiary hearing must take place when (1) the state hearing did not resolve the merits of the factual dispute; (2) the record as a whole does not fairly support the state factual determination; (3) the state court's fact finding procedure did not afford a full and fair hearing; (4) there is a substantial allegation of newly discovered evidence; (5) the material facts were not adequately developed at the state hearing; or (6) the state trier of fact did not appear to afford the habeas applicant a full and fair fact hearing.[13]

Second, *Sanders v. United States*[14] dealt with two interrelated questions: how to address successive petitions for the writ, when the second or subsequent application presented grounds previously asserted or not previously raised. Emphasizing that "[c]onventional notions of finality of litigation have no place where life or liberty is at stake and infringement of constitutional rights is alleged,"[15] the Court established generous standards for considering successive claims. As to previously asserted grounds, the Court held that courts may give controlling weight to a prior denial of relief if (1) the court had previously found against the applicant on the applicant's ground for relief, (2) the prior determination was on the merits, and (3) the ends of justice would not be served by revisiting the determination,[16] so that the habeas court might but was not obligated to deny relief without considering the claim on the merits.[17] With respect to grounds not previously asserted, a federal court considering a successive petition could refuse to hear the new claim if it decided the petitioner had

present them, or when the petition is a second or later petition raising either old or new, or mixed, claims. Of course, as will be demonstrated *infra*, these cases have now been largely drained of their force.

[11] Townsend v. Sain, 372 U.S. 293, 310–12 (1963). If the district judge concluded that the habeas applicant was afforded a full and fair hearing by the state court resulting in reliable findings, the Court said, he may, and ordinarily should, defer to the state factfinding. *Id.* at 318. Under the 1966 statutory revision, a habeas court must generally presume correct a state court's written findings of fact from a hearing to which the petitioner was a party. A state finding cannot be set aside merely on a preponderance of the evidence and the federal court granting the writ must include in its opinion the reason it found the state findings not fairly supported by the record or the existence of one or more listed factors justifying disregard of the factfinding. Pub. L. No. 89-711, 80 Stat. 1105, 28 U.S.C. § 2254(d). *See* Sumner v. Mata, 449 U.S. 539 (1981); Sumner v. Mata, 455 U.S. 591 (1982); Marshall v. Lonberger, 459 U.S. 422 (1983); Patton v. Yount, 467 U.S. 1025 (1984); Parker v. Dugger, 498 U.S. 308 (1991); Burden v. Zant, 498 U.S. 433 (1991). The presumption of correctness does not apply to questions of law or to mixed questions of law and fact. Miller v. Fenton, 474 U.S. 104, 110–16 (1985). However, in *Wright v. West,* 505 U.S. 277 (1992), the Justices argued inconclusively whether deferential review of questions of law or especially of law and fact should be adopted.

[12] Townsend v. Sain, 372 U.S. 293, 312 (1963). The Court was unanimous on the statement, but it divided 5-4 on application.

[13] 372 U.S. at 313–18. Keeney v. Tamayo-Reyes, 504 U.S. 1, 5 (1992). *Keeney* formally overruled part of *Townsend*.

[14] 373 U.S. 1 (1963). *Sanders* was a § 2255 case, a federal prisoner petitioning for postconviction relief. The Court applied the same liberal rules with respect to federal prisoners as it did for states. *See* Kaufman v. United States, 394 U.S. 217 (1969). *But see* Davis v. United States, 411 U.S. 233 (1973); United States v. Frady, 456 U.S. 152 (1982).

[15] 373 U.S. at 8. The statement accorded with the established view that principles of res judicata were not applicable in habeas. *E.g.*, Price v. Johnston, 334 U.S. 266 (1948); Wong Doo v. United States, 265 U.S. 239 (1924); Salinger v. Loisel, 265 U.S. 224 (1924). In 1948, Congress had appeared to adopt some limited version of res judicata for federal prisoners but not for state prisoners, Act of June 25, 1948, 62 Stat. 965, 967, 28 U.S.C. §§ 2244, 2255, but the Court in *Sanders* held the same standards applicable and denied the statute changed existing case law. 373 U.S. at 11–14. *But see id.* at 27–28 (Harlan, J., dissenting).

[16] 373 U.S. at 15. In codifying the *Sanders* standards in 1966, Pub. L. No. 89-711, 80 Stat. 1104, 28 U.S.C. § 2244(b), Congress omitted the "ends of justice" language. Although it was long thought that the omission probably had no substantive effect, this may not be the case. Kuhlmann v. Wilson, 477 U.S. 436 (1986).

[17] *Id.*

deliberately not raised it in the prior proceeding; if not, the Court noted, "[n]o matter how many prior applications for federal collateral relief a prisoner has made," the court must consider the merits of the new claim.[18]

Third, in *Fay v. Noia*,[19] the Court considered the issue of state defaults—that is, the effect on habeas when a defendant in a state criminal trial has failed to raise, in accordance with state procedure, a claim that he subsequently wants to raise on habeas. If, for example, a defendant fails to object to the admission of certain evidence on federal constitutional grounds in accordance with state procedure and within state time constraints, the state courts may therefore simply refuse to address the merits of the claim, and the state's "independent and adequate state ground" bars direct federal review of the claim.[20] Whether a similar result was required in habeas proceedings divided the Court in *Brown v. Allen*,[21] in which the majority held that a prisoner, whose appeal a state court had refused to hear because his papers had been filed a day late, could not be heard on habeas because of his state procedural default. The Court reached a different result in *Fay v. Noia*, holding that the adequate and independent state ground doctrine limited the Court's appellate review, but not its habeas review. A federal court has power to consider any claim that has been procedurally defaulted in state courts.[22] Still, the Court recognized that the states had legitimate interests that were served by their procedural rules, and that it was important that state courts have the opportunity to afford a claimant relief to which he might be entitled. Thus, a federal court had discretion to deny a habeas petitioner relief if it found that he had deliberately bypassed state procedure and intentionally waived his right to pursue his state remedy.[23]

Liberalization of the writ thus made it possible for convicted persons who had fully litigated their claims at state trials and on appeal, who had lacked the opportunity to have their claims reviewed due to procedural default, or who had been heard at least once on federal habeas, to have the chance to present their grounds for relief to a federal habeas judge. In addition to opportunities to relitigate the facts and the law relating to their convictions, prisoners could also take advantage of new constitutional decisions that were retroactive. The filings in federal courts increased year by year, but the numbers of prisoners who in fact obtained either release or retrial remained quite small. However, expansion of the writ generated opposition from state judges and state law enforcement officials and stimulated many efforts in Congress to enact restrictive habeas amendments.[24] The efforts were unsuccessful and, following changes in the composition of the Supreme Court, the Court adopted a more limited view of when habeas relief should be available.

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[18] 373 U.S. at 17–19.

[19] 372 U.S. 391 (1963). *Fay* was largely obliterated over the years, beginning with *Davis v. United States,* 411 U.S. 233 (1973), a federal-prisoner post-conviction relief case, and *Wainwright v. Sykes,* 433 U.S. 72 (1977), but it was not formally overruled until *Coleman v. Thompson,* 501 U.S. 722, 744–51 (1991).

[20] *E.g.*, Murdock v. City of Memphis, 87 U.S. (20 Wall.) 590 (1875); Herb v. Pitcairn, 324 U.S. 117 (1945). In the habeas context, the procedural-bar rules are ultimately a function of the requirement that petitioners first exhaust state avenues of relief before coming to federal court.

[21] 344 U.S. 443 (1953).

[22] Fay v. Noia, 372 U.S. 391, 424–34 (1963).

[23] 372 U.S. at 438–40.

[24] In 1961, state prisoner habeas filings totaled 1,020; in 1965, 4,845; in 1970, a high (to date) of 9,063; in 1975, 7,843; in 1980, 8,534; in 1985, 9,045; in 1986. On relief afforded, no reliable figures are available, but estimates indicate that at most 4% of the filings result in either release or retrial. C. Wright, A. Miller, & E. Cooper, Federal Practice and Procedure (1988 & supps.), § 4261, at 284–91.

In the 1977 case *Wainwright v. Sykes*, then-Justice William Rehnquist emphasized that the Court has significant discretion whether to award habeas relief.[25] After reviewing the case law on the 1867 statute, Justice Rehnquist remarked that the history "illustrates this Court's historic willingness to overturn or modify its earlier views of the scope of the writ, even where the statutory language authorizing judicial action has remained unchanged."[26] From early on, the Court has emphasized the equitable nature of the habeas remedy and the Judiciary's responsibility to guide the exercise of that remedy in accordance with equitable principles; thus, time and again, the Court has underscored that the federal courts have plenary *power* under the statute to implement it to the fullest while the Court's decisions may deny them discretion to exercise the power.[27]

Supreme Court cases since the 1970s have made several changes to the law related to habeas corpus relief. These cases generally reflect a departure from the 1963 trilogy and a narrowing view of when federal courts should undertake habeas review of state law criminal convictions.

First, the Court in search and seizure cases has returned to the standard of *Frank v. Mangum*, holding that where the state courts afford a criminal defendant the opportunity for a full and adequate hearing on his Fourth Amendment claim, his only avenue of relief in the federal courts is to petition the Supreme Court for review and that he cannot raise those claims again in a habeas petition.[28] Grounded as it is in the Court's dissatisfaction with the exclusionary rule, the case has not been extended to other constitutional grounds,[29] but the rationale of the opinion suggests the likelihood of reaching other exclusion questions.[30]

Second, the Court has formulated a "new rule" exception to habeas cognizance. That is, subject to two exceptions,[31] a case decided after a petitioner's conviction and sentence became final may not be the predicate for federal habeas relief if the case announces or applies a "new

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[25] Wainwright v. Sykes, 433 U.S. 72, 81 (1977). Differing from the Court in the 1963 trilogy, the *Wainwright* Court favored decisions in habeas cases that promote finality, comity, judicial economy, and channeling the resolution of claims into the most appropriate forum. Keeney v. Tamayo-Reyes, 504 U.S. 1, 8–10 (1992). Overall, federalism concerns are critical. *See* Coleman v. Thompson, 501 U.S. 722, 726 (1991) ("This is a case about federalism." First sentence of opinion). Subsequent cases have drawn on Justice Powell's concurrence in *Schneckloth v. Bustamonte,* 412 U.S. 218, 250 (1973). He suggested that habeas courts should entertain only those claims that go to the integrity of the fact-finding process, thus raising questions of the value of a guilty verdict, or that only those prisoners able to make a credible showing of "factual innocence" could be heard on habeas. *Id.* at 256–58, 274–75. As will be evident *infra*, some form of innocence standard appears in much of the Court's habeas jurisprudence.

[26] *Wainwright*, 433 U.S. at 81.

[27] 433 U.S. at 83; Stone v. Powell, 428 U.S. 465, 495 n.37 (1976); Francis v. Henderson, 425 U.S. 536, 538 (1976); Fay v. Noia, 372 U.S. 391, 438 (1963). The dichotomy between power and discretion goes all the way back to the case imposing the rule of exhaustion of state remedies. *Ex parte* Royall, 117 U.S. 241, 251 (1886).

[28] Stone v. Powell, 428 U.S. 465 (1976). The decision is based as much on the Court's dissatisfaction with the exclusionary rule as with its desire to curb habeas. Holding that the purpose of the exclusionary rule is to deter unconstitutional searches and seizures rather than to redress individual injuries, the Court reasoned that no deterrent purpose was advanced by applying the rule on habeas, except to encourage state courts to give claimants a full and fair hearing. *Id.* at 493–95.

[29] *Stone* does not apply to a Sixth Amendment claim of ineffective assistance of counsel in litigating a search and seizure claim. Kimmelman v. Morrison, 477 U.S. 365, 382–383 (1986). *See also* Rose v. Mitchell, 443 U.S. 545 (1979) (racial discrimination in selection of grand jury foreman); Jackson v. Virginia, 443 U.S. 307 (1979) (insufficient evidence to satisfy reasonable doubt standard).

[30] *See, e.g.*, Duckworth v. Eagan, 492 U.S. 195, 205 (1989) (O'Connor, J., concurring); Brewer v. Williams, 430 U.S. 387, 413–14 (1977) (Powell, J., concurring), and *id.* at 415 (Burger, C.J, dissenting); Wainwright v. Sykes, 433 U.S. 72, 87 n.11 (1977) (reserving *Miranda*).

[31] The first exception permits the retroactive application on habeas of a new rule if the rule places a class of private conduct beyond the power of the state to proscribe or addresses a substantive categorical guarantee accorded by the Constitution. The rule must, to say it differently, either decriminalize a class of conduct or prohibit the imposition of a particular punishment on a particular class of persons. The second exception would permit the

rule."[32] A decision announces a new rule "if the result was not *dictated* by precedent existing at the time the defendant's conviction became final."[33] Explaining this the court noted that if a rule "was susceptible to debate among reasonable minds," it could not have been dictated by precedent, and therefore it must be classified as a "new rule."[34]

Third, the Court has largely maintained the standards of *Townsend v. Sain*, as embodied in somewhat modified form in statute, with respect to when federal judges must conduct an evidentiary hearing. However, the Court has overturned one *Townsend* factor, not expressly set out in the statute, in order to bring the case law into line with other decisions. *Townsend* had held that a hearing was required if the material facts were not adequately developed at the state-court hearing. If the defendant had failed to develop the material facts in the state court, however, the Court held that, unless he had "deliberately bypass[ed]" that procedural outlet, he was still entitled to the hearing.[35] In *Keeney v. Tamayo-Reyes*, the Court overruled that point and substituted a much stricter "cause-and-prejudice" standard.[36]

Fourth, the Court has significantly stiffened the standards governing when a federal habeas court should entertain a second or successive petition filed by a state prisoner—a question at issue in *Sanders v. United States*.[37] A successive petition may be dismissed if the same ground was determined adversely to petitioner previously, the prior determination was on the merits, and "the ends of justice" would not be served by reconsideration. It is with the latter element that the Court has become more restrictive. A plurality in *Kuhlmann v. Wilson*[38] argued that the "ends of justice" standard would be met only if a petitioner supplemented her constitutional claim with a colorable showing of factual innocence. While the Court has not expressly adopted this standard, a later capital case utilized it, holding that a petitioner sentenced to death could escape the bar on successive petitions by demonstrating "actual innocence" of the death penalty by showing by clear and convincing evidence that no reasonable juror would have found the prisoner eligible for the death penalty under applicable state law.[39]

Even if the subsequent petition alleges new and different grounds, a habeas court may dismiss the petition if the prisoner's failure to assert those grounds in the prior, or first, petition constitutes "an abuse of the writ."[40] Following the 1963 trilogy and especially *Sanders*, the federal courts had generally followed a rule excusing the failure to raise claims in earlier

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application of "watershed rules of criminal procedure" implicating the fundamental fairness and accuracy of the criminal proceeding. Saffle v. Parks, 494 U.S. 484, 494–95 (1990) (citing cases); Sawyer v. Smith, 497 U.S. 227, 241–45 (1990).

[32] Teague v. Lane, 489 U.S. 288 (1989) (plurality opinion); Penry v. Lynaugh, 492 U.S. 302, 313–19 (1989).

[33] Butler v. McKellar, 494 U.S. 407, 412 (1990) (quoting Penry v. Lynaugh, 492 U.S. 302, 314 (1989), which was quoting Teague v. Lane, 489 U.S. 288, 314 (1989). This sentence was quoted again in *Whorton v. Bockting,* 549 U.S. 406, 416 (2007)).

[34] 494 U.S. at 415. *See also* Stringer v. Black, 503 U.S. 222, 228–29 (1992). This latter case found that two decisions relied on by petitioner merely drew on existing precedent and so did not establish a new rule. *See also* O'Dell v. Netherland, 521 U.S. 151 (1997); Lambrix v. Singletary, 520 U.S. 518 (1997); Gray v. Netherland, 518 U.S. 152 (1996). *But compare* Bousley v. Brooks, 523 U.S. 614 (1998).

[35] Townsend v. Sain, 372 U.S. 293, 313, 317 (1963), imported the "deliberate bypass" standard from Fay v. Noia, 372 U.S. 391, 438 (1963).

[36] Keeney v. Tamayo-Reyes, 504 U.S. 1 (1992). This standard is imported from the cases abandoning *Fay v. Noia* and is discussed *infra*.

[37] 373 U.S. 1, 15–18 (1963). The standards are embodied in 28 U.S.C. § 2244(b).

[38] 477 U.S. 436 (1986).

[39] Sawyer v. Whitley, 505 U.S. 333 (1992). Language in the opinion suggests that the standard is not limited to capital cases. *Id.* at 339.

[40] The standard is in 28 U.S.C. § 2244(b), along with the standard that, if a petitioner "deliberately withheld" a claim, the petition can be dismissed. *See also* 28 U.S.C. § 2254 Rule 9(b) (judge may dismiss successive petition raising new claims if failure to assert them previously was an abuse of the writ).

petitions unless the failure was a result of "inexcusable neglect" or of deliberate relinquishment. In *McClesky v. Zant*,[41] the Court construed the "abuse of the writ" language to require a showing of both "cause and prejudice" before a petitioner may allege in a second or later petition a ground or grounds not alleged in the first. In other words, to avoid subsequent dismissal, a petitioner must allege in his first application all the grounds he may have, unless he can show cause, some external impediment, for his failure and some actual prejudice from the error alleged. If he cannot show cause and prejudice, the petitioner may be heard only if she shows that a "fundamental miscarriage of justice" will occur, which means she must make a "colorable showing of factual innocence."[42]

Fifth, the Court abandoned the rules of *Fay v. Noia*, although it was not until 1991 that it expressly overruled the case.[43] *Fay* raised the question of when a petitioner may present a claim in federal habeas proceedings that was not properly raised during state proceedings. The answer in *Fay* was that the federal court always had power to review the claim but that it had discretion to deny relief to a habeas claimant if it found that the prisoner had intentionally waived his right to pursue his state remedy through a "deliberate bypass" of state procedure.

That is no longer the law. Instead the Court has now held,

> In all cases in which a state prisoner has defaulted his federal claims in state court pursuant to an independent and adequate state procedural rule, federal habeas review of the claims is barred unless the prisoner can demonstrate cause for the default and actual prejudice as a result of the alleged violation of federal law, or demonstrate that failure to consider the claims will result in a fundamental miscarriage of justice. *Fay* was based on a conception of federal/state relations that undervalued the importance of state procedural rules.[44]

The "miscarriage-of-justice" element is probably limited to cases in which actual innocence or actual impairment of a guilty verdict can be shown.[45] The concept of "cause" excusing failure to observe a state rule is extremely narrow; "the existence of cause for procedural default must ordinarily turn on whether the prisoner can show that some objective factor external to the defense impeded counsel's efforts to comply with the State's procedural rule."[46] As for the "prejudice" factor, it is an undeveloped concept, but the Court's only case establishes a high barrier.[47]

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[41] 499 U.S. 467 (1991).

[42] 499 U.S. at 489–97. The "actual innocence" element runs through the cases under all the headings.

[43] Coleman v. Thompson, 501 U.S. 722, 744–51 (1991).

[44] Coleman v. Thompson, 501 U.S. 722, 750 (1991). The standard has been developed in a long line of cases. Davis v. United States, 411 U.S. 233 (1973) (under federal rules); Francis v. Henderson, 425 U.S. 536 (1976); Engle v. Isaac, 456 U.S. 107 (1982); Murray v. Carrier, 477 U.S. 478 (1986); Harris v. Reed, 489 U.S. 255 (1989). *Coleman* arose because the defendant's attorney had filed his appeal in state court three days late. *Wainwright v. Sykes* involved the failure of defendant to object to the admission of inculpatory statements at the time of trial. *Engle v. Isaac* involved a failure to object at trial to jury instructions.

[45] *E.g.*, Smith v. Murray, 477 U.S. 527, 538–39 (1986); Murray v. Carrier, 477 U.S. 478, 496 (1986). In *Bousley v. Brooks,* 523 U.S. 614 (1998), a federal post-conviction relief case, petitioner had pled guilty to a federal firearms offense. Subsequently, the Supreme Court interpreted the elements of the offense more narrowly than had the trial court in Bousley's case. The Court held that Bousley by his plea had defaulted, but that he might be able to demonstrate "actual innocence" so as to excuse the default if he could show on remand that it was more likely than not that no reasonable juror would have convicted him of the offense, properly defined.

[46] Murray v. Carrier, 477 U.S. at 488. This case held that ineffective assistance of counsel is not "cause" unless it rises to the level of a Sixth Amendment violation. *See also* Coleman v. Thompson, 501 U.S. 722, 752–57 (1991) (because petitioner had no right to counsel in state postconviction proceeding where error occurred, he could not claim constitutionally ineffective assistance of counsel). The actual novelty of a constitutional claim at the time of the state

The Court continues, with some modest exceptions, to construe habeas jurisdiction restrictively; Congress has also enacted legislation restricting the availability of habeas relief. In *Herrera v. Collins*,[48] the Court appeared to take the position that, although a showing of actual innocence is required to permit a claimant to bring a successive or abusive petition, a claim of innocence alone is not sufficient to enable a claimant to obtain review of his conviction on habeas. Petitioners are entitled in federal habeas courts to show that they are imprisoned in violation of the Constitution, not to seek to correct errors of fact. But a claim of innocence does not bear on the constitutionality of a person's conviction or detention, and the execution of a person claiming actual innocence would not, by this reasoning, violate the Constitution.[49] In a subsequent part of the opinion, however, the Court assumed for the sake of argument that "a truly persuasive demonstration of 'actual innocence' made after trial would render the execution of a defendant unconstitutional," and it imposed a high standard for making this showing.[50]

In *Schlup v. Delo*,[51] the Court adopted the plurality opinion of *Kuhlmann v. Wilson* and held that, absent a sufficient showing of "cause and prejudice," a claimant filing a successive or abusive petition must, as an initial matter, make a showing of "actual innocence" so as to fall within the narrow class of cases implicating a fundamental miscarriage of justice. The Court divided, however, with respect to the showing a claimant must make. The dissenters argued for one standard, which would require that "to show 'actual innocence' one must show by clear and convincing evidence that but for a constitutional error, no reasonable juror would have found the petitioner eligible for the death penalty."[52] The Court adopted a second standard, under which the petitioner must demonstrate that "a constitutional violation has probably resulted in the conviction of one who is actually innocent." To meet this burden, a claimant "must show that it is more likely than not that no reasonable juror would have convicted him in the light of the new evidence."[53]

In the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA),[54] Congress imposed tight new restrictions on successive or abusive petitions, including making the circuit courts "gate keepers" in permitting or denying the filing of such petitions, with bars to appellate review of these decisions. The Supreme Court rejected a constitutional challenge to

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court proceeding is "cause" excusing the petitioner's failure to raise it then, *Reed v. Ross,* 468 U.S. 1 (1984), although the failure of counsel to anticipate a line of constitutional argument then foreshadowed in Supreme Court precedent is insufficient "cause." Engle v. Isaac, 456 U.S. 107 (1982).

[47] United States v. Frady, 456 U.S. 152, 169 (1982) (under federal rules) (with respect to erroneous jury instruction, inquiring whether the error "so infected the entire trial that the resulting conviction violates due process").

[48] 506 U.S. 390 (1993).

[49] 506 U.S. at 398–417.

[50] 506 U.S. at 417–419. Justices Antonin Scalia and Clarence Thomas would have unequivocally held that "[t]here is no basis in text, tradition, or even in contemporary practice . . . for finding in the Constitution a right to demand judicial consideration of newly discovered evidence of innocence brought forward after conviction." *Id.* at 427–28 (concurring). However, it is not at all clear that all the Justices joining the Court believe innocence to be nondispositive on habeas. *Id.* at 419 (O'Connor and Kennedy, JJ., concurring), 429 (White, J., concurring). In *House v. Bell,* 547 U.S. 518, 554–55 (2006), the Court declined to resolve the issue that in *Herrera* it had assumed without deciding: that "a truly persuasive demonstration of 'actual innocence' made after trial would render the execution of a defendant unconstitutional."

[51] 513 U.S. 298 (1995).

[52] 513 U.S. at 334 (Rehnquist, C.J., dissenting, joined by Kennedy and Thomas, JJ.), 342 (Scalia, J., dissenting, joined by Thomas, J.). This standard was drawn from *Sawyer v. Whitley,* 505 U.S. 333 (1992).

[53] 513 U.S. at 327. This standard was drawn from *Murray v. Carrier,* 477 U.S. 478 (1986).

[54] Pub. L. No. 104-132, Title I, 110 Stat. 1217–21, amending 28 U.S.C. §§ 2244, 2253, 2254, and Rule 22 of the Federal Rules of Appellate Procedure.

portions of AEDPA in *Felker v. Turpin*.[55] One important restriction in AEDPA bars a federal habeas court from granting a writ to any person in custody under a judgment of a state court "with respect to any claim that was adjudicated on the merits in State court proceedings unless the adjudication of the claim—(1) resulted in a decision that was contrary to, or involved an unreasonable application of, *clearly established Federal law, as determined by the Supreme Court of the United States*."[56] The Court has made the significance of this restriction plain: Instead of assessing whether federal law was correctly applied de novo, as would be the course under direct review of a federal district court decision, the proper approach for federal habeas relief under AEDPA is the more deferential one of determining whether the Court has established clear precedent on the issue contested and, if so, whether the state's application of the precedent was reasonable, i.e., whether a fairminded jurist could find that the state acted in accord with the Court's established precedent.[57]

ArtIII.S1.7 Supreme Court Rulings

ArtIII.S1.7.1 Overview of Supreme Court Rulings

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Along with the Constitution and federal statutes, rulings of the Supreme Court are a key source of the law of the United States. In the view of many judges and commentators, Supreme Court decisions do not make law, which is the province of the Legislative Branch, but instead interpret and apply the Constitution and statutes.[1] Chief Justice John Marshall famously stated in the 1803 case *Marbury v. Madison*, "It is emphatically the province and duty of the judicial department to say what the law is."[2] Over two centuries later, when nominated to be Chief Justice, then-Judge John Roberts likened the role of a Justice to the role of a baseball umpire who does not make the rules or play the game but instead simply applies the rules "to call balls and strikes."[3]

Nonetheless, as a practical matter, Supreme Court decisions may change the legal landscape by resolving open legal questions, striking down unconstitutional laws or government actions, or overruling prior judicial decisions. Court-created legal doctrines

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[55] 518 U.S. 651 (1996).

[56] 28 U.S.C. § 2254(d) (emphasis added). The provision was applied in *Bell v. Cone,* 535 U.S. 685 (2002). *See also* Renico v. Lett, 559 U.S. ___, No. 09-338, slip op. 9–12 (2010). For analysis of its constitutionality, see the various opinions in *Lindh v. Murphy,* 96 F.3d 856 (7th Cir. 1996) (en banc), *rev'd on other grounds*, 521 U.S. 320 (1997); Drinkard v. Johnson, 97 F.3d 751 (5th Cir. 1996), *cert. denied*, 520 U.S. 1107 (1997); Hall v. Washington, 106 F.3d 742 (7th Cir. 1997); O'Brien v. Dubois, 145 F.3d 16 (1st Cir. 1998); Green v. French, 143 F.3d 865 (4th Cir. 1998), *cert. denied*, 525 U.S. 1090 (1999).

[57] Harrington v. Richter, 562 U.S. 86, 102 (2011) (overturning Ninth Circuit's grant of relief, which was based on ineffective assistance of counsel); *accord* Premo v. Moore, 562 U.S. ___, No. 09-658, slip op. (2011) (same) and Cullen v. Pinholster, No. 09-1088, slip op. (2011) (same).

[1] *See, e.g.*, Linkletter v. Walker, 381 U.S. 618, 622–23 (1965) (quoting 1 W. Blackstone, Commentaries 69) (stating that, at common law, "the duty of the court was not to 'pronounce a new law, but to maintain and expound the old one'"); *but see, e.g.*, Geoffrey C. Hazard Jr., *The Supreme Court as a Legislature*, 64 Cornell L. Rev. 1 (1978).

[2] 5 U.S. 137, 177 (1803).

[3] Confirmation Hearing on the Nomination of John G. Roberts, Jr. to be Chief Justice of the United States, Hearings before the Committee on the Judiciary, United States Senate, 109th Cong. 2005.

determine the scope and effect of those changes. For instance, the doctrine of stare decisis counsels against the Court overruling its past decisions absent special justification to depart from precedent.[4] In addition, a number of Supreme Court cases have addressed the extent to which Court decisions announcing new rules of law apply retroactively.[5]

ArtIII.S1.7.2 Stare Decisis

ArtIII.S1.7.2.1 Historical Background on Stare Decisis Doctrine

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Stare decisis, Latin for "to stand by things decided,"[1] is a judicial doctrine under which a court follows the principles, rules, or standards of its prior decisions (or decisions of higher tribunals) when deciding a case with arguably similar facts.[2] The doctrine of stare decisis has "horizontal" and "vertical" aspects. A court adhering to the principle of *horizontal* stare decisis will follow its own prior decisions absent exceptional circumstances (e.g., the Supreme Court follows a precedent unless it has become too difficult for lower courts to apply).[3] By contrast, *vertical* stare decisis binds lower courts to follow strictly the decisions of higher courts within the same jurisdiction (e.g., a federal court of appeals must follow the decisions of the U.S. Supreme Court, the federal court of last resort).[4]

The doctrine of stare decisis in American jurisprudence has its roots in eighteenth-century English common law. In 1765, the English jurist William Blackstone described the doctrine of English common law precedent as establishing a strong presumption that judges, to promote stability in the law, would "abide by former precedents, where the same points come again in litigation" unless such precedents were "flatly absurd or unjust."[5] At least some of the Constitution's Framers favored judges' adherence to judicial precedent because it limited judges' discretion to interpret ambiguously worded provisions of law. For example, writing in the *Federalist No. 78* during the debates over adoption of the Constitution in an essay

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[4] *See* ArtIII.S1.7.2.2 Stare Decisis Doctrine Generally.

[5] *See* ArtIII.S1.7.3.1 Overview of Retroactivity of Supreme Court Decisions.

[1] The full Latin phrase is "*stare decisis et non quieta movere*—stand by the thing decided and do not disturb the calm." *See* James C. Rehnquist, Note, *The Power That Shall Be Vested in a Precedent: Stare Decisis, The Constitution, and the Supreme Court*, 66 B.U. L. Rev. 345, 347 (1986).

[2] *Stare Decisis*, Black's Law Dictionary 1626 (10th ed. 2014) (defining "stare decisis" as "the doctrine of precedent, under which a court must follow earlier judicial decisions when the same points arise again in litigation"); *id.* at 1366 (defining "precedent" as "a decided case that furnishes a basis for determining later cases involving similar facts or issues"). This essay does not examine the Supreme Court's reliance on the precedents of state court or foreign tribunals. It also does not examine how the Court determines whether a particular sentence in an opinion is a binding holding necessary to the decision for purposes of stare decisis or, rather, non-binding obiter dictum. *See generally Obiter dictum*, Black's Law Dictionary 1177 (9th ed. 2009) (defining "obiter dictum" as a "judicial comment made while delivering a judicial opinion, but one that is unnecessary to the decision in the case and therefore not precedential (although it may be considered persuasive)").

[3] *Horizontal stare decisis*, Black's Law Dictionary 1537 (10th ed. 2014) (defining "horizontal stare decisis" as "the doctrine that a court . . . must adhere to its own prior decisions, unless it finds compelling reasons to overrule itself").

[4] *See id.* (defining "vertical stare decisis" as "the doctrine that a court must strictly follow the decisions handed down by higher courts within the same jurisdiction").

[5] 1 William Blackstone Commentaries on the Laws of England 69–70 (describing precedent as "a permanent rule, which it is not in the breast of any subsequent judge to alter or vary from, according to his private sentiments").

addressing concerns about judicial power, Alexander Hamilton argued that courts should apply precedent to prevent judges from having unbounded discretion to interpret ambiguous legal texts.[6]

During Chief Justice John Marshall's tenure in the early 1800s, the newly created Supreme Court combined a strong preference for adhering to precedent with a "limited notion of error correction" when precedents had been eroded by subsequent decisions[7] or were "premised on an incomplete factual record."[8] The early Court was reluctant to overrule prior decisions when doing so would upset commercial reliance interests (e.g., precedents concerning matters of property or contract law).[9]

ArtIII.S1.7.2.2 Stare Decisis Doctrine Generally

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

In the modern era, the Supreme Court has applied the doctrine of stare decisis by following the rules of its prior decisions unless there is a "special justification"—or, at least, "strong grounds"—to overrule precedent.[1] This justification must amount to more than a

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[6] Federalist No. 78, at 439 (Clinton Rossiter ed., 1999) ("To avoid an arbitrary discretion in the courts, it is indispensable that [judges] should be bound down by strict rules and precedents, which serve to define and point out their duty in every particular case that comes before them . . . ."). Historical sources provide only limited insight into the Founders' views on stare decisis, and it is unclear whether Alexander Hamilton was referring to the presumption that a court should adhere to its own prior decisions or, rather, those of higher tribunals. Thomas R. Lee, *Stare Decisis in Historical Perspective: From the Founding Era to the Rehnquist Court*, 52 Vand. L. Rev. 647, 664 (1999). Other Founders held similar views on the benefits of precedent. *See, e.g.*, 1 Diary and Autobiography of John Adams 167–68 (L.H. Butterfield, ed., 1961) (draft of Nov. 5, 1760) ("[E]very possible Case being thus preserved in Writing, and settled in a Precedent, leaves nothing, or but little to the arbitrary Will or uninformed Reason of Prince or Judge."). *See also* Caleb Nelson, *Stare Decisis and Demonstrably Erroneous Precedents*, 87 Va. L. Rev. 1, 9 (2001) ("[C]oncern about such discretion was a common theme throughout the antebellum period; in one form or another, it shaped most antebellum explanations of the need for stare decisis."). *But see* Letter from James Madison to C.E. Haynes (Feb. 25, 1831), *reprinted in* 9 The Writings of James Madison 443 (Gaillard Hunt ed., 1910) ("That cases may occur which transcend all authority of precedents must be admitted, but they form exceptions which will speak for themselves and must justify themselves.").

[7] *See, e.g.*, Gordon v. Ogden, 28 U.S. (3 Pet.) 33, 34 (1830) (involving statutory construction).

[8] Lee, *supra* note 6, at 681–87, 734. *See, e.g.*, United States v. Percheman, 32 U.S. (7 Pet.) 51, 88–89 (1833).

[9] *See, e.g.*, McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 401 (1819) ("[A]n exposition of the constitution, deliberately established by legislative acts, on the faith of which an immense property has been advanced, ought not to be lightly disregarded."). *See also* Lee, *supra* note 6, at 691.

[1] *See* Janus v. Am. Fed. of State, Cnty., & Mun. Emps., No. 16-1466, slip op. at 34 (2018) ("We will not overturn a past decision unless there are strong grounds for doing so."); Arizona v. Rumsey, 467 U.S. 203, 212 (1984) ("Although adherence to precedent is not rigidly required in constitutional cases, any departure from the doctrine of stare decisis demands special justification."). For a list of Supreme Court decisions on constitutional law questions that the Court has overruled during its more than 225-year history, see *Table of Supreme Court Decisions Overruled by Subsequent Decisions*, https://constitution.congress.gov/resources/decisions-overruled/.

Legal scholars continue to debate questions surrounding the doctrine of stare decisis that are beyond the scope of this essay, such as whether the Constitution requires (or even allows) the Supreme Court to follow precedent, and whether Congress could abolish stare decisis in constitutional cases. *See, e.g.*, Richard H. Fallon, Jr., Stare Decisis and the Constitution: An Essay on Constitutional Methodology, 76 N.Y.U. L. Rev. 570, 571 (2001); Michael Stokes Paulsen, *Abrogating Stare Decisis by Statute: May Congress Remove the Precedential Effect of Roe and Casey?*, 109 Yale L.J. 1535, 1548 (2000).

disagreement with a prior decision's reasoning.[2] In adopting this approach, the Court has rejected a strict view of stare decisis that would require it to adhere to its prior decisions regardless of those decisions' merits or the practical implications of retaining or discarding precedent.[3] Instead, while the Court has stated that its precedents are entitled to respect and deference,[4] the Court considers the principle of stare decisis to be a discretionary "principle of policy" to be weighed and balanced along with the Court's views about a prior decision's merits, along with several pragmatic considerations, when determining whether to retain precedent in interpreting the Constitution[5] or deciding whether to hear a case.[6] Notably, the Court may avoid having to decide whether to overrule precedent if it can distinguish the law or facts of a prior decision from the case before it, or limit the prior decision's holding so it is inapplicable to the instant case.[7]

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[2] Kimble v. Marvel Entm't, LLC, 576 U.S. 446, 455 (2015) ("[A]n argument that [the Court] got something wrong—even a good argument to that effect—cannot by itself justify scrapping settled precedent.").

[3] *Cf. Super stare decisis*, Black's Law Dictionary 1537 (9th ed. 2009) (defining "super stare decisis" as "the theory that courts must follow earlier court decisions without considering whether those decisions were correct"). A court following a prior decision because it was correctly decided is not adhering to stare decisis; it is merely reaffirming precedent. *See* Fallon, *supra* note 1, at 570 ("If a court believes a prior decision to be correct, it can reaffirm that decision on the merits without reference to stare decisis.").

[4] *See, e.g.*, Citizens United v. Fed. Election Comm'n, 558 U.S. 310, 362 (2010) ("Our precedent is to be respected unless the most convincing of reasons demonstrates that adherence to it puts us on a course that is sure error.").

[5] Michael J. Gerhardt, *The Role of Precedent in Constitutional Decisionmaking and Theory*, 60 Geo. Wash. L. Rev. 68, 73, 134–35 (1991) [hereinafter Gerhardt, *The Role of Precedent*] (describing the Court's review of its precedents as a "process in which the Justices individually try to balance their respective views on how the Constitution should be interpreted *and* certain social or institutional values such as the need for stability and consistency in constitutional law"). Sometimes a Justice's judicial philosophy may conflict with precedent, potentially requiring a Justice to choose between following his or her philosophy, or making a pragmatic exception to it in order to maintain stability in the law. For example, some proponents of textualism and original meaning as methods of constitutional interpretation object to the use of judicial precedent that conflicts with the Constitution's text and its original meaning. In their view, this approach to precedent favors the Supreme Court's views over the views of those who ratified the Constitution, thereby allowing mistaken constitutional interpretations to persist. *See* Henry P. Monaghan, *Stare Decisis and Constitutional Adjudication*, 88 Colum. L. Rev. 723, 769–70 (1988). Nevertheless, textualists and originalists may adhere to precedent for pragmatic reasons, such as when doing so would promote stability in the law. For example, Justice Antonin Scalia, a textualist and originalist, followed long-standing precedent allowing for the Supreme Court to incorporate rights specifically enumerated in the Bill of Rights against state governments, even though he harbored significant doubts that such incorporation comported with the Constitution's original meaning. *See, e.g.*, McDonald v. City of Chi., 561 U.S. 742, 791 (2010) (Scalia, J., concurring) ("Despite my misgivings about substantive due process as an original matter, I have acquiesced in the Court's incorporation of certain guarantees in the Bill of Rights 'because it is both long established and narrowly limited.'" (citing Albright v. Oliver, 510 U.S. 266, 275 (1994) (Scalia, J., concurring)).

[6] *See Citizens United*, 558 U.S. at 378 (Roberts, C.J., concurring) ("Stare decisis is . . . a 'principle of policy.' When considering whether to reexamine a prior erroneous holding, we must balance the importance of having constitutional questions *decided* against the importance of having them *decided right*." (citing Helvering v. Hallock, 309 U.S. 106, 119 (1940))); Payne v. Tennessee, 501 U.S. 808, 828 (1991) ("Stare decisis is not an inexorable command; rather, it 'is a principle of policy and not a mechanical formula of adherence to the latest decision.'" (citation omitted)); Burnet v. Coronado Oil & Gas Co., 285 U.S. 393, 405–06 (1932) (Brandeis, J., dissenting) ("The rule of stare decisis, though one tending to consistency and uniformity of decision, is not inflexible. Whether it shall be followed or departed from is a question entirely within the discretion of the court, which is again called upon to consider a question once decided. Stare decisis is usually the wise policy, because, in most matters it is more important that the applicable rule of law be settled than that it be settled right." (citations and internal quotation marks omitted)).

[7] The Justices have latitude in how broadly or narrowly they construe their prior decisions. *See* Gerhardt, *The Role of Precedent*, *supra* note 7, at 98 ("The Supreme Court can overturn or otherwise weaken precedents through explicit overrulings, overrulings sub silentio, or subsequent decisionmaking that narrows or distinguishes precedents to the point of practical nullification."). For more on the use of judicial precedent as a method of constitutional interpretation, see Intro.8.4 Judicial Precedent and Constitutional Interpretation. The Court has other means of avoiding a decision on whether to overrule precedent, which include the Court's "discretionary jurisdiction" to deny certiorari, the four votes required to grant certiorari, and the Court's rule generally limiting review to the questions presented or "fairly included" in the petition. Amy Coney Barrett, Symposium, *Precedent and Jurisprudential Disagreement*, 91 Tex. L. Rev. 1711, 1731–33 (2013).

ArtIII.S1.7.2.2
Stare Decisis Doctrine Generally

The Supreme Court has established special rules for applying stare decisis in constitutional cases. During the twentieth century,[8] the Court adopted a weaker form of stare decisis when deciding cases that implicated a prior constitutional interpretation, rather than a previous interpretation of a federal statute.[9] The Court has sought to justify this approach on the grounds that Congress may amend federal laws to address what it deems to be erroneous judicial statutory interpretations, whereas amending the Constitution to overturn a Supreme Court precedent is much more difficult.[10] In fact, in the history of the United States, only five Supreme Court precedents have been overturned through constitutional amendment.[11] Despite the Court's assertion that it applies a weaker form of stare decisis in constitutional cases, the Court still requires a "special justification" or at least "strong grounds" for overruling constitutional precedents.[12]

[8] One study determined that the "notion that the constitutional or statutory nature of a precedent affects its susceptibility to reversal was largely rejected in the founding era and did not gain majority support until well into the twentieth century."). Lee, *supra* note 6, at 735.

John R. Sand & Gravel Co. v. United States, 552 U.S. 130, 139 (2008) ("[*S*]*tare decisis* in respect to statutory interpretation has special force, for Congress remains free to alter what we have done." (citations and internal quotation marks omitted)); Smith v. Allwright, 321 U.S. 649, 665 (1944) ("In constitutional questions, where correction depends upon amendment and not upon legislative action this Court throughout its history has freely exercised its power to reexamine the basis of its constitutional decisions."); Burnet v. Coronado Oil & Gas Co., 285 U.S. 393, 406–07 (1932) (Brandeis, J., dissenting) ("[I]n cases involving the Federal Constitution, where correction through legislative action is practically impossible, this Court has often overruled its earlier decisions."). The Supreme Court has suggested that stare decisis is at is weakest in cases involving rules of criminal procedure "that implicate fundamental constitutional protections." Alleyne v. United States, 570 U.S. 99, 116 n.5 (2013).

[9] The Supreme Court's belief in Congress's ability to correct the Court's errors through legislation has sometimes motivated the Court to retain precedent in cases in which Congress could enact corrective legislation. These cases encompass some disputes that implicate questions of tribal sovereign immunity, judicially created causes of action, or constraints on state action under the Commerce Clause. *See* South Dakota v. Wayfair, Inc., No. 17-494, slip op. at 2 (2018) (Roberts, C.J., dissenting) ("The bar [for departing from stare decisis and overturning precedent] is even higher in fields in which Congress 'exercises primary authority' and can, if it wishes, override this Court's decisions with contrary legislation." (citations omitted)).

[10] *See supra* note 8. Professor Michael Gerhardt notes that the political branches have other options for reversing or constraining constitutional precedents outside of amending the Constitution, such as "congressional modifications of the Court's jurisdiction, the President's power to nominate Justices who might agree with her criticisms of certain precedents, the Senate's power to advise and consent to judicial nominations, and impeachment." Gerhardt, *The Role of Precedent*, *supra* note 7, at 72 n.16.

[11] These former precedents are *Oregon v. Mitchell,* 400 U.S. 112, 117–18 (1970) (holding that Congress could not establish a voting age of eighteen for state and local elections, but could do so for national elections), *superseded by constitutional amendment*, U.S. Const. amend. XXVI ("The right of citizens of the United States, who are eighteen years of age or older, to vote shall not be denied or abridged by the United States or by any State on account of age."); Pollock v. Farmers' Loan & Trust Co., 158 U.S. 601, 637 (1895) (holding that a federal income tax violated the Constitution because it was not apportioned among the states based on congressional representation), *superseded by constitutional amendment*, U.S. Const. amend. XVI ("The Congress shall have power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the several States, and without regard to any census or enumeration."); Minor v. Happersett, 88 U.S. (21 Wall.) 162, 178 (1874) (upholding as constitutional a state law that limited the right of suffrage to men), *superseded by constitutional amendment*, U.S. Const. amend. XIX ("The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex."); Dred Scott v. Sandford, 60 U.S. (19 How.) 393, 452–54 (1857) (holding that former slaves lacked standing to sue in federal court because they were not citizens, and that the federal government lacked the authority to regulate slavery in the territories), *superseded by constitutional amendment*, U.S. Const. amends. XIII ("Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction."), and XIV ("All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws."); Chisholm v. Georgia, 2 U.S. (2 Dall.) 419, 452 (1793) (holding that federal courts had jurisdiction over civil suits by private citizens against states) *superseded by constitutional amendment*, U.S. Const. amend. XI ("The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another state, or by Citizens or Subjects of any Foreign state.").

[12] *See supra* note 1.

ArtIII.S1.7.2.3 Stare Decisis Factors

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

There are several factors the Supreme Court weighs when determining whether to reaffirm or overrule a prior decision interpreting the Constitution.[1] First, the Supreme Court may consider the quality of the decision's reasoning.[2] Another factor that the Supreme Court has considered when determining whether to overrule a precedent is whether a rule or standard that the prior case establishes for determining the constitutionality of a government action is too difficult for lower federal courts or other interpreters to apply and is thus "unworkable."[3] A third factor the Supreme Court may consider is whether the precedent departs from the Court's other decisions on similar constitutional questions, either because the precedent's reasoning has been eroded by later decisions,[4] or because the precedent is a recent outlier when compared to other decisions.[5]

The Supreme Court has also indicated that changes in how the Justices and society understand a decision's underlying facts may undermine a precedent's authoritativeness,

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[1] Some Justices have argued that the Supreme Court's current stare decisis factors are confusing and should be revised to provide a better roadmap for decisionmaking. *See, e.g.*, Ramos v. Louisiana, No. 18-5924, slip op. at 7–8 (2020) (Kavanaugh, J., concurring in part) (describing the Supreme Court's jurisprudence on the stare decisis factors as a "muddle" and identifying three stare decisis factors: the merits of the decision, the precedent's practical consequences, and reliance interests).

[2] *See, e.g.*, W. Va. State Bd. of Educ. v. Barnette, 319 U.S. 624, 636–42 (1943) (overruling the Supreme Court's 3-year-old decision in Minersville School District v. Gobitis, 310 U.S. 586 (1940), which had upheld a state law compelling students to salute the American flag, because of significant disagreements with the *Gobitis* Court's analysis of the First Amendment, the importance of national unity, and other issues).

[3] *See, e.g.*, Garcia v. San Antonio Metro. Transit Auth., 469 U.S. 528, 531 (1985) (overruling Nat'l League of Cities v. Usery, 426 U.S. 833 (1976), because *Usery*'s rule for when state activities qualified for immunity from congressional regulation under the Commerce Clause had become unworkable, and the lower courts could not apply it consistently). *See also* Montejo v. Louisiana, 556 U.S. 778, 792 (2009) ("[T]he fact that a decision has proved 'unworkable' is a traditional ground for overruling it.").

[4] United States v. Gaudin, 515 U.S. 506, 521 (1995) ("And we think stare decisis cannot possibly be controlling when . . . the decision in question has been proved manifestly erroneous, and its underpinnings eroded, by subsequent decisions of this Court.").

[5] *See, e.g.*, Adarand Constructors, Inc. v. Peña, 515 U.S. 200, 233–34 (1995) (overruling Metro Broad., Inc. v. FCC, 497 U.S. 547 (1990), because it departed from a long line of precedents holding that the Fifth Amendment does not impose a lesser duty on the federal government than the Fourteenth Amendment's Equal Protection Clause imposes on state governments). *See also* Michael Stokes Paulsen, *Does the Supreme Court's Current Doctrine of Stare Decisis Require Adherence to the Supreme Court's Current Doctrine of Stare Decisis?*, 86 N.C. L. Rev. 1165, 1189 (2008) ("[A]ny fair discussion of the remnant-of-abandoned-doctrine factor of the Court's current stare decisis analysis must reckon with the seemingly equal but opposite restoration-of-departed-from doctrine counter-factor."). Occasionally, the Justices disagree over which line of precedent the Court should retain, and which line of precedent it should overrule or ignore. *Compare* Lawrence v. Texas, 539 U.S. 558, 577–78 (2003) (Kennedy, J., for the majority) (striking down a Texas law that banned private, consensual same-sex sexual activity as violating the Fourteenth Amendment's Due Process Clause and overruling Bowers v. Hardwick, 478 U.S. 186 (1986), in part because *Bowers* was inconsistent with subsequent Supreme Court precedents that protected personal autonomy to make decisions related to the family and intimate conduct), *with Lawrence*, 539 U.S. at 588 (Scalia, J., dissenting) (characterizing the precedents that the majority relied upon as outliers whose legal foundations had been eroded by a 1997 case holding that only "fundamental rights" that are "deeply rooted in [the] Nation's history and tradition" qualified for enhanced protection under the Due Process Clause) (quoting Washington v. Glucksberg, 521 U.S. 702, 721 (1997) (internal quotation marks omitted)).

leading the Court to overrule it.[6] Finally, the Supreme Court may consider whether it should *retain* a precedent, even if flawed, because overruling the decision would result in hardship to individuals, companies, or organizations;[7] society as a whole;[8] or Legislative,[9] Executive,[10] or Judicial Branch officers,[11] who relied on the decision's guidance as to which actions and practices comport with the Constitution.[12]

It is difficult to predict when the Supreme Court will overrule precedent because the Court has not provided an exhaustive list of the factors it uses to determine whether a decision should be overruled, or explained how it weighs them. Although much about how the Supreme Court views precedent remains unclear, the Court's factors for determining whether to retain or overrule precedent provides the Justices with significant discretion.[13] If the Court is unable to distinguish a precedent from the case before it, the Justices generally attempt to strike a

[6] *Casey*, 505 U.S. at 855 (plurality opinion) (discussing the inquiry into whether "facts have so changed, or come to be seen so differently, as to have robbed the old rule of significant application or justification"). *See also, e.g.*, South Dakota v. Wayfair, No. 17-494, slip op. at 18–19, 23–24 (2018) (overturning two precedents and determining that the Commerce Clause does not restrict states from requiring retailers that lack a physical presence in the state, such as internet retailers, to collect and remit taxes on sales made to state residents). The *Wayfair* Court noted that the U.S. economy had changed drastically, with a marked increase in the prevalence and power of internet access and concomitant increases in retailers selling goods remotely to consumers. *Id. See also* West Coast Hotel v. Parrish, 300 U.S. 379, 390, 400 (1937) (overruling Adkins v. Children's Hosp., 261 U.S. 525 (1923), and stating that "the economic conditions which have supervened" during the Great Depression required reconsideration of the "exercise of the protective power of the state" to institute minimum wage laws).

[7] *See, e.g.,* Payne v. Tennessee, 501 U.S. 808, 828 (1991) ("Considerations in favor of stare decisis are at their acme in cases involving property and contract rights, where reliance interests are involved . . . the opposite is true in cases such as the present one involving procedural and evidentiary rules." (citations omitted)); McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 401 (1819) ("[A]n exposition of the constitution, deliberately established by legislative acts, on the faith of which an immense property has been advanced, ought not to be lightly disregarded."); Lee, *supra* note 6, at 691–703, 734.

[8] *See, e.g.*, Dickerson v. United States, 530 U.S. 428, 431–32, 443 (2000) (declining to overrule the Court's 1966 decision in *Miranda v. Arizona* because the *Miranda* decision had "become embedded in routine police practice to the point where the warnings have become part of our national culture").

[9] Some Justices have argued that legislators may rely on the Supreme Court's decisions about the constitutionality of certain types of laws. *See, e.g.*, *Lawrence*, 539 U.S. at 589–90 (Scalia, J., dissenting) (arguing that numerous legislators had relied on the Court's decision in *Bowers v. Hardwick* when enacting laws regulating certain sexual behaviors deemed immoral by the governing majority).

[10] *See, e.g.*, Arizona v. Gant, 556 U.S. 332, 358–59 (2009) (Alito, J., dissenting) (arguing that the majority had effectively overruled New York v. Belton, 453 U.S. 454 (1981), and thereby upset law enforcement officers' reliance on a precedent addressing the permissibility under the Fourth Amendment of searching a vehicle's occupant after arrest).

[11] Judges often rely on precedent, both explicitly by citing to precedent in their opinions, and implicitly, by accepting principles established by precedent, such as the power of judicial review. *See, e.g.*, Ariz. State Legislature v. Ariz. Indep. Redistricting Comm'n, 576 U.S. 787, 805 (2015) (relying on three cases from the early twentieth century in holding that Arizona voters could remove from the state legislature the authority to redraw the boundaries for legislative districts and vest that authority in an independent commission). *See also, e.g.*, Johnson v. United States, 576 U.S. 591, 606 (2015) (striking down part of a federal law as unconstitutional without citing *Marbury v. Madison*).

[12] *See, e.g.*, Hubbard v. United States, 514 U.S. 695, 716 (1995) (Scalia, J., concurring in part) (stating that stare decisis "protects the legitimate expectations of those who live under the law"); Hilton v. S.C. Pub. Rys. Comm'n, 502 U.S. 197, 202 (1991) (stating that stare decisis "has added force when the legislature, in the public sphere, and citizens, in the private realm, have acted in reliance on a previous decision, for in this instance overruling the decision would dislodge settled rights and expectations or require an extensive legislative response") *See also* Randy J. Kozel, *Stare Decisis as Judicial Doctrine*, 67 Wash. & Lee L. Rev. 411, 452 (2010) ("The universe of reliance interests can be usefully (if roughly) divided into four categories: reliance by specific individuals, groups, and organizations; reliance by governments; reliance by courts; and reliance by society at large.").

[13] *Confirmation Hearing on the Nomination of Samuel A. Alito, Jr. To Be an Associate Justice of the Supreme Court of the United States: Hearing Before the S. Comm. on the Judiciary*, 109th Cong. 399 (2006) (statement of then-Judge Alito) ("They have said there has to be a special justification for overruling a precedent. There is a presumption that precedents will be followed. But it is not—the rule of stare decisis is not an inexorable command, and I don't think anybody would want a rule in the area of constitutional law that . . . said that a constitutional decision, once handed down, can never be overruled.").

delicate balance between maintaining a stable jurisprudence on which parties can rely,[14] while preserving sufficient flexibility to correct errors.[15]

ArtIII.S1.7.3 Retroactivity of Supreme Court Decisions

ArtIII.S1.7.3.1 Overview of Retroactivity of Supreme Court Decisions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Under English common law, from which much of the American judicial system is derived, judicial decisions applied retroactively. The Supreme Court has explained that the common law approach was motivated by the belief that "the duty of the court was not to 'pronounce a new law, but to maintain and expound the old one.'"[1] Applying judicial decisions retroactively can create practical difficulties, however: regulated parties must rely on the law as they understand it in making decisions and shaping their conduct, but court decisions may change the legal landscape by resolving open legal questions, striking down unconstitutional laws or government actions, or overruling prior judicial decisions. Early American cases generally followed the common law approach and held that Supreme Court decisions applied retroactively.[2] By contrast, starting in the 1960s, the Court has at times limited the retroactive application of judicial decisions announcing new rules of law in light of regulated entities' reliance on the prior rule.[3]

The Court's retroactivity jurisprudence distinguishes between criminal and civil cases. The following essays discuss the extent to which the Court has applied its decisions retroactively in criminal[4] and civil[5] litigation.

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[14] *See, e.g.*, *Hilton*, 502 U.S. at 202 ("Adherence to precedent promotes stability, predictability, and respect for judicial authority."); Payne v. Tennessee, 501 U.S. 808, 827 (1991) ("Stare decisis is the preferred course because it promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process."); Vasquez v. Hillery, 474 U.S. 254, 265–66 (1986) ("[T]he important doctrine of stare decisis [is] the means by which we ensure that the law will not merely change erratically, but will develop in a principled and intelligible fashion. That doctrine permits society to presume that bedrock principles are founded in the law rather than in the proclivities of individuals, and thereby contributes to the integrity of our constitutional system of government, both in appearance and in fact.").

[15] *See, e.g.*, Patterson v. McLean Credit Union, 491 U.S. 164, 172 (1989) ("Our precedents are not sacrosanct, for we have overruled prior decisions where the necessity and propriety of doing so has been established."); Smith v. Allwright, 321 U.S. 649, 665 (1944) ("[W]hen convinced of former error, this Court has never felt constrained to follow precedent. In constitutional questions, where correction depends upon amendment and not upon legislative action this Court throughout its history has freely exercised its power to reexamine the basis of its constitutional decisions.").

[1] Linkletter v. Walker, 381 U.S. 618, 622–23 (1965) (quoting 1 W. Blackstone, Commentaries 69).

[2] *E.g.*, Robinson v. Neil, 409 U.S. 505, 507 (1973) (Prior to 1965, "both the common law and our own decisions recognized a general rule of retrospective effect for the constitutional decisions of this Court . . . subject to limited exceptions.").

[3] *See, e.g.*, Lemon v. Kurtzman, 411 U.S. 192, 198–99 (1973).

[4] *See* ArtIII.S1.7.3.2 Retroactivity of Criminal Decisions.

[5] *See* ArtIII.S1.7.3.3 Retroactivity of Civil Decisions.

ArtIII.S1.7.3.2 Retroactivity of Criminal Decisions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Supreme Court's retroactivity jurisprudence distinguishes between criminal and civil cases.[1] On the criminal side, there may be further distinctions based on whether a criminal defendant has allegedly engaged in criminal conduct but has not yet been tried, has been convicted at trial and is pursuing a direct appeal, or has exhausted all direct appeals but can still seek collateral relief via a petition for a writ of habeas corpus. The general rule prior to 1965 was that the Court's constitutional decisions involving criminal law applied retroactively, subject to limited exceptions.[2] The Court changed its approach in the 1965 case *Linkletter v. Walker*, in which it held that, with respect to new constitutional interpretations involving criminal rights, "the Constitution neither prohibits nor requires retrospective effect."[3]

In *Linkletter* and a case from the following year, the Court held that its decisions applied retroactively to all cases in which judgments of conviction were not yet final.[4] Later, however, the Court adopted a balancing process that resulted in different degrees of retroactivity in different cases.[5] Generally, in cases where the Court declared a rule that was "a clear break with the past," it denied retroactivity to all defendants, sometimes with the exception of the challenger before the Court.[6] By contrast, in certain cases where a new rule was intended to overcome an impairment of the truth-finding function of a criminal trial[7] or cases where the Court found that a constitutional doctrine barred the conviction or punishment of someone,[8] the Court granted its decisions full retroactivity, even for habeas claimants.

The Court's retroactivity jurisprudence later distinguished between criminal cases pending on direct review and cases pending on collateral review. For cases on direct review, the Court held, "a new rule for the conduct of criminal prosecutions is to be applied retroactively to all cases, state or federal, pending on direct review or not yet final, with no exception for cases in which the new rule constitutes a 'clear break' with the past."[9] A plurality of the Court first endorsed a new standard for collateral review in *Teague v. Lane*,[10] and a majority of the Court adopted it in *Penry v. Lynaugh*.[11] In contrast to cases on direct appeal, for collateral review in

[1] For discussion of civil cases, see ArtIII.S1.7.3.3 Retroactivity of Civil Decisions.

[2] Robinson v. Neil, 409 U.S. 505, 507 (1973).

[3] 381 U.S. 618, 629 (1965).

[4] *Linkletter*, 381 U.S. 618; Tehan v. United States *ex rel.* Shott, 382 U.S. 406 (1966).

[5] Johnson v. New Jersey, 384 U.S. 719 (1966); Stovall v. Denno, 388 U.S. 293 (1967); Adams v. Illinois, 405 U.S. 278 (1972).

[6] Desist v. United States, 394 U.S. 244, 248 (1969); United States v. Peltier, 422 U.S. 531 (1975); Brown v. Louisiana, 447 U.S. 323, 335–36 (1980) (plurality opinion); Michigan v. Payne, 412 U.S. 47, 55 (1973); United States v. Johnson, 457 U.S. 537, 549–50, 551–52 (1982).

[7] Williams v. United States, 401 U.S. 646, 653 (1971) (plurality opinion); Brown v. Louisiana, 447 U.S. 323, 328–30 (1980) (plurality opinion); Hankerson v. North Carolina, 432 U.S. 233, 243 (1977).

[8] United States v. United States Coin & Currency, 401 U.S. 715, 724 (1971); Moore v. Illinois, 408 U.S. 786, 800 (1972); Robinson v. Neil, 409 U.S. 505, 509 (1973).

[9] Griffith v. Kentucky, 479 U.S. 314, 328 (1987) (cited with approval in Whorton v. Bockting, 549 U.S. 406, 416 (2007)).

[10] 489 U.S. 288 (1989).

[11] 492 U.S. 302 (1989).

federal courts of state court criminal convictions, the Court held that it generally will not give retroactive effect to "new rules" of constitutional interpretation—that is, rules "not '*dictated* by precedent existing at the time the defendant's conviction became final.'"[12] The Court held that a new rule may apply retroactively in a collateral proceeding "only if (1) the rule is substantive or (2) the rule is a 'watershed rul[e] of criminal procedure' implicating the fundamental fairness and accuracy of the criminal proceeding."[13] As the *Teague* plurality explained, the Court will apply a new rule in a collateral proceeding only if it places certain kinds of conduct "beyond the power of the criminal law-making authority to prescribe" or constitutes a "new procedure[ ] without which the likelihood of an accurate conviction is seriously diminished."[14]

Since *Teague*, the Court has consistently held that new substantive constitutional rules apply retroactively. The Court has described a substantive rule as one that alters the range of conduct that the law punishes, or that prohibits "a certain category of punishment for a class of defendants because of their status or offense."[15] Thus, the Court has held that the first *Teague* exception is constitutionally based, as substantive rules set forth categorical guarantees that place certain laws and punishments beyond a state's power, making "the resulting conviction or sentence . . . by definition . . . unlawful."[16] In *Montgomery v. Louisiana*, the Court extended the holding of *Teague* beyond the context of federal habeas review, holding that when a new substantive rule of constitutional law controls the outcome of a case, state collateral review courts must give retroactive effect to that rule in the same manner as federal courts engaging in habeas review.[17]

In contrast, the Court has never invoked the second *Teague* exception for "watershed" procedural rules to hold that a new rule of criminal procedure must apply retroactively. The Court has explained that procedural rules simply regulate the manner of determining the defendant's guilt, so if a defendant does not receive the benefit of a new procedural rule, the underlying conviction or sentence may "still be accurate" and the "defendant's continued confinement may still be lawful" under the Constitution.[18] The court has explained that, under the second *Teague* exception, it is not enough "to say that a new rule is aimed at improving the accuracy of a trial. . . . A rule that qualifies under this exception must not only improve accuracy, but also alter our understanding of the *bedrock procedural elements* essential to the fairness of a proceeding."[19] In the 2021 case *Edwards v. Vannoy*, the Court noted that the *Teague* Court itself had stated it was "unlikely" that new watershed rules would emerge and, "in the 32 years since *Teague*, . . . the Court has *never* found that any new procedural rule

[12] Whorton v. Bockting, 549 U.S. 406, 416 (2007). Put another way, it is not enough that a decision is "within the 'logical compass' of an earlier decision, or indeed that it is 'controlled' by a prior decision." A decision announces a "new rule" if its result "was susceptible to debate among reasonable minds" and if it was not "an illogical or even a grudging application" of the prior decision. Butler v. McKellar, 494 U.S. 407, 412–415 (1990). For additional elaboration on "new law," see O'Dell v. Netherland, 521 U.S. 151 (1997); Lambrix v. Singletary, 520 U.S. 518 (1997); Gray v. Netherland, 518 U.S. 152 (1996). *But compare* Bousley v. Brooks, 523 U.S. 614 (1998).

[13] Whorton v. Bockting, 549 U.S. 406, 416 (2007).

[14] 489 U.S. at 307, 311–313; *see also Butler*, 494 U.S. at 415–416.

[15] Welch v. United States, 578 U.S. 120, 132 (2016) (quoting Saffle v. Parks, 494 U.S. 484, 495 (1990); *see also* Schriro v. Summerlin, 542 U.S. 348, 353 (2004); Penry v. Lynaugh, 492 U.S. 302, 330 (1989).

[16] Montgomery v. Louisiana, 577 U.S. 190 (2016)

[17] 577 U.S. 190.

[18] *Id.* at 201.

[19] Sawyer v. Smith, 497 U.S. 227, 242 (1990) (internal quotations and citations omitted).

actually satisfies that purported exception."[20] The Court thus concluded, "New procedural rules do not apply retroactively on federal collateral review. The watershed exception is moribund."[21]

ArtIII.S1.7.3.3 Retroactivity of Civil Decisions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

As in criminal cases,[1] a civil case announcing a new legal rule might in theory apply retroactively in all instances, might apply purely prospectively, or might apply with "selective prospectivity" such that the prevailing party in the case obtains the retroactive benefit of a new rule but no one else does. In some civil cases, the Court has declined to apply new rules retroactively, sometimes even with respect to the prevailing party in the case.[2] In *Chevron Oil Co. v. Huson*, the Court held that the question of retroactivity was to be determined by balancing the equities, considering whether a decision announced a new principle of law, whether retroactive application would advance or hinder the purpose of the rule in question, and whether retroactive application would cause injustice or hardship that could be avoided through purely prospective application.[3]

In two cases from the 1990s, the Court revealed itself to be deeply divided on whether judicial decisions should, or must, apply retroactively. First, in *American Trucking Assn's, Inc. v. Smith*, the Court considered whether to give retroactive effect to a prior case holding unconstitutional the state's application of a highway tax.[4] The Court held that the decision did not apply retroactively. A four-Justice plurality applied the *Chevron Oil* test to reach that conclusion. Justice Antonin Scalia concurred in the judgment but disagreed with the plurality's reasoning.[5] The following year, in *James B. Beam Distilling Co. v. Georgia*, the Court considered whether a company could claim a tax refund under an earlier ruling holding unconstitutional the imposition of certain taxes upon its products.[6] A fractured Court held that the company could seek a refund.[7]

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[20] 141 S.Ct. 1547, 1557, 1555 (2021). *See* also *id.* at 1557 ("The Court has identified only one pre-*Teague* procedural rule as watershed: the right to counsel recognized in the Court's landmark decision in Gideon v. Wainwright, 372 U.S. 335, 344–345 (1963).").

[21] *Id.* at 1560.

[1] For discussion of criminal cases, see ArtIII.S1.7.3.2 Retroactivity of Criminal Decisions.

[2] *E.g.*, Cipriano v. City of Houma, 395 U.S. 701 (1969); Allen v. State Board of Elections, 393 U.S. 544 (1969); *but see* Hanover Shoe, Inc. v. United Shoe Machinery Corp., 392 U.S. 481 (1968).

[3] 404 U.S. 97 (1971).

[4] 496 U.S. 167 (1990).

[5] *Id.* at 200. Four dissenting Justices would have applied the prior case "only where, under state law, the time for challenging the tax has not expired," or in timely-filed challenges to the tax where "the decisions are not yet final." *Id.* at 224–25.

[6] 501 U.S. 529 (1991).

[7] Two Justices objected to the possibility of "selective prospectivity" noting that, in the earlier decision, the Court had applied the holding to the contesting company, and concluding that once a new rule has been applied retroactively to the litigants in a civil case, considerations of equality and stare decisis compel application to all. *Id.* at 532–44. Justice Byron White wrote separately to emphasize that it was permissible for the Court to apply its decisions purely prospectively. *Id.* at 544–47. By contrast, three concurring Justices argued that limiting the retroactive application of

In the 1993 case *Harper v. Virginia Dep't of Taxation*, a bare majority of the Court departed from the *Chevron Oil* balancing test and announced a new rule to determine the retroactive effect of civil cases.[8] The Court held: "When this Court applies a rule of federal law to the parties before it, that rule is the controlling interpretation of federal law and must be given full retroactive effect in all cases open on direct review and as to all events, regardless of whether such events predate or postdate our announcement of the rule."[9]

ArtIII.S1.8 Congressional Power to Establish Article III Courts

ArtIII.S1.8.1 Overview of Establishment of Article III Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Constitution established one federal court: the U.S. Supreme Court.[1] In lieu of mandating the creation other adjudicative bodies through the nation's founding document, the Framers vested the federal judicial power in the Supreme Court and "such inferior Courts as the Congress may from time to time ordain and establish,"[2] and authorized Congress, in its discretion, to "constitute Tribunals inferior to the [S]upreme Court."[3] In the years following the ratification of the Constitution, Congress has regularly exercised its power to create different federal tribunals that adjudicate a variety of legal disputes.

As authorized by the Constitution, Congress has established federal district and appellate courts and structured the Supreme Court. Congress has also periodically created courts under Article III to exercise specialized jurisdiction over specific categories of cases.[4] All of these courts, sometimes called "Article III courts" or "constitutional courts," share three key attributes.[5] First, they exercise the "judicial power of the United States" to resolve "cases" and "controversies" falling within the constitutional grant of federal court jurisdiction.[6] Second,

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judicial decisions, whether through partial or total prospectivity, violates Article III by expanding the jurisdiction of the federal courts beyond true cases and controversies. *Id.* at 547–49

[8] 509 U.S. 86 (1993).

[9] *Id.* at 97; *see also* Reynoldsville Casket Co. v. Hyde, 514 U.S. 749 (1995) (setting aside a state court refusal to give retroactive effect to a U.S. Supreme Court invalidation of that state's statute of limitations in certain suits); Ryder v. United States, 515 U.S. 177, 184–85 (1995).

[1] U.S. Const. art. III, § 1.

[2] *Id.*

[3] U.S. Const. art. I, § 8, cl. 9. For additional discussion of the Framers' views on legislative power to establish federal courts, see ArtIII.S1.8.2 Historical Background on Establishment of Article III Courts.

[4] In addition, Congress has created non-Article III tribunals, sometimes called "Article I courts" or "legislative courts," staffed by personnel such as administrative law judges, military judges, and federal magistrates. *See* ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts.

[5] When determining whether a court is a constitutional court, the Supreme Court has looked at how Congress structures the court and whether the structure of the court adheres to basic requirements of Article III, rather than relying on how Congress labels the court. *See* Glidden v. Zdanok, 370 U.S. 530 (1962) (Harlan, J.) (plurality opinion).

[6] U.S. Const. art. III, § 1. The Supreme Court has interpreted the "case or controversy" requirement of Article III to impose certain rules of justiciability, such as a prohibition on advisory opinions, requirements of standing and ripeness, and limitations on the ability of federal courts to decide "political questions." *See generally* Allen v. Wright, 468 U.S. 737, 750 (1984); *see also* ArtIII.S2.C1.2 Historical Background on Cases or Controversies Requirement.

they are staffed by judges who hold their offices "during good Behaviour,"[7] which the Supreme Court has interpreted to guarantee life tenure "subject only to removal by impeachment."[8] Third, Article III judges' compensation cannot be "diminished during their Continuance in Office."[9]

The following essays discuss Congress's power to establish and abolish[10] Article III courts, including the lower courts[11] and courts of special jurisdiction,[12] and Congress's power to structure the Supreme Court.[13] Other essays explore Congress's authority to establish non-Article III courts[14] and Congress's authority to regulate the existing federal courts.[15]

ArtIII.S1.8.2 Historical Background on Establishment of Article III Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Before the Founding, each state had its own system of courts, while the Articles of Confederation did not provide for an independent Federal Judiciary.[1] At the Constitutional Convention, the delegates agreed early on to depart from existing practice and establish an independent federal Judicial Branch including a Supreme Court.[2] The Framers generally accepted that state courts would play a significant role in interpreting and applying federal law.[3] But, in light of concerns about whether state courts would apply federal law correctly,

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[7] U.S. Const. art. III, § 1.

[8] N. Pipeline Constr. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 59 (1982) (plurality opinion); United States ex rel. Toth v. Quarles, 350 U.S. 11, 16 (1955) (stating that Article III "courts are presided over by judges appointed for life, subject only to removal by impeachment"); *see also* ArtIII.S1.10.2.1 Overview of Good Behavior Clause.

[9] U.S. Const. art. III, § 1; *see also* ArtIII.S1.10.3.1 Historical Background on Compensation Clause.

[10] *See* ArtIII.S1.8.5 Congressional Power to Abolish Federal Courts.

[11] *See* ArtIII.S1.8.4 Establishment of Inferior Federal Courts.

[12] *See* ArtIII.S1.8.6 Courts of Specialized Jurisdiction and Congress.

[13] *See* ArtIII.S1.8.3 Supreme Court and Congress.

[14] *See* ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts.

[15] *See* ArtIII.S1.5.1 Overview of Congressional Control Over Judicial Power; ArtIII.S1.10.2.1 Overview of Good Behavior Clause; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[1] Article IX of the Articles of Confederation authorized Congress to "appoint[ ] courts for the trial of piracies and felonies committed on the high seas; and establish[ ] courts; for receiving and determining finally appeals in all cases of captures." The same Article further provided that Congress would be "the last resort on appeal, in all disputes and differences now subsisting, or that hereafter may arise between two or more states" and could appoint commissioners or judges to constitute a court to resolve such disputes.

[2] *See, e.g.*, Max Farrand, The Framing of the Constitution of the United States 79 (1913) ("That there should be a national judiciary was readily accepted by all.").

[3] *See, e.g.*, 1 The Records of the Federal Convention of 1787, at 243 (Max Farrand ed., 1911) [hereinafter, Convention Records]. For example, the Convention considered proposals that would require federal questions to be decided first in state court, but with a right of appeal to federal courts. *See id.* at 243, 424. Likewise, during the debate over ratification, Alexander Hamilton wrote that "the State courts will RETAIN the jurisdiction they now have, unless it appears to be taken away in one of the enumerated modes. . . . [Thus,] the State courts would have a concurrent jurisdiction in all cases arising under the laws of the Union, where it was not expressly prohibited." The Federalist No. 83 (Alexander Hamilton). For additional discussion of the relationship between federal and state courts, see ArtIII.S1.6.1 Overview of Relationship Between Federal and State Courts.

uniformly, and without bias,[4] the Framers provided for a federal Supreme Court with the power to review state judicial decisions involving issues of federal statutory or constitutional law.[5]

However, the Framers debated whether the Constitution should also provide for the existence of lower federal courts.[6] James Madison's proposal for the new government, known as the Virginia Plan, provided for a "National Judiciary [to] be established to consist of one or more supreme tribunals, and of inferior tribunals to be chosen by the National Legislature."[7] In the Committee of the Whole, the proposal to establish a national Judiciary was adopted unanimously.[8] A clause providing that the Judicial Branch would "consist of One supreme tribunal, and of one or more inferior tribunals" was initially agreed to, but later reconsidered.[9] Critics of the provision argued that state courts could adequately adjudicate all necessary matters in the first instance, while appellate review the supreme tribunal would protect national interests and assure uniformity, and the provision for inferior tribunals was ultimately stricken out.[10]

Madison and James Wilson then moved to authorize Congress to "appoint inferior tribunals."[11] That proposal, sometimes called the Madisonian Compromise,[12] carried the implication that Congress could, in its discretion, either designate the state courts to hear federal cases or create federal courts.[13] Over the course of the Convention, the phrasing of the provision evolved into its present form, which vests federal judicial power in the "one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and

[4] Madison expressed concern at the Convention about "improper Verdicts in State tribunals obtained under the biassed directions of a dependent Judge," and "disliked the election of the Judges by the Legislature or any numerous body" due to "the danger of intrigue and partiality" and the fact that legislators lacked the "requisite qualifications" to select suitable judges. 1 Convention Records, *supra* note 3, at 120, 124. *See also* The Federalist No. 81 (Alexander Hamilton) ("State judges, holding their offices during pleasure, or from year to year, will be too little independent to be relied upon for an inflexible execution of the national laws."); 1 Convention Records, *supra* note 3, at 124 (statement of Madison expressing concern about "the local prejudices of an undirected jury"); The Federalist No. 80 (Alexander Hamilton) ("[T]he most discerning cannot foresee how far the prevalency of a local spirit may be found to disqualify the local tribunals for the jurisdiction of national causes."); *id.* ("The mere necessity of uniformity in the interpretation of the national laws, decides the question. Thirteen independent courts of final jurisdiction over the same causes, arising upon the same laws, is a hydra in government, from which nothing but contradiction and confusion can proceed.").

[5] U.S. Const. art. III; 1 Stat. 73, 85; Martin v. Hunter's Lessee, 14 U.S. 304 (1816). *Cf.* Oliver Wendell Holmes, Collected Legal Papers 295–96 (1921) ("I do not think the United States would come to an end if we lost our power to declare an Act of Congress void. I do think the Union would be imperiled if we could not make that declaration as the laws of the several States.").

[6] For additional discussion of the Convention's consideration of the judiciary, see 1 Julius Goebel, Antecedents and Beginnings to 1801, History of the Supreme Court of the United States (1971).

[7] 1 Convention Records, *supra* note 3, at 21–22. It is possible that this version may not be an accurate copy. *See* 3 Convention Records*id.* at 593–94.

[8] 1 Convention Records, *supra* note 3, at 95, 104.

[9] *Id.* at 95, 105. The words "one or more" were deleted the following day without recorded debate. *Id.* at 116, 119.

[10] *Id.* at 124–25.

[11] *Id.* at 125.

[12] *See* Richard H. Fallon, Jr. et al, Hart & Wechsler's The Federal Courts and the Federal System 8 (7th ed. 2015).

[13] On offering their motion, Wilson and Madison "observed that there was a distinction between establishing such tribunals absolutely, and giving a discretion to the Legislature to establish or not establish them." 1 Convention Records, *supra* note 3, at 125.

establish."[14] Beyond that provision, the Constitution imposes few specific requirements related to the organization of the federal Judiciary.[15]

The first Congress exercised its discretion to create lower federal courts promptly in the Judiciary Act of 1789, the first legislation related to the Federal Judiciary.[16] Since that time, the Federal Judiciary has always consisted of one Supreme Court and multiple inferior federal courts, though Congress has periodically enacted legislation to change the size of the Supreme Court and the size and structure of the lower courts.[17]

ArtIII.S1.8.3 Supreme Court and Congress

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Constitution provides for a Judicial Branch including "one supreme Court."[1] It also appears to assume that the Supreme Court will include a Chief Justice, stipulating that "the Chief Justice shall preside" over any Presidential impeachment trial in the Senate.[2] However, the Constitution is silent on other matters such as the size and composition of the Supreme Court, the time and place for sitting, and the Court's internal organization, leaving those questions to Congress.

Congress first enacted legislation to structure the Supreme Court in the Judiciary Act of 1789.[3] Under the 1789 act, the Court comprised one Chief Justice and five Associate Justices.[4] Congress enacted legislation to change the size of the Court multiple times during the nineteenth century. In 1801, Congress reduced the size of the Court to five Justices. The 1801

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[14] The Committee on Detail provided for the vesting of judicial power in one Supreme Court "and in such inferior Courts as shall, when necessary, from time to time, be constituted by the legislature of the United States." 2 *id.* at 186. Its draft also authorized Congress "[t]o constitute tribunals inferior to the Supreme Court." *Id.* at 182. No debate is recorded when the Convention approved these two clauses. *Id.* at 315, 422–23, 428–30. The Committee of Style left the clause empowering Congress to "constitute" inferior tribunals, but it deleted "as shall, when necessary" from the Judiciary article, so that the judicial power was vested "in such inferior courts as Congress may from time to time"—and here deleted "constitute" and substituted "ordain and establish." *Id.* at 600.

[15] Article I appears to assume the existence of a Chief Justice of the United States, providing that "[w]hen the President of the United States is tried, the Chief Justice shall preside." U.S. Const. art. I, § 3, cl. 6. Other provisions govern federal judges' tenure and compensation and set the bounds of federal court jurisdiction. *See* ArtIII.S1.5.1 Overview of Congressional Control Over Judicial Power; ArtIII.S1.10.2.1 Overview of Good Behavior Clause; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction. However, the Constitution does not specify the size of the Supreme Court or the number or size of the lower courts.

[16] 1 Stat. 73.

[17] *See, e.g.*, Judiciary Act of 1789, ch. 20, § 1, 1 Stat. 73; Judiciary Act of 1801, ch. 4, § 3, 2 Stat. 89; Act of Mar. 8, 1802, ch. 8, § 1, 2 Stat. 132; Act of Feb. 24, 1807, ch. 16, § 5, 2 Stat. 420; Act of Mar. 3, 1837, ch. 34, § 1, 5 Stat. 176; Circuit Judges Act of 1869, ch. 22, 16 Stat. 44; Act of March 3, 1891, ch. 517, 26 Stat. 826. *See also* ArtIII.S1.8.3 Supreme Court and Congress; ArtIII.S1.8.4 Establishment of Inferior Federal Courts; ArtIII.S1.8.5 Congressional Power to Abolish Federal Courts.

[1] U.S. Const. art. III, § 1.

[2] U.S. Const. art. I, § 3, cl. 6.

[3] Act of September 24, 1789, 1 Stat. 73. For additional discussion of the Act and its working and amendments, see Frankfurter & Landis, The Business of the Supreme Court (1928); Charles Warren, *New Light on the History of the Federal Judicial Act of 1789*, 37 Harv. L. Rev. 49 (1923); *see also* Julius Goebel, Antecedents and Beginnings to 1801, History of the Supreme Court of the United States (1971).

[4] Act of September 24, 1789, 1 Stat. 73, § 1.

statute did not eliminate an occupied seat on the Court; instead, it provided that the change would take effect "after the next vacancy."[5] Congress repealed the 1801 law before any vacancy occurred, leaving the size of the Court at six Justices.[6]

In the early years of the Republic, Supreme Court Justices were required to "ride circuit," spending part of their time hearing Supreme Court cases in the capital and part of each year traveling to hear cases in the lower federal circuit courts.[7] For a time during the 1800s, the number of Supreme Court Justices tracked the number of judicial circuits, facilitating the division of circuit-riding duties.[8] At its largest, during the Civil War, the Court had ten Justices, with the addition of the tenth seat on the Court coinciding with the establishment of the Tenth Circuit.[9] In 1866, Congress reduced the size of the Court to seven Justices, a change widely viewed as one of the Reconstruction Congress's restrictions on President Andrew Johnson.[10] In 1869, under a new presidential administration, Congress expanded the Court to include nine Justices.[11] The 1869 legislation was the last time Congress changed the size of the Supreme Court.

A notable unsuccessful attempt to enlarge the Court occurred in 1937, when President Franklin Delano Roosevelt's Administration proposed court expansion legislation that many regarded as an effort to make the Court more favorable to President Roosevelt's New Deal policies.[12] Congress declined to act on the proposal, with the Senate Judiciary Committee expressing concerns that it impermissibly infringed on the principle of judicial independence enshrined in Article III of the Constitution.[13] Proposals related to Supreme Court expansion also emerged following the death of Justice Ruth Bader Ginsburg and the confirmation of Justice Amy Coney Barrett in the weeks leading up to the 2020 presidential election.[14] While no provision of the Constitution expressly prohibits legislative changes to the size of the Supreme Court, and Congress has changed the size of the Court multiple times in the past, some commentators debated whether the proposals were inconsistent with constitutional norms. The proposals were not enacted, and the Supreme Court has had no occasion to consider their constitutionality.

Proposals have been made at various times to organize the Court into sections or divisions. No authoritative judicial analysis of those proposals is available, but Chief Justice Charles

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[5] Judiciary Act of 1801, ch. 4, § 3, 2 Stat. 89, 89.

[6] Act of Mar. 8, 1802, ch. 8, § 1, 2 Stat. 132.

[7] The Supreme Court rejected a constitutional challenge to circuit riding in *Stuart v. Laird,* 5 U.S. (1 Cr.) 299 (1803). A party challenging the practice argued that Supreme Court justices "have no right to sit as circuit judges, not being appointed as such, or in other words, that they ought to have distinct commissions for that purpose." The Court noted that the objection was "of recent date," and could not overcome "practice and acquiescence . . . for a period of several years, commencing with the organization of the judicial system," which yielded an "irresistible answer" that circuit riding was constitutional. *Id.* at 309.

[8] *See, e.g.*, Act of Feb. 24, 1807, ch. 16, § 5, 2 Stat. 420 (creating the Seventh Circuit and adding a seventh seat to the Supreme Court); Act of Mar. 3, 1837, ch. 34, § 1, 5 Stat. 176 (creating the Eighth and Ninth Circuits and increasing the size of the Supreme Court to nine Justices).

[9] Act of Mar. 3, 1863, ch. 100, 12 Stat. 794.

[10] Act of July 23, 1866, ch. 210, 14 Stat. 209. Like the 1801 legislation, the 1866 law provided that the Court would decrease in size as vacancies arose rather than eliminating any occupied seats on the bench. The number of Justices did not fall below eight before the end of Johnson's term. The 1866 legislation decoupled the number of judicial circuits from the number of Supreme Court Justices, and since that time there have usually been fewer seats on the Court than judicial circuits.

[11] Act of April 10, 1869, ch. 22, 16 Stat. 44.

[12] Judicial Procedures Reform Bill of 1937, S. 1392 (75th Cong. 1937).

[13] Reorganization of the Federal Judiciary, S. Rep. No. 75–711, at 20–23 (1937). The Roosevelt Administration eventually abandoned the plan after the Supreme Court began to vote to uphold New Deal legislation. *See* West Coast Hotel Co. v. Parrish, 300 U.S. 379 (1937).

[14] *See, e.g.*, Judiciary Act of 2021, S. 1141, H.R. 2584 (117th Cong. 2021).

Evans Hughes, in a letter to Senator Burton Wheeler in 1937, expressed doubts concerning the validity of such a device and stated that "the Constitution does not appear to authorize two or more Supreme Courts functioning in effect as separate courts."[15] Other proposals would alter the size of the Court while also changing the Court's structure or composition, for example by seeking to impose partisan balance on the Court.[16] As with the foregoing proposals, the Supreme Court has not considered the constitutionality of these proposals.

In addition to setting the size of the Supreme Court, Congress also determines the time and place of the Court's sessions. Congress once exercised that power to change the Court's term to forestall a constitutional attack on the repeal of the Judiciary Act of 1801, with the result that the Court did not convene for fourteen months.[17] Congress also has significant authority to determine what cases the Court has jurisdiction to hear. The Constitution grants the Supreme Court original jurisdiction over the relatively narrow categories of "Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party,"[18] and the Court has held that its jurisdiction over such cases flows directly from the Constitution.[19] In "all the other Cases" subject to federal jurisdiction, Article III grants the Court "appellate Jurisdiction . . . with such Exceptions, and under such Regulations as the Congress shall make."[20] Supreme Court decisions establish that the Exceptions Clause grants Congress broad power to regulate the Court's appellate jurisdiction.[21]

ArtIII.S1.8.4 Establishment of Inferior Federal Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

By vesting judicial power in "such inferior Courts as the Congress may from time to time ordain and establish," the Framers allowed Congress to decide whether to establish lower federal courts.[1] Because Congress has the authority to decide whether the lower federal courts should exist, the legislature is also understood to enjoy broad power to structure the lower courts, make procedural rules for them, and regulate their jurisdiction.[2]

From the beginning, Congress has answered the question of whether there should be inferior federal courts in the affirmative. The first Congress exercised its discretion to create

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[15] Reorganization of the Judiciary: Hearings on S. 1392 Before the Senate Judiciary Committee, 75th Cong., 1st Sess. (1937), pt. 3, 491. For earlier proposals to have the Court sit in divisions, *see* Frankfurter & Landis, *supra* note 3, at 74–85.

[16] *See* Eric J. Segall, *Eight Justices Are Enough: A Proposal To Improve The United States Supreme Court*, 45 Pepp. L. Rev. 547 (2018); Ganesh Sitaraman and Daniel Epps, *How to Save the Supreme Court*, 129 Yale L. J. 148 (2019).

[17] 1 Charles Warren, The Supreme Court in United States History 222–224 (rev. ed. 1926).

[18] U.S. Const. art III, § 2, cl. 2.

[19] *See* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[20] U.S. Const. art III, § 2, cl. 2.

[21] *See* ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[1] U.S. Const. art. III, § 1; *see also* U.S. Const. art. I, § 8, cl. 9 (authorizing Congress, in its discretion, to "constitute Tribunals inferior to the [S]upreme Court."); 1 The Records of the Federal Convention of 1787, at 125 (Max Farrand ed., 1911) (observation of James Wilson and James Madison "that there was a distinction between establishing such [inferior] tribunals absolutely, and giving a discretion to the Legislature to establish or not establish them").

[2] *See, e.g.*, ArtIII.S1.4.2 Inherent Powers Over Judicial Procedure; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

lower federal courts in the Judiciary Act of 1789, the first legislation related to the Federal Judiciary.[3] The 1789 Act created thirteen judicial districts, each of which had one district judge.[4] Single judge, trial-level district courts were to hold four sessions per year in each district. The Act further divided the country into three judicial circuits. It established "circuit courts," which were three-judge panels comprised of one district judge and two Supreme Court Justices. One noteworthy feature of the new Judiciary was that Supreme Court Justices were required to "ride circuit" and travel to the districts within their assigned circuits to hear cases—a burdensome requirement, given the transportation technology of the eighteenth and nineteenth centuries, particularly for Justices who were old or unhealthy or were assigned to outlying circuits.[5]

As the Nation grew, the Federal Judiciary also expanded, with each new state receiving a judicial district.[6] Congress reorganized the Federal Judiciary into six judicial circuits in 1801,[7] and thereafter periodically added new circuits to encompass new states.[8] In 1869, Congress enacted legislation creating circuit court judgeships.[9] The new circuit court judges presided over cases within their circuits, limiting the need for Supreme Court Justices to ride circuit. Then, in 1891, Congress created intermediate appellate courts, known as the United States Courts of Appeals, abolishing the circuit courts and removing any requirement the Supreme Court Justices ride circuit.[10] Since then, the federal judicial system has consisted of trial-level district courts with original jurisdiction over most federal cases, intermediate appellate courts, and the Supreme Court.

ArtIII.S1.8.5 Congressional Power to Abolish Federal Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Constitution provides that the judicial power shall be vested, at least in part, in "one supreme Court."[1] Thus, although Congress possesses substantial authority to structure the Supreme Court,[2] Congress cannot abolish the high court.

With respect to the lower federal courts, the constitutional authorization for Congress to "from time to time ordain and establish" inferior courts may imply that Congress can alter the

[3] 1 Stat. 73.

[4] The thirteen districts included one for each state that had ratified the Constitution at the time the Judiciary Act of 1789 was enacted, plus districts for Maine and Kentucky, which were then parts of Massachusetts and Virginia, respectively. *Id.*

[5] *See, e.g.*, Joshua Glick, Comment, *On the Road: The Supreme Court and the History of Circuit Riding*, 24 Cardozo L. Rev. 1753 (2003).

[6] Some states were eventually divided into multiple judicial districts, and some districts were given more than one district judge. *See, e.g.*, 6 Cong. Ch. 4 (Feb. 13, 1801); 12 Cong. Ch. 71 (Apr. 29, 1812).

[7] Judiciary Act of 1801, ch. 4, § 3, 2 Stat. 89. The Judiciary Act of 1801 was repealed in 1802, Act of Mar. 8, 1802, ch. 8, § 1, 2 Stat. 132, and soon thereafter Congress reorganized the judiciary into six different circuits, Act of Apr. 29, 1802, ch. 31, §§ 4, 5, 2 Stat. 156, 157–58.

[8] *See, e.g.*, Act of Feb. 24, 1807, ch. 16, § 5, 2 Stat. 420; Act of Mar. 3, 1837, ch. 34, § 1, 5 Stat. 176.

[9] Circuit Judges Act of 1869, ch. 22, 16 Stat. 44.

[10] Act of March 3, 1891, 26 Stat. 826.

[1] U.S. Const. art. III, § 1.

[2] *See* ArtIII.S1.8.3 Supreme Court and Congress.

system it establishes, including by eliminating exiting federal courts.[3] Moreover, having left to Congress the decision whether to establish lower federal courts,[4] it would be anomalous for the Constitution to provide that, once a court was established, Congress could never eliminate it. Historical practice suggests that Congress may abolish lower federal courts, though the Constitution may limit its ability to unseat current federal judges in doing so.

The Constitution provides that federal judges "shall hold their Offices during good Behaviour" and shall not have their compensation decreased while in office.[5] The Supreme Court has interpreted the Good Behavior Clause to grant Article III judges life tenure, unless they resign voluntarily or are impeached.[6] Thus, if Congress elects to eliminate an existing Article III court, it may raise the question of what should happen to the judges on that court.[7]

The first instance of Congress eliminating lower federal courts did not provide a clear answer to that question. The Judiciary Act of February 13, 1801, passed in the closing weeks of John Adams's presidency, made major structural changes to the federal courts.[8] Among other things, the act reorganized the existing three judicial circuits into six circuits and established six circuit courts consisting of three circuit judges each. President Adams appointed judges to many of the newly created seats, and those so-called "Midnight Judges" were confirmed by the Senate. However, in 1802, following a change in control of both the Executive and Legislative Branches, Congress repealed the Judiciary Act of 1801.[9] No provision was made for the displaced judges, apparently under the theory that if there were no courts there could be no judges to sit on them.[10]

Congress enacted legislation to change the Court's term to forestall a constitutional attack on the repeal of the Judiciary Act of 1801, with the result that the Court did not convene for fourteen months.[11] Once the Court reconvened, it rejected a challenge to the repeal in the 1803 case *Stuart v. Laird*.[12] That case involved a judgment of the U.S. court for the fourth circuit in the eastern district of Virginia, which was created by the 1801 Act and then abolished by the 1802 Act. A challenger argued that the judgment was void because the court that had issued it no longer existed. The Supreme Court disagreed, holding that Congress has "constitutional authority to establish from time to time such inferior tribunals as they may think proper; and to transfer a cause from one such tribunal to another," and that the present case involved "nothing more than the removal of the suit" from the defunct court to a new one.[13] The *Stuart* Court did not directly address the issue of the displaced judges.[14]

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[3] U.S. Const. art. III, § 1.

[4] *See* ArtIII.S1.8.2 Historical Background on Establishment of Article III Courts.

[5] U.S. Const. art. III, § 1.

[6] For additional discussion of the Good Behavior Clause, see ArtIII.S1.10.2.1 Overview of Good Behavior Clause.

[7] In contrast to Article III judges, judges on Article I courts do not enjoy constitutionally mandated life tenure, so the elimination an Article I court does not raise this issue. *See* ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts.

[8] Judiciary Act of 1801, ch. 4, § 3, 2 Stat. 89.

[9] Act of Mar. 8, 1802, ch. 8, § 1, 2 Stat. 132.

[10] This was the theory of John Taylor of Caroline, upon whom the Jeffersonians in Congress relied. W. Carpenter, Judicial Tenure in the United States 63–64 (1918). For full discussion of the controversy, see *id.* at 58–78.

[11] 1 Charles Warren, The Supreme Court in United States History 222–224 (rev. ed. 1926).

[12] 5 U.S. (1 Cr.) 299 (1803).

[13] *Id.* at 309.

[14] Chief Justice John Marshall recused himself from the case and later expressed skepticism about the decision, noting ironically in one letter "the memorable distinction as to tenure of office, between removing the Judge from the office, and removing the office from the Judge." Letter from Chief Justice Marshall to Henry Clay (Dec. 22, 1823), *reprinted in* Ruth Wedgwood, *Cousin Humphrey*, 14 Const. Comment 247, 267–69 (1997). For another early example of

On subsequent occasions when Congress eliminated Article III courts, the legislation provided for judges from the abolished courts to continue to serve on other Article III courts. In 1891, Congress enacted legislation creating new intermediate appellate courts and eliminating the then-existing federal circuit courts.[15] The 1891 Act authorized sitting circuit judges, who had previously heard cases on the circuit courts, to hear cases on the new appellate courts.[16] Congress again exercised its power to abolish a federal court in 1913, eliminating the short-lived Commerce Court.[17] The 1913 legislation provided for redistribution of the Commerce Court judges among the federal appeals courts.[18] In 1982, Congress enacted legislation abolishing the Article III Court of Claims and U.S. Court of Customs and Patent Appeals, instead establishing the Article I Court of Federal Claims and the Article III U.S. Court of Appeals for the Federal Circuit.[19] The statute provided for judges from the eliminated courts to serve instead on the Federal Circuit.[20]

ArtIII.S1.8.6 Courts of Specialized Jurisdiction and Congress

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Pursuant to its power to "ordain and establish" inferior federal courts, Congress has periodically created courts under Article III to exercise specialized jurisdiction over limited categories of cases. Those tribunals are like other Article III courts in that they exercise "the judicial power of the United States," and only that power.[1] In addition, judges on such courts must be appointed by the President and confirmed by the Senate, must hold office during good behavior subject to removal only by impeachment, and may not have their compensation diminished during their continuance in office.[2] While judges on specialized courts must enjoy life tenure on the federal bench during good behavior, like all Article III judges, judges holding lifetime appointments to the U.S. district courts or courts of appeals may serve for limited terms on courts of specialized jurisdiction.[3]

Several Article III courts of specialized jurisdiction are no longer in operation, either because they were established for a limited time or because they were deemed not to have

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legislation abolishing federal courts, see Act of March 3, 1863, 12 Stat. 762 (eliminating the then-existing circuit court, district court, and criminal court of the District of Columbia without providing for continued service by the sitting judges).

[15] Act of March 3, 1891, 26 Stat. 826.

[16] *Id.* § 3.

[17] The Court was created by the Act of June 18, 1910, 36 Stat. 539, and repealed by the Act of October 22, 1913, 38 Stat. 208, 219.

[18] 38 Stat. 208, 219.

[19] *See* Federal Courts Improvement Act of 1982, Pub. L. No. 97–164, Section 105(a), §§171–77, 96 Stat. 25, 27–28; *see also* 28 U.S.C. § 171(a) ("The court [of Federal Claims] is declared to be a court established under article I of the Constitution of the United States.").

[20] 96 Stat. 50.

[1] U.S. CONST. art. III, § 1

[2] *Id.*; *see also* ArtIII.S1.10.2.1 Overview of Good Behavior Clause.

[3] *See, e.g.*, Pub. L. No. 95–511, 92 Stat. 1788, 50 U.S.C. § 1803 (allowing for designation of district court judges to serve nonrenewable seven-year terms on the Foreign Intelligence Surveillance Act Court); 8 U.S.C. §1532(a) (allowing for designation of district court judges to serve five-year terms on the U.S. Alien Terrorist Removal Court).

fulfilled their purposes. An example of the latter was the Commerce Court created by the Mann-Elkins Act of 1910,[4] which was given exclusive jurisdiction to enforce certain orders of the Interstate Commerce Commission.[5] Another court of specialized jurisdiction was the Emergency Court of Appeals established by the Emergency Price Control Act of January 30, 1942.[6] The Emergency Court of Appeals was established during World War II and was designed to operate temporarily to adjudicate matters related to wage and price controls. Composed of selected sitting judges of the United States district courts and circuit courts of appeal, the court was vested with the powers of a district court and granted "exclusive jurisdiction to set aside such regulation, order, or price schedule, in whole or in part, to dismiss the complaint, or to remand the proceeding."[7] Congress created another specialized court through the Ethics in Government Act.[8] That court, a "Special Division" of the U.S. Court of Appeals for the District of Columbia, was charged with appointing an independent counsel to investigate and prosecute charges of illegality in the Executive Branch, upon the request of the Attorney General. It also had certain supervisory powers over the independent counsel.[9]

Perhaps the most prominent modern example of a specialized Article III court is the U.S. Court of Appeals for the Federal Circuit, established in 1982.[10] In many respects, the Federal Circuit resembles the geographic circuit courts of appeals; however, rather than hearing appeals from district courts in a certain area of the country, it has exclusive jurisdiction to hear appeals from the United States Court of Federal Claims, the Federal Merit System Protection Board, the Court of International Trade, the Patent Office in patent and trademark cases, and in various contract and tort cases. One of those bodies, the Court of International Trade, is also an Article III specialty court.[11] The Judicial Panel on Multidistrict Litigation, staffed by federal judges from other courts, is another Article III court of specialized jurisdiction authorized to transfer related civil actions pending in different judicial districts to a single district for trial.[12]

To facilitate the gathering of foreign intelligence information through electronic surveillance, search and seizure and other means, Congress authorized a specialized court in

[4] Ch. 309, 36 Stat. 539.

[5] The Commerce Court operated for less than three years before Congress abolished it in 1913. *See* ArtIII.S1.8.5 Congressional Power to Abolish Federal Courts.

[6] 56 Stat. 23, §§ 31–33.

[7] 56 Stat. 31. The Supreme Court upheld the exclusive grant of jurisdiction to the court in Lockerty v. Philips, 319 U.S. 182 (1943). A similar court was created to be used in the enforcement of the economic controls imposed by President Richard Nixon in 1971. Pub. L. No. 92–210, 85 Stat. 743, 211(b). Although the controls ended in 1974, 12 U.S.C. § 1904 note, Congress continued the Temporary Emergency Court of Appeals and gave it new jurisdiction. Emergency Petroleum Allocation Act of 1973, Pub. L. No. 93–159, 87 Stat. 633, 15 U.S.C. § 754 (incorporating judicial review provisions of the Economic Stabilization Act). The Court was abolished, effective March 29, 1993, by Pub. L. No. 102–572, 106 Stat. 4506. Another similar specialized court was created by Section 209 of the Regional Rail Reorganization Act, Pub. L. No. 93–226, 87 Stat. 999, 45 U.S.C. § 719, to review the final system plan under the Act. Regional Rail Reorganization Act Cases (Blanchette v. Connecticut Gen. Ins. Corp.), 419 U.S. 102 (1974).

[8] Ethics in Government Act, Title VI, Pub. L. No. 95–521, 92 Stat. 1867 (codified as amended at 28 U.S.C. §§ 591–599). The Chief Justice designated three regular federal judges to comprise the court. Only one of the judges could be from the D.C. Circuit. 28 U.S.C. § 49.

[9] The constitutionality of the Special Division was upheld in Morrison v. Olson, 487 U.S. 654, 670–85 (1988). Authority for the court expired in 1999 under a sunset provision. Pub. L. No. 103–270, § 2, 108 Stat. 732 (1994).

[10] Federal Courts Improvement Act of 1982, Pub. L. No. 97–164, 96 Stat. 37, 28 U.S.C. § 1295. Among other things, the Federal Circuit assumed the appellate jurisdiction of the Court of Claims and the Court of Customs and Patent Appeals. *See* ArtIII.S1.8.5 Congressional Power to Abolish Federal Courts.

[11] The Court of International Trade began life as the Board of General Appraisers, became the United States Customs Court in 1926, was declared an Article III court in 1956, and came to its present form and name in 1980. Pub. L. No. 96–417, 94 Stat. 1727.

[12] 28 U.S.C. § 1407.

the Foreign Intelligence Surveillance Act of 1978.[13] Known as the FISA Court, this tribunal is composed of seven regular federal judges appointed by the Chief Justice for limited terms and receives applications from the United States and to issue warrants for intelligence activities. Another specialized court, the Alien Terrorist Removal Court, was established to review ex parte applications from the Department of Justice to order removal of certain aliens from the United States based on classified information.[14]

ArtIII.S1.9 Congressional Power to Establish Non-Article III Courts

ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Article III of the Constitution provides that "the judicial Power of the United States, shall be vested in one Supreme Court, and in such inferior courts as the Congress may from time to time ordain and establish."[1] A literal interpretation of that language might require that every case that falls within the "judicial Power of the United States" must be adjudicated, if at all, in Article III courts staffed by judges with constitutional protections.[2] Notwithstanding the foregoing text, however, Congress has assigned the authority to adjudicate a large swath of cases that would seemingly fall within the federal judicial power to non-Article III tribunals—forums with judicial officers who do not enjoy Article III protections. Those tribunals are often called "Article I courts" or "legislative courts," because they are created by Congress pursuant to its general legislative powers. They include specialized stand-alone courts, administrative agencies, and magistrate judges who serve under Article III judges.

Congress has periodically created Article I courts since the early years of the Republic.[3] Over the years, the Supreme Court has recognized certain limits on which matters may be heard by Article I courts instead of Article III courts. The case law in this area can be difficult to parse,[4] but generally identifies four key circumstances in which Congress may authorize

[13] Pub. L. No. 95–511, 92 Stat. 1788, 50 U.S.C. § 1803. The Foreign Intelligence Surveillance Act of 1978 also established an appellate court called the Foreign Intelligence Surveillance Court of Review, which reviews certain FISA Court orders. *See id.* § 1803(b).

[14] 8 U.S.C. §1532(a). The U.S. Alien Terrorist Removal Court has yet to conduct any proceedings.

[1] U.S. CONST. art III, § 1.

[2] Article III judges hold their jobs during good behavior, a provision that has been interpreted to grant judges life tenure unless they resign voluntarily or are impeached. *See* ArtIII.S1.10.2.1 Overview of Good Behavior Clause. Article III judges also may not have their compensation reduced while on the bench. *See* ArtIII.S1.10.3.1 Historical Background on Compensation Clause. In addition, Article III judges must be appointed by the President with the advice and consent of the Senate. *See* ArtII.S2.C2.3.5 Appointments of Justices to the Supreme Court. For discussion of Congress's authority to establish Article III courts, see ArtIII.S1.8.1 Overview of Establishment of Article III Courts.

[3] *See, e.g.*, Act of September 29, 1789, ch. 24, 1 Stat. 95 (authorizing the executive branch to resolve disputes concerning military pensions); Act of September 1, 1789, ch. 11, 1 Stat. 55 (same for federal customs laws); American Ins. Co. v. Canter, 26 U.S. (1 Pet.) 511 (1828) (upholding grant of admiralty jurisdiction to Florida territorial court).

[4] *See, e.g.*, Northern Pipeline Const. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 91 (1982) (Rehnquist, J., concurring) (suggesting that another member of the panel believed the Court's cases on Article I courts to be "landmarks on a judicial 'darkling plain' where ignorant armies have clashed by night").

non-Article III courts to hear cases: (1) District of Columbia and territorial courts,[5] (2) military courts,[6] (3) courts hearing cases involving "public rights," which often arise between the government and private parties,[7] and (4) adjuncts to Article III courts.[8] Additionally, in some instances, non-Article III courts can hear certain matters based on the consent of the litigants.[9] The following essays first discuss Congress's authority to structure non-Article III courts and the Supreme Court's power to review such courts' decisions.[10] They then survey Supreme Court case law considering the different types of cases that may proceed in Article I courts.

ArtIII.S1.9.2 Congressional Power to Structure Legislative Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The issue of what matters Congress can entrust to Article I courts may raise important constitutional questions. The Supreme Court first distinguished between constitutional courts and legislative courts in its 1828 decision in *American Ins. Co. v. Canter*.[1] Justice Byron White later read *Canter* as raising the "simple" proposition that "[c]onstitutional courts exercise the judicial power described in Art. III of the Constitution; legislative courts do not and cannot."[2] A two-fold difficulty attended that proposition, however. First, the territorial court in *Canter* had issued a decision in admiralty, a subject specifically included within the grant of federal judicial power in Article III, raising the question of how a non-Article III court could receive and exercise that power.[3] Second, if territorial courts could not exercise Article III power, how could their decisions be subject to appellate review in the Supreme Court, or in any Article III court, which could exercise only Article III judicial power? Subsequent Supreme Court cases have clarified that Congress may in some cases allow non-Article III tribunals to hear matters that would fall within the scope of the federal judicial power, subject to appellate review by Article III courts.[4]

While Article I courts' jurisdiction may raise vexing legal questions, in other ways Congress enjoys ample authority to structure those courts. First, in creating legislative courts,

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[5] *See* ArtIII.S1.9.4 District of Columbia and Territorial Courts.

[6] *See* ArtIII.S1.9.5 Non-Article III Military Courts.

[7] *See* ArtIII.S1.9.6 Legislative Courts Adjudicating Public Rights.

[8] *See* ArtIII.S1.9.7 Article I Adjuncts to Article III Courts.

[9] *See* ArtIII.S1.9.9 Consent to Article I Court Jurisdiction.

[10] *See* ArtIII.S1.9.2 Congressional Power to Structure Legislative Courts.

[1] 26 U.S. (1 Pet.) 511 (1828).

[2] Northern Pipeline Constr. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 106 (1982) (White, J., dissenting).

[3] U.S. CONST. art III, § 2.

[4] Years after *Canter*, in *Glidden Co. v. Zdanok*, Justice John Harlan asserted that Chief Justice John Marshall in *Canter* "did not mean to imply that the case heard by the Key West court was not one of admiralty jurisdiction otherwise properly justiciable in a Federal District Court sitting in one of the States. . . . All the Chief Justice meant . . . is that in the territories cases and controversies falling within the enumeration of Article III may be heard and decided in courts constituted without regard to the limitations of that article." 370 U.S. 530, 544–45 (1962). For further discussion of when Congress can confer certain matters on Article I courts, see ArtIII.S1.9.4 District of Columbia and Territorial Courts; ArtIII.S1.9.5 Non-Article III Military Courts; ArtIII.S1.9.6 Legislative Courts Adjudicating Public Rights; ArtIII.S1.9.7 Article I Adjuncts to Article III Courts; ArtIII.S1.9.8 Bankruptcy Courts as Adjuncts to Article III Courts; ArtIII.S1.9.9 Consent to Article I Court Jurisdiction.

Congress is not limited by the provisions of Article III requiring that federal judges hold their offices during good behavior and prohibiting Congress from reducing their compensation.[5] Congress may limit tenure on an Article I tribunal to a term of years, as it has done in acts creating magistrate judgeships and the Tax Court.[6] It may also subject the judges of legislative courts to removal by the President[7] or reduce judges' salaries during their terms.[8]

In addition, Congress can vest in Article I courts nonjudicial functions of a legislative or advisory nature, meaning those courts may make rules or issue non-binding decisions.[9] And, while Congress cannot disturb final judgment of Article III courts, it can deprive legislative court judgments of finality.[10] Thus, in *Gordon v. United States*, the Court did not object to the power of the Secretary of the Treasury and Congress to revise or suspend the early judgments of the Court of Claims.[11] Likewise, in *United States v. Ferreira*, the Court sustained an act conferring on the Florida territorial court the non-judicial power to examine claims arising under the treaty with Spain and report its findings to the Secretary of the Treasury for subsequent action.[12]

ArtIII.S1.9.3 Supreme Court Review of Legislative Court Decisions

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

In *American Ins. Co. v. Canter*, the Supreme Court suggested that constitutional courts exercise the judicial power described in Article III of the Constitution, while legislative courts do not and cannot.[1] That proposition might be understood to mean that the judgments of legislative courts could never be reviewed by the Supreme Court or another Article III court.[2] However, the Court tacitly rejected that view in *De Groot v. United States*, taking jurisdiction to review a final judgment of the Court of Claims.[3]

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[5] *See* U.S. Const. art III, § 1; ArtIII.S1.10.2.1 Overview of Good Behavior Clause; ArtIII.S1.10.3.1 Historical Background on Compensation Clause.

[6] 28 U.S.C. § 631(e) ("The appointment of any individual as a full-time magistrate judge shall be for a term of eight years, and the appointment of any individuals as a part-time magistrate judge shall be for a term of four years[.]"); 26 U.S.C. § 7443 ("The term of office of any judge of the Tax Court shall expire 15 years after he takes office.").

[7] McAllister v. United States, 141 U.S. 174 (1891).

[8] United States v. Fisher, 109 U.S. 143 (1883); Williams v. United States, 289 U.S. 553 (1933).

[9] For discussion of the prohibition on Article III courts issuing advisory opinions, see ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[10] For discussion of the finality of judgments of Article III courts, see ArtIII.S1.5.2 Reopening Final Judicial Decisions.

[11] 69 U.S. (2 Wall.) 561 (1865).

[12] 54 U.S. (13 How.) 40 (1852).

[1] Northern Pipeline Constr. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 106 (1982) (White, J., dissenting) (discussing *Canter*, 26 U.S. (1 Pet.) 511 (1828)).

[2] Indeed, Chief Justice Roger B. Taney planned to express this view in *Gordon v. United States,* 69 U.S. (2 Wall.) 561 (1865). The opinion in *Gordon* was originally prepared by Chief Justice Roger B. Taney, but, following his death and reargument of the case, the Court issued the cited opinion. The Court later directed the publishing of Chief Justice Roger B. Taney's original opinion at 117 U.S. 697. *See also* United States v. Jones, 119 U.S. 477, 478 (1886) (noting that the official report of Chief Justice Samuel Chase's *Gordon* opinion and the Court's own record showed differences).

[3] 72 U.S. (5 Wall.) 419 (1867). *See also* United States v. Jones, 119 U.S. 477 (1886).

Since the decision in *De Groot*, the authority of the Court to exercise appellate jurisdiction over legislative courts has turned not upon the nature or status of such courts but rather upon the nature of the proceeding before the lower court and the finality of its judgment. The Supreme Court has declined to review the administrative proceedings of legislative courts or entertain appeals from the advisory or interlocutory decrees of such a body.[4] But, in proceedings before a legislative court that are judicial in nature, subject to final judgment, and involve the performance of judicial functions and therefore the exercise of judicial power, the Court has accepted appellate jurisdiction.[5]

ArtIII.S1.9.4 District of Columbia and Territorial Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Article IV of the Constitution empowers Congress to "make all needful Rules and Regulations respecting the territory or other Property belonging to the United States."[1] Congress has periodically invoked that authority to establish courts in U.S. territories. The Supreme Court's first opportunity to address the use of territorial courts came in the 1828 case *Florida in American Insurance Co. v. Canter*.[2] In *Canter*, the Court assessed the constitutionality of courts established in the territory of Florida. Challengers to the territorial court's jurisdiction argued that it could not properly hear cases arising under admiralty law, which instead must be heard in Article III courts.[3] Chief Justice John Marshall, writing for the Court, disagreed, explaining that territorial courts "are not constitutional courts, in which the judicial power conferred by the constitution on the general government, can be deposited. They are incapable of receiving it." Instead, the Florida courts were "created in virtue of the general right of sovereignty which exists in the government, or in virtue of that clause which enables Congress to make all needful rules and regulations, respecting the territory belonging to the United States." Thus, he held, the courts' jurisdiction "is conferred by Congress, in the execution of those general powers which that body possesses over the territories of the United States."[4] The Court noted that while, in the states, admiralty jurisdiction can be exercised only in courts established pursuant to Article III, the same limitation does not apply to the territorial courts, for "[i]n legislating for them Congress exercises the combined powers of the general, and of a state government."[5] Florida's territorial courts were abolished when the

[4] *E.g.*, Postum Cereal Co. v. California Fig Nut Co., 272 U.S. 693 (1927); Federal Radio Comm'n v. General Elec. Co., 281 U.S. 464 (1930); D. C. Court of Appeals v. Feldman, 460 U.S. 462 (1983). *See* Glidden Co. v. Zdanok, 370 U.S. 530, 576, 577–579 (1962).

[5] Pope v. United States, 323 U.S. 1, 14 (1944); D.C. Court of Appeals v. Feldman, 460 U.S. 462 (1983); Ortiz v. United States, 138 S. Ct. 2165 (2018).

[1] U.S. Const. art. IV, § 3, cl. 2.

[2] 26 U.S. (1 Pet.) 511 (1828).

[3] Judges of these courts did not enjoy life tenure, but instead sat for four-year terms. *Id.* at 512.

[4] *Id.* at 546.

[5] *Id.*

territory became a state. Currently, the district courts in the federal territories of Guam,[6] the Virgin Islands,[7] and the Northern Mariana Islands[8] are legislative courts.[9]

A similar constitutional authority allows Congress to establish courts in the District of Columbia. Under Article I, Congress has the authority to "exercise exclusive Legislation in all Cases whatsoever" over the District of Columbia.[10] A series of early Supreme Court decisions treated the District of Columbia courts as legislative courts upon which Congress could impose nonjudicial functions. In *Butterworth v. United States ex rel. Hoe*, the Court sustained an act of Congress that conferred revisory powers upon the Supreme Court of the District of Columbia in patent appeals and made its decisions binding upon the Commissioner of Patents.[11] The Court later sustained the authority of Congress to vest revisory powers in the same court over rates fixed by a public utilities commission[12] and orders of the *Federal Radio Commission*.[13] Those rulings were based on the assumption, express or implied, that the courts of the District were legislative courts, created by Congress pursuant to its plenary power to govern the District of Columbia. Similarly, in dictum in *Ex parte Bakelite Corp.*, while reviewing the history and analyzing the nature of the legislative courts, the Court stated that the courts of the District were legislative courts.[14]

In the 1933 case *O'Donoghue v. United States*, the Court departed from its prior statements on the subject and held that the courts of the District of Columbia were constitutional courts exercising the judicial power of the United States.[15] Thus, the Court concluded, a federal law seeking to reduce judicial salaries could not apply to judges on the Supreme Court of the District of Columbia and the District of Columbia Court of Appeals. Having decided that the D.C. courts were Article III courts, the Supreme Court had to reconcile the fact that such courts performed nonjudicial functions with the rule that constitutional courts can exercise only the judicial power of the United States. The Court did so by holding that, in establishing courts for the District, Congress performs dual functions pursuant to two distinct powers: its power to constitute tribunals inferior to the Supreme Court, and its plenary and exclusive power to legislate for the District of Columbia. The Court held that Article III, Section 1, limits the latter power with respect to tenure and compensation but not with respect to vesting legislative and administrative powers in such courts. Subject to the guarantees of personal liberty in the Constitution, the Court concluded, "Congress has as much power to vest courts of the District with a variety of jurisdiction and powers as a state legislature has in conferring jurisdiction on its courts."[16]

At the time the Court decided *O'Donoghue*, the D.C. courts had both local jurisdiction over District matters, similar to that of state courts, and also federal jurisdiction equivalent to that of other inferior federal courts. In 1970, Congress replaced the previous D.C. court system with two sets of courts: federal courts created pursuant to Article III (the U.S. District Court for the District of Columbia and the U.S. Court of Appeals for the District of Columbia), and local

[6] 48 U.S.C. § 1424, 1424b.

[7] 48 U.S.C. § 1611, 1614.

[8] 48 U.S.C. § 1821.

[9] The federal district court in Puerto Rico is an Article III court. *See* 28 U.SC. § 119.

[10] U.S. Const. art. I, § 8, cl. 17.

[11] 112 U.S. 50 (1884).

[12] Keller v. Potomac Elec. Co., 261 U.S. 428 (1923).

[13] Federal Radio Comm'n v. General Elec. Co., 281 U.S. 464 (1930).

[14] 279 U.S. 438, 450–455 (1929).

[15] 289 U.S. 516, 551 (1933).

[16] *Id.* at 545.

courts similar to state and territorial courts, created pursuant to Article I (including the District of Columbia Court of Appeals).[17] In *Palmore v. United States*, a criminal defendant challenged the constitutionality of the District's Article I courts, arguing that charges under the D.C. criminal code amounted to a prosecution under federal law, and he was therefore entitled to consideration before an Article III court.[18] The Supreme Court rejected the argument, explaining that it was not necessary that every proceeding involving an act of Congress or a law made under its authority be conducted in an Article III court. State courts, after all, could hear cases involving federal law, as could territorial and military courts. Thus, "the requirements of Art. III, which are applicable where laws of national applicability and affairs of national concern are at stake, must in proper circumstances give way to accommodate plenary grants of power to Congress to legislate with respect to specialized areas having particularized needs and warranting distinctive treatment."[19]

ArtIII.S1.9.5 Non-Article III Military Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Article I grants Congress the authority "[t]o make Rules for the Government and Regulation of the land and naval forces."[1] In the 1858 case *Dynes v. Hoover*, the Supreme Court upheld the use of this authority to create military courts.[2] In that case, the Court observed that "Congress has the power to provide for the trial and punishment of the military and naval offences," and that power "is given without any connection between it and the 3d article of the Constitution defining the judicial power of the United States; indeed, . . . the two powers are entirely independent of each other."[3]

Although Congress has broad authority to create and implement military courts, the Supreme Court has set some substantive limits on those courts' jurisdiction. For instance, military courts cannot be used to try civilians,[4] including the spouses of military members.[5] Additionally, the Court has held that military courts have jurisdiction over members of the military only when they are still in service.[6] However, military courts are able to try non-service related crimes while the defendant is still in the service.[7] Currently, the U.S. Court of Appeals for the Armed Forces, an Article I court, sits at the apex of the military justice system.[8] Judges of that court sit for fifteen-year terms and can be removed by the President for

[17] Pub. L. No. 91–358, 84 Stat. 475, D.C. Code § 11–101.

[18] 411 U.S. 389 (1973).

[19] *Id.* at 407–08.

[1] U.S. CONST. art. I, § 8, cl. 14.

[2] 61 U.S. (20 How.) 65, 79 (1857).

[3] *Id.*

[4] *Ex parte* Milligan, 71 U.S. 2, 121–22 (1867).

[5] Reid v. Covert, 354 U.S. 1, 30 (1957); *see also* Kinsella v. United States *ex rel.* Singleton, 361 U.S. 234, 249 (1960).

[6] United States *ex rel.* Toth v. Quarles, 350 U.S. 11, 14–15 (1955). *But see* 10 U.S.C. § 802(a).

[7] Solorio v. United States, 483 U.S. 435, 450–51 (1987).

[8] 10 U.S.C. § 941.

neglect of duty, misconduct, or mental or physical disability. Another example of military courts are the military tribunals established by President George W. Bush by Executive Order shortly after the September 11, 2001, attacks.[9]

ArtIII.S1.9.6 Legislative Courts Adjudicating Public Rights

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Supreme Court has held that Article I courts can adjudicate cases involving "public rights"—cases that arise between a private actor and the government. The public rights theory can be traced back to the Court's 1855 ruling in *Murray's Lessee v. Hoboken Land & Improvement Co.*[1] In that case, Justice Joseph Story explained that, although Congress cannot withdraw from federal courts the jurisdiction to hear suits at common law, equity, or admiralty, "there are matters, involving public rights, which may be presented in such form that the judicial power is capable of acting on them, and which are susceptible of judicial determination, but which Congress may or may not bring within the cognizance of the courts of the United States, as it may deem proper."[2] In essence, the Court distinguished between matters that historically had been decided by courts and matters that arose between the government and others and had been historically resolved by executive or legislative acts. Thus, under *Murray's Lessee*, certain matters arising between the government and others that might be susceptible to judicial determination may also be referred to Article I courts. Congress does not have sole discretion to determine what matters fall within that class. In subsequent cases, the Court has held that matters susceptible of judicial determination, but not requiring it, include claims against the United States;[3] the disposal of public lands and claims arising therefrom;[4] questions concerning membership in Indian tribes;[5] and questions arising out of the administration of the customs and internal revenue laws.[6] Courts such as consular courts and military courts martial may be justified on similar grounds.[7]

The Supreme Court has offered several rationales for why public rights cases can be handled in Article I courts. The first is based on the doctrine of sovereign immunity and postulates that, because Congress need not allow suits against the government at all, the

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[9] Detention, Treatment, and Trial of Certain Non-Citizens in the War Against Terrorism, 66 Fed. Reg. 57, 833 (Nov. 13, 2001).

[1] 59 U.S. (18 How.) 272 (1855).

[2] *Id.* at 284.

[3] Gordon v. United States, 117 U.S. 697 (1865) (published 1885); McElrath v. United States, 102 U.S. 426 (1880); Williams v. United States, 289 U.S. 553 (1933). On the status of the then-existing Court of Claims, see Glidden Co. v. Zdanok, 370 U.S. 530 (1962).

[4] United States v. Coe, 155 U.S. 76 (1894) (Court of Private Land Claims).

[5] Wallace v. Adams, 204 U.S. 415 (1907); Stephens v. Cherokee Nation, 174 U.S. 445 (1899) (Choctaw and Chickasaw Citizenship Court).

[6] Old Colony Trust Co. v. Commissioner, 279 U.S. 716 (1929); *Ex parte* Bakelite Corp., 279 U.S. 438 (1929).

[7] *See In re* Ross, 140 U.S. 453 (1891) (consular courts in foreign countries). Military courts may, on the other hand, be a separate entity of the military having no connection to Article III. Dynes v. Hoover, 61 U.S. (20 How.) 65, 79 (1858). *But cf.* Ortiz v. United States, 138 S. Ct. 2165, 2168 (2018) (noting that the essential character of the military justice system is, "in a word, judicial"). For additional discussion of military courts, see ArtIII.S1.9.5 Non-Article III Military Courts.

legislature is free to attach conditions to the federal government being sued, including what type of forum the claims can be brought in.[8] The second major rationale is that, historically, these cases were conclusively determined by the Executive and Legislative Branches, "and that as a result there can be no constitutional objection to Congress's employing the less drastic expedient of committing their determination to a legislative court or an administrative agency."[9]

As a general matter, the Court has broadly defined public rights cases as those that arise "between the Government and persons subject to its authority in connection with the performance of the constitutional functions of the executive or legislative departments."[10] At the core of the public rights doctrine are cases involving claims for benefits against the government.[11] Private rights cases, by contrast, pertain to the "liability of one individual to another under the law as defined."[12] Beyond these general definitions, the Supreme Court has not articulated the exact parameters of the public rights doctrine. As Chief Justice John Roberts has noted, "our discussion of the public rights exception . . . has not been entirely consistent, and the exception has been the subject of some debate."[13] However, a series of Supreme Court cases have attempted to draw the line between public and private rights.

In 1932, in *Crowell v. Benson*, the Court approved an administrative scheme for evaluating maritime employee compensation claims, subject to judicial review, although the case involved a matter of private right.[14] The scheme was permissible, the Court said, because in cases arising out of congressional statutes, an administrative tribunal could make findings of fact and render an initial decision on legal and constitutional questions, as long as there was adequate review in a constitutional court.[15] The "essential attributes" of decisions must remain in an Article III court, but so long as they do, Congress may use administrative decisionmakers in those private rights cases that arise in the context of a comprehensive federal statutory scheme.[16]

In the 1982 case *Northern Pipeline Const. Co. v. Marathon Pipeline Co.*, the Court addressed whether Article I bankruptcy courts could adjudicate common law contract and tort claims.[17] Acknowledging that the "distinction between public and private rights has not been definitely explained" in the Court's precedents, Justice William J. Brennan, writing for a plurality of the Court, traced three historical exceptions to the literal command of Article III: territorial courts, military courts, and courts and agencies that adjudicate public rights.[18]

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[8] Northern Pipeline Constr. Co v. Marathon Pipe Line Co., 458 U.S. 50, 67 (1981)

[9] *Ex Parte* Bakelite, 279 U.S. 438, 451 (1929) ("The mode of determining [public rights cases] . . . is completely within congressional control. Congress may reserve to itself the power to decide, may delegate that power to executive officers, or may commit it to judicial tribunals."). Although Congress has generally employed some level of judicial review for public rights cases, it is generally accepted that this is not constitutionally required. *See id.* at 451; *Northern Pipeline*, 458 U.S. at 68 n.20; Crowell v. Benson, 285 U.S. 22, 50–51 (1932).

[10] *Crowell*, 285 U.S. at 50.

[11] For example, the U.S. Tax Court is an Article I court that resolves disputes between taxpayers and the government. Although judges of the Tax Court exercise the "judicial power" of the United States, its judges do not enjoy life tenure, but rather sit for fifteen-year terms. And, unlike Article III judges who are subject to removal only through impeachment, Tax Court judges can be removed by the President for "inefficiency, neglect of duty, or malfeasance in office[.]" 26 U.S.C. §§ 7441–7443.

[12] *Crowell*, 285 U.S. at 51.

[13] Stern v. Marshall, 131 S. Ct. 2594, 2611 (2011).

[14] 285 U.S. 22.

[15] *Id.* at 51–65.

[16] *Id.* at 50, 51, 58–63. For additional discussion of *Crowell*, see ArtIII.S1.9.7 Article I Adjuncts to Article III Courts.

[17] 458 U.S. 50 (1981).

[18] *Id.* at 69–70.

Disposing of the first two categories as clearly inapplicable, the plurality also rejected the public rights argument as the underlying case did not arise between government and a private party, but involved a state-created claim between two private parties.[19]

In two cases following *Northern Pipeline*, the Court rejected a bright line test for the distinction between public and private rights. It instead focused on substance—that is, on the extent to which a particular grant of jurisdiction to an Article I court threatened judicial integrity and separation of powers principles. First, in *Thomas v. Union Carbide Agricultural Products Co.*, the Court adopted a functional approach for determining when Congress may use non-Article III forums.[20] The statute in question created a system of binding arbitration, subject to limited judicial review, for determining the amount of compensation due to pesticide manufacturers whose data had been used by other manufacturers to register their products.[21] Justice Sandra Day O'Connor, writing for the majority, asserted that "substance rather than doctrinaire reliance on formal categories should inform application of Article III."[22] Because the arbitration scheme (1) was created by federal statute, (2) was a "pragmatic solution to the difficult problem of spreading [ ] costs," and (3) did not "preclude review of the arbitration proceeding by an Article III court," the Court found that it "did not threaten the independent role the Judiciary in our constitutional scheme."[23] Two years later, in *Commodity Futures Trading Commission (CFTC) v. Schor*, the Court reaffirmed *Thomas's* functional approach and held that the CFTC was empowered to hear common law counterclaims related to violations of the Commodities Exchange Act or CFTC regulations.[24]

In a subsequent case, *Granfinanciera, S.A. v. Nordberg*, the Court held that the distinction between public and private rights determined both whether a matter could be referred to a non-Article III tribunal and whether Congress could dispense with a civil jury trial.[25] *Granfinanciera* suggests that seemingly private causes of action between private parties will also be deemed public rights when Congress, acting for a valid legislative purpose pursuant to its Article I powers, fashions a cause of action that is analogous to a common law claim and integrates it so closely into a public regulatory scheme that it becomes a matter appropriate for agency resolution with limited involvement by the Article III Judiciary.[26]

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[19] *Id.* at 71

[20] 473 U.S. 568 (1984).

[21] *Id.* at 573–74.

[22] *Id.* at 587.

[23] *Id.* at 590.

[24] 478 U.S. 833, 857 (1986). In *Schor*, the Court described several non-determinative factors for assessing whether the adjudication of traditional Article III cases in a non-Article III forum threatens the institutional integrity of the judicial branch: (1) the "extent to which the 'essential attributes of judicial power' are reserved to Article III courts, and, conversely, the extent to which the non-Article III forum exercises the range of jurisdiction and powers normally vested only in Article III courts," (2) "the origins and importance of the right to be adjudicated"; and (3) "the concerns that drove Congress to depart from the requirements of Article III." *Id.* at 851.

[25] 492 U.S. 33, 51–55 (1989). While *Granfinanciera* was a Seventh Amendment jury-trial case, the decision is relevant to the Article III issue as well because, as the Court made clear, whether Congress can submit a legal issue to an Article I tribunal and whether it can dispense with a civil jury on that legal issue must be answered by the same analysis. *Id.* at 52–53 ("[T]he question whether the Seventh Amendment permits Congress to assign its adjudication to a tribunal that does not employ juries as factfinders requires the same answer as the question whether Article III allows Congress to assign adjudication of that cause of action to a non-Article III tribunal.") *See also* Oil States Energy Servs., LLC v. Greene's Energy Grp., LLC, 138 S. Ct. 1365, 1379 (2018) ("This Court's precedents establish that, when Congress properly assigns a matter to adjudication in a non-Article III tribunal, 'the Seventh Amendment poses no independent bar to the adjudication of that action by a nonjury factfinder.'" (quoting *Granfinanciera*, 492 U.S. at 53–54)).

[26] 492 U.S. at 52–54. The Court reiterated that the government need not be a party as a prerequisite to a matter being of public right. *Id.* at 54. Concurring, Justice Antonin Scalia argued that public rights historically were and

In the 2011 case *Stern v. Marshall*, the Court shifted away from the functionalism of *Thomas* and *Schor* and back towards the formalism of *Northern Pipeline*.[27] In *Stern*, the issue was whether a bankruptcy court could adjudicate a common law claim for fraudulent interference with a gift. In a 5-4 decision authored by Chief Justice John Roberts, the Court held that Article III prohibited the bankruptcy court's exercise of jurisdiction because the common law claim did not fall under the public rights exception. The Court acknowledged that *Thomas* and *Schor* had declined to limit the public rights exception to actions involving the government as a party, but it concluded that the Court had continued to limit the exception to claims deriving from a "federal regulatory scheme" or in which "an expert Government agency is deemed essential to a limited regulatory objective."[28] In rejecting applying the public rights exception to the fraudulent interference counterclaim, the Court observed that the claim was not one that could be "pursued only by grace of the other branches" or could have been "determined exclusively" by the Executive or Legislative Branches.[29] Additionally, the underlying claim did not "flow from a federal regulatory scheme" and was not limited to a "particularized area of law."[30] Because the counterclaim involved the "most prototypical exercise of judicial power," adjudication of a common law cause of action not created by federal law, the Court rejected the bankruptcy courts' exercise of jurisdiction over the counterclaim as a breach of Article III.[31]

Subsequently, in *Oil States Energy Services, LLC v. Greene's Energy Group, LLC*, the Court noted that it has not "definitively explained" the distinction between public and private rights, and its precedents applying the public-rights doctrine have "not been entirely consistent."[32] The Court observed, however, that its "precedents have given Congress significant latitude to assign adjudication of public rights to entities other than Article III courts."[33] In *Oil States*, the Court addressed whether inter partes review, a type of patent validity proceeding conducted by the U.S. Patent and Trademark Office (PTO), violates Article III. The Court held that such proceedings "fall[ ] squarely within the public-rights doctrine" and therefore could constitutionally be conducted by a non-Article III tribunal.[34] In so holding, the Court described the public-rights doctrine as "cover[ing] matters 'which arise between the Government and persons subject to its authority in connection with the performance of the constitutional functions of the executive or legislative departments.'"[35]

ArtIII.S1.9.7 Article I Adjuncts to Article III Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and*

should remain only those matters to which the Federal Government is a party. *Id.* at 65. *See also* Stern v. Marshall, 564 U.S. 462, 490–91 (2011) ("[W]hat makes a right 'public' rather than private is that the right is integrally related to particular Federal Government action").

[27] 564 U.S. 462.

[28] *Id.* at 490.

[29] *Id.* at 493.

[30] *Id.*

[31] *Id.* at 494.

[32] 138 S. Ct. 1365, 1373 (2018) (additional citations omitted).

[33] *Id.*

[34] *Id.*

[35] *Id.*

shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.

The Supreme Court has held that Congress may create non-Article III forums where "adjuncts" to Article III courts adjudicate federal questions.[1] An "adjunct" is an adjudicator—most commonly an administrative agency or a magistrate judge—that does not function as an independent court but instead acts as a subordinate to the federal courts. Adjuncts have become highly important in the modern era, handling many cases involving public benefits and assisting Article III judges with their heavy caseload.

Support for the adjunct theory can be traced to the 1932 case *Crowell v. Benson*.[2] *Crowell* involved a challenge to the Longshoreman's and Harbor Workers' Compensation Act, which required that claims for injuries sustained while working on the navigable waters of the United States be filed with the U.S. Employees' Compensation Commission.[3] That agency was to conduct fact-finding and make initial findings of law.[4] An employer appealed an award of damages by the Commission, claiming that the grant of jurisdiction to the Commission violated Article III. In upholding the act, the Supreme Court delineated the proper role of the use of adjuncts in relation to Article III courts. The Court observed that "there is no requirement that, in order to maintain the essential attributes of the judicial power, all determinations of fact in constitutional courts shall be made by judges."[5] Instead, an adjunct may make findings of fact and initial legal determinations, but questions of law must be subject to de novo review in an Article III court.[6] Questions of jurisdictional fact—that is, facts that pertain to the jurisdiction of the agency itself—and constitutional fact are also subject to a more searching review by a constitutional court.[7] In sum, *Crowell* instructs that for Article III courts to retain the "essential attributes of the judicial power," adjuncts must act as subordinates to the Article III courts and not as independent adjudicators.

The framework established in *Crowell* provided the blueprint for the modern administrative state, starting with the New Deal and expanding throughout the twentieth and twenty-first centuries.[8] Administrative agencies perform a host of functions including making policy, promulgating rules, and adjudicating questions arising under federal law.[9] Many disputes that come before federal agencies concern public rights cases, with a large share of cases concerning the right to various government entitlements. For instance, the Social Security Administration (SSA), a federal agency that administers various government benefits including old age and disability benefits, has a complex adjudication process for determining who is entitled to these benefits, including several tiers of administrative review and review by both a federal district court and a circuit court of appeal.[10] Judicial review of SSA decisions

[1] Subject to the limitations discussed below, Congress may assign matters to adjuncts even when one of the three historical exceptions allowing assignment of a matter to a non-Article III tribunal is not applicable.

[2] 285 U.S. 22 (1932).

[3] *Id.* at 36–37.

[4] *Id.* at 54.

[5] *Id.* at 51.

[6] *Id.*

[7] *Id.* at 54–57.

[8] *See* Richard H. Fallon, *Of Legislative Courts, Administrative Agencies, and Article III*, 101 Harv. L. Rev. 915, 925 (1988).

[9] *See* Paul M. Bator, *The Constitution as Architecture: Legislative and Administrative Courts Under Article III*, 65 Ind. L. J. 233, 264 (1990).

[10] 42 U.S.C. § 405(g) ("Any individual, after any final decision of the Commissioner of Social Security made after a hearing to which he was a party . . . may obtain a review of such decision by a civil action . . . brought in [a] district court of the United States. . . . The judgment of the court shall be final except that it shall be subject to review in the

closely follows the *Crowell* model: while factual findings made by an administrative law judge are subject to the highly deferential "substantial evidence" standard,[11] legal determinations "receive no deference" from either the district court or court of appeals.[12] While administrative law judges do not receive constitutionally protected life tenure or salary protection, there are statutory protections regarding their appointment, tenure, and compensation.

The second major subcategory of adjuncts is federal magistrate judges. In 1968, Congress enacted the Federal Magistrates Act, seeking to "reform the first echelon of the Federal Judiciary into an effective component of a modern scheme of justice by establishing a system of U.S. magistrates."[13] Magistrate judges are not appointed and confirmed like Article III judges and do not enjoy life tenure and salary protection. Instead, they are selected by district court judges and can be removed for good cause or if the Judicial Conference "determines that the services performed by his office are no longer needed."[14] Initially, magistrate judges were assigned a somewhat circumscribed role but, over the last several decades, Congress has expanded the role of magistrate judges to include the power to decide various motions, hear evidence, and try both criminal and civil cases. With the ever-burgeoning federal docket, magistrate judges have been deemed "nothing less than indispensable" in the federal judicial process.[15]

The Supreme Court's first occasion to consider the Magistrates Act came in *Wingo v. Wedding*.[16] In that case, the Court addressed whether the act permitted magistrate judges to hold evidentiary hearings in habeas corpus proceedings without the defendant's consent. The Court construed the statute to avoid potential Article III problems by interpreting the term "additional duties" in the act to not include the authority of a magistrate to hold evidentiary hearings, but instead allowing the magistrate simply to propose to the district court judge whether such a hearing should be held.[17] Two years later in *Mathews v. Weber*, the Court was tasked with interpreting whether "additional duties" could be read to permit referral of Social Security benefit cases to magistrate judges for preliminary review of the administrative record and preparation of a recommended ruling.[18] While the Court again avoided the potential Article III issues, it echoed the adjunct theory by observing that a district judge is free to follow or wholly reject a magistrate's recommendation and that the "authority—and the responsibility—to make informed, final determination . . . remains with the judge."[19] As a statutory matter, because the district judge was still free to follow or wholly ignore the magistrate's recommendation, the Court upheld the magistrate's "preliminary-review function" as one of the "additional duties" permitted under the act.[20]

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same manner as a judgment in other civil actions."); 28 U.S.C. § 1291 ("The courts of appeals . . . shall have jurisdiction of appeals from all final decisions of the district courts of the United States.").

[11] 42 U.S.C. § 405(g) ("The findings of the Commissioner of Social Security as to any fact, if supported by substantial evidence, shall be conclusive.").

[12] *See, e.g.*, Hickman v. Bowman, 803 F.2d 1377, 1380 (5th Cir. 1986); Foster v. Astrue, 548 F. Supp. 2d 667, 668 (E.D. Wis. 2008).

[13] Federal Magistrates Act, P.L. 90–578, 82 Stat. 1107; Mathews v. Weber, 423 U.S. 261 (quoting S. Rpt. 371, 90th Cong., 1st Sess., 8 (1967)).

[14] 28 U.S.C. § 631.

[15] Government of Virgin Islands v. Williams, 892 F.2d 305, 308 (3d Cir. 1989).

[16] 418 U.S. 461 (1974).

[17] *Id.* at 472.

[18] 423 U.S. 261, 271 (1975).

[19] *Id.* at 271.

[20] *Id.* at 271–72.

In the 1980 case *United States v. Raddatz*, the Court finally addressed head-on the unresolved constitutional questions surrounding the Magistrates Act.[21] In *Raddatz*, a defendant challenged magistrates' statutory and constitutional authority to hear motions to suppress evidence in a criminal proceeding. Under the Act, magistrate judges could "hear and determine" any pretrial matter before the court, except for certain motions including motions to suppress evidence in criminal cases.[22] For those excluded motions, the district court judge could "designate a magistrate to conduct hearings, including evidentiary hearings, and to submit to a judge of the court proposed findings of fact and recommendations for the disposition" of the motions.[23] If either party objected to the proposed findings or recommendations, the district court judge was then required to make a "de novo determination" of the issues and could "accept, reject, or modify, in whole or in part, the findings or recommendations of the magistrate."[24] The defendant in *Raddatz* contended that these provisions required the district court judge to rehear the testimony on which the magistrate based his findings. The Court rejected that argument, holding that the district court need only make a de novo determination of the disputed findings and recommendations and not hold a de novo hearing.[25] With respect to the Article III challenge, the Court upheld the act, observing that the "ultimate decision" is reserved for the district court judge and that magistrates "are constantly subject to the court's control."[26]

Congress amended the Magistrates Act in 1979, further enlarging and clarifying magistrates' authority.[27] Under the new statute, upon designation by the district court judge and with consent of the parties, magistrate judges were authorized to preside over and enter final judgments in civil trials, including jury trials and misdemeanor criminal prosecutions.[28]

In *Gomez v. United States*, the Court addressed whether overseeing the selection of jurors in a felony criminal prosecution was among the "additional duties" envisioned in the Act.[29] The defendant in that case objected to the assignment of a magistrate judge both the before and after the magistrate judge selected the jury.[30] The Court agreed, and held that the Magistrates Act did not permit such an assignment. Applying the constitutional avoidance doctrine,[31] the Court focused on the statutory question of whether Congress would have intended magistrates to oversee this "critical stage of the criminal proceeding."[32] Speaking for a unanimous Court, Justice John Paul Stevens noted that, while a literal reading of the additional duties provision would allow magistrates to oversee felony trials, the "carefully defined grant of authority to conduct trials of civil matters and of minor criminal cases should be construed as an implicit withholding of the authority to preside at a felony trial."[33] Ultimately, the Court held that the

[21] 447 U.S. 667 (1980).

[22] *See* 28 U.S.C. § 636(b)(1)(A).

[23] *Id.* § 636(b)(1)(B).

[24] *Id.*

[25] *Raddatz*, 447 U.S. at 676.

[26] *Id.* at 682–83.

[27] Federal Magistrate Act of 1979, P.L. 96–82, 93 Stat. 643.

[28] 93 Stat. 643, 643–46. For discussion of the role of party consent to non-Article III courts' jurisdiction, see ArtIII.S1.9.9 Consent to Article I Court Jurisdiction.

[29] 490 U.S. 858 (1989).

[30] *Id.* at 860–61.

[31] For additional discussion of the constitutional avoidance doctrine, see ArtIII.S2.C1.10.1 Overview of Constitutional Avoidance Doctrine.

[32] *Gomez*, 490 U.S. at 873.

[33] *Id.* at 872.

"absence of a specific reference to jury selection in the statute, or, indeed, in the legislative history, persuades us that Congress did not intend the additional duties clause to embrace this function."[34]

ArtIII.S1.9.8 Bankruptcy Courts as Adjuncts to Article III Courts

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

In 1978, Congress revised the Bankruptcy Act and created bankruptcy courts as adjuncts of the district courts.[1] The courts were composed of judges vested with practically all the judicial power of the United States; however, the judges served for fourteen-year terms, subject to removal for cause by the judicial councils of the circuits, and with salaries subject to statutory change. The bankruptcy courts were given jurisdiction over not only civil proceedings arising under the bankruptcy code, but also all other proceedings arising in or related to bankruptcy cases. Review was available in Article III courts, but decisions could be reversed only if clearly erroneous.

This broad grant of jurisdiction brought into question what kinds of cases could be heard by an Article I court. In *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, a plurality of the Supreme Court held that the conferral of jurisdiction upon Article I judges to hear state claims regarding traditional common law actions was unconstitutional.[2] In a narrow holding, a plurality of the Court sought to rationalize and limit the Court's jurisprudence on Article I courts. According to the plurality, a fundamental principle of separation of powers requires the judicial power of the United States to be exercised by courts having the attributes prescribed in Article III. Congress may not evade the constitutional order by allocating judicial power to courts whose judges lack security of tenure and compensation. Only in three narrowly circumscribed instances may judicial power be distributed outside the Article III framework: in territories and the District of Columbia; courts-martial; and the adjudication of public rights.[3] In bankruptcy litigation not involving any of these exceptions, the plurality concluded, the judicial power cases could not be assigned to the tribunals created by the Act.[4]

The lack of a majority in *Northern Pipeline* left unclear the degree of discretion left in Congress to restructure the bankruptcy courts and placed in question the constitutionality of other legislative efforts to establish non-Article III tribunals. Congress responded to *Northern Pipeline* by enacting the Bankruptcy Amendments and Federal Judgeship Act of 1984.[5] Under

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[34] *Id.* at 875–76. Importantly, in *Gomez*, the defendant had not given consent to the magistrate to select the jury, illustrating the limits of the adjunct theory when consent is withheld.

[1] Bankruptcy Act of 1978, Pub. L. No. 95–598, 92 Stat. 2549, *codified in* titles 11, 28. The bankruptcy courts were made adjuncts of the district courts by § 201(a), 28 U.S.C. § 151(a).

[2] 458 U.S. 50 (1982) (plurality opinion).

[3] *Id.* at 63–76.

[4] The plurality also rejected an alternative contention that, as adjuncts of the district courts, the bankruptcy courts were like United States magistrates or the agencies approved in *Crowell v. Benson,* 285 U.S. 22 (1932), to which could be assigned fact-finding functions subject to review in Article III courts. Northern Pipeline Constr. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 76–86 (1982). According to the plurality, the act vested too much judicial power in the bankruptcy courts to treat them like agencies, and it limited review by Article III courts too much.

[5] Pub. L. No. 98–353, 98 Stat. 333; 28 U.S.C. §§ 151 *et seq*.

the Act, bankruptcy courts remained as Article I entities, and overall their powers as courts were not notably diminished. However, Congress established a division between core proceedings, which could be heard and determined by bankruptcy courts, subject to lenient review, and other proceedings, which, though initially heard and decided by bankruptcy courts, could be reviewed de novo in the district court at the behest of any party, unless the parties consented to bankruptcy court jurisdiction. A safety valve was included, permitting the district court to withdraw any proceeding from the bankruptcy court on cause shown.[6]

In *Granfinanciera, S.A. v. Nordberg*, the Court considered whether a jury trial was required under the Seventh Amendment for a claim by a Chapter 11 bankruptcy trustee to void an allegedly fraudulent money transfer.[7] The Court found that the cause of action was founded on state law and, although denominated a core proceeding by Congress, was actually a private right.[8] Similarly, the Court in *Stern v. Marshall* held that a counterclaim of tortious interference with a gift, although made during a bankruptcy proceeding and statutorily deemed a core proceeding, was a state common law claim that did not fall under any of the public rights exceptions.[9] By contrast, in *Executive Benefits Ins. Agency v. Arkison*, the Court held that when the Constitution does not permit a bankruptcy court to enter final judgment on a bankruptcy-related claim, both the statute and the Constitution are satisfied if the bankruptcy court treats the matter as a non-core claim and issues proposed findings of fact and conclusions of law to be reviewed de novo by the district court.[10] And, as the Court later held in *Wellness International v. Sharif*, a bankruptcy court may adjudicate with finality a so-called *Stern* claim—that is, a core claim that does not fall within the public rights exception—if the parties have provided knowing and voluntary consent.[11]

ArtIII.S1.9.9 Consent to Article I Court Jurisdiction

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Congress has from time to time enacted legislation allowing non-Article III courts to adjudicate matters that would ordinarily proceed in Article III court based on the parties' consent.[1] The Supreme Court has upheld some such arrangements, but at times has invalidated them on separation of powers grounds.

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[6] *See* 28 U.S.C. § 157.

[7] 492 U.S. 33 (1989).

[8] *Id.* at 55.

[9] 564 U.S. 462 (2011).

[10] 573 U.S. 25 (2014).

[11] 575 U.S. 665 (2015). For additional discussion of the role of consent in determining which claims legislative courts can hear, see ArtIII.S1.9.9 Consent to Article I Court Jurisdiction.

[1] For example, under the Federal Magistrates Act, upon the consent of the parties, a magistrate judge "may conduct any or all proceedings in a jury or nonjury civil matter and order the entry of judgment in the case." *See* 28 U.S.C. § 636(c)(1). Pursuant to the Bankruptcy Amendments and Federal Judgeship Act of 1984, a district court, with the "consent of all parties to the proceeding," is permitted to refer a "proceeding related to a case under title 11 to a bankruptcy judge to hear and determine and to enter appropriate orders and judgments." *See* 28 U.S.C. § 157(c)(2). Other federal laws may provide for arbitration over discrete legal issues to occur based on the consent of the parties involved. *See, e.g.*, 42 U.S.C. § 4083(a).

The Supreme Court has identified two distinct rationales for the constitutional limitations on the creation of non-Article III tribunals. First, the Court has noted that Article III provides a personal right to individual litigants, preserving "their interest in an impartial and independent federal adjudication of claims."[2] Second, the Court has held that Article III safeguards structural principles, preserving the "role of the Judicial Branch" in our system of government by preventing Congress from transferring jurisdiction to non-Article III tribunals en-masse.[3] The Court has explained that, while individual rights can be waived, "notions of consent and waiver cannot be dispositive" with respect to Article III's structural protections because those "limitations serve institutional interests that the parties cannot be expected to protect"—separation of powers principles protecting the Judicial Branch from encroachment by the political branches.[4] When examining the structural component of Article III protections in consent cases, the Court has assessed the constitutionality of different judicial schemes using ad hoc balancing tests that rely on seemingly disparate principles, leaving open questions about when Congress can provide an alternative forum to an Article III court in which consenting parties can resolve their disputes.[5]

For example, in *Commodities Futures Trading Commission (CFTC) v. Schor*, the Supreme Court, in assessing the structural component of Article III's constitutional protections, rested its decision primarily on the breadth of matters adjudicated by the non-Article III tribunal at issue in that case.[6] Specifically, the Court upheld a law that allowed the CFTC to adjudicate common law claims that were "incidental to" and "completely dependent upon adjudication by the Commission of [public rights] claims created by federal law" and arose "out of the same transaction or occurrence" as the federal law claim.[7] For the Court, allowing an administrative agency to adjudicate such a "narrow class of common law claims" amounted to only a de minimis intrusion on the Judicial Branch.[8] Nonetheless, in noting the narrow nature of its holding, the *Schor* Court emphasized that Congress could not "create[ ] a phalanx of non-Article III tribunals equipped to handle the entire business of the Article III courts without any Article III supervision or control and without evidence of valid and specific legislative necessities," even if parties consented to adjudicate before such a forum.[9]

Five years later, in *Peretz v. United States*, the Court approached the issue of Article III's structural protections in a slightly different manner.[10] In *Peretz*, a criminal defendant who had failed to demand the presence of an Article III judge during the selection of his jury argued that having a magistrate judge oversee voir dire proceedings implicated the structural protections provided by Article III.[11] As in *Schor*, the Court rejected the idea that a judicial scheme granting a legislative court responsibilities traditionally exercised by a constitutional court ran counter to the institutional interests preserved by Article III.[12] But, while the Court in *Schor* focused on the narrow nature of the claims adjudicated by administrative agency in that

[2] Commodities Future Trading Comm'n v. Schor, 478 U.S. 833, 850 (1986).

[3] *Id.* (quoting National Insurance Co. v. Tidewater Co., 337 U.S. 582, 644 (1949) (Vinson, C.J., dissenting)).

[4] *Id.* at 851. Indeed, the Supreme Court has likened the structural protections provided by Article III, §1 to the limits on the subject-matter jurisdiction of a federal court imposed by Section 2 of Article III, which cannot be waived through consent. *Id.* at 850–51

[5] *Id.* at 848–49; *see also* Peretz v. United States, 501 U.S. at 930 (1991).

[6] 478 U.S. 833.

[7] *Id.* at 856.

[8] *Id.*

[9] *Id.* at 855.

[10] 501 U.S. at 930.

[11] *Id.* at 937.

[12] *Id.*

case, the Court in *Peretz* focused on the degree of control exercised by a constitutional court over the non-Article III court's work. The Court held that, "[b]ecause 'the entire [jury selection] process takes place under the district court's total control and jurisdiction,' there is no danger that use of the magistrate involves a 'congressional attempt'" to undermine the power of constitutional courts.[13]

In *Stern v, Marshall*, the Supreme Court held that the Bankruptcy Court lacked authority to enter judgment on a common law tort counterclaim.[14] The Court held that the parties had consented to having the Bankruptcy Court hear the counterclaim, but while such consent satisfied the requirements of the relevant statute, it could not overcome applicable constitutional limits.[15] In the wake of *Stern*, questions arose about the constitutionality of allowing consenting parties to proceed before a non-Article III court. In the 2015 case *Wellness International v. Sharif*, the Court held that Article III permits bankruptcy courts to adjudicate with finality *Stern* claims—claims designated for final adjudication in the bankruptcy court as a statutory matter, but prohibited from proceeding in that way as a constitutional matter—if the parties have provided knowing and voluntary consent.[16] In so holding, the Court used the ad hoc balancing test from *Schor* and *Peretz* to conclude that allowing bankruptcy courts to decide *Stern* claims by consent would not "impermissibly threaten the institutional integrity of the Judicial Branch."[17] Following *Wellness International*, questions remain about the exact scope of Congress's power to authorize non-Article III adjudication by litigant consent, but it appears that legislation that allows a relatively narrow class of claims to be adjudicated before a non-Article III tribunal with the parties' consent and provides Article III courts with some oversight of the legislative court's activities is likely to pass constitutional muster.

ArtIII.S1.10 Federal Judiciary Protections

ArtIII.S1.10.1 Overview of Federal Judiciary Protections

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Framers of the Constitution established the Federal Judiciary as an independent branch of government, alongside the Executive and Legislative Branches. While the Framers generally sought to structure the Constitution to ensure the separation of powers, they expressed particular concern about potential interference with the Judiciary by the political branches. James Wilson remarked at the Constitutional Convention that judges "would be in a bad situation if made to depend on every gust of faction which might prevail" in the political branches.[1] Likewise, in the *Federalist Papers*, Alexander Hamilton famously opined that, of the

[13] *Id.*

[14] 564 U.S. 462 (2011).

[15] *Id.* at 481–82.

[16] 575 U.S. 665 (2015).

[17] *Id.* at 678–79 (alterations omitted).

[1] 2 The Records of the Federal Convention of 1787, at 429 (Max Farrand ed., 1911).

three branches, the Judiciary "will always be the least dangerous to the political rights of the Constitution; because it will be least in a capacity to annoy or injure them."[2]

Two key mechanisms that the Framers adopted to protect the Judiciary from political influence are the Good Behavior Clause and the Compensation Clause. The Good Behavior Clause provides that Supreme Court Justices and other federal judges "shall hold their Offices during good Behaviour."[3] The Supreme Court has interpreted the Clause to grant federal judges life tenure, unless they resign voluntarily or are impeached.[4] The Compensation Clause provides that federal judges shall be compensated for their service, and that such compensation "shall not be diminished during their Continuance in Office."[5] Together, the two provisions prevent the political branches from seeking to influence the Judiciary by retaliating against disfavored court decisions by removing the judges responsible or docking their pay.[6] The following essays briefly outline the history of the Good Behavior Clause and the Compensation Clause, then survey the Supreme Court's decisions applying the two provisions.[7]

ArtIII.S1.10.2 Good Behavior

ArtIII.S1.10.2.1 Overview of Good Behavior Clause

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Article III, Section 1 provides that federal judges hold their offices "during good behavior."[1] This standard, borrowed from English law, ensures that federal judges hold their seats for life,

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[2] The Federalist No. 78 (Alexander Hamilton).

[3] U.S. Const. art. III, § 1.

[4] *See, e.g.*, United States ex rel. Toth v. Quarles, 350 U.S. 11, 16 (1955) (explaining that Article III courts "are presided over by judges appointed for life, subject only to removal by impeachment"); Northern Pipeline Constr. Co. v. Marathon Pipe Line Co., 458 U.S. 50, 59 (1982) (plurality opinion of Brennan, J.) ("The 'good Behaviour' Clause guarantees that Art[icle] III judges shall enjoy life tenure, subject only to removal by impeachment."); United States v. Hatter, 532 U.S. 557, 567 (2001) (explaining that the Good Behavior Clause grants federal judges "the practical equivalent of life tenure").

[5] U.S. Const. art. III, § 1.

[6] Other aspects of the constitutional system also seek to safeguard the independence of the judiciary. For instance, the Supreme Court has construed Article III to limit Congress's ability to vest judicial functions in non-Article III tribunals on separation of powers grounds. *See, e.g.*, Commodities Future Trading Comm'n v. Schor, 478 U.S. 833, 850 (1986); *see also* ArtIII.S1.9.1 Overview of Congressional Power to Establish Non-Article III Courts.

[7] *See* ArtIII.S1.10.2.1 Overview of Good Behavior Clause; ArtIII.S1.10.3.1 Historical Background on Compensation Clause.

[1] The Constitution contains a number of provisions that are relevant to the impeachment of federal officials. Article I, Section 2, Clause 5 grants the sole power of impeachment to the House of Representatives; Article I, Section 3, Clause 6 assigns the Senate sole responsibility to try impeachments; Article I, Section 3, Clause 7 provides that the sanctions for an impeached and convicted individual are limited to removal from office and potentially a bar from holding future office, but an impeachment proceeding does not preclude criminal liability; Article II, Section 2, Clause 1 provides that the President enjoys the pardon power, but it does not extend to cases of impeachment; and Article II, Section 4 defines which officials are subject to impeachment and what kinds of misconduct constitute impeachable behavior. Article III does not mention impeachment expressly, but Section 1, which establishes that federal judges shall hold their seats during good behavior, is widely understood to provide the unique nature of judicial tenure. And Article III, Section 2, Clause 3 provides that trials, "except in Cases of Impeachment, shall be by jury."

rather than set terms or at the will of a superior.[2] The applicability of the Good Behavior Clause to the removal of federal judges has been the subject of debate; in particular, whether the phrase elucidates a distinct standard for removal apart from the "high crimes and misdemeanors" standard applicable to the impeachment of other federal officers.[3] While this question has not been definitively resolved, historical practice indicates an understanding that the Good Behavior Clause protects federal judges from removal for congressional disagreement with legal or political opinions.[4]

ArtIII.S1.10.2.2 Historical Background on Good Behavior Clause

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

Just as the phrase "high crimes and misdemeanors" for impeachments was borrowed from English practice,[1] so too was the term "good behavior" borrowed from English law concerning the duration of a judge's tenure.[2] Prior to 1701, the tenure of judges in England was established by the Crown, which often reserved the right to remove them.[3] In 1701 Parliament passed legislation barring the Crown from removing judges, providing that they served "*Quamdiu se bene gesserint*,"[4] and reserved for itself the authority to remove judges.[5] The standard of good behavior and insulation from removal by the Crown was mirrored in the constitutions of many American colonies[6] and was advanced by various proposals at the Constitutional Convention.[7]

The Framers considered the provision that federal judges maintain their seats during good behavior an "excellent barrier" against the risk of a legislature seeking to expand its power.[8] Rather than serving at the pleasure of the President or Congress, the protection of judges' seats and salary for life ensured an independent Judiciary that would not be unduly pressured

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[2] *See* Hon. Ruth Bader Ginsburg, *Reflections on the Independence, Good Behavior, and Workload of Federal Judges the John R. Coen Lecture Series University of Colorado School of Law*, 55 U. Colo. L. Rev. 1, 3 (1983).

[3] *See generally* Nixon v. United States, 506 U.S. 224, 237–38 (1993).

[4] *See* ArtIII.S1.10.2.3 Good Behavior Clause Doctrine. Article III, Section 1, also serves the essential purpose of protecting the independence of the judiciary and protecting litigants' rights to have claims adjudicated by an impartial judge free from the influence of another branch of government. Commodity Futures Trading Comm'n v. Schor, 478 U.S. 833, 849 (1986). Further, the clause bars congressional attempts to eliminate the role of constitutional courts by transferring jurisdiction to non-Article III courts, which guards against the aggrandizement of power by one branch of government over another. *Id.*

[1] For more on the historical background of the impeachment clauses, see The Power of Impeachment: Historical Background; The Power to Try Impeachments: Historical Background; Impeachable Offenses: Historical Background.

[2] Hon. Ruth Bader Ginsburg, *Reflections on the Independence, Good Behavior, and Workload of Federal Judges the John R. Coen Lecture Series University of Colorado School of Law*, 55 U. Colo. L. Rev. 1, 3 (1983). ("The phrase 'good Behaviour' was copied by the framers of our Constitution from English law.").

[3] Note, *Judicial Disability and the Good Behavior Clause*, 85 Yale L.J. 706, 720 (1976).

[4] The Latin phrase is sometimes translated as "so long as they conduct themselves well," Ginsburg, *supra* note 2, at 3 n.10, or "during good behavior." *See Judicial Disability and the Good Behavior Clause*, *supra* note 3, at 709.

[5] Act of Settlement, 12 & 13 Will. 3, ch. 2, § 3 (1700).

[6] *See, e. g.*, 2 Benjamin P. Poore, The Federal and State Constitutions, Colonial Charters, and Other Organic Laws of the United States 1910 (2d ed. 1878).

[7] 1 Records of the Federal Convention of 1787 21 (Max Farrand ed., 1966) (Virginia Plan); *id.* at 244 (New Jersey Plan); 3 *id.* at 600 (draft attributed to Charles Pinckney); *id.* at 621, 625 (Alexander Hamilton).

[8] *See* The Federalist No. 78 (Alexander Hamilton).

by the political branches.[9] Insulating federal judges from removal was crucial because the Judiciary lacks the "sword" of the Executive power and the "purse" of the Legislature.[10] Rather, the judicial power consists of the reasoning and "judgements" of its officers.[11] As the Federal Judiciary is in some ways the least powerful branch of the government, ensuring judges' "permanency in office" was deemed essential to establishing an independent Judiciary.[12]

Further, this independence armed the Judiciary with the ability to defend and preserve a "limited constitution against legislative encroachments" against the rights of citizens.[13] In the *Federalist Papers*, Alexander Hamilton argued that federal judges must "guard the constitution and the rights of individuals" against the possibility of laws that oppress political minorities.[14] Likewise, federal judges must ensure that the law is applied justly and evenly to all citizens. If judges could be removed at will or were appointed for specified periods, judges would be tempted to consider popular opinion in their rulings to the detriment of the Constitution and the rights of political minorities.[15]

ArtIII.S1.10.2.3 Good Behavior Clause Doctrine

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The meaning of the Good Behavior Clause has been the subject of long-standing debate. Some have argued that the phrase denotes an alternative standard of removal for federal judges beyond "high crimes and misdemeanors" that normally may give rise to the impeachment of federal officers.[1] Others have rejected this notion,[2] reading the "good behavior" phrase simply to make clear that federal judges retain their office for life unless they are removed via a proper constitutional mechanism. However, while one might find some support in early twentieth-century practice for the idea that the Clause constitutes an additional ground for removal of a federal judge,[3] the modern view of Congress appears to be

[9] *Id.*
[10] *Id.*
[11] *Id.*
[12] *Id.*
[13] *Id.*
[14] *Id.*
[15] *Id.*

[1] Raoul Berger, Impeachment: The Constitutional Problems 122–80 (1973) (arguing that the good behavior standard is distinct from "high crimes and misdemeanors" and Congress may remove judges whose "misbehavior" does not constitute a high crime or misdemeanor); Saikrishna Prakash, Steven D. Smith, *How to Remove A Federal Judge*, 116 Yale L.J. 72, 78 (2006) ("Congress . . . may establish any number of mechanisms for determining whether a judge has forfeited her office through misbehavior. . . . Congress can pass statutes that help implement the federal government's authority to remove federal judges who have misbehaved."); *see* 3 Lewis Deschler, Precedents of the United States of the House of Representatives, H.R. Doc. No. 94-661, at Ch. 14 § 3.9 (1974), https://www.govinfo.gov/content/pkg/GPO-HPREC-DESCHLERS-V3/pdf/GPO-HPREC-DESCHLERS-V3.pdf.

[2] Judith Rosenbaum et al., *A Constitutional Perspective on Judicial Tenure*, 61 Judicature 465, 474 (1978) (claiming that the terms were interchangeable for the Framers).

[3] *See* Staff of H. Comm. on the Judiciary, 93d Cong., Impeachment, Selected Materials 666 (Comm. Print 1973).

that "good behavior" does not establish an independent standard for impeachable conduct.[4] In other words, the Good Behavior Clause simply indicates that judges are not appointed to their seats for set terms and cannot be removed at will; removing a federal judge requires impeachment and conviction for a high crime or misdemeanor.

Nevertheless, even if the Good Behavior Clause does not delineate a standard for impeachment and removal for federal judges, as a practical matter, the history of impeachments in the United States might indicate that the range of conduct meriting removal differs between judges and Executive Branch officials due to the distinct nature of each office. The Senate has never voted to remove the President or an Executive Branch official, but has done so to eight federal judges.[5] The conduct meriting impeachment and removal for federal judges has ranged from intoxication on the bench,[6] to abandoning the office and joining the Confederacy,[7] to various types of corruption. Congress has also impeached and removed federal judges for perjury and income tax evasion,[8] although it is unclear whether such behavior would necessarily be considered impeachable behavior for an Executive Branch official.[9]

Further, leaving aside whether the Good Behavior Clause establishes a separate standard for removal independent from high crimes and misdemeanors, historical conflicts between Congress and the Judiciary may inform the outer limits of what the Good Behavior Clause entails. For instance, in 1804 Jeffersonian Republicans attempted to remove Supreme Court Chief Justice Samuel Chase, who they viewed as openly partisan and biased against their party.[10] The allegations against Chief Justice Chase included that he acted in an "arbitrary, oppressive, and unjust manner" at trial, misapplied the law, and expressed partisan political views to a grand jury.[11] The attempt failed, and Congress has never removed a federal judge for disagreement with the law's application or because of difference in political views. Based on this historical practice, the good behavior standard arguably guards against the removal of a federal judge for disagreement with the law's interpretation or political disagreements.

That said, the Good Behavior Clause and the attendant clauses expressly dealing with impeachment do not insulate federal judges from criminal prosecutions.[12] For instance, Judge Harry E. Claiborne, before being impeached and removed from office as a federal judge,

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[4] *See* Charles W. Johnson, John V. Sullivan, and Thomas J. Wickham, Jr., House Practice: A Guide to the Rules, Precedents and Procedures of the House 608–13 (2017); Impeachment, Selected Materials, *supra* note 3, at 666; Staff of H. Comm. on the Judiciary, 93d Cong., Constitutional Grounds for Presidential Impeachment 17 (Comm. Print 1974); H.R. Rep. No. 105-830, at 110–18.

[5] *See* ArtI.S3.C6.3 Impeachment Trial Practices and ArtII.S4.4.1 Overview of Impeachable Offenses et seq.

[6] *See* 12 Annals of Cong. 642 (1803); 13 Annals of Cong. 380 (1803); 13 Annals of Cong. 368 (1804).

[7] 2 Asher C. Hinds, Hinds' Precedents of the House of Representatives of the United States §§ 2385–97 (1907), https://www.govinfo.gov/content/pkg/GPO-HPREC-HINDS-V2/pdf/GPO-HPREC-HINDS-V2.pdf.

[8] 135 Cong. Rec. S14,633–39 (daily ed. Nov. 3, 1989) (removing Judge Walter L. Nixon for lying to a grand jury); 132 Cong. Rec. 29,870–72 (1986) (removing Judge Harry E. Claiborne for providing false statements on his income tax returns).

[9] President Clinton was impeached, but not convicted, for perjury to a grand jury. See discussion in ArtII.S4.4.8 President Bill Clinton and Impeachable Offenses. In the effort to impeach President Nixon, one of the articles of impeachment rejected by the House Judiciary Committee concerned tax evasion. See discussion in ArtII.S4.4.7 President Richard Nixon and Impeachable Offenses.

[10] 13 Annals of Cong. 1180 (1804).

[11] Impeachment, Selected Materials, *supra* note 3, at 133–35.

[12] *See generally* Chandler v. Judicial Council of Tenth Circuit of U.S., 398 U.S. 74, 140 (1970) (Douglas, J., dissenting) ("Federal judges are entitled, like other people, to the full freedom of the First Amendment. If they break a law, they can be prosecuted. If they become corrupt or sit in cases in which they have a personal or family stake, they can be impeached by Congress.").

challenged his indictment and prosecution as unconstitutional.[13] Specifically, he argued that the Constitution's vesting of the impeachment power in Congress precludes the criminal prosecution of an Article III judge unless he is first impeached and removed from office.[14] The U.S. Court of Appeals for the Ninth Circuit rejected this argument, concluding that the Constitution's distinction between impeachment and criminal liability was meant to ensure that no individual who had been impeached and removed could claim double jeopardy as a shield against subsequent criminal prosecution.[15] Further, a criminal conviction does not "remove" an individual from office; Congress retains exclusive power to do so through the constitutional mechanism of impeachment.[16] Likewise, the Ninth Circuit rejected Claiborne's argument that it violates separation of powers for the Executive Branch to possess authority to bring criminal prosecutions against sitting Article III judges.[17] The court noted that potential defendants receive the same protections that ordinary citizens do, and criminal behavior is not part of a government official's duties.[18] Further, insulating federal judges from criminal liability would elevate them above the requirements of the very law they are entrusted with adjudicating fairly.[19]

ArtIII.S1.10.3 Compensation

ArtIII.S1.10.3.1 Historical Background on Compensation Clause

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Supreme Court has stated, "The Compensation Clause has its roots in the longstanding Anglo-American tradition of an independent Judiciary. A Judiciary free from control by the Executive and the Legislature is essential if there is a right to have claims decided by judges who are free from potential domination by other branches of government."[1] Before the Revolutionary War, American colonists recognized the role of judicial compensation in maintaining the independence of the Judiciary. Among other things, the Declaration of Independence objected to the fact that the King had "made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries."[2]

From the beginning of the Constitutional Convention, the Framers embraced salary protection as one means of bolstering judicial independence. The first resolution on the Judiciary introduced at the Convention provided that judges would "receive punctually at stated times fixed compensation for their services, in which no increase or diminution shall be

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[13] United States v. Claiborne, 727 F.2d 842, 849 (9th Cir. 1984). *See also* United States v. Hastings, 681 F.2d 706, 709–11 (11th Cir. 1982) (rejecting similar claims), stay denied, 459 U.S. 1203 (1982); United States v. Isaacs, 493 F.2d 1124, 1141–44 (7th Cir. 1974) (same), *cert. denied sub nom.*, 417 U.S. 976 (1974).

[14] *Claiborne*, 727 F.2d at 845–46.

[15] *Id.* at 846.

[16] *Id.*

[17] *Id.* at 849.

[18] *Id.* at 848.

[19] *Id.* at 849.

[1] United States v. Will, 449 U.S. 200, 217–18 (1980).

[2] The Declaration of Independence para. 11 (U.S. 1776).

made so as to affect the persons actually in office at the time of such increase or diminution."[3] Following debate, the prohibition on judicial salary increases was removed to allow Congress to adapt judicial pay to changing circumstances, but the prohibition on decreasing judicial salaries remained.[4] Alexander Hamilton highlighted the Compensation Clause in the *Federalist Papers*, asserting that, "next to permanency in office, nothing can contribute more to the independence of the judges than a fixed provision for their support," because, "[i]n the general course of human nature, a power over a man's subsistence amounts to a power over his will."[5] Chief Justice John Marshall later asserted that judges must have the independence to protect the poor and unpopular, and that the "greatest scourge" was an "ignorant, a corrupt, or a dependent Judiciary."[6]

ArtIII.S1.10.3.2 Compensation Clause Doctrine

Article III, Section 1:

> *The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.*

The Compensation Clause allows Congress to increase judicial salaries, but not to decrease them. During the Great Depression, Congress enacted appropriations legislation reducing "the salaries and retired pay of all judges (except judges whose compensation may not, under the Constitution, be diminished during their continuance in office)" by a fixed amount.[1] The statute avoided constitutional issues by expressly incorporating the limits of the Compensation Clause, but it sparked Supreme Court litigation to determine which federal judges were subject to the salary reduction. Ultimately, the Court held that judges of the District of Columbia courts were Article III judges who enjoyed constitutional salary protection and could not be subject to the statute.[2] On the other hand, the Court held that judges of the Court of Claims, a legislative court, could have their salaries reduced.[3]

Once a judicial salary increase has gone into effect, the Compensation Clause bars Congress from reducing or rescinding any part of the increase. However, Congress may alter a promised future increase before it becomes effective. Thus, in *United States v. Will*, the Court held that Congress could repeal or modify a statutorily defined formula for annual cost-of-living increases to the compensation of federal judges, but must act with respect to any particular increase before the increase takes effect.[4] To illustrate, in one of the years at issue in

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[3] 1 The Records of the Federal Convention of 1787, at 244 (Max Farrand ed., 1911).

[4] 2 *id.* at 45. *See also, e.g.*, *id* (statement of Gouverner Morris that "[t]he value of money may not only alter but the State of Society may alter. In this event the same quantity of wheat, the same value would not be the same compensation. The Amount of salaries must always be regulated by the manners & the style of living in a Country").

[5] The Federalist No. 79 (Alexander Hamilton).

[6] United States v. Hatter, 532 U.S. 557 (2001) (quoting Proceedings and Debates of the Virginia State Convention, of 1829–1830, p. 619 (1830)).

[1] Legislative Appropriation Act of June 30, 1932, ch. 314, 47 Stat. 382, 401.

[2] O'Donoghue v. United States, 289 U.S. 516 (1933). Congress later established two sets of courts in the District: federal courts, created pursuant to Article III, and local courts equivalent to state and territorial courts, created pursuant to Article I. For further discussion of the constitutional status of the District of Columbia Courts, *see* ArtIII.S1.9.4 District of Columbia and Territorial Courts.

[3] Williams v. United States, 289 U.S. 553 (1933). *But see* Glidden Co. v. Zdanok, 370 U.S. 530 (1962).

[4] 449 U.S. 200 (1980).

Will, a planned salary increase took effect on October 1, but the President signed a bill reducing the amount that same day. The Court held that the increase had gone into effect by the time the reduction was signed, rendering the reduction invalid.[5] Moreover, although the salary reductions in *Will* applied to various officials in all three branches of government, the Court further held that even a general, nondiscriminatory salary reduction, affecting judges but not aimed solely at them, is covered by the Compensation Clause.[6]

A separate question that has sparked Supreme Court litigation is whether the Compensation Clause limits Congress's power to increase the amount of federal income tax Article III judges pay. In *Evans v. Gore*, the Court invalidated the application of a 1919 income tax law to a sitting federal judge.[7] The Court extended that ruling in *Miles v. Graham* to exempt the salary of a judge of the Court of Claims appointed after the enactment of the relevant tax law.[8] In the 1939 case *O'Malley v. Woodrough*, the court disapproved of *Evans* and effectively overruled *Miles*, upholding a provision of the Revenue Act of 1932 that extended application of the income tax to salaries of judges taking office after June 6, 1932.[9] The Court regarded the tax neither as an unconstitutional diminution of the compensation of judges nor as an encroachment on the independence of the Judiciary.[10] To subject judges who take office after a stipulated date to a nondiscriminatory income tax, said the Court, "is merely to recognize that judges are also citizens, and that their particular function in government does not generate an immunity from sharing with their fellow citizens the material burden of the government whose Constitution and laws they are charged with administering."[11]

The Court formally overruled *Evans* in the 2001 case *United States v. Hatter*.[12] The *Hatter* Court reaffirmed the principle that judges should "share the tax burdens borne by all citizens,"[13] holding that "the potential threats to judicial independence that underlie [the Compensation Clause] cannot justify a special judicial exemption from a commonly shared tax."[14] The Court held that the Medicare tax, which was extended to all federal employees in 1982, was a non-discriminatory tax that could be applied to federal judges.[15] By contrast, the Court ruled that the 1983 extension of a Social Security tax to then-sitting judges violated the Compensation Clause, because judges were required to participate while almost all other federal employees were given a choice about participation.[16] Nor had Congress cured the constitutional violation by a subsequent enactment that raised judges' salaries by an amount greater than the amount of Social Security taxes that they were required to pay.[17]

[5] *Id.* at 224–25.
[6] *Id.* at 226.
[7] 253 U.S. 245 (1920).
[8] 268 U.S. 501 (1925).
[9] 307 U.S. 277 (1939).
[10] *Id.* at 278–82.
[11] *Id.* at 282.
[12] 532 U.S. 557 (2001).
[13] *Id.* at 571.
[14] *Id.*
[15] *Id.* at 572.
[16] *Id.*
[17] *Id.* at 578–81.

SECTION 2—JUSTICIABILITY

CLAUSE 1—CASES OR CONTROVERSIES

ArtIII.S2.C1.1 Overview of Cases or Controversies

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Article III, Section 2, Clause 1 identifies the circumstances and parties to which the judicial power of the National Government applies.[1] As provided by the Constitution, the judicial power extends to nine classes of cases and controversies which fall into two general groups depending on the "character of the cause" and the "character of the parties."[2] As to the "character of the cause," the judicial power extends to cases arising under the "Constitution, the Laws of the United States and Treaties made under . . . their Authority"; to all cases "affecting Ambassadors, or other public Ministers and Consuls"; and to all cases of "admiralty and maritime Jurisdiction."[3] As to the "character of the parties," the judicial power extends to controversies where the "United States shall be a Party"; and controversies "between two or more States; between a State and Citizens of another State; between Citizens of different States;-between Citizens of the same State claiming Land under Grants of different States, or the Citizens thereof, and foreign States, Citizens or Subjects."[4] In *Cohens v. Virginia*, Chief Justice John Marshall explained these principles, stating:

> In the first, jurisdiction depends on the character of the cause, whoever may be the parties. This class comprehends 'all cases in law and equity arising under this constitution, the laws of the United States, and treaties made, or which shall be made, under their authority.' This cause extends the jurisdiction of the court to all the cases described, without making in its terms any exception whatever, and without any regard to the condition of the party. If there be any exception, it is to be implied, against the express words of the article. In the second class, the jurisdiction depends entirely on the character of the parties. In this are comprehended 'controversies between two or more states, between a state and citizens of another state,' and 'between a state and foreign states, citizens or subjects' if these be the parties, it is entirely unimportant, what may be the subject of controversy. Be it what it may, these parties have a constitutional right to come into the courts of the Union.[5]

The Supreme Court has further noted that judicial power is "the power of a court to decide and pronounce a judgment and carry it into effect between persons and parties who bring a

[1] U.S. CONST. art. III, § 2, cl. 1.

[2] Cohens v. Virginia, 19 U.S. (6 Wheat.) 264, 378 (1821).

[3] U.S. CONST. art. III § 2, cl. 1.

[4] U.S. CONST. art. III § 2, cl. 1.

[5] Cohens v. Virginia, 19 U.S. (6 Wheat.) 264, 378 (1821).

case before it for decision."[6] The meaning attached to the terms "cases" and "controversies"[7] determines therefore the extent of the judicial power as well as the capacity of the federal courts to receive jurisdiction. According to Chief Justice Marshall in *Osborn v. Bank of the United States*, judicial power is capable of acting only when the subject is submitted in a case and a case arises only when a party asserts his rights "in a form prescribed by law."[8]

Justiciable "cases" and "controversies" not only require that disputes be of the types specified in Article III, Section 2, Clause 1, but also that the disputes be, in fact, actual "cases" and "controversies." Consequently, the parties must truly be adverse to each, the dispute must be concrete, not hypothetical, and the dispute must be capable of being resolved through an award of specific relief. In *Aetna Life Insurance Company v. Haworth*, Chief Justice Charles Evans Hughes explained this aspect of the "cases" and "controversies" requirement stating:

> A "controversy" in this sense must be one that is appropriate for judicial determination. A justiciable controversy is thus distinguished from a difference or dispute of a hypothetical character; from one that is academic or moot. The controversy must be definite and concrete, touching the legal relations of parties having adverse legal interests. It must be a real and substantial controversy admitting of specific relief through a decree of a conclusive character, as distinguished from an opinion advising what the law would be upon a hypothetical state of facts.[9]

Chief Justice Earl Warren also advised on the nature of "cases" and "controversies," noting:

> Embodied in the words "cases" and "controversies" are two complementary but somewhat different limitations. In part those words limit the business of federal courts to questions presented in an adversary context and in a form historically viewed as capable of resolution through the judicial process. And in part those words define the role assigned to the Judiciary in a tripartite allocation of power to assure that the federal courts will not intrude into areas committed to the other branches of government. Justiciability is the term of art employed to give expression to this dual limitation placed upon federal courts by the case and controversy doctrine.[10]

Factors which determine whether a dispute qualifies as a "case" or "controversy" under the Constitution include adversity, the existence of a real interest, and standing. Adversity requires that the parties be truly adverse to each other with real interests in contention.[11] As such, suits that are collusive or feigned by two friendly parties to resolve a question of interest to them are not justiciable.[12] A real interest requires that a *real* issue be presented, as contrasted with speculative, abstract, hypothetical, or moot issues or cases that are not yet ripe for review.[13] Standing concerns *who* may bring a suit and requires that the party seeking relief

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[6] Muskrat v. United States, 219 U.S. 346, 356 (1911).

[7] The two terms may be used interchangeably, inasmuch as a "controversy," if distinguishable from a "case" at all, is so only because it is a less comprehensive word and includes only suits of a civil nature. Aetna Life Ins. Co. v. Haworth, 300 U.S. 227, 239 (1937).

[8] Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738 (1824).

[9] Aetna Life Ins. Co. v. Haworth, 300 U.S. 227, 240–41 (1937). *Cf.* Public Service Comm'n v. Wycoff Co., 344 U.S. 237, 242 (1952).

[10] Flast v. Cohen, 392 U.S. 83, 94–95 (1968).

[11] Muskrat v. United States, 219 U.S. 346 (1911).

[12] Lord v. Veazie, 49 U.S. (8 How.) 251 (1850).

[13] Alabama State Fed'n of Labor v. McAdory, 325 U.S. 450, 461 (1945) (stating that it is the Court's "considered practice not to decide abstract, hypothetical or contingent questions."); Giles v. Harris, 189 U.S. 475, 486 (1903) (stating that a party cannot maintain a suit "for a mere declaration in the air"); Texas v. ICC, 258 U.S. 158 (1922) ("It is only where rights, in themselves appropriate subjects of judicial cognizance, are being, or about to be, affected prejudicially

has "alleged such a personal stake in the outcome of the controversy as to assure that concrete adverseness which sharpes the presentation of issues upon which the court so largely depends of illumination of difficult constitutional questions."[14] The constitutional requirements for standing under Article III require that the plaintiff has personally (1) suffered some actual or threatened injury; (2) that injury can fairly be traced to the challenged action of the defendant; and (3) that the injury is likely to be redressed by a favorable decision.[15] Persons do not have standing to sue in federal court when they can only claim that they have an interest or have suffered an injury that is shared by all members of the public.[16] These factors are discussed at greater length in other *Constitution Annotated* essays.

ArtIII.S2.C1.2 Historical Background on Cases or Controversies Requirement

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Article III of the Constitution provides that "the judicial Power" of the United States "shall extend to" certain enumerated categories of "Cases" and "Controversies."[1] As later essays in this treatise discuss, the Supreme Court has interpreted this "Case or Controversy" language to impose significant restrictions on the federal courts' power to adjudicate disputes,[2] such as the Article III standing doctrine,[3] which forbids the Federal Judiciary from hearing cases in which the plaintiff lacks a personal stake in the outcome.[4] In light of the importance of those limitations on the federal courts' jurisdiction, this essay surveys available historical evidence illuminating what the Framers might have understood those words to mean.[5] The essay thus

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by the application or enforcement of a statute that its validty may be called in question by a suitor and determined by an exertion of the judicial power."); Ashwander v. TVA, 297 U.S. 288, 324 (1936) ("The pronouncements, policies and program of the Tennessee Valley Authority and its directors, their motives and desires, did not give rise to a justiciable controversy save as they had fruition in action of a definite and concrete character constituting an actual or threatened interference with the rights of the person complaining."

[14] Baker v. Carr, 369 U.S. 186, 204 (1962). That persons or organizations have a personal, ideological interest sufficiently strong to create adverseness is not alone enough to confer standing; rather the adverseness is the consequence of one being able to satisfy the Article III requisite of injury in fact. Valley Forge Christian College v. Americans United, 454 U.S. 464, 482–486 (1982); Schlesinger v. Reservists Comm. To Stop the War, 418 U.S. 208, 225–226 (1974). Nor is the fact that, if plaintiffs have no standing to sue, no one would have standing, a sufficient basis for finding standing. *Id.* at 227.

[15] Valley Forge Christian College v. Americans United, 452 U.S. 464, 472 (1982); Allen v. Wright, 468 U.S. 737, 751 (1984); Lujan v. Defenders of Wildlife, 504 U.S. 555, 560–61 (1992); Monsanto C. v. Geerston Seed Farms, 561 U.S. ___, No. 09–475, slip op. (2010). But see United States v. Parole Comm'n v. Geraghty, 445 U.S. 388 (1980).

[16] Schlesinger v. Reservists Comm. To Stop the War, 418 U.S. 208 (1974).

[1] U.S. Const. art. III § 2.

[2] *See* ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[3] *See* ArtIII.S2.C1.6.1 Overview of Standing.

[4] *See, e.g.*, Gill v. Whitford, 138 S. Ct. 1916, 1923 (2018) ("[A] plaintiff seeking relief in federal court must first demonstrate that he has standing to do so, including that he has 'a personal stake in the outcome[.]'") (quoting Baker v. Carr, 369 U.S. 186, 204 (1962)).

[5] This essay focuses on whether the Framers intended Article III's "Case or Controversy" language to limit the justiciability of disputes in federal court. For analysis of the separate issue of whether and how the definition of "Case"

discusses pre-Convention English judicial practice before recounting relevant exchanges during the Constitutional Convention and the ratification debates.[6]

Because the Framers drew upon their knowledge of English practice when designing the Constitution, the legal principles prevailing in England at the time of the Founding provide the starting point for understanding the "Case or Controversy" language's historical origins.[7] Some evidence suggests that English courts entertained a fairly broad array of disputes before the Founding, including certain cases intended to vindicate the public interest rather than merely the personal interests of the plaintiff himself. For example, a prominent English treatise from the seventeenth Century discusses a particular form of judicial relief that English courts could award at the behest of a "stranger"—i.e., one who was not a "party" to the action challenged in the case.[8] Similarly, a case from 1741 suggests that some litigants could pursue certain lawsuits in English courts even if they possessed only a "remote" interest in the subject of the litigation.[9] Other evidence, however, suggests that in certain contexts English courts demanded that litigants possess a direct personal stake in the subject matter of the litigation. For instance, in its discussion of a form of judicial relief known as the "writ of prohibition," an English treatise from 1736 states that "no Man is [e]ntitled to a Prohibition unless he is in Danger of being injured by some Suit actually depending."[10] Similarly, in his Commentaries on the Laws of England, Sir William Blackstone wrote that no private person could sue a defendant for a public or common nuisance unless the nuisance caused that private person "some extraordinary damage."[11]

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may differ from the definition of "Controversy," *compare, e.g.*, Akhil Reed Amar, *A Neo-Federalist View of Article III: Separating the Two Tiers of Federal Jurisdiction*, 65 B.U. L. Rev. 205, 244 n.128 (1985) (suggesting that "Cases" and "Controversies" are "legally synonymous"), *with, e.g.*, Robert J. Pushaw, Jr., *Article III's Case/Controversy Distinction and the Dual Functions of Federal Courts*, 69 Notre Dame L. Rev. 447, 448–49, 531 (1994) (concluding "that the Framers used 'cases' and 'controversy' as distinct terms to convey different meanings"); *See also* ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction (discussing the classes of "cases" and "controversies" established by Article III).

[6] Scholars have debated whether the historical evidence discussed in this essay supports the prevailing judicial interpretation of Article III. *Compare, e.g.*, Bruce J. Terris, *Ex Nihilo—The Supreme Court's Invention of Constitutional Standing*, 45 Envtl. L. 849, 849 (2015) (concluding that there is no historical evidence "that the Framers meant [Article III's 'case or controversy' language] to require a showing of injury"), *with, e.g.*, James Leonard & Joanne C. Brant, *The Half-Open Door: Article III, The Injury-in-Fact Rule, and the Framers' Plan for Federal Courts of Limited Jurisdiction*, 54 Rutgers L. Rev. 1, 2 (2001) ("[G]iven the historical context, the contemporary injury-in-fact rule is an acceptable interpretation of Article III because it reflects not only the Framers' likely concept of what the courts did, but also their view of the judicial role in maintaining the separation of powers."), *and* Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 Mich. L. Rev. 689, 691 (2004) ("We do not claim that history compels acceptance of the modern Supreme Court's vision of standing, or that the constitutional nature of standing doctrine was crystal clear from the moment of the Founding on. . . . We do, however, argue that history does not defeat standing doctrine; the notion of standing is not an innovation, and its constitutionalization does not contradict a settled historical consensus about the Constitution's meaning.").

[7] *See* Coleman v. Miller, 307 U.S. 433, 460 (1939) (Frankfurter, J.) ("[T]he framers of the Judiciary Article gave merely the outlines of what were to them the familiar operations of the English judicial system and its manifestations on this side of the ocean before the Union."); Raoul Berger, *Standing to Sue in Public Actions: Is it a Constitutional Requirement?*, 78 Yale L.J. 816, 816 (1969) ("[I]t is hardly to be doubted that the Framers contemplated resort to English practice for elucidation, and so the Supreme Court has often held.").

[8] *See, e.g.*, Edward Coke, The Second Part of the Institutes of the Lawes of England 602 (1642) ("[T]he [K]ings [C]ourts that may award prohibitions, being informed either by the parties themselves, or by any stranger, that any [C]ourt [T]emporall or [E]cclesiasticall doth hold plea of that (whereof they have not jurisdiction) may lawfully prohibit the same.") (emphasis added).

[9] Att'y Gen. v. Bucknall [1741] 26 Eng. Rep. 600, 600 ("Any persons, tho' the most remote in the contemplation of the charity, may be relators in an information. . . . It is not absolutely necessary that relators in an information for a charity, should be the persons principally interested.").

[10] 4 Matthew Bacon, A New Abridgement of the Law 244 (1736).

[11] *See* 3 William Blackstone, Commentaries on the Law of England 219–20 (William Carey Jones ed., 1916) ("[T]he law gives no private remedy for anything but a private wrong. Therefore, no action lies for a public or common nuisance, but an indictment only: because the damage being common to all the king's subjects, no one can assign his particular proportion of it: or if he could, it would be extremely hard, if every subject in the kingdom were allowed to

Although the Convention records do not explicitly discuss why the Framers used the terms "Cases" and "Controversies" in Article III,[12] at least three events during the Convention suggest that the Framers did not intend Article III to empower federal judges to adjudicate every type of dispute that came before them. For one, the Framers explicitly rejected proposals to authorize federal judges to review statutes before they became effective. On May 29, 1787, Edmund Randolph proposed that the President, along with "a convenient number of the National Judiciary," would "compose a council of revision with authority to examine every act of the National Legislature before it shall operate."[13] The Framers ultimately voted to reject this proposal (or variations on it) three times during the Convention.[14]

The Framers also took no action[15] on an August 20, 1787 proposal that would have granted "[e]ach branch of the Legislature, as well as the Supreme Executive," the "authority to require the opinions of the supreme Judicial Court upon important questions of law, and upon solemn occasions."[16] As a result of this proposal's failure, the Constitution as ratified contains no provision authorizing the federal courts to issue advisory opinions.[17]

Perhaps the most illuminating exchange between the Framers about the justiciability of disputes occurred on August 27, 1787,[18] when Dr. William Samuel Johnson proposed to extend the judicial power of the United States not just to cases arising under federal statutes, but also to cases arising under the Constitution itself.[19] James Madison expressed concern that this proposal could grant the Judiciary too much power, and insisted that the federal courts' jurisdiction should instead "be limited to cases of a Judiciary Nature" only.[20] Dr. Johnson's proposal nevertheless passed unanimously.[21] The Convention records reflect that the Framers

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harass the offender with separate actions. For this reason, no person, natural or corporate, can have an action for a public nuisance, or punish it; but only the king in his public capacity of supreme governor, and pater-familias of the kingdom. . . . Yet this rule admits of one exception; where a private person suffers some extraordinary damage, beyond the rest of the king's subjects, by a public nuisance; in which case he shall have a private satisfaction by action."). *See also* Spokeo, Inc. v. Robins, 136 S. Ct. 1540, 1551–52 (2016) (Thomas, J., concurring) (analyzing this excerpt from Blackstone's Commentaries in a modern Article III standing case).

[12] *See, e.g.*, Evan Tsen Lee & Josephine Mason Ellis, *The Standing Doctrine's Dirty Little Secret*, 107 Nw. U. L. Rev. 169, 232 (2012) ("There is scant evidence in the constitutional record regarding the drafting of what became the cases or language of Article III . . . the wording of 'cases' or 'controversies' seemed almost an afterthought."); James Leonard & Joanne C. Brant, *The Half-Open Door: Article III, The Injury-in-Fact Rule, and the Framers' Plan for Federal Courts of Limited Jurisdiction*, 54 Rutgers L. Rev. 1, 38 (2001) ("[T]he Framers . . . said next to nothing about the meaning of the case and controversy language in Article III."); Cass R. Sunstein, *What's Standing After Lujan? Of Citizen Suits, "Injuries," and Article III*, 91 Mich. L. Rev. 163, 173 (1992) ("There is relatively little explicit material on the Framers' conception of 'case or controversy.'").

[13] 1 The Records of the Federal Convention of 1787, at 21 (Max Farrand ed., 1911) [Farrand's Records].

[14] *Id.* at 140; 2 , *id.*, at 298.

[15] *See* Russell Wheeler, *Extrajudicial Activities of the Early Supreme Court, 1973* Sup. Ct. Rev. 123, 129 ("[T]he Constitutional Convention did not reject [this] motion, as is often assumed. The motion simply did not emerge from the Committee of Detail, to which he submitted it.") (footnote omitted); Raoul Berger, *Standing to Sue in Public Actions: Is it a Constitutional Requirement?*, 78 Yale L.J. 816, 830 n.72 (1969) (stating that the advisory opinion proposal "was referred to the Committee o[f] Detail and was heard of no more").

[16] 2 Farrand's Records, *supra* note 13, at 341.

[17] *Compare* U.S. Const. art. II, § 2 (authorizing the President to "require the [o]pinion, in writing, of the principal [o]fficer in each of the executive [d]epartments") *with* U.S. Const. art. III (containing no analogous provision authorizing the President to require the federal courts to issue advisory opinions). *See also* ArtIII.S2.C1.4.1 Overview of Advisory Opinions (defining "advisory opinions" and explaining that the Supreme Court has interpreted Article III to forbid federal courts from issuing them).

[18] *See* 2 Farrand's Records, *supra* note 13, at 430.

[19] *Id.* ("Docr. Johnson moved to insert the words 'this Constitution and the' before the word 'laws.'").

[20] *Id.* ("Mr. Madison doubted whether it was not going too far to extend the jurisdiction of the Court generally to cases arising Under the Constitution, & whether it ought not to be limited to cases of a Judiciary Nature. The right of expounding the Constitution in cases not of this nature ought not to be given to that Department.").

[21] *Id.* ("The motion of Docr. Johnson was agreed to nem: con:[.]").

discounted Madison's misgivings about granting the Federal Judiciary power over constitutional cases because the Framers "generally supposed" that the federal courts' jurisdiction would be "constructively limited to cases of a Judiciary nature."[22] This exchange therefore suggests that there are some disputes that arise under federal law, yet are still outside the federal courts' authority to adjudicate because they are not of "a Judiciary Nature."[23] The records of the Convention do not specify, however, what Madison and the other Framers understood "Judiciary Nature" to mean.[24]

Although the ratification debates that followed the Convention cast little light on the meaning of Article III's "Case or Controversy" language, they do at least reveal a consensus that federal judges would operate within a limited sphere.[25] Faced with Anti-Federalist criticisms that the Constitution would empower federal judges to "enlarge the sphere of their power beyond all bounds,"[26] supporters of the Constitution argued in the *Federalist Papers* that "the judicial authority" would have "precise limits beyond which the federal courts cannot extend their jurisdiction."[27]

ArtIII.S2.C1.3 Rules of Justiciability

ArtIII.S2.C1.3.1 Overview of Rules of Justiciability and Cases or Controversies Requirement

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The judicial power extends to nine classes of cases and controversies, which fall into two general groups. In the words of Chief Justice John Marshall in *Cohens v. Virginia*:[1] "In the first, jurisdiction depends on the character of the cause, whoever may be the parties. This class comprehends 'all cases in law and equity arising under this constitution, the laws of the United

[22] *Id.*

[23] Leonard & Brant, *supra* note 6, at 39 (arguing that "the reference to 'Judiciary Nature'" in the Convention records reflects "that the Framers believed that there were constitutional restrictions on the sort of cases that the federal courts could hear").

[24] *See* 2 Farrand's Records, *supra* note 13, at 430. *See also* Leonard & Brant, *supra* note 6, at 39 ("[T]he reference to 'Judiciary Nature' is somewhat cryptic.").

[25] *See, e.g.*, Jonathan T. Molot, *Principled Minimalism: Restriking the Balance Between Judicial Minimalism and Neutral Principles*, 90 Va. L. Rev. 1753, 1761–63 (2004) (explaining that the Federalists and Anti-Federalists both agreed that "judicial intrusions into the political realm" should be "limited").

[26] Brutus No. XII pt. 1. *See also* Brutus No. XI (expressing concern that the federal courts would exceed their jurisdiction); Brutus No. XV (warning "that the supreme court under this constitution would be exalted above all other power in the government, and subject to no control").

[27] The Federalist No. 83 (Alexander Hamilton). *See also* The Federalist No. 48 (James Madison) (stating that federal judges would have their powers limited by "landmarks, still less uncertain" than the restrictions limiting the political branches); The Federalist No. 78 (Alexander Hamilton) (arguing that the federal judiciary would be "the weakest of the three departments of power" in part because it would exercise "neither force nor will, but merely judgment"); The Federalist No. 81 (Alexander Hamilton) (emphasizing the "comparative weakness" of the Judicial Branch).

[1] 19 U.S. (6 Wheat.) 264 (1821).

States, and treaties made, or which shall be made, under their authority.' This cause extends the jurisdiction of the court to all the cases described, without making in its terms any exception whatever, and without any regard to the condition of the party. If there be any exception, it is to be implied, against the express words of the article. In the second class, the jurisdiction depends entirely on the character of the parties. In this are comprehended 'controversies between two or more states, between a state and citizens of another state,' and 'between a state and foreign states, citizens or subjects.' If these be the parties, it is entirely unimportant, what may be the subject of controversy. Be it what it may, these parties have a constitutional right to come into the courts of the Union."[2]

Judicial power is "the power of a court to decide and pronounce a judgment and carry it into effect between persons and parties who bring a case before it for decision."[3] The meaning attached to the terms "cases" and "controversies"[4] determines therefore the extent of the judicial power as well as the capacity of the federal courts to receive jurisdiction. According to Chief Justice Marshall, judicial power is capable of acting only when the subject is submitted in a case and a case arises only when a party asserts his rights "in a form prescribed by law."[5] "By cases and controversies are intended the claims of litigants brought before the courts for determination by such regular proceedings as are established by law or custom for the protection or enforcement of rights, or the prevention, redress, or punishment of wrongs. Whenever the claim of a party under the Constitution, laws, or treaties of the United States takes such a form that the judicial power is capable of acting upon it, then it has become a case. The term implies the existence of present or possible adverse parties whose contentions are submitted to the Court for adjudication."[6]

Chief Justice Charles Evans Hughes once essayed a definition, which, however, presents a substantial problem of labels. "A 'controversy' in this sense must be one that is appropriate for judicial determination. A justiciable controversy is thus distinguished from a difference or dispute of a hypothetical character; from one that is academic or moot. The controversy must be definite and concrete, touching the legal relations of parties having adverse legal interests. It must be a real and substantial controversy admitting of specific relief through a decree of a conclusive character, as distinguished from an opinion advising what the law would be upon a hypothetical state of facts."[7] Of the "case" and "controversy" requirement, Chief Justice Earl Warren admitted that "those two words have an iceberg quality, containing beneath their surface simplicity submerged complexities which go to the very heart of our constitutional form of government. Embodied in the words 'cases' and 'controversies' are two complementary but somewhat different limitations. In part those words limit the business of federal courts to questions presented in an adversary context and in a form historically viewed as capable of resolution through the judicial process. And in part those words define the role assigned to the Judiciary in a tripartite allocation of power to assure that the federal courts will not intrude into areas committed to the other branches of government. Justiciability is the term of art employed to give expression to this dual limitation placed upon federal courts by the case and

[2] 19 U.S. at 378.

[3] Muskrat v. United States, 219 U.S. 346, 356 (1911).

[4] The two terms may be used interchangeably, inasmuch as a "controversy," if distinguishable from a "case" at all, is so only because it is a less comprehensive word and includes only suits of a civil nature. Aetna Life Ins. Co. v. Haworth, 300 U.S. 227, 239 (1937).

[5] Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738 (1824).

[6] *In re* Pacific Ry. Comm'n, 32 F. 241, 255 (C.C. Calif. 1887) (Justice Field). *See also* Smith v. Adams, 130 U.S. 167, 173–174 (1889).

[7] Aetna Life Ins. Co. v. Haworth, 300 U.S. 227, 240–241 (1937). *Cf.* Public Service Comm'n v. Wycoff Co., 344 U.S. 237, 242 (1952).

controversy doctrine."[8] Justice Felix Frankfurter perhaps best captured the flavor of the "case" and "controversy" requirement by noting that it takes the "expert feel of lawyers" often to note it.[9]

From these quotations may be isolated several factors which, in one degree or another, go to make up a "case" and "controversy."

Almost inseparable from the requirements of adverse parties and substantial enough interests to confer standing is the requirement that a *real* issue be presented, as contrasted with speculative, abstract, hypothetical, or moot issues. It has long been the Court's "considered practice not to decide abstract, hypothetical or contingent questions."[10] A party cannot maintain a suit "for a mere declaration in the air."[11] In *Texas v. ICC*,[12] the State attempted to enjoin the enforcement of the Transportation Act of 1920 on the ground that it invaded the reserved rights of the State. The Court dismissed the complaint as presenting no case or controversy, declaring: "It is only where rights, in themselves appropriate subjects of judicial cognizance, are being, or about to be, affected prejudicially by the application or enforcement of a statute that its validity may be called in question by a suitor and determined by an exertion of the judicial power."[13] And in *Ashwander v. TVA*,[14] the Court refused to decide any issue save that of the validity of the contracts between the Authority and the Company. "The pronouncements, policies and program of the Tennessee Valley Authority and its directors, their motives and desires, did not give rise to a justiciable controversy save as they had fruition in action of a definite and concrete character constituting an actual or threatened interference with the rights of the person complaining."[15]

Concepts of real interest and abstract questions appeared prominently in *United Public Workers v. Mitchell*,[16] an omnibus attack on the constitutionality of the Hatch Act prohibitions on political activities by governmental employees. With one exception, none of the plaintiffs had violated the Act, though they stated they desired to engage in forbidden political actions. The Court found no justiciable controversy except in regard to the one, calling for "concrete legal issues, presented in actual cases, not abstractions," and seeing the suit as really an attack on the political expediency of the Act.[17]

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[8] Flast v. Cohen, 392 U.S. 83, 94–95 (1968).

[9] "The jurisdiction of the federal courts can be invoked only under circumstances which to the expert feel of lawyers constitute a 'case or controversy.'" Joint Anti-Fascist Refugee Comm. v. McGrath, 341 U.S. 123, 149, 150 (1951).

[10] Alabama State Fed'n of Labor v. McAdory, 325 U.S. 450, 461 (1945).

[11] Giles v. Harris, 189 U.S. 475, 486 (1903).

[12] 258 U.S. 158 (1922).

[13] 258 U.S. at 162.

[14] 297 U.S. 288 (1936).

[15] 297 U.S. at 324. Chief Justice Charles Evans Hughes cited *New York v. Illinois,* 274 U.S. 488 (1927), in which the Court dismissed as presenting abstract questions a suit about the possible effects of the diversion of water from Lake Michigan upon hypothetical water power developments in the indefinite future, and *Arizona v. California,* 283 U.S. 423 (1931), in which it was held that claims based merely upon assumed potential invasions of rights were insufficient to warrant judicial intervention. *See also* Massachusetts v. Mellon, 262 U.S. 447, 484–485 (1923); New Jersey v. Sargent, 269 U.S. 328, 338–340 (1926); Georgia v. Stanton, 73 U.S. (6 Wall.) 50, 76 (1868).

[16] 330 U.S. 75 (1947).

[17] 330 U.S. at 89–91. Justices Hugo Black and William Douglas dissented, contending that the controversy was justiciable. Justice William Douglas could not agree that the plaintiffs should have to violate the act and lose their jobs in order to test their rights. In *CSC v. National Ass'n of Letter Carriers,* 413 U.S. 548 (1973), the concerns expressed in *Mitchell* were largely ignored as the Court reached the merits in an anticipatory attack on the Act. *Compare* Epperson v. Arkansas, 393 U.S. 97 (1968).

ArtIII.S2.C1.3.2 Historical Background on Justiciability and Cases or Controversies Requirement

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The potential for abuse of judicial power was of concern to the Founding Fathers, leading them to establish limits on the circumstances in which the courts could consider cases. When, late in the Convention, a delegate proposed to extend the judicial power beyond the consideration of laws and treaties to include cases arising under the Constitution, James Madison's notes captured these concerns. "Mr. Madison doubted whether it was not going too far to extend the jurisdiction of the Court generally to cases arising under the Constitution, and whether it ought not to be limited to cases of a Judiciary Nature. The right of expounding the Constitution in cases not of this nature ought not to be given to that Department." Consequently, "[t]he motion of Docr. Johnson was agreed to nem: con: it being generally supposed that the jurisdiction given was constructively limited to cases of a Judiciary nature—."[1]

This passage, and the language of Article III, Section 2, makes clear that the Framers did not intend for federal judges to roam at large in construing the Constitution and laws of the United States, but rather preferred and provided for resolution of disputes arising in a "judicial" manner. This interpretation is reinforced by the refusal of the Convention to assign the judges the extra-judicial functions that some members of the Convention—Madison and James Wilson notably—conceived for them. Thus, for instance, the Convention four times voted down proposals for judges, along with Executive Branch officials, to sit on a council of revision with the power to veto laws passed by Congress.[2] A similar fate befell suggestions that the Chief Justice be a member of a privy council to assist the President[3] and that the President or either House of Congress be able to request advisory opinions of the Supreme Court.[4] The intent of the Framers in rejecting the latter proposal was early effectuated when the Justices declined a request of President Washington to tender him advice respecting legal issues growing out of United States neutrality between England and France in 1793.[5] Moreover, the refusal of the Justices to participate in a congressional plan for awarding veterans' pensions[6] bespoke a similar adherence to the restricted role of courts. These restrictions have been encapsulated in a series of principles or doctrines, the application of which determines whether

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[1] 2 Records of the Federal Convention of 1787, at 430 (Max Farrand ed., 1911).

[2] The proposal was contained in the Virginia Plan. 1 Records of the Federal Convention of 1787, at 21 (Max Farrand ed., 1911). For the four rejections, *see id.* at 97–104, 108–10, 138–40; 2 Records of the Federal Convention of 1787, at 73–80, 298 (Max Farrand ed., 1911).

[3] *Id.* at 328–29, 342–44. Although a truncated version of the proposal was reported by the Committee on Detail, *id.* at 367, the Convention never took it up.

[4] *Id.* at 340–41. The proposal was referred to the Committee on Detail and never heard of again.

[5] 1 C. Warren, *supra* at 108–111; 3 Correspondence and Public Papers of John Jay 633–635 (H. Johnston ed., 1893); H. Wechsler, Principles, Politics, and Fundamental Law: Selected Essays 50–52 (1961).

[6] Hayburn's Case, 2 U.S. (2 Dall.) 409 (1792) (discussed in ArtIII.S1.4.4 Inherent Power to Issue Judgments).

an issue is met for judicial resolution and whether the parties raising it are entitled to have it judicially resolved. Constitutional restrictions are intertwined with prudential considerations in the expression of these principles and doctrines, and it is seldom easy to separate the two strands.[7]

ArtIII.S2.C1.4 Advisory Opinions

ArtIII.S2.C1.4.1 Overview of Advisory Opinions

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

An advisory opinion is a non-binding interpretation of the law by a court,[1] essentially the court providing advice on an abstract or hypothetical legal question. The Supreme Court has defined an "advisory opinion" as an "advance expression[ ] of legal judgment upon issues" that are not before a court in the form of litigation involving concrete claims by adverse litigants.[2] The Court has long held that the language in Article III authorizing federal court jurisdiction over certain "Cases" and "Controversies" prohibits federal courts from issuing advisory opinions.[3] The Court has explained that cases seeking advisory opinions are not justiciable, meaning that the federal courts lack jurisdiction to decide such cases.[4]

The Supreme Court has recognized two primary reasons for the limitation on advisory opinions. First, the Court has explained that the "implicit policies in Article III" and separation of powers principles confine federal courts to assessing the validity of actions by the other branches of government only in the context of a case or controversy.[5] Second, the advisory opinion limitation promotes the prudential consideration that federal courts should decide legal questions in the context of an active, adversarial dispute. The Supreme Court has

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[7] *See, e.g.*, Justice Louis Brandeis dissenting in *Ashwander v. TVA,* 297 U.S. 288, 341, 345–348 (1936). *Cf.* Flast v. Cohen, 392 U.S. 83, 97 (1968); Rescue Army v. Municipal Court, 331 U.S. 549, 568–575 (1947).

[1] *Advisory Opinion* Black's Law Dictionary (11th ed. 2019).

[2] United States v. Fruehauf, 365 U.S. 146, 157 (1961).

[3] *E.g.*, Chi. & S. Air Lines v. Waterman S. S. Corp., 333 U.S. 103, 113–14 (1948) ("It has also been the firm and unvarying practice of Constitutional Courts to render no judgments not binding and conclusive on the parties and none that are subject to later review or alteration by administrative action.") (citing Hayburn's Case, 2 Dall. 409; United States v. Ferreira, 13 How. 40 (1852); Gordon v. United States, 117 U.S 697; *In re* Sanborn, 148 U.S. 222; Interstate Commerce Comm'n v. Brimson, 154 U.S. 447; La Abra Silver Mining Co. v. United States, 175 U.S. 423; Muskrat v. United States, 219 U.S. 346 (1911); United States v. Jefferson Electric Mfg. Co., 291 U.S. 386)).

[4] *See, e.g.*, Muskrat v. United States, 219 U.S. 346, 361–63 (1911). For discussion of other constitutional requirements related to justiciability, see generally Justiciability .

[5] Flast v. Cohen, 392 U.S. 83, 96 (1968). *See also* Muskrat v. United States, 219 U.S. 346, 357 (1911) ("[T]he right to declare an act of Congress unconstitutional [can] only be exercised when a proper case between opposing parties was submitted for judicial determination . . . there [is] no general veto power in the court upon the legislation of Congress.") (citing Marbury v. Madison, 5 U.S. (1 Cranch) 137, 176–80 (1803)); Osborn v. Bank of United States, 22 U.S. 738, 819 (1824) ("[The Judicial Power] is capable of acting only when the subject is submitted to it by a party who asserts his rights in the form prescribed by law.").

concluded that courts operate best when confronted with disputes that involve "a clash of adversary argument exploring every aspect of a multifaced situation embracing conflicting and demanding interests."[6]

The ban on advisory opinions has been recognized as being at the "core of Article III," and one commentator has noted that "other justiciability doctrines exist largely to ensure that federal courts will not issue advisory opinions."[7] Despite the importance of the rule against advisory opinions, the Supreme Court has at times lacked precision in explaining when a legal opinion becomes "advisory" in nature.[8] In particular, cases from the 1920s and 1930s grappled with the question of whether the prohibition on advisory opinions also banned federal courts from issuing declaratory judgments—binding decisions that establish the legal rights of the parties without awarding other relief.[9] The following essays provide an overview of the prohibition against advisory opinions,[10] then discuss the relationship between advisory opinions and declaratory judgments.[11]

ArtIII.S2.C1.4.2 Advisory Opinion Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

At the time of the Founding, both English law[1] and existing state constitutions[2] allowed courts to issue advisory opinions. Nonetheless, the Framers declined to include explicit

[6] *Flast*, 392 U.S. at 96–97 (1968) (quoting United States v. Fruehauf, 365 U.S. 146, 157 (1961)). *See also* Golden v. Zwickler, 394 U.S. 103, 108 (1969) ("[T]he federal courts established pursuant to Article III of the Constitution do not render advisory opinions. . . . '[C]oncrete legal issues, presented in actual cases, not abstractions,' are requisite.").

[7] Erwin Chemerinsky, Federal Jurisdiction § 2.2 (6th ed. 2012). *See also* California v. Texas, 141 S. Ct. 2104, 2116 (2021) ("To find standing here to attack an unenforceable statutory provision would allow a federal court to issue what would amount to an advisory opinion without the possibility of any judicial relief." (internal quotes and citation omitted)); Carney v. Adams, 141 S. Ct. 493, 498 (2020).

[8] Evan Tsen Lee, *Deconstitutionalizing Justiciability: The Example of Mootness*, 105 Harv. L. Rev. 603, 648 (1992) (arguing that the Supreme Court has been "extremely sloppy" in the use of the phrase "advisory opinions").

[9] *See* ArtIII.S2.C1.4.3 Advisory Opinions and Declaratory Judgments.

[10] *See* ArtIII.S2.C1.4.2 Advisory Opinion Doctrine.

[11] *See* ArtIII.S2.C1.4.3 Advisory Opinions and Declaratory Judgments.

[1] Flast v. Cohen, 392 U.S. 83, 96 (1968) ("[T]he power of English judges to delivery advisory opinions was well established [at the Founding].") (citing 3 K. Davis, Administrative Law Treatise 127–128 (1958)). *See also* 1 William Blackstone, Commentaries 162 (1765) (noting that Members of the House of Lords "have a right to be attended, and constantly are, by the judges of the court of king's bench and commonpleas, and such of the barons of the exchequer as are of the degree of the coif, or have been made serjeants at law; as likewise by the masters of the court of chancery; for their advice in point of law, and for the greater dignity of their proceedings."). *But see* Sackville's Case (1760), 28 Eng. Rep. 940, 2 Eden, 371 (issuing a formal, written extrajudicial opinion to the King as to whether an army officer could be tried by court martial, but noting that, according to Lord Mansfield, the judges are "very averse to giving extra-judicial opinions, especially where they affect a particular case").

[2] Mass. Const. ch. III, art. II. ("Each branch of the legislature, as well as the governor or the council, shall have authority to require the opinions of the justices of the supreme judicial court, upon important questions of law, and upon solemn occasions."). *See also* N.H. Const. art. 74 ("Each branch of the legislature as well as the governor and council shall have authority to require the opinions of the justices of the supreme court upon important questions of law and upon solemn occasions.").

language in the Constitution that would have imposed an advisory role for the Supreme Court or other federal courts.[3] The final version of Article III states only that the "judicial power shall extend to" certain categories of "Cases" and "Controversies."[4] Although that language does not conclusively resolve the question of whether courts have the power to issue advisory opinions,[5] the Supreme Court resolved the issue early in the nation's history in two key cases.

The Supreme Court first issued a decision related to advisory opinions (albeit without using the term) in 1792, in *Hayburn's Case*.[6] In that case, the Supreme Court considered a petition for a writ of mandamus to direct a federal circuit court to proceed on a claim seeking a federal pension. The petitioner argued that the courts had failed to give effect to an act of Congress. The Court noted, however, that "the reasons assigned by the judges," including Supreme Court Justices sitting on the circuit courts, "for declining to execute the . . . act of Congress, involve a great constitutional question."[7] Specifically, those judges contended that pension decisions under the Act were not judicial duties that Congress could constitutionally assign to the courts because the Act subjected such decisions to "revision and control" by the legislature and an officer in the Executive department.[8] They determined that such control was "radically inconsistent with the independence of that judicial power which is vested in the courts" by the Constitution.[9] While *Hayburn's Case* remained pending, Congress enacted legislation providing an alternative means of relief for the pensioners; the Court then dismissed the mandamus petition without deciding the underlying constitutional question.[10] However, the circuit court opinions declining to issue non-final pension decisions have become an accepted part of the Court's justiciability jurisprudence. The Court has since confirmed that it has no jurisdiction where an opinion would be subject to later review and revision, as such a ruling can amount to no more than advice.[11]

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[3] *See* James Madison, James Madison's Notes of the Constitutional Convention, Max Farrand, 1 The Records of the Federal Convention of 1787 17–23 (1911) (providing for "a convenient number of the National Judiciary, ought to compose a council of revision with authority to examine every act of the National Legislature before it shall operate"); Virginia (Randolph) Plan as Amended (providing that "the jurisdiction of the national Judiciary shall extend to . . . questions which involve the national peace and harmony."); James Madison, James Madison's Notes of the Constitutional Convention, Max Farrand, 2 The Records of the Federal Convention of 1787, at 334 ("Each branch of the Legislature, as well as the Supreme Executive shall have authority to require the opinions of the supreme Judicial Court upon important questions of law, and upon solemn occasions."). *See also* James Madison, James Madison's Notes of the Constitutional Convention, Max Farrand, 1 The Records of the Federal Convention of 1787 96–105 (1911) ("It was quite foreign from the nature of [the judicial] office to make them judges of the policy of public measures.") (quoting Elbridge Gerry, a delegate from Massachusetts).

[4] U.S. Const. art. III, § 2.

[5] *Compare with* U.S. Const. art. II, § 2 ("The President . . . may require the Opinion, in writing, of the principal Officer in each of the *executive* Departments.") (emphasis added).

[6] 2 U.S. (2 Dall.) 409 (1792).

[7] *Id.* at 410, footnote.

[8] *Id.*.

[9] *Id. See also* Plaut v. Spendthrift Farm, Inc., 514 U.S. 211, 219 (1995) (holding that congressional statute that "retroactively command[ed] the federal courts" to reopen final judgments was unconstitutional). *But see* Patchak v. Zinke, 138 S. Ct. 897, 905 (2018) (plurality) ("The separation of powers, among other things, prevents Congress from exercising the judicial power . . . At the same time, the legislative power is the power to make law, and Congress can make laws that apply retroactively to pending lawsuits, even when it effectively ensures that one side wins."); Bank Markazi v. Peterson, 136 S. Ct. 1310, 1325 (2016) ("Congress may indeed direct courts to apply new enacted, outcome-altering legislation in pending civil cases."). *See also Constitution Annotated* III.3.2.2.3.

[10] *Id.*

[11] *See, e.g.*, Ashwander v. Tennessee Valley Auth., 297 U.S. 288, 346–48 (1936) (Brandeis, J., concurring) (citing *Hayburn's Case* for the proposition that "the jurisdiction of federal courts is limited to actual cases and controversies; and that they have no power to give advisory opinions"). *See also* Chi. & S. Air Lines, Inc. v. Waterman S.S. Corp. 333 U.S. 103, 113–14 (1948) ("To revise or review an administrative decision which has only the force of a recommendation . . . would be to render an advisory opinion in its most obnoxious form."); United States v. Ferreira, 54 U.S. (13 How.)

The Supreme Court produced the second early precedent against advisory opinions in 1793. In that year, President George Washington, seeking to determine the United States' legal rights and obligations in relation to ongoing conflicts between the European powers of France and Britain, sent a letter through his Secretary of State, Thomas Jefferson, to the Justices of the Supreme Court.[12] The letter asked if the Justices would be willing to render opinions on a number of legal questions of "considerable difficulty" that "do not give a cognizance of them to the tribunals of the country."[13] The Justices declined to provide an answer. Chief Justice John Jay drafted a response to the President explaining that "[t]he lines of separation drawn by the Constitution between the three departments of government . . . and our being judges of a court in the last resort . . . are considerations which afford strong arguments against the propriety of our extrajudicially deciding the questions alluded to."[14] Although the letter was not an official opinion of the Court, the Court has since cited it as a major source of the rule against advisory opinions.[15]

Subsequent precedents and practice have reaffirmed the prohibition on advisory opinions but raised some questions about its scope. In the 1948 case *Chicago & Southern Air Lines v. Waterman S. S. Corp.*, the Court refused a private party's request for review of an order of the Civil Aeronautics Board that was, in effect, merely a recommendation to the President for his final action.[16] The Court explained that a judicial decision on the matter would be "an advisory opinion in its most obnoxious form—advice that the President has not asked, tendered at the demand of a private litigant, on a subject concededly within the President's exclusive, ultimate control."[17] While the Court's refusal to act was based in part on the risk of intruding on the President's authority, the Court also made clear that was not the sole relevant factor, as the Judiciary had "early and wisely determined that it would not give advisory opinions even when asked by the Chief Executive."[18]

The majority opinion in *Chicago & Southern Air Lines* stated that it has been "the firm and unvarying practice of Constitutional Courts to render no judgments not binding and conclusive on the parties and none that are subject to later review or alteration by administrative action."[19] However, while the Court has declined to issue advisory opinions via formal judicial decisions, Supreme Court Justices have at times offered their thoughts on the law in an informal capacity. For instance, in response to a letter calling for suggestions to improve in the operation of the courts, Supreme Court Justices drafted a letter suggesting that the requirement that Justices ride circuit was unconstitutional, though apparently they never

40, 48 (1852) (noting that the powers of a commissioner to "adjust claims to lands or money" is not "judicial . . . in the sense in which judicial power is granted by the Constitution to the courts of the United States").

[12] Letter from Thomas Jefferson, Sec. of State, to Chief Justice Jay and Associate Justices (July 18, 1793), *reprinted in* Richard H. Fallon, Jr., et al., Hart and Wechsler's The Federal Courts and the Federal System 50–51 (7th ed. 2015).

[13] *Id.*

[14] Letter from Chief Justice Jay and Associate Justices to President George Washington (August 8, 1793) *reprinted in* Richard H. Fallon, Jr., et al., Hart and Wechsler's The Federal Courts and the Federal System 52 (7th ed. 2015).

[15] Vieth v. Jubelirer, 541 U.S. 267, 302 (2004) (plurality) (noting that 1793 correspondence involved "categorical" statement by the Court that the "giving of advisory opinions" was beyond the judiciary's power); Flast v. Cohen, 392 U.S. 83, 96 n.14 (1968) (noting that "[t]he rule against advisory opinions was established as early as 1793 . . . and the rule has been adhered to without deviation."). *See also* Muskrat v. United States, 219 U.S. 346, 354 (1911) (citing the 1793 correspondence in refusing to take jurisdiction over a case brought under a statute creating a lawsuit devised to test the constitutionality of a different statute).

[16] 333 U.S. 103 (1948).

[17] *Id.* at 113.

[18] *Id.*

[19] *Id.*

sent it.[20] Justice William Johnson communicated to President James Monroe, apparently with the knowledge and approval of the other Justices, the views of the Justices on the constitutionality of internal improvements legislation.[21] In addition, Chief Justice Charles Evans Hughes sent a letter to Senator Burton K. Wheeler questioning the constitutionality of a proposal from President Franklin Delano Roosevelt's administration to increase the membership of the Supreme Court and have the Court sit in divisions.[22] Other Justices have individually served as advisers and confidants of Presidents to one degree or another.[23]

Some commentators also contend that the precise meaning of the ban on advisory opinions became blurred in the twentieth century, as the Court has used the phrase to refer to a number of different distinct limitations on federal courts.[24] Primarily, the Court has used the term in reference to the Article III justiciability limitations on federal courts' jurisdiction, such as mootness or standing.[25] However, the Court has also linked the ban on advisory opinions to modern prudential doctrines, such as the Supreme Court's practice of not deciding questions in state court cases that have been resolved on a separate and independent state law ground,[26] and the practices of courts to avoid reaching constitutional issues or questions not necessary to the determination of the case.[27] These varying uses of the term "advisory opinion," combined

[20] 2 The Documentary History of the Supreme Court of the United States, 1789–1800: The Justices on Circuit: 1790–1794, at 89–91 (Maeva Marcus ed., 1985).

[21] 1 C. Warren, The Supreme Court in United States History 595–597 (1926).

[22] *Reorganization of the Judiciary: Hearings on S. 1392 Before the Senate Judiciary Committee*, 75th Congress, 1st Sess. (1937), pt. 3, 491. *See also* Chief Justice Roger B. Taney's private advisory opinion to the Secretary of the Treasury that a tax levied on the salaries of federal judges violated the Constitution. S. Tyler, Memoirs of Roger B. Taney 432–435 (1876).

[23] *E.g.*, Acheson, *Removing the Shadow Cast on the Courts*, 55 A.B.A.J. 919 (1969); Jaffe, *Professors and Judges as Advisors to Government: Reflections on the Roosevelt-Frankfurter Relationship*, 83 Harv. L. Rev. 366 (1969). The issue earned the attention of the Supreme Court when it upheld the congressionally authorized service of federal judges on the Sentencing Commission. Mistretta v. United States, 488 U.S. 361, 397–408 (1989) (citing examples and detailed secondary sources).

[24] *See* Evan Tsen Lee, *Deconstitutionalizing Justiciability: The Example of Mootness*, 105 Harv. L. Rev. 603, 648 (1992); *see also* Wright, Miller, & Cooper, 13 Fed. Prac. & Proc. Juris. § 3529.1 (3d ed.) (discussing different uses of the term).

[25] *See, e.g.*, Preiser v. Newkirk, 422 U.S. 395, 401 (1975) (noting that "[t]he exercise of judicial power under Art. III of the Constitution depends on the existence of a case or controversy" and that this is tied to the lack of power to issue advisory opinions); North Carolina v. Rice, 404 U.S. 244, 246 (1971) (dismissing case on grounds of mootness, noting that "this Court [has] no power to issue advisory opinions"); Hall v. Beals, 396 U.S. 45, 48 (1969) (in holding that recent amendment by Colorado Legislature rendered case moot, observing that "The case has therefore lost its character as a present, live controversy of the kind that must exist if we are to avoid advisory opinions on abstract propositions of law"); Pub. Workers v. Mitchell, 330 U.S. 75, 89 (1947) (in finding that plaintiffs' claims not a justiciable "case or controversy" under Article III, noting that "[a]s is well known, the federal courts established pursuant to Article III of the Constitution do not render advisory opinions"); St. Pierre v. United States, 319 U.S. 41, 42 (1943) ("A federal court is without power to decide moot questions or to give advisory opinions which cannot affect the rights of the litigants in the case before it.").

[26] *See* Herb v. Pitcairn, 324 U.S. 117, 126 (1945) ("We are not permitted to render an advisory opinion, and if the same judgment would be rendered by the state court after we corrected its views of federal laws, our review could amount to nothing more than an advisory opinion."). *See also* Lambrix v. Singletary, 520 U.S. 518, 522–23 (1997) ("We in fact lack jurisdiction to review such independently supported judgments on direct appeal: since the state-law determination is sufficient to sustain the decree, any opinion of this Court on the federal question would be purely advisory.").

[27] *See* Ashwander v. Tennessee Valley Auth., 297 U.S. 288, 346–48 (1936) (Brandeis, J., concurring) (noting that the federal courts "have no power to give advisory opinions" and discussing rules by which the Court has "avoiding passing upon a large part of all the constitutional questions pressed upon it for decision"). *See also* Lee, *supra* note 24, at 648–49 (discussing application of "advisory opinion" label to dicta).

with the fact that the Court has referenced it less frequently than any other justiciability rule,[28] have created confusion among scholars or practitioners about the precise meaning of the prohibition.

Beyond its constitutional role, the Court's rule against advisory opinions has repeatedly been recognized or applied in other, non-constitutional contexts. For instance, as noted, the Court has invoked the ban on advisory opinions to justify its practice of not deciding questions in state court cases that have been decided on a separate and independent state law ground.[29] The Court has also suggested that the advisory opinion ban might be relevant to other legal questions, such as whether the Court should issue purely prospective decisions,[30] whether a federal court should render alternative holdings or issue dicta,[31] and whether individual Justices should "engage[ ] in extrajudicial expression of their legal views."[32] As these references show, although the ban on advisory opinions is only rarely invoked by the Supreme Court, its implications are felt throughout the Court's jurisprudence and throughout the law.[33]

ArtIII.S2.C1.4.3 Advisory Opinions and Declaratory Judgments

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In contrast to a non-binding advisory opinion, a declaratory judgment is a "binding adjudication that establishes the rights and other legal relations of the parties without

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[28] Erwin Chemerinsky, Federal Jurisdiction § 2.2 (6th ed. 2012) (noting that "the Supreme Court expressly refers to the ban on advisory opinions less frequently than the other justiciability doctrines").

[29] *See Herb*, 324 U.S. at 126 ("We are not permitted to render an advisory opinion, and if the same judgment would be rendered by the state court after we corrected its views of federal laws, our review could amount to nothing more than an advisory opinion."). *See also Lambrix*, 520 U.S. at 522–23 ("We in fact lack jurisdiction to review such independently supported judgments on direct appeal: since the state-law determination is sufficient to sustain the decree, any opinion of this Court on the federal question would be purely advisory."). *But see* 16B Charles A. Wright, Arthur R. Miller, et al., Federal Practice and Procedure § 4021 (3d ed. 2018) (explanation that adequate-state-ground rule rests on prohibition against rendering advisory opinions is "circular"; in addition, "advisory opinion doctrine is [ ] inadequate to describe the full range of practice with respect to state law questions.").

[30] Stovall v. Denno, 388 U.S. 293, 301 (1967) (refusing to make a criminal procedure rule generally retroactive, holding it applied only to future cases plus the case announcing the rule, despite the resulting inequality to other pending cases, noting that the rule could not be purely prospective because of "[s]ound policies of decision-making, rooted in the command of Article III of the Constitution that we resolve issues solely in concrete cases or controversies"). *See also* Richard H. Fallon, Jr., et al., Hart and Wechsler's The Federal Courts and the Federal System 54 (7th ed. 2015) (evaluating arguments about whether purely prospective decision would constitute an advisory opinion forbidden by Article III).

[31] *See, e.g.*, Fallon, *supra* note 30, at 55 (asking whether "[w]hen a Court renders alternative holdings, has it violated constitutional norms?").

[32] *Id.* at 56 (citing examples of extrajudicial expressions of Justices' views).

[33] In a few other areas, courts issue opinions that might be considered "advisory," insofar as they do not directly affect the parties before the court. *See* Thomas Healy, *The Rise of Unnecessary Constitutional Rulings*, 83 N.C. L. Rev. 847 (2005) (considering the Court's examination of "unnecessary" constitutional issues in four contexts, qualified immunity, habeas corpus, harmless error, and Fourth Amendment good faith, and considering whether and when this practice can be consistent with the ban on advisory opinions). However, the Supreme Court has not addressed whether this practice can be reconciled with the ban on advisory opinions.

providing for or ordering enforcement."[1] While the two types of decisions are distinct, they share some similarities—for instance, neither directly yields an enforceable judgment. Thus, some Supreme Court cases from the 1920s and 1930s held that requests for declaratory relief were functionally requests for advisory opinions and thus outside the jurisdiction of the federal courts.[2] By contrast, other roughly contemporaneous decisions suggested that federal courts could issue declaratory judgments.[3]

Congress took up the issue in the Federal Declaratory Judgment Act of 1934.[4] The 1934 Act provided that "[i]n cases of actual controversy" federal courts could "declare rights and other legal relations of any interested party petitioning for such declaration, whether or not further relief is or could be prayed."[5] The Senate report on the Act stated:

> The declaratory judgment differs in no essential respect from any other judgment except that it is not followed by a decree for damages, injunction, specific performance, or other immediately coercive decree. It declares conclusively and finally the rights of parties in litigations over a contested issue, a form of relief which often suffices to settle controversies and fully administer justice.[6]

The Supreme Court unanimously upheld the Act against a constitutional challenge in *Aetna Life Ins. Co. v. Haworth*.[7] In *Aetna Life*, the plaintiff, an insurance company, brought suit under the Act seeking a judicial declaration of its obligations to the insured defendant.[8] The Court noted that the 1934 Act, "in its limitation to 'cases of actual controversy,' manifestly has regard to the constitutional provision and is operative only in respect to controversies which are such in the constitutional sense."[9] In concluding that the case before it was not a request for an advisory opinion, the Court described advisory opinions as opinions on a "hypothetical basis," in contrast with "adjudication[s] of present right upon established fact."[10] The Court concluded that justiciable controversies under the Constitution must be concrete, as "distinguished from a difference or dispute of a hypothetical or abstract character," and must be "admitting of specific relief through a decree of conclusive character."[11] In *Aetna Life*, those requirements were met because the parties' dispute of fact on the insured's disability or lack thereof was "essentially the same whether it [was] presented by the insured or the insurer"

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[1] Declaratory Judgment, Black's Law Dictionary (11th ed. 2019).

[2] *See* Piedmont & Northern Ry. v. United States, 280 U.S. 469, 477 (1930) ("What plaintiffs are seeking is, therefore, in substance, a declaratory judgment that the Railway is within the exemption contained in paragraph 22 of the Act. Such a remedy is not within either the statutory or the equity jurisdiction of federal courts."); Willing v. Chi. Auditorium Ass'n, 277 U.S. 274, 289 (1928) ("What the plaintiff seeks is simply a declaratory judgment. To grant that relief is beyond the power conferred upon the federal judiciary.").

[3] Fidelity Nat'l Bank & Tr. Co. v. Swope, 274 U.S. 123 (1927); Nashville, C. & St. L. Ry. v. Wallace, 288 U.S. 249 (1933). *Wallace* was cited with approval inMedimmune, Inc. v. Genentech, Inc., 549 U.S. 118, 120 (2007) ("Article III's limitation of federal courts' jurisdiction to "Cases' and "Controversies,' reflected in the "actual controversy' requirement of the Declaratory Judgment Act, 28 U.S.C. § 2201(a), [does not] require[ ] a patent licensee to terminate or be in breach of its license agreement before it can seek a declaratory judgment that the underlying patent is invalid, unenforceable, or not infringed.").

[4] 48 Stat. 955, as amended, 28 U.S.C. §§ 2201–2202 .

[5] 48 Stat. 955. The language remains quite similar. 28 U.S.C. § 2201.

[6] S. Rep. No. 1005, 73d Congress, 2d Sess. (1934), 2. *See also* H. Rep. No. 1264, 73d Congress, 2d Sess. (1934), 2 (stating the intent "to confer upon the courts the power to exercise in some instances preventive relief; a function now performed rather clumsily by our equitable proceedings and inadequately by the law courts").

[7] 300 U.S. 227 (1937).

[8] *Id.* at 237–39.

[9] *Id.* at 239–40.

[10] *Id.* at 242.

[11] *Id.* at 240–41.

and could be cleanly resolved by a court.[12] As the Court explained, "[i]t is the nature of the controversy, not the method of its presentation or the particular party who presents it, that is determinative."[13]

The holding in *Aetna Life* does not dictate that requests for a declaratory judgment brought under the Declaratory Judgment Act should always be regarded as a "case or controversy." In contrast with *Aetna Life*, in the 1998 case *Calderon v. Ashmus*,[14] the Court held there was no case or controversy presented when a California inmate brought a class action lawsuit on behalf of all California death row inmates under the Declaratory Judgment Act. The inmates had sought a declaration that California death row inmates fell under certain provisions of the Antiterrorism and Effective Death Penalty Act of 1996, which would have affected the statute of limitations that applied to the inmates' federal habeas proceedings challenging their convictions or their sentences.[15] In a ruling that relied on the doctrine of standing, the Court cited the lack of an imminent need for the resolution of the issues presented and noted that even a favorable resolution for the plaintiff would only resolve the "single issue" of the statute of limitations, leaving the remainder of the dispute to other lawsuits.[16] In light of those facts, the Court concluded that the question presented was not "concrete enough" to justify Article III jurisdiction.[17]

As a general matter, the Court has insisted that "the requirements for a justiciable case or controversy are no less strict in a declaratory judgment proceeding than in any other type of suit,"[18] but has declined to adopt a bright-line test for when courts may issue declaratory judgments. As one decision explained: "The difference between an abstract question and a 'controversy' contemplated by the Declaratory Judgment Act is necessarily one of degree, and it would be difficult, if it would be possible, to fashion a precise test for determining in every case whether there is such a controversy."[19] Rather, the Court must consider in each case "whether the facts alleged, under all the circumstances, show that there is a substantial controversy, between parties having adverse legal interests, of sufficient immediacy and reality to warrant the issuance of a declaratory judgment."[20] Even if a declaratory judgment case presents a potentially justiciable case or controversy, the Court is not required to exercise its jurisdiction.[21]

Parties commonly seek declaratory judgments to settle disputes and identify rights in private areas, including insurance and patents in particular but extending into all areas of civil litigation. By statute, declaratory judgments are not available in tax cases.[22] Moreover, the Court has demonstrated reluctance to issue declaratory judgments resolving important

[12] *Id.* at 244.

[13] *Id.*

[14] 523 U.S. 740 (1998).

[15] *Id.* at 742–43.

[16] *Id.* at 748–49.

[17] *Id.* at 749.

[18] Alabama State Fed'n of Labor v. McAdory, 325 U.S. 450, 461 (1945).

[19] Maryland Cas. Co. v. Pacific Coal & Oil Co., 312 U.S. 270, 273 (1941).

[20] *Id.*

[21] Brillhart v. Excess Ins. Co. of Am., 316 U.S. 491, 494 (1942); Pub. Serv. Comm'n v. Wycoff Co., 344 U.S. 237, 243 (1952); Pub. Affairs Assocs. v. Rickover, 369 U.S. 111, 112 (1962). *See also* Wilton v. Seven Falls Co., 515 U.S. 277 (1995).

[22] Congress added an exception to the Declaratory Judgment Act with respect to federal taxes in 1935. 49 Stat. 1027. The Tax Injunction Act of 1937, 50 Stat. 738, 28 U.S.C. § 1341, prohibited federal injunctive relief directed at state taxes but said nothing about declaratory relief. It was held to apply, however, in *California v. Grace Brethren Church,* 457 U.S. 393 (1982). Earlier, in *Great Lakes Dredge & Dock Co. v. Huffman,* 319 U.S. 293 (1943), the Court had reserved the issue but held that considerations of comity should preclude federal courts from giving declaratory relief in such cases. *Cf.* Fair Assessment in Real Estate Ass'n v. McNary, 454 U.S. 100 (1981).

questions of public law, especially regarding the validity of legislation.[23] In such cases, the Court has strictly insisted that the controversy presented meet justiciability requirements such as concreteness and ripeness.[24] Notwithstanding those restrictions, several noteworthy constitutional decisions have been rendered in declaratory judgment actions.[25]

ArtIII.S2.C1.5 Adversity

ArtIII.S2.C1.5.1 Overview of Adversity Requirement

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The requirement that a case involve litigants who are genuinely adverse to each other imposes another limitation on the justiciability of disputes in federal court.[1] The Supreme Court has interpreted Article III of the Constitution to forbid federal courts from issuing binding judgments in cases that do not present "an honest and actual antagonistic assertion of rights by one party against another."[2] According to the Court, this adversity requirement helps ensure that the parties provide the Judiciary the factual information and legal advocacy it needs to resolve issues correctly.[3] Thus, where all the parties in a case seek the same result, there is generally no "Case" or "Controversy" under Article III, and the Court lacks jurisdiction to issue a ruling.[4] To the extent this limitation on federal jurisdiction derives from Article III of the Constitution, the courts may not modify it, and Congress cannot alter it without amending the Constitution.[5]

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[23] *E.g.*, Ashwander v. Tennessee Valley Auth., 297 U.S. 288 (1936); Electric Bond Co. v. SEC, 303 U.S. 419 (1938); United Pub. Workers v. Mitchell, 330 U.S. 75 (1947); Eccles v. Peoples Bank, 333 U.S. 426 (1948); Rescue Army v. Municipal Court, 331 U.S. 549, 572–73 (1947).

[24] *United Pub. Workers*, 330 U.S. 75; Poe v. Ullman, 367 U.S. 497 (1961); Altvater v. Freeman, 319 U.S. 359 (1943); International Longshoremen's Union v. Boyd, 347 U.S. 222 (1954); Pub. Serv. Comm'n v. Wycoff Co., 344 U.S. 237 (1952).

[25] *E.g.*, Currin v. Wallace, 306 U.S. 1 (1939); Perkins v. Elg, 307 U.S. 325 (1939); Ashwander v. Tennessee Valley Auth., 297 U.S. 288 (1936); Evers v. Dwyer, 358 U.S. 202 (1958).

[1] *See, e.g.*, GTE Sylvania, Inc. v. Consumers Union of United States, Inc., 445 U.S. 375, 382 (1980) (holding that Article III limits "the business of federal courts to questions presented in an adversary context") (quoting Flast v. Cohen, 392 U.S. 83, 95 (1968)).

[2] *See* United States Nat'l Bank of Or. v. Indep. Ins. Agents of Am., Inc., 508 U.S. 439, 446 (1993) (quoting Muskrat v. United States, 219 U.S. 346, 359 (1911)) (brackets omitted). *See also* Ayestas v. Davis, 138 S. Ct. 1080, 1090 (2018) ("[C]ases and controversies in our legal system are adversarial in nature.").

[3] *See, e.g.*, *GTE Sylvania*, 445 U.S. at 382–83 (stating that "[t]he clash of adverse parties" in a lawsuit "sharpens the presentation of issues upon which the court so largely depends for illumination of difficult questions") (quoting O'Shea v. Littleton, 414 U.S. 488, 494 (1974)) (ellipses omitted).

[4] Moore v. Charlotte-Mecklenburg Bd. of Educ., 402 U.S. 47, 48 (1971) (per curiam). *See also*, *e.g.*, *GTE Sylvania*, 445 U.S. at 383.

[5] *See*, *e.g.*, *Muskrat*, 219 U.S. at 362 (holding that Congress "exceeded the limitations of legislative authority" by purporting to authorize federal courts to adjudicate disputes between non-adverse parties); *id*. at 361 (holding that Article III limits the federal judicial power to "determin[ing] actual controversies arising between adverse litigants").

The adversity requirement is closely related to other constitutional justiciability doctrines, especially Article III standing[6] and the bar against advisory opinions.[7] As explained in greater detail below, however, the adversity requirement has diminished in importance at the same time as the Supreme Court has applied other Article III justiciability doctrines—particularly Article III standing—more stringently over time.[8]

ArtIII.S2.C1.5.2 Early Adversity Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court's 1850 opinion in *Lord v. Veazie* is the seminal Supreme Court case establishing the adversity requirement.[1] The defendant in *Lord*, John W. Veazie, wanted the legal right to use the Penobscot River in Maine for transportation and navigation.[2] A gentleman named Moor, however, claimed to possess the sole right to navigate the river.[3] Veazie therefore tried to obtain a judicial declaration that he, not Moor, had the right to use the river.[4] Thus, Veazie and his brother-in-law,[5] Nathaniel Lord, entered into a contract warranting that Veazie held "the right to use the waters of the Penobscot River."[6] Lord then sued Veazie and asked the court to decide whether Veazie or Moor held the rights to the river.[7]

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[6] *See, e.g.*, *Flast*, 392 U.S. at 100 ("[T]he standing requirement is closely related to, although more general than, the rule that federal courts will not entertain friendly suits or those which are feigned or collusive in nature.") (internal citations omitted); Baker v. Carr, 369 U.S. 186, 204 (1962) ("Have the appellants alleged such a personal stake in the outcome of the controversy as to *assure that concrete adverseness* which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions? *This is the gist of the question of standing*.") (emphases added).

[7] *See*, *e.g.*, Princeton Univ. v. Schmid, 455 U.S. 100, 102 (1982) (per curiam) ("We do not sit to decide hypothetical issues or to give *advisory opinions* about issues as to which *there are not adverse parties* before us.") (emphases added); *Flast*, 392 U.S. at 96–97 ("[T]he *rule against advisory opinions* also recognizes that such suits often 'are not pressed before the Court with that clear concreteness provided . . . from a *clash of adversary argument*[.]'") (quoting United States v. Fruehauf, 365 U.S. 146, 157 (1961)) (emphases added); *Muskrat*, 219 U.S. at 362 ("If such actions . . . are sustained, the result will be that this court, instead of keeping within the limits of judicial power, and deciding cases or controversies *arising between opposing parties* . . . will be required to give *opinions in the nature of advice* concerning legislative action[.]") (emphases added). *See generally* ArtIII.S2.C1.4.1 Overview of Advisory Opinions (analyzing the bar on advisory opinions).

[8] *See, e.g.*, United States v. Windsor, 570 U.S. 744, 755–63 (2013) (rejecting argument that defendant's nondefense of statute challenged by plaintiff rendered the parties insufficiently adverse partly because the parties had satisfied Article III's standing requirements).

[1] 49 U.S. (8 How.) 251 (1850).

[2] *Id*. at 252.

[3] *Id*. at 251.

[4] *See id*. at 252.

[5] *Id*. at 253 ("[T]he plaintiff in error is the son-in-law, and the defendant in error is the son, of said Samuel Veazie.").

[6] *Id*. at 252.

[7] *Id*.

ArtIII.S2.C1.5.2
Early Adversity Doctrine

The *Lord* Court determined that the federal courts could not—and should not—adjudicate the case.[8] The Court first explained that federal courts exist to resolve disputes between adverse parties.[9] Manufacturing a lawsuit between non-adverse parties solely to obtain a judicial opinion deciding a legal question, according to the Court, was an abuse of the judicial system.[10] Applying that principle to the facts of *Lord*, the Court observed that there was no true dispute between Lord and Veazie, as they entered into their contract solely to obtain a judicial determination regarding which person held the rights to use the Penobscot River.[11] The Court further protested that Lord had not named the true adverse party to that controversy—namely, Moor—as a defendant in the case, and had not even informed Moor of the lawsuit.[12] Thus, the case was a collusive suit between two friendly parties that offered Moor no opportunity to defend his interests.[13]

On various occasions during the remainder of the nineteenth century, the Supreme Court invoked the principles it applied in *Lord* to evaluate whether litigants were sufficiently adverse.[14] It was not until its 1911 opinion in *Muskrat v. United States*,[15] however, that the Court held that the rule against deciding cases between non-adverse parties had a constitutional dimension.[16] The plaintiffs in *Muskrat* sought to invalidate certain federal statutes affecting the allotment of Indian lands.[17] Congress passed a law purporting to authorize the plaintiffs—and only those plaintiffs—to challenge those statutes in federal court.[18] The plaintiffs, invoking that law, sued the United States to determine whether the allotment statutes were constitutional.[19] Even though Congress purported to authorize the

[8] *See id*. at 256 (holding that the judgment issued by the lower court was "a nullity and void").

[9] *See id*. at 255 ("It is the office of courts of justice to decide the rights of persons and of property, when the persons interested cannot adjust them by agreement between themselves,—and to do this upon the full hearing of both parties.").

[10] *See id*. ("[A]ny attempt, by a mere colorable dispute, to obtain the opinion of the court upon a question of law which a party desires to know for his own interest or his own purposes, when there is no real and substantial controversy between those who appear as adverse parties to the suit, is an abuse which courts of justice have always reprehended, and treated as a punishable contempt of court.").

[11] *See id*. at 254 ("The court is satisfied . . . that the contract set out in the pleadings was made for the purpose of instituting this suit, and that there is no real dispute between the plaintiff and defendant. On the contrary, it is evident that their interest in the question brought here for decision is one and the same, and not adverse; and that in these proceedings the plaintiff and defendant are attempting to procure the opinion of this court upon a question of law.").

[12] *See id.* ("[T]he plaintiff and defendant are attempting to procure the opinion of this court upon a question of law, in the decision of which they have a common interest as opposed to that of other persons, who are not parties to this suit, who had no knowledge of it while it was pending in the Circuit Court, and no opportunity of being heard there in defence of their rights.").

[13] *See id*. ("[T]heir conduct is the more objectionable, because they have brought up the question upon a statement of facts agreed on between themselves, without the knowledge of the parties with whom they were in truth in dispute.").

[14] *Compare, e.g.*, Chicago & G. T. Ry. v. Wellman, 143 U.S. 339, 345 (1892) ("It never was the thought that, by means of a friendly suit, a party beaten in the legislature could transfer to the courts an inquiry as to the constitutionality of [a] legislative act."); Cleveland v. Chamberlain, 66 U.S. 419, 425–26 (1861) ("This appeal must be dismissed. Selah Chamberlain is, in fact, both appellant and appellee. . . . There is no material difference between this case and that of Lord vs. Veazie[.] . . . It is plain that this is no adversary proceeding, no controversy between the appellant and the nominal appellee."), *with*, *e.g.*, Pollock v. Farmers' Loan & Tr. Co., 15 S. Ct. 673, 674–75, 679 (1895) (determining that a particular lawsuit between a company and its stockholders "was not a collusive one"), *vacated*, 158 U.S. 601 (1895).

[15] 219 U.S. 346 (1911).

[16] *See* Martin H. Redish & Andrianna D. Kastanek, *Settlement Class Actions, The Case-or-Controversy Requirement, and the Nature of the Adjudicatory Process*, 73 U. Chi. L. Rev. 545, 567 (2006) (describing *Muskrat* as "[t]he leading decision" for the proposition "that the case-or-controversy language of Article III mandates litigant adverseness").

[17] 219 U.S. at 348–49.

[18] *Id*. at 350–51, 361–62.

[19] *Id*. at 348–50.

plaintiffs to file their lawsuit in federal court,[20] the *Muskrat* Court still concluded that the Judiciary lacked jurisdiction to decide the case.[21] The Court, invoking Article III, stated that the judicial power conferred by the Constitution only authorizes the federal courts to decide "cases" and "controversies"[22] between adverse parties.[23] The Court determined that the plaintiffs in *Muskrat* were not asking the courts to determine a controversy between adverse litigants as the Constitution contemplated.[24] Although the plaintiffs had named the United States as the defendant in their case, the Court determined that the United States did not have any interest adverse to the plaintiffs.[25] According to the Court, the plaintiffs were not trying to assert property rights against the government or obtain compensation for governmental wrongdoing;[26] instead, the plaintiffs merely sought a judicial declaration that a federal law was invalid.[27] The Supreme Court thus decided that Article III prohibited the federal courts from adjudicating the plaintiffs' constitutional challenge.[28] The Court further determined that the federal law purporting to authorize the plaintiffs to bring their lawsuit in federal court was invalid because it would require the courts to take a nonjudicial action:[29] resolving legal issues without an "actual controvers[y] arising between adverse litigants."[30] The Court therefore ruled that Article III forbade the federal courts from deciding the constitutional issues in *Muskrat* until they arose in the context of a suit between true adversaries.[31]

The Supreme Court continued to insist on an adversarial controversy between litigants as a prerequisite to federal jurisdiction on various occasions throughout the mid-twentieth century.[32] For instance, in the 1943 case of *United States v. Johnson*, the Court ruled that the district court should have dismissed a lawsuit as collusive because the plaintiff had "instituted [the proceeding] as a 'friendly suit' at [the] appellee's request" in order to test a statute's validity.[33] The Court ruled in its 1937 opinion in *Aetna Life Insurance Co. of Hartford,*

[20] *Id*. at 360.

[21] *Id*. at 363.

[22] *Id*. at 351, 361 (quoting U.S. Const. art. III, § 2).

[23] *Id*. at 361.

[24] *Id*.

[25] *Id*.

[26] *Id*.

[27] *See id*. at 361–62 (explaining that the plaintiffs sought "to determine the constitutional validity of [a] class of legislation, in a suit not arising between parties concerning a property right necessarily involved in the decision in question, but in a proceeding against the government in its sovereign capacity, and concerning which the only judgment required is to settle the doubtful character of the legislation in question").

[28] *Id*.

[29] *Id*. at 362.

[30] *Id*. at 361.

[31] *Id*. at 362 ("The questions involved in this proceeding as to the validity of the legislation may arise in suits between individuals, and when they do and are properly brought before this [C]ourt for consideration they, of course, must be determined in the exercise of its judicial functions."). That is not to say, however, that Article III categorically precludes plaintiffs from filing lawsuits to challenge a statute's constitutionality. *See, e.g.*, MedImmune, Inc. v. Genentech, Inc., 549 U.S. 118, 129 (2007) (explaining that Article III does not forbid plaintiffs from "seek[ing] a declaratory judgment regarding the constitutionality of a . . . statute") (citing Steffel v. Thompson, 415 U.S. 452, 458–60 (1974)). *See also* Judgment, Black's Law Dictionary (11th ed. 2019) (defining a "declaratory judgment" as "a binding adjudication that establishes the rights and other legal relations of the parties").

[32] *See, e.g.*, Flast v. Cohen, 392 U.S. 83, 100 (1968) (noting "the rule that federal courts will not entertain friendly suits or those which are feigned or collusive in nature") (internal citation omitted); Poe v. Ullman, 367 U.S. 497, 505 (1961) (Frankfurter, J.) (discussing "the Court's refusal to entertain cases which disclosed a want of a truly adversary contest, of a collision of actively asserted and differing claims").

[33] 319 U.S. 302, 303–05 (1943).

Connecticut v. Haworth, by contrast, that a particular insurance dispute was justiciable because the insurer and the insured had genuinely adverse interests.[34]

ArtIII.S2.C1.5.3 Intra-Branch Litigation and Adversity Doctrine

Article III, Section 3, Clause 1:

> *Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the testimony of two Witnesses to the same overt Act, or on Confession in open Court.*

Even though the Court continued to enforce the adversity requirement into the mid-to-late twentieth century,[1] it gradually started to apply the doctrine more flexibly. In the 1949 case of *United States v. Interstate Commerce Commission*, for example, the Court ruled that despite the adversity doctrine, a governmental entity acting in one capacity may sometimes sue itself or another agency of the same government.[2] In that case, the United States, acting as a shipper performing wharfage services, filed a complaint with a now-defunct[3] federal agency called the Interstate Commerce Commission (ICC) against certain railroads.[4] The ICC ruled for the railroads and against the United States.[5] The United States then filed a federal lawsuit to set the ICC's order aside.[6] To comply with a statute requiring any plaintiff challenging an ICC order to sue the United States, the United States—as the plaintiff challenging the ICC's order—named itself as one of the defendants.[7] Although the Court acknowledged that, under normal circumstances, the adversity requirement bars a litigant from suing itself in federal court,[8] it decided that the adversity doctrine did not render the case nonjusticiable.[9] The real

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[34] *See* 300 U.S. 227, 242 (1937) ("There is here a dispute between parties who face each other in an adversary proceeding. The dispute relates to legal rights and obligations arising from the contracts of insurance. . . . Prior to this suit, the parties had taken adverse positions with respect to their existing obligations. Their contentions concerned the disability benefits which were to be payable upon prescribed conditions. On the one side, the insured claimed that he had become totally and permanently disabled and hence was relieved of the obligation to continue the payment of premiums and was entitled to the stipulated disability benefits. . . . On the other side, the company made an equally definite claim that the alleged basic fact did not exist, that the insured was not totally and permanently disabled and had not been relieved of the duty to continue the payment of premiums[.] . . . Such a dispute is manifestly susceptible of judicial determination."). *See also* ArtIII.S2.C1.4.1 Overview of Advisory Opinions (discussing other aspects of *Aetna*'s holding).

[1] *See, e.g.*, Moore v. Charlotte-Mecklenburg Bd. of Educ., 402 U.S. 47, 48 (1971) (per curiam) (holding that case presented "no case or controversy within the meaning of Art[icle] III" because "both litigants desire[d] precisely the same result"); *Flast*, 392 U.S. at 100 (noting "the rule that federal courts will not entertain friendly suits or those which are feigned or collusive in nature") (internal citation omitted); *Poe*, 367 U.S. at 505 (Frankfurter, J.) (discussing "the Court's refusal to entertain cases which disclosed a want of a truly adversary contest" or the lack of "a collision of actively asserted and differing claims").

[2] 337 U.S. 426, 429–31 (1949).

[3] *See* ICC Termination Act of 1995, Pub. L. No. 104-88, § 101, 109 Stat. 803 (1995) ("The Interstate Commerce Commission is abolished.").

[4] 337 U.S. at 428.

[5] *Id*. at 429.

[6] *Id*.

[7] *Id*. (quoting 28 U.S.C. § 46 (1949)).

[8] *See id*. at 430 ("There is much argument with citation of many cases to establish the long-recognized general principle that no person may sue himself. Properly understood the general principle is sound, for courts only adjudicate justiciable controversies. They do not engage in the academic pastime of rendering judgments in favor of persons against themselves. Thus a suit filed by John Smith against John Smith might present no case or controversy which courts could determine.").

[9] *Id*. at 431.

controversy in *ICC*, the Court explained, was not between the United States and itself, but between the United States and the railroads.[10] Thus, the court reasoned, the case presented a justiciable dispute between adverse parties.[11]

Similarly, in the 1974 case of *United States v. Nixon*, the Court determined that an intra-branch dispute between two Executive officers was justiciable.[12] In *Nixon*, a federal district court, at the request of a Special Prosecutor investigating an alleged conspiracy to defraud the United States and obstruct justice, had issued a subpoena *duces tecum*[13] directing President Richard Nixon to produce certain tape recordings and documents.[14] President Nixon argued that the district court could not issue the subpoena[15] because the dispute was an intra-branch controversy between two Executive officers.[16] The Court rejected President Nixon's argument, reasoning that he and the Special Prosecutor were adverse enough to create a justiciable controversy.[17] Because the Special Prosecutor's interests conflicted with those of President Nixon, and because the dispute over the subpoena arose in a criminal case that fell comfortably within the federal Judiciary's traditional powers, the Court held that *Nixon* presented an adversarial dispute despite the Executive Branch's presence on both sides of the controversy.[18] As a result of cases like *Nixon* and *ICC*, federal courts seldom dismiss intergovernmental disputes on adversity grounds alone[19]—at least when the relevant agencies are acting in different capacities.[20]

ArtIII.S2.C1.5.4 Executive Branch Determinations on Statute Constitutionality

Article III, Section 3, Clause 2:

> *The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.*

Further demonstrating the Court's more flexible application of the adversity doctrine in the past few decades are the 1983 case of *Immigration and Naturalization Service v. Chadha*,[1] the 2013 case of *United States v. Windsor*,[2] and the 2020 case of *Seila Law LLC v. Consumer*

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[10] *See id*. at 430 ("This suit . . . is a step in proceedings to settle who is legally entitled to sums of money, the Government or the railroads.").

[11] *See id*. ("While this case is United States v. United States, et al., it involves controversies of a type which are traditionally justiciable.").

[12] 418 U.S. 683, 692 (1974).

[13] A subpoena is "a writ or order commanding a person to appear before a court or other tribunal, subject to a penalty for failing to comply." Subpoena, Black's Law Dictionary (11th ed. 2019). A subpoena duces tecum is "a subpoena ordering the witness to appear in court and to bring specified documents, records, or things." *Id*. *See also* Fed. R. Crim. P. 17(c) (governing subpoenas duces tecum in federal criminal cases).

[14] 418 U.S. at 686–88.

[15] *Id*. at 692.

[16] *Id*. at 697.

[17] *See id*. at 696–97.

[18] *Id*. at 697.

[19] Michael Herz, *United States v. United States: When Can the Federal Government Sue Itself?*, 32 Wm. & Mary L. Rev. 893, 895 (1991). *See also, e.g.*, Joseph W. Mead, *Interagency Litigation and Article III*, 47 Ga. L. Rev. 1217, 1219 (2013) (claiming that it is "surprisingly common" for courts to adjudicate "litigation between federal agencies").

[20] *See* Dir., Office of Workers' Comp. Programs, Dep't of Labor v. Newport News Shipbuilding & Dry Dock Co., 514 U.S. 122, 128 (1995) (analyzing *ICC* and emphasizing that "the status of the Government as a statutory beneficiary or market participant must be sharply distinguished from the status of the Government as regulator or administrator").

[1] *See* 462 U.S. 919, 930 n.5, 939–40 (1983).

[2] *See* 570 U.S. 744, 756–63 (2013).

Financial Protection Bureau.[3] Each of those cases involved constitutional challenges to federal statutes.[4] In each case, the United States agreed with the challenger that the challenged law was unconstitutional, raising questions about whether the parties were genuinely adverse.[5] In all three cases, the Court suggested that certain aspects of the adversity doctrine are not *constitutional* mandates, but are instead merely *prudential* constraints that do not categorically deprive the federal courts of jurisdiction.[6] Prudential restrictions on the justiciability of disputes are judicially self-imposed limitations on federal jurisdiction that do not stem from Article III of the Constitution.[7] While constitutional limitations on justiciability often impose insuperable barriers to the jurisdiction of the federal courts that neither Congress, nor the parties, nor the Judiciary itself can abrogate without an amendment to Article III, litigants may overcome prudential barriers to justiciability by showing that it would be prudent for the court to adjudicate the case in question.[8] These cases therefore suggest that federal courts may sometimes adjudicate cases even if the plaintiff and the defendant desire the same ultimate result.[9]

In *Chadha*, the Court considered a constitutional challenge to a statute purporting to authorize a single house of Congress to pass a resolution overruling Executive Branch decisions not to deport certain otherwise deportable aliens.[10] The appellant (the *Immigration and Naturalization Service* (INS)) and the appellee (an immigrant named Jagdish Rai Chadha) both agreed that the provision was unconstitutional,[11] which created concerns that the case was not an adversarial controversy.[12] The Supreme Court still concluded, however, that the parties were sufficiently adverse[13] because the INS still intended to deport Chadha if the federal courts ultimately rejected his constitutional challenge.[14] The *Chadha* Court acknowledged potential concerns about ruling on the provision's constitutionality when neither of the named parties argued that the law was valid.[15] Even so, the Court characterized those misgivings as purely prudential concerns, rather than insuperable constitutional obstacles to resolving the case.[16] The Court ultimately determined that these prudential

[3] *See* 140 S. Ct. 2183, 2196–97 (2020).

[4] *See id.* at 2194–95; *Windsor*, 570 U.S. at 752; *Chadha*, 462 U.S. at 923.

[5] *See Seila Law*, 140 S. Ct. at 2195, 2196–97; *Windsor*, 570 U.S. at 754; *Chadha*, 462 U.S. at 928.

[6] *See Seila Law*, 140 S. Ct. at 2196–97; *Windsor*, 570 U.S. at 756–63; Chadha, 462 U.S. at 930 n.5, 939–40.

[7] *Cf. Windsor*, 570 U.S. at 757 (discussing the prudential standing doctrine) (quoting Allen v. Wright, 468 U.S. 737, 751 (1984)).

[8] *See id*. at 760 ("Unlike Article III requirements—which must be satisfied by the parties before judicial consideration is appropriate—the relevant prudential factors that counsel against hearing this case are subject to 'countervailing considerations [that] may outweigh the concerns underlying the usual reluctance to exert judicial power.'") (quoting ,422 U.S. 490, 500–01 (1975)).

[9] *See, e.g.*, *Seila Law*, 140 S. Ct. at 2196 ("[*A*]*micus* contends that we should dismiss the case because the parties agree on the merits of the constitutional question and the case therefore lacks 'adverseness.' That contention, however, is foreclosed by *United States v. Windsor*.") (internal citation omitted).

[10] 462 U.S. at 923 (explaining that *Chadha* presented "a challenge to the constitutionality of the provision in § 244(c)(2) of the Immigration and Nationality Act . . . authorizing one House of Congress, by resolution, to invalidate the decision of the Executive Branch, pursuant to authority delegated by Congress to the Attorney General of the United States, to allow a particular deportable alien to remain in the United States").

[11] *Id*. at 928.

[12] *Id*. at 939 (quoting Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 346 (1936) (Brandeis, J., concurring)).

[13] *Id*.

[14] *Id*. at 940 n.12. *See also id*. at 939 ("INS's agreement with Chadha's position does not alter the fact that the INS would have deported Chadha absent the Court of Appeals' judgment.").

[15] *Id*. at 940.

[16] *Id*.

concerns did not bar the Court from deciding the issue because Congress had intervened in the case to defend the statute's constitutionality, thus supplying the requisite adversity between the litigants.[17]

The Court again suggested that the adversity requirement has a non-constitutional, purely prudential component several decades later in *Windsor*.[18] *Windsor* involved a constitutional challenge to a federal statute that defined "marriage" to include "only a legal union between one man and one woman as husband and wife."[19] The statute thus precluded persons in same-sex marriages from claiming federal estate tax exemptions for surviving spouses.[20] The respondent, Edith Schlain Windsor, sued the United States to invalidate the provision and obtain a refund of certain federal taxes she paid when she inherited her same-sex spouse's estate.[21] The United States, however, agreed with Windsor that the provision was unconstitutional.[22] Still, the United States continued to enforce the statute by denying refunds and assessing deficiencies against surviving spouses in same-sex marriages,[23] including Windsor herself.[24]

The *Windsor* Court determined that the parties were adverse even though the United States and Windsor agreed that the provision was unconstitutional.[25] The Court, citing *Chadha*, explained that "even where the Government largely agrees with the opposing party on the merits of the controversy, there is sufficient adverseness and an adequate basis for jurisdiction in the fact that the Government intended to enforce the challenged law against that party."[26] Because invalidating the challenged provision would require the United States to pay money it would not otherwise pay, the Court determined that the United States retained a sufficient stake in the lawsuit to render the case justiciable.[27] The Court also suggested, however, that it might have found the case nonjusticiable if the Executive simply paid Windsor the requested refund rather than enforcing the challenged law.[28]

The *Windsor* Court acknowledged concerns that the parties might not be fully adverse to each other.[29] As in *Chadha*, however, the Court characterized this risk as a remediable prudential issue, not an incurable jurisdictional defect.[30] Once the Attorney General

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[17] *Id*. at 930 n.5, 939–40. *See also* Va. House of Delegates v. Bethune-Hill, 139 S. Ct. 1945, 1954 n.5 (2019) (discussing *Chadha*'s adversity holding).

[18] 570 U.S. 744 (2013).

[19] *Id*. at 752 (citing 1 U.S.C. § 7). *See also* ArtVII.1 Historical Background on Ratification Clause (analyzing the Supreme Court's jurisprudence on sexual orientation).

[20] 570 U.S. at 750–51.

[21] *See id*. at 749–52, 753.

[22] *Id*. at 754.

[23] *Id*. at 756.

[24] *See id*. at 755 ("The United States has not complied with the [district court's ruling that the provision is unconstitutional]. Windsor has not received her refund, and the Executive Branch continues to enforce [the challenged provision]."). As the Supreme Court observed, the United States chose to continue enforcing the statute even though it believed the law was unconstitutional to maintain adversity between the parties and thereby allow the federal courts to adjudicate Windsor's constitutional challenge. *See id*. at 754.

[25] *See id*. at 759 ("[T]his case presents a justiciable controversy under Article III.").

[26] *Id*. (quoting INS v. Chadha, 462 U.S. 919, 940 n.12 (1983)) (internal quotation marks and brackets omitted).

[27] *Id*. at 757–59.

[28] *Id*. at 758.

[29] *Id*. at 759 (quoting Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 346 (1936) (Brandeis, J., concurring)) (internal quotation marks omitted).

[30] *Id*. *See also id*. at 756 (concluding that dismissing the case as nonjusticiable would improperly "elide[ ] the distinction between two principles: the jurisdictional requirements of Article III and the prudential limits on its exercise"); *id*. at 760 ("Unlike Article III requirements—which must be satisfied by the parties before judicial consideration is appropriate—the relevant prudential factors that counsel against hearing this case are subject to

announced that it would not defend the challenged provision, the Bipartisan Legal Advisory Group (BLAG) of the House of Representatives intervened in the case to defend the law's constitutionality.[31] The Court therefore determined that "BLAG's sharp adversarial presentation of the issues satisfie[d] the prudential concerns that otherwise might counsel against hearing an appeal from a decision with which the principal parties agree."[32]

The Supreme Court reaffirmed *Windsor*'s adversity holding in its 2020 decision in *Seila Law LLC v. Consumer Financial Protection Bureau*.[33] In that case, the Consumer Financial Protection Bureau (CFPB) issued a civil investigative demand to a law firm.[34] The law firm argued that the demand was invalid because the CFPB's structure violated the constitutional separation of powers.[35] Because the federal government, as the respondent in the case, agreed that the CFPB's structure contravened the separation of powers,[36] the Court appointed an amicus curiae to defend the CFPB's constitutionality.[37]

Although the court-appointed amicus urged the Court to consider whether the parties' agreement that the CFPB's structure was unconstitutional rendered the litigants insufficiently adverse to create a justiciable controversy, the Court ultimately ruled that the case was justiciable.[38] Citing *Windsor*, the Court explained that "a lower court order that presents real-world consequences for the Government and its adversary suffices to support Article III jurisdiction—even if 'the Executive may welcome' an adverse order that 'is accompanied by the constitutional ruling it wants.'"[39] Because the United States had not agreed to withdraw the civil investigative demand against the law firm, a judicial decision upholding or invalidating the CFPB would still have significant consequences for the parties despite their overlapping legal positions.[40] The Court thus determined that it had jurisdiction under Article III to issue such a decision.[41] The Court further ruled that its appointment of an

'countervailing considerations [that] may outweigh the concerns underlying the usual reluctance to exert judicial power.'") (quoting Warth v. Seldin, 422 U.S. 490, 500–01 (1975)).

[31] *Id*. at 754.

[32] *Id*. at 761.

[33] *See* 140 S. Ct. 2183, 2196–97 (2020).

[34] *See id.* at 2194.

[35] *See id*. at 2191 ("Congress provided that the CFPB would be led by a single Director, who serves for a longer term than the President and cannot be removed by the President except for inefficiency, neglect, or malfeasance. . . . The question before us is whether this arrangement violates the Constitution's separation of powers."); *id*. at 2194 (describing the law firm's argument "that the demand was invalid and must be set aside because the CFPB's structure violated the Constitution").

[36] *See id*. at 2195 ("[T]he Government agrees with petitioner on the merits of the constitutional question."). *See also id*. (noting that the Director of the CFPB "agree[d] with the Solicitor General's position . . . that her for-cause removal protection [wa]s unconstitutional").

[37] *Id.* An "amicus curiae" is "[s]omeone who is not a party to a lawsuit but who petitions the court or is requested by the court to file a brief in the action." Amicus Curiae, Black's Law Dictionary (11th ed. 2019).

[38] *See* 140 S. Ct. at 2196.

[39] *See id*. (quoting United States v. Windsor, 570 U.S. 744, 758 (2013)).

[40] *See id*. at 2196–97 ("Here, petitioner and the Government disagree about whether petitioner must comply with the civil investigative demand. The lower courts sided with the Government, and the Government has not volunteered to relinquish that victory and withdraw the demand. To the contrary, while the Government agrees that the agency is unconstitutionally structured, it believes it may nevertheless enforce the demand on remand. Accordingly, our 'decision will have real meaning' for the parties.") (quoting INS v. Chadha, 462 U.S. 919, 939 (1983)) (internal citation omitted).

[41] *See id*. at 2195–97.

amicus curiae to defend the CFPB's constitutionality adequately addressed any non-constitutional, prudential concerns about the parties' adverseness.[42]

Chadha, *Windsor*, and *Seila Law* thus hold that the adversity requirement does not always bar federal courts from deciding cases in which the defendant agrees that the plaintiff is entitled to the relief he seeks. Those cases also suggest, however, that even though a defendant's agreement with the plaintiff's legal arguments will not necessarily vitiate the court's Article III jurisdiction, prudential concerns may counsel against resolving a case in which the parties have taken identical legal positions. As all three cases show, however, those concerns may lose force when a third party, such as a house of Congress or a court-appointed amicus curiae, appears in the litigation to supply the missing adversarial presentation of the pertinent legal issues.

ArtIII.S2.C1.6 Standing

ArtIII.S2.C1.6.1 Overview of Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The concept of "standing" broadly refers to a litigant's right to have a court rule upon the merits of particular claims for which he seeks judicial relief.[1] The Supreme Court has held that, as a threshold procedural matter,[2] a litigant must have standing in order to invoke the jurisdiction of a federal court so that the court may exercise its "remedial powers on his behalf."[3] In general, for a party to establish Article III standing, he must allege (and ultimately prove) that he has a genuine stake in the outcome of the case because he has personally

[42] *See id.* at 2197 ("[A]s in *Windsor*, any prudential concerns with deciding an important legal question in this posture can be addressed by 'the practice of entertaining arguments made an *amicus* when the Solicitor General confesses error with respect to a judgment below,' which we have done.") (quoting *Windsor*, 570 U.S. at 760).

[1] Warth v. Seldin, 422 U.S. 490, 498 (1975) ("In essence the question of standing is whether the litigant is entitled to have the court decide the merits of the dispute or of particular issues."); Black's Law Dictionary 1536 (9th ed. 2009) (defining "standing" as "a party's right to make a legal claim or seek judicial enforcement of a duty or right").

[2] Federal courts must necessarily resolve standing inquiries before proceeding to the merits of a lawsuit. *See, e.g.*, Davis v. FEC, 554 U.S. 724, 732 (2008). In fact, a court may raise the issue of standing sua sponte (i.e., of its own accord) in order to ensure that it has jurisdiction, even if no party to the lawsuit contests standing. *See, e.g.*, Adarand Constructors, Inc. v. Mineta, 534 U.S. 103, 110 (2001) (per curiam). Although the Supreme Court must examine a litigant's standing when the lower court has erroneously assumed that standing exists, it will not investigate standing sua sponte in order to rule upon an issue that a lower court denied the litigant standing to bring before the court. *Id.*

[3] Simon v. E. Ky. Welfare Rights Org., 426 U.S. 26, 38 (1976) (quoting *Warth*, 422 U.S. at 498–99). *See also Davis*, 554 U.S. at 732; *Simon*, 426 U.S. at 37 ("No principle is more fundamental to the judiciary's proper role in our system of government than the constitutional limitation of federal-court jurisdiction to actual cases or controversies. The concept of standing is part of this limitation.") (citation omitted); *Warth*, 422 U.S. at 498–99 ("In its constitutional dimension, standing imports justiciability: whether the plaintiff has made out a 'case or controversy' between himself and the defendant within the meaning of Art. III."). The Court has occasionally invoked the English common law tradition as supporting its inquiry into a litigant's standing. *See, e.g.*, Ariz. Christian Sch. Tuition Org. v. Winn, 563 U.S. 125, 132 (2011) ("In the English legal tradition, the need to redress an injury resulting from a specific dispute taught the efficacy of judicial resolution and gave legitimacy to judicial decrees. . . . The Framers paid heed to these lessons.").

suffered (or will imminently suffer): (1) a concrete and particularized injury; (2) that is traceable to the allegedly unlawful actions of the opposing party; and (3) that is redressable by a favorable judicial decision.[4] These requirements seek to ensure that federal courts do not exceed their Article III power to decide actual "cases" or "controversies." [5]

The Court has held that the burden of establishing standing falls upon each party who seeks a distinct form of judicial relief,[6] including a party initiating a lawsuit,[7] intervening in a lawsuit,[8] or appealing a lower court decision.[9] Each of these parties must make an appropriate showing during each stage of the litigation[10] that the elements of injury, causation, and redressability existed at the outset of the lawsuit, and continue to exist,[11] for each claim[12] and

[4] Lujan v. Defenders of Wildlife, 504 U.S. 555, 560–61 (1992) (listing the elements of standing). For further discussion on the elements of Article III standing, see ArtIII.S2.C1.6.4.1 Overview of Lujan Test.

[5] Steel Co. v. Citizens for a Better Env't, 523 U.S. 83, 102 (1998) ("Article III, § 2, of the Constitution extends the 'judicial Power' of the United States only to 'Cases' and 'Controversies.' We have always taken this to mean cases and controversies of the sort traditionally amenable to and resolved by the judicial process.").

[6] The Supreme Court has indicated that if one party to a lawsuit has standing, other entities can join as parties without having to satisfy independently the demands of Article III, provided those parties do not seek a distinct form of relief from the party with standing. *E.g.*, Horne v. Flores, 557 U.S. 433, 446 (2009) (determining that, because a school superintendent had standing to challenge lower court decisions in which he was named a defendant, the Court did not need to consider whether interveners, who were state legislators, had standing); *Davis*, 554 U.S. at 724 (requiring a litigant to have standing for each form of relief sought); Rumsfeld v. Forum for Acad. & Instit. Rights, Inc., 547 U.S. 47, 52 n.2 (2006) ("[T]he presence of one party with standing is sufficient to satisfy Article III's case-or-controversy requirement."); Director v. Perini N. River Assocs., 459 U.S. 297, 305 (1983) (stating that a justiciable controversy existed because an injured employee who sought coverage under the Longshoremen's and Harbor Workers' Compensation Act was a party respondent before the court and had standing, and thus there was no need to determine whether the Director of the Office of Workers' Compensation Programs, as the official responsible for administration and enforcement of the Act, had standing).

[7] FW/PBS Inc. v. Dallas, 493 U.S. 215, 231 (1990) ("[P]etitioners in this case must allege . . . facts essential to show jurisdiction. If they fail to make the necessary allegations, they have no standing.") (citations and internal quotation marks omitted).

[8] A party seeking to intervene in a lawsuit (i.e., seeking to join a lawsuit already in progress) as a matter of right must have Article III standing to seek judicial relief that differs from that sought by the other litigants with standing. Town of Chester v. Laroe Estates, Inc., No. 16-605, slip op. at 6 (U.S. June 5, 2017); Wittman v. Personhuballah, 578 U.S. 539, 543 (2016).

[9] Diamond v. Charles, 476 U.S. 54, 56 (1986).

The Supreme Court also addressed standing on appeal in a 2011 case in which government employees that had obtained a favorable judgment on the basis of qualified immunity sought to appeal a lower court's ruling that their conduct had violated the Constitution. The Court held that these officials had Article III standing because they had a personal stake in seeing the ruling overturned, as its mere existence could lead to the risk of future liability for them. Camreta v. Greene, 563 U.S. 692, 703 (2011) ("If the official regularly engages in that conduct as part of his job . . . he suffers injury caused by the adverse constitutional ruling. So long as it continues in effect, he must either change the way he performs his duties or risk a meritorious damages action.").

Standing on appeal may also be based on an alleged injury arising from the decision below—for example, where the lower court had ordered the appealing party to comply with a government demand that would injure that party, and overturning the lower court's decision would redress the injury by absolving the appealing party of an obligation to comply with the demand. *See* Seila Law LLC v. Consumer Fin. Prot. Bureau, No. 19-7 slip op. at 9 (U.S. June 29, 2020) (stating that a petitioner had "appellate standing" where the petitioner suffered a "concrete injury" that was "traceable to the decision below" and could be redressed by the Court). *See also* West Virginia v. Env't Prot. Agency, No. 20-1530, slip op. at 14 (U.S. June 30, 2022).

[10] Hollingsworth v. Perry, 570 U.S. 693 (2013); *Davis*, 554 U.S. at 734 ("[A] plaintiff must demonstrate standing for each claim he seeks to press and for each form of relief sought. . . . While the proof to establish standing increases as the suit proceeds, the standing inquiry remains focused on whether the party invoking jurisdiction had the requisite stake in the outcome when the suit was filed.") (citations and internal quotation marks omitted). *See also* Nat'l Org. for Women v. Scheidler, 510 U.S. 249, 255–56 (1994) (observing that, at the pleading stage, the plaintiff may have standing sufficient to withstand a motion to dismiss if he sets forth "general factual allegations of injury resulting from the defendant's conduct") (citation omitted); Lujan v. Defenders of Wildlife, 504 U.S. 555, 561 (1992) (noting that the plaintiff's burden of proof on the standing issue differs depending on whether the case is at the pleading stage, the plaintiff is responding to a motion for summary judgment, or the case has gone to trial).

[11] *Davis*, 554 U.S. at 732–33 ("[I]t is not enough that the requisite interest exist at the outset. 'To qualify as a case fit for federal-court adjudication, an actual controversy must be extant at all stages of review, not merely at the time

for each form of relief sought.[13] A litigant's failure to establish standing to sue may result in dismissal of his distinct claims for relief without a decision on the merits of those claims.[14]

Since the 1920s, the Supreme Court has offered various justifications for these somewhat amorphous[15] constitutional limitations on the categories of litigants who can maintain a claim for judicial relief in an Article III federal court.[16] Perhaps the most frequently cited rationale derives from the Constitution's separation of powers among the branches of government.[17] Issues of standing often arise when a private plaintiff sues the government, seeking to have it act in accordance with the Constitution or other law.[18] But, as the Court has frequently noted, the Constitution makes the political branches—and not the courts—responsible for "vindicating the public interest."[19] As a result, unelected judges lack the authority to render advisory opinions as to whether Congress or the Executive has followed the law; they may only decide a specific case brought before the court by a party that has suffered a particularized

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complaint is filed.'" (quoting Arizonans for Official English v. Arizona, 520 U.S. 43, 67 (1997)). If an injury no longer exists as the litigation progresses, the court may also lack jurisdiction under the related doctrine of mootness. *See* ArtIII.S2.C1.8.1 Overview of Mootness Doctrine to ArtIII.S2.C1.8.9 Class Action Litigation and Mootness.

[12] *Davis*, 554 U.S. at 734 ("[A] plaintiff must demonstrate standing for each claim he seeks to press and for each form of relief sought.") (internal quotation marks omitted).

[13] *See, e.g.*, Los Angeles v. Lyons, 461 U.S. 95, 111 (1983) ("Lyons fares no better if it be assumed that his pending damages suit affords him Art. III standing to seek an injunction as a remedy for the claim arising out of the October 1976 events. The equitable remedy is unavailable absent a showing of irreparable injury, a requirement that cannot be met where there is no showing of any real or immediate threat that the plaintiff will be wronged again . . . ").

[14] *E.g.*, Warth v. Seldin, 422 U.S. 490, 502 (1975) (stating that if "the plaintiff's standing does not adequately appear from all materials of record, the complaint must be dismissed"). *But see* Gill v. Whitford, No. 16-1161, slip op. at 21 (U.S. June 18, 2018) (declining to direct dismissal of a partisan gerrymandering case that involved "an unsettled kind of claim . . . the contours and justiciability of which are unresolved" and, therefore, remanding the case for further proceedings).

[15] As discussed below, the Court's standing jurisprudence has been inconsistent in approach over the years. *See* ArtIII.S2.C1.6.3 Standing Doctrine from 1940s to 1970s.

[16] Although the Supreme Court has often stated that the standing inquiry focuses on whether the plaintiff is a proper party to maintain a claim for a particular form of judicial relief in federal court and not on the "issues he wishes to have adjudicated," the Court has acknowledged the difficulty in separating the plaintiff's status from the nature of his claims when applying principles of standing. *Compare* Simon v. E. Ky. Welfare Rights Org., 426 U.S. 26, 38 (1976) ("[S]tanding focuses on the party seeking to get his complaint before a federal court and not on the issues he wished to have adjudicated." (quoting Flast v. Cohen, 392 U.S. 83, 99 (1968) (internal quotation marks omitted)), *with* Allen v. Wright, 468 U.S. 737, 752 (1984) ("Typically, however, the standing inquiry requires careful judicial examination of a complaint's allegations to ascertain whether the particular plaintiff is entitled to an adjudication of the particular claims asserted.").

[17] *E.g.*, *Lujan*, 504 U.S. at 576.

[18] *See, e.g.*, Schlesinger v. Reservists Comm. to Stop the War, 418 U. S. 208, 221223 (1974) (holding that an association of officers and enlisted members of the military reserves, as well as individual members, lacked standing to sue as taxpayers in a case arguing that the Incompatibility Clause of Article I forbid certain Members of Congress from holding commissions in the Armed Forces Reserve). Issues of standing may also arise in cases in which a litigant sues a private party under a law providing for a private right of action against a private defendant. *E.g.*, Spokeo Inc., v. Robins 578 U.S. 330, 342 (2016).

[19] *Lujan*, 504 U.S. at 576 ("Vindicating the *public* interest (including the public interest in Government observance of the Constitution and laws) is the function of Congress and the Chief Executive."); Frothingham v. Mellon, 262 U.S. 447, 488 (1923) ("We have no power per se to review and annul acts of Congress on the ground that they are unconstitutional. That question may be considered only when the justification for some direct injury suffered or threatened, presenting a justiciable issue, is made to rest upon such an act. Then the power exercised is that of ascertaining and declaring the law applicable to the controversy."); Marbury v. Madison, 5 U.S. (1 Cranch) 137, 180 (1803). When reviewing administrative action or inaction of federal agencies, courts must be wary of intruding upon the President's duty under Article II, Section 3 of the Constitution to "take Care that the Laws be faithfully executed" by ordering the Executive to follow the law. *Lujan*, 504 U.S. at 577 (citing U.S. Const. art. II, § 3).

The Court has adhered to the standing doctrine even in cases in which no party exists who would have standing to challenge government action or inaction in the courts, noting that the political process is available to those seeking to vindicate generalized grievances. United States v. Richardson, 418 U.S. 166, 179 (1974).

injury as a result of the government's actions.[20] Such deference to the political branches, particularly in cases raising questions about the separation of powers,[21] reflects the Court's understanding of the "limited . . . role of the courts in a democratic society,"[22] as well as its determination that federal courts should hear only those types of cases that the English judicial system would historically have considered suitable for judicial resolution.[23] And separation of powers concerns have also motivated the Court's conclusion that Article III limits Congress's ability to confer standing on plaintiffs to sue the government by enacting statutes containing "citizen-suit" provisions.[24] Such case law has reasoned that permitting plaintiffs who do not have a personal and direct stake in the outcome of a case to sue under one of these provisions would effectively allow the Legislative Branch to intrude upon the Executive Branch's duty to enforce the law.[25]

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[20] *See supra* note 19. *See also* Hollingsworth v. Perry, 570 U.S. 693, 693–94 (2013) (characterizing the standing requirement as "an essential limit on [the Court's] power: It ensures that we act *as judges*, and do not engage in policymaking properly left to elected representatives."). For more on Article III's bar on advisory opinions and its relationship to standing doctrine, see ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[21] Clapper v. Amnesty Int'l USA, 568 U.S. 398, 408–09 (2013) ("The law of Article III standing, which is built on separation of powers principles, serves to prevent the judicial process from being used to usurp the powers of the political branches."); Valley Forge Christian Coll. v. Ams. United for Separation of Church & State, Inc., 454 U.S. 464, 471 (1982) ("The judicial power of the United States defined by Art. III is not an unconditional authority to determine the constitutionality of legislative or executive acts."); *id.* at 474 ("Proper regard for the complex nature of our constitutional structure requires neither that the Judicial Branch shrink from a confrontation with the other two coequal branches of the Federal Government, nor that it hospitably accept for adjudication claims of constitutional violation by other branches of government where the claimant has not suffered cognizable injury."). Thus, the Court applies the standing requirements most stringently when litigants challenge the constitutionality of an action or omission by one or both of the political branches of government. Raines v. Byrd, 521 U.S. 811, 819–20 (1997) ("[O]ur standing inquiry has been especially rigorous when reaching the merits of the dispute would force us to decide whether an action taken by one of the other two branches of the Federal Government was unconstitutional."); Flast v. Cohen, 392 U.S. 83, 100, 101 (1968) ("The question whether a particular person is a proper party to maintain the action does not, by its own force, raise separation of powers problems related to improper judicial interference in areas committed to other branches of the Federal Government. Such problems arise, if at all, only from the substantive issues the individual seeks to have adjudicated."). The Court later stated that "*Flast* failed to recognize that [standing] doctrine has a separation of powers component, which keeps courts within certain traditional bounds vis-a-vis the other branches . . . " Lewis v. Casey, 518 U.S. 343, 353 n.3 (1996). In the Court's early years, Chief Justice John Marshall noted that if federal courts could hear "every *question* under the Constitution," rather than traditional "cases" or "controversies," then federal courts would have jurisdiction over many issues that should be the subject of legislative discussion and decision. 4 Papers of John Marshall 95 (Charles Cullen ed., 1984) ("If the judicial power extended to every *question* under the Constitution it would involve almost every subject proper for legislative discussion and decision; if to every *question* under the laws and treaties of the United States it would involve almost every subject on which the executive could act. The division of power [among the branches of government] could exist no longer, and the other departments would be swallowed up by the judiciary."). The French sociologist and political theorist Alexis de Tocqueville once noted the benefits of the U.S. federal judiciary's requirement that a litigant have a direct stake in the outcome of legal proceedings to maintain a lawsuit, stating that: "It will be seen, also, that by leaving it to private interest to censure the law, and by intimately uniting the trial of the law with the trial of an individual, legislation is protected from wanton assaults and from the daily aggressions of party spirit. The errors of the legislator are exposed only to meet a real want; and it is always a positive and appreciable fact that must serve as the basis of a prosecution." 1 Alexis de Tocqueville, Democracy in America 102 (Philips Bradley, ed., 1945).

[22] Ariz. Christian Sch. Tuition Org. v. Winn, 563 U.S. 125, 133 (2011) ("Continued adherence to the case-or-controversy requirement of Article III maintains the public's confidence in an unelected but restrained Federal Judiciary.").

[23] *Spokeo*, 578 U.S. at 337 ("Standing to sue is a doctrine rooted in the traditional understanding of a case or controversy."); Summers v. Earth Island Inst., 555 U.S. 488, 492 (2009) ("In limiting the judicial power to 'Cases' and 'Controversies,' Article III of the Constitution restricts it to the traditional role of Anglo-American courts, which is to redress or prevent actual or imminently threatened injury to persons caused by private or official violation of law.")

[24] *Lujan*, 504 U.S. at 577.

[25] *Id.* ("To permit Congress to convert the undifferentiated public interest in executive officers' compliance with the law into an 'individual right' vindicable in the courts is to permit Congress to transfer from the President to the courts the Chief Executive's most important constitutional duty, to 'take Care that the Laws be faithfully executed.'") (quoting U.S. Const. art. II, § 3).

Although standing doctrine is grounded primarily in constitutional separation of powers concerns, the Supreme Court has also cited other rationales for its existence that may not be constitutional in nature. Requiring the litigant to have a personal stake in the outcome of his lawsuit ensures that a court will decide complex legal and factual issues in the context of a specific factual situation involving adverse parties who can more clearly illuminate for judges the issues in dispute.[26] Even in cases in which adversity between the parties exists, standing doctrine seeks to ensure that federal courts will not exercise the judicial power, which can significantly affect the lives, liberty, and property of others, to resolve generalized grievances brought primarily for the benefit of "concerned bystanders" who seek to vindicate abstract ideological interests (for example, a general interest in the protection of the environment is insufficient to confer standing).[27] More practical reasons for the standing requirements include a need to reserve the limited resources of the federal courts for concrete disputes;[28] the sweeping precedential effects of the Court's holdings on the merits in constitutional litigation, which can be difficult, if not impossible, for Congress to alter without amending the Constitution;[29] and a need for the court to fashion relief no more broadly than the litigant's situation requires.[30]

The Supreme Court has also previously recognized certain *prudential* limitations on the exercise of federal courts' jurisdiction, which, although lacking constitutional status, may nonetheless result in a court's refusal to hear a case: (1) when the litigant seeks to assert the rights of third parties not before the court; (2) when the litigant seeks redress for a generalized grievance widely shared by a large number of citizens; and (3) when the litigant challenges government action or inaction and its asserted interests do not fall within the zone of interests arguably protected or regulated by the statute or constitutional provision underlying its claims.[31] In recent years, however, the Court has questioned the basis of the doctrine of prudential standing.[32] The Court has suggested that the bar on generalized grievances is a constitutional (and not prudential) requirement.[33] Moreover, the Court likewise has determined that a court applying the "zone of interests" test should examine whether the

[26] Baker v. Carr, 369 U.S. 186, 204 (1962) (stating that the parties invoking the court's jurisdiction must have "alleged such a personal stake in the outcome of the controversy as to assure that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions.").

[27] United States v. SCRAP, 412 U.S. 669, 687 (1973) (stating that the injury-in-fact requirement of standing "prevents the judicial process from becoming no more than a vehicle for the vindication of the value interests of concerned bystanders"). *See also* Summers v. Earth Island Inst., 555 U.S. 488, 494 (2009) ("While generalized harm to the forest or the environment will not alone support standing, if that harm in fact affects the recreational or even the mere esthetic interests of the plaintiff, that will suffice."); Diamond v. Charles, 476 U.S. 54, 62 (1986); *Valley Forge Christian Coll.*, 454 U.S. at 472–73 ("[The standing requirement] tends to assure that the legal questions presented to the court will be resolved, not in the rarified atmosphere of a debating society, but in a concrete factual context conducive to a realistic appreciation of the consequences of judicial action. . . . The [Article III] aspect of standing also reflects a due regard for the autonomy of those persons likely to be most directly affected by a judicial order.").

[28] Friends of the Earth, Inc. v. Laidlaw Envtl. Servs., 528 U.S. 167, 191 (2000) ("Standing doctrine functions to ensure, among other things, that the scarce resources of the federal courts are devoted to those disputes in which the parties have a concrete stake.").

[29] Ariz. Christian Sch. Tuition Org. v. Winn, 563 U.S. 125, 146 (2011) ("Making the Article III standing inquiry all the more necessary are the significant implications of constitutional litigation, which can result in rules of wide applicability that are beyond Congress's power to change.").

[30] Schlesinger v. Reservists Comm. to Stop the War, 418 U.S. 208, 222 (1974).

[31] United States v. Windsor, 570 U.S. 744, 760 (2013) ("Even when Article III permits the exercise of federal jurisdiction, prudential considerations demand that the Court insist upon 'that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions.'" (quoting *Baker*, 369 U.S. at 204); Elk Grove Unified Sch. Dist. v. Newdow, 542 U.S. 1, 12 (2004) (listing the three types of prudential restraints); Gladstone v. Village of Bellwood, 441 U.S. 91, 99–100 (1979).

[32] Lexmark Int'l Inc. v. Static Control Components, Inc., 572 U.S. 118, 127 n.3 (2014).

[33] *Id.*

plaintiff's claim falls within the scope of a statutory provision creating a cause of action.[34] Furthermore, Congress, through express legislation, may abrogate these prudential standing requirements, to the extent that they remain viable and are not mandated by the Constitution.[35]

The following essays trace the development of Article III standing doctrine in Supreme Court jurisprudence from its origins in the 1920s to the development of the modern doctrine and its key elements of injury, causation, and redressability. They then examine select topics that implicate the doctrine, including cases in which a plaintiff seeks to maintain standing to challenge government action or inaction by relying solely upon his status as a taxpayer, as well as the various forms of representational standing that a litigant who has not himself sustained injury may rely upon when asserting the rights of people not before the court. Finally, they conclude with an overview of standing for Members of Congress, congressional control of standing, and what remains of the concept of prudential standing.[36]

ArtIII.S2.C1.6.2 Early Standing Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Prior to the 1970s, a litigant had standing only if he could show that his injury stemmed directly from the "violation of a legal right"[1] such as one recognized at common law or in statute.[2] The next section discusses how a significant increase in the power of federal administrative agencies to regulate businesses and individuals contributed to the Supreme Court's decision to discard this "legal injury" test in favor of the more familiar "injury-in-fact"

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[34] *Id.*

[35] Warth v. Seldin, 422 U.S. 490, 501 (1975) ("Congress may grant an express right of action to persons who otherwise would be barred by prudential standing rules.").

[36] Federal rules for standing do not apply in state courts, which may have their own rules not addressed in this essay. Asarco, Inc. v. Kadish, 490 U.S. 605, 617 (1989) ("We have recognized often that the constraints of Article III do not apply to state courts, and accordingly the state courts are not bound by the limitations of a case or controversy or other federal rules of justiciability even when they address issues of federal law, as when they are called upon to interpret the Constitution or . . . a federal statute."). However, when a state court enters a judgment in a case in which the plaintiffs would not have had standing had they brought the case in federal court, a party may have standing to appeal that judgment in federal court if the judgment rests upon an allegedly incorrect interpretation of federal law and causes the appellant direct injury. *Id.* at 623–24 ("When a state court has issued a judgment in a case where plaintiffs in the original action had no standing to sue under the principles governing the federal courts, we may exercise our jurisdiction on certiorari if the judgment of the state court causes direct, specific, and concrete injury to the parties who petition for our review, where the requisites of a case or controversy are also met.") (citations omitted).

[1] Ala. Power Co. v. Ickes, 302 U.S. 464, 479 (1938).

[2] Tenn. Elec. Power Co. v. TVA, 306 U.S. 118, 137–38 (1939). *See also* Joint Anti-Fascist Refugee Comm. v. McGrath, 341 U.S. 123, 140–41 (1951) ("The touchstone to justiciability is injury to a legally protected right"); Cass R. Sunstein, *What's Standing After Lujan? Of Citizen Suits, "Injuries," and Article III*, 91 Mich. L. Rev. 163, 170 (1992) (noting that, prior to the 1970s, litigants "with a concrete interest could not bring suit unless the common law, or some other source of law, said so. But if a source of law conferred a right to sue, 'standing' existed, entirely independently of 'concrete interest' or 'injury in fact.'").

standing requirement in 1970.[3] The Court, however, had already begun to develop some of the other basic principles of modern standing doctrine, such as the requirement that the litigant has suffered a particularized injury, decades earlier.[4]

While the Supreme Court had long recognized that its role under Article III is limited to "decid[ing] the rights of individuals" in particular cases rather than answering abstract questions about the constitutional authority of the political branches,[5] the Court decided two cases in the 1920s that established the foundation for modern standing doctrine. Although the Court's opinions in *Fairchild v. Hughes*[6] and *Frothingham v. Mellon*[7] do not employ the term "standing," these decisions embody the fundamental principle underlying the modern concept of standing that a litigant must allege an individualized injury in order to establish a justiciable "case or controversy" under Article III of the Constitution and invoke the jurisdiction of a federal court.

The Supreme Court's first foundational decision concerning Article III standing was the 1922 *Fairchild* case.[8] In that case, the Court held that the federal courts lacked jurisdiction to rule upon a taxpayer's challenge to the procedures by which the Nineteenth Amendment was ratified.[9] In affirming the lower court's dismissal of the case, the Court held that the plaintiff could not establish standing solely by relying upon his status as a citizen with nothing more than a general interest in ensuring that the federal government followed the law.[10] Although Justice Louis Brandeis's majority opinion alluded to Article III of the Constitution as the basis for the Court's ruling on the issue of standing, the Court did not explain the reasoning behind its holding in detail.[11]

A year later, in *Frothingham v. Mellon*, the Court elaborated on its rationale for the standing requirement.[12] In *Frothingham*, the Court considered various constitutional challenges to the Maternity Act, a federal statute that created a grant program to distribute taxpayer funds to states that agreed to cooperate with the federal government to protect the health of mothers and infants.[13] The Court declined to reach the merits of the individual

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[3] Ass'n of Data Processing Serv. Orgs., Inc. v. Camp, 397 U.S. 150, 152 (1970) ("The first question is whether the plaintiff alleges that the challenged action has caused him injury in fact, economic or otherwise."). *See also* Boston Stock Exch. v. State Tax Comm'n, 429 U.S. 318, 320 n.3 (1977) (applying the injury-in-fact and zone of interest tests and finding that an out-of-state stock exchange had standing to bring a Commerce Clause challenge to a New York statute imposing a higher transfer tax on securities transactions involving an out-of-state sale). For more background on the decline of the "legal injury" test, see ArtIII.S2.C1.6.3 Standing Doctrine from 1940s to 1970s.

[4] Steven L. Winter, *The Metaphor of Standing and the Problem of Self-Governance*, 40 STAN. L. REV. 1371, 1375–76 (1988) (including both *Fairchild* and *Frothingham* in a discussion of the Court's earliest standing cases).

[5] Marbury v. Madison, 5 U.S. (1 Cranch) 137, 170 (1803) ("The province of the court is, solely, to decide on the rights of individuals . . . "). *See also* DaimlerChrysler Corp. v. Cuno, 547 U.S. 332, 340 (2006) ("Chief Justice Marshall, in *Marbury v. Madison* . . . grounded the Federal Judiciary's authority to exercise judicial review and interpret the Constitution on the necessity to do so in the course of carrying out the judicial function of deciding cases.").

[6] 258 U.S. 126 (1922).

[7] 262 U.S. 478 (1923).

[8] *Fairchild*, 258 U.S. at 129–30.

[9] *Id.* at 127–30. The plaintiff had sought an injunction to prevent the Secretary of State from proclaiming the ratification of the amendment and the U.S. Attorney General from enforcing it. *Id.*

[10] *Fairchild*, 258 U.S. at 129–30.

[11] *Id.* at 127–30 ("Plaintiff's alleged interest in the question submitted is not such as to afford a basis for this proceeding. . . . [I]t is not a case within the meaning of § 2 of Article III of the Constitution, which confers judicial power on the federal courts . . . ").

[12] *Frothingham* was consolidated with *Massachusetts v. Mellon*, another case in which the State of Massachusetts challenged the same statute. *Frothingham*, 262 U.S. at 478–79. The Court also held that Massachusetts lacked standing to bring suit on its own or on behalf of its citizens to challenge the statute. *Id.* at 480–86. For more on *Massachusetts v. Mellon*, see ArtIII.S2.C1.6.5 Taxpayer Standing.

[13] *Frothingham*, 262 U.S. at 479.

federal taxpayer's constitutional claims, determining that the plaintiff lacked Article III standing.[14] In support of its holding that the plaintiff lacked a sufficient stake in the outcome of the case, the Court noted that the taxpayer's interest in preventing increased tax liability was a "minute and indeterminable" interest widely shared with millions of other U.S. taxpayers, and that a court order enjoining the use of taxpayer funds for the grant program might not actually redress the plaintiff's injury because it might not actually decrease the plaintiff's tax liability.[15] Building on its decision in *Fairchild*, the Court in *Frothingham* specifically grounded the standing requirement in the Constitution's structural separation of powers among the branches of government, as well as the Founders' concerns with the proper role of the Judiciary in a democratic society.[16] The Court wrote that deciding the case on the merits would "be not to decide a judicial controversy" but would rather force the Court to "assume a position of authority over the governmental acts of another and co-equal department, an authority which we plainly do not possess."[17] Consequently, the Court declined to hear the case, partly in order to avoid resolving abstract questions of policy best suited for resolution by the political branches.[18]

Although the Court's decisions in *Fairchild* and *Frothingham* laid the groundwork for the standing doctrine, the Court's opinions from this early time period failed to clarify whether this limitation on the power of the Federal Judiciary was an unavoidable constitutional barrier to litigation or, rather, a prudential constraint on jurisdiction subject to waiver at a judge's discretion for compelling policy reasons.[19] Such fundamental questions about the standing doctrine would remain unanswered until later in the twentieth century.

ArtIII.S2.C1.6.3 Standing Doctrine from 1940s to 1970s

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court's development of the standing doctrine from the 1940s to 1970s accompanied a significant increase in the power of federal administrative agencies to regulate businesses and individuals.[1] The rise of the administrative state raised the question of who could challenge various agency actions in federal court. During the first several decades of the administrative state, the Court's standing test considered whether a litigant had suffered a violation of an explicit legal right. For example, in the 1939 case *Tennessee Electric Power Co. v.*

[14] *Id.* at 486–87.

[15] *Id.*

[16] *Id.* at 488–89.

[17] *Id.*

[18] *Id.*

[19] *See* Flast v. Cohen, 392 U.S. 83, 92 (1968) ("[C]ommentators have tried to determine whether *Frothingham* establishes a constitutional bar to taxpayer suits or whether the Court was simply imposing a rule of self-restraint which was not constitutionally compelled.").

[1] Cass R. Sunstein, *Standing and the Privatization of Public Law*, 88 Colum. L. Rev. 1432, 1437–43 (1988).

Tennessee Valley Authority, the Court determined that a proprietor of a business lacked standing to object to the government helping businesses compete with the proprietor's business.[2] The Court held that the proprietor had failed to identify any explicit legal right that the government had allegedly violated that was "one of property, one arising out of contract, one protected against tortious invasion, or one founded on a statute which confers a privilege."[3] A year later in *FCC v. Sanders Bros. Radio Station*, the Court held that an existing radio station had "standing" to appeal the Federal Communication Commission's grant of a license to a rival radio station.[4] The Court determined that the existing station's allegations of economic injury from increased competition qualified as a legal "injury" under the Communications Act of 1934, which authorized appeals of Commission orders by a "person aggrieved" or "whose interests [were] adversely affected" by grant or denial of a license.[5] Thus, it appears that the Court's constrained approach to standing during these early years resulted from its focus on whether the litigant had suffered injury to a specific legal right recognized by a federal statute or other source of law.[6] Prior to the enactment of the Administrative Procedure Act[7] and other federal statutes providing for judicial review of agency actions, litigants did not possess as many legal rights that could serve as a basis for standing.[8]

Although it is difficult to discern significant trends in the Court's standing jurisprudence during this era, the Court generally adopted an even more permissive approach to standing in the 1960s and 1970s to facilitate challenges to actions by federal agencies. The Administrative Procedure Act, enacted in 1945, provided for judicial review of agency actions, for example, under federal consumer and environmental laws.[9] The Court relaxed the legal injury requirement and allowed the private beneficiaries of those public interest protections to challenge federal agency action based on harms that were not specifically recognized by statute or at common law,[10] including noneconomic harms to private individuals' aesthetic or

[2] 306 U.S. 118, 144 (1939).

[3] *Id.* at 137, 147.

[4] 309 U.S. 470, 472, 477 (1940).

[5] *Id.* at 472–73, 476–77.

[6] Sunstein, *What's Standing After Lujan?*, *supra* note 1, at 180–81.

[7] 5 U.S.C. § 702 (stating that a "person suffering legal wrong because of agency action, or adversely affected or aggrieved by agency action within the meaning of a relevant statute is entitled to judicial review thereof").

[8] *See* Sunstein, *What's Standing After Lujan?*, *supra* note 1, at 180–81.

[9] *Id.* at 183–84 ("[C]ourts interpreted the 'legal wrong' test to allow many people affected by government decisions—including beneficiaries of regulatory programs—to bring suit to challenge government action. For example, courts concluded that displaced urban residents, listeners of radio stations, and users of the environment could proceed against the government to redress an agency's legally insufficient regulatory protection."). For additional examples of the Court's more permissive approach, see Duke Power Co. v. Carolina Envtl. Study Group Inc., 438 U.S. 59, 72, 74–78 (1978) (finding that individuals who lived near the site of a proposed nuclear plant had established standing to challenge a statute that would support the construction of the plant); *Flast*, 392 U.S. at 105–06 ("[W]e hold that a taxpayer will have standing consistent with Article III to invoke federal judicial power when he alleges that congressional action under the taxing and spending clause is in derogation of those constitutional provisions which operate to restrict the exercise of the taxing and spending power."); Hardin v. Ky. Utils. Co., 390 U.S. 1, 6–7 (1968) (determining that a competing utility company had standing to challenge the Tennessee Valley Authority (TVA)'s supply of power. *See also* Inv. Co. Inst. v. Camp, 401 U.S. 617, 621 (1971) ("Congress did legislate against the competition that the petitioners challenge.").

[10] *See, e.g.*, *Hardin*, 390 U.S. at 6–7.

recreational interests.[11] However, as discussed below, this permissiveness declined after the late 1970s, as the Court began to adopt a stricter approach to standing, characterizing it as a core Article III concern.[12]

In the early 1970s, the Supreme Court recognized that a litigant needed standing to maintain a lawsuit but adopted a flexible approach toward the standing inquiry. For example, in *Sierra Club v. Morton*, an environmental group sought an injunction prohibiting federal officials from approving the construction of a ski resort in the Mineral King Valley adjacent to Sequoia National Park.[13] The Court found that the plaintiffs lacked standing, concluding that their abstract interest in environmental protection was insufficient to confer standing.[14] However, the Court's opinion allowed for the possibility that future litigants who claimed injury to their noneconomic interests (e.g., "recreational" injuries impacting their ability to use a park) might be able to establish standing, even if such injuries were widely shared among the public.[15]

The high-water mark for the Supreme Court's permissive approach to standing came in *United States v. Students Challenging Regulatory Agency Procedures* (SCRAP).[16] In that case, the Court held that a group of Georgetown law students, together with the Environmental Defense Fund and the Izaak Walton League, had standing to challenge the Interstate Commerce Commission's (ICC's) approval of an increase to nationwide railroad freight rates on the grounds that it would ultimately result in "economic, recreational and aesthetic harm" to the groups' members.[17] The Court permitted the plaintiffs to establish standing at the pleading stage by combining a series of inferences about how they would suffer injury as persons "aggrieved" by the new rates.[18] The Court found it sufficient for standing that the plaintiffs had alleged that higher rail rates would discourage the use of recyclable materials because used materials were often transported by rail to be recycled.[19] As a result, the plaintiffs alleged that the ICC's rate increase would cause companies to extract more raw materials, such as lumber, from parks in the Washington Metropolitan Area, resulting in

[11] *See, e.g.*, United States v. SCRAP, 412 U.S. 669, 686–87 (1973) ("[N]either the fact that the appellees here claimed only a harm to their use and enjoyment of the natural resources of the Washington area, nor the fact that all those who use those resources suffered the same harm, deprives them of standing.").

[12] *See, e.g.*, Simon v. E. Ky. Welfare Rights Org., 426 U.S. 26, 41–42 (1976) ("[T]he 'case or controversy' limitation of Art. III still requires that a federal court act only to redress injury that fairly can be traced to the challenged action of the defendant, and not injury that results from the independent action of some third party not before the court.").

[13] 405 U.S. 727, 734–35 (1972).

[14] *Id.*

[15] *Id.* Under the Court's current standing doctrine, such recreational or aesthetic injuries may serve as the basis for standing. *See, e.g.*, Summers v. Earth Island Inst., 555 U.S. 488, 494 (2009) ("While generalized harm to the forest or the environment will not alone support standing, if that harm in fact affects the recreational or even the mere esthetic interests of the plaintiff, that will suffice.").

[16] 412 U.S. 669 (1973). The Court later characterized the broad holding of the *SCRAP* case as extending standing "to the very outer limit of the law." Whitmore v. Arkansas, 495 U.S. 149, 159 (1990). And the Court's 2013 decision in *Clapper v. Amnesty International*, in which the Court rejected standing based on chains of attenuated causal inferences, suggests that *SCRAP* is no longer good law. *See* 568 U.S. 398, 414 (2013).

[17] *Id.* at 675–76.

[18] *Id.* at 688–89 ("Here, the Court was asked to follow a far more attenuated line of causation to the eventual injury of which the appellees complained—a general rate increase would allegedly cause increased use of nonrecyclable commodities as compared to recycled goods, thus resulting in the need to use more natural resources to produce such goods, some of which resources might be taken from the Washington area, and resulting in more refuse that might be discarded in national parks in the Washington area.").

[19] *Id.* at 688–89.

people dumping more trash in the area's parks.[20] Consequently, the plaintiffs alleged, the new rates would cause environmental damage to parks in the area that they frequented.[21]

The Court found this attenuated causal chain of inferences to be sufficient for standing purposes, determining that the plaintiffs would suffer "specific and perceptible" recreational and aesthetic harms,[22] even if a large number of other people throughout the United States might claim similar harms from the agency's approval of the rate increase.[23] The Court's decision in *SCRAP* thus exemplifies the Court's broader view at that time of the types of injuries that could support a litigant's standing at the pleading stage in challenges to government action (e.g., noneconomic injuries, such as recreational injuries), as well as the types of inferences that a plaintiff could allege to connect such injuries to the defendant's actions to satisfy the standing requirement.

Although the Supreme Court demonstrated some flexibility in applying rules of standing during the 1970s, the Court did not wholly reject a more stringent standing requirement. For example, two years after its decision in *SCRAP*, it considered *Warth v. Seldin*, a case in which residents of Rochester, New York, sued the adjacent town of Penfield and members of its local government boards, claiming that a Penfield town ordinance and its enforcement "excluded persons of low and moderate income from living in the town" in violation of various provisions of the Constitution and federal law.[24] In explaining its decision on the issue of standing, the Court adopted a more stringent definition of "injury in fact" than it had in *SCRAP*, determining that the plaintiffs failed to show a "distinct and palpable" injury to themselves from the ordinance.[25] The Court further determined that the plaintiffs lacked standing because they had failed to demonstrate a "substantial probability" that their alleged inability to obtain affordable housing resulted from the enforcement of the town's ordinance instead of other factors, such as the independent decisions of real estate developers not to build housing for low-income individuals in the town.[26]

The Supreme Court followed its decision in *Warth* a year later with *Simon v. Eastern Kentucky Welfare Rights Organization*, a case that introduced the concept of standing as a core Article III requirement.[27] In *Simon*, a group of indigent plaintiffs challenged an Internal Revenue Service ruling that allowed nonprofit hospitals to reduce the availability of free services and still retain their charitable organization status. The Court held that the plaintiffs lacked standing to sue because their injury depended on the independent actions of parties not before the Court—i.e., the hospitals.[28] Cases such as *Warth* and *Simon* began to rein in the

[20] *Id.*

[21] *Id.*

[22] *Id.* at 686–89 ("[N]either the fact that the appellees here claimed only a harm to their use and enjoyment of the natural resources of the Washington area, nor the fact that all those who use those resources suffered the same harm, deprives them of standing.").

[23] *Id.* at 687 ("To deny standing to persons who are in fact injured simply because many others are also injured, would mean that the most injurious and widespread Government actions could be questioned by nobody. We cannot accept that conclusion.").

[24] 422 U.S. 490, 493 (1975).

[25] *Id.* at 501.

[26] *Id.* at 504–07.

[27] 426 U.S. 26, 41–42 (1976) ("[T]he 'case or controversy' limitation of Art. III still requires that a federal court act only to redress injury that fairly can be traced to the challenged action of the defendant, and not injury that results from the independent action of some third party not before the court.").

[28] *Id.* at 28.

more flexible standing test of the early 1970s[29] but left unresolved some questions about the legal basis for the standing inquiry and how rigidly courts should apply standing requirements. Nonetheless, these cases became the building blocks for later decisions that would usher in an era of stricter standing requirements,[30] ultimately culminating in the Court's watershed decision in *Lujan v. Defenders of Wildlife* in the early 1990s.[31]

ArtIII.S2.C1.6.4 Lujan v. Defenders of Wildlife Test

ArtIII.S2.C1.6.4.1 Overview of Lujan Test

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Although the Supreme Court had broadly outlined the basic elements of modern standing doctrine during the 1970s, the Court did not clearly articulate the now-classic three-part test that federal courts must apply when inquiring into a litigant's Article III standing until its 1992 decision in *Lujan v. Defenders of Wildlife*.[1] In that case, which involved an environmental group's challenge under a citizen-suit provision to the Department of Interior's decision not to apply the consultation rules of the Endangered Species Act to federal agency actions outside of the United States and high seas, Justice Antonin Scalia synthesized several of the Court's standing cases from 1970s and 1980s to produce a three-part test.[2] Writing for the Court, he stated that a litigant seeking to invoke the jurisdiction of a federal court must demonstrate that:

- He has suffered an "injury in fact" that is "concrete," "particularized," and "actual or imminent, not conjectural or hypothetical";
- That a causal connection exists between the injury and the challenged conduct of the defendant, such that the injury is "fairly traceable" to the defendant's conduct and not the result of action by third parties not before the court; and
- That it is "likely, as opposed to merely speculative, that the injury will be redressed by a favorable decision."[3]

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[29] *See also, e.g.*, Village of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 260–64 (1977) (adopting a broad view of the standing requirement as encompassing both "constitutional limitations and prudential considerations").

[30] *See, e.g.*, Allen v. Wright, 468 U.S. 737 (1984); Valley Forge Christian Coll. v. Ams. United for Separation of Church & State, Inc., 454 U.S. 464, 485 (1982).

[31] 504 U.S. 555, 560 (1992).

[1] 504 U.S. 555 (1992).

[2] *Id.* at 560–61.

[3] *Id.* (internal quotation marks omitted). Although the Court has characterized all three standing elements as constitutionally required, it has at times suggested that Congress may, to an extent, relax the causation and redressability requirements when it creates procedural rights for private citizens to exercise. For example, a plaintiff that is harmed by an agency decision, and alleges a procedural defect in that decision, "can assert that right . . . even though he cannot establish with any certainty" that the correct procedure would have resulted in a different decision. *E.g.*, *id.* at 572 n.7. *See also* Summers v. Earth Island Inst., 555 U.S. 488, 497 (2009) (suggesting in dicta that Congress

This section explores the modern doctrine of Article III standing by examining cases in which the Supreme Court has interpreted and applied the three elements of the *Lujan* test in specific factual situations. Notably, although each standing element imposes an independent requirement on litigants, the three basic elements are interrelated.[4]

The first prong of the *Lujan* test requires a litigant to allege (and ultimately prove) that he has suffered an injury-in-fact. According to the Supreme Court, this key requirement has three components, obligating the litigant to demonstrate that he has suffered an injury that is (1) "concrete," (2) "particularized," and (3) "actual or imminent."[5] The meaning of each of these three components is best illustrated by a discussion of specific factual situations in which the Court has interpreted and applied it. The *Lujan* test also requires that a plaintiff be able to show causation and redressability.

ArtIII.S2.C1.6.4.2 Concrete Injury

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

First, to have an injury-in-fact, a litigant must establish that he has suffered or is imminently threatened with a "concrete" injury—that is, an injury that is "real" and not "abstract."[1] Although the Supreme Court has not clearly articulated what makes a particular harm sufficiently concrete for standing purposes, it has provided some broad guidance. Over the years, the Court has decided several cases that explain the general types of injuries that qualify as concrete.[2] Many of these cases required the Justices to determine whether an

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may, by according a procedural right to private parties, "loosen the strictures of the redressability prong of [the] standing inquiry" so that standing exists even if the Court's enforcement of a procedural right would not necessarily result in the redress of the plaintiff's concrete injury). Despite this, a plaintiff must always show injury from an agency decision, even to claim a procedural error. *See id.* at 496 ("[D]eprivation of a procedural right without some concrete interest that is affected by the deprivation—a procedural right *in vacuo*—is insufficient to create Article III standing.").

[4] *See* Allen v. Wright, 468 U.S. 737, 753 n.19 (1984) ("To the extent there is a difference [between the causation and redressability requirements of standing], it is that the former examines the causal connection between the assertedly unlawful conduct and the alleged injury, whereas the latter examines the causal connection between the alleged injury and the judicial relief requested."). *See also* Sprint Commc'ns Co. v. APCC Servs., Inc., 554 U.S. 269, 288 (2008) ("[T]he general 'personal stake' requirement and the more specific standing requirements (injury in fact, redressability, and causation) are flip sides of the same coin. They are simply different descriptions of the same judicial effort to ensure, in every case or controversy, 'that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination.'") (citations and internal quotation marks omitted).

[5] Lujan v. Defenders of Wildlife, 504 U.S. 555, 560–61 (1992).

[1] Spokeo, Inc. v. Robins, 578 U.S. 330, 340 (2016).

[2] *See, e.g.*, Food Mktg. Inst. v. Argus Leader Media, No. 18-481, slip op. at 4–5 (U.S. June 24, 2019) (holding that the U.S. Department of Agriculture's disclosure of annual store-level data regarding redemption of Supplemental Nutrition Assistance Program benefits under the Freedom of Information Act would constitute a cognizable competitive and financial injury to grocery retailers); Plains Commerce Bank v. Long Family Land & Cattle Co., 554 U.S. 316, 324–26 (2008) (holding that a tribal court's exercise of jurisdiction over a discrimination claim against a non-Indian bank is a sufficiently concrete injury); Dep't of Commerce v. U.S. House of Representatives, 525 U.S. 316, 331 (1999) (determining that a voter's loss of a Representative to the United States Congress is a sufficiently concrete harm); GMC v. Tracy, 519 U.S. 278, 286 (1997) (stating that liability for payment of a tax that allegedly discriminated

intangible injury sufficed for standing. The Court has identified several arguably noneconomic harms to be concrete injuries, including aesthetic injuries (e.g., harm to a plaintiff's ability to observe an animal species);[3] recreational injuries (e.g., injury to a plaintiff's enjoyment of natural resources such as a park);[4] certain procedural injuries (e.g., injury to a litigant's right to have an agency prepare an environmental impact statement for a federal agency action that affects his or her interests);[5] injuries to constitutional rights;[6] dilution of the effectiveness of a citizen's vote in a federal election;[7] and stigmatic injuries from racial discrimination.[8] By contrast, the Court has held that concrete injuries would not include, for example, psychological harm from observing the federal government's use of taxpayer money to provide financial assistance to a religious institution[9] or harms to the plaintiff's general interest in advancing abstract interests (e.g., an interest in having low-income people access health services).[10] Notably, the fact that an injury is "particularized"—or, in other words, that it affects the plaintiff individually[11]—does not necessarily make that injury a concrete harm.

Congress, by statute, can influence a court's standing analysis, but Congress cannot itself create standing in the absence of the constitutional prerequisites. When determining whether the defendant's alleged violation of a right created by Congress is sufficient by itself to

against out-of-state interests in violation of the Commerce Clause amounts to a concrete harm); Int'l Primate Prot. League v. Adm'rs of Tulane Educ. Fund, 500 U.S. 72, 77 (1991) (holding that a litigants' loss of a right to sue in the forum of their choosing is a concrete harm); Franchise Tax Bd. v. Alcan Aluminum, 493 U.S. 331, 336 (1990) (determining that shareholders' reduced returns on their investments from an accounting method employed by California in calculating taxable income of companies in which they had invested is a concrete harm); Meese v. Keene, 481 U.S. 465, 476 (1987) (finding the government's designation of film exhibitor's film as "political propaganda" is a sufficiently concrete harm for standing purposes).

[3] *E.g.*, *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 562–63 (1992).

[4] United States v. Students Challenging Regulatory Agency Procedures, 412 U.S. 669, 686–87 (1973).

[5] *See, e.g.*, *Lujan*, 504 U.S. at 572 n.7. *See also* FEC v. Akins, 524 U.S. 11, 21 (1998) (holding that a litigant's failure to obtain information that federal law requires to be disclosed can constitute a sufficiently concrete injury of his procedural statutory right for Article III standing purposes).

[6] *See, e.g.*, *Spokeo*, 578 U.S. at 341 (noting that injuries to First Amendment rights to free speech and free exercise of religion may amount to concrete injuries). *But see* Laird v. Tatum, 408 U.S. 1, 13–16 (1972) (finding that civilians lacked standing to challenge the Department of the Army's alleged surveillance of peaceful political activity because they failed to allege a specific harm, beyond speculation, that it had a chilling effect on the exercise of their First Amendment rights).

[7] Dep't of Commerce v. U.S. House of Representatives, 525 U.S. 316, 331–32 (1999) (stating that "voters have standing to challenge an apportionment statute because they are asserting a plain, direct and adequate interest in maintaining the effectiveness of their votes.") (citations and internal quotation marks omitted).

[8] Allen v. Wright, 468 U.S. 737, 755 (1984) ("There can be no doubt that [the stigmatizing injury caused by racial discrimination] is one of the most serious consequences of discriminatory government action and is sufficient in some circumstances to support standing."). The Court has also held that a litigant may have standing when it alleges injury from the federal government's disregard of the basic structure of government established in the Constitution.

[9] Valley Forge Christian Coll. v. Ams. United for Separation of Church & State, Inc., 454 U.S. 464, 485 (1982) (indicating that psychological injuries stemming from the plaintiffs witnessing "conduct with which [they] disagree[d]" was an insufficient injury for standing).

[10] Summers v. Earth Island Inst., 555 U.S. 488, 497–98 (2009) (rejecting environmental organizations' argument that they had suffered a concrete injury because there was a "statistical probability" that at least some of their hundreds of thousands of members nationwide were threatened with concrete harm from Forest Service regulations); Simon v. E. Ky. Welfare Rights Org., 426 U.S. 26, 39–40 (1976) ("We note at the outset that the five respondent organizations, which described themselves as dedicated to promoting access of the poor to health services, could not establish their standing on the basis of that goal. Our decisions make clear that an organization's abstract concern with a subject that could be affected by an adjudication does not substitute for the concrete injury required by [Article III]."). *But see* Havens Realty Corp. v. Coleman, 455 U.S. 363, 379 (1982) ("If, as broadly alleged, petitioners' steering practices have perceptibly impaired HOME's ability to provide counseling and referral services for low- and moderate-income home-seekers, there can be no question that the organization has suffered injury in fact. Such concrete and demonstrable injury to the organization's activities—with the consequent drain on the organization's resources—constitutes far more than simply a setback to the organization's abstract social interests.").

[11] For more on the Article III requirement that the plaintiff have suffered a particularized injury, see ArtIII.S2.C1.6.4.3 Particularized Injury.

constitute a concrete harm to a litigant for standing purposes, the Court has stated that federal courts should examine whether the injury is similar to a harm that "has traditionally been regarded as providing a basis for a lawsuit in English or American courts."[12] But in doing so, courts must also give at least some weight to Congress's judgments about which intangible harms amount to concrete Article III injuries.[13] Thus, although Congress may, through enactment of legislation, elevate certain harms to the status of concrete injuries for standing purposes,[14] Congress cannot create standing for litigants who do not face at least a material risk of injury from a defendant's violation of the litigant's statutory rights.[15]

ArtIII.S2.C1.6.4.3 Particularized Injury

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In addition to showing that he suffers a material risk of harm from an actual, concrete injury, the litigant must demonstrate that the injury is "particularized"—or, in other words, that it affects him in a "personal and individual way."[1] The "particularized injury" requirement has long served as a component of the Supreme Court's standing analysis,[2] barring plaintiffs from seeking judicial redress for generalized grievances undifferentiated from those that a large number of people could claim.[3] Nonetheless, the Court has generally been careful to distinguish "generalized grievances" that fail the particularity requirement from widespread injuries, such as mass torts, that are suffered by a large number of people but qualify as particularized because each person has sustained an individualized harm that is distinct from

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[12] Spokeo, Inc. v. Robins, 578 U.S. 330, 341 (2016).

[13] *Id.* at 343.

[14] Lujan v. Defenders of Wildlife, 504 U.S. 555, 578 (1992) ("As we said in *Sierra Club*, statutory 'broadening of the categories of injury that may be alleged in support of standing is a different matter from abandoning the requirement that the party seeking review must himself have suffered an injury.'").

[15] *Spokeo*, 578 U.S. at 343; Summers v. Earth Island Inst., 555 U.S. 488, 496 (2009). *See also* Thole v. U.S. Bank N.A., No. 17-1712, slip op. at 4 (U.S. June 1, 2020) (rejecting the argument that the existence of a general cause of action for participants in a defined-benefit plan in the Employee Retirement Income Security Act of 1974 sufficed to provide Article III standing).

[1] *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 n.1 (1992).

[2] *See* ArtIII.S2.C1.6.4.3 Particularized Injury.

[3] *Lujan*, 504 U.S. at 573–74 ("We have consistently held that a plaintiff raising only a generally available grievance about government—claiming only harm to his and every citizen's interest in proper application of the Constitution and laws, and seeking relief that no more directly and tangibly benefits him than it does the public at large—does not state an Article III case or controversy."); *accord* Gill v. Whitford, No. 16-1161, slip op. at 21 (U.S. June 18, 2018) (holding that voters who, at trial, alleged statewide injury to Wisconsin Democrats as a result of vote dilution from the state legislature's partisan gerrymandering lacked standing to challenge the constitutionality of that practice because they did not demonstrate individual and personal injury to their interests as voters in a particular district). *But see* United States v. Hays, 515 U.S. 737, 744 (1995) (noting that "[d]emonstrating the individualized harm our standing doctrine requires may not be easy in the racial gerrymandering context, as it will frequently be difficult to discern why a particular citizen was put in one district or another" but concluding that where a plaintiff resides in a "gerrymandered district, however, the plaintiff has been denied equal treatment because of the legislature's reliance on racial criteria, and therefore has standing to challenge the legislature's action").

that suffered by the others.[4] In this vein, the Court has held that a litigant's failure to obtain information that federal law requires to be disclosed can constitute a sufficiently particularized injury of a procedural statutory right for Article III standing purposes, even if many individuals may suffer such an injury.[5]

However, even if a citizen has suffered a "particularized" injury of a statutory right, he must still demonstrate that such an injury is "concrete." The Supreme Court distinguished between the concepts of "concrete" and "particularized" injury in its 2016 decision in *Spokeo, Inc. v. Robins*.[6] In *Spokeo*, the plaintiff, Thomas Robins, sued Spokeo, Inc., a company that operated a "people search engine," for alleged violations of the Fair Credit Reporting Act of 1970 (FCRA).[7] The FCRA is a consumer protection statute that was enacted to ensure fairness, accuracy, and privacy in consumer credit reporting by imposing a number of requirements on consumer reporting agencies.[8] The plaintiff sought to pursue a class action lawsuit alleging that Spokeo had willfully reported incorrect information about him and other class members in search results on its website.[9]

The court of appeals had held that Spokeo had inflicted a concrete (albeit, intangible) Article III injury on Robins because they violated his statutory rights, causing him individualized injury and entitling him to statutory damages.[10] The Supreme Court reversed, holding that Spokeo's alleged procedural violations of the FCRA, even if they affected the plaintiff individually and were therefore "particularized," might not amount to "concrete" injuries, because "not all inaccuracies cause harm or present any material risk of harm."[11] Therefore, the Court remanded the case to the Ninth Circuit to decide whether such a risk could result from the defendant's purported procedural violations of the FCRA.[12] The Court's decision in *Spokeo* indicates that a defendant's actions, even if contrary to a procedural duty established by a federal statute providing a damages remedy and sufficient for a "particularized" injury, might not amount to a concrete injury sufficient for Article III standing if such injuries do not actually present a material risk of harm to the litigant.[13] Federal courts will judge whether the defendant's alleged violation of a right created by Congress is sufficient by itself to constitute a concrete harm to a litigant for standing purposes by considering whether the injury is similar to a harm that "has traditionally been regarded as providing a

[4] Spokeo, Inc. v. Robins, 578 U.S. 330, 340 n.7 (2016).

[5] FEC v. Akins, 524 U.S. 11, 21 (1998).

[6] 578 U.S. at 334.

[7] *Id.* at 334–36.

[8] Fair Credit Reporting Act §§ 607, 616, 15 U.S.C. §§ 1681e, 1681n.

[9] *Spokeo*, 578 U.S. at 334–36. The plaintiff had alleged that Spokeo had reported incorrect information concerning, among other things, his marital status and occupation, and thereby committed a technical violation of the FCRA that could damage his career prospects when he sought employment in the future. *Id.*

[10] *Id.* at 11.

[11] *Id*. *See also* Lujan v. Defenders of Wildlife, 504 U.S. 555, 572 n.7 (1992).

[12] *Spokeo*, 578 U.S. at 343.

[13] *Id.* For further discussion of *Spokeo* and its limits on Congress's ability to create new private rights of action, see ArtIII.S2.C1.6.4.3 Particularized Injury. *See also* TransUnion LLC v. Ramirez, No. 20-297, slip op. at 2 (U.S. June 25, 2021) (holding that certain members of a class action lawsuit against a credit reporting agency brought under the Fair Credit Reporting Act had not suffered a concrete injury because misleading information in their credit files had not been provided to third parties); Thole v. U.S. Bank N.A., No. 17-1712 slip op. at 2, 5–6 (U.S. June 1, 2020) (holding that participants in a defined-benefit plan lacked a concrete stake in a lawsuit seeking monetary and injunctive relief to remedy alleged mismanagement of the plan where the plaintiffs' monthly payments were fixed and not tied to plan performance).

basis for a lawsuit in English or American courts."[14] But in doing so, courts must give at least some weight to Congress's judgments about which intangible harms amount to concrete Article III injuries.[15]

In addition, the extent to which widespread *environmental* harms may constitute particularized injuries is an emerging issue in the Court's standing jurisprudence.[16] In a 2007 case in which the State of Massachusetts alleged particularized injury from climate change, the Court determined that the widely shared risks posed by rising sea levels constituted an individualized injury to the State in its capacity as owner of coastal property.[17] However, in that case, the Court did not address whether allegations of widespread harm from climate change would constitute particularized injury in a case brought by an individual plaintiff rather than a state.

ArtIII.S2.C1.6.4.4 Actual or Imminent Injury

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

To satisfy the demands of Article III, a litigant must have suffered an "actual or imminent" injury or, in other words, have "sustained or [be] immediately in danger of sustaining some direct injury as the result of the challenged . . . conduct."[1] To satisfy this test, a litigant's injury must either have already occurred, be presently occurring, or will imminently occur (i.e., be "certainly impending").[2] The "actual or imminent" injury prong of the *Lujan* test is related to the "redressability" prong. If the alleged injury is an imminent (i.e., future) harm, the litigant may demonstrate redressability only if the plaintiff has requested equitable relief (i.e., injunctive or declaratory relief).[3] On the other hand, if the injury occurred wholly in the past, the litigant may demonstrate redressability if it seeks monetary damages.[4]

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[14] *Spokeo*, 578 U.S. at 341.

[15] *Id.* at 11.

[16] Massachusetts v. EPA, 549 U.S. 497, 522 (2007) ("That these climate-change risks are 'widely shared' does not minimize Massachusetts' interest in the outcome of this litigation.").

[17] *Id.* at 522–23.

[1] Los Angeles v. Lyons, 461 U.S. 95, 102 (1983) (citations omitted). The "actual or imminent" injury prong of the *Lujan* test is related to the "redressability" prong. If the alleged injury is an imminent (i.e., future) harm, the litigant may demonstrate redressability only if the plaintiff has requested equitable relief (i.e., injunctive or declaratory relief). *See* Steel Co. v. Citizens for a Better Env't, 523 U.S. 83, 105–09 (1998). On the other hand, if the injury occurred wholly in the past, the litigant may demonstrate redressability only if it seeks monetary damages. *See id.* A litigant cannot demonstrate "actual or imminent injury" from a legal requirement that has "no means of enforcement." California v. Texas, No. 19-840, slip op. at 5 (U.S. June 17, 2021)

[2] *See* Clapper v. Amnesty Int'l USA, 568 U.S. 398, 401 (2013).

[3] *See* Steel Co. v. Citizens for a Better Env't, 523 U.S. 83, 105–09 (1998).

[4] *See id.*

ArtIII.S2.C1.6.4.4
Actual or Imminent Injury

The requirement that a litigant establish an "actual" (i.e., past or present) injury is largely synonymous with the requirement for a concrete and particularized injury.[5] For example, in *Lewis v. Casey*, the Court defined an "actual injury" to an inmate's constitutional right of access to the courts and counsel as requiring an inmate to "demonstrate that the alleged shortcomings in [a prison's] library or legal assistance program hindered his efforts to pursue a legal claim."[6] This evidentiary burden simply required a showing that the inmate had suffered an injury in the past that went beyond harm to "an abstract, freestanding right to a law library or legal assistance" and involved more than an allegation that a "prison's law library or legal assistance program [was] subpar in some theoretical sense."[7] The Court cited as an example of actual injury in this context that an inmate's legal complaint "was dismissed for failure to satisfy some technical requirement which, because of deficiencies in the prison's legal assistance facilities, he could not have known."[8]

The major questions that have arisen concerning the "actual or imminent" prong of the standing inquiry largely involve cases in which a litigant alleges future (i.e., "imminent") injury and seeks injunctive relief to prevent it.[9] The Supreme Court has decided several cases addressing when a litigant's alleged future injures are sufficiently imminent to confer standing to seek a court order aimed at redressing them.

For example, the Court has indicated that it may be difficult for a litigant to establish an "actual or imminent" injury when he seeks injunctive relief against government officials for allegedly illegal and unconstitutional *systemic* practices in their administration or enforcement of the law.[10] In *O'Shea v. Littleton*,[11] several residents of Cairo, Illinois, sued state and local officials for allegedly administering the criminal justice system in a discriminatory and unconstitutional manner through a pattern of illegal bondsetting, sentencing, and jury-fee practices.[12] The Court determined that the plaintiffs lacked standing to seek an injunction against these practices because they did not allege they had actually suffered (or would immediately suffer) injuries from the conduct of these officials.[13] Although some of the plaintiffs were defendants in past criminal cases, at the time that they brought their lawsuit, none of the plaintiffs were serving sentences, on trial, or awaiting trial, and they did not allege an intent to engage in illegal conduct in the future.[14] The plaintiffs thus failed to demonstrate

[5] The distinction between past and present injuries sometimes becomes blurred in practice. *See, e.g.*, Clinton v. City of New York, 524 U.S. 417, 43031 (1998) (allowing the State of New York to challenge the President's authority to exercise a line-item veto, based on a subsequent exercise of that veto that would result in a "substantial contingent liability" of billions of dollars on the state).

[6] 518 U.S. 343, 351 (1996).

[7] *See id.*

[8] *Id.*

[9] A litigant that seeks damages for an asserted risk of future harm has not demonstrated a concrete harm sufficient for Article III standing unless "the exposure to the risk of future harm itself causes a separate concrete harm." TransUnion LLC v. Ramirez, No. 20-297, slip op. at 20, 26 (U.S. June 25, 2021).

[10] *E.g.*, Rizzo v. Goode, 423 U.S. 362, 372 (1976) (determining that litigants could not show "real and immediate injury" because their allegations concerned "what one of a small, unnamed minority of policemen might do to them in the future because of that unknown policeman's perception of departmental disciplinary procedures.").

[11] 414 U.S. 488 (1974).

[12] *Id.* at 490–92.

[13] *Id.* at 494 ("Abstract injury is not enough. It must be alleged that the plaintiff 'has sustained or is immediately in danger of sustaining some direct injury' as the result of the challenged statute or official conduct.").

[14] *Id.* at 494–95 ("Past exposure to illegal conduct does not in itself show a present case or controversy regarding injunctive relief, however, if unaccompanied by any continuing, present adverse effects. Neither the complaint nor respondents' counsel suggested that any of the named plaintiffs at the time the complaint was filed were themselves serving an allegedly illegal sentence or were on trial or awaiting trial before petitioners."). Notably, the *O'Shea* plaintiffs alleged that they would likely have a future challenge to the government's practices. If they had alleged that their past challenges to the government's conduct had evaded judicial review because the unconstitutional conduct

more than mere speculation that they would be subject to the challenged law enforcement practices and suffer injuries as a result of being arrested, charged with crimes under laws they did not challenge as unconstitutional, and subject to proceedings before the criminal justice system.[15]

A decade later, the Court held that past illegal conduct by the government does not imply that the government will again violate the law in the future. For purposes of standing, this holding means that a litigant cannot use that past conduct to demonstrate imminent harm when seeking a declaration from the court that the agency's past action was illegal (i.e., a declaratory judgment) or an order preventing the agency from engaging in illegal conduct in the future (i.e., an injunction). In *Los Angeles v. Lyons*, the plaintiff sought damages for having allegedly suffered a chokehold at the hands of the city police department but also asked for injunctive relief prohibiting the city from using chokeholds in the future.[16] However, the Court found the plaintiff's allegations of future injury to be too speculative to support standing for the requested prospective injunctive relief because, although the plaintiff had been choked once, he could not realistically allege that there was a threat that he would again be arrested and illegally choked by the police as a result of the city's policy.[17]

In a 2013 case implicating national security issues, the Court addressed how likely the threat of future harm to the plaintiff must be in order for that harm to qualify as an imminent injury. In *Clapper v. Amnesty International USA*, attorneys, human rights, labor, legal, and media organizations brought constitutional challenges alleging prospective injury from surreptitious federal government surveillance practices conducted by the Executive Branch pursuant to Section 702 of the Foreign Intelligence Surveillance Act of 1978 (FISA).[18] The plaintiffs alleged that these practices presented an "objectively reasonable likelihood" that the government would intercept their communications with individuals outside of the United States.[19] Although they could not definitively show that they or their clients or sources would be subject to these practices, the plaintiffs alleged threatened injury to their ability to "locate witnesses, cultivate sources, obtain information, and communicate confidential information to their clients."[20] Moreover, the plaintiffs alleged that they had sustained actual, present injury because the risk of surveillance was "so substantial that they ha[d] been forced to take costly and burdensome measures to protect the confidentiality of their international communications."[21]

The Court, in a 5-4 ruling written by Justice Samuel Alito, found that the plaintiffs lacked standing because they could not show that the FISA provision threatened them with "certainly

ceased before the litigants could bring a lawsuit, then the Court may have addressed the doctrine of mootness. *See* ArtIII.S2.C1.8.7 Capable of Repetition, Yet Evading Review (discussing circumstances in which the Court has made an exception to the mootness doctrine because conduct is "capable of repetition, yet evading review").

[15] *O'Shea*, 414 U.S. 488 at 496 ("Of course, past wrongs are evidence bearing on whether there is a real and immediate threat of repeated injury. But here the prospect of future injury rests on the likelihood that respondents will again be arrested for and charged with violations of the criminal law and will again be subjected to bond proceedings, trial, or sentencing before petitioners."); *id.* at 498 ("[W]here respondents do not claim any constitutional right to engage in conduct proscribed by therefore presumably permissible state laws, or indicate that it is otherwise their intention to so conduct themselves, the threat of injury from the alleged course of conduct they attack is simply too remote to satisfy the case-or-controversy requirement and permit adjudication by a federal court."). *See also* Rizzo v. Goode, 423 U.S. 362, 372 (1976).

[16] 461 U.S. 95, 105 (1983).

[17] *Id.* ("That Lyons may have been illegally choked by the police [in the past] . . . does nothing to establish a real and immediate threat that he would again be stopped for a traffic violation, or for any other offense, by an officer . . . who would illegally choke him into unconsciousness without any provocation or resistance on his part.").

[18] 568 U.S. 398, 401–02, 406–07 (2013). *See also* 50 U.S.C. § 1881a.

[19] *Clapper*, 568 U.S. at 401–02, 406–07.

[20] *Id.*

[21] *Id.* at 407.

impending" harm[22] or, at the very least, a substantial risk of harm from the government surveillance program.[23] Moreover, the plaintiffs could not, in the Court's view, "manufacture standing" by alleging *present* injury from the costs that they had incurred in order to avoid the hypothetical harm of government surveillance (e.g., travel expenses to conduct in-person conversations abroad).[24] It is important to note that *Clapper* arose in the sensitive areas of national security and foreign affairs, areas where the Court has "often found a lack of standing in cases" because of concerns about the Judiciary interfering with the political branches' activities.[25]

The following year, in a case not arising in the national security context, the Supreme Court appeared to adopt a broader view of the concept of "imminent harm." In *Susan B. Anthony List v. Driehaus*, the Court addressed imminent harm in the context of a state government's threatened enforcement of an allegedly unconstitutional law against an individual.[26] The Court held that a potentially targeted person may mount a constitutional challenge to the law when enforcement is "sufficiently imminent." As a result, the plaintiff does not have to be arrested or prosecuted before challenging the law.[27] Instead, in order to have standing, the plaintiff must demonstrate "an intention to engage in a course of conduct arguably affected with a constitutional interest" that is "arguably proscribed by the statute challenged," as well as a credible threat of enforcement of the law against him or her.[28] Accordingly, the Court's decision in *Susan B. Anthony List* suggests that there are still circumstances in which a substantial risk of harm to a litigant (rather than "certainly impending" harm) will suffice for standing purposes.[29]

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[22] In adopting a "certainly impending" standard, the five-Justice majority conceded that the Court's prior cases had not uniformly required literal certainty. *Id.* at 414 n.5.

[23] *Id.* at 401–02, 414 n.5. *See also* Trump v. New York, No. 20-366, slip op. at 1–2, 5–7 (U.S. Dec. 18, 2020) (per curiam) (rejecting plaintiffs' argument that they had standing to challenge a presidential memorandum directing the Secretary of Commerce to exclude from the federal census apportionment base "aliens who are not in lawful immigration status" because of a "substantial risk" that Commerce's implementation of the memorandum would lead to a reduction in congressional representation or federal funding).

[24] *Clapper*, 568 U.S. at 402, 407.

[25] *Id.* at 409. The Court noted that it had previously applied the standing requirements more strictly in cases concerning national security or foreign affairs, including challenges to "the constitutionality of a statute permitting the Central Intelligence Agency to account for its expenditures solely on the certificate of the CIA Director," United States v. Richardson, 418 U.S. 166, 167–70 (1974); "the Armed Forces Reserve membership of Members of Congress," Schlesinger v. Reservists to Stop the War, 418 U.S. 208, 209–11 (1974); and "an Army intelligence-gathering program," *Laird*, 408 U.S. at 11–16.

[26] 573 U.S. 682 (2014).

[27] *Id.* at 689–90, 695 (quoting Babbitt v. Farm Workers, 442 U.S. 289, 298 (1979)).

[28] *Id.* at 692–98. *See also* Dep't of Commerce v. New York, No. 18-966, slip op. at 8–10 (U.S. June 27, 2019) (deferring to the factual finding of the lower court that the Department of Commerce's reinstatement of a citizenship question on the federal census could cause concrete and imminent injury to states with large numbers of noncitizens by depriving them of federal funds distributed on the basis of state population because it would "depress the census response rate" among noncitizen households); Pennell v. San Jose, 485 U.S. 1 (1988) (holding that a landlord and association of owners and lessors of real property had standing to challenge a city rent control ordinance because of the probability that, as a result of the enforcement of the ordinance, "a landlord's rent will be reduced below what he or she would otherwise be able to obtain in the absence of the Ordinance"); Doe v. Bolton, 410 U.S. 179, 188–89 (1973) (concluding that doctors had standing to challenge a Georgia statute restricting the performance of abortions "despite the fact that the record does not disclose that any one of them has been prosecuted, or threatened with prosecution, for violation of the State's abortion statutes" because they "should not be required to await and undergo a criminal prosecution as the sole means of seeking relief"). The Court relied on *Doe v. Bolton* to reach the same result in *Planned Parenthood v. Danforth,* 428 U.S. 52, 62 (1976).

[29] *See Susan B. Anthony List*, 573 U.S. at 692–98 (referring several times to the threat of enforcement of the law against the litigants as "substantial"). *See also* Thole v. U.S. Bank N.A., No. 17-1712, slip op. at 5 (U.S. June 1, 2020) (concluding that participants in a defined-benefit plan lacked standing because they failed to adequately plead that the plan managers had "substantially increased the risk that the plan and the employer would fail and be unable to pay the participants' future pension benefits"). In the past, the Court has also described the standard for "imminent

The Supreme Court also found imminent harm in a 2008 lawsuit in which a candidate for Congress, who declared that he would "self-finance" his campaign, challenged provisions of federal election law that would have allowed his opponent to receive campaign contributions on more favorable terms.[30] The Court determined that the self-financing candidate faced the threat of immediate injury.[31] Although the opponent had not yet qualified for the campaign contribution benefit, the plaintiff had challenged the law after declaring his candidacy, as well as indicating his intent to spend enough of his personal funds during the campaign to trigger the benefit for his opponent.[32] With the election in the near future, and finding no indication that the plaintiff's opponent would relinquish the opportunity to receive expanded contributions, the Court determined that injury to the plaintiff was imminent and that the plaintiff had standing to sue.[33]

ArtIII.S2.C1.6.4.5 Causation

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The second prong of the *Lujan* test for Article III standing requires the litigant to demonstrate that the injury-in-fact that he or she has suffered is "fairly traceable" to the challenged actions of the defendant.[1] Under Supreme Court jurisprudence, this requirement

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harm" as requiring the plaintiffs to show a "reasonable probability" of harm or a "threat of specific future harm." *See, e.g.*, Monsanto Co. v. Geertson Seed Farms, 561 U.S. 139, 153–55 (2010) (finding that conventional alfalfa farmers and environmental groups had demonstrated an imminent injury for standing purposes when they alleged that the Department of Agriculture's partial deregulation of genetically engineered alfalfa crops would pose a "reasonable probability" of infecting organic conventional alfalfa crops with an engineered gene); Friends of the Earth, Inc. v. Laidlaw Envtl. Servs., 528 U.S. 167, 184 (2000) ("[W]e see nothing 'improbable' about the proposition that a company's continuous and pervasive illegal discharges of pollutants into a river would cause nearby residents to curtail their recreational use of that waterway and would subject them to other economic and aesthetic harms."); Laird v. Tatum, 408 U.S. 1, 13–14 (1972) ("Allegations of a subjective 'chill' [of First Amendment rights based on speculation] are not an adequate substitute for a claim of specific present objective harm or a threat of specific future harm; 'the federal courts established pursuant to Article III of the Constitution do not render advisory opinions.'") (internal quotation marks and citations omitted).

[30] Davis v. FEC, 554 U.S. 724, 728, 734–35 (2008).

[31] *Id.*

[32] *Id.*

[33] *Id. See also* Whole Woman's Health v. Jackson, No. 21-463, slip op. at 14 (U.S. Dec. 10, 2021) (determining that healthcare providers and other opponents of the Texas Heartbeat Act, which allowed private citizens to sue parties who perform or abet abortions after a fetal heartbeat is detected, lacked standing to sue a private defendant who had attested in sworn declarations that he would not bring a private right of action against the plaintiffs). Carney v. Adams, No. 19-309, slip op. at 1, 5–6, 12 (U.S. Dec. 10, 2020) (holding that an attorney lacked standing to challenge the constitutionality of a provision in Delaware's state constitution that required appointments to Delaware's major courts to "reflect a partisan balance" when the attorney failed to demonstrate that he was "'able and ready' to apply" for a judicial vacancy).

[1] Lujan v. Defenders of Wildlife, 504 U.S. 555, 560–61 (1992) (internal quotation marks omitted). The Court has stated that plaintiffs challenging a law's constitutionality may have Article III even if they cannot trace their injuries to the challenged law, so long as their injuries are traceable to the conduct of the defendant. Collins v. Yellen, No. 19-422, slip op. at 17–19 (U.S. June 23, 2021) (determining that shareholders had Article III standing when their

may not be met when the litigant's injury results at least in part from the actions of a third party not before the court or, more broadly, when "the line of causation between the illegal conduct and injury [is] too attenuated."[2]

For example, in *Simon v. Eastern Kentucky Welfare Rights Org.*, the Supreme Court found that the plaintiffs lacked standing because they failed to show that the *defendants' actions* had caused them harm, rather than the actions of absent third parties.[3] In that case, a group of indigent plaintiffs challenged an Internal Revenue Service (IRS) ruling that allowed nonprofit hospitals to reduce the availability of free services and still retain their charitable organization status.[4] The plaintiffs alleged that the Revenue Ruling made such hospitals less likely to grant free services to indigents.[5] However, the Court held that the plaintiffs lacked standing to sue because their injury was the result of independent action of parties not before the Court—i.e., the hospitals.[6] In other words, the hospitals' denial of services to the indigents, even if likely to injure them, was not fairly traceable to the federal government's issuance of the Revenue Ruling.[7] Instead, the Court determined that it was too speculative to conclude that the denial of service was caused by the Revenue Ruling or that the plaintiffs would receive free hospital services if the IRS revoked its rule, as hospitals could establish their own policies with respect to providing services to indigents without regard to the tax implications.[8] Thus, the plaintiffs lacked standing because they alleged future injuries that depended at least in part on the actions of third parties not before the court, and they could not show more than mere speculation that those third parties would establish policies that would injure them.[9]

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economic injuries were traceable to the Federal Housing Finance Agency's adoption of a new policy, even though the shareholders specifically challenged the constitutionality of the law that created the agency and defined its structure). In *FEC v. Ted Cruz for Senate*, the Court determined that a U.S. Senator and his campaign committee had standing to challenge the constitutionality of a provision in a federal campaign finance statute. The government argued that the Federal Election Commission's threatened enforcement of the statutory provision did not cause the litigants' Article III injuries; rather, the litigants' injuries stemmed from the agency's threatened enforcement of an implementing regulation that imposed loan-repayment limitations. Nonetheless, the Court held that the litigants had standing to challenge the statutory provision because "an agency's regulation cannot operate independently of the statute that authorized it." No. 21–12, slip op. at 22 (U.S. May 16, 2022) (citation and internal quotation marks omitted). Moreover, the litigants' injuries were traceable to the agency's threatened enforcement of the statute and implementing regulations despite the fact that the litigants had "knowingly triggered" the provisions' application. *See id.* at 4–5.

[2] Allen v. Wright, 468 U.S. 737, 752 (1984).

[3] 426 U.S. 26, 42–44 (1976).

[4] *Id.* at 28.

[5] *Id.*

[6] *Id.* at 42.

[7] *Id.* at 41–42.

[8] *Id.* at 42–43 ("It is purely speculative whether the denials of service . . . fairly can be traced to [federal officials'] 'encouragement' or instead result from decisions made by the hospitals without regard to the tax implications."). Although the Court's decision in *Simon* signaled that the Court would take a less permissive approach to the standing doctrine than it had in prior years, the Court had reached a similar result a year earlier. *See* Warth v. Seldin, 422 U.S. 490, 502, 506–07 (1975) (finding that low- and moderate-income residents of Rochester, New York, who sued the adjacent town of Penfield for allegedly excluding them from living in Penfield, lacked standing because the plaintiffs failed to demonstrate that their alleged inability to obtain affordable housing was fairly traceable to the town's zoning practices instead of other factors, such as the independent decisions of companies not to build housing for lower-income individuals in the town). For an example of a case from this era in which the Court found that a litigant had satisfied the causation requirement because the plaintiff's injury did not depend on the actions of absent third parties, see Village of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 264 (1977) (determining that a low-income person had shown a "substantial probability" that judicial relief addressing an allegedly racially discriminatory zoning practices would redress his inability to locate housing near his employer by permitting a specific housing project to move forward because the project's success did not depend on the actions of third parties not before the court).

[9] *Simon*, 426 U.S. at 42–43. *But see* Dep't of Commerce v. New York, No. 18-966, slip op. at 10–11 (U.S. June 27, 2019) (holding that states' alleged injuries stemming from the prospective loss of federal funds were fairly traceable to the Department of Commerce's inclusion of a citizenship question on the federal census questionnaire because a depressed census response rate, even if the result of unlawful third-party conduct, would be the "predictable outcome" of government action on third parties).

A further example of how the interplay between the decisions of absent third parties and the litigant's injury has affected the causation prong of the standing analysis is *Allen v. Wright*.[10] In that case, parents of African-American children who attended public schools alleged that the IRS had caused them injury by allowing racially discriminatory private schools to qualify for federal tax exemptions, preventing the desegregation of their children's schools.[11] The Court found these allegations did not establish sufficient causation for standing purposes.[12] Relying on its earlier decision in *Simon*, the Court determined that it was not clear that racial segregation in the public schools was linked to the IRS policies because private school officials might not change racially discriminatory school policies in response to a withdrawal of tax benefits, and, even if they did, parents of children attending private schools might not transfer their children to public school as a result of such changes.[13] Thus, the plaintiffs' allegations that the IRS policy had caused them injury rested on speculation about the actions of multiple third parties, and such speculation was insufficient to establish a causal connection between the defendant's actions and the plaintiffs' alleged injuries for standing purposes.[14]

As in the case of standing for procedural injuries, discussed above, certain kinds of equal protection injuries may be accepted as sufficient for standing even if the possibility of ultimate relief from that injury remains somewhat speculative. When a litigant challenges a governmental entity's alleged discriminatory practices on equal protection grounds, arguing that those practices have deprived it of a benefit granted to another favored class of individuals, the litigant may have standing even if it cannot demonstrate that it would have received the benefit in the absence of the government's conduct—or that a judicial order would result in its receipt of the benefit if it prevailed. Rather, the litigant must simply show that it would secure equal treatment under the law if it obtained judicial relief. Thus, for example, in *Adarand Constructors v. Peña*, the Court allowed a company's challenge to subcontractor compensation clauses in federal procurement contracts that allegedly favored small businesses controlled by racial minorities.[15] The Court held that, even if the company could not demonstrate that it would be the low bidder on any particular subcontract, it had alleged a sufficient injury from its inability to compete on an equal footing with other companies.[16] Similarly, the Court determined that a male plaintiff had standing to challenge Alabama laws that authorized courts to impose alimony obligations on husbands but not wives.[17] The Court permitted the challenge even though it was possible that prevailing in the suit would "not

[10] 468 U.S. 737 (1984).

[11] *Id.* at 739–40, 757–59.

[12] *Id.*

[13] *Id.*

[14] *Id.*

[15] 515 U.S. 200, 211 (1995).

[16] *Id. See also* Ne. Fla. Chapter of Associated Gen. Contractors of Am. v. City of Jacksonville, 508 U.S. 656, 666 (1993) ("When the government erects a barrier that makes it more difficult for members of one group to obtain a benefit than it is for members of another group, a member of the former group seeking to challenge the barrier need not allege that he would have obtained the benefit but for the barrier in order to establish standing."); Regents of the Univ. of Cal. v. Bakke, 438 U.S. 265, 280 n.14 (1978) ("The trial court found [an injury] in the University's decision not to permit Bakke to compete for all 100 places in the class, simply because of his race. Hence the constitutional requirements of Art. III were met. The question of Bakke's admission [or nonadmission] is merely one of relief.") (internal citation omitted).

[17] Orr v. Orr, 440 U.S. 268, 271–73 (1979).

ultimately bring [the plaintiff] relief from the judgment [for alimony] outstanding against him, as the State could respond to a reversal by neutrally extending alimony rights to needy husbands as well as wives."[18]

ArtIII.S2.C1.6.4.6 Redressability

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The third and final prong of *Lujan*'s test for Article III standing, which is closely related to the "causation" test,[1] requires the litigant to demonstrate that the injury he has purportedly suffered would likely be redressed if the court granted the relief that he has requested.[2] When analyzing the redressability element of standing, the Supreme Court has focused on the specific relief requested by the plaintiff in its complaint and considered whether granting that relief would redress the injury alleged. For example, in *Duke Power Co. v. Carolina Environmental Study Group*, the Court found a "substantial likelihood" that a proposed nuclear power plant would not be constructed in the absence of a limitation of liability provided under the Price-Anderson Act. As a result, the neighbors of the proposed nuclear plant had standing to challenge the constitutionality of the Price-Anderson Act because the environmental and health injuries they would allegedly suffer from the operation of the plant would be redressed if the Court struck down the contested provisions of the Act.[3]

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[18] *Id. See also* Heckler v. Mathews, 465 U.S. 728, 737–39 (1984) ("[W]e have frequently entertained attacks on discriminatory statutes or practices even when the government could deprive a successful plaintiff of any monetary relief by withdrawing the statute's benefits from both the favored and the excluded class."). The Court employed similar reasoning when holding that a general interest newspaper had standing to bring a First Amendment challenge to an allegedly discriminatory Arkansas sales tax exemption for special interest journals. Ark. Writers' Project, Inc. v. Ragland, 481 U.S. 221, 227 (1987) (stating that to hold otherwise would "effectively insulate underinclusive statutes from constitutional challenge").

[1] Allen v. Wright, 468 U.S. 737, 753 n.19 (1984).

[2] Steel Co. v. Citizens for a Better Env't, 523 U.S. 83, 107 (1998) ("Relief that does not remedy the injury suffered cannot bootstrap a plaintiff into federal court; that is the very essence of the redressability requirement."). *See also* Utah v. Evans, 536 U.S. 452, 459–64 (2002) (holding that the State of Utah had demonstrated redressability for standing purposes because of its reasonable belief that if it prevailed, an injunction directing the Secretary of Commerce to recalculate and recertify an official census count would likely lead to a reapportionment of congressional representatives in its favor—a result permitted by the statutes that set forth the census process); Lujan v. Defenders of Wildlife, 504 U.S. 555, 560–61 (1992).

[3] 438 U.S. 59, 74–81 (1978). *See also* Metro. Wash. Airports Auth. v. Citizens for the Abatement of Aircraft Noise, 501 U.S. 252, 264–65 (1991) (holding that individuals living under airplane flight paths could bring a constitutional challenge to a congressionally created "Board of Review" that had power to veto airport authority development plans because invalidation of the veto power could prevent the enactment of plans for further development and could thus redress the individuals' alleged prospective injuries of increased air traffic, accident risks, noise, and pollution). Similarly, in a case where a creditor challenged a bankruptcy court's structured dismissal of a corporate reorganization under Chapter 11 of the Bankruptcy Code that denied the creditor the opportunity to obtain a settlement or assert a claim with "litigation value," the Court held that a decision in the creditor's favor was likely to redress the loss. *See* Food Mktg. Inst. v. Argus Leader Media, No. 18-481, slip op. at 4–5 (U.S. June 24, 2019) (holding that a grocery retailers' association had standing to appeal a lower court's judgment directing the U.S. Department of Agriculture to disclose commercial information that could injure the retailers financially, even though the agency

In contrast, in *Steel Co. v. Citizens for a Better Environment*, an environmental group sued a manufacturer for its past violations of the Emergency Planning and Community Right-to-Know Act (EPCRA).[4] A citizen-suit provision of EPCRA authorizes suits against a company for its failure to submit information timely about the storage of hazardous chemicals, as well as toxic releases, at the company's facilities.[5] Although the company-defendant had later filed the overdue forms to address its violations of EPCRA,[6] the plaintiffs asked the court to declare that the company had violated EPCRA and order various forms of injunctive and compensatory relief.[7] The Court, noting that none of the requested forms of relief would reimburse the plaintiffs for losses caused by the company's late reporting of its chemical information, found that it lacked jurisdiction to adjudicate the merits of the plaintiff's claims.[8] In other words, because the plaintiff's requested relief, even if granted, could not remedy the plaintiffs' alleged past injuries, the plaintiff's injuries were not redressable, and they therefore lacked standing to sue. Furthermore, to the extent that the plaintiffs requested prospective relief in the form of an injunction preventing future harm, they lacked standing because they failed to allege continuing or threatened injury from an ongoing violation of EPCRA by the defendant that could be redressed by a court order granting such relief.[9]

Nonetheless, when a litigant faces the threat of future injury as a result of *ongoing* violations of federal law, its injuries may be redressable by injunctive relief or a civil penalty payable to the U.S. Treasury. In *Friends of the Earth, Inc. v. Laidlaw Environmental Services, Inc.*, the Court considered whether a plaintiff who brought a citizen suit (i.e., a private action to enforce the law) under the Clean Water Act[10] could demonstrate standing to sue a company in order to compel its compliance with the terms of a permit to reduce water pollution. The plaintiff argued that its injuries would be redressed by a civil penalty payable to the U.S. Treasury because those penalties, like injunctions, deter future violations.[11] The Court agreed, holding that civil penalties, even if payable to the U.S. Treasury rather than the plaintiff, could prevent the threat of future injury rather than solely to serve as compensation for past injuries.[12]

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would retain discretion under the Freedom of Information Act to disclose the information if the Court reversed the lower court's ruling, because the government had represented "unequivocally" that it would maintain the confidentiality of the contested data unless a court directed disclosure); Czyzewski v. Jevic Holding Corp., No. 15-649, slip op. at 11 (U.S. Mar. 22, 2017) (holding that the "mere possibility" that a plaintiff's injury will not be remedied by a favorable decision is insufficient to conclude the plaintiff lacks standing because of want of redressability). For other cases in which the Court accepted relatively tenuous connections between the litigant's requested judicial relief and its alleged injury, see Watt v. Energy Action Educ. Found., 454 U.S. 151, 160–62 (1981) and Bryant v. Yellen, 447 U.S. 352, 366–68 (1980).

[4] 523 U.S. 83, 88 (1998).

[5] *See id.* at 86–88.

[6] *Id.* at 88.

[7] *Id.* at 105.

[8] *Id.* at 105–06, 109. Among other relief, the plaintiffs had requested a declaratory judgment that the company had violated EPCRA and various civil penalties. Although the requested civil penalties could be viewed as compensation to the plaintiffs, the Court noted that they were payable to the U.S. Treasury rather than the plaintiffs, and therefore could not remedy the plaintiff's injury from the company's late filing. *Id.* at 106. Instead, civil penalties paid to the government would vindicate only "the 'undifferentiated public interest' in faithful execution of EPCRA. This does not suffice." *Id*.

[9] *Id.* at 108–09. The Court also held that a plaintiff seeking to maintain standing solely to recover the costs of bringing suit cannot show redressability. *Id.* at 107.

[10] The relevant Clean Water Act provision authorizes suit by "a person or persons having an interest which is or may be adversely affected." 33 U.S.C. § 1365(a), (g).

[11] Friends of the Earth, Inc. v. Laidlaw Environmental Services, Inc., 528 U.S. 167, 173 (2000).

[12] *Id.* at 174, 185–86 ("It can scarcely be doubted that, for a plaintiff who is injured or faces the threat of future injury due to illegal conduct ongoing at the time of suit, a sanction that effectively abates that conduct and prevents its recurrence provides a form of redress. Civil penalties can fit that description. To the extent that they encourage

ArtIII.S2.C1.6.4.6
Redressability

A litigant may have more difficulty establishing redressability when it alleges an indirect injury from government action or inaction, and when redress would require actions by an independent third party not before the court. For instance, in *Linda R.S. v. Richard D.*, the Supreme Court considered a Texas law imposing criminal sanctions on parents who failed to meet their child support obligations.[13] Texas state courts had construed the law as imposing no duty of support on the parents of children born to unmarried parents, and the mother of an out-of-wedlock child challenged Texas's refusal to enforce the law against her child's absentee father.[14] The Court held that the plaintiff had failed to allege facts sufficient to support judicial intervention because she did not show that her failure to obtain child support resulted from Texas's decision.[15] The Court noted that even in the unlikely event that the Court ordered the district attorney to enforce the law against the child's father, the father would simply go to jail without being compelled to pay child support in order to get out of jail.[16] Therefore, the plaintiff-mother's injury was not redressable, as her requested injunctive relief against state officials could not compel the father (a third party) to redress her monetary injury through payment of child support.[17]

The Supreme Court has also held, however, that redressability may exist even when the litigant's requested judicial relief would not completely redress its injury.[18] In the 2007 case *Massachusetts v. EPA*, the Court held that the State of Massachusetts had standing to challenge the Environmental Protection Agency (EPA)'s refusal to regulate greenhouse gas emissions from new motor vehicles under the Clean Air Act (CAA).[19] The Court determined that directing EPA to reexamine its refusal to regulate such emissions would redress the alleged risk of injury to plaintiffs' interests from rising sea levels, even if judicial relief resulted in only incremental steps to slow or reduce global warming.[20] In so holding, the Court rejected the argument that an EPA rule would fail to redress the state's injury because (1) it would not affect emissions by the existing automobile fleet, and (2) other countries would continue to increase greenhouse gas emissions.[21] Thus, the Court suggested that a litigant may establish that its injury is redressable even if it cannot show that a favorable judicial decision will *completely* redress the harm.[22]

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defendants to discontinue current violations and deter them from committing future ones, they afford redress to citizen plaintiffs who are injured or threatened with injury as a consequence of ongoing unlawful conduct.").

[13] 410 U.S. 614, 614–16 (1973).

[14] *Id.*

[15] *Id.* at 618.

[16] *Id.* at 618–19.

[17] *Id.*

[18] Massachusetts v. EPA, 549 U.S. 497, 525–26 (2007).

[19] *Id.* at 505–06.

[20] *Id.* at 525–26 ("While it may be true that regulating motor-vehicle emissions will not by itself reverse global warming, it by no means follows that we lack jurisdiction to decide whether EPA has a duty to take steps to *slow* or *reduce* it."). *See also* Larson v. Valente, 456 U.S. 228, 242–43 (1982) (holding that a church and its followers alleged a redressable injury from a state law requiring a church to register with, and report certain information to, the state if more than 50% of its contributions came from nonmembers, even though the Court's declaration that the "50 percent rule" was unconstitutional would not necessarily exempt the church from the requirements of that law).

[21] *See Massachusetts*, 549 U.S. at 525–26.

[22] *See id. See also* Uzuegbunam v. Preczewski, No. 19-1968, slip op. at 12 (U.S. Mar. 8, 2021) (holding that plaintiffs who requested nominal damages for a past violation of their First Amendment rights had established redressability for standing purposes).

ArtIII.S2.C1.6.5 Taxpayer Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In general, a litigant may not rely solely upon his status as a federal taxpayer to maintain Article III standing to challenge government policy or spending decisions.[1] Such taxpayer lawsuits, which are distinguishable from cases in which a litigant challenges the *assessment* of a tax as unconstitutional,[2] often ask a court to decide abstract legal questions regarding the authority of the political branches of government—a task that potentially raises concerns regarding the proper role of the Judiciary.[3] And as a practical matter, litigants arguing that their taxes have been spent unlawfully may simply fail to satisfy the elements of Article III standing, as their complaints may amount to generalized grievances about government spending or policy decisions shared with millions of other taxpayers.[4] Moreover, it may be difficult for a taxpayer-litigant to demonstrate that his or her increased tax liability is traceable to the government spending or policy decision challenged and that judicial relief would effectively reduce the litigant's tax liability.[5] These concerns have led the Supreme Court to permit taxpayer lawsuits only in narrow circumstances.

One of the Supreme Court's earliest decisions on Article III standing involved a taxpayer lawsuit. In the 1923 case *Frothingham v. Mellon*, the Court declined to reach the merits of an individual federal taxpayer's Tenth Amendment and Due Process challenges to the disbursement of federal funds to states under a federal appropriations law, determining that the plaintiff lacked Article III standing.[6] The Court wrote that deciding the case on the merits would not decide a judicial controversy but would rather "assume a position of authority over the governmental acts of another and co-equal department, an authority which we plainly do not possess."[7]

The Supreme Court further explained its justification for rejecting taxpayer lawsuits in the 1970s. In a case in which a federal taxpayer-plaintiff challenged a federal law allowing the Central Intelligence Agency (CIA) to withhold from the public detailed information about the Agency's expenditures, alleging that it violated the Statement and Account Clause of the

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[1] *E.g.*, Hein v. Freedom from Religion Found., Inc., 551 U.S. 587, 599 (2007) (plurality opinion) ("As a general matter, the interest of a federal taxpayer in seeing that Treasury funds are spent in accordance with the Constitution does not give rise to the kind of redressable 'personal injury' required for Article III standing.").

[2] *Id.*

[3] *See, e.g.*, Frothingham v. Mellon, 262 U.S. 447, 486–87 (1923).

[4] *Id.* ("[A U.S. federal taxpayer's] interest in the moneys of the Treasury—partly realized from taxation and partly from other sources—is shared with millions of others; is comparatively minute and indeterminable; and the effect upon future taxation, of any payment out of the funds, so remote, fluctuating and uncertain, that no basis is afforded for an appeal to the preventive powers of a court of equity.").

[5] *E.g.*, Ariz. Christian Sch. Tuition Org. v. Winn, 563 U.S. 125, 129, 136–38 (2011) ("To find injury, a court must speculate that elected officials will increase a taxpayer-plaintiff's bill to make up a deficit.") (citation and internal quotation marks omitted).

[6] *Frothingham*, 262 U.S. at 486–87. *See also* ArtIII.S2.C1.6.4.3 Particularized Injury.

[7] *Id.* at 489.

Constitution,[8] the Supreme Court refused to reach the merits of the case.[9] It determined that the plaintiff's claims raised a generalized grievance, not about Congress's exercise of its taxing and spending power, but rather Congress's exercise of power to regulate the CIA through a statute governing disclosure of information.[10] In another case, an association of officers and enlisted members of the military reserves, as well as individual members, argued that the Incompatibility Clause of Article I[11] forbid certain Members of Congress from holding commissions in the Armed Forces Reserve. The Court held that they lacked standing to sue as taxpayers because they had brought generalized grievances against Executive Branch actions permitting Members of Congress to retain their status as members of the Reserves, and thus lacked the individualized injuries that might provide standing to challenge Congress's exercise of its power under the Taxing and Spending Clause.[12]

For nearly a century since *Frothingham*, the Supreme Court has generally barred federal courts from entertaining cases in which a plaintiff relies solely upon his status as a taxpayer to establish standing.[13] The principal exception to this rule, albeit a narrow exception,[14] arises in the context of the First Amendment. The Court carved out a narrow exception to its general rule in the 1968 case *Flast v. Cohen*.[15] In *Flast*, the taxpayer-plaintiff challenged federal spending under a federal statute, the Elementary and Secondary Education Act of 1965, on the grounds that it violated specific guarantees in the First Amendment's Establishment Clause[16] by subsidizing teaching at religious schools.[17] In a departure from its earlier standing cases, the Court held that the plaintiffs possessed a genuine stake in the outcome of the case sufficient for standing.[18] The Court applied a two-factor test that considered whether there was (1) a "logical link" between the plaintiff's taxpayer status and "the type of legislative enactment attacked"; and (2) "a nexus" between the status of the taxpayer-plaintiff and "the

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[8] Article I, Section 9, Clause 7 of the Constitution, known as the Statement and Account Clause, provides that "No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time."

[9] United States v. Richardson, 418 U.S. 166, 166–68, 175 (1974).

[10] *Richardson*, 418 U.S. at 166–68 ("Although the status [the plaintiff] rests on is that he is a taxpayer, his challenge is not addressed to the taxing or spending power, but to the statutes regulating the CIA."). *See also* DaimlerChrysler Corp. v. Cuno, 547 U.S. 332, 337–39, 343–47 (holding that Ohio taxpayers lacked standing to challenge state and local tax credits and exemptions for a vehicle manufacturer as violations of the Commerce Clause because they sought to advance a generalized grievance and failed to meet the standing requirements of causation and redressability). *But see* FEC v. Akins, 524 U.S. 11, 21 (1998) (holding that a litigant's failure to obtain information that federal law requires to be disclosed can constitute a sufficiently concrete injury for Article III standing purposes).

[11] The Incompatibility Clause in Article I, Section 6, Clause 2 of the Constitution, provides that "no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office." For more on the Incompatibility Clause, see ArtI.S6.C2.3 Incompatibility Clause and Congress.

[12] Schlesinger v. Reservists to Stop the War, 418 U.S. 208, 209–11, 228 (1974). *See also* Lance v. Coffman, 549 U.S. 437, 441–42 (2007) (per curiam) ("The only injury plaintiffs allege is that the law—specifically the Elections Clause—has not been followed. This injury is precisely the kind of undifferentiated, generalized grievance about the conduct of government that we have refused to countenance in the past."); *Ex parte* Levitt, 302 U.S. 633, 633 (1937) (per curiam) ("It is an established principle that to entitle a private individual to invoke the judicial power to determine the validity of executive or legislative action he must show that he has sustained or is immediately in danger of sustaining a direct injury as the result of that action and it is not sufficient that he has merely a general interest common to all members of the public.").

[13] *See* Hein v. Freedom from Religion Found., Inc., 551 U.S. 587, 609 (2007) (plurality opinion).

[14] *See id.* ("It is significant that, in the four decades since its creation, the *Flast* exception has largely been confined to its facts. We have declined to lower the taxpayer standing bar in suits alleging violations of any constitutional provision apart from the Establishment Clause.").

[15] 392 U.S. 83 (1968).

[16] The Establishment Clause of the First Amendment provides that "Congress shall make no law respecting an establishment of religion . . . " U.S. Const. amend. I.

[17] *Flast*, 392 U.S. at 85.

[18] *Id.* at 102–06.

precise nature of the constitutional infringement alleged."[19] The Court determined that, in contrast to the plaintiffs in *Frothingham*, the *Flast* plaintiffs had not alleged that Congress had exceeded its powers under the Taxing and Spending Clause in Article I, Section 8 of the Constitution, but rather that Congress, by exercising its taxing and spending powers under that Clause in authorizing the challenged federal expenditures, had exceeded a specific constitutional limitation on its taxing and spending power (i.e., the First Amendment's Establishment Clause).[20] The Court noted Establishment Clause drafter James Madison's specific interest in preventing the federal government from collecting taxpayer money and spending it in favor of religion.[21] Consequently, the Court found that the plaintiffs had standing to sue by distinguishing *Flast* from *Frothingham* on the grounds that the *Flast* plaintiffs sought to uphold a specific limit set forth in the Establishment Clause on how federal taxpayer money is used.[22]

Since *Flast*, the issue of taxpayer standing has periodically arisen in the context of Establishment Clause challenges to federal financial assistance for religious organizations.[23] In subsequent cases, the Court has construed *Flast*'s exception to the general rule barring taxpayer standing quite narrowly.[24] Thus, when a federal agency disposed of surplus federal real property by conveying it to a private religious college without requiring the school to pay for it, the Court found that plaintiffs seeking to bring an Establishment Clause challenge to the transfer lacked standing to sue as taxpayers.[25] The Court distinguished the case from *Flast* for two major reasons. First, unlike in *Flast*, the plaintiffs had challenged a federal agency's decision to transfer property rather than Congress's enactment of the law authorizing the transfer.[26] Second, the property transfer implicated Congress's power under the Property Clause[27] rather than the Taxing and Spending Clause.[28] By drawing these distinctions, the Court construed its precedent in *Flast* narrowly, determining that *Flast*'s exception to the general bar on taxpayer standing was limited to congressional acts that relied upon the Taxing and Spending Clause.

The Court again refused to recognize taxpayer standing in a 2007 Establishment Clause challenge. In *Hein v. Freedom From Religion Foundation*, taxpayer plaintiffs challenged the Executive Branch's funding of its officials' religiously themed speeches promoting federal

[19] *Id.* at 102. In so holding the Court distinguished *Doremus v. Board of Education,* 342 U.S. 429 (1952). In *Doremus*, the Court held that a parent and student lacked standing to sue as state taxpayers to challenge a New Jersey statute providing for the reading of Bible verses at the beginning of each day of public school as a violation of the First Amendment Establishment Clause. *Id.* at 430. The Court characterized the plaintiffs' alleged injury as a "religious difference" rather than a direct financial injury that resulted from the expenditure of taxpayer funds for a religious purpose. *Id.* at 433–35. In *Flast*, the Court distinguished *Doremus* on the grounds that the reading of Bible verses involved no ostensible expenditure of public funds, and thus the *Doremus* plaintiffs failed to establish a logical link between their taxpayer status and the challenged state law. *See Flast*, 392 U.S. at 102.

[20] *Flast*, 392 U.S. at 102–06.

[21] *Id.* at 103–04.

[22] *Id.*.

[23] For further discussion on challenges to federal financial assistance to private religious organizations, see Amdt1.3.4.1 Overview of Financial Assistance to Religion.

[24] Hein v. Freedom from Religion Found., Inc., 551 U.S. 587, 593 (2007) (plurality opinion) ("In [*Flast*], we recognized a narrow exception to the general rule against federal taxpayer standing.").

[25] Valley Forge Christian Coll. v. Ams. United for Separation of Church & State, Inc., 454 U.S. 464, 482 (1982).

[26] *Id.* at 479–80.

[27] *Id.* Article IV, Section 3, Clause 2 of the Constitution vests Congress with the "Power to dispose of and make all needful Rules and Regulations respecting the . . . Property belonging to the United States . . ." U.S. CONST. art. IV, § 3, cl. 2. For more on the Property Clause, see ArtIV.S3.C2.1 Property Clause Generally.

[28] *Valley Forge*, 454 U.S. at 468, 479–80.

assistance to religious organizations and community groups.[29] A three-Justice plurality suggested that taxpayer-plaintiffs lack standing to challenge Executive Branch funding of religious activities out of general Executive Branch appropriations because such cases do not involve Congress specifically authorizing, appropriating, or mandating the use of federal funds for religious purposes.[30] Continuing to adhere to its narrow interpretation of the *Flast* exception, the Court held four years later that taxpayers lacked standing to challenge Arizona's provision of tax credits to individuals who contributed to scholarship organizations that funded students' attendance at private religious schools.[31] Because the tax credits did not compel individual taxpayers to support sectarian activities in the way that government spending could, the Court held that no aid flowed directly from the government to religious organizations, and therefore the plaintiffs could not surmount the general bar on taxpayer standing.[32]

ArtIII.S2.C1.6.6 Representational Standing

ArtIII.S2.C1.6.6.1 Overview of Representational Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Federal courts must sometimes decide whether a litigant who has not suffered an injury-in-fact may request judicial relief on behalf of an injured third party who has not appeared before the court. The presumption is that an uninjured litigant lacks standing to sue and cannot raise claims on behalf of a third party.[1] The Supreme Court, however, has at times

[29] *Hein*, 551 U.S. at 592–96 (plurality opinion). Article I, Section 8, Clause 1 of the Constitution contains language that is known as the Taxing and Spending Clause, providing, "The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States . . . " U.S. Const. art. I, § 8, cl. 1. For more on the Taxing and Spending Clause, see ArtI.S8.C1.1.1 Overview of Taxing Clause and ArtI.S8.C1.2.1 Overview of Spending Clause.

[30] *Hein*, 551 U.S. at 592–96. Justices Antonin Scalia and Clarence Thomas concurred in the judgment but would have overruled *Flast v. Cohen*.

[31] Ariz. Christian Sch. Tuition Org. v. Winn, 563 U.S. 125, 129 (2011).

[32] *Id.* at 142 ("[T]ax credits and governmental expenditures do not both implicate individual taxpayers in sectarian activities. A dissenter whose tax dollars are 'extracted and spent' knows that he has in some small measure been made to contribute to an establishment in violation of conscience. . . . When the government declines to impose a tax, by contrast, there is no such connection between dissenting taxpayer and alleged establishment.") (internal citations omitted). The Court also stated that the plaintiffs could not show causation and redressability because the alleged subsidization of religious activity was the result of private third-party action and not solely the result of government action. *Id.* at 143. *But see* Grand Rapids Sch. Dist. v. Ball, 473 U.S. 373, 380 n.5 (1985) (stating that the Court has found standing to sue in "numerous cases" involving "Establishment Clause challenges by state taxpayers to programs for aiding nonpublic schools").

[1] United Food & Commercial Workers Union Local 571 v. Brown Grp., Inc., 517 U.S. 544, 557 (1996). The foundational case for the general bar on third-party standing is *Yazoo & Miss. Valley R.R. v. Jackson Vinegar Co.,* 226 U.S. 217, 219–20 (1912) (holding that a railway company could not assert the rights of hypothetical third parties in a challenge to a Mississippi statute providing a penalty for lost or damaged freight). *See also* Sec'y of State of Md. v. Munson Co., 467 U.S. 947, 947 n.5 (1984) (noting that third-party standing is disfavored in part due to "Art. III's requirement that a plaintiff have a 'sufficiently concrete interest in the outcome of the suit to make it a case or

permitted this form of "representational standing," allowing certain relationships between an uninjured litigant and an injured third party to overcome that presumption.[2] Thus, for example, courts may permit representational standing when a formal association seeks to bring suit on behalf of its members;[3] a state sues on behalf of its citizens;[4] a plaintiff asserts a claim assigned to it by another party (e.g., a claim assigned to it by the government under a qui tam[5] provision);[6] or an agent brings suit on behalf of its principal.[7] Such issues may also arise when a party brings a facial challenge to a law on First Amendment grounds, arguing that although the party itself is not subject to the law, it would be unconstitutional for the government to apply it to third parties with which the litigant has some form of close relationship (e.g., a business relationship).[8]

ArtIII.S2.C1.6.6.2 Associational Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and*

controversy,'" and in part due to the prudential concern that "if the claim is brought by someone other than one at whom the constitutional protection is aimed," it may be "an abstract, generalized grievance that the courts are neither well equipped nor well advised to adjudicate" (citations omitted)).

[2] *United Food & Commercial Workers Union Local 571*, 517 U.S. at 557 ("[T]he entire doctrine of 'representational standing' . . . rests on the premise that in certain circumstances, particular relationships (recognized either by common-law tradition or by statute) are sufficient to rebut the background presumption (in the statutory context, about Congress's intent) that litigants may not assert the rights of absent third parties.") (internal citations omitted). Notably, the concept of representational standing, which involves a litigant who has not suffered an injury-in-fact bringing suit on behalf of an injured third party, differs from the issue of "third-party" or jus tertii standing. The latter concept, which is discussed in more detail below, is a prudential doctrine that refers to a situation in which an *injured* party asserts the rights of someone who is not before the court as part of the legal theory underlying its claim or defense. An example of a case concerning third-party standing is *Eisenstadt v. Baird*, in which the Court held that a person convicted for distributing a contraceptive device to an unmarried woman had standing to assert the constitutional rights of unmarried persons denied access to contraception when challenging the Massachusetts law under which he was convicted on equal protection grounds. *E.g.*, 405 U.S. 438, 445–46 (1972) (holding that an advocate of contraception convicted for giving a contraceptive device to an unmarried woman had standing to assert the rights of unmarried persons denied access to contraception, as such persons were not themselves subject to prosecution and would unlikely be able to assert their constitutional right to use it). For more on third-party standing, see ArtIII.S2.C1.6.9.3 Third Party Standing.

[3] *E.g.*, Int'l Union v. Brock, 477 U.S. 274, 290 (1986).

[4] *E.g.*, Massachusetts v. EPA, 549 U.S. 497, 520 (2007).

[5] "*Qui tam* is short for the Latin phrase *qui tam pro domino rege quam pro ipso in hac parte sequitur*, which means 'who pursues this action on our Lord the King's behalf as well as his own.'" Vt. Agency of Nat. Res. v. United States *ex rel.* Stevens, 529 U.S. 765, 768 n.1 (2000). Qui tam lawsuits allow a private party to enforce a law by acting as a "private attorney general." John C. Coffee, Jr., *Rescuing the Private Attorney General: Why the Model of the Lawyer as Bounty Hunter Is Not Working*, 42 Md. L. Rev. 215, 215–16 (1983) (providing an overview of the concept of private attorneys general).

[6] *E.g.*, *Vt. Agency of Nat. Res.*, 529 U.S. at 778.

[7] *E.g.*, Sprint Commc'ns Co. v. APCC Servs., Inc., 554 U.S. 269, 271 (2008).

[8] *E.g.*, Sec'y of State of Md. v. Munson Co., 467 U.S. 947, 958 (1984). Issues of representational standing may also arise in the context of class action lawsuits (i.e., lawsuits by representative parties on behalf of all members of a class of similar plaintiffs that have aggregated their claims in one case). *See, e.g.*, Phillips Petroleum Co. v. Shutts, 472 U.S. 797, 803–06 (1985) (determining that class action defendant had standing to challenge a Kansas Supreme Court judgment rendered against it on the grounds that the judgment would bind the oil and gas company that would not bind all potential plaintiffs because the company "had a distinct and personal interest in seeing the entire plaintiff class bound by *res judicata* just as [it] is bound"); United States Parole Comm'n v. Geraghty, 445 U.S. 388, 403–04 (1980) (holding that a proposed class representative retained a personal stake sufficient for the representative to appeal a court's ruling denying his class certification motion even though the named plaintiff's substantive claim had expired); Sosna v. Iowa, 419 U.S. 393, 402 (1975) (determining that a "live controversy" existed for purposes of Article III standing "between a named defendant and a member of the class represented by the named plaintiff, even though the claim of the named plaintiff ha[d] become moot").

Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Perhaps the most obvious context in which the Supreme Court confronts issues of representational standing is when a formal association sues to redress injury to its members. In the past, associations seeking relief in federal court have included environmental groups,[1] unions (i.e., associations of workers),[2] and trade associations (i.e., associations of businesses).[3] While an organization may have standing to sue on its own behalf when it sustains an injury as an organization (e.g., a loss of membership),[4] the Supreme Court held in *Hunt v. Washington State Apple Advertising Commission*, that an association has standing to sue to redress its members' injuries, even when the association has not itself suffered injury, when: "(a) its members would otherwise have standing to sue in their own right; (b) the interests it seeks to protect are germane to the organization's purpose; and (c) neither the claim asserted nor the relief requested requires the participation of individual members in the lawsuit."[5]

In subsequent decisions, the Supreme Court has elaborated on the three prongs of the *Hunt* test. The first two prongs of this three-part test reflect *Lujan*'s constitutional minimum requirements, assuring that the association possesses a genuine stake in the controversy and that the lawsuit involves a contest between adversarial parties.[6] Therefore, Congress may not waive these requirements through the enactment of legislation. However, the third requirement for associational standing is a prudential limitation, focusing on "administrative convenience and efficiency," that Congress may modify or eliminate in certain contexts.[7] Applying the third prong, the Court has found that associations lack standing when, for example, it would be too difficult to establish individualized proof of injury for each member of an association that seeks monetary damages on behalf of its members[8] or when resolving an association's claims would require the Court to ascertain each member's individual views on a

[1] *E.g.*, Lujan v. Defenders of Wildlife, 504 U.S. 555, 563 (1992); Sierra Club v. Morton, 405 U.S. 727, 731 (1972).

[2] *E.g.*, Int'l Union v. Brock, 477 U.S. 274, 276 (1986).

[3] *E.g.*, Hunt v. Wash. State Apple Advert. Comm'n, 432 U.S. 333, 344–45 (1977) (determining that a state agency that represents an industry of the state and acts like a trade association but with compelled membership may have standing to sue for its members' injuries).

[4] Warth v. Seldin, 422 U.S. 490, 511 (1975).

[5] United Food & Commercial Workers Union Local 571 v. Brown Grp., Inc., 517 U.S. 544, 553 (1996) (quoting *Hunt*, 432 U.S. at 343). *See also Brock*, 477 U.S. at 282–90 (applying the three-part test and determining that an automobile workers union had associational standing to challenge a Department of Labor policy directive interpreting the trade readjustment allowance (TRA) benefit eligibility provisions of the Trade Act of 1974). Some argue that an association is able to more effectively advance the shared interests of its members by pooling financial resources and expertise. *Id.* at 290 ("[T]he primary reason people join an organization is often to create an effective vehicle for vindicating interests that they share with others.").

[6] *United Food & Commercial Workers*, 517 U.S. at 554–57.

[7] *Id.*

[8] *See Brock*, 477 U.S. at 287 ("Neither these claims nor the relief sought required the District Court to consider the individual circumstances of any aggrieved UAW member. The suit raises a pure question of law: whether the Secretary properly interpreted the Trade Act's TRA eligibility provisions. And the relief requested, and granted by the District Court, leaves any questions regarding the eligibility of individual TRA claimants to the state authorities given jurisdiction over such questions by [the Trade Act of 1974].") (citations omitted). *But see Warth*, 422 U.S. at 515–16 (finding that an association of construction firms lacked standing to seek damages for lost profits and business because "whatever injury may have been suffered is peculiar to the individual member concerned, and both the fact and extent of injury would require individualized proof").

particular matter.[9] Nonetheless, Congress may override judicial concerns about the difficulty in establishing individualized proof for each member of an association if the association satisfies the first two elements of the *Hunt* test.[10]

ArtIII.S2.C1.6.6.3 States and Parens Patriae

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

A state has standing to sue in its sovereign capacity for injuries to its own interests.[1] For example, the Supreme Court upheld standing for: (1) Wyoming to sue Oklahoma for an injury to its ability to collect a specific tax that allegedly resulted from Oklahoma requiring its coal-fired electric utilities to burn at least 10% Oklahoma-mined coal;[2] (2) California to sue the Secretary of the Interior for injury to its financial interests from the Secretary of Interior choosing one form of bidding system over another in awarding leases for oil and gas exploration development of Outer Continental Shelf lands;[3] and (3) several states from increased natural gas costs resulting from a Louisiana tax on natural gas imported into the state.[4]

However, a distinct issue of representational standing arises when a state seeks to sue on behalf of its citizens in federal court. The Supreme Court has long recognized that a state may sue as parens patriae—literally, "parent of his or her country"[5]—but only when it has a

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[9] Harris v. McRae, 448 U.S. 297, 321 (1980) (finding that the women's division of a religious organization lacked standing to assert the rights of its members under the Free Exercise Clause because the Court needed to ascertain each member's individual views as to the "permissibility, advisability, and/or necessity of abortion" in order to rule upon the organization's constitutional claims). Because individuals in the organization could have diverse views on the issue of abortion, inquiring into each member's individual views was "necessary in a free exercise case [in order] to show the coercive effect of the enactment as it operates against [an individual] in the practice of his religion." *Id.*

[10] *United Food & Commercial Workers*, 517 U.S. at 554–57.

[1] Massachusetts v. EPA, 549 U.S. 497, 516–20 (2007). *See also* West Virginia v. Env't Prot. Agency, No. 20-1530, slip op. at 14 (U.S. June 30, 2022) (noting that states had been injured for Article III standing purposes when a federal appeals court decision had purported to revive an Environmental Protection Agency rule that required the states to "more stringently regulate power plant emissions within their borders").

[2] Wyoming v. Oklahoma, 502 U.S. 437, 440, 451 (1992).

[3] Watt v. Energy Action Educ. Found., 454 U.S. 151, 153 160–61 (1981).

[4] Maryland v. Louisiana, 451 U.S. 725, 736 (1981).

[5] Black's Law Dictionary 1221 (9th ed. 2009) (defining "parens patriae" as "a doctrine by which a government has standing to prosecute a lawsuit on behalf of a citizen" but stating that the "state ordinarily has no standing to sue on behalf of its citizens, unless a separate, sovereign interest will be served by the suit"). For a historical discussion of parens patriae suits, see New York v. New Jersey, 256 U.S. 296, 301–02 (1921) ("The health, comfort and prosperity of the people of the State and the value of their property being gravely menaced, as it is averred that they are by the proposed action of the defendants [in executing a sewer project that would allegedly discharge polluted water into New York Harbor], the State is the proper party to represent and defend such rights by resort to the remedy of an original suit in this court under the provisions of the Constitution of the United States."); Missouri v. Illinois, 180 U.S. 208, 241 (1901) ("[I]f the health and comfort of the inhabitants of a State are threatened, the State is the proper party to represent and defend them."). Since deciding these cases, the Court has taken a narrower view of the parens patriae

separate "sovereign interest" at stake in the outcome of the controversy.[6] And while a state may sue to assert its rights *under* federal law, it may not sue to protect its citizens *from* federal law on the grounds that Congress has intruded upon an area of traditional state authority.[7]

For instance, in *Massachusetts v. Mellon* the State of Massachusetts sought to maintain a lawsuit against the federal government challenging the Maternity Act, a federal statute that created a grant program to distribute taxpayer funds to states that agreed to cooperate with the federal government to protect the health of mothers and infants.[8] Massachusetts argued that Congress had usurped state powers over traditionally local matters in violation of the Tenth Amendment.[9] The Supreme Court first found that the state lacked standing to sue on its own behalf because it had no separate sovereign interest that would be affected by the statute (e.g., a property interest).[10] The Court then determined that Massachusetts lacked standing to sue as a representative of its citizens because it was the role of the federal government to act as representative, or parens patriae, of Massachusetts citizens with respect to federal laws.[11] As a result, the Court reasoned that Massachusetts lacked standing to pursue its Tenth Amendment claim, which sought to protect its citizens from a federal statute.[12]

Several decades later, the Supreme Court discussed a state's standing to sue protect its sovereign interests in a major environmental case. In the 2007 case *Massachusetts v. EPA*, the Court held that the State of Massachusetts had standing to challenge the Environmental Protection Agency (EPA)'s denial of a petition asking the agency to regulate greenhouse gas emissions from new motor vehicles under the Clean Air Act (CAA).[13] The Court determined that Massachusetts had standing for two major reasons. First, the Court held that the because the dispute involved the proper construction of the CAA, and because Congress had granted a specific procedural right in the Act to protect the state's concrete interests in EPA's regulatory actions, the state had a personal stake in the outcome and could assert that procedural right without meeting the normal standards for immediacy and redressability.[14] Second, the Court deemed Massachusetts' alleged injury—its loss of shore land from global-warming induced sea level rise—an independent *quasi*-sovereign interest in preserving its territory separate from its citizens' interests and thus sufficient for standing.[15]

The Supreme Court's reasoning in *Massachusetts v. EPA* did not endorse the concept of parens patriae standing generally, but it did recognize that the states "are not normal litigants for the purposes of invoking federal jurisdiction."[16] The court thus allowed Massachusetts's

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doctrine. In particular, the Court now requires that the state have a "separate sovereign interest" at stake apart from litigating the "personal claims of its citizens." Pennsylvania v. New Jersey, 426 U.S. 660, 665 (1976).

[6] *Id.* ("It has . . . become settled doctrine that a State has standing to sue only when its sovereign or quasi-sovereign interests are implicated and it is not merely litigating as a volunteer the personal claims of its citizens.").

[7] Massachusetts v. Mellon, 262 U.S. 447, 520 n.17 (1923).

[8] *Id.* at 479. The Court consolidated the case with the above-discussed case of *Frothingham v. Mellon*.

[9] *Massachusetts*, 262 U.S. at 479.

[10] *Id*. at 482–85 ("It follows that in so far as the case depends upon the assertion of a right on the part of the State to sue in its own behalf we are without jurisdiction. . . . [W]e are called upon to adjudicate, not rights of persons or property, not rights of dominion over physical domain, not quasi-sovereign rights actually invaded or threatened, but abstract questions of political power, of sovereignty, of government.").

[11] *Id.* at 486.

[12] *Id.*

[13] 549 U.S. 497, 505–06 (2007).

[14] *Id.* at 516–18 ("When a litigant is vested with a procedural right, that litigant has standing if there is some possibility that the requested relief will prompt the injury-causing party to reconsider the decision that allegedly harmed the litigant.").

[15] *Id.* at 518–20 (citing Georgia v. Tennessee Copper Co., 206 U.S. 230, 237 (1907)).

[16] *Massachusetts*, 262 U.S. at 518.

suit as one that involved its rights under federal law (i.e., the CAA's citizen-suit provision), and not solely an action (as in *Mellon*) involving a state seeking to protect its citizens *from* the operation of a federal statute.[17] Although the Court also determined that Massachusetts had standing to sue for injury to its "quasi-sovereign" interest in protecting its territory, it is unclear whether the Court established a new precedent on a state's standing to sue as parens patriae. The Court's decision in *Massachusetts v. EPA* could be characterized as resting on principles of federalism and a state's sovereign prerogative to regulate in-state motor vehicle emissions.

ArtIII.S2.C1.6.6.4 Assignees of a Claim

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

An assignment of a legal claim occurs when one party (the "assignor") transfers its rights in a cause of action to another party (the "assignee").[1] The Supreme Court has held that a private litigant may have standing to sue to redress an injury to another party when the injured party has assigned at least a portion of its claim for damages from that injury to the litigant. The Supreme Court in the 2000 case *Vermont Agency of Natural Resources v. United States ex rel. Stevens* held that private individuals may have Article III standing to bring a qui tam civil action in federal court under the federal False Claims Act (FCA) on behalf of the federal government if authorized to do so.[2] The FCA imposes civil liability upon "any person" who, among other things, knowingly presents to the federal government a false or fraudulent claim for payment.[3] To encourage citizens to enforce the Act, in certain circumstances, a private individual, known as a "relator," may bring a civil action for violations of the Act. Such plaintiffs sue under the name of the United States and may receive a share of any recovered proceeds from the action.[4] Under the FCA, the relator is not merely the agent of the United States but an individual with an interest in the lawsuit itself.[5]

Ordinarily, if the relator's financial interest in the outcome of the case were merely a byproduct of the suit itself, there would be no injury sufficient for standing.[6] In *Stevens*,

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[17] *Id.* at 520 n.17 ("[T]here is a critical difference between allowing a State 'to protect her citizens from the operation of federal statutes' (which is what *Mellon* prohibits) and allowing a State to assert its rights under federal law (which it has standing to do).") (citations omitted).

[1] Black's Law Dictionary 136 (9th ed. 2009) (defining "assignment" as "the transfer of rights or property").

[2] 529 U.S. 765, 768, 778 (2000).

[3] 31 U.S.C. § 3729(a).

[4] *Id.* § 3730(d)(1)–(2).

[5] *Vt. Agency of Natural Res.*, 529 U.S. at 772 ("For the portion of the recovery retained by the relator . . . some explanation of standing other than agency for the Government must be identified.") (citing 31 U.S.C. § 3730).

[6] *Id.* at 772–73 ("An interest unrelated to injury in fact is insufficient to give a plaintiff standing. . . . A *qui tam* relator has suffered no [invasion of a legally protected right]—indeed, the 'right' he seeks to vindicate does not even fully materialize until the litigation is completed and the relator prevails.") (citations omitted). The Supreme Court has held that a litigant's interest in recovering attorneys' fees or the costs of bringing suit by itself normally does not

however, the Supreme Court recognized a distinction that confers standing upon qui tam plaintiffs in FCA cases. Justice Antonin Scalia, writing for the Court, determined that assignments of claims are distinguishable from cases in which a litigant has a mere financial interest in the outcome of the suit because the assignee-plaintiff actually owns a stake in the dispute as a legal matter.[7] Justice Scalia drew support for this distinction from the long-standing historical practice of the government assigning a portion of its damages claim to a private party and allowing that party to assert the injury suffered by the federal government as a representative of the United States.[8] The Court noted the "long tradition of *qui tam* actions in England and the American colonies,"[9] concluding that "Article III's restriction of the judicial power to 'Cases' and 'Controversies' is properly understood to mean 'cases and controversies of the sort traditionally amenable to, and resolved by, the judicial process.'"[10]

Eight years after deciding *Stevens*, the Supreme Court again found that an assignee of a claim had standing, even when the assignee had promised to remit all of the money it recovered in the proceedings to the assignor.[11] In *Sprint Communications Co. v. APCC Services, Inc.*, payphone operators had assigned their legal claims for money owed to them by long-distance communications carriers to third-party collection agencies.[12] The agencies were authorized to bring suit on behalf of the payphone operators and promised to pay all of the proceeds of the litigation to the payphone operators for a fee.[13] The Court held that these collection agencies had standing to pursue the operators' claims because of the long history of courts' acceptance of such claims.[14] Assignment was sufficient to transfer the injury to the collections agencies, and the injury to the operators that had been transferred to the collection agencies would be redressed by a favorable judicial decision, even if the agencies would subsequently pay all of the proceeds to the operators.[15]

The *Stevens* and *Sprint* cases could have broader implications for Article III standing doctrine, as they suggest a way in which the constitutional limitations on standing may be bypassed through the assignment of rights to a third party.[16] For instance, if Congress enacts a federal statute recognizing an injury to the federal government that otherwise satisfies Article III's requirements, it may assign a portion of its claim to a private party, thereby potentially giving that plaintiff standing to sue as a representative of the United States.[17] This is

confer standing to sue. *E.g.* Steel Co. v. Citizens for a Better Env't, 523 U.S. 83, 107 (1998) ("The litigation must give the plaintiff some other benefit besides reimbursement of costs that are a byproduct of the litigation itself."); Diamond v. Charles, 476 U.S. 54, 70–71 (1986) ("[T]he mere fact that continued adjudication would provide a remedy for an injury that is only a byproduct of the suit itself does not mean that the injury is cognizable under Art. III.").

[7] *Vt. Agency of Natural Res.*, 529 U.S. at 773.

[8] *Id.* at 774, 778

[9] *Id.*

[10] *Id.* Although the Court held that the relator had standing to sue under the qui tam provision, it ultimately determined that the plaintiff could not maintain the action against a state agency for allegedly submitting false grant claims to the EPA because states were not "persons" subject to liability under the False Claims Act. *Id.* at 787.

[11] Sprint Commc'ns Co. v. APCC Servs., Inc., 554 U.S. 269, 271 (2008).

[12] *Id.* at 271–72.

[13] *Id.* at 272.

[14] *Id.* at 273–75. The Court noted that "federal courts routinely entertain suits which will result in relief for parties that are not themselves directly bringing suit. Trustees bring suits to benefit their trusts; guardians ad litem bring suits to benefit their wards; receivers bring suit to benefit their receiverships; assignees in bankruptcy bring suit to benefit bankrupt estates; executors bring suit to benefit testator estates; and so forth." *Id.* at 287–88.

[15] *Id.* at 286–87 ("[I]f the [collection agencies] prevail in this litigation, the long-distance carriers would write a check to [them] for the amount of dial-around compensation owed. What does it matter what the [agencies] do with the money afterward?").

[16] *See also* ArtIII.S2.C1.6.4.3 Particularized Injury.

[17] *See Vt. Agency of Natural Res.*, 529 U.S. at 773.

essentially the operation of the False Claims Act.[18] However, it is unclear whether every such statute would necessarily resolve all Article III standing concerns. In *Stevens* and *Sprint*, the Court gave significant weight to the lengthy history of courts recognizing the types of assignments at issue when determining that the litigants in those cases had standing to sue.[19] Moreover, there may be a number of concerns about the constitutionality and practicality of using assignments to delegate core government functions (e.g., criminal prosecutions) to private parties when courts have not historically recognized claims based on such assignments, including concerns about interference with the Executive Branch's Article II powers and prosecutorial discretion.[20]

ArtIII.S2.C1.6.6.5 Agency and Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Broadly speaking, an agency relationship may arise when one person (a "principal") and another person (an "agent") agree that the agent will perform certain actions on behalf of the principal, subject to the principal's control.[1] Such a relationship may also arise when the law authorizes one person to represent another person's interests.[2] Agency relationships may raise questions of representational standing when an uninjured litigant acts as the authorized agent for another individual who has suffered an injury-in-fact by seeking relief in federal court on behalf of that individual. For example, if authorized by law, a parent might sue on behalf of an injured minor child. In order for such a litigant to seek relief for another party he must be officially authorized to do so (either by consent or as a matter of law), and the advocate's relationship with the third party must exhibit some of the "most basic features of an agency relationship," such as the right to control the agent's actions.[3]

One form of "agency standing" is the common-law concept of "next friend standing," which involves an uninjured third party pursuing legal claims for the benefit of an injured party who

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[18] 31 U.S.C. §§ 3729–3733.

[19] *See id.* at 774, 778; *Sprint Commc'ns Co.*, 554 U.S. at 273–75.

[20] *See* Heather Elliott, *Congress's Inability to Solve Standing Problems*, 91 B.U. L. Rev. 159, 195–204 (2011) (questioning whether Congress's assignment of claims to citizen suitors in order to confer standing would be constitutional or practical).

[1] Restatement (Third) of Agency § 1.01 ("Agency is the fiduciary relationship that arises when one person (a 'principal') manifests assent to another person (an 'agent') that the agent shall act on the principal's behalf and subject to the principal's control, and the agent manifests assent or otherwise consents so to act.").

[2] *See generally* Black's Law Dictionary 1142 (9th ed. 2009) (defining a "next friend" as "a person who appears in a lawsuit to act for the benefit of an incompetent or minor plaintiff; but who is not a party to the lawsuit and is not appointed as a guardian").

[3] Hollingsworth v. Perry, 570 U.S. 693, 702 (2013). *See also, e.g.*, Thole v. U.S. Bank N.A., No. 17-1712, slip op. at 4 (U.S. June 1, 2020) (rejecting the argument that uninjured participants in a defined-benefit plan could sue as the plan's representatives because, unlike "guardians, receivers, and executors," the plaintiffs had not been "legally or contractually appointed to represent the plan").

cannot appear in court on his own behalf.[4] This form of representational standing is often implicated in the context of habeas corpus proceedings, in which a litigant seeks a judicial determination that a prisoner should receive a new trial, new sentence, or be released.[5] For instance, in *Whitmore v. Arkansas*, a death row inmate challenged the constitutional validity of a death sentence imposed on a fellow capital defendant as a "next friend" of the defendant when the defendant decided not to appeal his sentence to the Arkansas Supreme Court.[6] The U.S. Supreme Court determined that the third-party inmate lacked standing to bring an Eighth Amendment objection as the "next friend" of the capital defendant.[7] The Court stated that the two-part test for "next friend" standing that the proposed next friend must meet in order to invoke federal court jurisdiction requires: (1) the real party in interest to be unable to "appear on his own behalf to prosecute the action" because of inaccessibility, mental incompetence, or other disability; and (2) the "next friend" to "be truly dedicated to the best interests of the person on whose behalf he seeks to litigate" and to have a significant relationship with the real party in interest so that the next friend's claims are not generalized grievances.[8] In *Whitmore*, the proposed "next friend" failed to satisfy the first prong—and therefore lacked standing to sue—because he had not demonstrated that the real party in interest (i.e., the capital defendant) was unable to litigate the case due to disability after the defendant had voluntarily waived his right to appeal his sentence.[9]

The Supreme Court more recently discussed the limits of standing based on an agency theory in a case in which private parties sought to act as agents of the California government in a federal lawsuit. In *Hollingsworth v. Perry*, the Court considered a Fourteenth Amendment Equal Protection and Due Process Clause challenge to Proposition 8, a law that amended the California Constitution to provide that only marriage between a man and a woman is valid or recognized in California.[10] A federal district court had invalidated Proposition 8, but state and local officials declined to defend that ruling on appeal, so the official "proponents" of the proposition, who were private parties, sought to defend the law. The Court held that it lacked the authority to address the validity of Proposition 8 on the merits because the proponents did not have standing to invoke the jurisdiction of the federal courts to defend the proposition.[11] The Court first held that the proponents lacked a "direct stake" in the outcome of their appeal and "their only interest in having the District Court order reversed was to vindicate the

[4] Whitmore v. Arkansas, 495 U.S. 149, 162 (1990) ("Most frequently, 'next friends' appear in court on behalf of detained prisoners who are unable, usually because of mental incompetence or inaccessibility, to seek relief themselves."). *See also* Black's Law Dictionary 1142 (9th ed. 2009) (defining a "next friend" as "a person who appears in a lawsuit to act for the benefit of an incompetent or minor plaintiff; but who is not a party to the lawsuit and is not appointed as a guardian").

[5] Other contexts in which it may be relevant include actions on behalf of infants, other minors, and adult mental incompetents. *Whitmore*, 495 U.S. at 162 n.4. The Court has held that a parent-child relationship "easily satisfies" the "close relationship" requirement for "next friend" standing. *See* Sessions v. Morales-Santana, No. 15-1191, slip. op. at 7 (U.S. June 12, 2017).

[6] *Whitmore*, 495 U.S. at 151. The Court had rejected the litigant's argument that he had standing in his individual capacity. *Id.* at 161–62

[7] *Id.* at 165.

[8] *Id.* at 163–64.

[9] *Id.* at 165. *See also* Sessions v. Morales-Santana, slip. op. at 7 (holding that the death of the real party in interest meets the "hindrance" requirement for "next friend" standing); Gilmore v. Utah, 429 U.S. 1012, 1016 (1976) (Burger, C.J., concurring) (suggesting that a competent defendant's "knowing and intelligent" waiver of his right to seek appellate review of his sentence deprives the Court of jurisdiction to hear a "next friend" application for a stay of execution); *id.* at 1017 (Stevens, J., concurring) ("In my judgment the record not only supports the conclusion that Gilmore was competent to waive his right to appeal, but also makes it clear that his access to the courts is entirely unimpeded and therefore a third party has no standing to litigate an Eighth Amendment claim—or indeed any other claim—on his behalf.").

[10] Hollingsworth v. Perry, 570 U.S. 693, 688–90 (2013).

[11] *Id.* at 689.

constitutional validity of a generally applicable California law."[12] The Court then rejected the argument that the referendum proponents had standing because they were formally authorized to litigate on behalf of the State of California, as the litigants were private individuals rather than state officials or authorized agents of the state.[13] In rejecting what the Court viewed as a "generalized grievance," the Court emphasized that the proponents had no official role in enforcing California law distinguishable from the general interest of every citizen of California.[14]

Similarly, in *Virginia House of Delegates v. Bethune-Hill*, discussed below,[15] the Supreme Court concluded that one chamber of the Virginia legislature lacked standing to represent the Commonwealth's interests in appeal of a federal district court order requiring the redrawing of a 2011 legislative redistricting map for two reasons: (1) Virginia law designated the Virginia Attorney General as the commonwealth's exclusive representative in litigation; and (2) the chamber claimed earlier in the litigation that it was vindicating its own interests, as opposed to those of Virginia.[16]

ArtIII.S2.C1.6.6.6 Overbreadth Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Generally, a litigant challenging a law as unconstitutional may not assert the rights of a third party, and thus he must show that the law is either unconstitutional as applied to him (i.e., an "applied challenge")[1] or that there are no circumstances in which the law would be constitutional (i.e., a "facial challenge").[2] However, there is an exception to this general rule known as the doctrine of overbreadth, which generally arises in the context of First

[12] *Id.* at 649.

[13] *Id.* at 696–99. The Court noted that an essential feature of agency is the principal's right to control the agent's actions. Here, the proponents decided "what arguments to make and how to make them." *Id.* at 15. The Court also noted that the proponents were not elected to their position, took no oath, had no fiduciary duty to the people of California, and were not subject to removal. *Id. See also* Arizonans for Official English v. Ariz., 520 U.S. 43, 67–70 (1997) (determining that a former state employee lacked standing to defend an appeal of a lower court decision in her favor after she had left state employment); Karcher v. May, 484 U.S. 72, 74 (1987) (holding that public officials who had previously participated in a lawsuit as interveners solely in their official capacities as state legislators lacked standing to appeal an adverse judgment after they had left office).

[14] *Hollingsworth*, 570 U.S. 693, 672. *See also* Brnovich v. Democratic Nat'l Comm., No. 19-1257, slip op. at 12 (U.S. July 1, 2021) (holding that the Arizona Attorney General, whom state law authorized to represent the state in any federal court action, had standing to prosecute the appeal of a Ninth Circuit decision that an Arizona voting restriction violated the Voting Rights Act of 1965).

[15] *See* ArtIII.S2.C1.6.7 Federal and State Legislators and Standing.

[16] *See* No. 18-281, slip op. at 4–5 (U.S. June 17, 2019).

[1] Clements v. Fashing, 457 U.S. 957, 966 n.3 (1982) ("A litigant has standing to challenge the constitutionality of a statute only insofar as it adversely affects his own rights.").

[2] United States v. Salerno, 481 U.S. 739, 745 (1987) ("A facial challenge to a legislative Act is, of course, the most difficult challenge to mount successfully, since the challenger must establish that no set of circumstances exists under which the Act would be valid.").

Amendment challenges.[3] The Supreme Court has held that prudential and constitutional limitations on third-party standing might not apply in cases in which the litigant brings a facial First Amendment challenge to a law as being substantially too broad and therefore chilling third parties' rights protected by the First Amendment.[4] The Court has permitted standing for such litigants when the law interferes with a potential or currently existing relationship (e.g., a business relationship) with a third party whose First Amendment rights could be hindered by the law.[5]

ArtIII.S2.C1.6.7 Federal and State Legislators and Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has also created specific standing rules for federal courts to apply when members of a legislative body seek to uphold the effectiveness of their votes or vindicate their institution's powers and prerogatives by suing (or defending) another unit of the same government in federal court.[1] The Court has held that legislators may have standing to sue in order to maintain the effectiveness of votes that they have cast in their capacity as legislators if their votes ultimately did not prevail. In *Coleman v. Miller*, twenty-four members of the Kansas state legislature sought a writ of mandamus compelling state officials to recognize that Kansas had not ratified an amendment to the Federal Constitution, the Child Labor Amendment,[2] challenging the way that the vote had been taken.[3] Twenty of the members, who were senators, had voted to reject the amendment, but the measure ratifying the amendment

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[3] For a more detailed explanation of this First Amendment doctrine, see Amdt1.7.2.1 The Overbreadth Doctrine, Statutory Language, and Free Speech.

[4] Broadrick v. Oklahoma, 413 U.S. 601, 615 (1973) ("[P]articularly where conduct and not merely speech is involved, we believe that the overbreadth of a statute must not only be real, but substantial as well, judged in relation to the statute's plainly legitimate sweep."). *See also Munson Co.*, 467 U.S. at 958 ("Facial challenges to overly broad statutes are allowed not primarily for the benefit of the litigant, but the benefit of society—to prevent the statute from chilling the First Amendment rights of other parties not before the court."); Black's Law Dictionary 1213 (9th ed. 2009) (defining "overbreadth doctrine" as the "doctrine holding that if a statute is so broadly written that it deters free expression, then it can be struck down on its face because of its chilling effect—even if it also prohibits acts that may legitimately be forbidden.").

[5] *Munson Co.*, 467 U.S. at 958. *See also, e.g.*, U.S. Dep't of Labor v. Triplett, 494 U.S. 715, 720–21 (1990) ("When, however, enforcement of a restriction against the litigant prevents a third party from entering into a relationship with the litigant (typically a contractual relationship), to which relationship the third party has a legal entitlement (typically a constitutional entitlement), third-party standing has been held to exist.") (citation omitted); Virginia v. Am. Booksellers Ass'n, 484 U.S. 383, 392–93 (1988) (allowing standing, based on the overbreadth exception, to book sellers to assert the First Amendment rights of potential book buyers); City of Houston v. Hill, 482 U.S. 451, 459 n.7 (1987) (stating that a gay rights activist had standing to bring a First Amendment overbreadth challenge a local ordinance making it an offense to verbally interrupt a policeman because he had shown "a genuine threat of enforcement" of the ordinance against him in the future (quoting Steffel v. Thompson, 415 U.S. 452, 475 (1974))).

[1] *E.g.*, Raines v. Byrd, 521 U.S. 811, 826 (1997).

[2] The proposed Amendment provided in part that "Congress shall have power to limit, regulate, and prohibit the labor of persons under eighteen years of age." Coleman v. Miller, 307 U.S. 433, 435 n.1 (1939) (internal quotation marks omitted).

[3] *Id.* at 436–37.

nevertheless passed the state senate.[4] The plaintiffs alleged that an illegal tie-breaking vote for ratification by the Lieutenant Governor had deprived their votes of effectiveness.[5] Relying on several precedents, the Court held that the petitioners had "claimed a right and privilege under the Constitution . . . to have their votes given effect and the state court has denied that right and privilege."[6] Because the state legislators alleged that their votes had been voided by the improper procedure that led to the approval of the amendment, and those votes would have been sufficient to defeat the proposal, the legislators had a sufficient stake in the outcome that supported their standing to sue.[7]

Decades later, the Supreme Court took a more narrow view of individual legislator standing in *Raines v. Byrd.*[8] In that 1997 case, six Members of Congress challenged the Line Item Veto Act of 1996 (LIVA), a statute that authorized the President to cancel certain spending and tax benefit measures after signing them into law, as contrary to the bicameralism and presentment requirements of the Constitution.[9] The Members argued that they had suffered injury because LIVA altered the effect of the votes they would cast in the future and divested them of their constitutional role in the repeal of legislation.[10]

The Supreme Court, in an opinion written by Chief Justice William Rehnquist, found that the Members lacked standing to challenge LIVA because they had not suffered an injury different from that suffered by Congress as a whole.[11] Citing separation of powers concerns about resolving a dispute implicating the constitutional authority of Congress and the Executive in a lawsuit brought by legislators, the Court, in refusing to proceed to the merits, noted that the Member-plaintiffs had not suffered the concrete deprivation of a private right, like the loss of their seats in Congress, but instead alleged a general diminution of their political power.[12] The Court thus distinguished *Raines* from its earlier decision in *Coleman* on the grounds that the latter case had involved legislators who alleged that their votes had been nullified, whereas the LIVA challenged in *Raines* did not significantly impact the power of the Members' votes because they could vote to exempt future appropriations bills from LIVA or repeal LIVA if necessary.[13] Although the Court determined that it lacked jurisdiction over the Members' claims, it left open the possibility that one or both houses of Congress—or perhaps a

[4] *Id.* at 435–36.

[5] *Id.* at 435–38.

[6] *Id.* at 438, 446 ("We think that these senators have a plain, direct and adequate interest in maintaining the effectiveness of their votes."). *See also* Raines v. Byrd, 521 U.S. 811, 822 (1997) (discussing the votes that comprised a majority of the Court for this rule).

[7] *Coleman*, 307 U.S. at 438, 446.

[8] 521 U.S. 811 (1997).

[9] *Id.* at 814, 816. For more on the bicameralism and presentment requirements, see ArtI.S1.2.2 Origin of a Bicameral Congress and Amdt20.S3.1 Presidential Succession.

[10] *Raines*, 521 U.S. at 816.

[11] *Id.* at 820–21 (citing Powell v. McCormack, 395 U.S. 486, 496, 512–14 (1969)).

[12] *Raines*, 521 U.S. at 820–21 ("The claimed injury thus runs (in a sense) with the Member's seat, a seat which the Member holds . . . as trustee for his constituents, not as a prerogative of personal power."). The Court distinguished this type of grievance from *Powell v. McCormack,* 395 U.S. 486, 512–17 (1969), in which the Court allowed a Member of Congress to challenge his exclusion from the House of Representatives. In *Raines*, the Court wrote that the Member of Congress in *Powell* had standing to sue because he alleged injury to a personal, private right (i.e., his right to his congressional seat and federal salary) rather than injury to Congress as an institution. *Raines*, 521 U.S. at 820–21.

[13] *Id.* at 824 ("In the vote on the [LIVA], their votes were given full effect. They simply lost that vote."). The Court also found a lack of historical practice involving suits maintained to redress injury to institutional power. *Id.* at 826–28.

committee—would have standing to sue for redress of alleged institutional injuries to Congress if authorized by at least one of the Houses, provided that another legislative remedy was not available to them.[14]

In two state legislator standing cases that did not raise similar separation of powers concerns, the Supreme Court rested its standing analysis on the specific features of the state governments at issue. In the first case, *Arizona State Legislature v. Arizona Independent Redistricting Comm'n*, the Court considered a state ballot initiative that would vest the authority to draw legislative districts in an independent commission. The Arizona State Legislature, acting pursuant to an authorizing resolution, challenged that ballot initiative, claiming that it had suffered injured by a diminution in its legislative authority.[15] Noting that the case did not raise separation of powers concerns that might arise if Congress sued the President, the Court held that the Arizona legislature was a proper party to sue because, like the plaintiffs in *Coleman*, it had lost the opportunity to adopt a redistricting plan (i.e., its members' votes were nullified).[16] Moreover, such an institutional injury to the legislature could serve as the basis for a lawsuit, at least when the legislature authorized suit by enacting a resolution in each chamber.[17]

By contrast, in *Virginia House of Delegates v. Bethune-Hill*, the Supreme Court held that a *single house* of the bicameral Virginia state legislature lacked standing to appeal a federal district court order requiring the redrawing of a 2011 legislative redistricting map.[18] The Virginia House of Delegates (House) had previously intervened to defend the constitutionality of the legislative redistricting plan against a voter-led Fourteenth Amendment Equal Protection Clause challenge, but the Virginia Attorney General, who was the primary defending party, had decided not to appeal an unfavorable ruling.[19] As discussed, in determining that the House lacked standing to appeal on behalf of the state, the Court noted that Virginia law assigned the Virginia Attorney General the task of representing the state in appeals like the one before the Court.[20] Moreover, the Attorney General had not delegated such litigation authority to the House of Delegates.[21] Unlike in *Arizona State Legislature*, the House lacked standing to appeal *in its own right* because it was a single component of the bicameral state legislature responsible for redistricting and could thus not assert the interests of the legislature as a whole.[22] Moreover, the House's alleged injury (i.e., invalidation of a state redistricting law) was not cognizable for standing purposes as it did not permanently deprive the House of its role in redistricting and the House did not suffer a cognizable injury merely because its composition (and, therefore, the content of legislation) could be altered by the electorate as a result of a redrawn redistricting map.[23] In this regard, the Court noted that the

[14] *Id.* at 829.

[15] 576 U.S. 787, 788 (2015).

[16] *Id.* at 795–99 & n.12.

[17] *Id.* The Court did not specifically state that the legislature was required to enact an authorizing resolution in order to establish standing.

[18] No. 18-281, slip op. at 1–2 (U.S. June 17, 2019). The district court had held that the redistricting plan unconstitutionally sorted voters based on race in several districts. *Id.*

[19] *Id.* at 1–4. As the Court noted, "[b]ecause [the House of Delegate's participation in prior proceedings did not entail] invoking a court's jurisdiction, it was not previously incumbent on the House to demonstrate its standing." In *Bethune-Hill*, the House sought to appeal the district court's ruling when the Virginia Attorney General had decided not to appeal on behalf of the state defendants; therefore, the House had to establish standing independently. *Id.*

[20] *Id.*

[21] *Id.* at 4–5.

[22] *Id.* at 7–8.

[23] *Id.* at 8–12. The House had pursued the appeal based solely on its role in the legislative process.

invalidation of the redistricting law did not infringe upon the unique legislative powers of the Virginia House by altering the manner in which it conducted its day-to-day-operation (e.g., by altering its committee structure).[24]

ArtIII.S2.C1.6.8 Congressional Control of Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In addition to interpreting Article III as a limit on the categories of litigants who may maintain a lawsuit in federal court, the Supreme Court has also held that the Constitution constrains Congress's ability to confer standing on private individuals through the enactment of "citizen-suit" provisions that authorize private individuals to enforce federal laws against the government or private parties.[1] Congress may elevate certain categories of harm to the status of cognizable Article III injuries, such as economic injury that results from lawful competition[2] or social and professional injury resulting from living in a racially segregated community.[3] It may not, however, abrogate Article III constraints on federal court jurisdiction by conferring standing on private parties in the absence of a material risk of particularized injury to them from the defendant's violations of their statutory rights.[4]

A major case addressing the constitutional limits on the scope of Congress's authority to create statutory rights for private citizens (or a class of citizens) to sue is *Lujan v. Defenders of Wildlife*.[5] In *Lujan*, Justice Antonin Scalia, writing for the majority, stated that Article III generally limits Congress's ability to create standing by allowing a plaintiff to sue for procedural injuries even where the defendant's violation of the plaintiff's statutory rights would not cause the plaintiff any other concrete injury.[6] Although Congress may relax the

[24] *Id.* at 10–11.

[1] Lujan v. Defenders of Wildlife, 504 U.S. 555, 577 (1992).

[2] Hardin v. Ky. Utils. Co., 390 U.S. 1, 6–7 (1968) (determining that a utility company had standing to challenge the TVA's supply of power in competition with certain utility companies because, as a competitor of TVA, the Kentucky Utilities Company fell within the zone of interests that Congress sought to protect in a federal statute from competitive injury even when the statute did not specifically confer standing and the plaintiff's alleged competitive injuries would not have sufficed by themselves for standing).

[3] Havens Realty Corp. v. Coleman, 455 U.S. 363, 368–69, 374 (1982) (holding that a "tester plaintiff" who pretended to be interested in renting apartments for the purpose of obtaining evidence of racially discriminatory practices had standing based on Congress's creation of a statutory right to truthful information concerning the availability of housing); Gladstone v. Village of Bellwood, 441 U.S. 91, 114–15 (1979) (holding that homeowners in a neighborhood affected by allegedly racially discriminatory housing practices that manipulated the racial composition of the neighborhood had suffered a cognizable Article III injury for purposes of suing under the Fair Housing Act). *See also Lujan*, 504 U.S. at 578; *cf.* Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 212 (1972) (concluding that tenants of an apartment complex who had been deprived of the benefits of interracial association as a result of discriminatory rental practices had standing to sue their landlord under the Fair Housing Act).

[4] *Gladstone*, 441 U.S. at 100.

[5] 504 U.S. 555 (1992).

[6] *Id.* at 572. The Court distinguished this situation from one in which "plaintiffs are seeking to enforce a procedural requirement the disregard of which could impair a separate concrete interest of theirs," such as "a hearing

Article III standards for immediacy and redressability of the injury in such provisions,[7] Congress cannot create standing for redress of generalized grievances about government by providing litigants with an "abstract, self-contained, noninstrumental 'right' to have the Executive observe the procedures required by law."[8] To allow Congress to do so through enactment of provisions providing private rights of action would "transfer from the President to the courts the Chief Executive's most important constitutional duty, to 'take Care that the Laws be faithfully executed'" and make the courts the continuing monitors of Executive action.[9]

Justice Anthony Kennedy wrote a separate concurrence in *Lujan* in which he suggested that Congress has broad authority to confer standing on private parties in citizen-suit provisions, so long as it explicitly creates procedural rights and concrete interests for citizens to sue upon.[10] Noting that government policies had become more "far-reaching" and that "we must be sensitive to the articulation of new rights of action that do not have clear analogs in our common-law tradition,"[11] Justice Kennedy wrote that "Congress has the power to define injuries and articulate chains of causation that will give rise to a case or controversy where none existed before . . . . In exercising this power, however, Congress must at the very least identify the injury it seeks to vindicate and relate the injury to the class of persons entitled to bring suit."[12] Determining that the citizen-suit provision at issue in *Lujan* did not specifically provide that "any person" would suffer a cognizable injury as a result of any statutory violation, Justice Kennedy agreed that the plaintiff environmental group lacked standing to sue.[13]

The Court decided *FEC v. Akins*, a 1998 case, consistently with Justice Kennedy's views, holding that Congress may confer standing by providing a general procedural right of access to information to "any party," and that deprivation of this right is a sufficiently concrete injury for standing purposes and not a generalized grievance.[14] More than a decade later, in *Massachusetts v. EPA*, a majority of the Court formally adopted Justice Kennedy's view that Congress may create standing to sue by identifying cognizable injuries and creating procedural rights for citizens to sue upon to redress those injuries.[15] In *Summers v. Earth Island Institute*, the Supreme Court reaffirmed that the deprivation of a litigant's procedural

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prior to denial of their license application, or the procedural requirement for an environmental impact statement before a federal facility is constructed next door to them." *Id.*

[7] *Id.* at 572 n.7 ("The person who has been accorded a procedural right to protect his concrete interests can assert that right without meeting all the normal standards for redressability and immediacy.").

[8] *Id.* at 573–74. Justice Antonin Scalia later referred to this type of procedural right as a "procedural right *in vacuo*" that was insufficient for Article III standing. Summers v. Earth Island Institute, 555 U.S. 488, 496 (2009).

[9] *Lujan*, 504 U.S. at 577 (citing U.S. CONST. art. II, § 3). Justice Antonin Scalia's opinion for the Court acknowledged that Congress may be able to elevate injuries that were "previously inadequate in law" to the status of concrete Article III injuries. *Lujan*, 504 U.S. at 578.

[10] *Id.* at 580–81 (Kennedy, J., concurring in part and concurring in the judgment) ("While it does not matter how many persons have been injured by the challenged action, the party bringing suit must show that the action injures him in a concrete and personal way.").

[11] *Id.* at 580.

[12] *Id.*

[13] *Id.*

[14] FEC v. Akins, 524 U.S. 11, 21 (1998) (holding that a litigant's failure to obtain information that federal law requires to be disclosed can constitute a sufficiently concrete injury for Article III standing purposes); Public Citizen v. U.S. Dep't of Justice, 491 U.S. 440, 449–50 (1989) (same).

[15] Massachusetts v. EPA, 549 U.S. 497, 516 (2007) ("Congress has the power to define injuries and articulate chains of causation that will give rise to a case or controversy where none existed before. In exercising this power, however, Congress must at the very least identify the injury it seeks to vindicate and relate the injury to the class of persons entitled to bring suit." (quoting *Lujan*, 504 U.S. at 580 (Kennedy, J., concurring in part and concurring in judgment)).

right—the right to use a federal administrative appeals process to challenge certain actions of the U.S. Forest Service—without injury to any separate concrete interest cannot support Article III standing to sue.[16] But, in a concurrence, Justice Kennedy again suggested that the result would have been different—and *Massachusetts v. EPA* would have applied—if Congress had specifically identified a separate concrete interest that would have been affected by the deprivation of the procedural right.[17]

As the Court held more recently in *Spokeo v. Robins*, federal courts will judge whether the defendant's alleged violation of a right created by Congress is sufficient by itself to constitute a concrete harm to a litigant for standing purposes by considering whether it is similar to a harm that "has traditionally been regarded as providing a basis for a lawsuit in English or American courts."[18] But in doing so, courts must give at least some weight to Congress's judgments about which intangible harms amount to concrete Article III injuries.[19]

The principle emerging from these cases is that Congress has some ability to expand standing beyond the Court's traditional conception by granting a litigant a separate concrete interest, apart from a bare procedural right, that could serve as the basis for an injury-in-fact if violated.[20] At the same time, Congress must respect the limits that Article III establishes, and it cannot elevate certain categories of harm to the status of concrete injuries. For example, Congress likely cannot elevate a trivial injury, such as a company reporting an incorrect zip code for an individual, to the status of an Article III injury.[21] The Court has not articulated a clear rule for distinguishing between the types of intangible harms Congress may elevate to injuries-in-fact for standing purposes and those harms that are simply too trivial to serve as Article III injuries.[22] However, the Court has confirmed that it will independently review whether such harms are in fact "concrete injuries" sufficient for standing purposes.[23]

ArtIII.S2.C1.6.9 Prudential Standing

ArtIII.S2.C1.6.9.1 Overview of Prudential Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Even when a litigant satisfies Article III's constitutional standing requirements, a federal court may refuse to adjudicate its claims for relief "under the prudential principles by which

[16] 555 U.S. 488, 496 (2009).

[17] *Id.* at 501 (Kennedy, J., concurring).

[18] Spokeo, Inc. v. Robins, 578 U.S. 330, 341 (2016). As noted, in *Spokeo v. Robins*, the Court clarified that Congress cannot confer standing on plaintiffs who do not face at least a material risk of injury from the defendant's violation of statutory rights. *Id*. at 343. For further discussion of *Spokeo*, see ArtIII.S2.C1.6.4.3 Particularized Injury.

[19] *Spokeo*, 578 U.S. at 43.

[20] Massachusetts, 549 U.S. at 516.

[21] *Spokeo*, 578 U.S. at 343.

[22] *See generally id.*

[23] TransUnion LLC v. Ramirez, No. 20-297, slip op. at 10 (U.S. June 25, 2021).

the Judiciary seeks to avoid deciding questions of broad social import where no individual rights would be vindicated and to limit access to the federal courts to those litigants best suited to assert a particular claim."[1] The Supreme Court has applied these prudential principles to standing doctrine[2] in several circumstances. A court may refuse to hear a case as a matter of self-restraint in at least three situations: (1) when the litigant seeks to assert the rights of third parties not before the court; (2) when the litigant seeks redress for a generalized grievance widely shared by a large number of citizens that is better addressed legislatively; and (3) when the litigant's asserted interests do not fall within the zone of interests arguably protected or regulated by the statute or constitutional provision underlying its claims.[3]

At least the first two of these situations also implicate the concerns of constitutional standing in some cases, while the third appears to be purely prudential. Thus, more recently, the Court has questioned whether the doctrine of prudential standing should even exist, indicating that the bar on generalized grievances is a constitutional (and not prudential) requirement and rejecting a prudential application of the "zone of interests" test in favor of one aimed at determining whether the plaintiff's claim falls within the scope of a statutory provision conferring a right of action.[4] Regardless of the uncertain state of the law in this area, Congress may abrogate prudential standing requirements through the enactment of legislation containing express language to that effect.[5] As discussed, while Congress may eliminate or modify prudential standing limits, it cannot supersede the Article III minimum requirements of injury, causation, and redressability.[6]

ArtIII.S2.C1.6.9.2 Zone of Interests Test

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

One type of prudential standing limitation that may counsel against the exercise of jurisdiction over a dispute involves the application of the "zone of interests" test, which asks

[1] Gladstone, Realtors v. Village of Bellwood, 441 U.S. 91, 99–100 (1979).

[2] This section discusses only the prudential *standing* doctrine. However, it is important to note that other "prudential" doctrines that have a basis in Article III of the Constitution may be relevant to the question of whether a federal court may exercise jurisdiction over a litigant's claims for relief. *See, e.g.*, ArtIII.S2.C1.5.1 Overview of Adversity Requirement (discussing the adversity requirement); ArtIII.S2.C1.9.1 Overview of Political Question Doctrine to ArtIII.S2.C1.9.11 Nonjusticiability of Partisan Gerrymandering Claims (discussing the political question doctrine).

[3] United States v. Windsor, 570 U.S. 744, 760 (2013) ("Even when Article III permits the exercise of federal jurisdiction, prudential considerations demand that the Court insist upon 'that concrete adverseness which sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions.'" (quoting Baker v. Carr, 369 U.S. 186, 204 (1962)); Elk Grove Unified Sch. Dist. v. Newdow, 542 U.S. 1, 12 (2004) (listing the three types of prudential restraints).

[4] Lexmark Int'l Inc. v. Static Control Components, Inc., 572 U.S. 118, 127 n.3 (2014).

[5] Warth v. Seldin, 422 U.S. 490, 501 (1975) ("Congress may grant an express right of action to persons who otherwise would be barred by prudential standing rules.").

[6] Raines v. Byrd, 521 U.S. 811, 820 n.3 (1997) ("It is settled that Congress cannot erase Article III's standing requirements by statutorily granting the right to sue to a plaintiff who would not otherwise have standing.").

whether the litigant's grievance arguably[1] falls within the scope of the statute or constitutional provision in question.[2] This test is "not meant to be especially demanding,"[3] and the Supreme Court has sometimes applied it liberally, finding it to be satisfied even when Congress has not specifically intended to protect a particular litigant's interests.[4] For example, the Court determined that irrigation districts and operators of ranches had prudential standing to sue under a citizen-suit provision of the Endangered Species Act—a statute directed primarily at furthering environmental protection—to challenge the Fish and Wildlife Service (FWS)'s enforcement of the Act.[5] The Court found that the litigants had standing even though they alleged that the FWS's actions would cause them economic (and not environmental) harm by reducing the amount of water they would receive from a federal water-management project for their activities.[6] And the Court also concluded that tenants of an apartment complex had prudential standing to sue their landlord under the Fair Housing Act for allegedly discriminatory rental practices.[7] The Court reached this result even though the tenants themselves were not directly subject to such practices because Congress intended to confer standing on "all in the same housing unit who are injured by racial discrimination," such that depriving the residents of the benefits of interracial association qualified as a cognizable injury under the Act.[8]

Although the Supreme Court has often categorized the "zone of interests" test as a prudential limitation on the Court's exercise of its jurisdiction, in the recently decided case *Lexmark, International, Inc. v. Static Control Components, Inc.*, Justice Antonin Scalia, writing for the Court, stated that "it does not belong there" and that a court applying the test should use traditional tools of statutory interpretation to ascertain whether a plaintiff has a right to sue under a particular provision creating a substantive cause of action.[9] Thus, the Court may

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[1] Nat'l Credit Union Admin. v. First Nat'l Bank & Trust Co., 522 U.S. 479, 488–99 (1998) ("Our prior cases, therefore, have consistently held that for a plaintiff's interests to be arguably within the 'zone of interests' to be protected by a statute, there does not have to be an 'indication of congressional purpose to benefit the would-be plaintiff.'") (citation omitted).

[2] Bennett v. Spear, 520 U.S. 154, 162 (1997) ("[A] plaintiff's grievance must arguably fall within the zone of interests protected or regulated by the statutory provision or constitutional guarantee invoked in the suit.") (citation omitted).

[3] Match-E-Be-Nash-She-Wish Band of Pottawatomi Indians v. Patchak, 567 U.S. 209, 225 (2012).

[4] *See* Thompson v. N. Am. Stainless, 562 U.S. 170, 178 (2011) (concluding that a man who alleged that he had been fired in retaliation for his fiance (and coworker)'s sex discrimination charge had standing to sue under Title VII of the Civil Rights Act as his claim fell within the zone of interests that Congress sought to protect in the Act because the "purpose of Title VII is to protect employees from their employers' unlawful actions"); FEC v. Akins, 524 U.S. 11, 19 (1998) ("History associates the word 'aggrieved' [in a citizen-suit provision] with a congressional intent to cast the standing net broadly—beyond the common-law interests and substantive statutory rights upon which 'prudential' standing traditionally rested."); Clarke v. Sec. Indus. Ass'n, 479 U.S. 388, 399 (1987) ("In cases where the plaintiff is not itself the subject of the contested regulatory action, the test denies a right of review if the plaintiff's interests are so marginally related to or inconsistent with the purposes implicit in the statute that it cannot reasonably be assumed that Congress intended to permit the suit."). *But see* Air Courier Conference of Am. v. Am. Postal Workers Union, 498 U.S. 517, 524–25 (1991) (finding that postal workers could not challenge a Postal Service regulation employing the use of private couriers in certain situations based on their interest in job opportunities)); Block v. Cmty. Nutrition Inst., 467 U.S. 340, 347 (1984) (examining a statutory scheme in its entirety to determine that Congress intended to preclude ultimate consumers of dairy products from obtaining judicial review of milk market orders issued by the Secretary of Agriculture under the authority of the Agricultural Marketing Agreement Act of 1937).

[5] *Bennett*, 520 U.S. at 166.

[6] *Id.*

[7] Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 212 (1972).

[8] *Id.*

[9] 572 U.S. 118, 127 (2014). *See also, e.g.*, Bank of Am. Corp. v. City of Miami, No. 15-1111, slip op. at 5 (U.S. May 1, 2017) (confirming that the "zone of interests" test amounts to an inquiry into whether a statutory provision conferring a cause of action encompasses the litigant's claim).

have ceased to regard the zone-of-interests test as an aspect of prudential standing, although it is unclear how this change to the doctrine will practically affect the Court's application of the "zone of interests" test in future cases.

ArtIII.S2.C1.6.9.3 Third Party Standing

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Second, as discussed above, the Supreme Court has stated that courts may refuse to allow litigants who have suffered an injury-in-fact to rest their claims for relief on third parties' rights.[1] The Court has characterized such prudential restraints as "not constitutionally mandated" and "designed to minimize unwarranted intervention into controversies where the applicable constitutional questions are ill-defined and speculative."[2] Although the Court has found prudential standing to be present in several cases,[3] it has shown a reluctance to allow litigants to assert the rights of third parties because those parties may not need or wish to assert those rights, and courts prefer to avoid unnecessary decisions on constitutional issues.[4] Furthermore, a litigant may be a less effective advocate for the third parties' rights than the third parties themselves.[5]

Barrows v. Jackson illustrates the prudential application of "third-party standing."[6] In that case, homeowners sued a neighbor for the alleged breach of a private covenant forbidding the use and occupancy of homes in the neighborhood by "non-Caucasians."[7] The Court had previously held that the Fourteenth Amendment forbade a state court from enforcing such

[1] Warth v. Seldin, 422 U.S. 490, 499–500 (1975) ("Second, even when the plaintiff has alleged injury sufficient to meet the 'case or controversy' requirement, this Court has held that the plaintiff generally must assert his own legal rights and interests, and cannot rest his claim to relief on the legal rights or interests of third parties.").

[2] Renne v. Geary, 501 U.S. 312, 314, 320 (1991) (holding that a political party could not assert the rights of candidates for nonpartisan political office where "no obvious barrier exist[ed] that would prevent a candidate from asserting his or her own rights").

[3] June Med. Servs. LLC v. Russo, No. 18-1323 slip op.at 4–5 (U.S. June 29, 2020) (plurality opinion) (observing that the Court has "long permitted abortion providers to invoke the rights of their actual or potential patients in challenges to abortion-related regulations" and has "generally permitted plaintiffs to assert third-party rights in cases where the 'enforcement of the challenged restriction *against the litigant* would result indirectly in the violation of third parties' rights'" (quoting Kowalski v. Tesmer, 543 U.S. 125, 130 (2004))); Caplin & Drysdale v. United States, 491 U.S. 617, 623–24 n.3 (1989) (holding that a law firm had standing to assert a criminal defendant's Sixth Amendment rights because it would receive a portion of defendant's forfeited assets if its Sixth Amendment claim were successful and the *Singleton* test for third-party standing was met); Carey v. Population Servs. Int'l, 431 U.S. 678, 682–84 (1977) (permitting a contraceptive vendor to challenge a law limiting distribution); Craig v. Boren, 429 U.S. 190, 192–97 (1976) (allowing a licensed beer vendor to assert an Equal Protection Clause challenge to alcohol laws that established different ages for sale of beer to men and women).

[4] Singleton v. Wulff, 428 U.S. 106, 113–14 (1976) (noting courts' reluctance to allow litigants to assert the rights of third parties but concluding that physicians had standing to assert their patients' rights in a challenge to a state statute limiting the circumstances in which the physicians could receive Medicaid reimbursement for abortions).

[5] *Id.*

[6] 346 U.S. 249, 258 (1953).

[7] *Id.*

racially restrictive covenants against African-American *purchasers* of real estate through the award of damages.[8] However, in *Barrows*, no African-Americans had appeared before the court to assert their constitutional rights, and, indeed, the Court found that it would have been difficult for them to do so because they were not property owners subject to the covenant.[9] But the Court waived the normal prudential standing rule against third-party standing and determined that the defendant property owner could rely upon the state court's interference with third-party rights in her defense because: (1) she would suffer injury if she lost by having to pay damages for breach of the covenant; and (2) the African-Americans (i.e., the third parties) who would be injured by the enforcement of the covenant were unlikely to be able to assert their constitutional rights themselves.[10]

Thus, although a litigant may not generally challenge government action on the grounds that it infringes another's rights,[11] it may do so in certain narrowly defined contexts. As this section has discussed, standing may be found when a litigant challenges a statute as unconstitutionally overbroad on its face in violation of the First Amendment[12] or when the litigant suffers some injury and third parties whose rights the litigant relies upon face an obstacle to protecting their own interests.[13] The Supreme Court has also permitted criminal defendants to challenge their convictions by asserting the rights of persons not before the Court whose rights would be negatively affected by enforcement of the law in question.[14] These circumstances are relevant to a prudential standing inquiry as well as to constitutional standing.

[8] *Id.* at 254–59 (citing Shelley v. Kraemer, 334 U.S. 1, 18–23 (1948)).

[9] *Id.*

[10] *Id.* ("The relation between the coercion exerted on [the respondent property owner] and her possible pecuniary loss thereby is so close to the purpose of the restrictive covenant, to violate the constitutional rights of those discriminated against, that respondent is the only effective adversary of the unworthy covenant in its last stand.").

[11] *E.g.*, Bender v. Williamsport Area Sch. Dist., 475 U.S. 534, 544 (1986) (determining that an individual school board member lacked standing to appeal a lower court decision on behalf of the full school board because he could not "step into the shoes of the Board and invoke its right to appeal"); United States v. Raines, 362 U.S. 17, 21–23 (1960) ("[O]ne to whom application of a statute is constitutional will not be heard to attack the statute on the ground that impliedly it might also be taken as applying to other persons or other situations in which its application might be unconstitutional."); Tileston v. Ullman, 318 U.S. 44, 46 (1943) (holding that a doctor who wished to give his patients advice about birth control lacked standing to represent the interests of his patients in a Fourteenth Amendment challenge to Connecticut statutory provisions).

[12] *See* ArtIII.S2.C1.6.6.6 Overbreadth Doctrine.

[13] *E.g.*, *Barrows*, 346 U.S. at 255–59. *See also* Campbell v. Louisiana, 523 U.S. 392, 394 (1998) (holding that a White criminal defendant had standing to raise equal protection and due process claims when challenging alleged discrimination against African Americans in the selection of grand jurors); Powers v. Ohio, 499 U.S. 400, 403–04, 411 (1991) (finding that a White man had standing to bring a Fourteenth Amendment Equal Protection Clause challenge to a jury-selection process during which the prosecutor exercised peremptory challenges to exclude seven African Americans from the jury because a criminal defendant may raise the equal protection rights of a juror excluded from service); Holland v. Illinois, 493 U.S. 474, 476–77 (1990) (holding that a White criminal defendant had standing to raise a Sixth Amendment challenge to the exclusion of African Americans from his jury). The Supreme Court has also held that *Powers* applies in the context of civil litigation. Edmonson v. Leesville Concrete Co., 500 U.S. 614, 629 (1991).

[14] *E.g.*, Eisenstadt v. Baird, 405 U.S. 438, 445–46 (1972) (holding that an advocate of contraception convicted for giving a contraceptive device to an unmarried woman had standing to assert the rights of unmarried persons denied access to contraception, as such persons were not themselves subject to prosecution and would unlikely be able to assert their constitutional right to use it). *But see* Rakas v. Illinois, 439 U.S. 128, 133 (1978) (affirming that "Fourth Amendment rights are personal rights that may not be asserted vicariously"). When a criminal defendant challenges a federal criminal statute as exceeding the federal government's powers and interfering with traditional state powers in violation of the Tenth Amendment, then the prudential bar on third-party standing does not apply. The defendant has an individual interest in the court's resolution of the federalism question and is not improperly asserting rights that belong to the states. Bond v. United States, 564 U.S. 211, 220–26 (2011).

ArtIII.S2.C1.6.9.4 Generalized Grievances

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Finally, federal courts may refuse on prudential grounds to entertain "generalized grievances," which are "abstract questions of wide public significance . . . pervasively shared and most appropriately addressed in the representative branches."[1] Although the Court has at times characterized the bar on generalized grievances as prudential,[2] in dicta in the 2014 case *Lexmark International, Inc. v. Static Control Components, Inc.* the Court stated that cases raising generalized grievances "are barred for constitutional reasons, not 'prudential' ones."[3] The Court's opinion in *Lexmark* thus casts doubt on the continued viability of the prudential standing doctrine—both because of the Court's determination that the bar on generalized grievances is a constitutional (and not prudential) requirement and its rejection of the "zone of interests" test in favor of one aimed at determining whether the plaintiff's claim falls within the scope of a statutory provision conferring a right of action.[4]

Despite uncertainty regarding the continuing viability of the *prudential* standing doctrine, the *constitutional* minimum requirements of standing remain one of the most important justiciability doctrines. The courts have consistently applied that doctrine to implement Article III's limits on federal judicial power. Those limits require courts to decide actual "cases" or "controversies" rather than to render opinions on abstract questions better suited for resolution by the political branches of government.[5]

ArtIII.S2.C1.7 Ripeness

ArtIII.S2.C1.7.1 Overview of Ripeness Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

[1] Valley Forge Christian Coll. v. Ams. United for Separation of Church & State, Inc., 454 U.S. 464, 474–75 (1982) (citation and internal quotation marks omitted). *See also* Schlesinger v. Reservists Comm. to Stop the War, 418 U.S. 208, 220–21 (1974); United States v. Richardson, 418 U.S. 166, 175 (1974).

[2] *E.g.*, Warth v. Seldin, 422 U.S. 490, 499 (1975) ("[T]he Court has held that when the asserted harm is a 'generalized grievance' shared in substantially equal measure by all or a large class of citizens, that harm alone normally does not warrant exercise of jurisdiction.").

[3] 572 U.S. 118, 127 n.3 (2014).

[4] *Id.*

[5] Allen v. Wright, 468 U.S. 737, 750 (1984) ("The [Article III] doctrine that requires a litigant to have 'standing' to invoke the power of a federal court is perhaps the most important of [the justiciability] doctrines.").

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Like the other justiciability doctrines, the ripeness doctrine defines the limits of a federal court's jurisdiction to adjudicate certain disputes.[1] Ripeness concerns "the timing of judicial intervention," and prevents federal courts "from entangling themselves in abstract disagreements" by adjudicating disputes too early.[2] Any party to the litigation—as well as the judge—may challenge a case as unripe at any stage in the litigation, including for the first time on appeal.[3] To determine whether a particular dispute is ripe for judicial resolution, courts employ the *Abbott Laboratories* test, named after the Supreme Court's decision in *Abbott Laboratories v. Gardner*.[4] The *Abbott Laboratories* standard requires courts to evaluate two factors to determine whether a dispute is ripe: "(1) the fitness of the issues for judicial decision and (2) the hardship to the parties of withholding court consideration" until a later time.[5] A claim may be unripe if it is based upon future events that may not occur as predicted or at all.[6] If waiting to decide a case would put the court in a better position to resolve the dispute, such as when further factual development would help the court adjudicate the case, the case may be unripe and therefore nonjusticiable.[7] As discussed below, ripeness issues arise in a wide variety of contexts, including challenges to administrative agencies' actions or policies and pre-enforcement challenges to criminal statutes.[8]

The ripeness doctrine stems partly from Article III's constitutional command that the federal courts only hear "Cases" and "Controversies."[9] To the extent that ripeness derives from

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[1] *See, e.g.*, Stolt-Nielsen S.A. v. AnimalFeeds Int'l Corp., 559 U.S. 662, 670 n.2 (2010) ("Ripeness reflects constitutional considerations that implicate 'Article III limitations on judicial power,' as well as 'prudential reasons for refusing to exercise jurisdiction.'") (quoting Reno v. Catholic Soc. Servs., Inc., 509 U.S. 43, 57 n.18 (1993)).

[2] Thomas v. Union Carbide Agric. Prods. Co., 473 U.S. 568, 580 (1985) (quoting Abbott Labs. v. Gardner, 387 U.S. 136, 148 (1967), *abrogated on other grounds by* Califano v. Sanders, 430 U.S. 99 (1977)). *See also* Renne v. Geary, 501 U.S. 312, 320 (1991) ("Justiciability concerns not only the standing of litigants to assert particular claims, but also the appropriate timing of judicial intervention."); Anderson v. Green, 513 U.S. 557, 559 (1995) (per curiam) ("[R]ipeness is peculiarly a question of timing.") (quoting Blanchette v. Conn. Gen. Ins. Corps., 419 U.S. 102, 140 (1974)); Buckley v. Valeo, 424 U.S. 1, 114 (1976) (per curiam) (same). Statutory and other non-constitutional restrictions may limit the appropriate timing of judicial intervention as well. *See, e.g.*, Woodford v. Ngo, 548 U.S. 81, 88–89 (2006) ("[N]o one is entitled to judicial relief for a supposed or threatened injury until the prescribed administrative remedy has been exhausted.") (quoting McKart v. United States, 395 U.S. 185, 193 (1969)); Dalton v. Specter, 511 U.S. 462, 469 (1994) (holding that, as a general matter, only "final agency action[s]" are subject to judicial review under the Administrative Procedure Act) (quoting 5 U.S.C. § 704).

[3] *E.g.*, DBSI/TRI IV Ltd. P'ship v. United States, 465 F.3d 1031, 1038 (9th Cir. 2006) ("[R]ipeness [is a] jurisdictional issue[ ] that may be raised at any time, even for the first time on appeal."); Utah v. U.S. Dep't of Interior, 210 F.3d 1193, 1196 n.1 (10th Cir. 2000) (similar). *See also* Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 808 (2003) ("[T]he question of ripeness may be considered on a court's own motion.").

[4] 387 U.S. 136.

[5] *Nat'l Park Hosp. Ass'n*, 538 U.S. at 808. *See also, e.g.*, *Stolt-Nielsen S.A.*, 559 U.S. at 670 n.2 (same); Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 733 (1998) (same); Texas v. United States, 523 U.S. 296, 300–01 (1998); Pac. Gas & Elec. Co. v. State Energy Res. Conservation & Dev. Comm'n, 461 U.S. 190, 201 (1983) (same).

[6] *See Texas*, 523 U.S. at 300 ("A claim is not ripe for adjudication if it rests upon 'contingent future events that may not occur as anticipated, or indeed may not occur at all.'") (quoting *Thomas*, 473 U.S. at 580–81). *See also* Trump v. New York, No. 20-366, slip op. at 4 (U.S. Dec. 18, 2020) (applying this rule).

[7] *See, e.g.*, *Nat'l Park Hosp. Ass'n*, 538 U.S. at 812 ("[F]urther factual development would 'significantly advance our ability to deal with the legal issues presented.'") (quoting Duke Power Co. v. Carolina Envtl. Study Grp., Inc., 438 U.S. 59, 82 (1978)); *Ohio Forestry Ass'n*, 523 U.S. at 737 (same); Webster v. Reprod. Health Servs., 492 U.S. 490, 506 (1989) ("It will be time enough for federal courts to address the meaning of the preamble [to the challenged statute] should it be applied to restrict the activities of appellees in some concrete way.").

[8] *See* ArtIII.S2.C1.7.1 Overview of Ripeness Doctrine through ArtIII.S2.C1.7.10 Continuing Vitality of Ripeness Doctrine.

[9] *See* U.S. Const. art. III, § 2, cl. 1. *See also, e.g.*, *Trump*, No. 20-366, slip op. at 3–4 (explaining that the ripeness doctrine "originat[es] in the case-or-controversy requirement of Article III"); *Stolt-Nielsen S.A.*, 559 U.S. at 670 n.2

ArtIII.S2.C1.7.1
Overview of Ripeness Doctrine

Article III of the Constitution, it overlaps with other justiciability doctrines that are also derived from the "Case" or "Controversy" requirement, especially the standing doctrine.[10] Thus, in recent years, the Supreme Court has increasingly recognized that because standing and ripeness are based on the same constitutional limitations on the federal courts' jurisdiction, they frequently "boil down to the same question."[11] In particular, the Supreme Court has observed that the standing doctrine's temporal inquiry into whether the plaintiff has suffered an imminent injury overlaps substantially with the ripeness doctrine's inquiry into whether withholding judicial consideration of a dispute would cause "the parties a sufficient 'hardship.'"[12]

In addition to its constitutional dimension, the ripeness doctrine is also partly based on prudential considerations that do not directly derive from the Constitution.[13] The Supreme Court has recognized that, even when Article III of the U.S. Constitution does not forbid a court from deciding an issue, it may nonetheless be appropriate for courts to postpone adjudicating that issue because subsequent events may make it easier or unnecessary to resolve that dispute.[14] Thus, to determine whether a case is ripe for adjudication, the court must assess not only whether the case is presently justiciable within the meaning of Article III's case or controversy requirement, but also whether it would be prudent to decide the case at the present time.[15] The Supreme Court, however, has not squarely articulated which aspects of the ripeness doctrine are mandated by the Constitution and which are instead based solely on prudential concerns.[16] Moreover, as explained in greater detail below, the Supreme Court has recently questioned the continuing vitality of the ripeness doctrine's prudential dimension.[17] As a result, presently it is unclear whether—and, if so, when—federal courts should dismiss a case as prudentially unripe.

("Ripeness reflects constitutional considerations that implicate 'Article III limitations on judicial power.'") (quoting Reno v. Catholic Soc. Servs., Inc., 509 U.S. 43, 57 n.18 (1993)); Blanchette v. Conn. Gen. Ins. Corps., 419 U.S. 102, 138 (1974) ("Issues of ripeness involve, at least in part, the existence of a live 'Case or Controversy.'").

[10] *See* Warth v. Seldin, 422 U.S. 490, 499 n.10 (1975) ("The standing question thus bears close affinity to questions of ripeness—whether the harm asserted has matured sufficiently to warrant judicial intervention."); *Trump*, No. 20-366, slip op. at 3–4 (describing standing and ripeness as "related doctrines"); DaimlerChrysler Corp. v. Cuno, 547 U.S. 332, 352 (2006) ("The doctrines of mootness, ripeness, and political question all originate in Article III's 'case' or 'controversy' language, no less than standing does."). *See generally* ArtIII.S2.C1.6.1 Overview of Standing through ArtIII.S2.C1.11.6 Supplemental Jurisdiction (analyzing the various justiciability doctrines).

[11] MedImmune, Inc. v. Genentech, Inc., 549 U.S. 118, 128 n.8 (2007) (quoting Lujan v. Defs. of Wildlife, 504 U.S. 555, 560 (1992)); Susan B. Anthony List v. Driehaus, 573 U.S. 149, 157 n.5 (2014) (similar); *Trump*, No. 20-366, slip op. at 7 (dismissing case on both standing and ripeness grounds).

[12] *MedImmune*, 549 U.S. at 128 n.8 (quoting Abbott Labs. v. Gardner, 387 U.S. 136, 149 (1967), *abrogated on other grounds by* Califano v. Sanders, 430 U.S. 99 (1977)).*See* ArtIII.S2.C1.6.1 Overview of Standing (discussing the standing doctrine's imminent injury requirement); *Lujan*, 504 U.S. at 560 (applying that requirement).

[13] Duke Power Co. v. Carolina Envtl. Study Grp., Inc., 438 U.S. 59, 82 (1978). *See also, e.g.*, Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 808 (2003) ("The ripeness doctrine is 'drawn both from Article III limitations on judicial power and from prudential reasons for refusing to exercise jurisdiction.'") (quoting *Reno*, 509 U.S. at 57 n.18).

[14] *See, e.g.*, Suitum v. Tahoe Reg'l Planning Agency, 520 U.S. 725, 733 n.7 (1997) ("The agency does not question that Suitum properly presents a genuine 'case or controversy' sufficient to satisfy Article III, but maintains only that Suitum's action fails to satisfy our prudential ripeness requirements."); Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 735 (1998) ("The ripeness doctrine reflects a judgment that the disadvantages of premature review that may prove too abstract or unnecessary ordinarily outweigh the additional costs of . . . postimplementation litigation.").

[15] *See, e.g.*, *Duke Power*, 438 U.S. at 81 (concluding that the case presented a ripe "Case or Controversy" as a constitutional matter, and that "[t]he prudential considerations embodied in the ripeness doctrine also argue[d] strongly for a prompt resolution of the claims presented").

[16] *See, e.g.*, Armstrong World Indus., Inc. *ex rel.* Wolfson v. Adams, 961 F.2d 405, 411 n.12 (3d Cir. 1992) (observing that "[t]he Supreme Court itself has not been consistent" with respect to the constitutional and prudential aspects of ripeness).

[17] ArtIII.S2.C1.6.1 Overview of Standing through ArtIII.S2.C1.11.6 Supplemental Jurisdiction.

ArtIII.S2.C1.7.2 United Public Workers and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court's decision in *United Public Workers of America (C.I.O.) v. Mitchell*, is the starting point for discussing the ripeness doctrine.[1] The plaintiffs in *United Public Workers* attempted to challenge the constitutionality of a statute that prohibited certain Executive Branch employees from engaging in specified political activities.[2] The Court declined to resolve the claims of several challengers who had not yet taken part in such political acts, and who merely sought a judicial declaration that the statute was unconstitutional.[3] Because the Court could "only speculate" about the political activities those challengers wanted to conduct, the Court ruled that they failed to present a justiciable case or controversy under Article III.[4] The Court reasoned that the Judiciary may only review a statute's constitutionality when litigants face actual—rather than legal—violations of their constitutional rights.[5]

ArtIII.S2.C1.7.3 Abbott Laboratories Trilogy and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court refined the ripeness doctrine in three opinions known as the "*Abbott Laboratories* trilogy."[1] Each of these three cases involved pre-enforcement challenges to

[1] 330 U.S. 75 (1947).

[2] *Id.* at 81–82.

[3] *Id.* at 82–84. One of the challengers had in fact engaged in political activity and consequently faced "removal from his position." *Id.* at 91–92. The Supreme Court concluded that although that single employee's challenge to the statute was "appropriate for [immediate] judicial determination," the other employees' challenges were not. *Id.* at 91.

[4] *Id.* at 89–90. The Court also based its reasoning on Article III's prohibition against advisory opinions. *See id.* For further discussion of the rule against advisory opinions, *see* ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[5] 330 U.S. at 89–90 ("The power of courts, and ultimately of this Court to pass upon the constitutionality of acts of Congress arises only when the interests of litigants require the use of this judicial authority for their protection against actual interference. A hypothetical threat is not enough.").

[1] *See* Abbott Labs. v. Gardner, 387 U.S. 136 (1967), *abrogated on other grounds by* Califano v. Sanders, 430 U.S. 99 (1977); Gardner v. Toilet Goods Ass'n, 387 U.S. 167 (1967); Toilet Goods Ass'n, Inc. v. Gardner, 387 U.S. 158 (1967).

regulations promulgated by the Commissioner of Food and Drugs.[2] The Supreme Court concluded that some of those pre-enforcement challenges were ripe for adjudication, but others were not.[3]

The Court first explained that the ripeness doctrine serves two purposes.[4] First, the doctrine mitigates the risk that courts will "entangl[e] themselves in abstract disagreements over administrative policies" by adjudicating claims prematurely.[5] Second, the doctrine shields administrative agencies from judicial interference until they finalize their decision.[6]

The Court then articulated a two-factor test for determining whether a particular controversy is ripe: the court must evaluate both (1) "the fitness of the issues for judicial decision" and (2) "the hardship to the parties of withholding court consideration."[7] Under the first factor, cases that present purely legal issues are particularly likely to be fit for judicial resolution.[8] By contrast, where it would be easier to resolve a challenge to an administrative action in the context of a specific attempt to enforce the agency's regulations than in the context of a pre-enforcement challenge, the challenge is less likely to be ripe.[9] As to the "hardship" factor, the Court explained that, where an administrative regulation threatens noncompliant parties with "an immediate and substantial impact"[10]—such as the "seizure of goods, heavy fines, adverse publicity, [or] possible criminal liability"[11]—a pre-enforcement challenge to that regulation is especially likely to be ripe. The Court, opined that courts ordinarily must entertain challenges to regulations that threaten regulated entities with serious penalties if they fail to modify their behavior.[12]

ArtIII.S2.C1.7.4 Modern Ripeness Doctrine Generally

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

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[2] *Abbott Labs.*, 387 U.S. at 138, 153–54; *Gardner*, 387 U.S. at 168; *Toilet Goods Ass'n*, 387 U.S. at 159–60.

[3] *Compare Gardner*, 387 U.S. at 170 ("[R]espondents' challenge to these regulations is ripe for judicial review."), *with Toilet Goods Ass'n*, 387 U.S. at 161 ("[T]he controversy is not presently ripe for adjudication.").

[4] *Abbott Labs.*, 387 U.S. at 148.

[5] *Id.*

[6] *Id.* at 148–49 (explaining that the ripeness doctrine "protect[s] the agencies from judicial interference until an administrative decision has been formalized and its effects felt in a concrete way by the challenging parties").

[7] *Id.* at 149.

[8] *Id.*

[9] *See* Gardner v. Toilet Goods Ass'n, 387 U.S. 167, 171 (1967) (assessing whether "consideration of the underlying legal issues would necessarily be facilitated if they were raised in the context of a specific attempt to enforce the regulations").

[10] *Id. See also Abbott Labs.*, 387 U.S. at 152 ("This is also a case in which the impact of the regulations upon the petitioners is sufficiently direct and immediate as to render the issue appropriate for judicial review at this stage.").

[11] Toilet Goods Ass'n, Inc. v. Gardner, , 387 U.S. 158, 165 (1967).

[12] *Abbott Labs.*, 387 U.S. at 153 ("[W]here a regulation requires an immediate and significant change in the plaintiffs' conduct of their affairs with serious penalties attached to noncompliance, access to the courts . . . must be permitted, absent a statutory bar or some other unusual circumstance . . . .").

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Supreme Court has invoked *Abbott Laboratories*' two-part "fitness" and "hardship" test on numerous occasions since 1967,[1] deeming a variety of controversies unripe under that standard.[2] A discussion of post-1967 Supreme Court cases that have refined and developed the *Abbott Laboratories* standard follows.

ArtIII.S2.C1.7.5 Fitness and Ripeness

Article III, Section 2, Clause 1:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Supreme Court has considered several factors when determining whether an issue is "fit" for judicial review under *Abbott Laboratories v. Gardner*. First, the Court has inquired whether further factual development would make it easier to resolve the parties' dispute.[1] For instance, in *National Park Hospitality Ass'n v. Department of Interior*, a nonprofit trade association challenged a National Park Service regulation that purported to render the Contract Disputes Act of 1978 (CDA) inapplicable to certain government contracts.[2] Noting that the CDA's applicability could vary from contract to contract, the Court determined that awaiting further factual development in the form of a dispute over a particular contract would facilitate the Court's review of the regulation.[3] The Court therefore deemed the challenge unripe.[4]

By contrast, cases presenting purely legal rather than factual questions are more likely to be fit for immediate adjudication.[5] For example, in *Pacific Gas & Electric Co. v. State Energy Resources Conservation & Development Commission*, the Supreme Court held that whether federal law preempted a state statute was primarily a legal question and therefore ripe for judicial review.[6]

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[1] *See, e.g.*, Stolt-Nielsen S.A. v. AnimalFeeds Int'l Corp., 559 U.S. 662, 670 n.2 (2010); Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 808 (2003); Texas v. United States, 523 U.S. 296, 300–01 (1998); Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 733 (1998); Pac. Gas & Elec. Co. v. State Energy Res. Conservation & Dev. Comm'n, 461 U.S. 190, 201 (1983).

[2] *See Nat'l Park Hosp. Ass'n*, 538 U.S. at 808; *Texas*, 523 U.S. at 301–02; *Ohio Forestry Ass'n, Inc.*, 523 U.S. at 732–33.

[1] *See, e.g.*, Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 812; *Ohio Forestry Ass'n, Inc.*, 523 U.S. at 737; Duke Power Co. v. Carolina Envtl. Study Grp., Inc., 438 U.S. 59, 82 (1978).

[2] 538 U.S. at 804–05.

[3] *See id.* ("[F]urther factual development would 'significantly advance our ability to deal with the legal issues presented' . . . [J]udicial resolution of the question presented here should await a concrete dispute about a particular concession contract.") (quoting *Duke Power*, 438 U.S. at 82).

[4] *Id.* at 805.

[5] *See* Whitman v. Am. Trucking Ass'ns, Inc., 531 U.S. 457, 479 (2001); Thomas v. Union Carbide Agric. Prods. Co., 473 U.S. 568, 581 (1985).

[6] *See* 461 U.S. 190, 201 (1983).

ArtIII.S2.C1.7.5
Fitness and Ripeness

A claim may not be fit for adjudication if it is based on "contingent future events that may not occur as anticipated, or indeed may not occur at all."[7] For instance, in *Texas v. United States*, the State of Texas asked a federal district court to determine the validity of certain provisions of the Texas Education Code that permitted the state to sanction local school districts if they failed to meet state-mandated educational achievement levels.[8] Because the Supreme Court did not know whether or when the State would ever issue such a sanction, the Court unanimously concluded that the validity of the Texas statute was not yet ripe for adjudication.[9]

Similarly, when a party challenges the constitutionality of a state law, but that state's courts have not yet had an opportunity to delimit the scope and applicability of that law, the claim may be unfit for adjudication.[10] As the Supreme Court has noted, waiting until state courts have had a chance to interpret a challenged law may sharpen the issues for judicial review.[11]

ArtIII.S2.C1.7.6 Hardship and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

When considering *Abbott Laboratories v. Gardner*'s "hardship" prong, the Supreme Court has often considered whether one or more of the parties face adverse legal consequences as a result of the challenged action.[1] For instance, in *Ohio Civil Rights Commission v. Dayton Christian Schools, Inc.*, the Ohio Civil Rights Commission initiated administrative proceedings against a nonprofit religious education provider, alleging that the nonprofit had discriminated

[7] Texas v. United States, 523 U.S. 296, 300 (1998) (quoting *Thomas*, 473 U.S. at 580–81). *See also* Trump v. New York, No. 20-366, slip op. at 4 (U.S. Dec. 18, 2020) (applying this rule); Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 736 (1998) ("[D]epending upon the agency's future actions to revise the Plan or modify the expected methods of implementation, review now may turn out to have been unnecessary.").

[8] 523 U.S. at 297, 299.

[9] *Id.* at 300 (quoting Toilet Goods Ass'n, Inc. v. Gardner, 387 U.S. 158, 163 (1967)).

[10] *See id.* at 301; Renne v. Geary, 501 U.S. 312, 323 (1991).

[11] *Renne*, 501 U.S. at 323. ("Postponing consideration of the questions presented, until a more concrete controversy arises, also has the advantage of permitting the state courts further opportunity to construe [the challenged law], and perhaps in the process to 'materially alter the question to be decided.'") (quoting Babbitt v. United Farm Workers Nat'l Union, 442 U.S. 289, 306 (1979)); *Texas*, 523 U.S. at 301. In this respect, ripeness dovetails with the various abstention doctrines that federal courts utilize to avoid interfering with the states. For an overview of those doctrines, see generally ArtIII.S1.6.7 Federal Non-Interference with State Jurisdiction and Abstention.

[1] AT&T Corp. v. Iowa Utils. Bd., 525 U.S. 366, 386 (1999) ("When . . . there is no immediate effect on the plaintiff's primary conduct, federal courts normally do not entertain pre-enforcement challenges to agency rules and policy statements."); Reno v. Catholic Soc. Servs., Inc., 509 U.S. 43, 58 (1993) (holding that a challenge to a regulation that "impose[d] no penalties for violating any newly imposed restriction" would "not be ripe before the regulation's application to the plaintiffs in some more acute fashion"); Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 809 (2003) (explaining that "a hardship showing" requires "adverse effects of a strictly legal kind") (quoting Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 733 (1998)).

against one of its teachers on the basis of sex.[2] The nonprofit asserted that it terminated the teacher based on its religious views that mothers should stay home with school-aged children and that the Commission's actions consequently violated the First Amendment's Religion Clauses.[3] The nonprofit thus filed a federal lawsuit to enjoin the administrative proceedings. The Supreme Court ruled that the Commission's administrative action threatened the nonprofit with sanctions for allegedly constitutionally protected conduct and thus that the nonprofit's challenge to those proceedings was ripe.[4]

ArtIII.S2.C1.7.7 Administrative Law and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Challenges to federal administrative agencies' actions, decisions, and policies often implicate the ripeness doctrine.[1] In such cases, courts consider "whether judicial intervention would inappropriately interfere with further administrative action."[2] The ripeness doctrine thereby not only "protect[s] the agencies from judicial interference until an administrative decision has been formalized and its effects felt in a concrete way by the challenging parties," but also "prevent[s] the courts, through avoidance of premature adjudication, from entangling themselves in abstract disagreements over administrative policies."[3] For example, in *Ohio Forestry Association, Inc. v. Sierra Club*, an environmental organization challenged the United States Forest Service's interim federal land and resource management plan on the ground that

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[2] 477 U.S. 619, 623–24 (1986).

[3] *Id.* at 623–25. *See also* Amdt1.2.1 Overview of the Religion Clauses (Establishment and Free Expression Clauses) through Amdt1.2.3.4 Church Leadership and the Ministerial Exception (analyzing the First Amendment's Religion Clauses).

[4] *Id.* at 625 n.1. However, the Court ultimately ruled that the district court should have abstained from deciding the case on other grounds. *See id.* at 625.

[1] *See, e.g.*, Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 808 (2003) ("Absent a statutory provision providing for immediate judicial review, a regulation is not ordinarily considered the type of agency action 'ripe' for judicial review . . . until the scope of the controversy has been reduced to more manageable proportions, and its factual components fleshed out, by some concrete action applying the regulation to the claimant's situation in a fashion that harms or threatens to harm him.") (quoting Lujan v. Nat'l Wildlife Fed'n, 497 U.S. 871, 891 (1990)) (brackets omitted). *See also* E.I. du Pont de Nemours & Co. v. Train, 430 U.S. 112, 128 n.19 (1977) (concluding that "consideration of whether EPA's variance provision has the proper scope would be premature"). Several non-constitutional doctrines, including the "exhaustion" doctrine and the "final agency action" doctrine, may also influence the appropriate timing of challenges to administrative actions. *See, e.g.*, Woodford v. Ngo, 548 U.S. 81, 88–89 (2006) ("[N]o one is entitled to judicial relief for a supposed or threatened injury until the prescribed administrative remedy has been exhausted.") (quoting McKart v. United States, 395 U.S. 185, 193 (1969)); Dalton v. Specter, 511 U.S. 462, 469 (1994) (holding that, as a general matter, only "*final* agency action[s]" are subject to judicial review under the Administrative Procedure Act) (quoting 5 U.S.C. § 704).

[2] Ohio Forestry Ass'n v. Sierra Club, 523 U.S. 726, 733; Whitman v. Am. Trucking Ass'ns, Inc., 531 U.S. 457, 479 (2001). *See also Lujan*, 497 U.S. at 894 ("[W]e intervene in the administration of the laws only when, and to the extent that, a specific 'final agency action' has an actual or immediately threatened effect. . . . Until confided to us, however, more sweeping actions are for the other branches [of the federal government].").

[3] *Ohio Forestry Ass'n, Inc.*, 523 U.S. at 732–33 (quoting Abbott Labs. v. Gardner, 387 U.S. 136, 148–49 (1967), *abrogated on other grounds by* Califano v. Sanders, 430 U.S. 99 (1977)). *See also Nat'l Park Hosp. Ass'n*, 538 U.S. at 807–08 (same); Pac. Gas & Elec. Co. v. State Energy Res. Conservation & Dev. Comm'n, 461 U.S. 190, 200 (1983) (same).

it permitted too much logging and clearcutting of trees.[4] The Supreme Court concluded that the organization's challenge was unripe,[5] in part because reviewing the plan immediately could obstruct the Forest Service from refining its policies by either revising the plan or applying it to specific sites.[6]

ArtIII.S2.C1.7.8 Criminal Statutes and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has frequently scrutinized the ripeness of pre-enforcement challenges to criminal statutes.[1] The Court has explained that, when challenging a criminal statute, the plaintiff need not "first expose himself to actual arrest or prosecution."[2] Rather, it is sufficient for the plaintiff to allege that he (1) intends to engage in constitutionally protected activity prohibited by the statute and (2) faces a "credible threat of prosecution."[3] For example, an abortion provider who faces "a sufficiently direct threat" that a state will prosecute him for violating a statute that criminalizes abortion need not necessarily await prosecution before challenging that statute's constitutionality.[4]

Conversely, a challenger who cannot claim that he has "ever been threatened with prosecution, that a prosecution is likely, or even that a prosecution is remotely possible" cannot "allege a dispute susceptible to resolution by a federal court."[5] For example, in *Poe v. Ullman*, the plaintiffs challenged the constitutionality of a state statute that criminalized the use of contraceptive devices.[6] Even though the statute had been on the books for more than eight decades, the state had only attempted to enforce it on a single occasion, and drugstores in the state commonly and openly sold such devices without any apparent fear of prosecution.[7] Thus,

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[4] *Ohio Forestry Ass'n, Inc.*, 523 U.S. at 728.

[5] *Id.* at 732.

[6] *Id.* at 735 ("[F]rom the agency's perspective, immediate judicial review directed at the lawfulness of logging and clearcutting could hinder agency efforts to refine its policies: (a) through revision of the Plan, *e.g.*, in response to an appropriate proposed site-specific action that is inconsistent with the Plan, or (b) through application of the Plan in practice, *e.g.*, in the form of site-specific proposals, which are subject to review by a court applying purely legal criteria.").

[1] *See, e.g.*, Susan B. Anthony List v. Driehaus, 573 U.S. 149, 167–68 (2014); Babbitt v. United Farm Workers Nat'l Union, 442 U.S. 289, 297–302 (1979); Doe v. Bolton, 410 U.S. 179, 188–89 (1973); Epperson v. Arkansas, 393 U.S. 97, 101–02 (1968); Poe v. Ullman, 367 U.S. 497, 498–509 (1961).

[2] *Babbitt*, 442 U.S. at 298 (quoting Steffel v. Thompson, 415 U.S. 452, 459 (1974)) (brackets omitted).

[3] *Id.* (quoting Doe v. Bolton, 410 U.S. 179, 188 (1973)).

[4] *See Doe*, 410 U.S. at 188.

[5] *Babbitt*, 442 U.S. at 298–99 (quoting Younger v. Harris, 401 U.S. 37, 42 (1971)).

[6] 367 U.S. at 498.

[7] *See id.* at 501–02.

the plaintiffs faced no reasonable fear of prosecution, and the Court accordingly held that the constitutionality of the statute was not ripe for decision.[8]

One might argue, however, that the Court has not always applied these principles consistently. In *Epperson v. Arkansas*, for example, the plaintiff challenged the constitutionality of an Arkansas statute that made it a misdemeanor to teach the theory of evolution in public schools and universities.[9] No teacher had ever been prosecuted under the challenged statute.[10] Even though the plaintiff did not appear to face a reasonable threat of prosecution, the Court concluded—with minimal discussion—that the plaintiff had nonetheless presented a justiciable controversy.[11] *Epperson* is therefore arguably inconsistent with the Court's other ripeness cases. The Court has attempted to reconcile *Epperson* by focusing on the age of the statute being challenged; a challenge to a criminal statute that has been on the books for decades yet has almost never been enforced will likely not be ripe for immediate review, whereas a pre-enforcement challenge to a statute that is "recent and not moribund" may be justiciable.[12] That distinction, however, may not be altogether satisfying; the anti-evolution statute in *Epperson* had been on the books for four decades, yet the Supreme Court nonetheless deemed the plaintiff's challenge ripe for immediate adjudication.[13] Thus, as the Court itself has intimated, it is not always easy to predict whether any given pre-enforcement challenge to a criminal statute will be justiciable.[14]

ArtIII.S2.C1.7.9 Takings and Ripeness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Until very recently, the Supreme Court applied special ripeness rules in regulatory takings cases in which a litigant alleges that a governmental entity has "taken" his property without paying "just compensation" as the Fifth Amendment requires.[1] Under the doctrine established

[8] *See id.* at 508. *Cf.* Griswold v. Connecticut, 381 U.S. 479, 480–81 (1965) (deeming a challenge to an anti-contraceptive statute justiciable where appellants had been arrested for violating the statute, found guilty, and fined).

[9] *See* 393 U.S. 97, 98–99 (1968).

[10] *Id.* at 101–02.

[11] *See id.* at 102.

[12] *See* Doe v. Bolton, 410 U.S. 179, 188–89 (1973).

[13] *See Epperson*, 393 U.S. at 98, 101–02.

[14] *See* Poe v. Ullman, 367 U.S. 497, 508 (1961) (remarking, in the course of dismissing as unripe a pre-enforcement challenge to a criminal statute, that "[j]usticiability is . . . not a legal concept with fixed content or susceptible of scientific verification").

[1] U.S. CONST. amend. V ("[N]or shall private property be taken for public use, without just compensation."). *See* Horne v. Dep't of Agric., 569 U.S. 513, 524–28 (2013); Stop the Beach Renourishment, Inc. v. Fla. Dep't of Envtl. Prot., 560 U.S. 702, 729 & n.10 (2010); Palazzolo v. Rhode Island, 533 U.S. 606, 618, 620–22 (2001); Suitum v. Tahoe Reg'l Planning Agency, 520 U.S. 725, 733–34 (1997); Lucas v. S.C. Coastal Council, 505 U.S. 1003, 1010–14 (1992); Yee v. City of Escondido, 503 U.S. 519, 533–34 (1992); Preseault v. ICC, 494 U.S. 1, 11–17 (1990); First English Evangelical Lutheran Church of Glendale v. Cty. of Los Angeles, 482 U.S. 304, 312 n.6 (1987); MacDonald, Sommer & Frates v. Yolo

in *Williamson County Regional Planning Commission v. Hamilton Bank of Johnson City*,[2] a plaintiff could not pursue a takings claim against a state entity in federal court until the plaintiff had (1) received a final decision from the state government regarding the challenged regulation's application to his property; and (2) sought compensation through state-provided procedures.[3] *Williamson County*'s context-specific ripeness rule created potentially significant obstacles for takings plaintiffs. As the Court later held in *San Remo Hotel, L.P. v. City & County of San Francisco*, when a plaintiff first litigates a takings claim in state court as mandated by *Williamson County*, the federal full faith and credit statute bars the plaintiff from relitigating the Takings Clause issues in a subsequent federal lawsuit.[4] Thus, under *Williamson County* and *San Remo*, a plaintiff could not file a takings lawsuit in federal court before pursuing his claim in state court, yet if he lost in state court, his subsequent federal lawsuit would fail as well.[5] The Court ultimately concluded that this special ripeness rule imposed "an unjustifiable burden on takings plaintiffs" and conflicted with the Court's Takings Clause jurisprudence.[6] The Court therefore overruled *Williamson County* in *Knick v. Township of Scott*.[7] After *Knick*, a property owner may bring a takings claim in a federal court without first seeking compensation in state court.[8]

ArtIII.S2.C1.7.10 Continuing Vitality of Ripeness Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

Cty., 477 U.S. 340, 348–53 (1986); Williamson Cty. Reg'l Planning Comm'n v. Hamilton Bank of Johnson City, 473 U.S. 172, 186, 190–91, 195, 200 (1985), *overruled by* Knick v. Twp. of Scott, No. 17-647 (U.S. June 21, 2019). *See also, e.g.*, *Knick*, No. 17-647, slip op. at 22 (characterizing the aforementioned cases as articulating "a 'prudential' ripeness rule"); Tahoe-Sierra Pres. Council, Inc. v. Tahoe Reg'l Planning Agency, 535 U.S. 302, 339 (2002) ("[I]t is the interest in informed decisionmaking that underlies our decisions imposing a strict ripeness requirement on landowners asserting regulatory takings claims."); Pennell v. City of San Jose, 485 U.S. 1, 8–10 (1988) (holding that "it would be premature" to consider challenger's claim that local ordinance violated the Takings Clause). *See generally* Amdt5.9.6 Regulatory Takings and Penn Central Framework (defining and discussing regulatory takings).

[2] 473 U.S. at 186, 190–91, 195, 200.

[3] *Suitum*, 520 U.S. at 734 (quoting *Williamson Cty.*, 473 U.S. at 186, 194) (brackets omitted). *See also, e.g.*, *Palazzolo*, 533 U.S. at 618, 620–22.

[4] 545 U.S. 323, 326–48 (2005). *See also* 28 U.S.C. § 1738 (Full Faith and Credit Act); ArtIV.S1.1 Overview of Full Faith and Credit Clause through ArtIV.S1.5.2 Specifically Applicable Federal Law on Full Faith and Credit Clause (analyzing the Full Faith and Credit Act).

[5] *Knick*, No. 17-647, slip op. at 1–2 ("The takings plaintiff thus finds himself in a Catch-22: He cannot go to federal court without going to state court first; but if he goes to state court and loses, his claim will be barred in federal court. The federal claim dies aborning.").

[6] *Id.* at 2.

[7] *Id.* at 23.

[8] *Id.* at 2, 23.

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Even though the Supreme Court has applied the *Abbott Laboratories* standard on numerous occasions since 1967,[1] the Court has signaled that it may be willing to modify the standard, or perhaps even abrogate the ripeness doctrine entirely.

For example, recent Supreme Court decisions have questioned the ripeness doctrine's prudential underpinnings. Before 2014, the Court had held repeatedly that the ripeness doctrine had both constitutional and prudential dimensions.[2] However, in *Susan B. Anthony List v. Driehaus*, the Court, quoting its earlier holding that "'a federal court's obligation to hear and decide' cases within its jurisdiction 'is virtually unflagging,'" questioned whether it is proper to deem a claim "nonjusticiable on grounds that are prudential, rather than constitutional."[3] And in its 2020 ripeness opinion, the Court deemed a case unripe without mentioning the doctrine's prudential component or discussing *Abbott Laboratories*' fitness and hardship factors.[4] It is therefore possible that the Supreme Court may someday unmoor the ripeness doctrine from its prudential foundations and replace the two-pronged *Abbott Laboratories* test with a new legal standard predicated solely on Article III's Case or Controversy requirement.

The ripeness doctrine has also arguably diminished in importance as the Supreme Court has developed and refined other justiciability doctrines, especially the doctrine of Article III standing. In *MedImmune, Inc. v. Genentech, Inc.* and *Susan B. Anthony List*, the Court observed that because standing and ripeness both derive from the provisions of Article III limiting the federal courts' jurisdiction to "Cases" and "Controversies," the two doctrines often " boil down to the same question."[5] Thus, the Court ruled in *Trump v. New York* that a challenge to an Executive Branch policy was premature under the standing and ripeness doctrines alike.[6] Consequently, under *MedImmune*, *Susan B. Anthony List*, and *Trump*, the degree to which the ripeness doctrine imposes any limitation on the justiciability of disputes that the Article III standing doctrine does not already impose is uncertain. Future Supreme Court decisions may clarify the extent to which the ripeness doctrine continues to play a role in the application of Article III's case or controversy requirement.

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[1] *See, e.g.*, Stolt-Nielsen S.A. v. AnimalFeeds Int'l Corp., 559 U.S. 662, 670 n.2 (2010); Nat'l Park Hosp. Ass'n v. Dep't of Interior, 538 U.S. 803, 808 (2003); Texas v. United States, 523 U.S. 296, 300–01 (1998); Ohio Forestry Ass'n, Inc. v. Sierra Club, 523 U.S. 726, 733 (1998); Pac. Gas & Elec. Co. v. State Energy Res. Conservation & Dev. Comm'n, 461 U.S. 190, 201 (1983).

[2] *Nat'l Park Hosp. Ass'n*, 538 U.S. at 808 (quoting Reno v. Catholic Soc. Servs., Inc., 509 U.S. 43, 57 n.18 (1993)). *See also Stolt-Nielsen*, 559 U.S. at 670 n.2; Suitum v. Tahoe Regional Planning Agency, 520 U.S. 725, 733 n.7 (1997).

[3] 573 U.S. 149, 167 (2014) (quoting Lexmark Int'l, Inc. v. Static Control Components, Inc., 572 U.S. 118, 125–26 (2014)) (internal quotation marks omitted). *But see id.* ("[W]e need not resolve the continuing vitality of the prudential ripeness doctrine in this case because the 'fitness' and 'hardship' factors are easily satisfied here.").

[4] Trump v. New York, No. 20-366, slip op. at 1–7 (Dec. 18, 2020).

[5] Susan B. Anthony List v. Driehaus, 573 U.S. 149, 157 n.5 (2014). *See also* MedImmune, Inc. v. Genentech, Inc., 549 U.S. 118, 128 n.8 (2007) ("The justiciability problem . . . can be described in terms of standing (whether plaintiff is threatened with 'imminent' injury in fact 'fairly . . . trace[able] to the challenged action of the defendant,') or in terms of ripeness (whether there is sufficient 'hardship to the parties [in] withholding court consideration' until there is enforcement action).") (quoting Lujan v. Defs. of Wildlife, 504 U.S. 555, 560 (1992); Abbott Labs. v. Gardner, 387 U.S. 136, 149 (1967), *abrogated on other grounds by* Califano v. Sanders, 430 U.S. 99 (1977)).

[6] *See* No. 20-366, slip op. at 6–7 ("[T]he standing and ripeness inquiries both lead to the conclusion that judicial resolution of this dispute is premature.").

ArtIII.S2.C1.8 Mootness

ArtIII.S2.C1.8.1 Overview of Mootness Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In addition to the other justiciability doctrines discussed above, the Supreme Court's doctrine on mootness imposes another limitation on justiciability derived from Article III's case-or-controversy requirement[1] on the federal courts' jurisdiction to resolve disputes.[2] "It has long been settled that a federal court has no authority 'to give opinions upon moot questions;'"[3] that is, "when the issues presented are no longer 'live' or the parties lack a legally cognizable interest in the outcome."[4] "[A]n actual controversy must exist not only at the time the complaint is filed, but through all stages of the litigation."[5] Thus, "if an intervening circumstance deprives the plaintiff of a 'personal stake in the outcome of the lawsuit[ ]' at any point during litigation, the action can no longer proceed and must be dismissed as moot."[6] The Supreme Court has justified the mootness doctrine on the ground that it "ensures that the Federal Judiciary confines itself to its constitutionally limited role of adjudicating actual and concrete disputes, the resolutions of which have direct consequences on the parties involved."[7]

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[1] *See* U.S. Const. art. III, § 2 (stating that "[t]he judicial Power" of the federal courts shall only extend to certain categories of "Cases" and "Controversies").

[2] *E.g.*, Friends of the Earth, Inc. v. Laidlaw Envtl. Servs. (TOC), Inc., 528 U.S. 167, 180 (2000) ("The Constitution's case-or-controversy limitation on federal judicial authority . . . underpins . . . our mootness jurisprudence."); Franks v. Bowman Transp. Co., 424 U.S. 747, 754 (1976) ("Insofar as the concept of mootness defines constitutionally minimal conditions for the invocation of federal judicial power, its meaning and scope, as with all concepts of justiciability, must be derived from the fundamental policies informing the 'cases or controversies' limitation imposed by Art[icle] III."); DeFunis v. Odegaard, 416 U.S. 312, 316 (1974) (per curiam) ("The inability of the federal judiciary 'to review moot cases derives from the requirement of Art[icle] III of the Constitution under which the exercise of judicial power depends upon the existence of a case or controversy.'") (quoting Liner v. Jafco, Inc., 374 U.S. 301, 306 n.3 (1964)); SEC v. Med. Comm. for Human Rights, 404 U.S. 403, 407 (1972) (same); North Carolina v. Rice, 404 U.S. 244, 246 (1971) (per curiam) (same).

[3] Church of Scientology of Cal. v. United States, 506 U.S. 9, 12 (1992) (quoting Mills v. Green, 159 U.S. 651, 653 (1895)). *See also, e.g.*, Calderon v. Moore, 518 U.S. 149, 150 (1996) (same).

[4] Cty. of Los Angeles v. Davis, 440 U.S. 625, 631 (1979) (quoting Powell v. McCormack, 395 U.S. 486, 498 (1969)). *See also, e.g.*, Chafin v. Chafin, 568 U.S. 165, 172 (2013) (same); City of Erie v. Pap's A.M., 529 U.S. 277, 287 (2000) (same).

[5] Kingdomware Techs., Inc. v. United States, 136 S. Ct. 1969, 1975 (2016) (quoting Already, LLC v. Nike, Inc., 568 U.S. 85, 90–91 (2013)). *See also, e.g.*, Decker v. Nw. Envtl. Def. Ctr., 568 U.S. 597, 609 (2013) ("It is a basic principle of Article III that a justiciable case or controversy must remain extant at all stages of review, not merely at the time the complaint is filed.") (quoting United States v. Juvenile Male, 564 U.S. 932, 936 (2011) (per curiam)); Lewis v. Cont'l Bank Corp., 494 U.S. 472, 477–78 (1990) ("To sustain our jurisdiction . . . it is not enough that a dispute was very much alive when suit was filed, or when review was obtained in the Court of Appeals."); Honig v. Doe, 484 U.S. 305, 317 (1988) ("That the dispute between parties was very much alive when suit was filed . . . cannot substitute for the actual case or controversy that an exercise of this Court's jurisdiction requires."); Burke v. Barnes, 479 U.S. 361, 363 (1987) ("Article III of the Constitution requires that there be a live case or controversy at the time that a federal court decides the case; it is not enough that there may have been a live case or controversy when the case was decided by the court whose judgment we are reviewing.").

[6] Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 161 (2016) (quoting Genesis Healthcare Corp. v. Symczyk, 569 U.S. 66, 72 (2013)).

[7] *Genesis Healthcare*, 569 U.S. at 71.

According to the Supreme Court, "[a] case that becomes moot at any point during the proceedings is "no longer a "Case" or "Controversy" for purposes of Article III," and is outside the jurisdiction of the federal courts."[8] Because mootness is a jurisdictional limitation, a federal court can—and indeed must—dismiss a moot case even if none of the parties ask the court to do so.[9] A question about mootness may, in other words, arise at any time during the lifespan of a case, even on appeal.[10] In this respect, mootness "bears close affinity to" the other justiciability doctrines derived from Article III of the Constitution,[11] including standing[12] and the prohibition against advisory opinions.[13] To the extent that the mootness doctrine regulates "the appropriate timing of judicial intervention,"[14] mootness serves as the converse of the ripeness doctrine,[15] which restrains the Judiciary from adjudicating a case before it develops into a live dispute.

The Supreme Court has steadily developed the substantive and procedural aspects of the mootness doctrine over the course of nearly a century and a half. The Court has ultimately settled on the following formulation of the doctrine: "If an intervening circumstance deprives

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[8] United States v. Sanchez-Gomez, 138 S. Ct. 1532, 1537 (2018) (quoting *Already*, 568 U.S. at 91). *See also, e.g.*, Iron Arrow Honor Soc'y v. Heckler, 464 U.S. 67, 70 (1983) (per curiam) ("Federal courts lack jurisdiction to decide moot cases because their constitutional authority extends only to actual cases or controversies."); St. Paul Fire & Marine Ins. Co. v. Barry, 438 U.S. 531, 537 (1978) ("[M]ootness . . . implicates our jurisdiction."); Richardson v. Ramirez, 418 U.S. 24, 36 (1974) ("[P]urely practical considerations have never been thought to be controlling by themselves on the issue of mootness in this Court . . . [W]e are limited by the case-or-controversy requirement of Art[icle] III to adjudication of actual disputes between adverse parties."); North Carolina v. Rice, 404 U.S. 244, 246 (1971) (per curiam) ("Mootness is a jurisdictional question because the Court 'is not empowered to decide moot questions or abstract propositions.'") (quoting United States v. Alaska S.S. Co., 253 U.S. 113, 116 (1920)).

[9] *See, e.g.*, *Juvenile Male*, 564 U.S. at 933–34 (deeming case moot even though "[n]o party had raised any issue of mootness in the [court below], and the Court of Appeals did not address the issue *sua sponte*"); *St. Paul*, 438 U.S. at 537 ("At the threshold, we confront a question of mootness. Although not raised by the parties, this issue implicates our jurisdiction."); Memphis Light, Gas & Water Div. v. Craft, 436 U.S. 1, 7–8 (1978) ("There is, at the outset, a question of mootness. Although the parties have not addressed this question in their briefs, 'they may not by stipulation invoke the judicial power of the United States in litigation which does not present an actual case or controversy.'") (quoting Sosna v. Iowa, 419 U.S. 393, 398 (1975)); *Rice*, 404 U.S. at 246 ("Although neither party has urged that this case is moot, resolution of the question is essential if federal courts are to function within their constitutional sphere of authority.").

[10] *See, e.g.*, *Lewis*, 494 U.S. at 477–78 ("To sustain our jurisdiction . . . it is not enough that a dispute was very much alive when suit was filed, or when review was obtained in the Court of Appeals.").

[11] *See, e.g.*, Warth v. Seldin, 422 U.S. 490, 499 n.10 (1975) ("The standing question . . . bears close affinity to questions of . . . mootness—whether the occasion for judicial intervention persists.").

[12] DaimlerChrysler Corp. v. Cuno, 547 U.S. 332, 352 (2006) ("The doctrines of mootness, ripeness, and political question all originate in Article III's 'case' or 'controversy' language, no less than standing does."); Friends of the Earth, Inc. v. Laidlaw Envtl. Servs. (TOC), Inc., 528 U.S. 167, 180 (2000) ("The Constitution's case-or-controversy limitation on federal judicial authority . . . underpins both our standing and our mootness jurisprudence.")

[13] *See* City of Erie v. Pap's A.M., 529 U.S. 277, 287 (2000) (explaining that, if a case becomes moot, then "any *opinion* as to the legality of the challenged action would be *advisory*") (emphasis added); *See generally* ArtIII.S2.C1.4.1 Overview of Advisory Opinions (discussing the bar on advisory opinions).

The Court has emphasized, however, that mootness is conceptually distinct from the other Article III justiciability doctrines. *See, e.g.*, *Friends of the Earth*, 528 U.S. at 190–91 (emphasizing "the distinction between mootness and standing" and explaining that mootness is more than "simply 'standing set in a time frame'") (quoting Arizonans for Official English v. Arizona, 520 U.S. 43, 68 n.22 (1997)); Burke v. Barnes, 479 U.S. 361, 364 n.* (1987) ("We reject respondents' argument that the questions of mootness and standing are necessarily intertwined."). Whereas "[s]tanding doctrine functions to ensure, among other things, that the scarce resources of the federal courts are devoted to those disputes in which the parties have a concrete stake[,] . . . by the time mootness is an issue, the case has been brought and litigated, often . . . for years." *Friends of the Earth*, 528 U.S. at 191. Moreover, as explained in greater detail below, the mootness doctrine is subject to exceptions that do not exist in the standing context. *See, e.g.*, *id.* at 190–91 ("[I]f mootness were simply 'standing set in a time frame,' the exception to mootness that arises when the defendant's allegedly unlawful activity is 'capable of repetition, yet evading review,' could not exist. . . . Standing admits of no similar exception; if a plaintiff lacks standing at the time the action commences, the fact that the dispute is capable of repetition yet evading review will not entitle the complainant to a federal judicial forum.").

[14] *E.g.*, Renne v. Geary, 501 U.S. 312, 320 (1991).

[15] *See, e.g.*, Note, *Standing to Sue for Members of Congress*, 83 Yale L.J. 1665, 1674 n.38 (1974) (describing "[r]ipeness" as "the converse of mootness").

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Overview of Mootness Doctrine

the plaintiff of a 'personal stake in the outcome of the lawsuit[ ]' at any point during litigation," then—subject to certain exceptions analyzed below—"the action can no longer proceed and must be dismissed as moot."[16]

ArtIII.S2.C1.8.2 Early Mootness Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court's 1895 decision in *Mills v. Green*[1] was the first Supreme Court opinion that directly addressed the mootness doctrine.[2] *Mills* involved the election of delegates to a convention to revise South Carolina's constitution.[3] A South Carolina citizen filed suit, claiming that the state's voter registration statutes unconstitutionally "abridg[ed], imped[ed], and destroy[ed] the suffrage of citizens of the state and of the United States."[4] While the case was pending on appeal, the date of the delegate election for the convention passed, the delegates were selected, and the constitutional convention had assembled.[5] The Supreme Court therefore concluded that there was no longer any "actual controversy involving real and substantial rights between the parties" and dismissed the appeal accordingly.[6] The Court explained that the Federal Judiciary's "duty" under the Constitution was only "to decide actual controversies," not "to give opinions upon moot questions or abstract propositions, or to declare principles or rules of law which cannot affect the matter in issue in the case before it."[7] Applying that principle to the facts of the case before it, the Court emphasized that "the whole object of the [plaintiff's lawsuit] was to secure a right to vote at the election."[8] Because the Court could not retroactively make the plaintiff eligible to vote in an election that had already occurred, the Court concluded it was unable to grant the plaintiff the relief that he sought.[9] *Mills* therefore firmly established the legal principle that otherwise justiciable cases may become nonjusticiable with the passage of time.[10]

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[16] Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 160–61 (2016) (quoting Genesis Healthcare Corp. v. Symczyk, 569 U.S. 66, 72 (2013)).

[1] 159 U.S. 651 (1895).

[2] *See* Honig v. Doe, 484 U.S. 305, 331 (1988) (Rehnquist, C.J., concurring) (describing *Mills* as "the case originally enunciating the mootness doctrine").

[3] 159 U.S. at 652.

[4] *Id.* at 651–52.

[5] *Id.* at 657.

[6] *Id.* at 653.

[7] *Id.*

[8] *Id.* at 657.

[9] *Id.* at 658 ("It is obvious, therefore, that, even if the bill could properly be held to present a case within the jurisdiction of the circuit court, no relief within the scope of the bill could now be granted.").

[10] *Mills* does not hold, however, that an election dispute invariably becomes moot after the election occurs. *See* Norman v. Reed, 502 U.S. 279, 287–88 (1992) ("We start with Reed's contention that we should treat the controversy as moot because the election is over. We should not."); Meyer v. Grant, 486 U.S. 414, 417 n.2 (1988) ("Although the

Notably, the *Mills* Court did not expressly base its holding on Article III's "case or controversy" requirement; nothing in *Mills* squarely suggested that the mootness doctrine was a constitutionally mandated limitation on the federal courts' jurisdiction, as opposed to a self-imposed prudential restriction on the justiciability of disputes.[11] Thus, the Court applied the mootness doctrine articulated in *Mills* on various occasions throughout the early- to mid-twentieth century without explicitly suggesting that federal courts lacked the constitutional authority to adjudicate moot cases.[12] It was not until the Court's 1964 decision in *Liner v. Jafco, Inc.*[13] that the Court first explicitly acknowledged mootness's constitutional dimension.[14] The respondents in *Liner* had successfully convinced a state court to enter an injunction[15] to prohibit picketing at a construction site.[16] The petitioners thereafter appealed to the U.S. Supreme Court, contending that the state court lacked the authority to issue the injunction.[17] While the case was pending, however, "construction at the site had been completed."[18] The Court therefore had to determine whether the completion of the construction project rendered the case moot.[19]

The Court answered that question in the negative.[20] The Court observed that the respondents had "filed a bond providing that, if the injunction action failed," the respondents would have to pay the petitioners "all such costs, damages, interest, and other sums as may be awarded and recovered against the [respondents] in any suit or suits which may be hereafter bro[u]ght for wrongfully suing out said Injunction."[21] Because the petitioners could therefore

November 1984 election in which appellees had first hoped to present their proposal to the citizens of Colorado is long past, we note that this action is not moot."); Storer v. Brown, 415 U.S. 724, 737 n.8 (1974) ("The 1972 election is long over, and no effective relief can be provided to the candidates or voters, but this case is not moot."); Rosario v. Rockefeller, 410 U.S. 752, 756 n.5 (1973) ("Although the June primary election has been completed and the petitioners will be eligible to vote in the next scheduled New York primary, this case is not moot."). As explained in greater detail below, see Exceptions to Mootness: Capable of Repetition, Yet Evading Review (discussing the "capable of repetition, yet evading review" exception to the mootness doctrine), if a case involving an election dispute implicates legal issues that may recur in the future, that case does not necessarily become moot once the challenged election ends. *See Norman*, 502 U.S. at 288 ("Even if the issue before us were limited to petitioners' eligibility to use the Party name on the 1990 ballot, that issue would be worthy of resolution as 'capable of repetition, yet evading review.'" (quoting Moore v. Ogilvie, 394 U.S. 814, 816 (1969))); *Meyer*, 486 U.S. at 417 n.2 ("It is reasonable to expect that the same controversy will recur between these two parties, yet evade meaningful judicial review."); *Storer*, 415 U.S. at 737 n.8 ("[T]he issues properly presented, and their effects on independent candidacies, will persist as the California statutes are applied in future elections. This is, therefore, a case where the controversy is 'capable of repetition, yet evading review.'"); *Rosario*, 410 U.S. at 756 n.5 ("Although the June primary election has been completed and the petitioners will be eligible to vote in the next scheduled New York primary, this case is not moot, since the question the petitioners raise is 'capable of repetition, yet evading review.'").

[11] *See* 159 U.S. at 651–58.

[12] *See, e.g.*, United States v. W.T. Grant Co., 345 U.S. 629, 632–33, 635 (1953) (analyzing mootness without mentioning Article III's case-or-controversy requirement).

[13] 375 U.S. 301 (1964).

[14] *See, e.g.*, Lucero v. Bureau of Collection Recovery, Inc., 639 F.3d 1239, 1242 (10th Cir. 2011) (describing *Liner* as "the first occasion in which the Supreme Court expressly derived its lack of jurisdiction to review moot cases from Article III"); N.J. Tpk. Auth. v. Jersey Cent. Power & Light, 772 F.2d 25, 31 n.11 (3d Cir. 1985) (explaining that "[t]he Supreme Court first explicitly relied on Article III" as the basis for the mootness doctrine in *Liner*, thereby "elevat[ing] . . . mootness doctrine to constitutional status").

[15] An injunction is "a court order commanding or preventing an action." *Injunction*, Black's Law Dictionary (10th ed. 2014).

[16] 375 U.S. at 302.

[17] *Id.* at 303–04.

[18] *Id.* at 303.

[19] *Id.* at 304.

[20] *See id.* at 304–09.

[21] *Id.* at 302–03.

potentially recover damages if "the injunction was wrongfully sued out,"[22] the Court determined that *Liner* was "not a case where th[e] Court's decision on the merits" would not "affect the rights of the litigants."[23] The Court accordingly concluded that the case was not moot because the petitioners retained "a substantial stake in the judgment" that existed "apart from and [wa]s unaffected by the completion of construction."[24]

In reaching this holding, the *Liner* Court expressly stated that the mootness doctrine "derives from the requirement of Article III of the Constitution under which the exercise of judicial power depends upon the existence of a case or controversy."[25] The Court's decision to characterize mootness as a constitutional doctrine had significant practical and doctrinal implications. As the Court would explain in other opinions following *Liner*, a federal court lacks jurisdiction to adjudicate a moot case even if all parties consent because moot cases do not constitute justiciable "cases or controversies" within the meaning of Article III.[26] Thus, the Constitution requires the federal courts to raise and decide issues of mootness even if the parties have not raised the issue themselves.[27] Likewise, because mootness is a constitutional limitation on the federal courts' jurisdiction, a court must also "address the question of mootness before reaching the merits" of the parties' claims.[28] Moreover, the constitutional status of the mootness doctrine entails that Congress may not statutorily authorize federal courts to adjudicate moot cases.[29]

ArtIII.S2.C1.8.3 Modern Mootness Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

[22] *Id.* at 305.

[23] *Id.* at 306.

[24] *Id.* at 305.

[25] *Id.* at 306 n.3.

[26] *See, e.g.*, Sosna v. Iowa, 419 U.S. 393, 397 (1975) ("While the parties may be permitted to waive nonjurisdictional defects, they may not by stipulation invoke the judicial power of the United States in litigation which does not present an actual 'case or controversy.'").

[27] *See, e.g.*, United States v. Juvenile Male, 564 U.S. 932, 933–34 (2011) (per curiam) (deeming case moot even though "[n]o party had raised any issue of mootness in the [court below], and the Court of Appeals did not address the issue *sua sponte*"); St. Paul Fire & Marine Ins. Co. v. Barry, 438 U.S. 531, 537 (1978) ("At the threshold, we confront a question of mootness. Although not raised by the parties, this issue implicates our jurisdiction."); Memphis Light, Gas & Water Div. v. Craft, 436 U.S. 1, 7–8 (1978) ("There is, at the outset, a question of mootness. Although the parties have not addressed this question in their briefs, 'they may not by stipulation invoke the judicial power of the United States in litigation which does not present an actual case or controversy.'") (quoting *Sosna*, 419 U.S. at 398); North Carolina v. Rice, 404 U.S. 244, 246 (1971) (per curiam) ("Although neither party has urged that this case is moot, resolution of the question is essential if federal courts are to function within their constitutional sphere of authority.").

[28] *E.g.*, *Sosna*, 419 U.S. at 397.

[29] *See, e.g.*, Houston v. Marod Supermarkets, Inc., 733 F.3d 1323, 1342 (11th Cir. 2013) ("Congress . . . may not bypass the Constitution's 'Case or Controversy' requirement."); Wilcox Elec., Inc. v. Fed. Aviation Admin., 119 F.3d 724, 727 (8th Cir. 1997) ("Congress may not, of course, change or undermine Article III.").

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Supreme Court has decided mootness issues in a wide array of contexts since the Supreme Court decided *Liner* in 1964.[1] As a result, the Court has developed a robust body of precedent governing when a case should (or should not) be dismissed as moot, as well as what procedures a federal court should follow after a case becomes moot.

ArtIII.S2.C1.8.4 General Criteria of Mootness

Article III, Section 2, Clause 1:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Under current law, "a case is moot when the issues presented are no longer 'live' or the parties lack a cognizable interest in the outcome."[1] "[A]n actual controversy must exist not only at the time the complaint is filed, but through all stages of the litigation."[2] Thus, "[i]f an

[1] *See, e.g.*, North Carolina v. Covington, 138 S. Ct. 2548, 2552–53 (2018) (per curiam) (electoral redistricting case); Kernan v. Cuero, 138 S. Ct. 4, 7 (2017) (habeas corpus case); FTC v. Phoebe Putney Health Sys., Inc., 568 U.S. 216, 224 n.3 (2013) (antitrust case); Lozman v. City of Riviera Beach, Fla., 568 U.S. 115, 120 (2013) (admiralty case); Pac. Bell Tel. Co. v. Linkline Commc'ns, Inc., 555 U.S. 438, 446 (2009) (antitrust case); Lopez v. Gonzales, 549 U.S. 47, 52 n.2 (2006) (immigration case); Tory v. Cochran, 544 U.S. 734, 736–37 (2005) (defamation case); Washington v. Harper, 494 U.S. 210, 218–19 (1990) (civil rights case); FDIC v. Mallen, 486 U.S. 230, 236 n.7 (1988) (banking law case); Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Found., Inc., 484 U.S. 49, 66 (1987) (environmental law case); INS v. Cardoza-Fonseca, 480 U.S. 421, 426 n.3 (1987) (immigration case); Bethel Sch. Dist. No. 403 v. Fraser, 478 U.S. 675, 686 n.* (1986) (free speech case); Lockhart v. McCree, 476 U.S. 162, 168 n.2 (1986) (habeas corpus case); Golden State Transit Corp. v. City of Los Angeles, 475 U.S. 608, 613 n.3 (1986) (labor law case); Ohio v. Kovacs, 469 U.S. 274, 277–78 (1985) (bankruptcy case); U.S. Dep't of Justice v. Provenzano, 469 U.S. 14, 14–16 (1984) (privacy law case); Firefighters Local Union No. 1784 v. Stotts, 467 U.S. 561, 568–72 (1984) (employment law case); Local No. 82, Furniture & Piano Moving, Furniture Store Drivers, Helpers, Warehousemen & Packers v. Crowley, 467 U.S. 526, 535 n.11 (1984) (labor law case); Consol. Rail Corp. v. Darrone, 465 U.S. 624, 630–31 (1984) (discrimination case); INS v. Phinpathya, 464 U.S. 183, 188 n.6 (1984) (immigration case); City of Los Angeles v. Lyons, 461 U.S. 96, 101 (1983) (civil rights case); Johnson v. Bd. of Educ. of City of Chi., 457 U.S. 52, 52–54 (1982) (per curiam) (discrimination case); Havens Realty Corp. v. Coleman, 455 U.S. 363, 370–71 (1982) (housing law case); Univ. of Tex. v. Camenisch, 451 U.S. 390, 391–98 (1981) (discrimination case); Vitek v. Jones, 445 U.S. 480, 486–87 (1980) (prison law case); Quern v. Mandley, 436 U.S. 725, 733 n.7 (1978) (public assistance law case); Stanton v. Stanton, 421 U.S. 7, 11 (1975) (family law case); Vill. of Belle Terre v. Boraas, 416 U.S. 1, 9–10 (1974) (zoning law case); Mancusi v. Stubbs, 408 U.S. 204, 205–07 (1972) (habeas corpus case); Socialist Labor Party v. Gilligan, 406 U.S. 583, 584, 589 (1972) (election law case); Roudebush v. Hartke, 405 U.S. 15, 18–19 (1972) (election law case); Whitcomb v. Chavis, 403 U.S. 124, 140–41 (1971) (legislative apportionment case).

[1] Cty. of Los Angeles v. Davis, 440 U.S. 625, 631 (1979) (quoting Powell v. McCormack, 395 U.S. 486, 498 (1969)). *See also, e.g.*, Chafin v. Chafin, 568 U.S. 165, 172 (2013) (same); City of Erie v. Pap's A.M., 529 U.S. 277, 287 (2000) (same).

[2] Kingdomware Techs., Inc. v. United States, 136 S. Ct. 1969, 1975 (2016) (quoting Already, LLC v. Nike, Inc., 568 U.S. 85, 90–91 (2013)). *See also, e.g.*, Decker v. Nw. Envtl. Def. Ctr., 568 U.S. 597, 609 (2013) ("It is a basic principle of Article III that a justiciable case or controversy must remain extant at all stages of review, not merely at the time the complaint is filed.") (quoting United States v. Juvenile Male, 564 U.S. 932, 936 (2011) (per curiam)); Lewis v. Cont'l Bank Corp., 494 U.S. 472, 477–78 (1990) ("To sustain our jurisdiction . . . it is not enough that a dispute was very much alive when suit was filed, or when review was obtained in the Court of Appeals."); Honig v. Doe, 484 U.S. 305, 317 (1988) ("That the dispute between parties was very much alive when suit was filed . . . cannot substitute for the actual case or controversy that an exercise of this Court's jurisdiction requires."); Burke v. Barnes, 479 U.S. 361, 363 (1987) ("Article III of the Constitution requires that there be a live case or controversy at the time that a federal court decides the case; it is not enough that there may have been a live case or controversy when the case was decided by the court whose judgment we are reviewing.").

intervening circumstance deprives the plaintiff of a 'personal stake in the outcome of the lawsuit[ ]' at any point during litigation, the action can no longer proceed and must be dismissed as moot."[3] "A case becomes moot only when it is impossible for a court to grant any effectual relief whatever to the prevailing party."[4] When (1) "it can be said with assurance that there is no reasonable expectation that the alleged violation will recur;" and (2) "interim relief or events have completely and irrevocably eradicated the effects of the alleged violation," then "the case is moot because neither party has a legally cognizable interest in the final determination of the underlying questions of fact and law."[5]

Significantly, however, a case does not necessarily become moot simply because intervening events make it impossible for a federal court to issue the *exact* form of relief that the plaintiff requests.[6] As long as the court retains the ability to "fashion *some* form of meaningful relief, "then that" is sufficient to prevent th[e] case from being moot."[7] To illustrate, "[i]f there is any chance of money changing hands" as a result of the lawsuit, then the "suit remains live."[8] Similarly, even if it is uncertain that the relief granted by the court will ultimately have any meaningful practical impact on the plaintiff, that does not itself render the case moot.[9]

Intervening circumstances that may render a case moot can result either from actions attributable to the litigants or from outside forces. For example, in the *City News & Novelty, Inc. v. City of Waukesha* case discussed in greater detail below, the Court ruled that an adult business's challenge to a municipality's decision to deny the business's license became moot after the business chose to cease operations while the case was pending on appeal.[10] A lawsuit predicated upon a federal statute may also become moot if Congress amends the statute while the suit remains pending.[11] A case may also become moot merely through the passage of time; for instance, the Court ruled in *Camreta v. Greene* that a child's constitutional challenge to an elementary school's methods of interviewing its students became moot after "the child [grew]

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[3] Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 161 (2016) (quoting Genesis Healthcare Corp. v. Symczyk, 569 U.S. 66, 72 (2013)). *See also* Calderon v. Moore, 518 U.S. 149, 150 (1996) (per curiam) ("[M]ootness can arise at any stage of litigation.").

[4] Knox v. Serv. Emps. Int'l Union, Local 1000, 567 U.S. 298, 307 (2012) (quoting *City of Erie*, 529 U.S. at 287) (internal quotation marks omitted). *See also, e.g.*, Mission Prod. Holdings, Inc. v. Tempnology, LLC, 139 S. Ct. 1652, 1660 (2019) (same); *Campbell-Ewald*, 577 U.S. at 161 (same); *Decker*, 568 U.S. at 609 (same); *Chafin*, 568 U.S. at 172 (same).

[5] *Cty. of Los Angeles*, 440 U.S. at 631. *See also, e.g.*, *City of Erie*, 529 U.S. at 287 (holding that a case becomes moot "when the challenged conduct ceases such that 'there is no reasonable expectation that the wrong will be repeated'") (quoting United States v. W.T. Grant Co., 345 U.S. 629, 633 (1953)).

[6] *See Chafin*, 568 U.S. at 177 ("Such relief would of course not be fully satisfactory, but with respect to the case as a whole, even the availability of a partial remedy is sufficient to prevent a case from being moot.") (quoting *Calderon*, 518 U.S. at 150) (brackets and internal quotation marks omitted); Church of Scientology of Cal. v. United States, 506 U.S. 9, 12–13 (1992) ("While a court may not be able to return the parties to the status quo ante . . . a court can fashion some form of meaningful relief in circumstances such as these . . . The availability of this possible remedy is sufficient to prevent this case from being moot.").

[7] *Church of Scientology*, 506 U.S. at 12–13. *See also, e.g.*, *Chafin*, 568 U.S. at 177 ("[E]ven the availability of a partial remedy is sufficient to prevent a case from being moot.") (quoting *Calderon*, 518 U.S. at 150) (brackets and internal quotation marks omitted).

[8] *Mission Prod. Holdings*, 139 S. Ct. at 1660.

[9] *See Chafin*, 568 U.S. at 175 ("Enforcement of the order may be uncertain if Ms. Chafin chooses to defy it, but such uncertainty does not typically render cases moot. Courts often adjudicate disputes where the practical impact of any decision is not assured.").

[10] *See* 531 U.S. 278, 281–84 (2001).

[11] Lewis v. Cont'l Bank Corp., 494 U.S. 472, 474 (1990) ("We conclude that the case has been rendered moot by 1987 amendments to the Bank Holding Company Act.").

up and moved across the country" and thus would "never again be subject to the . . . in-school interviewing practices whose constitutionality [wa]s at issue."[12]

The Court's 1974 opinion in *DeFunis v. Odegaard* illustrates how the aforementioned legal principles apply in practice.[13] The petitioner in *DeFunis* applied for admission at a public law school.[14] After the school rejected his application, the petitioner filed suit, "contending that the procedures and criteria employed by the Law School Admissions Committee invidiously discriminated against him on account of his race."[15] The trial court agreed and ordered the law school to admit the petitioner.[16] The petitioner accordingly started taking classes at the law school while the case was on appeal.[17] By the time the case reached the Supreme Court, the petitioner had almost completed his law degree,[18] such that the petitioner stood to "receive his diploma regardless of any decision th[e] Court might reach on the merits of [h]is case."[19] Because the petitioner would "complete his law school studies at the end of the term . . . regardless of any decision th[e] Court might reach on the merits," the Court concluded that the case was moot.[20]

Because federal courts lack jurisdiction to adjudicate moot cases, a federal court can—and indeed must—dismiss a moot case even if none of the parties ask the court to do so.[21] Moreover, because mootness deprives the courts of jurisdiction to hear a case, the Supreme Court has stated that litigants have "a 'continuing duty to inform the Court'" of intervening events that could potentially render a case moot.[22] "The usual rule in federal cases is that an actual controversy must exist at stages of appellate or certiorari review, and not simply at the date the action is initiated."[23] As a result, a party may raise a mootness challenge at any time during the litigation, including for the first time on appeal.[24] "[A]n appeal should therefore be dismissed as moot when, by virtue of an intervening event, a court of appeals cannot grant 'any

[12] 563 U.S. 692, 698 (2011).

[13] 416 U.S. 312 (1974) (per curiam).

[14] *Id.* at 314.

[15] *Id. See also* Amdt14.S1.8.4.1 Early Doctrine on Appropriate Scrutiny and Amdt14.S1.8.4.2 Modern Doctrine on Appropriate Scrutiny (discussing constitutional challenges to educational admissions practices that allegedly discriminate on the basis of race).

[16] *Id.* at 314–15.

[17] *Id.* at 315.

[18] *See id.*

[19] *Id.* at 317.

[20] *Id.* at 319–20.

[21] *See, e.g.*, United States v. Juvenile Male, 564 U.S. 932, 933–34 (2011) (per curiam) (deeming case moot even though "[n]o party had raised any issue of mootness in the [court below], and the Court of Appeals did not address the issue *sua sponte*"); St. Paul Fire & Marine Ins. Co. v. Barry, 438 U.S. 531, 537 (1978) ("At the threshold, we confront a question of mootness. Although not raised by the parties, this issue implicates our jurisdiction."); Memphis Light, Gas & Water Div. v. Craft, 436 U.S. 1, 7–8 (1978) ("There is, at the outset, a question of mootness. Although the parties have not addressed this question in their briefs, 'they may not by stipulation invoke the judicial power of the United States in litigation which does not present an actual case or controversy.'") (quoting Sosna v. Iowa, 419 U.S. 393, 398 (1975)); North Carolina v. Rice, 404 U.S. 244, 246 (1971) (per curiam) ("Although neither party has urged that this case is moot, resolution of the question is essential if federal courts are to function within their constitutional sphere of authority.").

[22] Bd. of License Comm'rs of Town of Tiverton v. Pastore, 469 U.S. 238, 240 (1985) (per curiam) (quoting Fusari v. Steinberg, 419 U.S. 379, 391 (1975) (Burger, C.J., concurring)). *See also* City of Erie v. Pap's A.M., 529 U.S. 277, 288 (2000) (chastising litigant for its "failure, despite its obligation to the Court, to mention a word about the potential mootness issue in its brief in opposition to the petition for writ of certiorari").

[23] *E.g.*, Roe v. Wade, 410 U.S. 113, 125 (1973).

[24] *E.g.*, DBSI/TRI IV Ltd. P'ship v. United States, 465 F.3d 1031, 1038 (9th Cir. 2006) (explaining that mootness is a "jurisdictional issue[ ] that may be raised at any time, even for the first time on appeal"); Cont'l Cas. Co. v. Anderson Excavating & Wrecking Co., 189 F.3d 512, 518 (7th Cir. 1999) ("A case can become moot at any time, and destroy the court's jurisdiction."); Smith v. United States, 921 F.2d 136, 138 (8th Cir. 1990) ("Mootness goes to the very heart of Article III jurisdiction, and any party can raise it at any time.").

effectual relief whatever' in favor of the appellant."[25] "If a party to an appeal suggests that the controversy has, since the rendering of judgment below, become moot, that party bears the burden of coming forward with subsequent events that have produced that alleged result."[26]

The Supreme Court has developed several doctrines that govern how courts should dispose of cases that become moot during the pendency of an appeal.[27] When reviewing a lower court's judgment, an appellate court has several potential options for resolving the case: it may affirm—that is, approve—the judgment;[28] it may reverse—that is, overturn—the judgment;[29] it may vacate the judgment—that is, nullify the judgment[30] and thereby "strip[ ] the decision below of its binding effect;"[31] or it may remand the case to the lower court for further proceedings.[32] As the Court explained in its 1950 opinion in *United States v. Munsingwear, Inc.*, "[t]he established practice of the Court in dealing with a civil case from a court in the federal system which has become moot" on appeal or before the Court has issued its "decision on the merits is to reverse or vacate the judgment below and remand with a direction to dismiss."[33] Disposing of a moot case in this manner thereby "clears the path for future relitigation of the issues between the parties and eliminates a judgment, review of which was prevented through happenstance."[34] Put another way, the *Munsingwear* procedure for disposing of cases that become moot on appeal "prevent[s] a judgment, unreviewable because of mootness, from spawning any legal consequences," and thereby ensures that the federal appellate courts, rather than individual litigants, have the last word on the answers to legal questions.[35]

The Supreme Court has noted, however, "the decision whether to vacate" a moot case pursuant to *Munsingwear* "turns on 'the conditions and circumstances of the particular case.'"[36] To that end, the Supreme Court has crafted several exceptions to the *Munsingwear*

[25] Calderon v. Moore, 518 U.S. 149, 150 (1996) (per curiam) (quoting Mills v. Green, 159 U.S. 651, 653 (1895)). *See also, e.g.*, Church of Scientology of Cal. v. United States, 506 U.S. 9, 12 (1992) ("[I]f an event occurs while a case is pending on appeal that makes it impossible for the court to grant 'any effectual relief whatever' to a prevailing party, the appeal must be dismissed.") (quoting *Mills*, 159 U.S. at 653).

[26] Cardinal Chem. Co. v. Morton Int'l, Inc., 508 U.S. 83, 98 (1993).

[27] *See, e.g.*, Grupo Mexicano de Desarrollo, S.A. v. All. Bond Fund, Inc., 527 U.S. 308, 314 (1999) ("Generally, an appeal from the grant of a preliminary injunction becomes moot when the trial court enters a permanent injunction, because the former merges into the latter. We have dismissed appeals in such circumstances.").

[28] Black's Law Dictionary (10th ed. 2014).

[29] *Id.*

[30] *Id.*

[31] Deakins v. Monaghan, 484 U.S. 193, 200 (1988).

[32] Black's Law Dictionary (10th ed. 2014).

[33] United States v. Munsingwear, Inc., 340 U.S. 36, 39 (1950). *See also, e.g.*, Azar v. Garza, 138 S. Ct. 1790, 1793 (2018) (per curiam) (vacating and remanding a moot case for dismissal in the manner contemplated by *Munsingwear*); United States v. Sanchez-Gomez, 138 S. Ct. 1532, 1542 (2018) (same); United States v. Microsoft Corp., 138 S. Ct. 1186, 1188 (2018) (per curiam) (same); Camreta v. Greene, 563 U.S. 692, 712–14 (2011) (same); Arizonans for Official English v. Arizona, 520 U.S. 43, 80 (1997) (same); Frank v. Minn. Newspaper Ass'n, Inc., 490 U.S. 225, 227 (1989) (per curiam) (same); Burke v. Barnes, 479 U.S. 361, 363 (1987) (same); Iron Arrow Honor Soc'y v. Heckler, 464 U.S. 67, 73 (1983) (per curiam) (same); Great W. Sugar Co. v. Nelson, 442 U.S. 92, 92–94 & n.* (1979) (per curiam) (same); Cty. of Los Angeles v. Davis, 440 U.S. 625, 634 (1979) (same); Weinstein v. Bradford, 423 U.S. 147, 148–49 (1975) (per curiam) (same); Preiser v. Newkirk, 422 U.S. 395, 403–04 (1975) (same); Bd. of Sch. Comm'rs of City of Indianapolis v. Jacobs, 420 U.S. 128, 130 (1975) (per curiam) (same). *See also, e.g.*, Alvarez v. Smith, 558 U.S. 87, 94–97 (2009) (analyzing the *Munsingwear* rule); U.S. Bancorp Mortg. Co. v. Bonner Mall P'ship, 513 U.S. 18, 22 (1994) (describing Munsingwear as "[t]he leading case on vacatur"); Great W. Sugar Co. v. Nelson, 442 U.S. 92, 93 n.* (1979) (per curiam) ("*United States v. Munsingwear, Inc.*, is perhaps the leading case on the proper disposition of cases that become moot on appeal.").

[34] *Munsingwear*, 340 U.S. at 40.

[35] *See id.* at 41.

[36] *Azar*, 138 S. Ct. at 1792 (quoting United States v. Hamburg-Amerikanische Packetfahrt-Actien Gesellschaft, 239 U.S. 466, 478 (1916)).

rule.[37] For one, the Supreme Court has specified that "vacatur is in order" under *Munsingwear* only when mootness occurs through "happenstance"—that is, "circumstances not attributable to the parties"—or "the 'unilateral action of the party who prevailed in the lower court.'"[38] Thus, if a case becomes moot as a result of the parties' mutual agreement to settle the case, the Court has held that federal courts should generally not vacate the judgment.[39] The Court has justified this exception by explaining that "where mootness results from settlement . . . the losing party has voluntarily forfeited his legal remedy by the ordinary processes of appeal or certiorari, thereby surrendering his claim to the . . . remedy of vacatur."[40] Such cases are therefore "not unreviewable, but simply unreviewed" as a result of the losing party's "own choice."[41] Likewise, the Court has ruled that it is inappropriate to "clear[ ] the path for future relitigation of the issues between the parties"[42] when the plaintiff renders the case moot by voluntarily agreeing to permanently withdraw its claims against the defendant.[43] In such instances, rather than wiping the slate clean in the manner contemplated by *Munsingwear*, the Court has ordered that the case be dismissed with prejudice to refiling so that "it cannot be resumed in this or any subsequent action."[44] Dismissing the case with prejudice thereby "prevent[s] the regeneration of the controversy" if the plaintiff later changes its mind and attempts to relitigate the dismissed claims in federal court.[45]

Nor does the Court follow its usual practice of vacating the judgment with directions to dismiss when a case has become moot due to an intervening change in the governing law.[46] Instead, the Court ordinarily "remand[s] for further proceedings in which the parties may, if necessary, amend their pleadings or develop the record more fully" to respond to the intervening change in law.[47] For instance, in *Diffenderfer v. Central Baptist Church of Miami,*

[37] *See, e.g.*, *Camreta*, 563 U.S. at 712 (explaining that, although the *Munsingwear* rule provides the "established" practice for resolving a civil case that "becomes moot pending appeal," the *Munsingwear* doctrine is "not exceptionless").

[38] *Arizonans for Official English*, 520 U.S. at 71–72 (quoting *U.S. Bancorp*, 513 U.S. at 23). *See also Azar*, 138 S. Ct. at 1792 ("One clear example where vacatur is in order is when mootness occurs through the unilateral action of the party who prevailed in the lower court.") (brackets and internal citations quotation marks omitted); Karcher v. May, 484 U.S. 72, 83 (1987) ("Th[e] controversy did not become moot due to circumstances unattributable to any of the parties. The controversy ended when the losing party . . . declined to pursue its appeal. Accordingly, the *Munsingwear* procedure is inapplicable to this case.").

[39] *U.S. Bancorp*, 513 U.S. at 29. *See also, e.g.*, Alvarez v. Smith, 558 U.S. 87, 94–97 (2009) (analyzing the interplay between *Munsingwear* and *U.S. Bancorp*).

[40] *U.S. Bancorp*, 513 U.S. at 25.

[41] *Id.*

[42] *See Munsingwear*, 340 U.S. at 40.

[43] *See* Webster v. Reprod. Health Servs., 492 U.S. 490, 513 (1989); Deakins v. Monaghan, 484 U.S. 193, 199–200 (1988).

[44] *Deakins*, 484 U.S. at 200 n.4. *See also Webster*, 492 U.S. at 513 ("Because this dispute was rendered moot in part by appellees' willingness permanently to withdraw their equitable claims from their federal action, a dismissal with prejudice is indicated.") (quoting *Deakins*, 484 U.S. at 200) (brackets omitted).

[45] *Deakins*, 484 U.S. at 200.

[46] *E.g.*, Lewis v. Cont'l Bank Corp., 494 U.S. 472, 482 (1990) ("Our ordinary practice in disposing of a case that has become moot on appeal is to vacate the judgment with directions to dismiss. However, in instances where the mootness is attributable to a change in the legal framework governing the case, and where the plaintiff may have some residual claim under the new framework that was understandably not asserted previously, our practice is to vacate the judgment and remand for further proceedings in which the parties may, if necessary, amend their pleadings or develop the record more fully.") (internal citations omitted).

[47] *Id. See also* U.S. Dep't of Treasury, Bureau of Alcohol, Tobacco & Firearms v. Galioto, 477 U.S. 556, 559–60 (1986) (remanding case for further proceedings following amendment of statutory provision at issue); Crowell v. Mader, 444 U.S. 505, 505–06 (1980) ("Appellees may still wish to attack the newly enacted legislation . . . [W]e direct that the judgment of the District Court be vacated without prejudice to such further proceedings in the District Court as may be appropriate.").

Florida, Inc., the plaintiff challenged a Florida statute as unconstitutional.[48] While the litigation was pending, however, the Florida legislature repealed the challenged statute and enacted a new statute in its place.[49] "[R]ather than remanding the case to the District Court for dismissal" in the manner contemplated by *Munsingwear*, the Supreme Court "remand[ed] the case to the District Court with leave to the appellants to amend their pleadings."[50] Resolving the case in this way thereby afforded the appellants an opportunity "to demonstrate that the repealed statute retain[ed] some continuing force or to attack the newly enacted legislation."[51]

Finally, "[t]he Court's treatment of cases that become moot on review from the lower federal courts" differs from its treatment of moot cases arising from state courts.[52] The Court's "regular practice in the latter situation has been to dismiss the case and leave the judgment of the state court undisturbed," rather than to vacate the judgment in the manner contemplated by *Munsingwear*.[53] According to the Court, allowing state court judgments in moot cases to stand "evinces a proper recognition that in the absence of any live case or controversy, [the Court] lack[s] jurisdiction and thus also the power to disturb the state court's judgment."[54]

ArtIII.S2.C1.8.5 Exceptions to Mootness Generally

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Significantly, the Court has recognized several exceptions to the general mootness principles discussed above. These exceptions are known as the "voluntary cessation" doctrine[1] and the "capable of repetition, yet evading review" exception.[2] The Court has also developed special mootness principles that govern criminal cases[3] and class action cases.[4]

ArtIII.S2.C1.8.6 Voluntary Cessation Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and*

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[48] 404 U.S. 412, 412–14 (1972) (per curiam).

[49] *Id.* at 414.

[50] *Id.* at 415.

[51] *Id.*

[52] ASARCO Inc. v. Kadish, 490 U.S. 605, 621 n.1 (1989).

[53] *Id.* (citing Kan. Gas & Elec. Co. v. State Corp. Comm'n of Kan., 481 U.S. 1044 (1987); Times-Picayune Publ'g Corp. v. Schulingkamp, 420 U.S. 985 (1975)).

[54] *Id.*

[1] *See* ArtIII.S2.C1.8.6 Voluntary Cessation Doctrine.

[2] *See* ArtIII.S2.C1.8.7 Capable of Repetition, Yet Evading Review.

[3] *See* ArtIII.S2.C1.8.8 Criminal Cases and Mootness.

[4] *See* ArtIII.S2.C1.8.9 Class Action Litigation and Mootness.

Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

First, the Supreme Court has held that a party's voluntary cessation of an unlawful practice will usually not moot its opponent's challenge to that practice.[1] Thus, "a defendant cannot automatically moot a case by simply ending its unlawful conduct once sued."[2] This exception to the mootness doctrine exists because if a litigant could defeat a lawsuit simply by temporarily ceasing its unlawful activities, there would be nothing to stop that litigant from engaging in that unlawful behavior again after the court dismissed the case[3]; the litigant would effectively "be free to return to [its] old ways."[4]

The 1982 case of *City of Mesquite v. Aladdin's Castle, Inc.* illustrates how this "voluntary cessation" doctrine applies in practice.[5] The plaintiff in *City of Mesquite* challenged the constitutionality of a municipal ordinance.[6] While the case was pending, however, the city repealed the offending provisions of the ordinance.[7] The Court, explaining that "a defendant's voluntary cessation of a challenged practice does not deprive a federal court of its power to determine the legality of the practice," concluded that the city's revision of the ordinance did not render the plaintiff's challenge moot.[8] Because "the city's repeal of the objectionable language" in the ordinance "would not preclude it from reenacting precisely the same provision" if the case were dismissed on mootness grounds, the Court concluded that it needed to "confront the merits of the" plaintiff's constitutional challenge.[9]

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[1] *See, e.g.*, United States v. Sanchez-Gomez, 138 S. Ct. 1532, 1537 n.* (2018); Trinity Lutheran Church of Columbia, Inc. v. Comer, 137 S. Ct. 2012, 2019 n.1 (2017); Knox v. Serv. Emps. Int'l Union, Local 1000, 567 U.S. 298, 307 (2012); Buckhannon Bd. & Care Home, Inc. v. W. Va. Dep't of Health & Human Res., 532 U.S. 598, 609 (2001); City of Erie v. Pap's A.M., 529 U.S. 277, 287–89 (2000); Friends of the Earth, Inc. v. Laidlaw Envtl. Servs. (TOC), Inc., 528 U.S. 167, 189 (2000); Ne. Fla. Chapter of Associated Gen. Contractors of Am. v. City of Jacksonville, Fla., 508 U.S. 656, 662 (1993); Chi. Teachers Union, Local No. 1, AFT, AFL-CIO v. Hudson, 475 U.S. 292, 305 n.14 (1986); United States v. Generix Drug Corp., 460 U.S. 453, 456 n.6 (1983); City of Mesquite v. Aladdin's Castle, Inc., 455 U.S. 283, 289 (1982); Cty. of Los Angeles v. Davis, 440 U.S. 625, 631 (1979); Allee v. Medrano, 416 U.S. 802, 810 (1974).

[2] Already, LLC v. Nike, Inc., 568 U.S. 85, 91 (2013).

[3] *See id.* (explaining that, in the absence of the voluntary cessation doctrine, "a defendant could engage in unlawful conduct, stop when sued to have the case declared moot, then pick up where he left off, repeating this cycle until he achieves all his unlawful ends"); *Knox*, 567 U.S. at 307 ("[A] dismissal for mootness would permit a resumption of the challenged conduct as soon as the case is dismissed."); City News & Novelty, Inc. v. City of Waukesha, 531 U.S. 278, 284 n.1 (2001) ("[A] party should not be able to evade judicial review, or to defeat a judgment, by temporarily altering questionable behavior."); *City of Mesquite*, 455 U.S. at 289 ("In this case the city's repeal of the objectionable language would not preclude it from reenacting precisely the same provision if the District Court's judgment were vacated."); United States v. Trans-Mo. Freight Ass'n, 166 U.S. 290, 309 (1897) ("If the mere dissolution of the association worked an abatement of the suit as to all the defendants . . . it is plain that they have thus discovered an effectual means to prevent the judgment of this court being given upon the question really involved in the case. The defendants having succeeded in the court below, it would only be necessary thereafter to dissolve their association and instantly form another of a similar kind, and the fact of the dissolution would prevent an appeal to this court or procure its dismissal if taken. This result does not and ought not to follow.").

[4] *Allee*, 416 U.S. at 811 (quoting Gray v. Sanders, 372 U.S. 368, 376 (1963)). *See also, e.g.*, *Friends of the Earth*, 528 U.S. at 189 (same).

[5] 455 U.S. 283.

[6] *Id.* at 284–86.

[7] *Id.* at 288.

[8] *Id.* at 288–89.

[9] *Id.* at 289. The Court subsequently elaborated that "*City of Mesquite* does not stand for the proposition that it is only the possibility that the *selfsame* statute will be enacted that prevents a case from being moot; if that were the rule, a defendant could moot a case by repealing the challenged statute and replacing it with one that differs only in some insignificant respect." Ne. Fla. Chapter of Associated Gen. Contractors of Am. v. City of Jacksonville, Fla., 508 U.S. 656,

ArtIII.S2.C1.8.6
Voluntary Cessation Doctrine

The *DeFunis v. Odegaard* case discussed above, by contrast, exemplifies when the voluntary cessation doctrine will *not* save a case from dismissal.[10] To reiterate, the petitioner in *DeFunis* claimed that certain law school admissions practices and criteria discriminated against him on the basis of race.[11] While the case was pending, however, the petitioner began taking classes at the law school, and had almost completed his law degree by the time the case reached the Supreme Court.[12] The Court rejected the petitioner's argument that the voluntary cessation doctrine rendered the case justiciable because the case's mootness had "partially stem[med] from a policy decision on the part of the respondent Law School authorities" to allow the petitioner to complete his law school studies and receive his diploma.[13] The Court emphasized that the respondents had not voluntarily ceased the allegedly discriminatory admissions practices that the petitioner challenged as unconstitutional; instead, the case became moot because the petitioner was just a few credits shy of completing his degree.[14] In other words, the case was moot not because the school stopped engaging in allegedly unlawful activity, but rather because the petitioner would "receive his diploma regardless of any decision th[e] Court might reach on the merits of th[e] case."[15]

The Court has clarified several other aspects of the voluntary cessation doctrine. For one, if it is "absolutely clear" that the allegedly wrongful behavior will not recur after the court dismisses the case, then a case can become moot notwithstanding a party's voluntary cessation of that unlawful behavior.[16] "The 'heavy burden of persua[ding]' the court that the challenged conduct cannot reasonably be expected to start up again lies with the party asserting mootness."[17] To illustrate, in *Preiser v. Newkirk*, a prisoner claimed that prison officials had unlawfully transferred him from a medium security institution to a more restrictive maximum security institution, and asked the court to order his return to the medium security prison.[18] While the case was pending, however, officials transferred the prisoner back to the medium security institution, and then subsequently transferred him to an even less restrictive minimum security institution.[19] According to the Court, these subsequent developments made it "clear that correction authorities harbor[ed] no animosity toward" the plaintiff, such that there was "no reasonable expectation that the wrong" challenged by the prisoner would "be

662 (1993). *But see* Princeton Univ. v. Schmid, 455 U.S. 100, 103 (1982) (per curiam) (deeming case moot, without explicitly mentioning the voluntary cessation doctrine, where intervening party "substantially amended its regulations" "while the case was pending on appeal").

[10] *See* 416 U.S. 312, 318 (1974) (per curiam).

[11] *Id.* at 314–15.

[12] *Id.* at 315–17.

[13] *Id.* at 317.

[14] *See id.* at 318.

[15] *Id.* at 317.

[16] Trinity Lutheran Church of Columbia, Inc. v. Comer, 137 S. Ct. 2012, 2019 n.1 (2017) (quoting Friends of the Earth, Inc. v. Laidlaw Envtl. Servs. (TOC), Inc., 528 U.S. 167, 189 (2000)). *See also, e.g.*, Adarand Constructors, Inc. v. Slater, 528 U.S. 216, 222 (2000) (per curiam) ("Voluntary cessation of challenged conduct moots a case, however, only if it is '*absolutely* clear that the allegedly wrongful behavior could not reasonably be expected to recur.'") (quoting United States v. Concentrated Phosphate Export Ass'n, 393 U.S. 199, 203 (1968)).

[17] *Friends of the Earth*, 528 U.S. at 189 (quoting Concentrated Phosphate Export Ass'n, 393 U.S. at 203). *See also, e.g.*, *Trinity Lutheran Church*, 137 S. Ct. at 2019 n.1; *Adarand Constructors*, 528 U.S. at 222. *See also* Already, LLC v. Nike, Inc., 568 U.S. 85, 91 (2013) (explaining that a party's burden to avoid the voluntary cessation doctrine is "formidable").

[18] 422 U.S. 395, 396–98 (1975).

[19] *Id.* at 401.

repeated.'"[20] The Court therefore deemed the case nonjusticiable even though the prison officials themselves had rendered the case moot by transferring the prisoner to a less restrictive institution.[21]

Additionally, the voluntary cessation doctrine typically applies only when a *party to the case* voluntarily discontinues an allegedly unlawful action. If, instead, a case becomes moot because "of the voluntary acts of a *third party non-defendant,*" the voluntary cessation doctrine will usually not save that case from dismissal.[22] For instance, in *Iron Arrow Honor Society v. Heckler*, the Secretary of the Department of Health, Education, and Welfare (Secretary) promulgated a regulation barring recipients of federal funding from "providing significant assistance to any . . . organization . . . which discriminates on the basis of sex."[23] The petitioner, an all-male honorary organization at a public university, commenced a lawsuit seeking to prevent the Secretary from interpreting that regulation in a manner that would require the university to ban the organization from conducting activities on campus so long as it continued to exclude women.[24] While the lawsuit was pending, however, the university determined that no matter whether the Secretary's regulation required the university to ban the organization, the university's own non-discrimination code independently barred the organization from operating on campus until it discontinued its male-only membership policy.[25] Because no judicial ruling with respect to the *Secretary's* interpretation of the *regulation* would have any effect on the *university's* independent decision to ban the organization pursuant to its own *non-discrimination policy*, the Court concluded that "the dispute as to how the [r]egulation should be interpreted" was "classically 'moot.'"[26] The Court concluded that the voluntary cessation doctrine did not save the case from dismissal, as it was "the voluntary acts of a third party non-defendant"—namely, the university—that rendered the case moot, rather than the voluntary acts of the Secretary herself.[27]

Similarly, the voluntary cessation doctrine will not save a case from dismissal when it is the *losing* party, rather than the prevailing party, whose voluntary actions render the case moot during the pendency of an appeal.[28] Thus, in *City News & Novelty, Inc. v. City of Waukesha*, a retailer of sexually explicit materials challenged a municipality's decision to deny its adult business license.[29] After the lower courts ruled *against* the retailer, the retailer asked the Supreme Court to review the judgment in the municipality's favor.[30] While the appeal was pending, however, the retailer opted to close its business.[31] The Court determined that the retailer's decision to cease operations had rendered the case moot because the retailer no

[20] *Id.* at 402 (quoting Concentrated Phosphate Export Ass'n, 393 U.S. at 203); United States v. W. T. Grant Co., 345 U.S. 629, 633 (1953)).

[21] *Id.* ("We have before us more than a mere voluntary cessation of allegedly illegal conduct, where we would leave the defendant free to return to his old ways.") (ellipses, brackets, and internal quotation marks omitted).

[22] Iron Arrow Honor Soc'y v. Heckler, 464 U.S. 67, 72 (1983) (per curiam) (emphasis added). *See also* Deakins v. Monaghan, 484 U.S. 193, 200 n.4 (1988) ("The Court's ability to prevent respondents from renewing their claims after they are dismissed as moot distinguishes this case from one in which a *defendant* attempts to avoid appellate review by voluntarily ceasing the challenged conduct without losing the ability to reinitiate the conduct once the mooted case is dismissed.").

[23] *Iron Arrow*, 464 U.S. at 68 (quoting 45 C.F.R. § 86.31(b)(7) (1975)) (emphasis omitted).

[24] *Id.* at 69.

[25] *Id.* at 69–70.

[26] *Id.* at 70–71.

[27] *Id.* at 72.

[28] City News & Novelty, Inc. v. City of Waukesha, 531 U.S. 278, 284 (2001).

[29] *Id.* at 281–82.

[30] *Id.* at 282.

[31] *Id.* at 282–83.

longer had any cognizable interest in the outcome of the case.[32] Even though the circumstance rendering the case moot was the retailer's voluntary decision to close its business, the Court nonetheless concluded that the voluntary cessation doctrine did not render the case justiciable.[33] The Court emphasized that because the lower courts had ruled against the retailer, the retailer "left the fray as a loser, not a winner."[34] The Court reasoned that the retailer's voluntary cessation of its business therefore did "not keep [its opponent] under the weight of an adverse judgment" or "reward an arguable manipulation of [the Court's] jurisdiction."[35]

ArtIII.S2.C1.8.7 Capable of Repetition, Yet Evading Review

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has generally declined to deem cases moot that present issues or disputes that are "capable of repetition, yet evading review."[1] This exception to the mootness doctrine applies "only in exceptional situations"[2] in which (1) "the challenged action is in its duration too short to be fully litigated prior to cessation or expiration;" and (2) "there is a reasonable expectation that the same complaining party will be subject to the same action

[32] *Id.* at 283–85.

[33] *Id.* at 283–84.

[34] *Id.* at 284.

[35] *Id.*

[1] *See, e.g.*, Kingdomware Techs., Inc. v. United States, 136 S. Ct. 1969, 1976 (2016); Turner v. Rogers, 564 U.S. 431, 439–41 (2011); Davis v. FEC, 554 U.S. 724, 735–36 (2008); FEC v. Wis. Right to Life, Inc., 551 U.S. 449, 462 (2007); Norman v. Reed, 502 U.S. 279, 287–88 (1992); Int'l Org. of Masters, Mates & Pilots v. Brown, 498 U.S. 466, 473 (1991); Meyer v. Grant, 486 U.S. 414, 417 n.2 (1988); Honig v. Doe, 484 U.S. 305, 317–23 (1988); Burlington N. R.R. v. Bhd. of Maint. of Way Emps., 481 U.S. 429, 436 n.4 (1987); Brock v. Roadway Express, Inc., 481 U.S. 252, 257–58 (1987); Cal. Coastal Comm'n v. Granite Rock Co., 480 U.S. 572, 577–78 (1987); Press-Enter. Co. v. Super. Ct. of Cal. for Cty. of Riverside, 478 U.S. 1, 6 (1986); Globe Newspaper Co. v. Super. Ct. for Cty. of Norfolk, 457 U.S. 596, 603 (1982); Democratic Party of U.S. v. Wisconsin *ex rel.* La Follette, 450 U.S. 107, 115 n.13 (1981); Gannett Co. v. DePasquale, 443 U.S. 368, 377 (1979); Bell v. Wolfish, 441 U.S. 520, 526 n.5 (1979); First Nat'l Bank of Bos. v. Bellotti, 435 U.S. 765, 774 (1978); United States v. N.Y. Tel. Co., 434 U.S. 159, 165 n.6 (1977); Neb. Press Ass'n v. Stuart, 427 U.S. 539, 546–47 (1976); Gerstein v. Pugh, 420 U.S. 103, 110 n.11 (1975); Super Tire Eng'g Co. v. McCorkle, 416 U.S. 115, 125–27 (1974); Storer v. Brown, 415 U.S. 724, 737 n.8 (1974); Dunn v. Blumstein, 405 U.S. 330, 333 n.2 (1972); S. Pac. Terminal Co. v. ICC, 219 U.S. 498, 514–16 (1911). *But see, e.g.*, United States v. Sanchez-Gomez, 138 S. Ct. 1532, 1540–42 (2018) (rejecting litigants' argument that defendants' allegedly unlawful practice was capable of repetition yet evading review); Alvarez v. Smith, 558 U.S. 87, 93–94 (2009) (same); Spencer v. Kemna, 523 U.S. 1, 17–18 (1998) (same); Lewis v. Cont'l Bank Corp., 494 U.S. 472, 481–82 (1990) (same); Lane v. Williams, 455 U.S. 624, 633–34 (1982) (same); Ill. State Bd. of Elections v. Socialist Workers Party, 440 U.S. 173, 187 (1979) (same); Kremens v. Bartley, 431 U.S. 119, 133 (1977) (same); Weinstein v. Bradford, 423 U.S. 147, 148–49 (1975) (per curiam) (same); Preiser v. Newkirk, 422 U.S. 395, 403 (1975) (same); Diffenderfer v. Cent. Baptist Church of Miami, Fla., Inc., 404 U.S. 412, 414 (1972) (per curiam) (same).

[2] *Kingdomware Techs.*, 136 S. Ct. at 1976 (quoting *Spencer*, 523 U.S. at 17).

again."[3] According to the Court, if this exception to mootness did not exist, then certain types of time-sensitive controversies would become effectively unreviewable by the courts.[4]

The classic example of a dispute that is "capable of repetition, yet evading review" is a pregnant woman's constitutional challenge to an abortion regulation.[5] Once a woman gives birth, abortion is no longer an option for terminating that particular pregnancy. However, litigation of national political significance can rarely be fully resolved in a mere nine months; "the normal 266-day human gestation period is so short that [a] pregnancy will come to term before" the parties and the court could realistically litigate a constitutional challenge to an abortion statute to its conclusion.[6] Thus, if a challenge to an abortion regulation became moot as soon as the challenger gave birth, "pregnancy litigation seldom w[ould] survive much beyond the trial stage, and appellate review w[ould] be effectively denied."[7] Because the Supreme Court has decided that "[o]ur law should not be that rigid," the Court ruled in its 1973 opinion in *Roe v. Wade* that "[p]regnancy provides a classic justification for a conclusion of nonmootness."[8] The *Roe* Court reasoned that, because "[p]regnancy often comes more than once to the same woman, and . . . if man is to survive, it will always be with us," challenges to the constitutionality of abortion statutes usually will not become moot at the conclusion of an individual challenger's pregnancy.[9]

The Court has deemed certain controversies "capable of repetition, yet evading review" outside the abortion context as well.[10] For example, in *Federal Election Commission v. Wisconsin Right to Life, Inc.*, an advocacy organization claimed that restrictions on "electioneering communications" established by the Bipartisan Campaign Reform Act of 2002 unconstitutionally prohibited the organization from broadcasting certain political advertisements shortly before the 2004 election.[11] Even though the case did not reach the Supreme Court until long after the 2004 election had passed, the Court nonetheless concluded that the case was not moot.[12] The Court reasoned that the organization "credibly claimed that it planned on running 'materially similar' future targeted broadcast ads" in advance of future

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[3] United States v. Juvenile Male, 564 U.S. 932, 938 (2011) (per curiam) (quoting *Spencer*, 523 U.S. at 17). *See also, e.g.*, *Sanchez-Gomez*, 138 S. Ct. at 1540 (same); *Kingdomware Techs.*, 136 S. Ct. at 1976 (same); *Turner*, 564 U.S. at 439–40 (quoting *Weinstein*, 423 U.S. at 149) (same); *Wis. Right to Life*, 551 U.S. at 462 (same); *Lewis*, 494 U.S. at 482 (same); *Meyer*, 486 U.S. at 417 n.2 (quoting Murphy v. Hunt, 455 U.S. 478, 482 (1982)) (per curiam) (same); Reeves, Inc. v. Stake, 447 U.S. 429, 434 n.5 (1980) (same); *Gannett*, 443 U.S. at 377 (same); *Ill. State Bd. of Elections*, 440 U.S. at 187 (same); SEC v. Sloan, 436 U.S. 103, 109 (1978) (same); *Bellotti*, 435 U.S. at 774 (same). The Court has explained, however, that the "capable of repetition yet evading review" doctrine "will not revive a dispute which became moot before the action commenced." Renne v. Geary, 501 U.S. 312, 320 (1991).

[4] *See, e.g.*, Sosna v. Iowa, 419 U.S. 393, 400 (1975) ("[T]he case before us is one in which state officials will undoubtedly continue to enforce the challenged statute and yet, because of the passage of time, no single challenger will remain subject to its restrictions for the period necessary to see such a lawsuit to its conclusion.").

[5] *See* Roe v. Wade, 410 U.S. 113, 125 (1973) (quoting S. Pac. Terminal Co. v. ICC, 219 U.S. 498, 515 (1911)).

See generally Amdt14.S1.6.4.1 Abortion, Roe v. Wade, and Pre-Dobbs Doctrine (analyzing Supreme Court jurisprudence regarding abortion).*But see* Azar v. Garza, 138 S. Ct. 1790, 1791–93 (2018) (dismissing abortion case as moot without applying, analyzing, or mentioning the "capable of repetition yet evading review" doctrine).

[6] *See Roe*, 410 U.S. at 125.

[7] *See id.*

[8] *Id.*

[9] *Id.* (quoting *S. Pac. Terminal Co.*, 219 U.S. at 515). *See also* Singleton v. Wulff, 428 U.S. 106, 117 (1976) ("A woman who is no longer pregnant may nonetheless retain the right to litigate the point because it is 'capable of repetition yet evading review.'") (quoting *Roe*, 410 U.S. at 124–25).

[10] *See supra* note 1.

[11] FEC v. Wis. Right to Life, Inc., 551 U.S. 449, 457–60 (2007).

[12] *Id.* at 462–64.

elections,[13] and the period between elections was too short to allow the organization sufficient time to fully litigate its constitutional challenges sufficiently in advance of the election date.[14]

By contrast, the Court determined that the constitutional challenge in the *DeFunis* case mentioned above was not "capable of repetition, yet evading review."[15] To reiterate, the petitioner in *DeFunis* claimed that certain law school admissions practices and criteria unconstitutionally discriminated against him on the basis of race.[16] While the case was pending, however, the petitioner began taking classes at the law school, and was just about to receive his diploma.[17] Unlike the challenger to the abortion statute in *Roe*, who could very well have become pregnant again in the future,[18] the petitioner in *DeFunis* would "never again be required to run the gantlet of the Law School's admissions process" once he received his juris doctorate.[19] The *DeFunis* Court therefore concluded that the petitioner's constitutional challenges were "not 'capable of repetition' so far as [the petitioner was] concerned."[20] The Court further opined that challenges raised by other disappointed applicants would not evade future review either, as the Court had "no reason to suppose that a subsequent case attacking [the law school's admission] procedures w[ould] not come with relative speed to th[e] Court."[21]

ArtIII.S2.C1.8.8 Criminal Cases and Mootness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has also articulated special mootness principles that apply in criminal cases.[1] Because criminal sentences are generally limited in duration, courts will sometimes be unable to rule on the merits of a criminal defendant's appeal before that defendant's sentence expires.[2] Thus, the Court has ruled that a criminal defendant who "wish[es] to continue his appeals after the expiration of his sentence must suffer some 'continuing injury' or 'collateral

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[13] *Id.* at 463.

[14] *See id.* at 462–63. *See also* Davis v. FEC, 554 U.S. 724, 735–36 (2008) (rejecting mootness challenge in case whose facts "closely resemble[d]" those at issue in *Wisconsin Right to Life*).

[15] 416 U.S. at 318–19.

[16] *Id.* at 314–15.

[17] *Id.* at 315–17.

[18] *See* Roe v. Wade, 410 U.S. 113, 125 (1973).

[19] 416 U.S. at 319.

[20] *Id.*

[21] *Id.*

[1] *See, e.g.*, United States v. Juvenile Male, 564 U.S. 932, 936 (2011) (per curiam); Turner v. Rogers, 564 U.S. 431, 439 (2011); Spencer v. Kemna, 523 U.S. 1, 3–16 (1998); Minnesota v. Dickerson, 508 U.S. 366, 371 n.2 (1993); Evitts v. Lucey, 469 U.S. 387, 391 n.4 (1985); Lane v. Williams, 455 U.S. 624, 630–34 (1982); Pennsylvania v. Mimms, 434 U.S. 106, 108 n.3 (1977) (per curiam); Sibron v. New York, 392 U.S. 40, 50–58 (1968); Carafas v. LaVallee, 391 U.S. 234, 236–38 (1968).

[2] *See, e.g.*, *Sibron*, 392 U.S. at 50, 52 ("It is asserted that because Sibron has completed service of the six-month sentence imposed upon him as a result of his conviction, the case has become moot . . . We have concluded that the case is not moot . . . There was no way for Sibron to bring his case here before his six-month sentence expired.").

consequence' sufficient to satisfy Article III."[3] Put another way, if the defendant can point to some "disabilities or burdens (which) . . . flow from" his conviction even after his release from prison, then he retains "a substantial stake in the judgment of conviction which survives the satisfaction of the sentence imposed on him" and therefore presents a justiciable controversy.[4] If, by contrast, the defendant cannot make such a showing, then the expiration of the defendant's criminal sentence will render the defendant's appeal moot.[5] Thus, in *Carafas v. LaVallee*, the petitioner faced lingering legal "disabilities or burdens" as a result of his conviction even though he had already "been unconditionally released from custody."[6] Specifically, the laws of the state in which the petitioner resided prohibited convicted felons from "engag[ing] in certain businesses," "serv[ing] as an official of a labor union," "vot[ing] in any election held in" his state of residence, and "serv[ing] as a juror."[7] The petitioner therefore retained "a substantial stake" in challenging the validity of his conviction so that he could engage in activities that his criminal record would otherwise prohibit.[8] The Supreme Court thus determined that, "[o]n account of these 'collateral consequences'" of his conviction, the petitioner's case was "not moot."[9] "When the defendant challenges his underlying *conviction*," the Supreme Court generally "presume[s] the existence of collateral consequences" sufficient to save the defendant's appeal from dismissal on mootness grounds.[10] The Court has justified this presumption on the ground that "most criminal convictions do in fact entail adverse collateral legal consequences."[11] The Court has generally declined to presume, however, that collateral consequences will result from other types of criminal sanctions, such as a revocation of parole.[12]

ArtIII.S2.C1.8.9 Class Action Litigation and Mootness

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

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[3] *Juvenile Male*, 564 U.S. at 936. *See also, e.g.*, *Dickerson*, 508 U.S. at 371 n.2 ("We have often observed . . . that 'the possibility of a criminal defendant's suffering" collateral legal consequences "from a sentence already served' precludes a finding of mootness.") (quoting *Mimms*, 434 U.S. at 108 n.3).

[4] 391 U.S. at 237 (quoting Fiswick v. United States, 329 U.S. 211, 222 (1946)).

[5] *E.g.*, *Juvenile Male*, 564 U.S. at 936.

[6] *Carafas*, 391 U.S. at 236–37.

[7] *Id.* at 237.

[8] *Id.* (quoting *Fiswick*, 329 U.S. at 222).

[9] *Id.* at 237–38 (quoting Ginsberg v. New York, 390 U.S. 629, 633–34 & n.2 (1968)).

[10] *Juvenile Male*, 564 U.S. at 936. *See also, e.g.*, Evitts v. Lucey, 469 U.S. 387, 391 n.4 (1985) (deeming case "not moot" where "some collateral consequences of [the party's] conviction remain[ed]").

[11] Sibron v. New York, 392 U.S. 40, 55 (1968).

[12] Spencer v. Kemna, 523 U.S. 1, 14 (1998) ("declin[ing] to presume that collateral consequences adequate to meet Article III's injury-in-fact requirement" would result from a "petitioner's parole revocation"). *See also, e.g.*, *Juvenile Male*, 564 U.S. at 936–37 ("[W]hen a defendant challenges only an expired *sentence*, no such presumption [of non-mootness] applies, and the defendant must bear the burden of identifying some ongoing 'collateral consequence' that is 'traceable' to the challenged portion of the sentence and is 'likely to be redressed by a favorable judicial decision.'") (quoting *Spencer*, 523 U.S. at 7) (brackets omitted).

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Supreme Court has also developed special mootness rules that apply in class action cases.[1] In a class action, the plaintiff[2] (known as the "class representative" or the "named plaintiff") represents not only his own interests, but also the interests of other injured persons (the "class members") who are similarly situated to the class representative but are not named as formal parties to the suit.[3] Intervening events may sometimes render the controversy moot as to the named plaintiff but not as to the class members.[4] For example, in the 1979 case of *Bell v. Wolfish*, several pretrial detainees initiated a class action lawsuit challenging the conditions of confinement at a custodial facility not only on their own behalf, but also on behalf of other detainees as well.[5] However, the named plaintiffs were transferred or released from the facility while the case was pending, and therefore were no longer being subjected to the allegedly unlawful conditions of confinement by the time the Supreme Court took up the case.[6] Although the named plaintiffs no longer had any *personal* stake in the outcome of the litigation, the class members who remain confined in that facility still potentially had live claims against the defendant.[7] To address cases of this sort, the Court has ruled that a justiciable controversy may potentially exist "between a named defendant and a member of the class represented by the named plaintiff, even though the claim of the named plaintiff has become moot."[8] Put another way, "the termination of a class representative's claim does not" necessarily "moot the claims of the unnamed members of the class."[9] The Court, applying that principle, has occasionally

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[1] *See* Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 161 (2016); Cty. of Riverside v. McLaughlin, 500 U.S. 44, 51–52 (1991); U.S. Parole Comm'n v. Geraghty, 445 U.S. 388, 395–409 (1980); Deposit Guar. Nat'l Bank, Jackson, Miss. v. Roper, 445 U.S. 326, 339–40 (1980); Bell v. Wolfish, 441 U.S. 520, 526 n.5 (1979); Swisher v. Brady, 438 U.S. 204, 213 n.11 (1978); Kremens v. Bartley, 431 U.S. 119, 127–36 (1977); Pasadena City Bd. of Educ. v. Spangler, 427 U.S. 424, 430 (1976); Franks v. Bowman Transp. Co., 424 U.S. 747, 752–57 (1976); Bd. of Sch. Comm'rs of City of Indianapolis v. Jacobs, 420 U.S. 128, 128–30 (1975) (per curiam); Gerstein v. Pugh, 420 U.S. 103, 110 n.11 (1975); Sosna v. Iowa, 419 U.S. 393, 397–403 (1975). The Court has emphasized, however, that the legal principles pertaining to mootness and class actions have little to no application outside the class action context. *See* United States v. Sanchez-Gomez, 138 S. Ct. 1532, 1539 (2018) (explaining that the holdings in the cases listed above are "tied . . . to the class action setting from which [they] emerged"); Genesis Healthcare Corp. v. Symczyk, 569 U.S. 66, 73–74 (2013) (holding that, because class "actions are fundamentally different from collective actions under the" Fair Labor Standards Act (FLSA), "the mere presence of collective-action allegations in [an FLSA] complaint cannot save the suit from mootness once the individual claim is satisfied").

[2] While it is also possible to bring a class action in federal court against a class of *defendants*, class actions on behalf of classes of *plaintiffs* are more common. *See* Fed. R. Civ. P. 23(a) ("One or more members of a class may sue *or be sued*.") (emphasis added).

[3] *See, e.g.*, Gen. Tel. Co. of Sw. v. Falcon, 457 U.S. 147, 155–56 (1982) ("The class-action device was designed as 'an exception to the usual rule that litigation is conducted by and on behalf of the individual named parties only' . . . We have repeatedly held that 'a class representative must be part of the class and possess the same interest and suffer the same injury as the class members.'") (quoting Califano v. Yamasaki, 442 U.S. 682, 700–01 (1979); E. Tex. Motor Freight Sys. Inc. v. Rodriguez, 431 U.S. 395, 403 (1977)). *See generally* Fed. R. Civ. P. 23.

[4] *See, e.g.*, *Sosna*, 419 U.S. at 401 ("Although the controversy is no longer alive as to appellant Sosna, it remains very much alive for the class of persons she has been certified to represent.").

[5] *See Bell*, 441 U.S. at 523.

[6] *See id.* at 526 n.5.

[7] *See id.*

[8] *Sosna*, 419 U.S. at 402. *See also* Nielsen v. Preap, 139 S. Ct. 954, 962–63 (2019) (opinion of Alito, J., for three Justices) (concluding that class action case was not moot where "there was at least one named plaintiff with a live claim when the class was certified").

[9] *Bell*, 441 U.S. at 526 n.5 (quoting Gerstein v. Pugh, 420 U.S. 103, 110 n.11 (1975)). *See also, e.g.*, Cty. of Riverside v. McLaughlin, 500 U.S. 44, 51 (1991) (same); U.S. Parole Comm'n v. Geraghty, 445 U.S. 388, 404 (1980) (holding that an "appeal of the denial of [a] class certification motion" "does not become moot upon expiration of the named plaintiff's substantive claim"). *But see* Azar v. Garza, 138 S. Ct. 1790, 1791–93 (2018) (per curiam) (dismissing a putative class action as moot without applying, analyzing, or mentioning this principle); Kremens v. Bartley, 431 U.S. 119, 132 (1977)

resisted efforts by defendants to moot a class action case by offering to pay the class representative's entire individual claim over the class representative's objection.[10] According to the Court, allowing a class action case to become moot "simply because the defendant has sought to 'buy off' the individual private claims of the named plaintiffs" would "frustrate the objectives of class actions" because it would "requir[e] multiple plaintiffs to bring separate actions, which effectively could be 'picked off' by a defendant's tender of judgment."[11] The Court has explicitly declined to decide, however, whether other methods of mooting a class action could be permissible, such as by "deposit[ing] the full amount of the plaintiff's individual claim in an account payable to the plaintiff" and then successfully convincing the court to "enter[ ] judgment for the plaintiff in that amount."[12] The lower courts have therefore "split on whether actual payment of full relief moots an individual's claim."[13] "The Supreme Court has not yet resolved the split, and commentators disagree on how the Court will ultimately decide the unresolved . . . question."[14]

ArtIII.S2.C1.9 Political Questions

ArtIII.S2.C1.9.1 Overview of Political Question Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The political question doctrine limits the ability of the federal courts to hear constitutional questions even where other justiciability requirements, such as standing, ripeness, and mootness, would otherwise be met.[1] The Supreme Court has stated that, for purposes of Article III of the Constitution,[2] "no justiciable 'controversy' exists when parties seek adjudication of a political question."[3] But the term "political question" is a legal term of art that on its face gives little indication of what sorts of cases the doctrine bars federal courts from deciding. The

(holding that a class action may be unable to proceed where an intervening event moots "not only the claims of the named plaintiffs but also the claims of a large number of unnamed plaintiffs").

[10] *See* Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 156 (2016) (holding that "an unaccepted offer to satisfy the named plaintiff's individual claim" does not "render a case moot when the complaint seeks relief on behalf of the plaintiff and a class of persons similarly situated"); Deposit Guar. Nat'l Bank, Jackson, Miss. v. Roper, 445 U.S. 326, 339 (1980) ("To deny the right to appeal simply because the defendant has sought to 'buy off' the individual private claims of the named plaintiffs would be contrary to sound judicial administration.").

[11] *Roper*, 445 U.S. at 339.

[12] *Campbell-Ewald*, 577 U.S. at 166 ("That question is appropriately reserved for a case in which it is not hypothetical.").

[13] Kuntze v. Josh Enters., Inc., 365 F. Supp. 3d 630, 640 (E.D. Va. 2019) (citing numerous cases).

[14] *Id.* at 641 (citing scholarly articles and treatises).

[1] Baker v. Carr, 369 U.S. 186, 198–99 (1962) (discussing difference between jurisdiction and "appropriateness of the subject matter for judicial consideration," known as "justiciability").

[2] U.S. Const. art. III, § 2.

[3] Massachusetts v. EPA, 549 U.S. 497, 516 (2007). *See also* DaimlerChrysler Corp. v. Cuno, 547 U.S. 332, 352 (2005) ("The doctrines of mootness, ripeness, and political question all originate in Article III's 'case' or 'controversy' language, no less than standing does."); Schlesinger v. Reservists Comm. to Stop the War, 418 U.S. 208, 215 (1974) ("[T]he presence of a political question suffices to prevent the power of the federal judiciary from being invoked by the complaining party.").

ArtIII.S2.C1.9.1
Overview of Political Question Doctrine

phrase, which has its origins in Chief Justice John Marshall's landmark opinion in *Marbury v. Madison*,[4] is potentially misleading, as federal courts deal with political issues, in the sense of controversial and government-related issues, all the time.[5] Rather than referring generally to any such political issue, the term "political question" expresses the principle that some issues are either entrusted solely to another branch of government or are beyond the competence of the Judiciary to review. Finding that a matter qualifies as a political question divests federal courts of jurisdiction, meaning they lack the power to rule on the matter.[6]

The Supreme Court identified six factors relevant to the political question doctrine in the 1962 case *Baker v. Carr*:

> Prominent on the surface of any case held to involve a political question is found [1] a textually demonstrable constitutional commitment of the issue to a coordinate political department; or [2] a lack of judicially discoverable and manageable standards for resolving it; or [3] the impossibility of deciding without an initial policy determination of a kind clearly for nonjudicial discretion; or [4] the impossibility of a court's undertaking independent resolution without expressing lack of the respect due coordinate branches of government; or [5] an unusual need for unquestioning adherence to a political decision already made; or [6] the potentiality of embarrassment from multifarious pronouncements by various departments on one question.[7]

The variation among the criteria emphasizes the diverse purposes that the doctrine is said to serve, embodying both separation of powers principles[8] and prudential concerns such as the competency of courts.[9] These six criteria appear in recent Supreme Court opinions applying the political question doctrine.[10] However, Justices of the Supreme Court have recognized confusion around the political question doctrine, both when *Baker* was decided and

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[4] Marbury v. Madison, 5 U.S. (1 Cranch) 137, 165–66 (1803) ("By the constitution of the United States, the President is invested with certain important political powers, in the exercise of which he is to use his own discretion, and is accountable only to his country in his political character, and to his own conscience. . . . He is the mere organ by whom that will is communicated. The acts of such an officer, as an officer, can never be examinable by the courts.").

[5] *See, e.g.*, Erwin Chemerinsky, Federal Jurisdiction § 2.6.1 (6th ed. 2012). *Cf.* Nixon v. Herndon, 273 U.S. 536, 540 (1927) (sustaining claim against judges of elections in Texas for refusing to allow a citizen to vote in violation of the Fifteenth Amendment and noting that "[t]he objection that the subject-matter of the suit is political is little more than a play upon words").

[6] Zivotofsky v. Clinton, 566 U.S. 189, 195 (2012) (holding that courts lack authority to decide political questions when there is a commitment of the issue to another department or where there is a lack of judicially discoverable and manageable standards for resolving them) (citing *Baker*, 369 U.S. at 217).

[7] *Baker*, 369 U.S. at 217.

[8] *Id.* (describing political questions as including cases involving "a textually demonstrable constitutional commitment of the issue to a coordinate political department" or "the impossibility of a court's undertaking independent resolution without expressing lack of the respect due coordinate branches of government").

[9] *Id.* (describing political questions as including cases involving "a lack of judicially discoverable and manageable standards for resolving it").

[10] *See, e.g.*, *Zivotofsky*, 566 U.S. at 195–97. Despite the frequency with which courts cite the *Baker* criteria, a notable commentator has dismissed them as "useless in identifying what constitutes a political question." Chemerinsky, *supra* note 5, at § 2.6. *See also id.* ("The Constitution does not mention judicial review, much less limit it by creating 'textually demonstrable commitments' to other branches. Similarly, the most important constitutional provision . . . certainly do not include 'judicially discoverable and manageable standards.'"). That commentator is hardly alone in this sentiment. One treatise on justiciability notes that "application of the political-question tests of *Baker v. Carr* is so highly individualized as to suggest that there is no political question doctrine at all, but only a number of discrete questions that have been characterized as political." 13C Charles Alan Wright & Arthur R. Miller et al., Federal Practice and Procedure § 3534 (3d ed. Oct. 2020 Update). The same treatise concludes that "there is no workable definition of characteristics that might be found to distinguish political questions from judicial questions." *Id.*

subsequently.[11] Among other things, judges have disagreed on how to identify a political question, as well as on fundamental matters such as whether the political question doctrine originates in constitutional or prudential principles or what purpose the doctrine allegedly serves.[12]

So far, the Supreme Court has elected not to resolve these disputes in a comprehensive fashion. Despite these uncertainties, the doctrine remains alive and well today,[13] even if, as one treatise has stated, "the category of political questions 'is more amenable to description by infinite itemization than by generalization.'"[14] Following that pattern of itemization, the Court has applied the political question doctrine in some areas of foreign policy, Congress's internal governance, impeachment, and in cases involving partisan gerrymandering.[15] This essay explores all of these issues, tracing the development of the political question doctrine from its foundations in *Marbury* to its refinement in *Baker* to its modern applications.

ArtIII.S2.C1.9.2 Marbury v. Madison and Political Question Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The political question doctrine has its origins in the foundational case for judicial review, *Marbury v. Madison*.[1] *Marbury* involved a suit to force Secretary of State James Madison to deliver a signed commission to a newly appointed official, William Marbury.[2] The commission had been signed by the previous administration but not delivered; following the change in

[11] *See, e.g.*, *Baker*, 369 U.S. at 210 (stating that the political question doctrine has caused "[m]uch confusion."); *Zivotofsky*, 566 U.S. at 202 (Sotomayor, J., concurring in part and concurring in the judgment) (noting that "the proper application of *Baker*'s six factors has generated substantial confusion in the lower courts").

[12] *See* Martin H. Redish, *Judicial Review and the "Political Question"*, 79 Nw. U. L. Rev. 1031, 1039–43 (1985) (comparing "classical" interpretation of the political question doctrine, in which jurisdiction is withheld because the Constitution has textually committed the issue to another agency, and the "prudential" interpretation of the doctrine, in which rationales other than the text of the Constitution are used to justify judicial abdication). *Compare Schlesinger*, 418 U.S. at 215 ("[T]he concept of justiciability, which expresses the jurisdictional limitations imposed upon federal courts by the 'case or controversy' requirement of Art[icle] III, embodies both the standing and political question doctrines upon which petitioners in part rely."); *Baker*, 369 U.S. at 198–99 (court's determination that the case presented no political question "settles the only possible doubt that it is a case or controversy"); *Id.* at 210 ("The nonjusticiability of a political question is primarily a function of the separation of powers."), *with id.* at 217 (noting that political questions may involve prudential concerns such as a "lack of judicially discoverable and manageable standards" or "the potentiality of embarrassment from multifarious pronouncements by various departments on one question").

[13] *See, e.g.*, *Zivotofsky*, 566 U.S. at 201 (reversing the lower court's conclusion that the case presented a political question and remanding to decide case on the merits).

[14] Wright & Miller, *supra* note 10, at § 3534.

[15] *See* ArtIII.S2.C1.9.5 Modern Political Question Doctrine, ArtIII.S2.C1.9.6 Foreign Affairs as a Political Question, and ArtIII.S2.C1.9.7 Congressional Governance as a Political Question.

[1] 5 U.S. (1 Cranch) 137, 165–66 (1803).

[2] *Id.* at 153–57.

presidential administrations, Madison refused to deliver it.[3] Among the issues presented in that case, the Court examined whether it even had the authority to adjudicate the legality of Madison's refusal to deliver the commission.[4] That question, according to Chief Justice John Marshall's opinion for the Court, turned on "the nature" of the government action in question. As the Court explained, "Questions, in their nature political, or which are, by the constitution and laws, submitted to the executive, can never be made in this court."[5] Thus, if the act of an official is one in which the "executive possesses a constitutional or legal discretion, nothing can be more perfectly clear that their acts are only politically examinable."[6] However, if a "specific duty is assigned by law, and individual rights depend on the performance of that duty," then injured individuals have a right to resort to the courts.[7] According to the Chief Justice, "[t]he power of nominating to the senate, and the power of appointing the person nominated" were political questions, and fundamentally unreviewable.[8] By contrast, "if, for example, Mr. Marbury had taken the oaths of a magistrate, and proceeded to act as one; in consequence of which a suit had been instituted against him, in which his defense had depended on his being a magistrate, the validity of his appointment must have been determined by judicial authority."[9] Ultimately, the Court concluded that the question of whether to deliver Marbury's commission was not a political one, as Marbury had a legal right in the appointment.[10]

Although the Court in *Marbury* opined that it could not decide "[q]uestions[ ] in their nature political," that case did not articulate the political question doctrine as the concept is understood today—a rule that deprives the federal courts of jurisdiction to hear certain cases, including cases involving claims of constitutional rights.[11] Rather, *Marbury* indicated only that some decisions are inherently discretionary and are therefore immune from judicial scrutiny because there is no enforceable legal right at stake.

In the years following *Marbury*, the Court invoked the political question doctrine when deferring to the factual or policy determinations of the other branches in certain categories of cases.[12] For example, the Court held in the 1827 case *Martin v. Mott*,[13] that the legality of the President's decision to call out the militia in response to a supposed national emergency was beyond judicial scrutiny.[14] Similarly, in *Williams v. Suffolk Insurance Co.*,[15] an 1839 case raising the question of who ruled the Falkland Islands, the Court concluded that the Executive

[3] *Id.*

[4] *Id.* at 165.

[5] *Id.* at 170.

[6] *Id.* at 166.

[7] *Id.*

[8] *Id.* at 167. *See also* Chi. & S. Air Lines, Inc. v. Waterman S.S. Corp., 333 U.S. 103, 112–13 (1948) ("[A]dministrative orders are not reviewable unless and until they impose an obligation, deny a right or fix some legal relationship . . . [t]o revise or review an administrative decision, which has only the force of a recommendation . . . would be to render an advisory opinion.").

[9] *Marbury*, 5 U.S. (1 Cranch) at 167.

[10] *Id.*

[11] *See* ArtIII.S2.C1.9.5 Modern Political Question Doctrine, ArtIII.S2.C1.9.6 Foreign Affairs as a Political Question, and ArtIII.S2.C1.9.7 Congressional Governance as a Political Question.

[12] Tara Leigh Grove, *The Lost History of the Political Question Doctrine*, 90 N.Y.U. L. Rev. 1908, 1911–12 (2015) (arguing that nineteenth century "political-question doctrine" was simply an application of deference by the judicial branch to the factual determinations made by the other branches).

[13] 25 U.S. (12 Wheat.) 19 (1827).

[14] *Id.* at 32–33.

[15] 38 U.S. (13 Pet.) 415 (1839).

had the final word on questions of foreign sovereignty.[16] The Court also concluded that this deference in the realm of foreign affairs applied to the President's authority to enter into treaties.[17] In several cases from the nineteenth and early twentieth centuries, the Court also expressed a willingness to defer to Congress with respect to certain legal questions. For example, the Court concluded that the Judiciary was required to defer absolutely to congressional recognition of Indian tribes,[18] as well as congressional determinations of when wars begin and when they conclude.[19]

ArtIII.S2.C1.9.3 Luther v. Borden and Guarantee Clause

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In 1849, in the case *Luther v. Borden*,[1] the Court expanded the political question doctrine and took another step toward the modern judicial approach to political questions. *Luther* arose out of a rebellion against the government of Rhode Island due to the state constitution, which

[16] *Id.* at 420 ("[W]hen the executive branch of the government, which is charged with our foreign relations, shall in its correspondence with a foreign nation assume a fact in regard to the sovereignty of any island or country, it is conclusive on the judicial department."). *See also* Oetjen v. Cent. Leather Co., 246 U.S. 297, 302 (1918) (holding that courts could not reexamine the validity of a levy by a Mexican commanding general during a Mexican civil war); Jones v. United States, 137 U.S. 202, 212 (1890) ("Who is the sovereign, *de jure* or *de facto*, of a territory, is not a judicial, but a political[ ] question, the determination of which by the legislative and executive departments of any government conclusively binds the judges."); Foster v. Neilson, 27 U.S. (2 Pet.) 253, 308–09 (1829) ("A question like this respecting the boundaries of nations, is, as has been truly said, more a political than a legal question; and in its discussion, the courts of every country must respect the pronounced will of the legislature.").

[17] Doe v. Braden, 57 U.S. (16 How.) 635, 657 (1854) (holding that the duty of courts with respect to a treaty is "to interpret it and administer it according to its terms," not to evaluate whether "the person who ratified the treaty on behalf of a foreign nation had the power" to enter it). *See also* Clark v. Allen, 331 U.S. 503, 514 (1947) (holding that the question of whether a treaty survived the war with Germany is "essentially a political question" and "[w]e find no evidence that the political departments have considered the collapse and surrender of Germany as putting an end" to treaty obligations); Terlinden v. Ames, 184 U.S. 270, 289–90 (1902) (concluding that the validity of extradition treaty between Kingdom of Prussia and United States was a political question, observing that both governments acted as though the treaty was still valid and the Court had no authority to say otherwise).

[18] United States v. Sandoval, 231 U.S. 28, 45–46 (1913) ("Taking these decisions together, it may be taken as the settled doctrine of this court that Congress, in pursuance of the long-established policy of the government, has a right to determine for itself when the guardianship which has been maintained over the Indian shall cease. It is for that body, and not the courts, to determine when the true interests of the Indian require his release from such condition of tutelage."); United States v. Holliday, 70 U.S. (3 Wall.) 407, 419 (1866) ("In reference to all matters of this kind, it is the rule of this court to follow the action of the executive and other political departments of the government, whose more special duty it is to determine such affairs. If by them those Indians are recognized as a tribe, this court must do the same.").

[19] Commercial Tr. Co. v. Miller, 262 U.S. 51, 57 (1923). *See also* The Protector, 79 U.S. (12 Wall.) 700, 701 02 (1871) ("Acts of hostility by the insurgents occurred at periods so various, and of such different degrees of importance, and in parts of the country so remote from each other, both at the commencement and the close of the late civil war, that it would be difficult, if not impossible, to say on what precise day it began or terminated. It is necessary, therefore, to refer to some public act of the political departments of the government to fix the dates.").

[1] 48 U.S. (7 How.) 1 (1849).

significantly limited the right to vote.[2] Rhode Island citizens who had become dissatisfied with the existing regime held a constitutional convention, called elections, and declared the winners the valid government of Rhode Island.[3] When the existing "charter government" opposed these efforts and declared the conduct illegal, the newly elected governor of the rebel government, Thomas Dorr, gathered an armed force to assert the legitimacy of his government and its constitution.[4] In response, the charter government called the militia and declared martial law.[5] In the course of events, charter government agents broke into plaintiff Luther's house in order to arrest him for his support of Dorr.[6] Luther then sued for trespass.[7] The question of the legitimacy of the home break-in necessarily gave rise to the question of which government—the charter government or the rebel government—was the legitimate government of the state at the time of the break-in.

Luther alleged that the charter government that authorized the break-in was unconstitutional, in part because the voting restrictions in the Rhode Island constitution violated the U.S. Constitution's Guarantee Clause,[8] which states that "[t]he United States shall guarantee to every State in this Union a Republican Form of Government."[9] The Supreme Court refused to reach the question, instead concluding that the question of which government was lawful, and whether a government was a "republican" one, was a political question for Congress to decide and entirely outside the purview of the Judiciary.[10] In an opinion by Chief Justice Roger Taney, the Court held that courts were not institutionally competent to judge republicanism or governmental legitimacy because judicial standards were lacking.[11] Further, an attempt to judge whether a government was legitimate could undermine other branches and ultimately cast all the acts of the questioned government into doubt: as the Court explained, "[i]f the judicial power extends so far, the guarantee contained in the Constitution of the United States is a guarantee of anarchy, not of order."[12] The Court concluded that while a court should "always be ready to meet any question confided to it by the Constitution, it is equally its duty not to pass beyond its appropriate sphere of action."[13] In the years following *Luther* to the present, the Court has routinely held that cases involving the Guarantee Clause present nonjusticiable political questions.[14]

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[2] William M. Wiecek, The Guarantee Clause of the U.S. Constitution 86–97 (1972); *see also Luther*, 48 U.S. (7 How.) at 35–36 ("For some years previous to the disturbances of which we are now speaking, many of the citizens became dissatisfied with the charter government, and particularly with the restriction upon the right of suffrage.").

[3] *Luther*, 48 U.S. (7 How.) at 35–36.

[4] *Id.*

[5] *Id.* at 36–37.

[6] *Id.* at 37.

[7] *Id.* at 34.

[8] The Supreme Court's opinion seems to assume that *Luther* had argued that the charter government was unconstitutional, at least in part, because of the Guarantee Clause. *See id.* at 35–36 (discussing the Guarantee clause). However, scholars have argued that *Luther* never raised the Guarantee Clause issue and that the Court's discussion on this issue was dicta. *See e.g.*, Tara Leigh Grove, *The Lost History of the Political Question Doctrine*, 90 N.Y.U. L. Rev. 1908, 1927–29 & n.108 (2015) (noting that "review of the record indicates that the plaintiff did not raise [a Guarantee Clause] claim" and suggesting that Chief Justice Roger B. Taney may have chosen to mention the Guarantee Clause to influence debates over slavery).

[9] U.S. Const. art. IV, § 4.

[10] *Luther*, 48 U.S. (7 How.) at 35–36 ("Under this article of the Constitution it rests with Congress to decide what government is the established one in a State. . . . Yet the right to decide is placed there, and not in the courts.").

[11] *Id.*

[12] *Id.* at 36.

[13] *Id.* at 39.

[14] *See, e.g.*, Ariz. State Legislature v. Ariz. Indep. Redistricting Comm'n, 576 U.S 787, 795 n.3 (2015) (noting that the question of whether the Guarantee Clause was violated by way of referendum process was a nonjusticiable

ArtIII.S2.C1.9.4 From Coleman v. Miller to Baker v. Carr

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court also applied the political question doctrine in the 1939 case *Coleman v. Miller*.[1] In *Coleman*, the Court addressed the Kansas legislature's recent approval of the proposed Child Labor Amendment to the Constitution, which had been submitted to the states for ratification thirteen years prior.[2] Members of the Kansas legislature who had voted against the amendment petitioned for a writ of mandamus, seeking to revoke the approval.[3] They raised certain procedural challenges to the ratification and argued that the passage of time had rendered Kansas's approval of the amendment invalid.[4] The opinion of the Court, authored by Chief Justice Charles Evans Hughes, affirmed an opinion from the Supreme Court of Kansas denying the plaintiffs' petition.[5] Chief Justice Hughes's opinion explained that the "efficacy of ratifications by state legislature . . . should be regarded as a political question pertaining to the political departments."[6] The Court further clarified, citing to *Luther*, that it was a question solely for Congress, and not for the courts, whether an amendment had been adopted within a "reasonable time."[7]

It was against this background that the Court decided *Colegrove v. Green*,[8] in 1946. By that time, movement of populations from rural to urban areas had led to severe

political question); City of Rome v. United States, 446 U.S. 156, 182 n.17 (1980) (refusing to reach merits of Guarantee Clause challenge to preclearance requirements of Voting Rights Act, as such challenge was nonjusticiable); Baker v. Carr, 369 U.S. 186, 223–24 (1962) (citing many cases holding Guarantee Clause challenges nonjusticiable, but holding that this had no effect on Equal Protection challenge to malapportionment in Tennessee); Pac. States Tel. & Tel. Co. v. Oregon, 223 U.S. 118, 133–36, 151 (1912) (concluding that the question of whether amendment to Oregon constitution adding initiative and referendum procedures was nonjusticiable political question; concluding that "[a]s the issues presented, in their very essence, are, and have long since by this court been, definitely determined to be political and governmental, and embraced within the scope of the powers conferred upon Congress, and not, therefore, within the reach of judicial power"); Taylor v. Beckham, 178 U.S. 548, 578–80 (1900) (holding that court had no jurisdiction over challenge to gubernatorial election in Kentucky based on Guarantee Clause; "enforcement of this guaranty belong[s] to the political department"). *But see* New York v. United States, 505 U.S. 144, 184–85 (1992) (noting that "perhaps not all claims under the Guarantee Clause present nonjusticiable political questions").

[1] 307 U.S. 433 (1939).

[2] *Id.* at 435–36.

[3] *Id.* at 436.

[4] *Id*.

[5] The splintered opinions in *Coleman* make it difficult to determine the Court's holding. Although Justice Charles Evans Hughes's opinion was styled "the opinion of the Court," it was joined by only two other justices. Four other justices concurred in the judgment, in twin opinions by Justices Felix Frankfurter and Hugo Black arguing that the petitioners lacked standing. *Id.* at 456–59. Two other justices, Justices Pierce Butler and James McReynolds, dissented. But, as the Supreme Court later explained in analyzing the multiple opinions in *Coleman*, "even though there were only two Justices who joined Chief Justice Charles Evans Hughes' opinion on the merits, it is apparent that the two dissenting Justices joined his opinion as to the standing discussion. Otherwise, Justice Felix Frankfurter's opinion denying standing would have been the controlling opinion." Raines v. Byrd, 521 U.S. 811, 822 n.5 (1997) (discussing the various opinions in *Coleman*).

[6] *Coleman*, 307 U.S. at 450.

[7] *Id.* at 454.

[8] 328 U.S. 549 (1946).

"malapportionment" in state legislatures.[9] Throughout the country, state legislative districts were drawn such that voters in rural areas had disproportionate power compared to their urban counterparts. State governments, made up of the representatives of those rural voters, were unwilling to fix this problem.[10] As a result, voters in underrepresented districts turned to the courts and the Constitution for a remedy. In *Colegrove*, a seven-member Court was presented with a constitutional challenge to an Illinois districting arrangement where plaintiffs were members of districts with much larger populations than other districts.[11] The challenge was based, in part, on the Guarantee Clause, as well as on the Fourteenth Amendment. A plurality[12] of three Justices joined an opinion by Justice Felix Frankfurter, concluding that the Court lacked jurisdiction in light of the "peculiarly political nature" of the case.[13] The plurality noted that under Article I, Section 4 of the Constitution, "The Times, Places and Manner of holding Elections for . . . Representative, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations."[14] Citing that provision, the plurality concluded that the authority to regulate state districting rested "exclusively" with Congress, and courts had no authority to "enter this political thicket."[15] The *Colegrove* plurality's view of the political question doctrine, as the Supreme Court later recognized, "left pervasive malapportionment unchecked."[16]

Sixteen years later, the Court confronted malapportionment again in *Baker v. Carr*.[17] Rejecting *Colegrove*, the *Baker* Court set forth the modern rule on political questions and justiciability.[18] In *Baker*, the Court addressed an equal protection challenge to malapportioned

[9] Erwin Chemerinsky, Federal Jurisdiction § 2.6.3 (6th ed. 2012).

[10] *Id*. *See also* Reynolds v. Sims, 377 U.S. 533, 567 (1964) ("The complexions of societies and civilizations change, often with amazing rapidity. A nation once primarily rural in character becomes predominantly urban. Representation schemes once fair and equitable become archaic and outdated.") (footnote omitted).

[11] *Colegrove*, 328 U.S. at 550.

[12] When no majority of the Supreme Court agrees on an opinion in a case, the Court may issue a plurality opinion articulating the reasoning that received the most votes. The Supreme Court has stated, "When a fragmented Court decides a case and no single rationale explaining the result enjoys the assent of five Justices, 'the holding of the Court may be viewed as that position taken by those Members who concurred in the judgments on the narrowest grounds.'" Marks v. United States, 430 U.S. 188, 193 (1977) (quoting Gregg v. Georgia, 428 U.S. 153, 169 n.15 (1976) (opinion of Stewart, Powell, & Stevens, JJ.)). For discussion of the precedential value of plurality decisions, see Kevin M. Lewis, *What Happens When Five Supreme Court Justices Can't Agree?*, Cong. Research Serv. (June 4, 2018), https://crsreports.congress.gov/product/pdf/LSB/LSB10113.

[13] *Colegrove*, 328 U.S. at 552 (holding that a complaint alleging that "great mass of the white population intends to keep the blacks from voting" had no judicial remedy, "[u]nless we are prepared to supervise the voting in that state by officers of the court, it seems to us that all the plaintiff could get from equity would be an empty form") (citing Giles v. Harris, 189 U.S. 475, 487–88 (1903)). Justice Wiley Rutledge concurred in the result in *Colegrove*, getting the Court to a majority of four votes. *Id.* at 564 (Rutledge, J., concurring in the result). However, Justice Wiley Rutledge would have dismissed for want of equitable power to grant relief, rather than a want of jurisdiction because of the presence of a political question. *Id.* at 565.

[14] U.S. Const. art. I, § 4, cl. 1.

[15] *Colegrove*, 328 U.S. at 556.

[16] Evenwel v. Abbott, No. 14-940, slip op. at 2 (U.S. Apr. 4, 2016).

[17] 369 U.S. 186, 217 (1962).

[18] One year prior to *Baker*, the Court ruled, in the 1960 case Gomillion v. Lightfoot, 364 U.S. 339 (1960), in an opinion by Justice Felix Frankfurter, that *Colegrove* did not form an obstacle to a challenge to an election district allegedly drawn to remove Black voters from the district. *Id.* at 346–48. *See also* Shaw v. Hunt, 517 U.S. 899, 904–05 (1996) (concluding that standing existed in an equal protection challenge to North Carolina districting based on race); Miller v. Johnson, 515 U.S. 900, 922 (1995) (holding that an allegation that race was the legislature's rationale in drawing district lines could go forward, even though Department of Justice concluded that racial districting is necessary under the Voting Rights Act).

districts in the State of Tennessee[19] and concluded that, notwithstanding the political question doctrine, the plaintiffs' challenge to the state legislative map could proceed.[20] The Court in *Baker* identified the six criteria for "political question" cases listed above, reviewed areas where the Court had previously applied the political question doctrine, and concluded that past challenges brought under the Guarantee Clause had failed largely due to a lack of "judicially manageable standards."[21] By contrast, the Court reasoned, "[j]udicial standards under the Equal Protection Clause are well developed and familiar."[22] Shortly after *Baker*, the Supreme Court found the "judicially manageable standard" it was looking for, and articulated the so-called "one-person-one-vote" rule to overturn malapportioned districts.[23] Since *Baker*, courts have consistently determined that challenges to state legislative apportionment are justiciable.[24]

ArtIII.S2.C1.9.5 Modern Political Question Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The *Baker* criteria are quoted in virtually every case involving the political question doctrine. However, since *Baker*, the Court has applied the doctrine on relatively few occasions and has taken a fairly narrow view of its reach. As a result, it remains the case that the "political question doctrine can only be understood by examining the specific areas where the Supreme Court has invoked it."[1] Since *Baker*, those areas include cases involving some aspects of foreign policy, congressional internal regulation, impeachment, and partisan gerrymandering.[2]

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[19] In *Baker*, unlike *Gomillion*, the plaintiffs did not allege any discrimination in drawing of the districts, but rather that their equal protection rights under the Fourteenth Amendment were violated by the "debasement" of their votes, insofar as their votes counted "less" than voters in other districts. *Baker*, 369 U.S. at 187–88.

[20] *Id.* at 237.

[21] *Id.* at 223 ("[T]he only significance that *Luther* could have for our immediate purposes is in its holding that the Guaranty Clause is not a repository of judicially manageable standards which a court could utilize independently in order to identify a State's lawful government.").

[22] *Id.* at 226.

[23] *See* Reynolds v. Sims, 377 U.S. 533, 568 (1964). *See also* Wesberry v. Sanders, 376 U.S. 1, 18 (1964) ("While it may not be possible to draw congressional districts with mathematical precision, that is no excuse for ignoring our Constitution's plain objective of making equal representation for equal numbers of people the fundamental goal[.]").

[24] *See also* U.S. Dep't of Commerce v. Montana, 503 U.S. 442, 456–59 (1992) (concluding that congressional apportionment of congressional districts among states did not involve nonjusticiable political question).

[1] Erwin Chemerinsky, Federal Jurisdiction § 2.6.1 (6th ed. 2012).

[2] In other areas, the Court has declined to invoke the political-question doctrine. Some cases in this category are discussed below. *See also, e.g.*, Cty. of Oneida v. Oneida Indian Nation of N.Y., 470 U.S. 226, 248–50 (1985) (holding that damages claims for tribal land use brought by certain Indian nations was justiciable even though case involved Congress's authority over Indian affairs); Elrod v. Burns, 427 U.S. 347, 351–53 (1976) (holding that dismissal of state public employees because of partisan affiliation did not involve political questions because the political question doctrine was only implicated in cases involving separation of powers).

ArtIII.S2.C1.9.6 Foreign Affairs as a Political Question

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

One area where the political question doctrine has significant importance is in foreign affairs. In 1918, the Court wrote that "[t]he conduct of the foreign relations of our government is committed by the Constitution to the executive and legislative'—the political'—departments of the government, and the propriety of what may be done in the exercise of this political power is not subject to judicial inquiry or decision."[1] However, despite that sweeping statement, as the Court recognized in *Baker*, not "every case or controversy which touches foreign relations lies beyond judicial cognizance;" rather, the Court analyzes each question on a case-by-case basis.[2] For example, many pre-*Baker* cases concluded that the Judiciary was bound to defer to the political department on certain questions involving the validity of treaties[3] or the recognition of foreign governments.[4] The *Baker* Court characterized those cases as ones in which "resolution of such issues frequently turn on standards that defy judicial application, . . . involve the exercise of a discretion demonstrably committed to the executive or legislature . . . [or] uniquely demand single-voiced statement of the Government's views."[5]

The first major post-*Baker* case to consider these principles was the 1973 case *Gilligan v. Morgan*.[6] In *Gilligan*, the Supreme Court determined that the political question doctrine was one reason to bar a suit for broad equitable relief against the Governor of Ohio that alleged that the training of the Ohio National Guard was defective, leading to the violence that occurred at Kent State University three years earlier.[7] The plaintiffs sought a "judicial evaluation of the appropriateness of the 'training, weaponry and orders' of the Ohio National Guard" and "continuing judicial surveillance" over the Guard to ensure compliance with any court-approved requirements.[8] Although the case did not involve foreign policy, it raised related considerations. Recognizing that the case involved "[t]he complex, subtle, and professional decisions as to the composition, training, equipping and control of a military force,"[9] the Court gave two reasons why the political question doctrine applied. First, Article I, Section 8 of the Constitution gives the authority for "organizing, arming, and disciplining the Militia" to Congress.[10] Second, in concert with the explicit textual commitment of military

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[1] Oetjen v. Cent. Leather Co., 246 U.S. 297, 302 (1918) (holding that courts could not reexamine the validity of a levy by a Mexican commanding general during a Mexican civil war).

[2] Baker v. Carr, 369 U.S. 186, 211–12 (1962)

[3] *See* Luther v. Borden, 48 U.S. (7 How.) 1 (1849).

[4] *See* Commercial Tr. Co. v. Miller, 262 U.S. 51, 57 (1923). *See also* The Protector, 79 U.S. (12 Wall.) 700, 701–02 (1871).

[5] *Baker*, 369 U.S. at 211.

[6] 413 U.S. 1 (1973).

[7] *Id.* at 5–6.

[8] *Id.* at 6.

[9] *Id.* at 10.

[10] *Id.* at 6–7 (citing U.S. CONST. art. I, § 8).

supervision to a branch outside the Judiciary, the Court recognized that the Judicial Branch was uniquely poorly suited to supervise this activity: "[I]t is difficult to conceive of an area of governmental activity in which the courts have less competence."[11] Following what *Baker* called the "impossibility of deciding without an initial policy determination of a kind clearly for nonjudicial discretion,"[12] the Court concluded that the case involved a political question.

The Court next considered whether it could hear a case involving a foreign policy question in 1979, in *Goldwater v. Carter*.[13] *Goldwater* involved the question of whether courts could entertain a lawsuit by Members of Congress over the President's unilateral termination of a joint defense treaty with Taiwan. The plaintiff Members argued that this unilateral action deprived them of their constitutional role with respect to a change in the supreme law of the land.[14] The Court voted to dismiss the case without hearing oral argument. Although six Justices voted to dismiss for want of jurisdiction, no opinion received five votes. Justice William Rehnquist, writing for a plurality of four Justices, argued that the question presented was nonjusticiable "because it involve[d] the authority of the President in the conduct of our country's foreign relations and the extent to which the Senate or the Congress is authorized to negate the action of the President."[15] The plurality made three main points in support of the lack of justiciability. First, the question involved separation of powers between two branches, each with resources "available to protect and assert its interests."[16] Second, the question involved foreign affairs. Finally, the Constitution was silent on the question presented, providing no standards to evaluate the question of the role of Congress in the termination of treaties.[17] The fifth vote was provided by Justice Lewis Powell, who agreed that the complaint should be dismissed, but for the lack of a ripe dispute, rather than on political question grounds.[18] Justice Thurgood Marshall also concurred in the dismissal, but provided no reasoning to support his decision.[19]

In other cases, however, the Supreme Court has explicitly rejected the application of the political question doctrine, notwithstanding a foreign affairs or foreign treaty dimension to the case. For example, in *Japan Whaling Ass'n v. American Cetacean Society*,[20] the Court found that the political question doctrine did not prevent federal courts from adjudicating a question involving the interpretation of the International Convention for the Regulation of Whaling.[21] Citing *Baker*, the Court noted that not every matter that touches foreign relations or foreign treaties was nonjusticiable; rather, the question was whether the case "revolve[d] around policy choices and value determinations constitutionally committed for resolution" to the other branches.[22] In *Japan Whaling*, the question presented was whether the Secretary of

[11] *Id.* at 10.

[12] *Baker*, 369 U.S. at 217).

[13] 444 U.S. 996 (1979).

[14] *Id.* at 997–98 (Powell, J., concurring in the judgment).

[15] *Id.* at 1002 (Rehnquist, J., concurring in the judgment).

[16] *Id.* at 1004.

[17] *Id.*

[18] *Id.* at 998 (Powell, J., concurring in the judgment).

[19] *Id.* at 996. The other three Justices were split on the case. Justices White and Harry Blackmun agreed that the case should have been granted certiorari, but did not express an opinion on the merits or on the justiciability question and argued that the Court should not have passed on these questions without oral argument. *Id.* at 1006 (Blackmun, J., dissenting in part). Justice William Brennan argued that the Court should not have dismissed the case and would have affirmed the lower court's opinion on the merits. *Id.* at 1006 (Brennan, J., dissenting).

[20] 478 U.S. 221 (1986).

[21] *Id.* at 229–30.

[22] *Id.* at 230. *See also* Bond v. United States, 572 U.S. 844, 856–58 (2014) (reviewing case involving a criminal statute enacting the International Convention on Chemical Weapons, but not finding it necessary to "interpret the

Commerce should have certified Japan as "diminishing the effectiveness" of the International Whaling Commission's quotas under statutes that purportedly required the Secretary to do so.[23] According to the Court, this question involved "applying no more than the traditional rules of statutory construction" in interpreting the Convention and the statutes at issue, and as such, did not present a political question.[24]

The Court again found it had authority to make limited constitutional determinations in the foreign policy context in *Boumediene v. Bush*.[25] There, the Court considered whether it could entertain habeas petitions from prisoners designated as enemy combatants and detained at the United States Naval Station at Guantanamo Bay, Cuba.[26] The United States argued that, because Guantanamo Bay was not a part of the United States, the United States had no sovereignty over it, and as such, the writ of habeas could not extend to prisoners held there.[27] The Court agreed that, because the question of who held sovereignty over the location was a political question, it would "not question the Government's position that Cuba, not the United States, maintains sovereignty, in the legal and technical sense of the term, over Guantanamo Bay."[28] However, the Court went on to hold that nothing barred it from considering the "practical sovereignty" or "objective degree of control" the United States had over Guantanamo Bay.[29] Previous cases designating sovereignty as a political question, the Court asserted, had referred to sovereignty in the "narrow, legal sense of the term," rather than the "colloquial sense."[30] Further, as it was this colloquial sense that was relevant to the habeas writ, the Court reasoned that it had jurisdiction to evaluate the prisoners' claims.[31]

The Court's embrace of a narrow conception of the political question doctrine continued in the most recent case to consider the political question limits to federal court jurisdiction in foreign affairs, *Zivotofsky v. Clinton*.[32] In *Zivotofsky*, the Court concluded that the political question doctrine could not justify refusing to hear cases involving the constitutionality of a federal statute. There, the Court addressed a statute that provided that Americans born in Jerusalem may elect to have "Israel" listed as the place of birth on their passports.[33] When the State Department refused to follow that law under a long-standing policy of not taking a position on the political status of Jerusalem, plaintiff Zivotofsky sued to enforce the statute.[34] The Supreme Court concluded that the political question doctrine did not bar it from hearing the case; as the Court noted, the courts were "not being asked to supplant a foreign policy decision of the political branches with the courts' own unmoored determination of what United

scope of the Convention"); Missouri v. Holland, 252 U.S. 416, 434 (1920) (concluding that statute enacting the Migratory Bird Treaty between the United States and Great Britain was valid).

[23] *Japan Whaling*, 478 U.S. at 227–29.

[24] *Id.* at 230.

[25] 553 U.S. 723 (2008).

[26] *Id.* at 732–33.

[27] *Id.* at 753.

[28] *Id.* at 753–54 ("[D]etermination of sovereignty over an area is for the legislative and executive departments.") (citing Vermilya-Brown Co. v. Connell, 335 U.S. 377, 380 (1948)).

[29] *Id.* at 754.

[30] *Id.*

[31] *Id.* at 754–55 ("Accordingly, for purposes of our analysis, we accept the Government's position that Cuba, and not the United States, retains *de jure* sovereignty over Guantanamo Bay. . . . [H]owever, we take notice of the obvious and uncontested fact that the United States, by virtue of its complete jurisdiction and control over the base, maintains *de facto* sovereignty over this territory.").

[32] 566 U.S. 189 (2012).

[33] *Id.* at 191.

[34] *Id.*

States policy toward Jerusalem should be."[35] Instead, the court was being asked to engage in the "familiar" exercise of determining what the statute meant, and whether it was constitutional.[36] The Court concluded that this exercise would require careful examination of the "textual, structural, and historical evidence" but that this was "what courts do," and the difficulty of the problem was no justification for avoiding it.[37]

ArtIII.S2.C1.9.7 Congressional Governance as a Political Question

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has also applied the political question doctrine to cases involving the internal governance of the Congress, though recent decisions have construed the doctrine narrowly in this context. In the pre-*Baker* case *Marshall Field & Co. v. Clark*,[1] plaintiffs challenging a tariff law contended that the law was invalid because a section of the bill passed by Congress was omitted from the final version of the law signed by the President.[2] The Court concluded that it could not adjudicate this issue; because of the "respect due to a co-ordinate branch of the government," the Court had to take as "conclusive" the fact that the act was attested by the signatures of the presiding officers of the houses of Congress and approved by the President.[3] *Baker* explained that *Clark* signified the need for "respect" to coequal branches and for "finality and certainty" about statutes.[4] A few cases since *Baker* have added color to the concept of "respect" in this context.

For example, in *Powell v. McCormack*,[5] an individual elected to the House of Representatives challenged a House resolution excluding him from his seat in Congress. Although the Member-elect met the age and citizenship requirements in Article I, Section 2, the House found that he had misrepresented travel expenses and made illegal salary payments to his wife.[6] The defendants—Members and officers of the House—argued that the text of the Constitution, specifically Article I, Section 5, gave Congress exclusive authority to judge the qualifications of its own Members, so Congress could determine that the Member

[35] *Id.* at 196.

[36] *Id.*

[37] *Id.* at 201.

[1] 143 U.S. 649 (1892).

[2] *Id.* at 668–69, 672.

[3] *Id.* at 673. *Cf.* United States v. Ballin, 144 U.S. 1, 4 (1892) (holding that where Senate journal speaks on whether a quorum was present, "it must be assumed to speak the truth").

[4] Baker v. Carr, 369 U.S. 186, 214 (1962).

[5] 395 U.S. 486 (1969).

[6] U.S. Const. art. I, § 2, cl. 2 ("No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen.").

was unqualified.[7] The Supreme Court held that the case could go forward and that the Member-elect was entitled to relief.[8] On the question of justiciability, the Court explained that, despite the text the defendants cited from Article I, Section 5, there was no "textually demonstrable commitment" of this constitutional question to another branch.[9] At most, the Constitution gave Congress the power to judge the "qualifications expressly set forth in the Constitution," not the power to set new qualifications.[10] Nor did the Court conclude that "lack of the respect due co-ordinate branches" barred hearing the case, notwithstanding that it was interpreting the Constitution "in a manner at variance with the construction given the document by another branch." [11] In the view of the *Powell* Court, constitutional conflicts with other branches were inevitable under the constitutional system and were no excuse for avoiding a case where there existed "judicially manageable standards" sufficient to judge the question.[12]

Similar principles animated the Court's decision in *INS v. Chadha*.[13] There, the Court considered the constitutionality of a provision of the Immigration and Nationality Act authorizing one House of Congress, by resolution, to invalidate a decision of the Executive Branch to suspend the deportation of an alien.[14] The United States argued that *Chadha* presented a nonjusticiable political question, because Article I granted Congress the power to "establish a uniform Rule of Naturalization," providing it with unreviewable authority over the regulation of aliens.[15] As in *Powell*, the Court rejected the application of the political question doctrine.[16] The Court, in an opinion by Chief Justice Warren Burger, observed that what was at issue was not Congress's plenary authority over aliens, but rather whether it had chosen "a constitutionally permissible means of implementing that power."[17] Because that latter question was squarely within the Judiciary's purview, the political question doctrine did not bar consideration of the case, regardless of the fact that judicial review limited Congress's authority as a practical matter.[18]

Respect for the coordinate branches also did not prevent the Court from reaching the merits of the dispute in *United States v. Munoz-Flores*,[19] which concerned whether a federal statute violated the Origination Clause of the Constitution, a provision that requires revenue-raising legislation to originate in the House of Representatives.[20] In that case, Munoz-Flores was ordered to pay a special assessment under the Victims of Crime Act of 1984

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[7] 395 U.S. at 519 ("Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members[.]") (citing U.S. Const. art. I, § 5, cl. 1).

[8] *Id.* at 489.

[9] *Id.* at 548.

[10] *Id.*

[11] *Id.* at 549. *But see* Roudebush v. Hartke, 405 U.S. 15, 18–19 (1972) (noting that "[w]hich candidate is entitled to be seated in the Senate is, to be sure, a nonjusticiable political question" with respect to which of two candidates is entitled to be seated in a close election); Reed v. Cty. Comm'rs, 277 U.S. 376, 388 (1928) (The Senate "is the judge of the elections[.] . . . It is fully empowered, and may determine such matters without the aid of the House of Representatives or the executive or judicial department.").

[12] 395 U.S. at 549.

[13] 462 U.S. 919, 940 (1983).

[14] *Id.* at 923.

[15] *Id.* at 940 (citing U.S. Const. art. I, § 8.).

[16] *Id.* at 942–93.

[17] *Id.* at 941.

[18] *Id.* at 941–42 ("No policy underlying the political question doctrine suggests that Congress or the Executive . . . can decide the constitutionality of a statute; that is a decision for the courts.").

[19] 495 U.S. 385 (1990).

[20] U.S. Const. art. I, § 7, cl. 1 ("All bills for raising Revenue shall originate in the House of Representatives[.]").

and challenged the statute as unconstitutional because the bill was "for raising revenue" and did not originate in the House of Representatives.[21] The Government objected that hearing the case expressed a "lack of respect" for the House: in the Government's view, the House made an unreviewable determination that the Act was not for the purpose of raising revenue when it passed the legislation.[22] The Court rejected that argument, holding that Munoz-Flores's challenge was no different than any other constitutional challenge to a law involving separation of powers, and judicial review did not evidence a "lack of respect."[23]

ArtIII.S2.C1.9.8 Impeachment and Political Question Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In 1993, the Court applied the political question doctrine to a judicial challenge to impeachment proceedings. In *Nixon v. United States*, a former federal judge challenged his removal by the Senate.[1] He argued that the Senate proceedings used to convict him, which allowed a committee of Senators, rather than the whole Senate, to hear evidence against him after he was impeached by the House, violated the constitutional requirement that the Senate "try all Impeachments."[2] In an opinion by Chief Justice William Rehnquist, the Court held that *Nixon* presented a nonjusticiable political question.[3] A few primary considerations motivated the Court's conclusion. First, the Court noted that the text of the Constitution gives the Senate "sole" authority to try impeachments, which, according to the Court, amounted to a sufficient "textual commitment" of the question as to what "try" meant to a coordinate department.[4] Second, the Court noted that the existence of a firm textual commitment was strengthened by a lack of "judicially manageable standards" in the vagueness of the word "try"; the Court contrasted that vague term with the concrete requirement that convictions require a two-thirds vote, concluding that the Senate was intended to have discretion over the precise procedures for impeachments.[5] The Court distinguished the alleged "textual commitment" that was insufficient in *Powell v. McCormack*, maintaining that the textual commitment to the Senate of defining "try" did not undermine any other provision to the Constitution, such as the enumerated qualifications set forth in Article I, Section 5 that were at stake in *Powell*.[6] Altogether, the Court concluded that without a judicially manageable standard to limit the

[21] 495 U.S. at 387–88.

[22] *Id.* at 391–92.

[23] *Id.* at 393. The Court ultimately rejected Munoz-Flores's challenge on the merits and held that the Victims of Crime Act was not a bill "for raising revenue." *Id.* at 400.

[1] 506 U.S. 224 (1993).

[2] *Id.* at 229 ("The Senate shall have the sole Power to try all Impeachments") (citing U.S. Const. art. I, § 3, cl. 6).

[3] *Id.* at 238.

[4] *Id.* at 235–36.

[5] *Id.* at 228–29.

[6] *Id.* at 237–38 (citing Powell v. McCormack, 395 U.S. 486, 519 (1969)).

Senate's authority, such as the specific textual rules on qualifications that were present in *Powell*, it could not overturn the Senate's judgment.[7]

ArtIII.S2.C1.9.9 Political Process, Elections, and Gerrymandering

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Finally, the Court in the modern era has applied the political question doctrine to some aspects of legislative regulation of elections,[1] particularly in the area of partisan gerrymandering. Partisan gerrymandering is "the practice of dividing a geographic area into electoral districts, often of highly irregular shape, to give one political party an unfair advantage by diluting the opposition's voting strength."[2] Government officials seeking to draw legislative districts to affect election results may adopt several different tactics. For instance, they may create districts containing different numbers of voters, effectively diluting the votes of individuals in more populous districts.[3] In the alternative, legislators may create districts that contain equal numbers of voters, but where boundaries are drawn to manipulate the concentration of voters in each district based on characteristics such as voters' race or their political affiliation. The Supreme Court has held that Equal Protection challenges to race-based gerrymandering and one-person-one-vote claims based on unequal districts are justiciable.[4] However, for decades the Court was unable to agree on an approach to challenges to *partisan* gerrymandering.

Unlike one-person-one-vote cases, a partisan gerrymandering case typically involves a voter in a district that is not malapportioned based on population, but rather has been drawn to disadvantage one political party. In the words of the Supreme Court, in a political gerrymander, voters affiliated with a disfavored party are either (1) "packed" into a few districts—in effect conceding those districts by large margins and "wasting" votes that could help the disfavored party compete in other areas—or (2) "cracked" into small groups and

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[7] *Id.*

[1] The Court appears to have applied the political-question doctrine, without explicitly identifying the doctrine, in the election context but outside the gerrymandering context in O'Brien v. Brown, 409 U.S. 1 (1972) (per curiam). In *O'Brien*, the Court addressed an application to stay an order of the U.S. Court of Appeals for the District of Columbia, which had held that the action of the Democratic Party's National Convention's Credentials Committee in refusing to seat certain delegates was unconstitutional. *Id.* at 2. The Court granted the stay, noting that "[w]e must also consider the absence of authority supporting the action of the Court of Appeals in intervening in the internal determinations of a national political party, on the eve of its convention, regarding the seating of delegates. . . . Judicial intervention in this area has traditionally been approached with great caution and restraint." *Id.* at 4 (citing Luther v. Borden, 48 U.S. (7 How.) 1 (1849)).

[2] Black's Law Dictionary 696 (7th ed. 1999). *See also* Rucho v. Common Cause, No. 18-422, slip op. at 8 (U.S. June 27, 2019) ("In 1812, Governor of Massachusetts and future Vice President Elbridge Gerry notoriously approved congressional districts that the legislature had drawn to aid the Democratic-Republican Party. The moniker 'gerrymander' was born when an outraged Federalist newspaper observed that one of the misshapen districts resembled a salamander.").

[3] Unequal districting, also known as malapportionment, was at issue in *Baker v. Carr*. *See* ArtIII.S2.C1.9.1 Overview of Political Question Doctrine.

[4] Shaw v. Reno, 509 U.S. 630 (1993).

spread across multiple districts so that they cannot achieve a majority in any one district.[5] In these circumstances, plaintiffs cannot argue that their votes are inherently worth less than that of any other voter; rather, they must argue that the creation of a district that disfavors a particular political party violates the Constitution for other reasons.[6]

ArtIII.S2.C1.9.10 Evolving Doctrine on Partisan Gerrymandering

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Supreme Court jurisprudence related to partisan gerrymandering has evolved over time. In fractured opinions in the 1986 case *Davis v. Bandemer*, six Justices of the Court concluded that political gerrymandering claims were justiciable.[1] However, subsequent Supreme Court decisions cast doubt on *Bandemer's* holding. Justice Sandra Day O'Connor concurred in the judgment in *Bandemer*, but disputed that the issue presented was justiciable. She argued that "[t]he Equal Protection Clause does not supply judicially manageable standards for resolving purely political gerrymandering claims,"[2] and that the case before the Court required "precisely the sort of 'initial policy determination of a kind clearly for nonjudicial discretion' that *Baker v. Carr* recognized as characteristic of political questions."[3] Justice O'Connor concluded that "the legislative business of apportionment is fundamentally a political affair, and challenges to the manner in which an apportionment has been carried out . . . present a political question in the truest sense of the term."[4]

In the years following *Bandemer*, multiple Justices of the Supreme Court concluded in non-binding opinions that challenges to partisan gerrymandering are nonjusticiable.[5] Like Justice O'Connor in *Bandemer*, those Justices focused primarily on the second and third *Baker* factors: the "lack of judicially discoverable and manageable standards for resolving" these cases and "the impossibility of deciding without an initial policy determination of a kind clearly for nonjudicial discretion."[6] For instance, in 2004, in *Vieth v. Jubelirer*,[7] a plurality of

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[5] *See Rucho*, No. 18-422, slip op. at 4.

[6] *See* Vieth v. Jubelirer, 541 U.S. 267, 305 (2004) (explaining potential theories for how gerrymandering could represent a constitutional violation).

[1] 478 U.S. 109 (1986). Although six Justices found the claim in *Bandemer* to be justiciable, they were unable to agree on a standard for evaluating political gerrymandering claims. *Compare id.* at 132 (in opinion for four Justices, concluding that "unconstitutional discrimination occurs only when the electoral system is arranged in a manner that will consistently degrade a voter's or a group of voters' influence on the political process as a whole") (White, J.), *with id.* at 173–75 (in opinion for two Justices, considering number of factors a court should look at concerning the fairness and constitutionality of a redistricting plan) (Powell, J., concurring in part and dissenting in part).

[2] *Id.* at 147 (O'Connor, J., concurring in the judgment).

[3] *Id.* at 155

[4] *Id.* at 145.

[5] *See infra*.

[6] Baker v. Carr, 369 U.S. 186, 217 (1962).

[7] 541 U.S. 267 (2004).

four Justices voted to overturn *Bandemer* and concluded that political gerrymandering claims were not justiciable due to the lack of such standards.[8] Justice Anthony Kennedy, concurring in the judgment, wrote separately to express his view that, while no standards existed at the time, they might "emerge in the future."[9] Thus, five Justices concluded that the specific political gerrymandering claims at issue in *Vieth* were nonjusticiable, but a majority of the Court left open the possibility of exercising jurisdiction over some future partisan gerrymandering claims. In other cases, the Court divided on or otherwise declined to reach the merits of cases involving partisan gerrymandering.[10]

ArtIII.S2.C1.9.11 Nonjusticiability of Partisan Gerrymandering Claims

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

A majority of the Court addressed the justiciability of partisan gerrymandering claims in the 2019 case *Rucho v. Common Cause*. In that case, voters in North Carolina and Maryland challenged the partisan gerrymandering of their districts under the First Amendment, the Equal Protection Clause, the Elections Clause, and Article I, Section 2 of the Constitution.[1] The Supreme Court, in a 5-4 decision, held that partisan gerrymandering claims are not justiciable. Chief Justice John Roberts's majority opinion described districting as an inherently political process, which the Constitution entrusts to state legislatures and Congress.[2] The Court further explained that the Constitution imposes no absolute right to proportionate political representation.[3] Absent a right to strict proportional representation, the Court opined, courts deciding partisan gerrymandering cases would inevitably need to "make their own political judgment about how much representation particular political parties *deserve*—based on the votes of their supporters—and to rearrange the challenged districts to achieve that end."[4] Thus, unlike claims alleging racial gerrymandering (which is always unconstitutional) or

[8] *Id.* at 305–06.

[9] *Id.* at 311–12 (Kennedy, J., concurring in the judgment).

[10] *See, e.g.*, League of United Latin Am. Citizens v. Perry (LULAC), 548 U.S. 399, 447 (2006) (although unable to agree on a full opinion, agreeing that constitutional challenge to partisan gerrymandering claim should be dismissed); Gill v. Whitford, No. 16-1161, slip op. at 13 (U.S. June 18, 2018) ("Our considerable efforts in *Gaffney*, *Bandemer*, *Vieth*, and *LULAC* leave unresolved whether such claims may be brought in cases involving allegations of partisan gerrymandering. In particular, two threshold questions remain: what is necessary to show standing in a case of this sort, and whether those claims are justiciable. Here we do not decide the latter question because the plaintiffs in this case have not shown standing under the theory upon which they based their claims for relief.").

[1] Rucho v. Common Cause, No. 18-422, slip op. at 1 (U.S. June 27, 2019). *See also* U.S. Const. art. I, § 2, cl. 1 ("The House of Representatives shall be composed of Members chosen every second Year by the People of the several States.").

[2] *Rucho*, No. 18-422, slip op. at 8–9.

[3] *Id.* at 16 ("Our cases, however, clearly foreclose any claim that the Constitution requires proportional representation or that legislatures in reapportioning must draw district lines to come as near as possible to allocating seats to the contending parties in proportion to what their anticipated statewide vote will be.") (quoting Davis v. Bandemer, 478 U.S. 109, 130 (1986)).

[4] *Id.* at 17.

malapportionment (which is "relatively easy to administer as a matter of math"), the *Rucho* Court recognized that the inherently political nature of redistricting would require courts adjudicating partisan gerrymandering claims to adjudicate when partisanship has gone "too far" in influencing the redistricting process.[5]

Quoting Justice Anthony Kennedy's concurrence in *Vieth*, the Court stated that any appropriate standard for resolving partisan gerrymandering claims "must be grounded in a 'limited and precise rationale' and be 'clear, manageable, and politically neutral.'"[6] However, after looking to the text of the Constitution and to various tests proposed by the parties, the *Rucho* Court concluded that it could identify no "limited and precise standard that is judicially discernable and manageable" for evaluating when partisan activity goes too far.[7] Explaining that "federal courts are not equipped to apportion political power as a matter of fairness,"[8] the Court emphasized that, by intervening in disputes over partisan redistricting, federal courts would "inject [themselves] into the most heated partisan issues,"[9] and "would risk assuming political, not legal, responsibility for a process that often produces ill will and distrust."[10] The Court thus concluded that "partisan gerrymandering claims present political questions beyond the reach of the federal courts" because "[f]ederal judges have no license to reallocate political power between the two major political parties, with no plausible grant of authority in the Constitution, and no legal standards to limit and direct their decisions."[11] While acknowledging that "[e]xcessive partisanship in districting leads to results that reasonably seem unjust," the *Rucho* majority rejected the notion that "this Court *can* address the problem of partisan gerrymandering because it *must*."[12] Rather, the Court asserted, state courts, state legislatures, and Congress all have authority to address partisan gerrymandering.[13]

ArtIII.S2.C1.10 Constitutional Avoidance Doctrine

ArtIII.S2.C1.10.1 Overview of Constitutional Avoidance Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Constitutional Avoidance Doctrine is a set of rules the Supreme Court has developed over time that guide a federal court's disposition of cases that raise constitutional questions. Summarized by Justice Louis Brandeis in his concurring opinion in *Ashwander v. Tennessee*

[5] *Id.* at 20.

[6] *Id.* at 15 (quoting Vieth v. Jubelirer, 541 U.S. 267, 306–08 (2004) (Kennedy, J., concurring in the judgment)).

[7] *Id.* at 22.

[8] *Id.* at 17.

[9] *Id.* at 15 (quoting *Bandemer*, 478 U.S. at 145 (O'Connor, J., concurring in the judgment)) (brackets in original).

[10] *Id.* (quoting *Vieth*, 541 U.S. at 307 (Kennedy, J., concurring in the judgment)).

[11] *Id.* at 30.

[12] *Id.* at 30–31 (quoting Gill v. Whitford, No. 16-1161, slip op. at 12–13 (U.S. June 18, 2018)).

[13] *Id.* at 31–33.

ArtIII.S2.C1.10.1
Overview of Constitutional Avoidance Doctrine

Valley Authority, the Constitutional Avoidance Doctrine consists of seven rules generally known as: (1) the Rule Against Feigned or Collusive Lawsuits; (2) Ripeness; (3) Judicial Minimalism; (4) the Last Resort Rule; (5) Standing and Mootness; (6) Constitutional Estoppel; and (7) the Constitutional-Doubt Canon.[1] Rules 1, 2, 5, and 6—the Rule Against Feigned or Collusive Lawsuits, Ripeness, Standing and Mootness, and Constitutional Estoppel—inform whether a federal court should hear a case that has met the minimum Article III case-or-controversy requirements for a federal court to have jurisdiction.[2] As such, these four rules provide a further threshold that a case must clear for a federal court to hear it. By comparison, Rules 3, 4, and 7—Judicial Minimalism, the Last Resort Rule, and the Constitutional-Doubt Canon—address how a federal court should approach a constitutional question in a case before it.

The fundamental principle of the Constitutional Avoidance Doctrine is a federal court should interpret the Constitution only when it is a "strict necessity."[3] The reason for this is threefold: first, because the Constitution is the supreme law of the land, its interpretation has broad implications; second, an unelected Supreme Court exercising judicial review to countermand actions by an elected Congress or Executive or state governments is in tension with principles of democracy; and third, because the Supreme Court's authority depends, as a practical matter, on the Executive enforcing and the people accepting its rulings the Court must be careful not to squander public goodwill by issuing ill-considered opinions.

The Constitutional Avoidance Doctrine provides federal courts procedural and substantive guidance on how to address cases involving constitutional questions. Rules 1, 2, and 5—the Rule Against Feigned or Collusive Lawsuits,[4] Ripeness,[5] and Standing[6] and Mootness[7]—are procedural in nature and ensure that the Court only hears cases that are concrete, rather than speculative, and argued by parties genuinely and personally vested in the outcome such that they are the best advocates for their respective positions. Constitutional Estoppel bars a party from challenging a law's constitutionality when he or she is enjoying the benefits of such law.[8]

Rules 3, 4, and 7—Judicial Minimalism, the Last Resort Rule, and the Constitutional-Doubt Canon—inform how federal courts should resolve constitutional questions in cases before them. Rule 3, Judicial Minimalism, instructs federal courts to answer constitutional questions narrowly and with reference to the specific circumstances at hand. Rule 4, the Last Resort Rule, advises that Justices should resolve cases on non-constitutional

[1] Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 346–48 (1936) (Brandeis, J., concurring). The Constitutional-Doubt Canon is sometimes referred to as the Avoidance Canon. For further discussion on the Constitutional Avoidance Doctrine, see Andrew Nolan, Cong. Rsch. Serv., R43706, The Doctrine of Constitutional Avoidance: A Legal Overview (2014), https://crsreports.congress.gov/product/pdf/R/R43706.

[2] U.S. Const. art. III, § 2, cl. 1 ("The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects".).

[3] Rescue Army v. Mun. Ct. of L.A., 331 U.S. 549, 568 (1947).

[4] The Rule Against Feigned or Collusive Lawsuits corresponds to the adversity requirement discussed in ArtIII.S2.C1.5.1 Overview of Adversity Requirement.

[5] For discussion on Ripeness, see ArtIII.S2.C1.7.1 Overview of Ripeness Doctrine.

[6] For discussion on Standing, see ArtIII.S2.C1.6.1 Overview of Standing.

[7] For discussion on Mootness, see ArtIII.S2.C1.8.1 Overview of Mootness Doctrine.

[8] Fahey v. Mallonee, 332 U.S. 245, 255 (1947) ("[I]t is an elementary rule of constitutional law that one may not 'retain the benefits of the Act while attacking the constitutionality of one of its important conditions.'"). *See also* Buck v. Kuykendall, 267 U.S. 307, 316 (1925) ("[O]ne cannot in the same proceeding both assail a statute and rely upon it. Nor can one who avails himself of the benefits conferred by a statute deny its validity." (citations omitted)).

grounds, if possible, before resolving them on constitutional grounds. And Rule 7, the Constitutional-Doubt Canon, provides that courts should construe a statute to be constitutional if such a construction is plausible.

ArtIII.S2.C1.10.2 Judiciary in the Constitutional Framework

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court developed the Constitutional Avoidance Doctrine to minimize concerns about unelected federal judges setting aside Congress's laws on constitutional grounds. Underlying the Constitution is the principle that government legitimacy depends on the consent of the people. Noting that "Governments are instituted among Men, deriving their just powers from the consent of the governed," the Declaration of Independence justified the colonies' separation from the British Crown, because it had, through "repeated injuries and usurpations," deprived the colonists of government that represented and protected their interests.[1]

Contemplating that popular sovereignty would guard against tyranny, the Framers provided for the people to elect the House of Representatives directly and the Senate and the Executive indirectly. Popular sovereignty, which the Framers viewed as necessary for a free and republican government, meant government by the majority.[2] The Framers, however, feared that conflicting opinions and rivalries among factions of citizens might cause political instability or, if a faction gained a political majority, harm "the public good and the rights of other citizens."[3] To avoid this, the Framers crafted a Constitution that disbursed the limited powers of the new American government across three departments: the Legislative, the Executive, and the Judiciary, each with a unique role in securing for the Republic "a steady, upright, and impartial administration of laws."[4]

The Framers were also concerned that different branches might attempt to expand their powers beyond those granted by the Constitution and upset the balance the Framers designed to "secure the blessings of liberty."[5] Consequently, the Framers provided each branch some

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[1] The Declaration of Independence (1776).

[2] John Locke, Second Treatise § 97 (1689) ("And thus every Man, by consenting with others to make one Body Politick under one Government, puts himself under an Obligation to every one of that Society, to submit to the determination of the *majority*, and to be concluded by it; or else this *original Compact,* whereby he with others incorporates into *one Society*, would signifie nothing and be no Compact, if he be left free, and under no other ties, than he was in before in the state of Nature.").

[3] The Federalist No. 10 (James Madison). *See also* The Federalist No. 51 (James Madison) ("It is of great importance in a republic not only to guard one part of the society against the oppression of its rulers, but to guard one part of the society against the injustice of the other part. Different interests necessarily exist in different classes of citizens. If a majority be united by a common interest, the rights of the minority will be insecure.").

[4] *Id.* No. 50 (James Madison).

[5] U.S. Const. pmbl.

ability to offset the power of the other two.[6] Describing the division of federal power among the three branches in the *Federalist No. 78*, Alexander Hamilton identified the Judicial Branch as posing the least danger to the constitutional framework. He stated:

> Whoever attentively considers the different departments of power must perceive that, in a government in which they are separated from each other, the Judiciary, from the nature of its functions, will always be the least dangerous to the political rights of the Constitution; because it will be least in a capacity to annoy or injure them. The executive not only dispenses the honors but holds the sword of the community. The legislature not only commands the purse but prescribes the rules by which the duties and rights of every citizen are to be regulated. The Judiciary, on the contrary, has no influence over either the sword or the purse; no direction either of the strength or of the wealth of the society, and can take no active resolution whatever. It may truly be said to have neither FORCE nor WILL but merely judgment; and must ultimately depend upon the aid of the executive arm even for the efficacy of its judgments.[7]

Although Hamilton viewed the Judicial Branch as the weakest of the branches, the Framers saw it as critical to preserving the rights of individuals and ensuring that the Legislative and Executive Branches did not exceed their constitutionally-granted powers.[8] Hamilton recognized the Constitution as superior to acts passed by Congress because the Constitution, by virtue of its ratification process,[9] manifests the intentions of the people, whereas acts of Congress merely manifest the intention of the people's agents.[10] He wrote: "[W]henever a particular statute contravenes the Constitution, it will be the duty of the judicial tribunals to adhere to the latter and disregard the former."[11]

Hamilton further described the Judiciary as the "bulwarks of a limited Constitution against legislative encroachments," stating: "[E]very act of a delegated authority, contrary to the tenor of the commission under which it is exercised, is void."[12] Hamilton also viewed the Judiciary as protecting minority interests from potential oppression by the majority, stating:

> This independence of the judges is equally requisite to guard the Constitution and the rights of individuals from the effects of those ill humors which the arts of designing

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[6] The Federalist No. 78 (Alexander Hamilton).

[7] *Id.*

[8] *Id.* ("The complete independence of the courts of justice is peculiarly essential in a limited Constitution. By a limited Constitution, I understand one which contains certain specific exceptions to the legislative authority; such, for instance, as that it shall pass no bills of attainder, no ex-post-facto laws, and the like. Limitations of this kind can be preserved in practice no other way then through the medium of courts of justice, whose duty it must be to declare all acts contrary to the manifest tenor of the Constitution void. Without this, all the reservations of particular rights or privileges would amount to nothing.").

[9] *Id.* No. 40 (James Madison) (describing the Constitution as being submitted to "the people themselves" for ratification). Delegates to state ratifying conventions were selected by popular vote. John Hart Ely, Democracy and Distrust, A Theory of Judicial Review 5 (1980).

[10] The Federalist No. 78 (Alexander Hamilton) ("If there should be an irreconcilable variance between the [Constitution and a statute], that which has the superior obligation and validity ought, of course, to be preferred; or, in other words, the Constitution ought to be preferred to the statute, the intention of the people to the intention of their agents."). *See* The Federalist No. 49 (James Madison) ("As the people are the only legitimate fountain of power, and it is from them that the constitutional charter, under which the several branches of government hold their power is derived."); *see also* M'Culloch v. Maryland, 17 U.S. 316, 404–05 (1819) (Marshall, C.J.) ("The government of the Union, then . . . is, emphatically and truly, a government of the people. In form, and in substance, it emanates from them. Its powers are granted by them, and are to be directly exercised on them, and for their benefit.").

[11] The Federalist No. 78 (Alexander Hamilton) ("If there should be an irreconcilable variance between the [Constitution and a statute], that which has the superior obligation and validity ought, of course, to be preferred; or, in other words, the Constitution ought to be preferred to the statute, the intention of the people to the intention of their agents.").

[12] *Id.*

> men, or the influence of particular conjunctures, sometimes disseminate among the people themselves, and which, though they speedily give place to better information, and more deliberate reflection, have a tendency, in the meantime, to occasion dangerous innovations in the government, and serious oppressions of the minor party in the community.[13]

Whether the Framers intended to authorize the Judiciary to set aside laws passed by the elected legislature, as Hamilton envisioned, has been the subject of debate from the Nation's earliest days. The Constitution does not expressly provide for judicial review. And while it is clear from the *Federalist Papers* that many Framers contemplated judicial review as including the power to invalidate acts that violated the Constitution, it is less clear whether delegates to the state ratification conventions agreed as to what judicial review might entail.[14]

Chief Justice John Marshall's opinion in his seminal 1803 decision, *Marbury v. Madison* firmly entrenched judicial review as a tenet of the new Republic.[15] Chief Justice Marshall saw judicial review as implicit in the Constitution because, among other reasons, written constitutions are the paramount law; legislative acts contrary to the Constitution are thereby void; and the Constitution provides for the judicial department to interpret the law. In *Marbury*, Chief Justice Marshall wrote:

> That the people have an original right to establish, for their future government, such principles as, in their opinion, shall most conduce to their own happiness, is the basis, on which the whole American fabric has been erected. . . . This original and supreme will organizes the government, and assigns, to different departments, their respective powers. . . . Certainly all those who have framed written constitutions contemplate them as forming the fundamental and paramount law of the nation, and consequently the theory of every such government must be, that an act of the legislature, repugnant to the constitution is void. . . . It is emphatically the province and duty of the judicial department to say what the law is. . . . [I]n declaring what shall be the *supreme* law of the land, the *constitution* itself is first mentioned; and not the laws of the United States generally, but those only which shall be made in *pursuance* of the constitution, have that rank. Thus, the particular phraseology of the constitution of the United States confirms and strengthens the principle . . . that a law repugnant to the constitution is void; and that *courts*, as well as other departments, are bound by that instrument.[16]

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[13] *Id.*

[14] There was not always consensus that the federal courts had the power to strike down laws as unconstitutional. President Andrew Jackson once opined: "[T]he opinion of the judges has no more authority over Congress than the opinion of Congress has over the judges, and on that point the President is independent of both." Andrew Jackson, *Veto Message* (July 10, 1832), http://avalon.law.yale.edu/19th_century/ajveto01.asp. After identifying the twenty-five delegates with the greatest impact on the Constitutional Convention, historian Charles Beard identified those who either directly or indirectly supported "judicial control"—John Blair of Virginia, John Dickinson of Delaware, Oliver Ellsworth of Connecticut, Elbridge Gerry of Massachusetts, Alexander Hamilton of New York, William Johnson of Connecticut, Rufus King of Massachusetts, James Madison of Virginia, Luther Martin of Maryland, George Mason of Virginia, Gouverneur Morris of Pennsylvania, Robert Morris of Pennsylvania, William Paterson of New Jersey, Edmund Randolph of Virginia, George Washington of Virginia, Hugh Williamson of North Carolina, and James Wilson of Pennsylvania—either directly or indirectly supported "judicial control." Charles Beard, The Supreme Court and the Constitution 47 (Dover ed. 2006).

[15] Marbury v. Madison, 5 U.S. 137 (1803). For an earlier case recognizing judicial review, see *Hylton v. United States,* 3 U.S. (3 Dall.) 171 (1796). *See also* Herbert Wechsler, Principles, Politics & Fundamental Law (1961) ("The courts have both the title and the duty when a case is properly before them to review the actions of the other branches in the light of constitutional provisions, even though the action involves value choices . . . ."); William Michael Treanor, *Judicial Review Before Marbury*, 58 Stan. L. Rev. 455 (2005); Robert P. Frankel, Jr., *Before Marbury: Hylton v. United States and the Origins of Judicial Review*, 28 J. Sup. Ct Hist. 1 (2003).

[16] *Marbury*, 5 U.S. 137 at 176–80 (emphasis retained). *See also* Trop v. Dulles, 356 U.S. 86, 103 (1958) ("The Judiciary has the duty of implementing the constitutional safeguards that protect individual rights.").

Lending support to the notion that the Constitution contemplates judicial review, the Framers distinguished the Judicial Branch from the Legislative and Executive Branches by freeing it from most forms of political accountability.[17] Unlike the Legislative and Executive Branches, the Federal Judiciary is not subject to elections or term limits. Instead, the President nominates and the Senate approves Justices to the Supreme Court.[18] The Constitution further secures the Judiciary's independence from public pressure and Legislative and Executive Branch influence by providing Justices life tenure during Good Behavior[19] and preventing Congress from reducing the Justices' compensation.[20]

Congress, however, has some checks on the Judiciary. Justices can be impeached,[21] and the Exceptions Clause in Article III grants Congress the power to make "exceptions" and "regulations" to the Supreme Court's appellate jurisdiction.[22] In addition, Congress can dilute the influence of individual Justices by increasing the number of Justices on the Court.[23] Finally, the Judiciary's reliance on the other branches to give effect to its rulings provides a further check: If the Judicial Branch's rulings are not enforced, the Judiciary becomes, in practical effect, a nullity, incapable of meaningfully performing its duty of preserving the Constitution.[24] Consequently, while the Judicial Branch is largely insulated from political pressure, it is not completely insulated.

ArtIII.S2.C1.10.3 Counter-Majoritarian Difficulty

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a*

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[17] The Federalist No. 49 (James Madison) ("The [Judiciary], by the mode of their appointment, as well as by the nature and permanency of it, are too far removed from the people to share much in their prepossessions."). *See also id.* No. 78 (Alexander Hamilton) ("The complete independence of the courts of justice is peculiarly essential in a limited Constitution. By a limited Constitution, I understand one which contains certain specific exceptions to the legislative authority; such, for instance, as that it shall pass no bills of attainder, no ex-post-facto laws, and the like. Limitations of this kind can be preserved in practice no other way then through the medium of courts of justice, whose duty it must be to declare all acts contrary to the manifest tenor of the Constitution void. Without this, all the reservations of particular rights or privileges would amount to nothing.").

[18] U.S. Const. art. II, § 2, cl. 2 ("[The President] shall nominate, and by and with the Advice and Consent of the Senate, shall appoint . . . Judges of the supreme Court . . . .").

[19] The Good Behavior Clause created a "permanent tenure of judicial offices" to ensure an "independent spirit in judges." The Federalist No. 78 (Alexander Hamilton). *See* ArtIII.S1.10.2.3 Good Behavior Clause Doctrine.

[20] The Compensation Clause created a "fixed provision for [the judiciary's] support" to prevent the political branches from having power over a Justice's pecuniary remuneration and, with that, "power over his will." The Federalist No. 79 (Alexander Hamilton). *See* ArtIII.S1.10.3.1 Historical Background on Compensation Clause.

[21] Jared P. Cole & Todd Garvey, Cong. Rsch. Serv., R46013, Impeachment and the Constitution (2019), https://crsreports.congress.gov/product/pdf/R/R46013.

[22] *See* Kevin Lewis, Cong. Rsch. Serv., R44967, Congress's Power over Courts: Jurisdiction Stripping and the Rule of Klein (2018), https://crsreports.congress.gov/product/pdf/R/R44967.

[23] Joanna Lampe, Cong. Rsch. Serv., LSB10562, "Court Packing": Legislative Control Over the Size of the Supreme Court (2020), https://crsreports.congress.gov/product/pdf/LSB/LSB10562.

[24] Chief Justice John Marshall recognized this problem in *Marbury v. Madison*, ruling that while Marbury was entitled to his commission, the Court could not effectuate its delivery because the Judiciary Act of 1793's writs of mandamus provision was unconstitutional. 5 U.S. 137, 176 (1803) ("The authority, therefore, given to the supreme court, by the act establishing the judicial courts of the United States, to issue writs of mandamus to public officers, appears not to be warranted by the constitution; and it becomes necessary to enquire whether a jurisdiction, so conferred, can be exercised.").

State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Constitutional Avoidance Doctrine posits that unelected jurists should exercise caution in striking down laws on constitutional grounds. While Congress can amend statutes when it disagrees with the Supreme Court's statutory interpretations, Congress has no recourse when it disagrees with the Court's constitutional interpretations other than to amend the Constitution.[1] Consequently, judicial review may frustrate the public "by foreclosing all democratic outlet for the deep passions [an] issue arouses, by banishing the issue from the political forum that gives all participants, even the losers, the satisfaction of a fair hearing and an honest fight, [and] by continuing the imposition of a rigid national rule instead of allowing for regional differences."[2] The problem posed by an unelected Supreme Court holding Congress's laws to be unconstitutional and void has been described as the "counter-majoritarian difficulty."[3]

Because the Court relies on public goodwill to ensure its rulings have practical effect, the Court's opinions must be principled so that the public respects the Court's judgments, even when it disagrees with its conclusions. In short, the Supreme Court's authority depends on political majorities being willing to abide by rulings counter to their interests. As the Court observed in *Planned Parenthood v. Casey*: "the Court's power lies . . . in its legitimacy, a product of substance and perception that shows itself in the people's acceptance of the Judiciary as fit to determine what the Nation's law means and to declare what it demands."[4] Consequently, the Supreme Court must ensure the "peaceful coexistence of the counter-majoritarian implications of judicial review and the democratic principles upon which our Federal Government in the final analysis rests."[5] In part to minimize this perceived counter-majoritarian difficulty, the Court developed the Constitutional Avoidance Doctrine to instruct federal courts on how to approach constitutional questions.

ArtIII.S2.C1.10.4 Ashwander and Rules of Constitutional Avoidance

Article III, Section 2, Clause 1:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a

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[1] John Hart Ely, Democracy and Distrust, A Theory of Judicial Review 4–5 (1980) ("[I]n non-constitutional contexts, the court's decisions are subject to overrule or alteration by ordinary statute. The court is standing in for the legislature, and if it has done so in a way the legislature does not approve, it can soon be corrected. When a court invalidates an act of the political branches on constitutional grounds, however, it is overruling their judgment, and normally doing so in a way that is not subject to 'correction' by the ordinary lawmaking process. Thus the central function, and it is at the same time the central problem of judicial review: a body that is not elected or otherwise politically responsibly in any significant way is telling the people's elected representatives that they cannot govern as they'd like.").

[2] *See* Planned Parenthood v. Casey, 505 U.S. 833, 1002 (1992) (Scalia, J., dissenting).

[3] Alexander M. Bickel, The Least Dangerous Branch: The Supreme Court at the Bar of Politics 16–23 (1962). Bickel noted: W]hen the Supreme Court declares unconstitutional a legislative act or the action of an elected executive, it thwarts the will of representatives of the actual people of the here and now; it exercises control, not on behalf of the prevailing majority, but against it. . . . "[I]t is the reason the charge can be made that judicial review is undemocratic." *Id.* at 16–17.

[4] *Casey*, 505 U.S. at 865 (plurality opinion).

[5] United States v. Richardson, 418 U.S. 166, 192 (1974) (Powell, J., concurring).

State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

From early on, the Supreme Court viewed setting aside Congress's laws on constitutional grounds as problematic and has avoided doing so "unless such adjudication is unavoidable."[1] For example, in the 1798 *Calder v. Bull* decision, Justice James Iredell stated: "If any act of Congress, or of the Legislature of a state, violates those constitutional provisions, it is unquestionably void; though, I admit, that as the authority to declare it void is of a delicate and awful nature, the court will never resort to that authority, but in a clear and urgent case."[2] Similarly, in the 1819 *Trustees of Dartmouth College v. Woodward* decision, Chief Justice John Marshall wrote: "On more than one occasion, this court has expressed the cautious circumspection with which it approaches the consideration of [whether a law is constitutional]; and has declared, that in no doubtful case, would it pronounce a legislative act to be contrary to the constitution."[3] And, in the 1827 *Ogden v. Saunders* decision, Justice Bushrod Washington noted that judicial deference to the Legislative Branch means that laws should be presumed constitutional unless "proved beyond all reasonable doubt."[4] Later in the nineteenth century, Chief Justice Morrison Waite stated in the *Union Pacific Railroad v. United States (The Sinking Fund Cases)*: "Every possible presumption is in favor of the validity of a statute, and this continues until the contrary is shown beyond a rational doubt. One branch of the government cannot encroach on the domain of another without danger."[5]

Over five decades later, Justice Louis Brandeis, in his influential concurrence in *Ashwander v. Tennessee Valley Authority*, described the Constitutional Avoidance Doctrine as "a series of rules under which [the Court] has avoided passing upon a large part of all the constitutional questions pressed upon it for decision."[6] The *Ashwander* Rules[7] include:

- Rule 1) The Rule against Feigned or Collusive Lawsuits. Parties to a case must be adverse to each other. Justice Brandeis stated: "The Court will not pass upon the constitutionality of legislation in a friendly, non-adversary, proceeding, declining

[1] Spector Motor Serv., Inc. v. McLaughlin, 323 U.S. 101, 105 (1944).

[2] Calder v. Bull, 3 U.S. 386, 399 (1798) (Iredell, J.). Justice James Iredell further noted that the inverse was also true: "If, on the other hand, the Legislature of the Union, or the Legislature of any member of the Union, shall pass a law, within the general scope of their constitutional power, the Court cannot pronounce it to be void, merely because it is, in their judgment, contrary to the principles of natural justice. The ideas of natural justice are regulated by no fixed standard: the ablest and the purest men have differed upon the subject . . . ." *Id.*

[3] Trustees of Dartmouth Coll. v. Woodward, 17 U.S. 518, 625 (1819) (Marshall, C.J.).

[4] Ogden v. Saunders, 25 U.S. 213, 270 (1827) (Washington, J.) ("But if I could rest my opinion in favour of the constitutionality of the law on which the question arises, on no other ground than this doubt so felt and acknowledged, that alone would, in my estimation, be a satisfactory vindication of it. It is but a decent respect due to the wisdom, the integrity and the patriotism of the legislative body, by which any law is passed, to presume in favour of its validity, until its violation of the constitution is proved beyond all reasonable doubt.").

[5] Union Pacific Railroad v. United States (The Sinking Fund Cases), 99 U.S. 700, 718 (1878).

[6] Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 346 (1936) (Brandeis, J. concurring). In *Ashwander*, Chief Justice Charles Evans Hughes in a plurality opinion upheld Congress's constitutional authority to construct the Wilson Dam and dispose of the resulting electric energy. *Id.* at 326–30. Justice Brandeis argued that the Court should not have addressed the constitutional questions involved in the case, because Ashwander had not suffered an injury sufficient to bring the suit. *Id.* at 341–44. The Constitutional Avoidance Canon guides all federal courts. American Foreign Serv. Ass'n v. Garfinkel, 490 U.S. 153, 161 (1989).

[7] *Ashwander*, 297 U.S. at 346–48 (Brandeis, J. concurring). The Constitutional-Doubt Canon is sometimes referred to as the Avoidance Canon.

because to decide such questions 'is legitimate only in the last resort, and as a necessity in the determination of real, earnest, and vital controversy between individuals.'"[8]

- Rule 2) Ripeness. The court should not resolve constitutional questions prematurely. As Justice Brandeis wrote: "The Court will not 'anticipate a question of constitutional law in advance of the necessity of deciding it'"[9] and "'[i]t is not the habit of the Court to decide questions of a constitutional nature unless absolutely necessary to a decision of the case.'"[10]
- Rule 3) Judicial Minimalism. The court should decide questions of constitutional law narrowly. Justice Brandeis stated: "The Court will not 'formulate a rule of constitutional law broader than is required by the precise facts to which it is to be applied.'"[11]
- Rule 4) The Last Resort Rule. If possible, a court should resolve a case on non-constitutional grounds instead of resolving it on constitutional grounds. Explaining this rule, Justice Brandeis stated: "The Court will not pass upon a constitutional question . . . if there is also present some other ground upon which the case may be disposed . . . . [I]f a case can be decided on either of two grounds, one involving a constitutional question, the other a question of statutory construction or general law, the Court will decide only the latter."[12] He further added: "Appeals from the highest court of a state challenging its decision of a question under the Federal Constitution are frequently dismissed because the judgment can be sustained on an independent state ground."[13]
- Rule 5) Standing and Mootness. The complainant should suffer an actual injury; as Justice Brandeis noted: "The Court will not pass upon the validity of a statute upon complaint of one who fails to show that he is injured by its operation."[14]
- Rule 6) Constitutional Estoppel. A party cannot challenge a law's constitutionality when he or she enjoys the benefits of such law.[15] Justice Brandeis stated: "The Court

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[8] *Id.* at 346 (quoting Chicago & Grand Trunk Ry. v. Wellman, 143 U.S. 339, 345 (1892)). The Rule Against Feigned or Collusive Lawsuits corresponds to the adversity requirement discussed in ArtIII.S2.C1.5.1 Overview of Adversity Requirement.

[9] *Id.* at 346–47 (quoting Liverpool, N.Y. & Phila. S.S. Co. v. Comm'rs of Emigration, 113 U.S. 33, 39 (1885) and citing Proprietors of Charles River Bridge v. Proprietors of Warren Bridge, 36 U.S. (11 Pet.) 420, 553 (1837); Trademark Cases, 100 U.S. 82, 96 (1879); Arizona v. California, 283 U.S. 423, 462–64 (1931); Abrams v. Van Schaick, 293 U.S. 188 (1934); and Wilshire Oil Co. v. United States, 295 U.S. 100 (1935)). The ripeness requirement is discussed, in ArtIII.S2.C1.7.1 Overview of Ripeness Doctrine.

[10] *Ashwander*, 297 U.S. at 347 (quoting Burton v. United States, 196 U.S. 283, 295 (1905)).

[11] *Id.* (quoting Liverpool, N.Y. & Phila. S.S. Co. v. Emigration Comm'rs, 113 U.S. 33, 39 (1885)).

[12] *Id.* (quoting Siler v. Louisville & Nashville R.R., 213 U.S. 175, 191 (1909); Light v. United States, 220 U.S. 523, 538 (1911)).

[13] *Id.* (citing Berea Coll. v. Ky., 211 U.S. 45, 53 (1908)).

[14] *Id.* at 347–48 (citing Columbus & Greenville Railway v. Miller, 283 U.S. 96, 99–100 (1939); Concordia Fire Institute Co. v. Illinois, 292 U.S. 535, 547 (1934); Corp. Comm'n of Okla. v. Lowe, 281 U.S. 431, 438 (1930); Sprout v. South Bend, 277 U.S. 163, 167 (1928); Massachusetts v. Mellon, 262 U.S. 447 (1923); Fairchild v. Hughes, 258 U.S. 126 (1922); Heald v. District of Columbia, 259 U.S. 114, 123 (1922); Hendrick v. Maryland, 235 U.S. 610, 621 (1915); Hatch v. Reardon, 204 U.S. 152, 160–61 (1907); Tyler v. The Judges, 179 U.S. 405 (1900)). Standing and mootness are discussed, in ArtIII.S2.C1.6.1 Overview of Standing and ArtIII.S2.C1.8.1 Overview of Mootness Doctrine, respectively.

[15] Fahey v. Mallonee, 332 U.S. 245, 255 (1947) ("[I]t is an elementary rule of constitutional law that one may not 'retain the benefits of the Act while attacking the constitutionality of one of its important conditions.'" (citations omitted)). *See also* Buck v. Kuykendall, 267 U.S. 307, 316 (1925) ("[O]ne cannot in the same proceeding both assail a statute and rely upon it. Nor can one who avails himself of the benefits conferred by a statute deny its validity." (citations omitted)).

will not pass upon the constitutionality of a statute at the instance of one who has availed himself of its benefits."[16]

- Rule 7) The Constitutional-Doubt Canon. Courts should construe statutes to be constitutional if such a construction is plausible. Explaining this requirement, Justice Brandeis noted: "'When the validity of an act of the Congress is drawn in question, and even if a serious doubt of constitutionality is raised, it is a cardinal principle that this Court will first ascertain whether a construction of the statute is fairly possible by which the question may be avoided.'"[17]

ArtIII.S2.C1.10.5 Judicial Minimalism

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Providing substantive guidance on how courts should address constitutional questions, judicial minimalism instructs that courts should not issue rulings "[in] broader [terms] than [are] required by the precise facts to which [the ruling] is to be applied"[1] or "formulate a rule of constitutional law broader than is required by the precise facts to which it is to be applied."[2] Instead, courts should limit their rulings to the facts of the instant case and avoid establishing broad precedents. Courts can use judicial minimalism to forestall ruling on politically sensitive issues, thereby allowing the elected legislature to craft a political resolution of the question.[3] In addition, by drafting opinions narrowly, Justices may find it easier to build consensus in the Court by reducing the scope of issues to which they must agree.

When employing judicial minimalism, courts frequently pass over questions of constitutional import to focus more narrowly on issues specific to the case. For instance, in *Liverpool, N.Y. & Philadelphia Steamship Co. v. Commissioners on Emigration*,[4] the Court was asked whether Congress could (1) ratify state laws that were previously struck down as unconstitutional state regulation of foreign commerce, or (2) bar claims for damages that the

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[16] *Ashwander*, 297 U.S. at 348 (citing St. Louis Malleable Casting Co. v. Prendergast Construction Co., 260 U.S. 469 (1923); Wall v. Parrot Silver & Copper Co. 244 U.S. 407, 411–12 (1917); Great Falls Manufacturing Co. v. Garland, 124 U.S. 581 (1888)).

[17] *Id.* (quoting Crowell v. Benson, 285 U.S. 22, 62 (1932) and citing Interstate Com. Comm'n v. Or.-Wash. R.R. & Navigation Co., 288 U.S. 14, 40 (1933); Lucas v. Alexander, 279 U.S. 573, 577 (1929); Richmond Screw Anchor Co. v. United States, 275 U.S. 331, 346 (1928); Blodgett v. Holden, 275 U.S. 142, 148 (1928); Mo. Pac. R.R. v. Boone, 270 U.S. 466, 471–72 (1926); Panama R.R. v. Johnson, 264 U.S. 375, 390 (1924); Linder v. United States, 268 U.S. 5, 17–18 (1922); Texas v. E. Tex. R.R., 258 U.S. 204, 217 (1922); Baender v. Barnett, 255 U.S. 224 (1921); United States v. Jin Fuey Moy, 241 U.S. 394, 401 (1916); United States v. Del. & Hudson Co., 213 U.S. 366, 407–08 (1909)).

[1] Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 347 (1936) (quoting Liverpool, N.Y. & Phila. S.S. Co. v. Comm'rs of Emigration, 113 U.S. 33, 39 (1885)).

[2] *Liverpool, N.Y. & Phila. S.S. Co.*, 113 U.S. at 39.

[3] *See, e.g.*, Shelby Cnty. v. Holder, 570 U.S. 529 (2013) (limiting ruling to Voting Rights Act (VRA) Section 4 and suggesting that Congress revisit related VRA Section 5).

[4] *Liverpool*, 113 U.S. 33.

unconstitutional state laws caused.[5] Noting that the case presented questions as to "the constitutionality of the act of congress" that were "of very grave importance,"[6] the Court held it was "constrained to reverse the judgment, without deciding any of them."[7] In making this decision, the Court observed it was bound by two rules: "one, never to anticipate a question of constitutional law in advance of the necessity of deciding it; the other, never to formulate a rule of constitutional law broader than is required by the precise facts to which it is applied."[8] Focusing on the case's record, the Court found it incomplete and remanded the case for a new trial to determine the missing facts.[9]

Later, in *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Commission*, the Court passed over complex constitutional issues to resolve the case on grounds specific to its facts. In *Masterpiece Cakeshop*, the question before the Supreme Court was whether a Colorado civil rights statute, which protected gay persons from being discriminated against when they were trying to procure goods and services, violated the First Amendment by requiring a baker to create a wedding cake for a same-sex couple. The baker viewed creating the cake to be an expressive artistic statement, and the civil rights statute as compelling him to use his artistry to express a message endorsing same-sex marriage despite his "sincere religious beliefs and convictions" to the contrary.[10] Recognizing the conundrum presented by the case, the Court commented that while "religious and philosophical objections [to same-sex marriage] are protected, it is a general rule that such objections do not allow business owners . . . to deny protected persons equal access to goods and services under a neutral and generally applicable public accommodations law."[11] The Court, however, also took note of the baker's view that requiring him to create the cake amounted to forcing him to make an artistic expressive statement contrary to his religious beliefs.

In a decision written by Justice Anthony Kennedy, the Court adopted a judicial minimalist approach. Instead of addressing the constitutional questions raised by the interplay of the Colorado civil rights statute and the baker's First Amendment free exercise and free speech rights, the Court found that, during hearings before the Colorado Civil Rights Commission, several commissioners denigrated the baker's religious beliefs, thereby violating his free exercise rights. Finding that "the Commission's hostility was inconsistent with the First Amendment's guarantee that our laws be applied in a manner that is neutral toward religion," the Court ruled in favor of the baker.[12] The Court emphasized, however, the limited application of *Masterpiece Cakeshop* to other cases, stating:

> The outcome of cases like this in other circumstances must await further elaboration in the courts, all in the context of recognizing that these disputes must be resolved with

[5] *Id.* at 36.

[6] *Id.*

[7] *Id.*

[8] *Id.* Justice Stanley Matthews also cited ripeness as a reason to remand the case. *Id.* at 39.

[9] *Id.*

[10] Masterpiece Cakeshop, Ltd. v. Colo. Civil Rights Comm'n, No. 16-111, slip op. at 1–2 (U.S. June 4, 2018).

[11] *Id.* at 9.

[12] *Id.* at 18. Discussing the actions of the commissioners, the Court stated: "The official expressions of hostility to religion in some of the commissioners' comments—comments that were not disavowed at the Commission or by the State at any point in the proceedings that led to affirmance of the order—were inconsistent with what the Free Exercise Clause requires." *Id.* The Court also noted that the Commission's treatment of the baker differed from its treatment of other bakers who had refused to prepare cakes with messages that they found offensive. The Court stated: "The Commission's disparate consideration of Phillips' case compared to the cases of the other bakers suggests the same." *Id.*

> tolerance, without undue disrespect to sincere religious beliefs, and without subjecting gay persons to indignities when they seek goods and services in an open market.[13]

A variation on the judicial minimalist approach is the practice of "assuming but not deciding" a constitutional issue. In these decisions, the Court foregoes resolving an underlying constitutional question, in favor of treating the constitutional question as resolved for the limited purpose of deciding the instant case. Such an approach enables the Court to resolve the dispute at issue without determining the underlying constitutional question. For instance, in *National Aeronautics & Space Administration (NASA) v. Nelson*, the Court chose to "assume, without deciding," that the Constitution protects informational privacy.[14] Based on this assumption, the Court found that NASA's background checks did not violate the "assumed" constitutionally protected right to informational privacy. While "assuming but not deciding" allows the Court to resolve time-sensitive disputes while deferring resolution of thorny or politically sensitive constitutional questions, some have characterized the approach as disingenuous. Arguing that the *NASA* decision "makes no sense," Justice Antonin Scalia, while concurring in the judgment, wrote: "The Court decides that the Government did not violate the right to informational privacy without deciding whether there *is* a right to informational privacy . . . ."[15]

In summary, judicial minimalism enables the Court to develop binding precedent on a legal issue slowly, thereby providing opportunity for the government's Legislative and Executive Branches to resolve contested constitutional issues through the political process. Judicial minimalism further alleviates the counter-majoritarian difficulty because the resulting decisions are unlikely to have far-reaching precedential impacts, while still resolving the case before the court. Judicial minimalism, however, may lead to decisions that provide limited guidance to future courts, to the Legislative and Executive Branches, and to the public as to what the Constitution permits.

ArtIII.S2.C1.10.6 Last Resort Rule

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

[13] *Id.* The Court further emphasized the ruling's narrowness, stating: "Given all these considerations, it is proper to hold that whatever the outcome of some future controversy involving facts similar to these, the Commissioners' actions here violated the Free Exercise Clause; and its order must be set aside." *Id.* at 3. *See also* Scheutte v. Coal. to Defend Affirmative Action, 572 U.S 291, 314 (2014) (ruling on Michigan referendum, rather than broader racial issues); Harris v. Quinn, 573 U.S. 616, 656 (2014) (refusing to extend Abood v. Detroit Board of Education, 431 U.S. 209 (1977)).

[14] National Aeronautics & Space Admin. v. Nelson, 562 U.S, 134, 138 (2011) (Alito, J.) ("We assume, without deciding, that the Constitution protects a privacy right of the sort mentioned in *Whalen* and *Nixon*. We hold, however, that the challenged portions of the Government's background check do not violate this right in the present case.").

[15] *Id.* at 165 (Scalia, J., concurring) (emphasis retained). Justice Antonin Scalia further noted: "I fail to see the minimalist virtues in delivering a lengthy opinon analyzing that right while coyly noting that the right is 'assumed' rather than 'decided.'" *Id.*

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Under the Last Resort Rule, a court should "not pass upon a constitutional question . . . if there is also present some other ground upon which the case may be disposed."[1] Accordingly, if a court can resolve a case on both constitutional and non-constitutional grounds, the court should do so on non-constitutional grounds.[2] By doing so, the court avoids creating constitutional precedent unnecessarily, while giving the political process time to resolve contentious constitutional issues. Because the Last Resort Rule informs the order in which the Court should address constitutional and non-constitutional questions in a case, it is sometimes described as a "rule of judicial procedure."[3]

An example of the Court's use of the Last Resort Rule is its decision in *Bond v. United States*.[4] In *Bond*, federal prosecutors charged Carol Bond with violating Section 229 of the Chemical Weapons Convention Implementation Act (CWCIA) when she caused "a minor thumb burn readily treated by rinsing with water" to her husband's lover by applying toxic chemicals to the paramour's car, mailbox, and door knob.[5] Bond argued that Section 229 (1) "exceeded Congress's enumerated powers and invaded powers reserved to the States by the Tenth Amendment"[6] and (2) did not apply to her because "her conduct, though reprehensible, was not at all 'warlike.'"[7] Faced with resolving *Bond* on either statutory or constitutional grounds, the Court, relying on the Last Resort Rule, considered first whether it could resolve the case based on Bond's argument that Section 229 did not apply to her actions.[8] After analyzing the CWCIA, the Court concluded that Congress did not intend for Section 229 to apply to Bond's circumstance.[9]

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[1] Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 347 (1936) (Brandeis, J., concurring). *See also* Eustis v. Bolles, 150 U.S. 361, 366 (1893) ("[W]here the record discloses that if a question has been raised and decided adversely to a party claiming the benefit of a provision of the constitution or laws of the United States, another question, not federal has been also raised and decided against such party, and the decision of the latter question is sufficient, notwithstanding the federal question, to sustain the judgment, this court will not review the judgment.").

[2] Berea Coll. v. Kentucky, 211 U.S. 45, 53 (1908) ("[W]hen a state court decides a case upon two grounds, one Federal and the other non-Federal, this court will not disturb the judgment if the non-Federal ground, fairly construed, sustains the decision."); Allen v. Arguimbau, 198 U.S. 149, 154–55 (1905) ("[I]f the judgment rested on two grounds, one involving a Federal question and the other not, or if it does not appear on which of two grounds the judgment was based, and the ground independent of a Federal question is sufficient in itself to sustain it, this court will not take jurisdiction."); Murdock v. Memphis, 87 U.S. 590, 636 (1874) ("If [the judgment] was erroneously decided against plaintiff in error, then this court must further inquire, whether there is any other matter or issue adjudged by the State court, which is sufficiently broad to maintain the judgment of that court, notwithstanding the error in deciding the issue raised by the Federal question. If this is found to be the case, the judgment must be affirmed without inquiring into the soundness of the decision on such other matter or issue.").

[3] Antonin Scalia & Bryan A. Garner, Reading Law: The Interpretation of Legal Texts 251 (2012).

[4] Bond v. United States, 572 U.S. 844 (2014).

[5] *Id.* at 852.

[6] *Id.* at 853. Discussing Bond's constitutional claim, the Court noted that, under the Constitution, the states retained "broad authority to enact legislation for the public good-what we have often called a 'police power.'" *Id.* at 854 (citing United States v. Lopez, 514 U.S. 549, 567 (1995)). As a consequence, the Court explained, "[a] criminal act committed wholly within a State 'cannot be made an offence against the United States, unless it have some relation to the execution of a power of Congress, or to some matter within the jurisdiciton of the United States.'" *Id.* (quoting United States v. Fox, 95 U.S. 670, 672 (1878)).

[7] *Id.* at 853.

[8] *Id.* at 855.

[9] *Id.* at 866 ("[I]f section 229 reached Bond's conduct, it would mark a dramatic departure from that constitutional structure and a serious reallocation of criminal law enforcement authority between the Federal Government and the States. Absent a clear statement of that purpose, we will not presume Congress to have authoried such a stark intrusion into traditional state authority.").

ArtIII.S2.C1.10.6
Last Resort Rule

Based on the Last Resort Rule, the Supreme Court has remanded cases involving constitutional questions to lower courts to see if the case can be resolved on statutory grounds. For example, in *Escambia County v. McMillan*, the Supreme Court remanded a case affirmed by the appellate court on constitutional grounds because the district court also found a statutory violation.[10] The Supreme Court instructed the appellate court to determine if it could affirm the district court's decision based on the statutory rather than the constitutional ruling.[11] In other cases, the Court has avoided ruling on a constitutional question by deciding a case based on statutory reasons not considered by the lower court.[12] For instance, the Court resolved *Siler v. Louisville & Nashville Railroad* by ruling that the Railroad Commission violated a Kentucky statute—an issue the Kentucky state court had not considered.[13] By reaching this conclusion, the Court avoided addressing *Siler*'s constitutional questions.[14]

Siler concerned questions of federal and state law. While the Supreme Court interpreted the Kentucky statute in *Siler*, the Court often remands cases involving constitutional and state law issues to state courts so they can first resolve state law questions. Consistent with this approach, the Supreme Court has dismissed state court appeals based on constitutional questions if state law can sustain the judgment.[15] Besides avoiding constitutional questions, remanding state law questions to state courts has other advantages: First, the Court avoids using its resources to decide questions where its decisions would be advisory.[16] Second, the Court acknowledges state expertise and autonomy to interpret state laws.[17] Declining to rule on a constitutional question when a ruling on either of two state laws could resolve the case,[18] the Court observed:

> The doctrine that the Court will not "anticipate a question of constitutional law in advance of the necessity of deciding it" . . . is a well-settled doctrine of this Court

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[10] Escambia Cnty. v. McMillan, 466 U.S. 48, 51 (1984).

[11] *Id.*

[12] Siler v. Louisville & Nashville R.R., 213 U.S. 175, 191 (1909) ("This court . . . can, if it deem it proper, decide the local questions only, and omit to decide the federal questions."). *See also* Jean v. Nelson, 472 U.S. 846 (1985); United States v. Locke, 471 U.S. 84 (1985); Gulf Oil Co. v. Bernard, 452 U.S. 89 (1981). *But see* Pennhurst State Sch. & Hosp. v. Halderman, 465 U.S. 89 (1984) (holding Eleventh Amendment bars federal courts from hearing state law cases when the state is the defendant).

[13] *Siler*, 213 U.S. at 194

[14] *Id.* at 193.

[15] Berea Coll. v. Kentucky, 211 U.S. 45, 53 (1908) ("[W]hen a state court decides a case upon two grounds, one Federal and the other non-Federal, this court will not disturb the judgment if the non-Federal ground, fairly construed, sustains the decision." (citations omitted)). *See also* Allen v. Arguimbau, 198 U. S. 149, 154–55 (1905).

[16] Michigan v. Long, 463 U.S. 1032, 1040–41 (1983) ("Respect for the independence of state courts, as well as avoidance of rendering advisory opinions, have been the cornerstones of this Court's refusal to decide cases where there is an adequate and independent state ground. It is precisely because of this respect for state courts, and this desire to avoid advisory opinions, that we do not wish to continue to decide issues of state law that go beyond the opinion that we review, or to require state courts to reconsider cases to clarify the grounds of their decisions."). *See also* Erie R.R. v. Tompkins, 304 U.S. 64, 79 (1938) ("[Federal] [s]upervision over either the legislative or the judicial action of the states is in no case permissible except as to matters by the constitution specifically authorized or delegated to the United States. Any interference with either, except as thus permitted, is an invasion of the authority of the state, and, to that extent, a denial of its independence.").

[17] Giles v. Teasley, 193 U.S. 146, 160 (1904) ("[I]f the decision of a state court rests on an independent ground—one which does not necessarily include a determination of the Federal right claimed—or upon a ground broad enough to sustain it without deciding the Federal question raised, this court has no jurisdiction to review the judgment of the state court." (citations omitted)). *See also* Wade v. Lawder, 165 U.S. 624, 628 (1897) ("The decree rested on grounds broad enough to sustain it without reference to any federal question."); Dower v. Richards, 151 U.S. 658, 666 (1894) ("[A] writ of error can be sustained only when the decision of the state court is against a right claimed under the constitution and laws of the United States. And if the decision of the state court rests on an independent ground of law, not involving any federal question, this court has no jurisdiction." (citations omitted)).

[18] Clay v. Sun Ins. Office Ltd., 363 U.S. 207 (1960).

> which, because it carries a special weight in maintaining proper harmony in federal-state relations, must not yield to the claim of the relatively minor inconvenience of postponement of decision.[19]

Third, the Court avoids having to rule on unfamiliar state law. In *Spector Motor Service v. McLaughlin*, the Court ruled that federal litigation should be held pending state court resolution of "intertwined" local law.[20] Justice Felix Frankfurter stated:

> [W]e have insisted that federal courts do not decide questions of constitutionality on the basis of preliminary guesses regarding local law. Avoidance of such guesswork, by holding the litigation in the federal courts until definite determinations on local law are made by the state courts, merely heeds this time-honored canon of constitutional adjudication.[21]

The Court has used the Last Resort Rule to avoid politically contentious issues. For example, in *Railroad Commission of Texas v. Pullman Co.*, the Court directed the parties to litigate their state law questions in state court and ordered the lower federal court to hold the federal case in abeyance pending the state litigation. By doing this, the Court avoided ruling on the politically charged issue of whether the Railroad Commission of Texas violated the Constitution by requiring white Pullman conductors, and not black Pullman porters, to operate sleeping cars. Reasoning that "[s]uch constitutional adjudication plainly can be avoided if a definitive ruling on the state issue would terminate the controversy," Justice Frankfurter stated: "[The equal protection issue] touches a sensitive area of social policy upon which the federal courts ought not to enter unless no alternative to its adjudication is open."[22]

ArtIII.S2.C1.10.7 Constitutional-Doubt Canon

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Posited on the premise that Congress "legislates in the light of constitutional limitations,"[1] the Constitutional-Doubt Canon provides that federal courts should construe statutes so that

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[19] *Id.* at 211–12 (citations omitted).

[20] Spector Motor Serv. v. McLaughlin, 323 U.S. 101, 105 (1944).

[21] *Id. See also* Burford v. Sun Oil Co., 319 U.S. 315, 333 (1943); City of Chicago v. Fieldcrest Dairies, 316 U.S. 168, 173 (1942).

[22] R.R. Comm'n of Tex. v. Pullman Co., 312 U.S. 496, 498 (1941). *See also* Harris Cnty. Comm'r v. Moore, 420 U.S. 77, 88–89 (1975) (holding federal court to abstain until Texas court resolves state constitutional questions); Reetz v. Bozanich, 397 U.S. 82, 87 (1970) ("[T]he federal court should have stayed its hand while the parties repaired to the state courts for a resolution of their state constitutional questions.").

[1] Rust v. Sullivan, 500 U.S. 173, 191 (1991). *See also* Rostker v. Goldberg, 453 U.S. 57, 64 (1981) ("The Congress is a coequal branch of government whose Members take the same oath as [the judiciary] to uphold the Constitution of the United States.").

they do not violate the Constitution.[2] Describing the Constitutional-Doubt Canon, Justice Louis Brandeis stated: "When the validity of an act . . . is drawn in question, and even if a serious doubt of constitutionality is raised . . . [the Court] will first ascertain whether a construction of the statute is fairly possible by which the question may be avoided."[3] Consequently, if a statute is susceptible to two plausible interpretations, one of which violates the Constitution, the Constitutional-Doubt Canon instructs courts to choose the interpretation consistent with the Constitution.[4] If the statute is not susceptible to a plausible constitutional interpretation, the Constitutional-Doubt Canon is inapplicable.[5] The Constitutional-Doubt Canon cannot be construed to make a statute broader[6] or be applied to Executive actions.[7]

[2] McFadden v. United States, 576 U.S. 186, 197 (2015) ("[T]his canon 'is a tool for choosing between competing plausible interpretations of a provision.'" (citations omitted)); Warger v. Shauers, 574 U.S. 40, 50 (2014) ("[The canon] 'has no application in the absence of . . . ambiguity.'" (citations omitted)); Scales v. United States, 367 U.S. 203, 211 (2009) ("Although this Court will often strain to construe legislation so as to save it against constitutional attack, it must not and will not carry this to the point of perverting the purpose of a statute."); Aptheker v. Sec'y of State, 378 U.S. 500, 515 (1964) ("[T]his Court will not consider the abstract question of whether Congress might have enacted a valid statute but instead must ask whether the statute that Congress did enact will permissibly bear a construction rendering it free from constitutional defects."). *See also* Clark v. Martinez, 543 U.S. 371, 381 (2005); United States v. Oakland Cannabis Buyers' Coop., 532 U.S. 483, 494 (2001).

[3] Ashwander v. Tenn. Valley Auth., 297 U.S. 288, 348 (1936) (Brandeis, J., concurring). *See* United States v. Palomar-Santiago, No. 20-437, slip op. at 7 (U.S. May 24, 2021) ("Courts should indeed construe statutes 'to avoid not only the conclusion that [they are] unconstitutional, but also grave doubts upon that score.'" (citations omitted)); Nielsen v. Preap, No. 16-1363, slip op. at 25 (U.S. Mar. 19, 2019) ("This canon provides that '[w]hen a serious doubt is raised about the constitutionality of an act of Congress, . . . this Court will first ascertain whether a construction of the statute is fairly possible by which the question may be avoided.'" (citations omitted)); Crowell v. Benson, 285 U.S. 22, 62 (1932) ("When the validity of an act of the Congress is drawn in question, and even if a serious doubt of constitutionality is raised, it is a cardinal principle that this Court will first ascertain whether a construction of the statute is fairly possible by which the question may be avoided."); Blodgett v. Holden, 275 U.S. 142, 148 (1927) ("[A]s between two possible interpretations of a statute, by one of which it would be unconstitutional and by the other valid, our plain duty is to adopt that which will save the Act. Even to avoid a serious doubt the rule is the same."); United States v. Jin Fuey Moy, 241 U.S. 394, 401 (1916) ("A statute must be construed, if fairly possible, so as to avoid not only the conclusion that it is unconstitutional, but also grave doubts upon that score.").

[4] Jennings v. Rodriguez, No. 15-1204, slip op. at 12 (U.S. Feb. 27, 2018) ("When 'a serious doubt' is raised about the constitutionality of an act of Congress, 'it is a cardinal principle that this Court will first ascertain whether a construction of the statute is fairly possible by which the question may be avoided.'" (citations omitted)); Almendarez-Torres v. United States, 523 U.S. 224, 238 (1998) (construction of statute that avoids invalidation best reflects congressional will); United States v. Harris, 347 U.S. 612, 618 (1954) ("[I]f this general class of offenses can be made constitutionally definite by a reasonable construction of the statute, this Court is under a duty to give the statute that construction."); United States v. Rumely, 345 U.S. 41, 45 (1953) (noting canon is controlling "in the choice of fair alternatives" (citations omitted)); Michaelson v. United States, 266 U.S. 42 (1924) (construing Clayton Act narrowly to avoid constitutional questions); United States *ex rel.* Att'y Gen. v. Del. & Hudson Co., 213 U.S. 366, 407 (1909) ("[W]hen the constitutionality of a statute is assailed, if the statute be reasonably susceptible of two interpretations, by one of which it would be unconstitutional and by the other valid, it is our plain duty to adopt that construction which will save the statute from constitutional infirmity."). *See also* Bond v. United States, 572 U.S. 844 (2014); Skilling v. United States, 561 U.S. 358, 405–06 & n.40 (2010); Gonzales v. Carhart, 550 U.S. 124, 153–54 (2007); Zadvydas v. Davis, 533 U.S. 678 (2001); United States v. X-Citement Video, Inc., 513 U.S. 64, 78 (1994); Peretz v. United States, 501 U.S. 923, 929–30 (1991); Gomez v. United States, 490 U.S. 858, 864 (1989); Public Citizen v. Dep't of Just., 491 U.S. 440, 465–67 (1989); Edward J. DeBartolo Corp. v. Fla. Gulf Coast Bldg. & Constr. Trades Council, 485 U.S. 568, 575 (1988); Boos v. Barry, 485 U.S. 312, 330–331 (1988); Lowe v. Sec. & Exch. Comm'n, 472 U.S. 181, 227 (1985) (White, J., concurring); Schneider v. Smith, 390 U.S. 17, 26 (1968); Crowell v. Benson, 285 U.S. 22, 62 (1932); United States v. Jin Fuey Moy, 241 U.S. 394, 401 (1916); Hooper v. California, 155 U.S. 648, 657 (1895).

[5] *Jennings*, No. 15-1204, slip op. at 12 ("In the absence of more than one plausible construction, the canon simply 'has no application.'" (citations omitted)); Moore Ice Cream Co. v. Rose, 289 U.S. 373, 379 (1933) ("But avoidance of a difficulty will not be pressed to the point of disingenuous evasion. Here the intention of the Congress is revealed too distinctly to permit us to ignore it because of mere misgivings as to power. The problem must be faced and answered.").

[6] United States v. Davis, No. 18-431, slip op. at 17 (U.S. June 24, 2019) ("[W]hen presented with two "fair alternatives," this Court has sometimes adopted the *narrower* construction of a criminal statute to avoid having to hold it unconstitutional if it were construed more broadly. But no one before us has identified a case in which this Court has invoked the canon to *expand* the reach of a criminal statute in order to save it. Yet that is exactly what the government seeks here.").

The Constitutional-Doubt Canon provides a way for the Court to avoid ruling on constitutional questions that are contentious or where the Court's interpretation would meet with general, public disfavor. By choosing to interpret a statute to conform with constitutional requirements, the Court communicates to Congress, in effect, what the Court believes the Constitution requires. As Congress has the power to amend law, if Congress disagrees with how the Court has interpreted a statute, Congress can revise the statute. While this leaves open the possibility that the Court will have to revisit the constitutional question in the context of the revised statute, the Constitutional-Doubt Canon has allowed the issue to be publicly vetted further and possibly resolved through the political process. If Congress does not amend the statute, the Court's constitutionally compliant interpretation of the statute governs despite another interpretation having possibly been a more natural reading of the statute.

The Court has stressed that the Constitutional-Doubt Canon does not give courts leeway to interpret a statute in a manner that effectively rewrites the statute to conform to the Constitution.[8] In *United States v. Locke*, the Court stated: "[w]e cannot press statutory construction 'to the point of disingenuous evasion' even to avoid a constitutional question."[9] Instead, applying conventional tools of statutory interpretation, the Court must find the statute to be subject to two valid interpretations. In *Jennings v. Rodriguez*, the Court stated: "The canon of constitutional avoidance 'comes into play only when, after the application of ordinary textual analysis, the statute is found to be susceptible of more than one construction.'"[10]

The Constitutional-Doubt Canon has been criticized as incentivizing the Court to interpret statutes in ways that appear to defy the statute's express language in order to avoid resolving contentious constitutional questions.[11] However, the Court may believe that a political, rather than judicial, resolution to certain issues would be preferable for the Nation. For instance, in *United States v. Seeger*[12] and *Welsh v. United States*,[13] the Court was confronted with whether the conscientious objector provisions of Section 6(j) of the Universal Military Training and Service Act violated the Constitution's Establishment and Free Exercise Clauses. Among other things, Section 6(j) specified "belief in a relation to a Supreme Being involving duties superior

[7] Fed. Commc'ns Comm'n v. Fox Television Stations, Inc., 556 U.S. 502 (2009) ("The so-called canon of constitutional avoidance is an interpretive tool, counseling that ambiguous statutory language be construed to avoid serious constitutional doubts. We know of no precedent for applying it to limit the scope of authorized executive action.").

[8] Seila Law LLC v. Consumer Fin. Prot. Bureau, No. 19-7, slip op. at 29 (U.S. June 19, 2020) ("Constitutional avoidance is not a license to rewrite Congress's work to say whatever the Constitution needs it to say in a given situation. Without a proffered interpretation that is rooted in the statutory text and structure, and would avoid the constitutional violation we have identified, we take Congress at its word . . . ."); Jennings v. Rodriguez, No. 15-1204, slip op. at 14 (U.S. Feb. 27, 2018) ("Spotting a constitutional issue does not give a court the authority to rewrite a statute as it pleases. Instead, the canon permits a court to 'choos[e] between competing *plausible* interpretations of a statutory text.'" (citations omitted)); McFadden v. United States, 576 U.S. 186, 197 (2015); Warger v. Shauers, 574 U.S. 40, 50 (2014); Yu Cong Eng v. Trinidad, 271 U.S. 500, 518 (1926) ("[A]mendment may not be substituted for construction, and . . . a court may not exercise legislative functions to save the law from conflict with constitutional limitation.").

[9] United States v. Locke, 471 U.S. 84, 96 (1984) (quoting *Moore Ice Cream Co.*, 289 U.S. at 379).

[10] Jennings v. Rodriguez, No. 15-1204, slip op. at (842) (U.S. Feb. 27, 2018) (citations omitted). *See also* Bartlett v. Strickland, 556 U.S. 1 (2009).

[11] *See, e.g.*, Ullman v. United States, 350 U.S. 422, 43 (1956); Bond v. United States, 572 U.S. 844, 867–68 (2014) (Scalia, J., dissenting) (commenting that Court applied the Constitutional-Doubt Canon incorrectly when it interpreted the Chemical Weapons Convention Implementation Act).

[12] United States v. Seeger, 380 U.S. 163 (1965).

[13] Welsh v. United States, 398 U.S. 333 (1970).

to those arising from any human relation, *but does not include essentially political, sociological, or philosophical views or a merely personal moral code*" for conscientious-objector status.[14]

Using the Constitutional-Doubt Canon, the Court avoided ruling on what the Establishment and Free Exercise Clauses consider "religion" in *Seeger* and *Welsh*, allowing more time for public consensus to form on the issue. In *Seeger*, the draft board denied conscientious-objector status to Daniel Seeger because he did not meet the Section 6(j) requirement of having beliefs based on a Supreme Being. Despite Section 6(j) expressly precluding beliefs based on "philosophical views" or a "personal moral code," the Court interpreted Section 6(j)'s "belief in a relation to a Supreme Being" requirement to cover Seeger's "sincere and meaningful belief which occupies in the life of its possessor a place parallel to that filled by the God of those admittedly qualifying for the exemption."[15] By finding the draft board to have misread Section 6(j), the Court avoided addressing the implications of the case for the Establishment and Free Exercise Clauses, while finding Seeger entitled to conscientious-objector status. Hinting at how the Court might have resolved the case on constitutional grounds, the Court noted that "[t]his construction avoids imputing to Congress an intent to classify different religious beliefs, exempting some and excluding others, and is in accord with the well-established congressional policy of equal treatment for those whose opposition to service is grounded in their religious tenets."[16]

The Supreme Court's Section 6(j) interpretation in *Seeger*, however, provided limited guidance to draft boards on how to distinguish persons with "essentially political, sociological, or philosophical views"[17] who did not qualify for conscientious-objector status from those with "[a] sincere and meaningful belief . . . parallel to that filled by the God of those admittedly qualifying for exemption"[18] who did. The result was that several years later the Court was confronted with a near replica of *Seeger*. In *Welsh*, Elliott Ashton Welsh II challenged the draft board's denial of conscientious objector status under *Seeger*.[19] Welsh, however, characterized his beliefs as not religious.[20] Revisiting Section 6(j), the Court construed it to cover individuals, like Welsh, "whose consciences, spurred by deeply held moral, ethical, or religious beliefs, would give them no rest or peace if they allowed themselves to become a part of an instrument of war"[21] notwithstanding Section 6(j)'s express language that "essentially political,

[14] *Seeger*, 380 U.S. at 165 (emphasis added); *see also* Act of June 24, 1948, ch. 625, tit. I, § 6(j), 62 Stat. 609, 612–13 (amended by the Military Selective Service Act of 1967, Pub. L. No. 90-40, § 5, 81 Stat. 100, 104 (codified at 50 U.S.C. § 3806(j))).

[15] *Seeger*, 380 U.S. at 176.

[16] *Id.*

[17] Act of June 24, 1948, ch. 625, tit. I, § 6(j), 62 Stat. 609, 612–13 (amended by the Military Selective Service Act of 1967, Pub. L. No. 90-40, § 5, 81 Stat. 100, 104 (codified at 50 U.S.C. § 3806(j))).

[18] *Seeger*, 380 U.S. at 176.

[19] Welsh v. United States, 398 U.S. 333 (1970). Mr. Welsh had been sentenced to prison for three years for "refusing to submit to induction into the Armed Forces" on June 1, 1966. *Welsh*, 398 U.S. at 335. In 1967, Congress revised the conscientious objector exclusion provision, deleting language providing that "[r]eligious training and belief" means "an individual's belief in a relation to a Supreme Being involving duties superior to those arising from any human relation" so that the statute provided that "'religious training and belief' does not include essentially political, sociological, or philosophical views or a merely personal code." Military Selective Service Act of 1967, Pub. L. No. 90-40, § 7, 81 Stat. 100, 104 (codified at 50 U.S.C. § 3806(j)). On September 23, 1968, the Ninth Circuit denied Mr. Welsh's appeal of his conviction. Welsh v. United States, 404 F.2d 1078 (9th Cir. 1968). In its *Welsh* decision, the Supreme Court referenced Section 6(j) of the Universal Military Training and Service Act "as it read during the period relevant to this case," which was the pre-1967 language of Section 6(j).

[20] *Welsh*, 398 U.S. at 341. The opinion notes that while Welsh "originally characterized his beliefs as nonreligious, he later upon reflection . . . declared that his beliefs were 'certainly religious in the ethical sense of the word.'" *Id.*

[21] *Id.* at 344.

sociological, or philosophical views or a merely personal moral code"[22] did not qualify for conscientious-objector status. In short, the *Seeger* and *Welsh* Courts essentially interpreted Section 6(j)'s definition of religious belief to encompass theistic and non-theistic worldviews depending on "whether the beliefs professed by a registrant are sincerely held and whether they are, *in* [the conscientious objector applicant's] *own scheme of things*, religious"[23] despite Congress's express language in Section 6(j) excluding "political, sociological, or philosophical views, or a merely personal moral code."[24]

One criticism of the Constitutional-Doubt Canon is that it can result in tenuous statutory interpretations that undermine the Court's credibility and defeat the purpose of judicial review to "declare all acts contrary to the manifest tenor of the Constitution void."[25] For instance, in his concurring opinion in *Welsh*, Justice John Marshall Harlan II expressed dismay with the Court's use of statutory construction in *Seeger* and *Welsh*,[26] stating: "[T]he liberties taken with the statute both in *Seeger* and today's decision cannot be justified in the name of the familiar doctrine of construing federal statutes in a manner that will avoid all possible constitutional infirmities in them."[27] Justice Harlan observed that the natural reading of Section 6(j) and its legislative history clearly indicated Congress's intent that conscientious-objector status be limited to those whose beliefs were theistic. The result of the Court's interpretations, in Justice Harlan's view, deprived Section 6(j) of "all meaning in order to avert the collision between its plainly intended purpose and the commands of the Constitution."[28] Nevertheless, the Constitutional-Doubt Canon provided a way for the Court to return the contentious issue to the political branches for further debate and consideration.

ArtIII.S2.C1.11 Federal Question Jurisdiction

ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Constitution authorizes the federal courts to exercise jurisdiction over all cases "arising under" the Constitution or the laws or treaties of the United States. The federal courts' power to hear such cases is often referred to as "arising under" jurisdiction or "federal

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[22] Act of June 24, 1948, ch. 625, tit. I, § 6(j), 62 Stat. 609, 612–13 (amended by the Military Selective Service Act of 1967, Pub. L. No. 90-40, § 5, 81 Stat. 100, 104 (codified at 50 U.S.C. § 3806(j))).

[23] *Seeger*, 380 U.S. at 185; *Welsh*, 398 U.S. at 339.

[24] Act of June 24, 1948, ch. 625, tit. I, § 6(j), 62 Stat. 609, 612–13 (amended by the Military Selective Service Act of 1967, Pub. L. No. 90-40, § 5, 81 Stat. 100, 104 (codified at 50 U.S.C. § 3806(j))).

[25] The Federalist No. 78 (Alexander Hamilton).

[26] *Welsh*, 398 U.S. at 344 (Harlan, J., concurring) ("Candor requires me to say that I joined the Court's opinion in [*Seeger*] only with the gravest misgiving as to whether it was a legitimate exercise in statutory construction, and today's decision convinces me that in doing so I made a mistake which I should now acknowledge.").

[27] *Id.* at 345.

[28] *Id.* at 354.

ArtIII.S2.C1.11.1
Overview of Federal Question Jurisdiction

question" jurisdiction.[1] The Supreme Court has explained that a case arises under the Constitution or laws of the United States "whenever its correct decision depends on the construction of either."[2]

ArtIII.S2.C1.11.2 Historical Background on Federal Question Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Near the beginning of the Constitutional Convention, the delegates expressed an intent to create a Federal Judiciary with jurisdiction to hear cases arising under federal statutory law.[1] Federal jurisdiction over cases involving the Constitution and treaties was added to drafts of Article III later in the Convention.[2] Even as the Framers planned to vest federal question jurisdiction in the federal courts, they generally accepted that state courts would play a significant role in interpreting and applying federal law and did not make the constitutional grant of jurisdiction over cases arising under federal law exclusive to the federal courts.[3] On the other hand, the Framers entertained concerns about whether state courts would apply federal law correctly, uniformly, and without bias.[4] To mitigate those concerns, the Constitution allowed for Supreme Court appellate review of state judicial decisions involving issues related to federal treaties, statutes, or constitutional law.[5] The Constitution also granted Congress

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[1] Cases arising under the Constitution or federal law are just one of several categories of cases that the Constitution authorizes the federal courts to hear. *See also, e.g.*, ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States; ArtIII.S2.C2.1 Overview of Supreme Court Jurisdiction; ArtIII.S2.C2.2 Supreme Court Original Jurisdiction to ArtIII.S2.C2.5 Supreme Court Review of State Court Decisions; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction; ArtIII.S2.C1.12.2 Historical Background on Admiralty and Maritime Jurisdiction; to ArtIII.S2.C1.12.8 Exclusivity of Federal Admiralty and Maritime Jurisdiction.

[2] Cohens v. Virginia, 19 U.S. 264, 379 (1821).

[1] 1 The Records of the Federal Convention of 1787, at 22, 211–12, 220, 244 (Max Farrand ed., 1911) [hereinafter Convention Records]; 2 The Records of the Federal Convention of 1787, at 146–47, 186–87 (Max Farrand ed., 1911).

[2] Convention Records, *supra* note 1, at 423–24, 430, 431.

[3] *See, e.g.*, Convention Records, *supra* note 1, at 243, 424; *see also* The Federalist No. 65 (Alexander Hamilton).

[4] For instance, James Madison expressed concern about "improper Verdicts in State tribunals obtained under the biassed directions of a dependent Judge" and "the local prejudices of an undirected jury." Convention Records, *supra* note 1, at 124. In The Federalist Alexander Hamilton stated that "the most discerning cannot foresee how far the prevalency of a local spirit may be found to disqualify the local tribunals for the jurisdiction of national causes," and argued in favor of uniformity that "[t]hirteen independent courts of final jurisdiction over the same causes, arising upon the same laws, is a hydra in government, from which nothing but contradiction and confusion can proceed." The Federalist No. 80 (Alexander Hamilton). Hamilton also raised the possibility that "State judges, holding their offices during pleasure, or from year to year, will be too little independent to be relied upon for an inflexible execution of the national laws." The Federalist No. 80 (Alexander Hamilton).

[5] U.S. Const. art. III, § 2 ("In all the other Cases before mentioned [including cases arising under the Constitution and federal law or treaties], the supreme Court shall have appellate Jurisdiction[.]"); *cf.* 1 Stat. 73, 85; Martin v. Hunter's Lessee, 14 U.S. 304 (1816).

discretion to establish lower federal courts, which could consider questions arising under the Constitution or federal law or treaties in the first instance.[6]

In the *Federalist Papers*, Alexander Hamilton explained that the grant of federal question jurisdiction in Article III was based on the "obvious consideration that there ought always to be a constitutional method of giving efficacy to constitutional provisions."[7] Specifically, he argued, "restrictions on the authority of the state legislations" must rest upon either "a direct negative on the state laws, or an authority in the federal courts, to overrule such as might be in manifest contravention of the articles of union."[8] Hamilton noted that the Framers had adopted the latter approach of authorizing enforcement by the federal courts, which he "presume[d] will be most agreeable to the states."[9]

The Constitution vests federal judicial power in "one supreme Court" and any lower federal courts that Congress creates.[10] The Constitutional provisions authorizing the establishment of lower federal courts and the grant of federal question jurisdiction to those courts are not self-executing, but instead had to be implemented (if at all) through federal legislation.[11] In the Judiciary Act of 1789, Congress created lower federal courts but did not grant them general federal question jurisdiction.[12] This meant that litigants could sue in state court to enforce rights under the Constitution or a federal law or treaty, then appeal to the U.S. Supreme Court if the state courts rejected a federal constitutional challenge to a state law or held invalid a federal law or treaty.[13] In the late eighteenth century, Congress enacted statutes granting the lower federal courts jurisdiction over selected cases arising under federal law, such as suits relating to patents.[14]

Broader statutory grants of federal question jurisdiction were enacted in the nineteenth century. Following the Civil War, Congress granted the federal courts jurisdiction over civil rights cases, seeking to protect newly created federal civil rights.[15] The current statutory grant of federal jurisdiction over civil rights cases is codified at 28 U.S.C. § 1343, which authorizes the district courts to hear civil actions including suits to redress the deprivation "under color of any State law," of any "right, privilege or immunity secured by the Constitution of the United States or by any Act of Congress providing for equal rights of citizens or of all persons within the jurisdiction of the United States," and suits "[t]o recover damages or to secure equitable or other relief under any Act of Congress providing for the protection of civil rights, including the right to vote."[16] Plaintiffs frequently rely on Section 1343 to bring suits in federal court under

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[6] U.S. Const.art. III, § 1 ("The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish."); *cf.* Convention Records, *supra* note 1, at 125.

[7] The Federalist No. 80 (Alexander Hamilton).

[8] *Id.*

[9] *Id.* at 475.

[10] U.S. Const. art. III, § 1.

[11] *See, e.g.*, Romero v. International Terminal Operating Co., 358 U.S. 354, 364 (1959) (describing "enumerated classes of cases to which 'judicial power' was extended by the Constitution and which thereby authorized grants by Congress of 'judicial Power' to the 'inferior' federal courts"); *cf.* Convention Records, *supra* note 1, at 125 ("Mr. Wilson & Mr. Madison then moved . . . to add . . . the words following 'that the National Legislature be empowered to institute inferior tribunals'. They observed that there was a distinction between establishing such tribunals absolutely, and giving a discretion to the Legislature to establish or not establish them.").

[12] 1 Stat. 73, 77.

[13] 1 Stat. 73, 85.

[14] Act of April 10, 1790, § 5, 1 Stat. 111, as amended, Act of February 21, 1793, § 6, 1 Stat. 322.

[15] Act of April 9, 1866, § 3, 14 Stat, 27; Act of May 31, 1870, § 8, 16 Stat. 142; Act of February 28, 1871, § 15, 16 Stat. 438; Act of April 20, 1871, §§ 2, 6, 17 Stat. 14, 15.

[16] 28 U.S.C. § 1343(a)(3), (4).

42 U.S.C. § 1983, challenging state and local governmental practices including racial discrimination, electoral malapportionment and suffrage restrictions, unconstitutional police practices, and state restrictions on access to welfare and other public assistance.[17]

In 1875, Congress enacted legislation conferring general federal question jurisdiction on the lower federal courts.[18] The 1875 statute included an amount in controversy requirement, creating federal court jurisdiction over federal question suits only if the plaintiff sought money damages of more than five hundred dollars. Since that time, Congress has expanded the availability of general federal question jurisdiction by repealing the amount in controversy requirement.[19] Additional statutory provisions grant the federal courts subject matter jurisdiction to enforce federal law in specific areas.[20]

ArtIII.S2.C1.11.3 Constitutional and Statutory Grants of Federal Question Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The federal courts' authority to hear federal question cases is rooted in both constitutional text and a number of implementing statutes.[1] The Constitution authorizes the Federal Judiciary to hear "all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority."[2] The Supreme Court held in the 1821 case *Cohens v. Virginia* that a case "arises under" the Constitution or laws of the United States "whenever its correct decision depends on the construction of either," and that cases arising under federal law include all cases that "grow

[17] Section 1983 authorizes private civil suits for the "deprivation of any rights, privileges, or immunities secured by the Constitution" and federal laws. In these suits, Section 1983 provides the substantive cause of action and Section 1343 grants the federal courts jurisdiction. *See, e.g.*, Brown v. Board of Education, 347 U.S. 483 (1954); Baker v. Carr, 369 U.S. 186 (1962). Section 1343's grant of federal court jurisdiction is not exclusive, meaning that plaintiffs may also elect to bring claims under Section 1983 in state court. *See, e.g.*, Maine v. Thiboutot, 448 U.S. 1 (1980).

[18] Act of March 3, 1875, § 1, 18 Stat. 470 (codified at 28 U.S.C. § 1331(a)). The 1875 act also allowed either party to remove a federal question case from state court to federal court.

[19] Congress amended the current federal question statute, 28 U.S.C § 1331, in 1976 and 1980 to eliminate the jurisdictional amount requirement. Pub. L. No. 94-574, 90 Stat. 2721; Pub. L. No. 96-486, 94 Stat. 2369.

[20] *See, e.g.*, 18 U.S.C. § 3231 (granting the federal district courts "original jurisdiction, exclusive of the courts of the States," over federal criminal proceedings); 28 U.S.C. § 1257 (granting the Supreme Court appellate jurisdiction over "[f]inal judgments or decrees rendered by the highest court of a State" in cases arising under the Constitution or federal laws or treaties); *id.* § 1334 (granting district courts jurisdiction over bankruptcy cases); *id.* § 1337 (granting district courts jurisdiction over antitrust cases).

[1] This essay focuses on constitutional text and procedural statutes that authorize the federal courts to hear federal question cases. For discussion of the types of substantive legal issues that may give rise to federal question jurisdiction, see ArtIII.S2.C1.11.4 Substantive Claims and Defenses in Federal Question Cases.

[2] U.S. Const. art. III, § 2, cl. 1.

out of the legislation of Congress, whether they constitute the right or privilege, or claim or protection, or defense of the party, in whole or in part, by whom they are asserted."[3]

Congress also plays a role in conferring federal question jurisdiction. The Constitution vests federal judicial power in "one supreme Court" and any lower federal courts that Congress creates.[4] When Congress creates lower federal courts, it generally also specifies (either then or in a separate statute) what portions of the federal judicial power those courts may exercise.[5] In *Osborn v. Bank of the United States*, decided three years after *Cohens*, the Court explained that the "arising under" clause in Article III "enables the judicial department to receive jurisdiction to the full extent of the constitution, laws, and treaties of the United States, when any question respecting them shall assume such a form that the judicial power is capable of acting on it."[6] Writing for the Court, Chief Justice John Marshall opined, "when a question to which the judicial power of the Union is extended by the constitution, forms an ingredient of the original cause, it is in the power of Congress to give the [lower federal courts] jurisdiction of that cause, although other questions of fact or of law may be involved in it."[7] Thus, although the Constitution grants the Judiciary as a whole the power to adjudicate federal questions, it generally leaves to Congress the authority to confer that jurisdiction on specific federal courts.[8]

Within that constitutional framework, the current general federal question statute, 28 U.S.C § 1331, grants the federal district courts "original jurisdiction of all civil actions arising under the Constitution, laws, or treaties of the United States."[9] Additional statutes grant the federal courts jurisdiction over certain specific categories of cases arising under the Constitution and federal law.[10] Although the language of Section 1331 is similar to the constitutional text authorizing the grant of federal question jurisdiction, the Supreme Court has held that the statutory grant of jurisdiction in Section 1331 is narrower than the full authority Congress might choose to confer consistent with the constitutional authorization.[11] In a 2016 case, the Court explained that it

> has long read the words "arising under" in Article III to extend quite broadly, "to all cases in which a federal question is 'an ingredient' of the action." . . . In the statutory

[3] 19 U.S. 264, 379 (1821). *Cf.* Franchise Tax Bd. v. Construction Laborers Vacation Trust, 463 U.S. 1, 9 (1983) (quoting T.B. Harms Co. v. Eliscu, 339 F.2d 823, 827 (2d Cir. 1964)) ("[A] case may 'arise under' a law of the United States if the complaint discloses a need for determining the meaning or application of such a law.").

[4] U.S. Const. art. III, § 1.

[5] *See, e.g.*, Romero v. International Terminal Operating Co., 358 U.S. 354, 364 (1959) (describing "enumerated classes of cases to which 'judicial power' was extended by the Constitution and which thereby authorized grants by Congress of 'judicial Power' to the 'inferior' federal courts").

[6] 22 U.S. 738, 818 (1824).

[7] *Id.* at 823.

[8] *Cf.* U.S. Const. art. III, § 2, cl. 2 (granting the Supreme Court original jurisdiction over "Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party" but providing that the Court's appellate jurisdiction shall be subject to "such Exceptions, and under such Regulations as the Congress shall make"); *see also* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[9] 28 U.S.C. § 1331.

[10] *See, e.g.*, 18 U.S.C. § 3231 (granting the federal district courts "original jurisdiction, exclusive of the courts of the States," over federal criminal proceedings); 28 U.S.C. § 1257 (granting the Supreme Court appellate jurisdiction over "[f]inal judgments or decrees rendered by the highest court of a State" in cases arising under the Constitution or federal laws or treaties); *id.* § 1334 (granting district courts jurisdiction over bankruptcy cases); *id.* § 1337 (granting district courts jurisdiction over antitrust cases).

[11] *See. e.g.*, Verlinden B. V. v. Central Bank of Nigeria, 461 U.S. 480, 495 (1983); Shoshone Mining Co. v. Rutter, 177 U.S. 505 (1900).

> context, however, we opted to give those same words a narrower scope "in the light of [§ 1331's] history[,] the demands of reason and coherence, and the dictates of sound judicial policy."[12]

Because cases that fall within the narrower statutory grant of federal question jurisdiction also fall within the broader constitutional grant, most court cases considering the scope of federal question jurisdiction focus on application of the relevant jurisdictional statute and do not reach constitutional questions.[13]

In determining whether a case satisfies the general federal question statute, courts ask whether a federal question appears in the plaintiff's "well-pleaded complaint."[14] This means that, as a statutory matter, the existence of a federal question depends on the actual claims that the plaintiff raises, and the existence of an actual or potential *defense* to liability based on federal law is not sufficient to establish federal question jurisdiction.[15] This is an example of when statutory federal question jurisdiction is less than the constitutional maximum, which can include cases involving only a federal defense.[16]

The Supreme Court has explained that most cases subject to arising under jurisdiction "are covered by Justice [Oliver Wendell] Holmes' statement that a 'suit arises under the law that creates the cause of action,'" meaning that "the vast majority" of federal question cases raise claims based directly on federal law.[17] Less often, a case may arise under the laws of the United States "if a well-pleaded complaint establishe[s] that its right to relief under state law requires resolution of a substantial question of federal law in dispute between the parties."[18] For instance, in *Smith v. Kansas City Title & Trust Co.*, the Court held that federal question jurisdiction existed in a state law suit by a shareholder claiming that a corporation could not lawfully buy certain federal bonds because the issuance of the bonds was unconstitutional.[19]

As a matter of both constitutional scope and statutory authority, federal question jurisdiction is not limited to suits originally filed in federal court. Beginning with the enactment Section 25 the Judiciary Act of 1789, Congress has granted the Supreme Court jurisdiction to review decisions of the states' highest courts when those decisions involve

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[12] Merrill Lynch, Pierce, Fenner & Smith Inc. v. Manning, 578 U.S. 374, 385 (2016) (quoting Merrell Dow Pharmaceuticals Inc. v. Thompson, 478 U.S. 804, 807 (1986); Romero v. International Terminal Operating Co., 358 U.S. 354, 379 (1959)) (alterations in original).

[13] *See, e.g.*, *Romero*, 358 U.S. at 379. Congress first enacted a statute granting the federal courts general federal question jurisdiction in 1875. Act of March 3, 1875, § 1, 18 Stat. 470 (codified at 28 U.S.C. § 1331(a)). The 1875 statute, like the current federal question statute, used language similar to that of the Constitution. Early cases interpreting the statutory language relied heavily on Chief Justice John Marshall's construction of the constitutional grant of jurisdiction. *See, e.g.*, Pacific R.R. Removal Cases, 115 U.S. 1 (1885). More recent cases have favored a more limited interpretation. *See infra* notes 14–16 and accompanying text.

[14] *See, e.g.*, *Franchise Tax Bd.*, 463 U.S. at 9–10. If the complaint states a case arising under the Constitution or federal law, then federal jurisdiction exists even if the federal claim ultimately fails on the merits. In such a case, the proper course for the court is to dismiss for failure to state a claim on which relief can be granted rather than for lack of jurisdiction. Bell v. Hood, 327 U.S. 678 (1946).

[15] Louisville & Nashville R.R. v. Mottley, 211 U.S. 149, 152 (1908) ("Although such allegations show that very likely, in the course of the litigation, a question under the Constitution would arise, they do not show that the suit, that is, the plaintiff's original cause of action, arises under the Constitution."); *see also* State of Tennessee v. Union & Planters' Bank, 152 U.S. 454 (1894).

[16] *See, e.g.*, Cohens v. Virginia, 19 U.S. 264, 379 (1821).

[17] Merrell Dow Pharmaceuticals, Inc. v. Thompson, 478 U.S. 804, 808 (1986) (internal citations omitted).

[18] *Franchise Tax Bd.*, 463 U.S. at 13.

[19] 255 U.S. 180 (1921). By contrast, the Court found no federal question jurisdiction in a case concerning whether the Employment Retirement Income Security Act of 1974 preempted a state law allowing for garnishment of unpaid taxes from an ERISA-covered vacation benefit plan, *Franchise Tax Bd.*, 463 U.S. 1, and in a case where plaintiffs raised state law negligence claims based in part on allegations that a defendant produced a drug that was misbranded in violation of the Federal Food, Drug, and Cosmetic Act, *Merrell Dow*, 478 U.S. 804.

certain issues arising under the Constitution, treaties, or federal law.[20] The Supreme Court upheld Section 25 against a constitutional challenge in *Martin v. Hunter's Lessee*.[21] In addition, as explained in more detail in a later section, if a plaintiff files a case subject to federal court jurisdiction in state court, the defendant may elect to remove the case to federal court.[22] Once the federal courts have jurisdiction over a case, they have the authority to decide any issue necessary to the disposition of the case, including questions of law or fact that do not arise under federal law.[23]

ArtIII.S2.C1.11.4 Substantive Claims and Defenses in Federal Question Cases

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Federal question jurisdiction is the basis for many of the Supreme Court's high-profile cases. In particular, federal question cases may involve claims of an actual or threatened invasion of the plaintiff's constitutional rights by some act of public authority. The "arising under" clause thus provides the main textual basis for the implied power for federal courts to review the constitutionality of legislation and other government actions.[1]

There are multiple types of legal claims that may give rise to federal question jurisdiction.[2] Congress often creates federal question jurisdiction by enacting legislation creating substantive legal rights or obligations and explicitly granting the courts jurisdiction to enforce them.[3] Sometimes this jurisdiction is exclusive. For instance, the federal courts have exclusive jurisdiction over federal criminal cases and cases arising under bankruptcy, antitrust, or

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[20] 1 Stat. 73, 85; *see also* 28 U.S.C. § 1257.

[21] 14 U.S. 304 (1816). *See also* Cohens v. Virginia, 19 U.S. 264 (1821).

[22] *See, e.g.,* 28 U.S.C. § 1441; *see also* ArtIII.S2.C1.11.5 Removal from State Court to Federal Court.

[23] *See, e.g.,* 28 U.S.C. § 1367(a); *see also* ArtIII.S2.C1.11.6 Supplemental Jurisdiction.

[1] While federal question jurisdiction is often the basis for constitutional claims brought in federal court, cases arising under the Constitution or federal law are just one of several categories of cases that the Constitution authorizes the federal courts to hear. *See also, e.g.*, ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States; ArtIII.S2.C2.1 Overview of Supreme Court Jurisdiction; ArtIII.S2.C2.2 Supreme Court Original Jurisdiction to ArtIII.S2.C2.5 Supreme Court Review of State Court Decisions; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction; ArtIII.S2.C1.12.2 Historical Background on Admiralty and Maritime Jurisdiction; to ArtIII.S2.C1.12.8 Exclusivity of Federal Admiralty and Maritime Jurisdiction.

[2] This essay focuses on substantive legal issues that may give rise to federal question jurisdiction. For discussion of the constitutional text and procedural statutes that authorize the federal courts to hear federal question cases, see ArtIII.S2.C1.11.3 Constitutional and Statutory Grants of Federal Question Jurisdiction.

[3] Congress also sometimes enacts federal statutes that create new legal duties but do not explicitly allow individuals to sue to enforce the law. While the Supreme Court has in the past recognized "implied" rights of action in limited circumstances, more recent case law has instructed courts to "interpret the statute Congress has passed to determine whether it displays an intent to create not just a private right but also a private remedy." Alexander v. Sandoval, 532 U.S. 275, 286 (2001).

copyright law.[4] In other areas, Congress allows both state and federal courts to hear cases based on federal statutes.[5] For example, 28 U.S.C. § 1343 grants the federal courts jurisdiction over civil rights claims arising under the Constitution or federal law, including claims under 42 U.S.C. § 1983,[6] but state courts may also hear such claims.[7]

Federal question cases may also arise under treaties to which the United States is a party. The Supreme Court has held that some treaties are "self-executing" and thus "directly enforceable as domestic law in our courts," while others are not.[8] If a treaty is not self-executing, Congress must enact legislation to implement the treaty before it can be enforced in U.S. court.[9]

In addition, the constitutional judicial power of federal courts extends to cases arising under judge-made legal doctrines. One example of this is cases involving federal common law. "Common law" refers to legal rules drawn from judicial decisions, rather than a statute or constitution.[10] Although the Supreme Court famously announced in *Erie Railroad v. Tompkins* that "[t]here is no federal general common law,"[11] it is well settled that there are some areas where courts apply federal common law, and the Supreme Court has held that the federal courts have the power to hear federal common law claims.[12] Federal courts primarily create and apply federal common law in two circumstances: where a federal rule of decision is necessary to protect uniquely federal interests, or where Congress has given the courts the power to develop substantive law.[13]

A related example of judge-made law that raises constitutional issues subject to federal question jurisdiction is the doctrine articulated in *Bivens v. Six Unknown Named Agents*.[14]

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[4] *See* 18 U.S.C. § 3231 (federal criminal proceedings); 28 U.S.C. § 1334 (bankruptcy cases); *id.* § 1337 (antitrust cases); *id.* § 1337 (patent and copyright cases).

[5] State courts presumptively enjoy concurrent jurisdiction to enforce federal law, and Congress must explicitly or implicitly confine jurisdiction to the federal courts to oust the state courts. *See* Gulf Offshore Co. v. Mobil Oil Corp., 453 U.S. 473, 477–84 (1981); Tafflin v. Levitt, 493 U.S. 455 (1990); Yellow Freight System, Inc. v. Donnelly, 494 U.S. 820 (1990).

[6] Section 1983 authorizes private civil suits for the "deprivation of any rights, privileges, or immunities secured by the Constitution" and federal laws. In these suits, Section 1983 provides the substantive cause of action and Section 1343 grants the federal courts jurisdiction. *See, e.g.*, Brown v. Board of Education, 347 U.S. 483 (1954); Baker v. Carr, 369 U.S. 186 (1962).

[7] *See, e.g.*, Maine v. Thiboutot, 448 U.S. 1 (1980).

[8] Medellin v. Texas, 552 U.S. 491, 519 (2008).

[9] *Id.* at 505.

[10] *Common Law*, Black's Law Dictionary (11th ed. 2019).

[11] 304 U.S. 64, 78 (1938). Under the Rules of Decision Act, there is a presumption against the creation of federal common law, and federal courts apply state common law when possible. 28 U.S.C. § 1652; *see also* Tex. Indus., Inc. v. Radcliff Materials, Inc., 451 U.S. 630, 640–41 (1981) ("The vesting of jurisdiction in the federal courts does not in and of itself give rise to authority to formulate federal common law.").

[12] *Tex. Indus.*, 451 U.S. at 640.

[13] *Id*. In determining whether to create federal common law, the Court's inquiry focuses on whether a judge-made rule would effectuate the intent of Congress. *See, e.g.*, Cannon v. Univ. of Chicago, 441 U.S. 677, 688 (1979). Congress can enact legislation to displace the judicially created law. City of Milwaukee v. Illinois, 451 U.S. 304 (1981).

[14] 403 U.S. 388 (1971). Some have likened the holding in *Bivens* to the creation of federal common law. *See, e.g.*, Hernandez v. Mesa, 140 S. Ct. 735, 742 (2020) (discussing the petitioners' arguments "[a]nalogizing *Bivens* to the work of a common-law court"); Correctional Services Corp. v. Malesko, 534 U.S. 61, 75 (2001) (Scalia, J., concurring) (stating that "*Bivens* is a relic of the heady days in which this Court assumed common-law powers to create causes of action"). Justice John Harlan's concurrence in *Bivens* suggested that liability in that case was not based on common law. 403 U.S. at 403 (Harlan, J., concurring) ("I do not think that the fact that the interest is protected by the Constitution rather than statute or common law justifies the assertion that federal courts are powerless to grant damages in the absence of explicit congressional action authorizing the remedy.").

Bivens and its progeny allowed individuals to sue federal agents directly under the Constitution without a federal statute authorizing relief.[15] More recent Supreme Court cases have construed *Bivens* narrowly.[16]

Other times, federal question jurisdiction exists even though the case, as originally filed, includes only state law civil claims or criminal charges. For instance, a state law civil claim may be filed in federal court, or removed from state to federal court before trial, if a "right to relief under state law requires resolution of a substantial question of federal law in dispute between the parties."[17] In other cases, litigation based on state law questions may proceed through the state courts before receiving federal court review. This often occurs in cases where a civil or criminal defendant invokes the Constitution or a federal statute as a defense to liability. Under the general federal question statute, the federal district courts do not have statutory jurisdiction to hear those cases in the first instance.[18] However, they fall within the constitutional bounds of federal question jurisdiction,[19] and Congress has granted the Supreme Court statutory jurisdiction to hear such cases on appeal from a decision of a state's highest court.[20] A number of high-profile cases have come to the Supreme Court in this way. For instance, the First Amendment case *New York Times v. Sullivan* involved a state law libel claim that was originally litigated in the Alabama courts.[21] Likewise, *Lawrence v. Texas*, in which the Court struck down a state law banning consensual sexual activity between people of the same sex, was an appeal to the U.S. Supreme Court from a state criminal conviction.[22]

Both constitutional and statutory federal question jurisdiction may also exist based on the identity of a party, particularly when a party has sufficiently close ties to the federal government.[23] The Constitution specifically grants federal courts jurisdiction over "Controversies to which the United States shall be a Party," but those cases may also be understood to fall within federal question jurisdiction.[24] The federal courts have statutory jurisdiction over suits where the United States itself is either a plaintiff or a defendant.[25] Similarly, federal statutes authorize the removal to federal court of certain state law civil and criminal claims against federal officers or other persons acting pursuant to federal authority.[26] The Supreme Court rejected a constitutional challenge to the removal of claims against federal revenue officers in *Tennessee v. Davis*, explaining that federal court jurisdiction over such cases

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[15] *See also* Davis v. Passman, 442 U.S. 228 (1979), Carlson v. Green, 446 U.S. 14 (1980).

[16] *See, e.g.*, Egbert v. Boule, 2022 WL 2056291 (June 8, 2022).

[17] Franchise Tax Bd. v. Construction Laborers Vacation Trust, 463 U.S. 1, 13 (1983). *See also* ArtIII.S2.C1.11.3 Constitutional and Statutory Grants of Federal Question Jurisdiction; ArtIII.S2.C1.11.5 Removal from State Court to Federal Court.

[18] 28 U.S.C § 1331; *see also* Louisville & Nashville R.R. v. Mottley, 211 U.S. 149, 152 (1908).

[19] *See, e.g.,* Osborn v. Bank of the United States, 22 U.S. 738, 818 (1824).

[20] 28 U.S.C. § 1257.

[21] 376 U.S. 254 (1964).

[22] 539 U.S. 558 (2003). Federal courts may also review state law criminal proceedings via a petition for a writ of habeas corpus. While habeas proceedings may relate to state court proceedings, a habeas petition begins a new federal case. For discussion of federal habeas review of state criminal proceedings, see ArtIII.S1.6.9 Habeas Review.

[23] Federal court jurisdiction also depends on the identities of the parties when jurisdiction is based on diversity of citizenship. Diversity jurisdiction is distinct from federal question jurisdiction. *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States.

[24] *See* Lynch v. Household Finance Corp., 405 U.S. 538, 549 n.17 (1972) (listing 28 U.S.C. §§ 1345 and 1346 among other "particular statutes [that] grant jurisdiction, without regard to the amount in controversy, in virtually all areas that otherwise would fall under the general federal-question statute").

[25] 28 U.S.C. §§ 1345, 1346.

[26] 28 U.S.C. §§ 1442(a)(1), 2679(d).

implicated the federal government's fundamental interest in "preserving its own existence" against state proceedings that might undermine federal authority.[27]

Article III also allows Congress to grant federal court jurisdiction in cases involving federally chartered corporations, such as banks or railroads. In *Osborn v. Bank of the United States*, Chief Justice John Marshall held that Congress's authorization for the Bank of the United States to sue and be sued also granted the federal courts jurisdiction over all cases to which the bank was a party.[28] Similarly, in the *Pacific Railroad Removal Cases*, the Court held that tort actions against railroads with federal charters could be removed to federal courts solely based on federal incorporation.[29] In a 1992 case, *American National Red Cross v. S. G.*, the Court held that when a federal statutory charter expressly mentions the federal courts in a provision allowing an entity to sue and be sued, the charter creates federal question jurisdiction over such suits.[30] Congress has enacted legislation limiting the extent to which some federally chartered corporations can sue or be sued in federal court based solely on federal incorporation.[31]

Federal question cases usually involve the application of federal substantive law, whether as the direct basis for a claim or defense or as a substantial legal question that may determine rights under state law. Some scholars and advocates take an expansive view of constitutional federal question jurisdiction under a theory known as "protective jurisdiction," arguing that Congress has the constitutional power to confer federal jurisdiction over claims based entirely on state law.[32] They posit that in areas where Congress has the authority to legislate pursuant to one of its enumerated powers,[33] it could enact a jurisdictional statute that creates no new substantive federal legal rights or obligations.[34] The jurisdictional statute would itself be the law of the United States within the meaning of Article III, and would validly create federal question jurisdiction, even though Congress enacted no substantive rule of decision. The Supreme Court has declined to adopt the doctrine, instead finding other bases for federal court jurisdiction in cases where it might apply.[35]

ArtIII.S2.C1.11.5 Removal from State Court to Federal Court

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and*

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[27] 100 U.S. 257, 262 (1880). For additional discussion of *Davis*, see ArtIII.S2.C1.11.5 Removal from State Court to Federal Court.

[28] 22 U.S. 738 (1824).

[29] 115 U.S. 1 (1885).

[30] 505 U.S. 247 (1992). The Court has held, however, that a general authorization to sue and be sued that does not expressly mention suits in federal courts does not confer jurisdiction.

[31] *See, e.g.*, 28 U.S.C. § 1349 ("The district courts shall not have jurisdiction of any civil action by or against any corporation upon the ground that it was incorporated by or under an Act of Congress, unless the United States is the owner of more than one-half of its capital stock.").

[32] *See generally, e.g.*, Paul Mishkin. *The Federal "Question" Jurisdiction of the District Courts*, 53 Col. L. Rev. 157, 184–196 (1953); Scott A. Rosenberg, Note, *The Theory of Protective Jurisdiction*, 57 N.Y.U. L. Rev. 933 (1982); Loretta Shaw, Comment, *A Comprehensive Theory of Protective Jurisdiction: The Missing "Ingredient" of "Arising Under" Jurisdiction*, 61 Fordham L. Rev. 1235 (1993).

[33] *See generally* ArtI.S1.3.3 Enumerated, Implied, Resulting, and Inherent Powers.

[34] Rosenberg, *supra* note 32, at 937.

[35] *See, e.g.*, Verlinden B. V. v. Central Bank of Nigeria, 461 U.S. 480, 491 n.17 (1983); Mesa v. California, 489 U.S. 121, 137 (1989).

Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The Constitution's grant of federal question jurisdiction over cases "arising under" the Constitution, laws, and treaties of the United States extends to some cases filed in state court. Congress has provided that a state court defendant may remove a case to federal court if the case could originally have been brought in federal court.[1] The current general removal statute is codified at 28 U.S.C. § 1441, and additional statutes authorize removal in specific circumstances.[2]

In *Martin v. Hunter's Lessee*, the Supreme Court likened removal before trial to federal appellate review of state court judgments, asserting that both served the purposes of promoting fairness and ensuring the uniform interpretation of federal law.[3] Decades later, in *Chicago & N.W. Railway v. Whitton's Administrator*, the Court upheld a removal statute against a constitutional challenge.[4] The Court expressed "doubt" as to whether removal before trial "can properly be called an exercise of appellate jurisdiction," stating that removal might "more properly be regarded as an indirect mode by which the Federal court acquires original jurisdiction of the causes."[5] However, noting that both state and federal courts had frequently recognized the constitutionality of removal statutes, the Court concluded that, except where the Constitution expressly specifies original or appellate jurisdiction, Congress has discretion to legislate "the manner and conditions upon which [the federal judicial power] shall be exercised."[6]

In *Tennessee v. Davis*, the Court considered the constitutionality of a statute that allowed removal to federal court of state court civil or criminal proceedings against any federal revenue officer "on account of any act done under color of his office or of any [federal revenue] law."[7] The Court explained that federal court jurisdiction over such cases implicated the federal

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[1] 28 U.S.C. § 1441. The removal statute applies not only to federal question cases but also to cases where the federal courts possess diversity jurisdiction because the parties are from different states. For discussion of diversity jurisdiction, see ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States.

[2] *See* 28 U.S.C. § 1442 (suits or prosecutions against federal officers and agencies); *id.* § 1442a suits or prosecutions against members of the armed forces); *id.* § 1443 (civil rights cases); *id.* § 1444 (foreclosure actions against the United States); *id.* § 1452 (claims related to bankruptcy cases); *id.* § 1453 (class actions); *id.* § 1454 (patent, plant variety protection, and copyright cases).

[3] 14 U.S. 304, 347–51 (1816). In upholding a statute that allowed the Supreme Court to review state court judgments, the Court explained, "The constitution of the United States was designed for the common and equal benefit of all the people of the United States. The judicial power . . . was not to be exercised exclusively for the benefit of parties who might be plaintiffs, and would elect the national forum, but also for the protection of defendants who might be entitled to try their rights, or assert their privileges, before the same forum. [If] the plaintiff may always elect the state court, the defendant may be deprived of all the security which the constitution intended in aid of his rights. Such a state of things can, in no respect, be considered as giving equal rights." *Id.* at 348–49.

[4] 80 U.S. 270 (1872). This case arose under state law, and removal was based on diversity of citizenship. *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States.

[5] *Id.* at 287.

[6] *Id.* at 288–89; *see also* The Moses Taylor, 71 U.S. 411, 429–430 (1867); Mayor and Aldermen of City of Nashville v. Cooper, 73 U.S. 247, 251–54 (1868).

[7] 100 U.S. 257, 261 (1880). The case involved a state prosecution of a federal internal revenue agent who had killed a man while seeking to seize an illicit distilling apparatus and claimed that he had acted in self-defense. *See id.* at 260.

government's fundamental interest in "preserving its own existence," preventing states from undermining federal policies by prosecuting federal agents.[8] The Court stated, "Cases arising under the laws of the United States are such as grow out of the legislation of Congress, [whether] they constitute th[e] right or privilege, or claim or protection, or defence of the party, in whole or in part."[9] It held that the Constitution's grant of federal question jurisdiction extended to the protection of federal agents performing their official duties, and that the removal statute was a valid grant of federal question jurisdiction under the Necessary and Proper Clause.[10]

The modern analog to the federal officer removal statute at issue in *Davis* is codified in 28 U.S.C. § 1442.[11] The Supreme Court has construed that statute broadly to cover all cases where federal officers can raise a colorable defense arising out of their duty to enforce federal law.[12] The Court has interpreted other removal statutes, such as the civil rights removal statute, more narrowly.[13]

ArtIII.S2.C1.11.6 Supplemental Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;— to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

A single case may simultaneously involve claims that give rise to federal court jurisdiction and claims that, standing alone, would not. The federal courts may often consider both sets of claims together under the doctrine of *supplemental jurisdiction*. The doctrine is grounded in the broad interpretation of Article III jurisdiction articulated in *Osborn v. Bank of the United States*, where Chief Justice John Marshall explained that the Constitution grants the federal courts jurisdiction when a federal question "forms an *ingredient* of the original cause, . . . although other questions of fact or of law may be involved in it."[1] Supreme Court cases and

[8] *Id.* at 262.

[9] *Id.* at 264.

[10] *Id.* at 263–71.

[11] 28 U.S.C. § 1442(a)(1) (authorizing removal of any "civil action or criminal prosecution that is commenced in a State court and that is against or directed to . . . [t]he United States or any agency thereof or any officer (or any person acting under that officer) of the United States or of any agency thereof, in an official or individual capacity, for or relating to any act under color of such office or on account of any right, title or authority claimed under any Act of Congress for the apprehension or punishment of criminals or the collection of the revenue").

[12] Willingham v. Morgan, 395 U.S. 402, 406–07 (1969); *see also* Maryland v. Soper, 270 U.S. 9 (1926). Removal by a federal officer or agency must be predicated on the allegation of a colorable federal defense. Mesa v. California, 489 U.S. 121 (1989). In 1991, the Supreme Court held that a federal agency was not permitted to remove a case under the statute's plain meaning. International Primate Protection League v. Tulane Educ. Fund, 500 U.S. 72 (1991). Congress amended the statute in 1996 to specify that actions against agencies were removable. Pub. L. 104-317, § 206(a)(1).

[13] *See, e.g.*, Johnson v. Mississippi, 421 U.S. 213 (1975) (to warrant removal under 28 U.S.C. § 1443(1), it must appear that (1) "the right allegedly denied the removal petitioner arises under a federal law 'providing for specific civil rights stated in terms of racial equality'" and (2) "the removal petitioner is denied or cannot enforce the specified federal rights in the courts of (the) State.") (quoting Georgia v. Rachel, 384 U.S. 780, 792, 808 (1966)) (additional quotes removed); *see also*; City of Greenwood v. Peacock, 384 U.S. 808 (1966).

[1] 22 U.S. 738, 823 (1824).

federal legislation identify circumstances in which federal courts may exercise supplemental jurisdiction to hear claims over which they would not otherwise have jurisdiction, including state law claims between non-diverse parties.[2]

One form of supplemental jurisdiction, also called *ancillary jurisdiction*, *pendent jurisdiction*, or *pendent claim jurisdiction*, exists when a claim that would not otherwise be subject to federal court jurisdiction arises from the same set of facts as a claim that is subject to federal court jurisdiction.[3] Some sources use the term *pendent jurisdiction* to refer to cases where related federal and non-federal claims appear in a plaintiff's complaint.[4] By contrast, *ancillary jurisdiction* may refer to cases where a complaint raises one or more claims subject to federal court jurisdiction, then a defendant responds by raising compulsory *counterclaims* that would not independently meet the jurisdictional requirements.[5]

The doctrine of ancillary jurisdiction has its roots in the 1861 case *Freeman v. Howe*.[6] *Freeman* involved federal court proceedings related to the seizure of rail cars. The original parties were from different states, and the case proceeded in federal court pursuant to diversity jurisdiction. Other parties who did not satisfy the requirements for diversity jurisdiction then sought to intervene and assert rights to the seized property. The Supreme Court held that the federal courts could hear claims from the non-diverse parties, stating that an equitable claim like those at issue "is not an original suit, but ancillary and dependent, supplementary merely to the original suit, . . . and is maintained without reference to the citizenship or residence of the parties."[7]

By contrast, in *Kokkonen v. Guardian Life Ins. Co.*, the Court held that the federal courts lacked ancillary jurisdiction to hear state law breach of contract claims related to a settlement agreement that resolved earlier federal court litigation.[8] Justice Antonin Scalia's majority opinion identified two purposes of ancillary jurisdiction: "to permit disposition by a single court of claims that are, in varying respects and degrees, factually interdependent," or "to enable a court to function successfully, that is, to manage its proceedings, vindicate its authority, and effectuate its decrees."[9] The Court held that federal jurisdiction over the breach of contract claims would not serve those purposes.

With respect to pendent jurisdiction over state and federal claims contained in a single complaint, the Supreme Court in *Siler v. Louisville & Nashville R.R.* considered whether federal courts could exercise jurisdiction over a case involving federal constitutional claims

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[2] Supplemental jurisdiction may exist in cases where federal court jurisdiction is based on either the existence of a federal question or diversity of citizenship. For discussion of diversity jurisdiction, where the federal courts possess jurisdiction over a case because the parties are from different states, see ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction to ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases; ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens to ArtIII.S2.C1.17 Land Grants by Different States.

[3] *See, e.g.*, Romero v. International Terminal Operating Co., 358 U.S. 354, 380–81 (1959); Fitzgerald v. United States Lines Co., 374 U.S. 16 (1963); Rosado v. Wyman, 397 U.S. 397, 402–05 (1970). While some courts and commentators consider pendent jurisdiction to be one type of ancillary jurisdiction, others use the two terms to refer to distinct but related categories of cases *See, e.g.*, Erwin Chemerinsky, Federal Jurisdiction 343 (5th ed. 2007); *see also infra* notes 4–5 and accompanying text.

[4] For example, plaintiffs suing for civil rights violations often raise claims under the federal statute 42 U.S.C. § 1983 as well analogous state law claims.

[5] Moore v. New York Cotton Exchange, 270 U.S. 593 (1926).

[6] 65 U.S. 450 (1861).

[7] *Id.* at 460.

[8] 511 U.S. 375 (1994). *See also* Peacock v. Thomas, 516 U.S. 349 (1996) (holding that federal courts do not possess ancillary jurisdiction over new actions in which a federal judgment creditor seeks to impose liability for a money judgment on a person not otherwise liable for the judgment).

[9] *Kokkonen*, 511 U.S. at 379–80.

and claims under state law.[10] The court explained that the constitutional claims gave rise to federal court jurisdiction, and thereafter the federal court could "decide all the question[s] in the case, even though it decided the Federal questions adversely to the party raising them," and even if it declined to decide the federal questions and instead resolved the case on state law grounds.[11]

The Supreme Court articulated a test for when courts should exercise pendent jurisdiction in the 1933 case *Hurn v. Oursler*.[12] In that case, the Court distinguished between "a case where two distinct grounds in support of a single cause of action are alleged, one only of which presents a federal question"—which was subject to ancillary jurisdiction—and "a case where two separate and distinct causes of action are alleged, one only of which is federal in character"—which was not.[13]

Lower federal courts had difficulty applying the rule in *Hurn*, and several decades later the Court articulated a new test in *United Mine Workers v. Gibbs*.[14] Stating that courts applying *Hurn* had been "unnecessarily grudging" in hearing pendent claims, the Court explained:

> Pendent jurisdiction, in the sense of judicial power, exists whenever there is [a federal question claim], and the relationship between that claim and the state claim permits the conclusion that the entire action before the court comprises but one constitutional "case."[15]

To warrant the exercise of pendent jurisdiction, "[t]he state and federal claims must derive from a common nucleus of operative fact."[16] But if the federal issues are substantial and plaintiff's federal and state claims "are such that he would ordinarily be expected to try them all in one judicial proceeding, then . . . there is power in federal courts to hear the whole."[17] Although the *Gibbs* Court held that the "judicial power" under the Constitution allowed for pendent jurisdiction in a large class of cases, the Court also emphasized that federal courts could properly decline to exercise that power over state claims based on "considerations of judicial economy, convenience and fairness to litigants," as well to foster comity between federal and state courts.[18]

Pendent jurisdiction does not exist if a plaintiff's federal claim is insubstantial or patently without merit.[19] The Supreme Court has also held that when the Eleventh Amendment bars a federal claim against state officials, federal courts may not exercise jurisdiction over pendent state law claims.[20] If a federal claim is substantial enough to confer jurisdiction but is dismissed before trial, or if a pendent state law claim substantially predominates, a federal court may be justified in dismissing the state claim.[21] However, there is no requirement that federal courts resolve cases involving both federal and state law claims on federal grounds

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[10] 213 U.S. 175 (1909).

[11] *Id.* at 191.

[12] 289 U.S. 238 (1933).

[13] *Id.* at 246.

[14] 383 U.S. 715 (1966).

[15] *Id.* at 725.

[16] *Id.*

[17] *Id.*

[18] *Id.* at 726

[19] Hagans v. Lavine, 415 U.S. 528, 537–38 (1974); *see also Gibbs*, 383 U.S. at 725.

[20] Pennhurst State School & Hosp. v. Halderman, 465 U.S. 89, 120 (1984). For further discussion of the Eleventh Amendment, see Amdt11.5.1 General Scope of State Sovereign Immunity.

[21] *Gibbs*, 383 U.S. at 726–27.

when possible.[22] On the contrary, the doctrine of constitutional avoidance counsels that federal courts should not decide federal constitutional claims if they can avoid doing so, meaning that it may be an abuse of discretion for a federal court to reach a federal constitutional question when it could decide a case on state law grounds.[23]

The foregoing cases considered when federal courts may exercise supplemental jurisdiction over *claims* over which they would not otherwise have jurisdiction. A related doctrine, sometimes called *pendent party jurisdiction*, allows the federal courts to hear claims involving *parties* who might not otherwise be subject to federal subject matter jurisdiction.[24]

In 1978, in *Owen Equipment & Erection Co. v. Kroger*, the Supreme Court announced a limit on pendent party jurisdiction, holding that a plaintiff could not amend her complaint to add a claim against a third-party defendant that was a resident of the plaintiff's home state.[25] The Court again limited pendent party jurisdiction in the 1989 case *Finley v. United States*.[26] Justice Antonin Scalia's majority opinion in *Finley* declined to disturb the doctrine of pendent claim jurisdiction laid out in *Gibbs*, and explicitly acknowledged that pendent party jurisdiction also fell within the *constitutional* grant of federal judicial power. However, the Court declined to "read jurisdictional statutes broadly" in support of pendent party jurisdiction.[27] The majority emphasized that its holding, based on application of the jurisdictional statutes, "can of course be changed by Congress."[28]

The following year, Congress enacted legislation that expressly granted the federal courts pendent party jurisdiction.[29] Codified at 28 U.S.C. § 1367, the statute provides that, subject to certain limitations, once the federal district courts have jurisdiction over a case, they "shall have supplemental jurisdiction over all other claims that are so related to claims in the action within such original jurisdiction that they form part of the same case or controversy under Article III of the United States Constitution," including "claims that involve the joinder or intervention of additional parties."[30] Section 1367(b) codified the holding in *Owen Equipment* imposing limits on the federal courts' ability to exercise supplemental jurisdiction over certain claims by plaintiffs against non-diverse defendants.[31] More generally, the Supreme Court has

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[22] *See, e.g.*, Greene v. Louisville & Interurban R.R., 244 U.S. 499, 508 (1917) (holding that, once federal court jurisdiction is established, it extends "to the determination of all questions involved in the case, including questions of state law, irrespective of the disposition that may be made of the Federal question, or whether it be found necessary to decide it at all").

[23] *Hagans*, 415 U.S. at 549–50; Schmidt v. Oakland Unified School Dist., 457 U.S. 594 (1982) (per curiam); Siler v. Louisville & Nashville R.R., 213 U.S. 175, 191 (1909). For discussion of the constitutional avoidance doctrine, *see* ArtIII.S2.C1.10.1 Overview of Constitutional Avoidance Doctrine.

[24] In addition to subject matter jurisdiction, there is a separate constitutional requirement that any court hearing a claim against a party must also possess personal jurisdiction over that party. *See generally* Amdt14.S1.7.1.1 Overview of Personal Jurisdiction and Due Process.

[25] 437 U.S. 365 (1978).

[26] 490 U.S. 545 (1989).

[27] *Id.* at 556.

[28] *Id.*

[29] Act of Dec. 1, 1990, Pub. L. No. 101-650, 104 Stat. 5089, § 310 (codified at 28 U.S.C. § 1367).

[30] 28 U.S.C. § 1367(a); *see also* 28 U.S.C. § 1441(c) (allowing for removal to federal court of any civil action that includes "(A) a claim arising under the Constitution, laws, or treaties of the United States (within the meaning of section 1331 of this title), and (B) a claim not within the original or supplemental jurisdiction of the district court or a claim that has been made nonremovable by statute").

[31] 28 U.S.C. § 1367(b) ("In any civil action of which the district courts have original jurisdiction founded solely on section 1332 of this title, the district courts shall not have supplemental jurisdiction under subsection (a) over claims by plaintiffs against persons made parties under Rule 14, 19, 20, or 24 of the Federal Rules of Civil Procedure, or over claims by persons proposed to be joined as plaintiffs under Rule 19 of such rules, or seeking to intervene as plaintiffs under Rule 24 of such rules, when exercising supplemental jurisdiction over such claims would be inconsistent with

explained that Section 1367 "codified [the] principles" of *Gibbs* and related cases in a supplemental jurisdiction statute that "combines the doctrines of pendent and ancillary jurisdiction under a common heading."[32]

ArtIII.S2.C1.12 Admiralty and Maritime Jurisdiction

ArtIII.S2.C1.12.1 Overview of Admiralty and Maritime Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The federal courts' jurisdiction over admiralty and maritime cases derives from the Constitution and federal statutes. Article III of the Constitution extends the federal judicial power to "all Cases of admiralty and maritime Jurisdiction."[1] By giving the Federal Judiciary jurisdiction over admiralty cases—and authorizing Congress to regulate that jurisdiction[2]—the Framers sought to ensure that federal courts would resolve cases that might implicate the Nation's foreign policy.[3] The Framers also recognized that uniform federal admiralty jurisdiction could protect maritime commerce from the diverse and unpredictable procedural rules that state admiralty courts had applied under the Articles of Confederation.[4]

Beginning with the Judiciary Act of 1789, Congress established the federal district courts and granted them "exclusive" and "original"[5] subject matter jurisdiction over any "civil case of admiralty or maritime jurisdiction."[6] Congress also allowed state courts to exercise concurrent

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the jurisdictional requirements of section 1332."). *See also* Exxon Mobil Corp. v. Allapattah Services, Inc., 545 U.S. 546, 573 (Stevens, J., dissenting) (quoting House Report on Section 1367, which was also adopted by the Senate).

[32] City of Chicago v. Int'l College of Surgeons, 522 U.S. 156 (1998).

[1] U.S. Const. art. III, § 2, cl. 1. Federal courts have treated the "admiralty" and "maritime" aspects of such jurisdiction as functionally synonymous. This essay sometimes refers to "admiralty and maritime jurisdiction" as "admiralty jurisdiction." Jurisdiction generally refers to a court's power to decide a case. *Jurisdiction*, Black's Law Dictionary 980 (10th ed. 2014).

[2] *See* U.S. Const. art. III, § 1; *id.* § 2, cl. 1; United States v. Hudson & Goodwin, 11 U.S. (7 Cr.) 32, 33 (1812).

[3] 3 Joseph Story, Commentaries on the Constitution of the United States, § 1666 (1833).

[4] *Id.*; Waring v. Clarke, 46 U.S. (5 How.) 441, 456–57 (1847).

[5] If a court has "original jurisdiction" over a particular subject matter, then it may hear and decide a case concerning that matter before any other tribunal does. *Original Jurisdiction,* Black's Law Dictionary 982 (10th ed. 2014).

[6] The current version of this statutory grant of admiralty jurisdiction is located at 28 U.S.C. § 1333(1). Congress also granted the federal district courts exclusive jurisdiction over prize cases, which have historically involved property (e.g., a ship) used by an enemy, captured during wartime, and brought into the United States. *Id.* § 1333(2). Under federal law, the district courts have jurisdiction over cases involving the seizure and forfeiture of a vessel for violating federal law. *Id.* §§ 1333(1), 1356. Congress also granted district courts in U.S. territories jurisdiction over admiralty and maritime cases. *See* The City of Panama, 101 U.S. 453, 458 (1880).

In general, district courts have discretion as to whether to retain admiralty jurisdiction over suits between foreign parties. Charter Shipping Co. v. Bowring, Jones & Tidy, Ltd., 281 U.S. 515, 517 (1930); The Maggie Hammond, 76 U.S. (9 Wall.) 435, 450, 457 (1869).

jurisdiction over admiralty cases in which plaintiffs seek traditional common law remedies.[7] Under the "saving to suitors clause" in Section 9 of the Judiciary Act, courts retain concurrent jurisdiction over most contract and tort claims that fall within federal admiralty jurisdiction because a plaintiff may bring a personal action against an individual defendant seeking common law remedies (e.g., payment of money damages).[8] However, in general, plaintiffs must pursue actions in federal court when they seek remedies that lie against property in rem, such as the seizure of a vessel to enforce a maritime lien.[9]

Much of the Supreme Court's jurisprudence on admiralty jurisdiction has examined the territorial extent of such jurisdiction and which types of cases fall within this limited grant of jurisdiction. Generally, courts consider the location in which a tort or crime occurs to be a major factor when determining whether the tort or crime falls within admiralty jurisdiction.[10] The Court has held that, under the Constitution, admiralty jurisdiction extends to all navigable public waters, regardless of whether they are saltwater or freshwater, or subject to the ebb and flow of the tide.[11] Admiralty jurisdiction also extends to contracts, regardless of where they are entered into or to be performed, provided that their subject matter is "essentially maritime."[12]

When a federal court exercises admiralty jurisdiction over a case,[13] it follows a special set of procedural rules. Notably, jury trials are unavailable in civil admiralty proceedings[14] unless Congress provides otherwise.[15] Thus, in federal admiralty proceedings, the judge typically decides issues of both law and fact. When a federal or state court exercises admiralty jurisdiction over a case, the judge must apply the substantive rules of federal maritime law,[16]

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[7] 28 U.S.C. § 1333(1) ("The district courts shall have original jurisdiction, exclusive of the courts of the States, of . . . [a]ny civil case of admiralty or maritime jurisdiction, *saving to suitors in all cases all other remedies to which they are otherwise entitled*.") (emphasis added). *See also, e.g.*, Lewis v. Lewis & Clark Marine, Inc., 531 U.S. 438, 454 (2001); Schoonmaker v. Gilmore, 102 U.S. 118, 119 (1880); Martin v. Hunter's Lessee, 14 U.S. (1 Wheat.) 304, 337 (1816). Lawsuits brought under the savings clause in state court may not be removed to federal court unless independent grounds exist, other than admiralty, for the federal court's exercise of jurisdiction. Romero v. Int'l Terminal Operating Co., 358 U.S. 354, 371–72 (1959).

[8] For more on the relationship between federal and state court jurisdiction in admiralty cases, see ArtIII.S2.C1.12.8 Exclusivity of Federal Admiralty and Maritime Jurisdiction.

[9] *See id.* In in rem admiralty proceedings, the court takes custody of the *res* or property. The property itself is made the defendant in the case, and parties who have an interest in it "may appear" and each "propound independently his interest." Taylor v. Carryl, 61 U.S. (20 How.) 583, 599 (1858).

[10] Exec. Jet Aviation, Inc. v. City of Cleveland, 409 U.S. 249, 268 (1972).

[11] *See, e.g.*, Southern S.S. Co. v. NLRB, 316 U.S. 31, 41 (1942); The Montello, 87 U.S. (20 Wall.) 430, 441–45 (1874); The Daniel Ball, 77 U.S. (10 Wall.) 557, 563–64 (1870). Congress has some power to extend the territorial scope of admiralty jurisdiction. For example, in the Extension of Admiralty Jurisdiction Act, 46 U.S.C. § 30101, Congress augmented admiralty jurisdiction so that it encompasses claims that involve injury or damage to persons or property "caused by a vessel on navigable waters," even if such injury or damage is "done or consummated on land" (e.g., collision of a ship with a bridge).

[12] *Ex parte* Easton, 95 U.S. 68, 72 (1877).

[13] A federal court exercising admiralty jurisdiction is sometimes said to be "sitting in admiralty."

[14] *E.g.,* The Whelan, 11 U.S. (7 Cr.) 112, 112 (1812); The Schooner Betsey, 8 U.S. (4 Cr.) 443, 452 (1807); The Schooner Sally, 6 U.S. (2 Cr.) 406, 406 (1805); La Vengeance, 3 U.S. (3 Dall.) 297, 301 (1796).

[15] Congress may, consistent with the Constitution, provide for jury trials in admiralty cases. *See* Fitzgerald v. United States Lines Co., 374 U.S. 16, 20 (1963) (noting that the Seventh Amendment does not require jury trials in admiralty cases but "neither that Amendment nor any other provision of the Constitution forbids them"); The Propeller Genesee Chief v. Fitzhugh, 53 U.S. (12 How.) 443, 460 (1852). The Great Lakes Statute, 28 U.S.C. § 1873, provides that parties to a lawsuit involving maritime contracts or torts may demand a jury trial in admiralty cases that arise upon the Great Lakes, provided that the vessels involved meet certain conditions.

[16] Federal maritime law incorporates common principles that commercial nations have recognized. The United States has adopted this maritime law through its "laws and usages" with some modifications to account for local conditions. *See* The Lottawanna, 88 U.S. (21 Wall.) 558, 572–73 (1875) ("In this respect it is like international law or the laws of war, which have the effect of law in no country any further than they are accepted and received as such.").

which is a type of federal common law[17] that Congress may revise.[18] In the absence of controlling federal maritime law, federal courts have sometimes applied substantive state law in admiralty cases when it would not interfere with the uniformity of federal maritime law.[19] In some cases, such as those involving maritime torts in a state's territorial waters, the Court has held that state law may supplement federal maritime law with additional remedies.[20]

This group of essays examines the Constitution's grant of federal judicial power over cases of admiralty and maritime jurisdiction. The first essay provides an overview of the historical development of admiralty and maritime jurisdiction in the United States. Subsequent essays examine Supreme Court decisions that interpret the territorial and conceptual scope of this jurisdiction. The essays conclude by discussing when concurrent federal and state jurisdiction exists over maritime claims and, alternatively, when such claims fall within the exclusive admiralty jurisdiction of the federal courts.

ArtIII.S2.C1.12.2 Historical Background on Admiralty and Maritime Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Constitution's Framers were familiar with the concept of a separate and specialized admiralty jurisdiction. Prior to the Founding, the British Crown commissioned vice-admiralty courts in the American colonies.[1] These courts, which were subordinate to the English admiralty courts, exercised jurisdiction over maritime cases that arose in the colonies independently of the colonial courts of common law and equity.[2]

In the years leading up to the American Revolution, the jurisdiction of the independent vice-admiralty courts led to disputes between the colonists and the British Crown. For

[17] Federal courts have explained the content of the general maritime law. *See generally* Kermarec v. Compagnie Generale Transatlantique, 358 U.S. 625, 628 (1959); Carlisle Packing Co. v. Sandanger, 259 U.S. 255, 259 (1922); Chelentis v. Luckenbach S.S. Co., 247 U.S. 372, 381–82 (1918); United States v. Ames, 99 U.S. 35, 35–36 (1879).

[18] Congress may, consistent with the Constitution, revise federal maritime law. *See* Crowell v. Benson, 285 U.S. 22, 55 (1932); *In re* Garnett, 141 U.S. 1, 14 (1891). Congress might also rely, to an extent, on its power to regulate maritime commerce when revising general maritime law. *The Lottawanna*, 88 U.S. (21 Wall.) at 577. *See also, e.g.*, U.S. Const. art. I, § 8, cl. 10 (granting Congress power to "define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations"); *id.* § 8, cl. 11 (giving Congress power to "declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water").

[19] Knickerbocker Ice Co. v. Stewart, 253 U.S. 149, 158–59 (1920). *See also* Goett v. Union Carbide Corp., 361 U.S. 340, 342 (1960) (holding that, in a wrongful death case, a state law may supply the standard for liability in a maritime tort that arises within the state's territorial jurisdiction); Wilburn Boat Co. v. Fireman's Fund Ins. Co., 348 U.S. 310, 320–21 (1955) (holding that state law governed the effect of marine insurance warranties when Congress had left regulation of marine insurance to the states).

[20] *E.g.*, Yamaha Motor Corp. v. Calhoun, 516 U.S. 199, 202, 215 (1996) (holding that state remedies for the wrongful death of a nonseafarer in state territorial waters were not preempted by federal law, where federal law provided no other remedy).

[1] *Waring*, 46 U.S. at 454; 3 William Blackstone, Commentaries on the Laws of England 68–70 (Philadelphia 1893) (1768). *See also* Story, *supra* note 3, at § 1659.

[2] *See supra* note 1.

example, the colonists objected to the Crown's prosecution of colonists in the vice-admiralty courts, without trial by jury, for allegedly violating a British tax law, the 1765 Stamp Act.[3] In 1774, the First Continental Congress's delegates cited this extension of British admiralty courts' jurisdiction "beyond their ancient limits" as one of the major grievances against Great Britain.[4] Denial to the colonists of trial by jury in the vice-admiralty courts helped to motivate the colonists' 1776 Declaration of Independence, which cited the British King depriving the colonists "in many cases, of the benefits of Trial by Jury" as a justification for separating from Great Britain.[5]

After declaring independence, each state established its own admiralty courts.[6] State admiralty courts adopted a wide variety of procedural practices, particularly with respect to the availability of jury trials.[7] Although the Articles of Confederation authorized Congress to establish a tribunal to hear appeals from state admiralty courts in prize cases, this appeal mechanism failed to resolve many conflicts among state admiralty court decisions.[8]

Records of the Federal Convention of 1787 do not provide much insight into the Framers' reasons for conferring admiralty jurisdiction on the Federal Judiciary.[9] Delegate Charles Pinckney's plan for the federal government, which he had submitted to the Convention, would have authorized Congress to establish separate admiralty courts in each of the states.[10] In addition, the issue of admiralty jurisdiction received a brief mention in a Convention debate over whether the Constitution should specifically create lower federal courts.[11] Delegate James Wilson argued that the "national Government" should have jurisdiction over admiralty cases because they would often implicate controversies with foreign parties that should remain outside of state court jurisdiction.[12]

Toward the end of the Convention, the Committee of Detail, which was responsible for drafting the Constitution, included the clause granting the Federal Judiciary admiralty and maritime jurisdiction in one of its drafts.[13] This clause would establish uniform federal jurisdiction to resolve conflicts among the states with respect to prize cases, and the Convention delegates appear to have accepted it without controversy.[14]

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[3] The Avalon Project at Yale Law School, *Declaration and Resolves of the First Continental Congress*, https://avalon.law.yale.edu/18th_century/resolves.asp. *See also* C.J. Hendry Co. v. Moore, 318 U.S. 133, 141 (1943) (noting that the "rise of the vice-admiralty courts" was "prompted in part by the [British] Crown's desire to have access to a forum not controlled by the obstinate resistance of American juries").

[4] *See supra* note 3. The colonial vice-admiralty courts had long exercised a more expansive jurisdiction than that of the English admiralty courts. *See* Atkins v. Disintegrating Co., 85 U.S. (18 Wall.) 272, 304 (1874); *Waring*, 46 U.S. (5 How.) at 454.

[5] Nat'l Archives, *Declaration of Independence: A Transcription*.

[6] Harrington Putnam, *How the Federal Courts Were Given Admiralty Jurisdiction*, 10 Cornell L.Q. 460, 461–63 (1925). For example, Virginia established a court to hear cases related to "vessels and their cargoes," which had jurisdiction over prize cases. *Id.*

[7] The Federalist No. 83 (Alexander Hamilton).

[8] Putnam, *supra* note 6, at 463–64. *See also* Articles of Confederation and Perpetual Union of 1781, art. IX.

[9] Putnam, *supra* note 6, at 460 (noting that the subject of admiralty courts "received but scant attention in the deliberations of the Federal Constitutional Convention").

[10] *Id.* at 460, 465–66. *See also, e.g.*, 2 Records of the Federal Convention of 1787, at 159 (Max Farrand ed., 1911) (reproducing one version of the Pinckney Plan in a Committee of Detail draft).

[11] 1 Records of the Federal Convention of 1787, at 124 (Max Farrand ed., 1911).

[12] *Id.*

[13] 2 Records of the Federal Convention of 1787, *supra* note 11, at 186–87. This draft granted the "Supreme Court" jurisdiction over admiralty cases but vested the federal "Judicial Power" in the Supreme Court and lower federal courts. *See id.* The Constitution's final text specifically extended the federal "judicial Power" to admiralty cases. U.S. Const. art. III, § 2, cl. 1.

[14] Putnam, *supra* note 6, at 469 ("[T]he experience of prize appeals, and the conflicts in the separate State courts, had prepared the Convention to accept a uniform Federal system, as essential to maritime commerce."). *See also* 3

Writing in the *Federalist Papers* in support of the Constitution's ratification, Alexander Hamilton maintained that even the most adamant opponents of a strong central government had acknowledged that the Federal Judiciary should take cognizance of admiralty cases.[15] Such cases, he wrote, "depend on the laws of nations, and so commonly affect the rights of foreigners, that they fall within the considerations which are relative to the public peace."[16] The Founders believed that admiralty jurisdiction should extend to the adjudication of prize cases involving the capture of foreign ships[17] and torts involving foreign ships,[18] both of which could implicate foreign affairs.[19] Hamilton also argued that federal courts should have exclusive jurisdiction in admiralty cases in order to provide uniform practices with respect to jury trials, which varied widely in state courts.[20]

By giving the Federal Judiciary jurisdiction over admiralty cases—and authorizing Congress to regulate that jurisdiction[21]—the Framers sought to ensure that federal courts would resolve cases that might implicate the nation's foreign policy.[22] The Framers also recognized that uniform federal admiralty jurisdiction could protect maritime commerce from the diverse and unpredictable procedural rules that state admiralty courts had applied under the Articles of Confederation.[23] After the Constitution's ratification, commercial maritime activity continued to expand throughout the United States. The importance of uniform admiralty jurisdiction grew as the Nation acquired new territories with inland waters and new inventions like the steamboat increased commerce on U.S. waterways.[24]

ArtIII.S2.C1.12.3 Federal Admiralty and Maritime Jurisdiction Generally

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Since the Founding, the Supreme Court has grappled with the scope of federal courts' "admiralty and maritime" jurisdiction under Article III of the Constitution and federal

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Joseph Story, Commentaries on the Constitution of the United States, § 1658 (1833) ("The propriety of this delegation of power seems to have been little questioned at the time of adopting the constitution.").

[15] The Federalist No. 80 (Alexander Hamilton).

[16] *Id. See also* Story, *supra* note 14, at §§ 1664–1667.

[17] Story, *supra* note 14, at § 1662.

[18] *Id.* § 1664.

[19] *See* Chisholm v. Georgia, 2 U.S. (2 Dall.) 419, 475 (1793) (noting that "as the seas are the joint property of nations, whose right and privileges relative thereto, are regulated by the law of nations and treaties, [admiralty and maritime] cases necessarily belong to national jurisdiction.").

[20] The Federalist No. 83 (Alexander Hamilton).

[21] *See* U.S. Const. art. III, § 1; *id.* § 2, cl. 1; United States v. Hudson & Goodwin, 11 U.S. (7 Cr.) 32, 33 (1812).

[22] Waring v. Clarke, 46 U.S. (5 How.) 441, 456–57 (1847); Story, *supra* note 14, at § 1666.

[23] *Id.*; *Waring*, 46 U.S. (5 How.) at 456–57.

[24] The Hine v. Trevor, 71 U.S. (4 Wall.) 555, 562 (1867) ("[W]ith the vast increase of inland navigation consequent upon the use of steamboats, and the development of wealth on the borders of the rivers, which thus became the great water highways of an immense commerce, the necessity for an admiralty court, and the value of admiralty principles in settling controversies growing out of this system of transportation, began to be felt.").

statutes.[1] The Supreme Court has held that "all suits involving maritime claims, regardless of the remedy sought, are cases of admiralty and maritime jurisdiction within the meaning of Article III whether they are asserted in the federal courts or, under the saving clause, in the state courts."[2] Generally, the Court's cases analyzing admiralty jurisdiction have addressed when particular claims qualify as "maritime." Such cases have examined: (1) the territorial extent of such jurisdiction; (2) its subject matter scope; and (3) the availability of concurrent state court jurisdiction over maritime claims.

The Supreme Court has held that neither Congress, the states, nor U.S. courts can enlarge admiralty jurisdiction beyond its constitutional limits.[3] Congress has successfully enlarged the Judiciary Act's initial *statutory* grant of admiralty jurisdiction to the lower federal courts on several occasions,[4] which suggests that it has not granted the courts admiralty jurisdiction to the full extent that the Constitution allows.[5] However, the precise boundaries that the Constitution establishes for this jurisdiction remain unclear.[6] The Court has suggested that various historical and policy-based considerations may delineate the jurisdiction's boundaries, including the types of maritime cases that state admiralty courts could adjudicate at the time of the Constitution's adoption;[7] the Framers' reasons for conferring admiralty jurisdiction on the Federal Judiciary (for example, to establish more uniformity in admiralty proceedings);[8] and Congress's practical need to address new "maritime concerns."[9]

The extent to which Congress may *reduce* the scope of admiralty jurisdiction is also unclear. In one case, the Supreme Court suggested that "grave" constitutional questions would arise if the Court interpreted the Jones Act to prohibit federal courts from exercising admiralty jurisdiction over a seaman's personal injury claims against his employer while allowing such suits at common law.[10] The Court avoided ruling on whether the statute would encroach on the Constitution's grant of admiralty jurisdiction by construing the Jones Act to allow the seaman to sue either on the "admiralty side" of a federal court with trial by judge or the "law side" of the

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[1] Neither the Constitution nor federal law specifically defines the phrase "admiralty and maritime." In one early case, Chief Justice Roger B. Taney noted the difficulties in ascertaining the extent of such jurisdiction. The Steamer St. Lawrence, 66 U.S. (1 Black) 522, 526–27 (1862). *See also* The Lottawanna, 88 U.S. (21 Wall.) 558, 574–77 (1874).

[2] Romero v. Int'l Terminal Operating Co., 358 U.S. 354, 367 n.23 (1959).

[3] *The Steamer St. Lawrence*, 66 U.S. (1 Black) at 527.

[4] *See, e.g.*, Death on the High Seas Act, 46 U.S.C. §§ 30301–30308; Extension of Admiralty Jurisdiction Act, *id.* § 30101; Ship Mortgage Act, *id.* §§ 31301–31309; Shipowner's Limitation of Liability Act, *id.* §§ 30501–30512.

[5] *See, e.g.*, Gutierrez v. Waterman Steamship Co., 373 U.S. 206, 209 (1963) (implicitly upholding Congress's expansion of admiralty jurisdiction to encompass some claims arising from injury or damage to property caused by a vessel on navigable waters that the Court had previously held not to fall within admiralty jurisdiction when the injury or damage was consummated on land).

[6] *The Steamer St. Lawrence*, 66 U.S. (1 Black) at 526–27. *See also* The Belfast, 74 U.S. 624, 636 (1869) (stating that the federal power to hear admiralty cases extends to "all such cases of a maritime character as were cognizable in the admiralty courts of the States at the time the Constitution was adopted").

[7] *Id.*

[8] *The Steamer St. Lawrence*, 66 U.S. (1 Black) at 526–27.

[9] Detroit Trust Co. v. The Thomas Barlum, 293 U.S. 21, 52 (1934). Because the Supreme Court often evaluates the scope of both constitutional and statutory admiralty jursidiction based on historical or common law factors, it can be difficult to ascertain whether some of the Court's rulings are grounded in its interpretation of the Constitution or, rather, federal statutory law. *See, e.g.*, T. Smith & Son, Inc. v. Taylor, 276 U.S. 179, 182 (1928) (holding that admiralty had no jurisdiction over a wrongful death suit arising from an incident in which a sling knocked a longshoreman working on a wharf to unload a vessel into the water without specifying whether Congress could confer admiralty jurisdiction over such suits by subsequently enacting a statute).

[10] Panama R. Co. v. Johnson, 264 U.S. 375, 386, 389–90 (1924) ("[T]here are boundaries to the maritime law and admiralty jurisdiction which inhere in those subjects and cannot be altered by legislation, as by excluding a thing falling clearly within them or including a thing falling clearly without."). The Court also indicated that, generally, Congress's enactments modifying admiralty jurisdiction "must be coextensive with and operate uniformly in the whole of the United States." *Id.* at 387.

court with a right to a jury trial.[11] The Court's decision suggests that the Constitution may impose some limits on Congress's ability to withdraw certain maritime-related claims from admiralty jursidiction, at least when those claims remain cognizable in common law courts.

ArtIII.S2.C1.12.4 Territorial Extent of Admiralty Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Generally, courts consider the location in which a tort or crime occurs to be a major factor when determining whether the tort or crime falls within admiralty jurisdiction.[1] Early in U.S. history, the Supreme Court interpreted the territorial extent of federal admiralty jurisdiction in accordance with the rules of the English admiralty courts.[2] As a result, the Court construed that jurisdiction narrowly, limiting it to causes of action that arose on the high seas and rivers subject to the ebb and flow of the tide.[3]

The law changed significantly in the mid-nineteenth century when the Court held that the English rules on jurisidiction at the time of the U.S. Constitution's adoption could not limit the territorial extent of federal admiralty jursidiction.[4] In *The Propeller Genesee Chief v. Fitzhugh*,[5] the Court reviewed a federal law that extended admiralty jursidiction over certain claims that arose on the Great Lakes and connecting waters.[6] The Court upheld the law, determining that the Constitution's initial grant of admiralty jurisdiction embraced such waters, even if they were beyond the ebb and flow of the tide.[7] A couple of decades later, the Court specifically held that admiralty jurisdiction, as conferred by the Constitution and federal statutes, extended to claims arising on all navigable waters of the United States.[8]

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[11] *Id.* at 389–90.

[1] Exec. Jet Aviation, Inc. v. City of Cleveland, 409 U.S. 249, 268 (1972).

[2] The Thomas Jefferson, 23 U.S. (10 Wheat.) 428, 429–30 (1825). *See also* The Steamboat Orleans v. Phoebus, 36 U.S. (11 Pet.) 175, 183 (1837); Peyroux v. Howard, 32 U.S. (7 Pet.) 324, 343 (1833).

[3] *See supra* note 2.

[4] Jackson v. S.B. Magnolia, 61 U.S. (20 How.) 296, 299 (1858); The Propeller Genesee Chief v. Fitzhugh, 53 U.S. (12 How.) 443, 455–57 (1851). *See also* Waring v. Clarke, 46 U.S. (5 How.) 441, 459 (1847); De Lovio v. Boit, 7 F. Cas. 418, 443–44 (C.C.D. Mass. 1815) (Story, Cir. J.).

[5] *The Propeller Genesee Chief*, 53 U.S. (12 How.) at 455–57.

[6] 5 Stat. 726, 726–27 (1845). *See also The Propeller Genesee Chief*, 53 U.S. (12 How.) at 451–52.

[7] *Id.* at 457.

[8] The Hine v. Trevor, 71 U.S. (4 Wall.) 555, 569 (1866).

Thus, according to modern understanding, admiralty jurisdiction extends to all public waters that are navigable in fact,[9] regardless of whether they are saltwater or freshwater, or subject to the ebb and flow of the tide.[10]

ArtIII.S2.C1.12.5 Jurisdiction Over Categories of Admiralty Cases

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In the modern era, most cases that fall within admiralty jurisdiction involve one of two subjects: torts committed on the high seas or other navigable waters; or maritime contracts or services, which often relate to shipping on navigable waters.[1] State courts may have concurrent jurisdiction over maritime contract or tort claims that fall within federal admiralty jurisdiction when the defendant brings a personal action against a defendant, but generally only federal admiralty courts may exercise jurisdiction over cases in which the plaintiff seeks remedies against property in rem.[2]

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[9] The Daniel Ball, 77 U.S. (10 Wall.) 557, 563–64 (1870) (defining "navigable in fact" as waters that are "used, or are susceptible of being used, in their ordinary condition, as highways for commerce, over which trade and travel are or may be conducted in the customary modes of trade and travel on water").

[10] *See, e.g.*, Southern S.S. Co. v. NLRB, 316 U.S. 31, 41 (1942): The Montello, 87 U.S. (20 Wall.) 430, 441–45 (1874); The Eagle, 75 U.S. (8 Wall.) 15, 20–21 (1869); The Magnolia, 61 U.S. (20 How.) 296, 301–02 (1858); Fretz v. Bull, 53 U.S. (23 How.) 466, 468 (1852). Claims that arise on artificial bodies of navigable water may be subject to admiralty jurisdiction. The Robert W. Parsons, 191 U.S. 17, 26–27 (1903) (intrastate waters of Erie canal); *Ex parte* Boyer, 109 U.S. 629, 632 (1884) (Illinois and Michigan canal); Escanaba Co. v. Chi., 107 U.S. 678, 682–83 (1883) (Chicago River and its branches). The jurisdiction also extends to waters that can be made navigable with "reasonable improvement." United States v. Appalachian Elec. Power Co., 311 U.S. 377, 407–09 (1940).

Some earlier Supreme Court cases appeared to limit admiralty jurisdiction's territorial extent to navigable waters with a nexus to interstate or international commerce. *See, e.g.*, The Daniel Ball, 77 U.S. (10 Wall.) at 564–65; Nelson v. Leland, 63 U.S. (22 How.) 48, 56 (1860). However, these cases may have rested on the obsolete notion that congressional conferral of admiralty jurisdiction depended on Congress's commerce power. *See* London Guar. & Accident Co. v. Indus. Accident Comm'n, 279 U.S. 109, 124 (1929); The Belfast, 74 U.S. (7 Wall.) 624, 641 (1869). Because the Constitution explicitly includes admiralty jurisdiction within the federal judicial power, no separate nexus to commerce is required for that jurisdiction.

[1] Early in U.S. history, some federal courts of appeals held that federal admiralty jurisdiction encompassed a broader variety of contracts and torts than the jurisdiction that admiralty courts in England or its North American colonies exercised. These early courts looked to customary international maritime law for the extent of jurisdiction. *E.g.,* The Seneca, 21 F. Cas. 1081, 1082–84 (C.C.E.D. Pa. 1829) (holding that a dispute among a vessel's owners over where it would be employed fell within federal admiralty jurisdiction); DeLovio v. Boit, 7 F. Cas. 418, 444 (C.C.D. Mass. 1815) (determining that claims stemming from an insurance policy were within the nonexclusive federal admiralty jurisdiction). The Court later held that admiralty jurisdiction in federal courts is broader than that sustained in England. *E.g.*, N.J. Steam Navigation Co. v. Merch. Bank of Boston, 47 U.S. (6 How.) 344, 386, 389 (1848). *See also* Atkins v. Disintegrating Co., 85 U.S. (18 Wall.) 272, 304 (1874) ("The Constitution, in the grant of the admiralty jurisdiction, refers to it as it existed in this and other maritime countries at the time of the adoption of that instrument. It was then greatly larger here than in England. The hostility of the common-law courts there had wrought the reduction.").

[2] *See* Waring v. Clarke, 46 U.S. (5 How.) 441, 460–61 (1847). In in rem admiralty proceedings, the court takes custody of the *res* or property. The property itself is made the defendant in the case, and parties who have an interest in it "may appear" and each "propound independently his interest." Taylor v. Carryl, 61 U.S. (20 How.) 583, 599 (1858).

Congress has also granted federal district courts sitting in admiralty exclusive and original jurisdiction over prize and seizure cases.[3] Historically, prize cases have involved property (e.g., a ship) used by an enemy, captured during wartime, and brought into the United States.[4] The court's jurisidiction extends to proceedings in which a party seeks to acquire title legally to property taken as a prize.[5]

Cases involving the seizure and forfeiture of vessels for violating federal law or another nation's laws also fall within the exclusive admiralty jurisdiction of federal courts.[6] Vessels may be seized for engaging in activities such as conducting prohibited trade[7] or violating the revenue laws.[8] Federal courts also have exclusive jurisdiction over criminal cases against U.S. persons or vessels that arise within the special maritime and territorial jurisdiction of the United States, which generally encompasses navigable waters within U.S. territory but outside of any particular state's jurisdiction.[9]

ArtIII.S2.C1.12.6 Torts Committed on Navigable Waters

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Maritime torts include injuries to persons,[1] damages to property arising out of collisions or other negligent acts,[2] product liability suits,[3] and violent dispossession of property.[4] Cases

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[3] 28 U.S.C. §§ 1333, 1356. *See also* 10 U.S.C. ch. 883; The Admiral, 70 U.S. (3 Wall.) 603, 612 (1866); The Amiable Nancy, 16 U.S. (3 Wheat.) 546, 557–58 (1818); Bingham v. Cabbot, 3 (3 Dall.) U.S. 19, 41 (1795).

[4] The Sally, 12 U.S. (8 Cr.) 382, 384 (1814); The Rapid, 12 U.S. (8 Cr.) 155, 162 (1814). *See also* United States v. Ames, 99 U.S. 35, 43 (1879); Jennings v. Carson, 8 U.S. (4 Cr.) 2, 20 (1807).

[5] *Supra* notes 2, 3, 4 and accompanying text.

[6] *See* 28 U.S.C. §§ 1333, 1356. United States v. La Vengeance, 3 U.S. (3 Dall.) 297, 301 (1796) (holding that an in rem proceeding involving seizure and forfeiture of a vessel for exporting arms and ammunition in violation of federal law was within the exclusive admiralty jurisdiction of the federal courts). *Accord* United States v. The Schooner Betsey and Charlotte, 8 U.S. (4 Cr.) 443, 452 (1808) (determining that Congress intended for federal admiralty courts to exercise exclusive jurisdiction over seizures of ships for violating federal law on navigable waters).

[7] *E.g.,* The Samuel, 14 U.S. (1 Wheat.) 9, 14 (1816) (engaging in prohibited trade in violation of federal law); Hudson v. Guestier, 8 U.S. (4 Cr.) 293, 294 (1808) (violating French law by trading at a certain port); United States v. Schooner Sally of Norfolk, 6 U.S. (2 Cr.) 406, 406 (1805) (engaging in the slave trade); *La Vengeance*, 3 U.S. (3 Dall.) at 301 (exporting prohibited weapons).

[8] *E.g.*, Maul v. United States, 274 U.S. 501, 511–12 (1927); The Brig Ann, 13 U.S. (9 Cr.) 289, 289–90 (1815); The Sarah, 21 U.S. (8 Wheat.) 391, 394–96 (1823). At least some cases involving the seizure and forfeiture of vessels on state navigable waters for violations of state law may be heard in state courts. C.J. Hendry Co. v. Moore, 318 U.S. 133, 153 (1943).

[9] 18 U.S.C. § 7. *See also* United States v. Flores, 289 U.S. 137, 150 (1933) (noting that admiralty courts had long exercised jurisdiction over criminal cases that arose on navigable waters); United States v. Rodgers, 150 U.S. 249, 266 (1893) (holding that federal courts had jurisdiction under federal law "to try a person for an assault, with a dangerous weapon, committed on a vessel belonging to a citizen of the United States, when such vessel is in the Detroit River, out of the jurisdiction of any particular State, and within the territorial limits of the Dominion of Canada").

[1] *E.g.,* Brady v. Roosevelt S.S. Co., 317 U.S. 575, 576–77 (1943); Atl. Transp. Co. v. Imbrovek, 234 U.S. 52, 62–63 (1914); Leathers v. Blessing, 105 U.S. 626, 630 (1882); The S.B. New World v. King, 57 U.S. (16 How.) 469, 472–73 (1854).

involving tort claims fall within admiralty jurisdiction when two requirements are met: (1) the commission or consummation of the act that gives rise to the claim occurs on navigable waters;[5] and (2) the tort bears a significant relationship to traditional maritime activity.[6]

The first requirement for admiralty jurisdiction, which is based on the location of the incident, is satisfied if the tort arises on the high seas or on other navigable waters of the United States.[7] Prior to Congress's enactment of the Extension of Admiralty Jurisdiction Act of 1948, the Supreme Court had held that some claims arising from injury or damage to property caused by a vessel on navigable waters did not fall within admiralty jurisdiction when they were consummated on land (e.g., collision of a ship with a bridge).[8] In the Extension Act,[9] Congress enlarged admiralty jurisdiction to encompass many of these claims. The Court implicitly upheld that expansion of admiralty jurisdiction as within constitutional limits[10] when determining that the jurisdiction ecompassed a tort that arose when a longshoreman slipped on loose beans that spilled from negligently packed cargo on a dock during a vessel's unloading.[11] In addition to Congress's expansion of admiralty jurisdiction, the Court has

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The Supreme Court has held that plaintiffs may recover under general maritime law for the wrongful death of a seaman. Moragne v. States Marine Lines, 398 U.S. 375, 409 (1970), *overruling* The Harrisburg, 119 U.S. 199 (1886). *See also* Miles v. Apex Marine Corp., 498 U.S. 19, 37 (1990).

The federal Death on the High Seas Act, 46 U.S.C. §§ 30301–30308, permits recovery of damages for deaths of seamen and other persons that occur more than three miles from shore.

[2] *E.g.*, The Raithmoor, 241 U.S. 166, 177 (1916); Erie R.R. v. Erie & W. Transp. Co., 204 U.S. 220, 223–25 (1907); The Propeller Commerce, 66 U.S. (1 Black) 574, 579 (1862).

[3] Air & Liquid Sys. Corp. v. DeVries, No. 17-1104, slip op. at 5 (2019); E. River S.S. Corp. v. Transamerica Delaval Inc., 476 U.S. 858, 865 (1986). In a maritime product liability action, a federal court "acts as a common law court" and may derive federal maritime law from various sources, including "judicial opinions, legislation, treatises, and scholarly writings." Air & Liquid Sys. Corp., slip op. at 4.

[4] *See* L'Invincible, 14 U.S. (1 Wheat.) 238, 257 (1816).

[5] Exec. Jet Aviation, Inc. v. City of Cleveland, 409 U.S. 249, 268 (1972). Admiralty courts may decline to exercise jurisdiction over maritime tort lawsuits between foreign parties. Canada Malting Co. v. Paterson S.S., Ltd., 285 U.S. 413, 418 (1932).

[6] *Exec. Jet Aviation*, 409 U.S. at 268. A federal court sitting in admiralty may proceed against defendants in personam in a maritime tort case. The Rock Island Bridge, 73 U.S. (6 Wall.) 213, 215 (1867). When the "cause of the injury" is subject to a maritime lien, such as a vessel involved in a collision, the court may also proceed against the subject property in rem. *Id.*

[7] Victory Carriers, Inc. v. Law, 404 U.S. 202, 205 (1971). *See also* Gonsalves v. Morse Dry Dock & Repair Co., 266 U.S. 171, 172 (1924); Phila. v. Phila. & Havre De Grace Steam Towboat Co., 64 U.S. (23 How.) 209, 215 (1859).

[8] *See, e.g.*, T. Smith & Son, Inc. v. Taylor, 276 U.S. 179, 182 (1928) (holding that admiralty had no jurisdiction over a wrongful death suit arising from an incident in which a sling knocked a longshoreman working on a wharf to unload a vessel into the water); The Panoil, 266 U.S. 433, 435 (1925) (determining that a case brought against a vessel for damaging a federally constructed dike did not fall within the admiralty jurisdiction because the dike was part of the land). *Cf.* The Admiral Peoples, 295 U.S. 649, 651–52 (1935) (holding that admiralty jurisdiction existed over a tort claim that arose when an injured passenger fell from a gangplank onto a dock because the gangplank was part of the vessel); Minnie v. Port Huron Terminal Co., 295 U.S. 647, 648 (1935) (determining that a longshoreman's tort claims fell within the admiralty jurisdiction when he had sustained injuries unloading cargo from a vessel in navigable waters after a swinging hoist knocked him off of the vessel and on to the deck of a wharf); Doullut & Williams Co. v. United States, 268 U.S. 33, 33–35 (1925) (determining that admiralty jurisdiction extended over a case seeking recovery for damages to clusters of pilings driven into navigable waters and used exclusively as aids-in-navigation); The Blackheath, 195 U.S. 361, 367–68 (1904) (claims against vessel for damage to government aid-in-navigation beacon fell within admiralty jurisdiction).

[9] 46 U.S.C. § 13101.

[10] *See* Gutierrez v. Waterman Steamship Co., 373 U.S. 206, 209 (1963).

[11] *Id.* at 207–10. In the Jones Act, 46 U.S.C. § 30104, Congress provided seamen or their personal representatives a private right of action against employers, with the right of trial by jury, to seek compensation for injuries or death that occur within the course of employment. This right exists even if the injury occurred on land. Swanson v. Marra Bros., Inc., 328 U.S. 1, 4 (1946); O'Donnell v. Great Lakes Dredge & Dock Co., 318 U.S. 36, 43 (1943). *See also* Sw. Marine, Inc. v. Gizoni, 502 U.S. 81, 86–89 (1991) (addressing which workers qualify as seamen for Jones Act purposes);

maintained a few historical exceptions to a strict situs test for maritime jurisdiction.[12] However, even with such congressional and judicial guidance, it may occasionally be difficult to distinguish maritime torts from land-based torts. For example, the Court held that admiralty jurisdiction did not extend to an injury caused by defective pier-based equipment that a dock worker suffered when unloading a vessel; thus, the worker had to resort to state law for a remedy.[13]

The Supreme Court's jurisprudence on the second factor, which asks whether the tort bears a significant relationship to a traditional maritime activity, may also raise complex interpretive questions. For example, in *Executive Jet Aviation v. City of Cleveland*, a jet aircraft departing a Cleveland airport collided with seagulls, crashed, and sank into the navigable state territorial waters of Lake Erie.[14] The owners of the aircraft sued a federal air traffic controller and others for negligence, seeking to invoke the admiralty jurisdiction of the federal courts.[15] The Court held that, in addition to establishing that the commission or consummation of the wrongful act took place on navigable waters,[16] the plaintiffs had to show that the tort bore a "significant relationship to traditional maritime activity."[17] Because a land-based aircraft's flight between two locations within the United States's continental boundaries did not possess such a relationship, the Court held that federal courts could not exercise admiralty jurisdiction.[18] However, the Court's opinion in *Executive Jet* suggests that Congress may have some flexibility to expand admiralty jurisdiction to encompass claims like those at issue in the case by enacting laws that, for example, enlarge the concept of a "traditional maritime activity."[19]

In other cases, the Supreme Court has determined that admiralty jurisdiction exists because a case involves a traditional maritime activity. For example, the Court upheld the exercise of admiralty jursidiction over a collision between two private pleasure boats on navigable waters—even though pleasure boating was not exclusively a commercial activity—because such a collision could impact maritime commerce.[20] For similar reasons, the

McDermott Int'l, Inc. v. Wilander, 498 U.S. 337, 356–57 (1991) (same). State and federal courts have concurrent jurisdiction over Jones Act claims, which are personal actions. Am. Dredging Co. v. Miller, 510 U.S. 443, 455 (1994). *See also* Engel v. Davenport, 271 U.S. 33, 37–38 (1926).

[12] *See, e.g.*, Seas Shipping Co. v. Sieracki, 328 U.S. 85, 90 (1946) (determining that a stevedore's employee could bring unseaworthiness claims for injuries that occurred on board a docked vessel); Mahnich v. Southern S.S. Co., 321 U.S. 96 (1944); O'Donnell v. Great Lakes Dredge & Dock Co., 318 U.S. 36, 41–42 (1943) (recognizing that a seaman may claim maintenance and cure, which generally refers to living expenses and medical care, for injuries that occur on land because "from its dawn, the maritime law has recognized the seaman's right to maintenance and cure for injuries suffered in the course of his service to his vessel, whether occurring on sea or on land").

[13] *Victory Carriers, Inc.*, 404 U.S. at 204, 212.

[14] Exec. Jet Aviation v. City of Cleveland, 409 U.S. 249, 250 (1972).

[15] *Id.* at 250–51.

[16] *Id.* at 253.

[17] *Id.* at 268.

[18] *Id.* at 274.

[19] *Id.*

[20] Foremost Ins. Co. v. Richardson, 457 U.S. 668, 674–76 (1982) ("[T]he smooth flow of maritime commerce is promoted when all vessel operators are subject to the same duties and liabilities."). *See also* Sisson v. Ruby, 497 U.S. 358, 359, 362 (1990) (holding that admiralty jurisdiction existed in a limitation of liability suit involving a fire on a pleasure boat docked at a marina on a navigable waterway that damaged several other vessels because the incident could potentially disrupt maritime commerce); Leathers v. Blessing, 105 U.S. 626, 629 (1881) (determining that a federal court could exercise jurisdiction over a tort claim involving a fully loaded vessel that had recently completed its voyage and was docked at a wharf at the time of plaintiff's alleged injury).

Court held that a dredging company's vessel was engaged in a traditional maritime activity when it damaged an underwater freight tunnel while performing maintenance work.[21]

ArtIII.S2.C1.12.7 Maritime Contracts or Services

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In contract cases, the subject matter of the contract, claim, or service controls whether a claim falls within admiralty jurisdiction.[1] Contracts "purely maritime, and touching rights and duties appertaining to commerce and navigation, are cognizable in the admiralty."[2] The Supreme Court has not established a clear test for when a transaction is a maritime contract. Instead, the Court has declared that the "boundaries of admiralty jurisdiction over contracts" are "conceptual rather than spatial" and "have always been difficult to draw."[3] The Court has examined "precedent and usage" when determining whether a contract is essentially maritime.[4]

Contract cases that fall within federal admiralty jurisdiction[5] include actions for pilotage charges[6] or towage;[7] actions for repair of a vessel already used in navigation;[8] actions on

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[21] Jerome B. Grubart, Inc. v. Great Lakes Dredge & Dock Co., 513 U.S. 527, 539–40 (1995) (determining that a tort claim fell within admiralty jurisdiction when it arose from damage to a freight tunnel and other buildings allegedly caused when a barge negligently drove piles into the riverbed). *See also* Great Lakes Dredge & Dock Co. v. Kierejewski, 261 U.S. 479, 480–81 (1923) (holding that repair of a vessel was a traditional maritime activity in a case in which an employee drowned when one of his employer's tugs knocked him off a scaffold on a float near a vessel he was repairing).

[1] *Ex parte* Easton, 95 U.S. 68, 72 (1877) (stating that admiralty jurisdiction "extends to all contracts, claims, and services essentially maritime"); Waring v. Clarke, 46 U.S. (5 How.) 441, 459 (1847). *Accor*d Exxon Corp. v. Cent. Gulf Lines, Inc., 500 U.S. 603, 611 (1991).

Congress may authorize courts to refer disputes over maritime contracts to arbitration when the parties have agreed to arbitrate. Marine Transit Corp. v. Dreyfus, 284 U.S. 263, 277 (1932); Red Cross Line v. Atl. Fruit Co., 264 U.S. 109, 124 (1924) (determining that the New York legislature could grant New York state courts the authority to compel specific performance of an arbitration agreement pertaining to a contract made and performed in the state because it was valid under state law and the general maritime law). Agency contracts, which establish a fiduciary relationship between a principal and an agent, may fall within the admiralty jurisdiction if their subject matter is maritime. *Exxon Corp.*, 500 U.S. at 612, *overruling* Minturn v. Maynard, 58 U.S. (17 How.) 477 (1855).

[2] The Belfast, 74 U.S. (7 Wall.) 624, 637 (1869).

[3] Kossick v. United Fruit Co., 365 U.S. 731, 735 (1961).

[4] *Id. See also* Norfolk Southern Ry. v. James N. Kirby, Pty. Ltd., 543 U.S. 14, 25 (2004) (stating that the court must examine "whether the principal objective of a contract is maritime commerce"); Grant v. Poillon, 61 U.S. (20 How.) 162, 168 (1858).

[5] Because of the Judiciary Act's "saving to suitors" clause, the contract cases in this paragraph do not necessarily fall within the *exclusive* admiralty jurisdiction of the federal courts. Most contract actions may be brought in either federal or state court. *See, e.g.*, Atl. & Gulf Stevedores, Inc. v. Ellerman Lines, Ltd., 369 U.S. 355, 359–60 (1962) ("[An in personam] suit for breach of a maritime contract, while it may be brought in admiralty, may also be pursued in an ordinary civil action."). For more on the exclusivity of federal court jurisdiction over admiralty cases, see "Exclusivity of Federal Admiralty and Maritime Jurisdiction."

[6] *Ex parte* McNiel, 80 U.S. (13 Wall.) 236, 243 (1872). Pilotage charges are fees owed to an individual who pilots a vessel in territorial waters. *See id.* at 237. *See also* Hobart v. Drogan, 35 U.S. (10 Pet.) 108, 119–20 (1836).

bottomry or respondentia bonds;[9] agreements of consortship between the masters of two vessels engaged in wrecking;[10] cases arising under marine insurance policies;[11] charter parties;[12] compensation for temporary wharfage;[13] contracts for loading or unloading vessels;[14] contracts for transportation of passengers or merchandise by ship,[15] which includes contracts of affreighment;[16] contracts with materialmen for the repair or supply of a foreign ship;[17] salvage services;[18] suits by seamen for wages;[19] and surveys of damaged vessels.[20]

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[7] *See* Knapp, Stout & Co. v. McCaffrey, 177 U.S. 328, 642–43 (1900). Towage charges are fees owed to an individual who tows property for another person. *Id.* at 644–45. In several cases, the Supreme Court has examined clauses in towage contracts that relieve a party from liability for damage to the property towed. *E.g.*, Boston Metals Co. v. The Winding Gulf, 349 U.S. 122, 122–23 (1955) (holding invalid a "contract designed to shift responsibility for a towboat's negligence from the towboat to its innocent tow"); Bisso v. Inland Waterways Corp., 349 U.S. 85, 85, 95 (1955) (determining that a towboat cannot "contract against all liability for its own negligent towage"); Sun Oil v. Dalzell Towing Co., 287 U.S. 291, 292–93 (1932).

[8] New Bedford Dry Dock Co. v. Purdy, 258 U.S. 96, 99 (1922); The General Smith, 17 U.S. (4 Wheat.) 438, 443 (1819). Admiralty jurisdiction extends to such actions even though the repairs are made in dry dock rather than on navigable waters. North Pac. S.S. Co. v. Hall Bros. Marine Ry. & Shipbuilding Co., 249 U.S. 119, 128–29 (1919). However, contracts and agreements that relate to a vessel's original construction do not fall within admiralty jurisdiction. *Id.* at 126–27. *See also* Grant Smith-Porter Ship Co. v. Rhode, 257 U.S. 469, 475–76 (1922); Thames Towboat Co. v. The Schooner Francis McDonald, 254 U.S. 242, 244 (1920); Edwards v. Elliott, 88 U.S. (21 Wall.) 532, 555 (1874); Roach & Long v. Chapman, 63 U.S. (22 How.) 129, 132 (1860); People's Ferry Co. v. Beers, 61 U.S. (20 How.) 393, 402 (1858).

[9] *See* O'Brien v. Miller, 168 U.S. 287, 297 (1897); Ins. Co. v. Gossler, 96 U.S. 645, 648 (1877); The Grapeshot, 76 U.S. (9 Wall.) 129, 135 (1870). Historically, bottomry and respondentia bonds were a form of debt incurred to supply a ship during a voyage, enforceable in admiralty as a lien on the ship or cargo. *The Grapeshot*, 76 U.S. at 135; *O'Brien*, 168 U.S. at 288–89.

The Supreme Court Court initially held that ordinary mortgages on ships were not maritime contracts, even though secured by a vessel, its gear, or its cargo, because they were not entered into with reference to "navigation or perils of the sea." *See* Bogart v. The Steamboat John Jay, 58 U.S. (17 How.) 399, 401–02 (1855). However, Congress extended admiralty jurisdiction to encompass such mortgages in the Ship Mortgage Act, 46 U.S.C. §§ 31301–31309. *See also* Detroit Trust Co. v. The Thomas Barlum, 293 U.S. 21, 52 (1934).

[10] Andrews v. Wall, 44 U.S. (3 How.) 568, 572 (1845). In one type of consortship agreement, shipowners or salvors agree to cooperate in salvaging a wreck and split the proceeds. *See id.* at 571.

However, admiralty jurisdiction does not extend to contracts of partnership in the earnings of a single ship. Ward v. Thompson, 63 U.S. (22 How.) 330, 333 (1859), *see also* Vandewater v. Mills, 60 U.S. (19 How.) 82, 92 (1857); or most actions for accounting (i.e., a determination of how much one litigant owes another). Swift & Co. Packers v. Compania Colombiana del Caribe, 339 U.S. 684, 692–93 (1950).

[11] Wilburn Boat Co. v. Fireman's Fund Ins. Co., 348 U.S. 310, 313–14 (1955); Ins. Co. v. Dunham, 78 U.S. (11 Wall.) 1, 31, 35 (1871). Although cases arising under marine insurance policies are within admiralty jurisdiction, state law may determine the outcome. *See id.* at 320–21 (holding that state law governs the effect of marine insurance warranties when Congress has not enacted conflicting federal legislation regulating marine insurance or occupied the field of regulation).

[12] In a charter party, an entity hires a ship or its officers. *See, e.g.*, Armour & Co. v. Fort Morgan S.S. Co., 270 U.S. 253, 259 (1926).

[13] *Ex parte* Easton, 95 U.S. 68, 77 (1877). Wharfage refers to a "contract for the use of a wharf by the master or owner of a ship or vessel." *Id.*

[14] Am. Stevedores, Inc. v. Porello, 330 U.S. 446, 456 (1947) (holding that jurisdiction extended to a stevedoring contract's indemnity provision because "although admiralty jurisdiction over contracts partly maritime and partly non-maritime in nature is doubtful . . . [t]o sever a contract provision for indemnity for damages arising out of the performance of wholly maritime activities would only needlessly multiply litigation. Such a provision is a normal clause in contracts to act for others and no more determines the nature of a contract than do conditions on the time and place of payment.").

[15] The Moses Taylor, 71 U.S. (4 Wall.) 411, 427 (1867). *See also* Norfolk Southern Ry. v. James N. Kirby, Pty. Ltd., 543 U.S. 14, 24 (2004) (holding that contracts for transportation of goods were maritime contracts even though the final leg of the journey took place on land by rail).

[16] N.J. Steam Navigation Co. v. Merch. Bank of Boston, 47 U.S. (6 How.) 344, 385–87 (1848). *See also* The Eddy, 72 U.S. (5 Wall.) 481, 494 (1867); Morewood v. Enequist, 64 U.S. (23 How.) 491, 493–94 (1860). A contract of affreightment involves hiring a vessel to transport merchandise or passengers. *Id.* at 492. *See also* Archawski v. Hanioti, 350 U.S. 532, 536 (1956) (holding that admiralty jurisdiction extends to claims arising from the alleged violation of an affreightment

ArtIII.S2.C1.12.8 Exclusivity of Federal Admiralty and Maritime Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In Article III of the Constitution, the Framers granted the Federal Judiciary jurisdiction over "admiralty and maritime" cases to ensure that courts would apply uniform rules in deciding cases that could affect domestic commerce and might implicate foreign affairs.[1] In the Judiciary Act of 1789, Congress conferred exclusive admiralty jurisdiction on the federal district courts[2] while preserving concurrent state court jurisdiction over common law remedies so that the states could supplement the administration of federal maritime law.[3]

In practice, state courts retain concurrent jurisdiction over most contract and tort cases that fall within federal admiralty jurisdiction because a plaintiff may bring a personal action

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contract for transportation of passengers); Krauss Bros. Lumber Co. v. Dimon S.S. Corp., 290 U.S. 117, 122 (1933) (determining that admiralty jurisdiction extended to a contract of affreightment provision that provided a lower freight rate in certain circumstances).

At one time, the Supreme Court held that admiralty jurisdiction did not extend to contracts of affreightment for the transportation of goods within the boundaries of one state. Maguire v. Card, 62 U.S. (21 How.) 248, 251 (1859) ("So in respect to the completely internal commerce of the States, which is the subject of regulation by their municipal laws; contracts growing out of it should be left to be dealt with by its own tribunals."). *See also* Allen v. Newberry, 62 U.S. (21 How.) 244, 245 (1859); Vandewater v. Mills, 60 U.S. (19 How.) 82, 92 (1857) ("This is nothing more than an agreement for a special and limited partnership in the business of transporting freight and passengers between New York and San Francisco, and the mere fact that the transportation is by sea, and not by land, will not be sufficient to give the court admiralty jurisdiction of an action for a breach of the contract."). The Court later held that admiralty jursidiction extended to such cases. *See generally* The Belfast, 74 U.S. (7 Wall.) 624, 642 (1869).

[17] The St. Jago de Cuba, 22 U.S. (9 Wheat.) 409, 416 (1824); The General Smith, 17 U.S. (4 Wheat.) 438, 443 (1819); The Aurora, 14 U.S. (1 Wheat.) 96, 105 (1816).

[18] The S.S. Jefferson, 215 U.S. 130, 143 (1909) (holding that claims for compensation for salvage services provided to a ship in dry dock fell within the admiralty jurisdiction); Cope v. Vallette Dry Dock Co., 119 U.S. 625, 626–27 (1887) (determining that salvage of a floating dry dock was not within the admiralty jurisdiction because it was used to lift ships out of the water and not as an aid-in-navigation).

[19] Sheppard v. Taylor, 30 U.S. (5 Pet.) 675, 711 (1831) (stating that admiralty jurisdiction extends to a seaman's action for wages, whether in rem or in personam).

[20] Janney v. Columbian Ins. Co., 23 U.S. (10 Wheat.) 411, 418 (1825). Surveying a ship generally refers to inspecting it. *See id.* at 417.

[1] The Lottawanna, 88 U.S. (21 Wall.) 558, 575 (1874). *See also* Chelentis v. Luckenbach S.S. Co., 247 U.S. 372, 381–82 (1918).

[2] State courts may also lack jurisdiction over maritime cases as a result of federal preemption. *See, e.g.*, Maryland Casualty Co. v. Cushing, 347 U.S. 409, 415 (1954) (holding that federal law limiting a shipowner's liability preempted a state statute authorizing direct suit against an insurance company).

[3] 28 U.S.C. § 1333(1). If the Judiciary Act's "saving to suitors" clause authorizes a litigant to bring suit in state court, the plaintiff may also choose to bring its claims on the "law side" of a federal court and obtain a jury if an independent basis for jurisdiction exists (e.g., diversity of citizenship) and the amount-in-controversy requirement is satisfied. Seas Shipping Co. v. Sieracki, 328 U.S. 85, 88–89 (1946). *See also, e.g.*, Fitzgerald v. United States Lines Co., 374 U.S. 16, 20–21 (1963) (holding that admiralty claims joined with a Jones Act claim must be submitted to a jury "when both arise out of one set of facts"); Panama R.R. v. Johnson, 264 U.S. 375, 388 (1924) (upholding suit on a federal court's "law side" for a Jones Act claim as consistent with Congress's power to "alter, qualify or supplement the maritime rules"). *See also* 46 U.S.C. § 30104. Jones Act claims may also be brought in state court. *Panama R.R.*, 271 U.S. at 561.

seeking common law remedies against an individual defendant in most of these cases.[4] In an in personam case[5] under the common law, liability attaches to property only to the extent of the individual defendant's title in that property.[6] When bringing such maritime actions against defendants, the plaintiff may choose either federal or state court.

By contrast, the Supreme Court has held that, as a matter of statute, federal courts have *exclusive* admiralty jurisdiction over cases in which the plaintiff seeks remedies for maritime torts or contracts that lie against property in rem (e.g., the seizure of a vessel to enforce a maritime lien).[7] For example, the Court held invalid a California court's application of a statute that allowed the state's courts to subject vessels to condemnation and sale in lawsuits brought directly against the vessels for breaches of maritime contracts.[8] The Court determined that the federal courts traditionally had exclusive jurisdiction under the Judiciary Act over such in rem admiralty proceedings.[9] Such actions were not saved by the Judiciary Act's savings clause because they were based on civil (i.e., statutory) law rather than common law.[10]

Other in rem cases that are subject to the federal courts' exclusive jurisdiction include cases involving limitation of a shipowner's liability;[11] prize, capture, and seizure cases;[12] and suits against the United States.[13] Only a federal court sitting in admiralty may enforce a

[4] Atl. & Gulf Stevedores, Inc. v. Ellerman Lines, Ltd., 369 U.S. 355, 359–60 (1962) ("[An in personam] suit for breach of a maritime contract, while it may be brought in admiralty, may also be pursued in an ordinary civil action."); Red Cross Line v. Atl. Fruit Co., 264 U.S. 109, 123 (1924) ("By reason of the saving clause, state courts have jurisdiction *in personam*, concurrent with the admiralty courts, of all causes of action maritime in their nature arising under charter parties."); Knapp, Stout & Co. v. McCaffrey, 177 U.S. 638, 643, 648 (1900) (holding that a state court could enforce a lien on a vessel for towage charges because the plaintiff had brought suit in personam against individual defendants rather than in rem against the vessel, placing the claims within the savings clause).

The Supreme Court has held that, in general, federal admiralty courts cannot issue some forms of equitable relief (e.g., ordering specific performance of a contract). *In re* The Steamer Eclipse, 135 U.S. 599, 608 (1890). *But see* Swift & Co. Packers v. Compania Colombiana del Caribe, 339 U.S. 684, 690–93 (1950).

[5] Generally, in personam jurisdiction refers to a court's power over a person (or entity) who is a party to, or involved in, a case or controversy before the court, including its power to render judgments affecting that person's rights. Black's Law Dictionary 982 (10th ed. 2014).

[6] A case does not fall within federal courts' exclusive admiralty jurisdiction merely because it involves the issuance of an "auxiliary attachment" against the vessel. Rounds v. Cloverport Foundry & Machine Co., 237 U.S. 303, 306 (1915). In exercising in personam jurisdiction, a state court may "adopt such remedies, and . . . attach to them such incidents, as it sees fit so long as it does not attempt to make changes in the substantive maritime law." Am. Dredging Co. v. Miller, 510 U.S. 443, 447 (1994) (internal quotation marks omitted). *See also* Madruga v. Superior Court, 346 U.S. 556, 561–63 (1954) (upholding state court jurisdiction over a lawsuit seeking a judicial order directing the sale of a vessel and the partition of its proceeds, in part, because the Court could not foresee any "possible injury to commerce or navigation if states continue to be free to follow their own customary partition procedures" and "the state court in this proceeding acts only upon the interests of the parties over whom it has jurisdiction *in personam*").

[7] *Am. Dredging Co.*, 510 U.S. at 446; The Robert W. Parsons, 191 U.S. 17, 37 (1903); The Hine v. Trevor, 71 U.S. 555, 569 (1866); The Moses Taylor, 71 U.S. (4 Wall.) 411, 427 (1866). In in rem admiralty proceedings, the court takes custody of the *res* or property. The property itself is made the defendant in the case, and parties who have an interest in it "may appear" and each "propound independently his interest." Taylor v. Carryl, 61 U.S. (20 How.) 583, 599 (1858) (vessel as a res). *See also* United States v. Freights, 274 U.S. 466, 470 (1927) (debt as a res).

[8] *The Moses Taylor*, 71 U.S. (4 Wall.) at 424–25, 431.

[9] *Id.* at 427.

[10] *Id.* at 431.

[11] *Ex parte* Green, 286 U.S. 437, 439–40 (1932) ("[T]he state court has no jurisdiction to determine the question of the owner's right to a limited liability, and [if] the value of the vessel be not accepted as the limit of the owner's liability, the federal court is authorized to resume jurisdiction and dispose of the whole case.").

[12] 28 U.S.C. §§ 1333, 1356. *See also* 10 U.S.C. ch. 883.

[13] *In rem* proceedings cannot successfully be maintained against a vessel that is U.S. government property without the federal government's consent. *See* The Siren, 74 U.S. (7 Wall.) 152, 154 (1869). Suits against the federal government for injury caused by a U.S.-owned vessel's negligence may be brought under the Suits in Admiralty Act. *See generally* 46 U.S.C. ch. 309. For further discussion of the United States' immunity from suit, see Amdt11.6.3 Officer Suits and State Sovereign Immunity.

maritime lien, which may arise, for example, out of a maritime contract or tort.[14] State legislatures may enact laws providing for state court jurisdiction over in rem maritime actions only in certain, narrowly defined circumstances.[15]

In the absence of controlling federal maritime law, courts have sometimes applied substantive state law in admiralty cases when it would not interfere with the uniformity of federal maritime law.[16] For example, in *Southern Pacific Co v. Jensen*, the Supreme Court held that a state could not apply its workers' compensation law to stevedores injured when unloading a ship at a wharf in navigable waters under a maritime contract.[17] The Court reasoned that workers' compensation was not a common law remedy preserved for the state courts under the Judiciary Act, and that its application would interfere with the general maritime law's uniformity in violation of the Constitution.[18] In *Knickerbocker Ice Co. v. Stewart*, the Court held that Congress could not authorize the states to establish their own workers' compensation laws for maritime employees.[19] Although the Constitution permits Congress to legislate on maritime rights, obligations, and remedies, it forbids Congress from delegating its power to the states to create new rights by permitting the states to modify the maritime law in a manner that would "work material injury" to the "characteristic features" of the law or interfere with its uniformity.[20]

Other provisions of the Constitution may also influence federal admiralty jurisdiction. For example, the Eleventh Amendment prohibits federal courts sitting in admiralty from entertaining jurisdiction over lawsuits brought in rem against state-chartered vessels without

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[14] Federal admiralty jurisdiction is exclusive when litigants seek to enforce a lien created on a vessel or its cargo under general maritime law. *See* Cutler v. Rae, 48 U.S. (7 How.) 729, 731 (1849). States cannot enforce maritime liens *in rem*. The Glide, 167 U.S. 606, 623–24 (1897). *See also* Moran v. Sturges, 154 U.S. 256, 283 (1894); Edwards v. Elliott, 88 U.S. (21 Wall.) 532, 557 (1874); Leon v. Galceran, 78 U.S. (11 Wall.) 185, 190 (1871). However, when a tort is not maritime, a litigant may pursue the lien's enforcement in state court when state law provides a lien on the vessel. Johnson v. Chi. & Pac. Elevator Co., 119 U.S. 388, 399–400 (1886).

[15] C. J. Hendry Co. v. Moore, 318 U.S. 133, 134, 153 (1943) (upholding a California law authorizing state courts to exercise jurisdiction in a forfeiture proceeding involving a purse net seized from a fishing boat in navigable waters for violating state law because in rem forfeiture proceedings for violations of state law had long been recognized as a common law remedy not within federal courts' *exclusive* admiralty jurisdiction).

[16] Knickerbocker Ice Co. v. Stewart, 253 U.S. 149, 158–59 (1920). *See also* Goett v. Union Carbide Corp., 361 U.S. 340, 342 (1960) (holding that, in a wrongful death case, state law may supply the standard for liability in a maritime tort that arises within the state's territorial jurisdiction); Wilburn Boat Co. v. Fireman's Fund Ins. Co., 348 U.S. 310, 320–21 (1955) (holding that state law governed the effect of marine insurance warranties when Congress had left regulation of marine insurance to the states).

In other cases, such as those involving maritime torts in a state's territorial waters, state law may supplement federal maritime law with additional remedies if not preempted under federal law. For example, states may supplement federal maritime law with additional remedies for maritime torts in some circumstances. *E.g.,* Yamaha Motor Corp. v. Calhoun, 516 U.S. 199, 202, 215 (1996) (upholding against a preemption challenge state remedies for the wrongful death of a non-seafarer in state territorial waters in the absence of federal remedies).

[17] S. Pac. Co. v. Jensen, 244 U.S. 205, 217–18 (1917).

[18] *Id. See also* N. Coal & Dock Co. v. Strand, 278 U.S. 142, 145 (1928); Clyde S.S. Co. v. Walker, 244 U.S. 255, 257 (1917). The Supreme Court had previously allowed the states to regulate some aspects of maritime workers' compensation. Sultan R. & T. Co. v. Dep't of Labor & Indus., 277 U.S. 135, 136–37 (1928) (upholding state law requiring companies to report number and wages of men employed and pay premiums into the state's workers' compensation fund); Grant Smith-Porter Ship Co. v. Rohde, 257 U.S. 469, 477 (1922) ("[A]s to certain local matters regulation of which would work no material prejudice to the general maritime law, the rules of the latter might be modified or supplemented by state statutes.").

[19] *See Knickerbocker Ice Co.*, 253 U.S. at 160, 163–64.

[20] *Id.* at 158–60, 164. *See also* Wash. v. W. C. Dawson & Co., 264 U.S. 219, 227–28 (1924). In 1927, Congress responded to decisions such as *Knickerbocker* and *Jensen* by enacting the Longshore and Harbor Workers' Compensation Act, a federal framework that provides for the payment of compensation to certain maritime workers for job-related injuries. 33 U.S.C. §§ 901–950.

the state's consent.[21] However, the Eleventh Amendment does not bar admiralty courts from hearing lawsuits in rem in which litigants seek to recover state property, like a shipwreck, that the state does not actually possess.[22]

ArtIII.S2.C1.13 Cases to Which the United States Is a Party

ArtIII.S2.C1.13.1 Overview of Cases to Which the United States Is a Party

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Article III authorizes federal courts to exercise jurisdiction over "Controversies to which the United States shall be a Party."[1] While the Constitution does not explicitly authorize the federal government to bring suits, since the early years of the Republic, the Supreme Court and Congress have accepted that the United States can both sue and be sued, subject to certain legal limits.[2] The following essays discuss constitutional issues that may arise when the United States files suit as a plaintiff,[3] including suits by the federal government against the states.[4] The essays then briefly explore legal questions related to suits where the United States or a federal entity is a defendant.[5]

ArtIII.S2.C1.13.2 Right of the United States to Sue

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Although the Constitution does not explicitly authorize the federal government to bring suits, the Supreme Court, Congress, and legal commentators have long accepted the federal

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[21] *Ex parte* New York, 256 U.S. 490, 494, 497 (1921). *See also Ex parte* New York, 256 U.S. 503, 510–11 (1921) (determining that a claimant could not maintain suit against a state-owned vessel in rem when the state employed the vessel solely for its use); Workman v. New York City, 179 U.S. 552, 565 (1900) (holding that a municipal corporation like New York City is subject to admiralty jurisdiction in an in personam maritime tort action because the city may sue and be sued).

[22] Cal. v. Deep Sea Research, 523 U.S. 491, 506–07 (1998).

[1] U.S. Const. art. III, § 2, cl. 1.

[2] *See, e.g.*, Judiciary Act of 1789, 1 Stat. 73; Dugan v. United States, 16 U.S. (3 Wheat.) 172 (1818).

[3] *See* ArtIII.S2.C1.13.2 Right of the United States to Sue.

[4] *See* ArtIII.S2.C1.13.3 Suits Against States.

[5] *See* ArtIII.S2.C1.13.4 Suits Against the United States and Sovereign Immunity.

government's ability to do so. In his 1833 *Commentaries on the Constitution of the United States*, Justice Joseph Story noted that while "an express power is no where given in the constitution, the right of the United States to sue in its own courts is clearly implied in that part respecting the judicial power."[1] Justice Story reasoned, "all the usual incidents appertaining to a *personal* sovereign, in relation to contracts, and suing, and enforcing rights, so far as they are within the scope of the powers of the government, belong to the United States, as they do to other sovereigns."[2] Through the Judiciary Act of 1789 and subsequent amendments to the Act, Congress has granted federal district courts jurisdiction to hear civil suits brought by the United States as party plaintiff in law or equity.[3]

In 1818, the Supreme Court ruled that the United States could sue in its own name in all contract cases without congressional authorization for such suits.[4] The Court later extended this rule to other types of actions in which the government seeks to vindicate its own interests.[5]

The Court has also upheld statutes granting the federal government authority to sue to vindicate certain interests of the general public. For instance, in *United Steelworkers v. United States*, the Court upheld a provision of the Labor Management Relations Act of 1949 that authorized the Attorney General to sue for an injunction against strikes that imperil national health or safety.[6] The Court held that the statue could require courts to "exercis[e] powers of a legislative or executive nature."[7] It further held that the statute properly "recognize[s] certain rights in the public to have unimpeded for a time production in industries vital to the national health or safety" and "makes the United States the guardian of these rights in litigation."[8] In the 1960 case *United States v. Raines*, the Court upheld a provision of the Civil Rights Act of 1957 that authorized the Attorney General to sue for injunctive relief against interference with voting rights.[9] In response to the challengers' argument that it was "beyond the power of Congress to authorize the United States to bring [an] action in support of private constitutional rights," the Court held that "there is the highest public interest in the due observance of all the constitutional guarantees, including those that bear the most directly on private rights, and we think it perfectly competent for Congress to authorize the United States to be the guardian of that public interest in a suit for injunctive relief."[10]

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[1] 3 J. Story, Commentaries on the Constitution of the United States § 1274 (1833).

[2] *Id.*

[3] 1 Stat. 73. The provision is now codified at 28 U.S.C. § 1345. Because the Supreme Court's original jurisdiction extends only to cases enumerated in the Constitution, the United States must bring suits against persons or corporations in the lower federal courts. The United States may bring suits against a state in the Supreme Court pursuant to the Court's original jurisdiction, 28 U.S.C. § 1251(b)(2), or the United States may bring such suits in the district courts. Case v. Bowles, 327 U.S. 92, 97 (1946). As in other judicial proceedings, the United States, like any party plaintiff, must have an interest in the subject matter and a legal right to the remedy sought. United States v. San Jacinto Tin Co., 125 U.S. 273 (1888).

[4] Dugan v. United States, 16 U.S. (3 Wheat.) 172 (1818).

[5] *See, e.g.*, Cotton v. United States, 52 U.S. 229 (1850) (United States could bring suit for trespass); United States v. Gear, 44 U.S. 120 (1945) (United States could sue for injunction against mining on public lands).

[6] 361 U.S. 39 (1960).

[7] *Id.* at 43.

[8] *Id.*

[9] 362 U.S. 17 (1960).

[10] *Id.* at 27. *See also Oregon v. Mitchell*, in which two of the four cases considered were actions by the United States to enjoin state compliance with the Voting Rights Act Amendments of 1970. 400 U.S. 112 (1970).

ArtIII.S2.C1.13.2
Right of the United States to Sue

In the absence of a statutory provision to the contrary, the Attorney General initiates suits by the federal government in the name of the United States.[11] To date, the Supreme Court has declined to address whether the United States may sue to protect the constitutional rights of its citizens without statutory authorization.[12]

ArtIII.S2.C1.13.3 Suits Against States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Controversies to which the United States is a party include suits brought by the federal government as plaintiff against states as party defendants.[1] The first Supreme Court case involving the federal government suing a state arose from a late-nineteenth Century action by the United States to recover on bonds issued by North Carolina.[2] While the parties did not raise the question of federal court jurisdiction over the suit, the Court, in deciding the case on its merits in favor of the state, tacitly assumed that it had jurisdiction to hear such cases.

Two years later, the State of Texas directly challenged the federal courts' jurisdiction over it in response to a bill in equity the United States brought to determine the boundary between Texas and the Territory of Oklahoma.[3] Texas, among other things, contended that the United States could not sue a state without the state's consent. The Supreme Court held that it had jurisdiction over the suit. Emphasizing that under Article III federal jurisdiction encompasses cases to which the United States and a state are parties, Justice John Marshall Harlan noted that the Constitution made no exception for suits brought by the United States.[4] With respect to the state's argument that it had not consented to the suit, the Court concluded that Texas had given consent to be sued by the United States "when [it was] admitted to the Union upon an equal footing in all respects with the other States."[5]

The Supreme Court routinely accepted jurisdiction over suits by the federal government against states in subsequent cases. In 1926, the Court decided a dispute between the United States and Minnesota over land patents that the United States had issued to Minnesota in

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[11] United States v. San Jacinto Tin Co., 125 U.S. 273 (1888); United States v. Beebe, 127 U.S. 338 (1888); United States v. Bell Telephone Co., 128 U.S. 315 (1888).

[12] This question came before the Supreme Court in the 2021 case *United States v. Texas*, but the Court dismissed that case without a substantive decision. 142 S. Ct. 522 (Mem.) (2021).

[1] The Eleventh Amendment and the common law doctrine of sovereign immunity bar suits against states by private individuals and by other states; however, those authorities do not bar suits against states by the federal government. *See* U.S. Const. amend. XI; *see also* Amdt11.1 Overview of Eleventh Amendment, Suits Against States to Amdt11.6.4 Tort Actions Against State Officials.

[2] United States v. North Carolina, 136 U.S. 211 (1890).

[3] United States v. Texas, 143 U.S. 621 (1892).

[4] *Id.* at 644. For additional discussion of the Supreme Court's original jurisdiction, see ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[5] *Id.* at 642–46. This suit was specifically authorized by the Act of Congress of May 2, 1890, providing for a temporary government for the Oklahoma territory to determine ownership of Greer County. 26 Stat. 81, 92, § 25. *See also* United States v. Louisiana, 339 U.S. 699, 701–02 (1950).

breach of U.S. trust obligations to the Chippewa tribe.[6] Similarly, in a 1931 case, the Court took jurisdiction of a suit by the United States against Utah to quiet title to land forming the beds of certain sections of the Colorado River and its tributaries with the states.[7] In 1947, the Court exercised jurisdiction over a suit the United States brought against California to determine ownership of and paramount rights over submerged land and the oil and gas thereunder off the coast of California between the low-water mark and the three-mile limit.[8] The Court decided like suits against Louisiana and Texas in 1950.[9]

In contrast to the foregoing cases, in the 1935 case *United States v. West Virginia*, the Court dismissed a suit in equity brought by the United States to determine the navigability of the New and Kanawha Rivers.[10] While the Court stated that it "can no longer be doubted" that the Supreme Court's original jurisdiction "includes cases brought by the United States against a state,"[11] it concluded that the case before it was not justiciable because it presented "no actual or threatened interference with the authority of the United States."[12] *West Virginia* thus does not appear to cast doubt on the authority of the United States to sue a state in federal court. Instead, it instructs that such suits remain subject to generally applicable justiciability requirements.[13]

In addition to allowing the United States to initiate suits against the states, the Court has also, at times, allowed the federal government to intervene in suits between states.[14]

ArtIII.S2.C1.13.4 Suits Against the United States and Sovereign Immunity

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In addition to suits brought by the federal government as a plaintiff, "Controversies to which the United States shall be a Party" may include cases brought against the United States

[6] United States v. Minnesota, 270 U.S. 181 (1926). For an earlier suit against a state by the United States, see United States v. Michigan, 190 U.S. 379 (1903).

[7] United States v. Utah, 283 U.S. 64 (1931).

[8] United States v. California, 332 U.S. 19 (1947).

[9] United States v. Louisiana, 339 U.S. 699 (1950); United States v. Texas, 339 U.S. 707 (1950). *See also* United States v. Maine, 420 U.S. 515 (1975).

[10] 295 U.S. 463 (1935).

[11] *Id.* at 470.

[12] *Id.* at 473.

[13] For discussion of the various constitutional requirements related to justiciability, see generally Article III.

[14] *See* Oklahoma v. Texas, 252 U.S. 372 (1920); *Id.* 258 U.S. 574, 581 (1922); Florida v. Georgia, 58 U.S. 478, 495 (1854).

as a defendant.[1] Those cases fall within Article III's grant of federal court jurisdiction;[2] however, the doctrine of sovereign immunity may limit such suits.

While state sovereign immunity is rooted in part in the Eleventh Amendment,[3] no provision of the Constitution expressly grants the federal government immunity from suit. Instead, most judges and commentators agree that federal sovereign immunity is a common law doctrine drawn from pre-Founding English law.[4] Since the early years of the Republic, the Supreme Court has repeatedly adopted the position that the United States may not be sued unless it consents.[5] The Court has applied the doctrine of sovereign immunity to bar suits from proceeding without consent against the federal government for actions of its agents or employees[6] and against federal agencies[7] and government corporations.[8] The Court has further held that any waiver of sovereign immunity must come from an act of Congress; Executive officials are powerless either to waive such immunity or to confer jurisdiction on a federal court.[9] In the 2019 case *Thacker v. Tennessee Valley Authority*, the Court rejected a separation of powers challenge to a statute that waived the immunity of a government-owned corporation.[10]

[1] U.S. Const. art III, § 2, cl. 1.

[2] In addition to falling within federal court jurisdiction as cases to which the United States is a party, these cases may also fall within federal court jurisdiction as cases arising under the Constitution or the laws or treaties of the United States. *See* ArtIII.S2.C1.11.1 Overview of Federal Question Jurisdiction.

[3] *See* U.S. Const. amend. XI; *see also* Amdt11.1 Overview of Eleventh Amendment, Suits Against States to Amdt11.6.4 Tort Actions Against State Officials.

[4] *See, e.g.*, Erwin Chemerinsky, Federal Jurisdiction § 9.2 (5th ed. 2007). *Compare* The Siren, 74 U.S. (7 Wall.) 152, 153–54 (1869) ("It is a familiar doctrine of the common law, that the sovereign cannot be sued in his own courts without his consent."); *with* Kennecott Copper Corp. v. State Tax Com'n, 327 U.S. 573, 580 (1946) (Frankfurter, J., dissenting) ("Though this immunity from suit without consent is embodied in the Constitution, it is an anachronistic survival of monarchical privilege, and runs counter to democratic notions of the moral responsibility of the State.").

[5] This rule first appeared in embryonic form in an obiter dictum by Chief Justice Jay in *Chisholm v. Georgia*, where he indicated that a suit would not lie against the United States because "there is no power which the courts can call to their aid." 2 U.S. (2 Dall.) 419, 478 (1793). In *Cohens v. Virginia*, also in dictum, Chief Justice John Marshall noted, "the universally received opinion is that no suit can be commenced or prosecuted against the United States." 19 U.S. (6 Wheat.) 264, 412 (1821). The issue was more directly in question in *United States v. Clarke*, where Chief Justice John Marshall stated that, as the United States is "not suable of common right, the party who institutes such suit must bring his case within the authority of some act of Congress, or the court cannot exercise jurisdiction over it." 33 U.S. (8 Pet.) 436, 444 (1834). *See also* United States v. McLemore, 45 U.S. (4 How.) 286 (1846); Hill v. United States, 50 U.S. (9 How.) 386, 389 (1850); De Groot v. United States, 72 U.S. (5 Wall.) 419, 431 (1867); United States v. Eckford, 73 U.S. (6 Wall.) 484, 488 (1868); The Siren, 74 U.S. (7 Wall.) 152, 154 (1869); Nichols v. United States, 74 U.S. (7 Wall.) 122, 126 (1869); The Davis, 77 U.S. (10 Wall.) 15, 20 (1870); Carr v. United States, 98 U.S. 433, 437–39 (1879).

[6] Gibbons v. United States, 75 U.S. (8 Wall.) 269, 275 (1869); Peabody v. United States, 231 U.S. 530, 539 (1913); Koekuk & Hamilton Bridge Co. v. United States, 260 U.S. 125, 127 (1922); Kawananakoa v. Polyblank, 205 U.S. 349, 353 (1907) ("there can be no legal right as against the authority that makes the law on which the right depends"). *See also* The Western Maid, 257 U.S. 419, 433 (1922); Sloan Shipyards v. United States Fleet Corp., 258 U.S. 549, 570 (1922); *cf.* 39 Ops. Atty. Gen. 559, 562 (1938).

[7] Federal Housing Administration, Region No. 4 v. Burr, 309 U.S. 242, 244 (1940) ("[T]here can be no doubt that Congress has full power to endow the Federal Housing Administration with the government's immunity from suit or to determine the extent to which it may be subjected to the judicial process.").

[8] Federal Land Bank v. Priddy, 295 U.S. 229, 231 (1935). The Court has also held that Indian nations are exempt from suit without further congressional authorization. United States v. United States Fidelity & Guaranty Co., 309 U.S. 506 (1940).

[9] United States v. New York Rayon Co., 329 U.S. 654 (1947). Congress may also grant or withhold immunity from suit on behalf of government corporations. Brady v. Roosevelt S.S. Co., 317 U.S. 575 (1943).

[10] 139 S.Ct. 1435 (2019). Specifically, the Court rejected an argument that allowing suits against the corporation "would conflict with the 'constitutional scheme'—more precisely, with 'separation-of-powers principles'—by subjecting the TVA's discretionary conduct to 'judicial second-guessing.'" *Id.* at 1441 (quoting Resp. Br.).

Congress has waived federal sovereign immunity through statutes such as the Administrative Procedure Act,[11] the Federal Tort Claims Act,[12] and the Tucker Act.[13] In the absence of a waiver of sovereign immunity authorizing suits against the government itself, the Supreme Court has at times allowed suits to go forward against federal officials sued in their individual capacity.[14] For instance, in *Bivens v. Six Unknown Named Agents*[15] and its progeny, the Court allowed individuals to sue federal agents directly under the Constitution without a federal statute authorizing relief.[16] More recent Supreme Court cases have construed *Bivens* narrowly.[17]

ArtIII.S2.C1.14 Controversies Between Two or More States

ArtIII.S2.C1.14.1 Historical Background on Controversies Between Two or More States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The extension of federal judicial power to controversies between states and the vesting of original jurisdiction in the Supreme Court of suits to which a state is a party had its origin in experience. Prior to independence, disputes between colonies claiming charter rights to territory were settled by the Privy Council. Under Article IX of the Articles of Confederation, Congress was made "the last resort on appeal" to resolve "all disputes and differences . . . between two or more States concerning boundary, jurisdiction, or any other cause whatever," and to constitute what in effect were ad hoc arbitral courts for determining such disputes and rendering a final judgment therein. When the Philadelphia Convention met in 1787, serious

[11] 5 U.S.C. § 702.

[12] 28 U.S.C. § 2674.

[13] 28 U.S.C. §§ 1346(a), 1491(a)(1).

[14] In addition to the *Bivens* line of cases discussed *infra*, see, e.g., United States v. Lee, 106 U.S. 196 (1882).

[15] 403 U.S. 388 (1971). Some have likened the holding in *Bivens* to the creation of federal common law. *See, e.g.*, Hernandez v. Mesa, 140 S. Ct. 735, 742 (2020) ("Analogizing *Bivens* to the work of a common-law court, petitioners and some of their *amici* make much of the fact that common-law claims against federal officers for intentional torts were once available. . . . With the demise of federal general common law, a federal court's authority to recognize a damages remedy must rest at bottom on a statute enacted by Congress, . . . and no statute expressly creates a *Bivens* remedy."); Correctional Services Corp. v. Malesko, 534 U.S. 61, (2001) (Scalia, J., concurring) ("*Bivens* is a relic of the heady days in which this Court assumed common-law powers to create causes of action—decreeing them to be 'implied' by the mere existence of a statutory or constitutional prohibition."). Justice John Harlan's concurrence in *Bivens* suggested that liability in that case was not based on common law. 403 U.S. at 403 (Harlan, J., concurring) ("I do not think that the fact that the interest is protected by the Constitution rather than statute or common law justifies the assertion that federal courts are powerless to grant damages in the absence of explicit congressional action authorizing the remedy.").

[16] *See also* Davis v. Passman, 442 U.S. 228 (1979), Carlson v. Green, 446 U.S. 14 (1980).

[17] *See, e.g.*, Egbert v. Boule, 2022 WL 2056291 (June 8, 2022).

disputes over boundaries, lands, and river rights involved ten states.[1] It is hardly surprising, therefore, that during its first sixty years the only state disputes coming to the Supreme Court were boundary disputes[2] or that such disputes constitute the largest single number of suits between states. Since 1900, however, as the result of the increasing mobility of population and wealth and the effects of technology and industrialization, other types of cases have occurred with increasing frequency.

ArtIII.S2.C1.14.2 Boundary Disputes Between States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Among the earlier suits between states, the suit between New Jersey and New York[1] is significant for applying a rule laid down earlier in *Chisholm v. Georgia* (i.e., that the Supreme Court may proceed ex parte if a state refuses to appear when duly summoned). The long drawn out litigation between Rhode Island and Massachusetts is also significant for its rulings: that, although the Constitution does not extend the judicial power to all controversies between states, it does not exclude any;[2] that a boundary dispute is a justiciable and not a political question;[3] and that a prescribed rule of decision is unnecessary in such cases. On the last point, Justice Henry Baldwin stated:

> The submission by the sovereigns, or states, to a court of law or equity, of a controversy between them, without prescribing any rule of decision, gives power to decide according to the appropriate law of the case (11 Ves. 294); which depends on the subject-matter, the source and nature of the claims of the parties, and the law which governs them. From the time of such submission, the question ceases to be a political one, to be decided by the *sic volo, sic jubeo*, of political power; it comes to the court, to be decided by its judgment, legal discretion and solemn consideration of the rules of law appropriate to its nature as a judicial question, depending on the exercise of judicial power; as it is bound to act by known and settled principles of national or municipal jurisprudence, as the case requires.[4]

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[1] C. Warren, *The Supreme Court and Disputes Between States*, 34 Bull. of William and Mary, No. 4 (1940), 7–11. For a more comprehensive treatment of background as well as the general subject, *see* C. Warren, The Supreme Court and the Sovereign States (1924).

[2] Warren, *supra* note 1, at 13. However, only three such suits were brought in this period, 1789–1849. During the next ninety years, 1849–1939, at least twenty-nine such suits were brought. *Id.* at 13, 14.

[1] New Jersey v. New York, 30 U.S. (5 Pet.) 284 (1831).

[2] Rhode Island v. Massachusetts, 37 U.S. (12 Pet.) 657, 721 (1838)

[3] 37 U.S. at 736–37.

[4] *Id.* at 737. Chief Justice Roger B. Taney dissented because of his belief that the issue was not one of property in the soil, but of sovereignty and jurisdiction, and hence political. *Id.* at 752–53. For different reasons, it should be noted, a suit between private parties respecting soil or jurisdiction of two states, to which neither state is a party, does not come within the original jurisdiction of the Supreme Court. Fowler v. Lindsey, 3 U.S. (3 Dall.) 411 (1799). For recent boundary cases, *see* United States v. Maine (Rhode Island and New York Boundary Case), 469 U.S. 504 (1985); United

ArtIII.S2.C1.14.3 Modern Suits Between States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Beginning with *Missouri v. Illinois & Chicago District*,[1] which sustained jurisdiction to entertain an injunction suit to restrain the discharge of sewage into the Mississippi River, water rights, the use of water resources, and the like, have been a source of suits between states. Such suits have been especially frequent in the western states,[2] where water is in short supply, but they have not been confined to any one region.[3] In *Kansas v. Colorado*,[4] the Court established the principle of the equitable division of river or water resources between conflicting state interests.[5]

In the 1931 case, *New Jersey v. New York*,[6] New Jersey sought to enjoin New York for diverting water into the Hudson River watershed for New York's use in such a way as to diminish the flow of the Delaware River in New Jersey, injure its shad fisheries, and harm the saline contents of the Delaware River. Justice Oliver Wendell Holmes, writing for the majority, explained:

> A river is more than an amenity, it is a treasure. It offers a necessity of life that must be rationed among those who have power over it. New York has the physical power to cut off all the water within its jurisdiction. But clearly the exercise of such a power to the destruction of the interest of lower States could not be tolerated. And on the other hand equally little could New Jersey be permitted to require New York to give up its power altogether in order that the river might come down to it undiminished. Both States have real and substantial interests in the River that must be reconciled as best they may.[7]

States v. Louisiana (Alabama and Mississippi Boundary Case), 470 U.S. 93 (1985); United States v. Maine, 475 U.S. 89 (1986); Georgia v. South Carolina, 497 U.S. 336 (1990); Mississippi v. Louisiana, 506 U.S. 73 (1992).

[1] 180 U.S. 208 (1901).

[2] *E.g.* Montana v. Wyoming, 563 U.S. 368 (2011); Texas v. New Mexico and Colorado, No. 141, Orig., slip op. at 1 (U.S. Mar. 5, 2018); Texas v. New Mexico, No. 65, Orig., slip op. at 1 (U.S. Dec. 14, 2020).

[3] *See, e.g.*, Florida v. Georgia (2018 Florida), No. 142, Orig., slip op. at 1 (U.S. June 27, 2018) ("This case concerns the proper apportionment of the water of an interstate river basin. Florida, a downstream State, brought this lawsuit against Georgia, an upstream State, claiming that Georgia has denied it an equitable share of the basin's waters.").

[4] 206 U.S. 46 (1907). *See also* Idaho *ex rel.* Evans v. Oregon and Washington, 444 U.S. 380 (1980).

[5] *See also 2018 Florida*, slip op. at 10 ("Where, as here, the Court is asked to resolve an interstate water dispute raising questions beyond the interpretation of specific language of an interstate compact, the doctrine of equitable apportionment governs our inquiry." (citing Colorado v. New Mexico, 459 U.S. 176, 183 (1982)); Virginia v. Maryland, 540 U.S. 56, 74 n.9 (2003) ("Federal common law governs interstate bodies of water, ensuring that the water is equitably apportioned between the States and bodies of water, ensuring that the water is equitably apportioned between the States and that neither State harms the other's interest in the river.").

[6] 283 U.S. 336 (1931).

[7] *Id.* at 342. *See also* Nebraska v. Wyoming, 325 U.S. 589 (1945); Idaho *ex rel.* Evans v. Oregon, 462 U.S. 1017 (1983). In *Ohio v. Wyandotte Chemicals Corp.,* 401 U.S. 493 (1971), the Court held it had jurisdiction of a suit by a state against citizens of other states to abate a nuisance allegedly caused by the dumping of mercury into streams that

ArtIII.S2.C1.14.3
Modern Suits Between States

In *Florida v. Georgia*, the Supreme Court issued two opinions concerning how to apportion water from an interstate river basin known as the Apalachicola-Chattahoochee-Flint (ACF) River basin.[8] Florida, the downstream state, alleged that Georgia overconsumed the ACF basin's waters, leading to the collapse of its local oyster industry and harming Florida's river ecosystems.[9] After agreeing to exercise original jurisdiction, the Supreme Court appointed a Special Master to take evidence and issue a report with recommendations on how to resolve the dispute.[10] The Court explained that "given the complexity of many water-division cases, the need to secure equitable solutions, the need to respect the sovereign status of the States, and the importance of finding flexible solutions to multi-factor problems, we typically appoint a Special Master and benefit from detailed factual findings."[11]

The Special Master in *Florida v. Georgia* recommended that the Court dismiss the case because the relief Florida sought—a limitation on Georgia's consumptive use of ACF Basin waters—would not redress the alleged injury without also joining the Army Corps of Engineers (Corps) as party to the case.[12] Although the Corps operated a dam that controlled the amount of water flowing southward into Florida, it was not a defendant in the suit because it was protected by sovereign immunity.[13] The Special Master recommended dismissing the case based on the "*single*, discrete" conclusion that Florida's injury could not be redressed without a judicial decree that was binding on both Georgia and the Corps as defendants.[14] Florida lodged exceptions to the Special Master's report, and, in a 5-4 opinion issued in 2018, the Supreme Court declined to adopt the Special Master's recommendation of dismissal.[15]

At the outset of its 2018 opinion, the Supreme Court summarized "several related but more specific sets of principles" that govern the doctrine of equitable apportionment in interstate disputes between two states.[16] The Court remanded the case to the Special Master assigned to the dispute, concluding that he had applied too strict a standard on the issue of redressability.[17] The Court advised the Special Master that, "[c]onsistent with the principles that guide our inquiry in this context, answers need not be 'mathematically precise or based on definite present and future conditions.' Approximation and reasonable estimates may prove 'necessary to protect the equitable rights of a State.' . . . Flexibility and approximation are

ultimately run into Lake Erie, but it declined to permit the filing because the presence of complex scientific issues made the case more appropriate for first resolution in a district court. *See also* Texas v. New Mexico, 462 U.S. 554 (1983); Nevada v. United States, 463 U.S. 110 (1983)

[8] *2018 Florida*, slip op. at 1; Florida v. Georgia (2021 Florida), No. 142, Orig., slip op. at 1 (U.S. Apr. 1, 2021).

[9] *2021 Florida*, slip op. at 5.

[10] *See 2018 Florida*, slip op. at 6.

[11] *Id.* at 14.

[12] *Id.* at 7.

[13] *Id.* at 2–3, 6.

[14] *Id.* at 7 (emphasis in original).

[15] *Id.* at 15.

[16] *2018 Florida*, slip op. at 10. Specifically, when asked to resolve such a dispute under the doctrine of equitable apportionment, the Court should consider the following principles: (1) that the two states "possess an equal right to make a reasonable use of the waters of the stream"; (2) that "the Court's 'effort always is to secure an equitable apportionment without quibbling over formulas' . . . [and w]here '[b]oth States have real and substantial interests in the River,' those interests 'must be reconciled as best they may be'"; (3) that, "in light of the sovereign status and 'equal dignity' of States, . . . the complaining State must demonstrate that it has suffered a 'threatened invasion of rights' that is 'of serious magnitude'"; and (4) that "where a complaining State meets its 'initial burden of showing 'real or substantial injury,' this Court, recalling that equitable apportionment is 'flexible,' not 'formulaic,' will seek to 'arrive at a just and equitable apportionment of an interstate stream' by 'consider[ing] 'all relevant factors.'" *Id.* at 11–14 (citations omitted).

[17] *Id.* at 15.

often the keys to success in our efforts to resolve water disputes between sovereign States that neither Congress 'nor the legislature of either State' has been able to resolve."[18]

On remand, a newly appointed Special Master recommended that the Supreme Court dismiss Florida's request for equitable apportionment, and the Court agreed.[19] In a unanimous opinion issued in 2021, the Supreme Court held that Florida did not meet its evidentiary burden to show that Georgia's consumption of ACF Basin waters caused Florida's alleged harm.[20] Rather, the evidence suggested Florida's mismanagement of its own fisheries contributed to its oyster industry's collapse, and Florida did not show any "actual" or "real-world" damage to its ecosystems.[21]

Other types of interstate disputes of which the Court has taken jurisdiction include suits by a state as the donee of the holders of bonds issued by another state, and the ability to collect thereon;[22] by Virginia against West Virginia to determine the proportion of the public debt of the original State of Virginia that the latter owed the former;[23] and by Arkansas to enjoin Texas from interfering with the performance of a contract by a Texas foundation to contribute to the construction of a new hospital in the medical center of the University of Arkansas.[24] Other examples include a suit brought by one state against another to enforce a contract between the two,[25] a suit in equity between states for the determination of a decedent's domicile for inheritance tax purposes,[26] and a suit by two states to restrain a third from enforcing a natural gas measure that purported to restrict the interstate flow of natural gas from the state in the event of a shortage.[27]

In *Texas v. New Jersey*,[28] the Court adjudicated a multistate dispute about which state should be allowed to escheat intangible property consisting of uncollected small debts held by a corporation. Emphasizing that the states could not constitutionally provide a rule of settlement and that no federal statute governed the matter, the Court evaluated the possible rules and chose the one easiest to apply and least likely to lead to continuing disputes.[29]

In general, in taking jurisdiction of these suits, along with those involving boundaries and the diversion or pollution of water resources, the Supreme Court relied on the liberal construction of the term "controversies between two or more States" that the Court enunciated

[18] *Id.* at 37 (quoting Idaho *ex rel.* Evans v. Oregon, 462 U.S. 1017, 1026 (1983)); Virginia v. West Virginia, 220 U.S. 1, 27 (1911).

[19] *See 2021 Florida*, slip op. at 1.

[20] *Id.* at 5.

[21] *See id.* at 5–10.

[22] South Dakota v. North Carolina, 192 U.S. 286 (1904).

[23] Virginia v. West Virginia, 220 U.S. 1 (1911).

[24] Arkansas v. Texas, 346 U.S. 368 (1953).

[25] Kentucky v. Indiana, 281 U.S. 163 (1930).

[26] Texas v. Florida, 306 U.S. 398 (1939). In *California v. Texas,* 437 U.S. 601 (1978), the Court denied a state leave to file an original action against another state to determine the contested domicile of a decedent for death tax purposes, with several Justices of the view that *Texas v. Florida* had either been wrongly decided or was questionable. But, after determining that an interpleader action by the administrator of the estate for a determination of domicile was barred by the Eleventh Amendment, Cory v. White, 457 U.S. 85 (1982), the Court over dissent permitted filing of the original action. California v. Texas, 457 U.S. 164 (1982).

[27] Pennsylvania v. West Virginia, 262 U.S. 553 (1923). The Court, in *Maryland v. Louisiana,* 451 U.S. 725 (1981), over dissent, relied on this case in permitting a suit contesting a tax imposed on natural gas, the incidence of which fell on the suing state's consuming citizens. And, in *Wyoming v. Oklahoma,* 502 U.S. 437 (1992), the Court permitted a state to sue another to contest a law requiring that all in-state utilities burn a mixture containing at least 10% in-state coal, the plaintiff state having previously supplied 100% of the coal to those utilities and thus suffering a loss of coal-severance tax revenues.

[28] 379 U.S. 674 (1965). *See also* Pennsylvania v. New York, 407 U.S. 206 (1972).

[29] *Id.* at 683.

in *Rhode Island v. Massachusetts*,[30] and Chief Justice John Marshall fortified in dictum in *Cohens v. Virginia*[31] that "it is entirely unimportant, what may be the subject of controversy. Be it what it may, these parties have a constitutional right to come into the Courts of the Union."[32]

ArtIII.S2.C1.14.4 Cases Where the Court Has Declined Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Centering its attention upon the elements of a case or controversy, the Court has declined jurisdiction in certain circumstances. For example, in *Alabama v. Arizona*,[1] where Alabama sought to enjoin nineteen states from regulating or prohibiting the sale of convict-made goods, the Court stated that jurisdiction of suits between states will be exercised only when absolutely necessary.[2] The Court explained that the equity requirements in a suit between states are more exacting than in a suit between private persons, and that a plaintiff state asking leave to sue another state must show the threatened injury to be of great magnitude and imminent.[3] The Court further explained that the burden on the plaintiff state to establish all the elements of a case is greater than the burden generally required by a plaintiff seeking an injunction in cases between private parties.[4]

Pursuing a similar line of reasoning, the Court declined to take jurisdiction of a suit brought by Massachusetts against Missouri and certain of its citizens to prevent Missouri from levying inheritance taxes upon intangibles held in trust in Missouri by resident trustees.[5] In holding that the complaint presented no justiciable controversy, the Court declared that, to constitute such a controversy, the complainant state must show that it "has suffered a wrong through the action of the other State, furnishing ground for judicial redress, or is asserting a right against the other State which is susceptible of judicial enforcement according to . . . the common law or equity systems of jurisprudence."[6] The fact that the trust property was sufficient to satisfy the claims of both states and that recovery by either would not impair any

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[30] 37 U.S. (12 Pet.) 657 (1838).

[31] 19 U.S. (6 Wheat.) 264 (1821).

[32] *Id.* at 378. *See* Western Union Tel. Co. v. Pennsylvania, 368 U.S. 71, 79–80 (1961); Texas v. New Jersey, 379 U.S. 674, 677 (1965); Pennsylvania v. New York, 407 U.S. 206 (1972).

[1] 291 U.S. 286 (1934). The Court has been loath to permit filings of original actions where the parties might be able to resolve their disputes in other courts, even in cases in which the jurisdiction over the particular dispute is exclusively original. Arizona v. New Mexico, 425 U.S. 794 (1976) (dispute subject of state court case brought by private parties); California v. West Virginia, 454 U.S. 1027 (1981). But in *Mississippi v. Louisiana,* 506 U.S. 73 (1992), the Court's reluctance to exercise original jurisdiction ran afoul of the "uncompromising language" of 28 U.S.C. § 1251(a) giving the Court "original and *exclusive* jurisdiction" of these kinds of suits.

[2] Alabama v. Arizona, 291 U.S. 286, 291 (1934).

[3] *Id.* at 292.

[4] *Id.*

[5] Massachusetts v. Missouri, 308 U.S. 1, 20 (1939).

[6] *Id.* at 15–16 (citing Florida v. Mellon, 273 U.S. 12 (1927)).

rights of the other distinguished the case from *Texas v. Florida*,[7] where the Court held the contrary. Furthermore, the Missouri statute providing for reciprocal privileges in levying inheritance taxes did not confer upon Massachusetts any contractual right.[8] The Court then proceeded to reiterate its earlier rule that a state may not invoke the original jurisdiction of the Supreme Court for the benefit of its residents or to enforce the individual rights of its citizens.[9] Moreover, the Court held that Massachusetts could not invoke the original jurisdiction of the Court by making citizens of Missouri parties to a suit that was not otherwise maintainable.[10] Accordingly, Massachusetts was held to have an adequate remedy in Missouri's courts or in a federal district court in Missouri.[11]

In 2020, the Supreme Court declined to allow Texas to file a bill of complaint in which Texas alleged that four states allowed "material illegality"[12] in the 2020 general elections held in their states.[13] Texas argued that alleged flaws in voting processes in Pennsylvania, Georgia, Michigan, and Wisconsin affected an "outcome determinative" number of votes in the 2020 presidential election.[14] The Supreme Court denied Texas's motion under the rationale that Texas lacked standing because it did not have a "judicially cognizable interest in the manner in which another State conducts its elections."[15]

ArtIII.S2.C1.14.5 Enforcement Authority

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In 2015, the Court, noting that proceedings under its original jurisdiction are "basically equitable,"[1] took the view that its enforcement authority encompasses ordering disgorgement of part of one state's gain from its breach of an interstate compact, as well as reforming certain agreements adopted by the states.[2] In so doing, the Court emphasized that its enforcement

[7] 306 U.S. 398 (1939).

[8] *See id.* at 16–17.

[9] *Massachusetts*, 308 U.S. at 17 (citing Oklahoma v. Atchison, T. & S.F. Ry., 220 U.S. 277, 286 (1911) and Oklahoma *ex rel.* Johnson v. Cook, 304 U.S. 387, 394 (1938)). *See also New Hampshire v. Louisiana and New York v. Louisiana,* 108 U.S. 76 (1883), which held that a state cannot bring a suit on behalf of its citizens to collect on bonds issued by another state, and *Louisiana v. Texas,* 176 U.S. 1 (1900), which held that a state cannot sue another to prevent maladministration of quarantine laws.

[10] *Massachusetts*, 308 U.S. at 17, 19.

[11] *See id.* at 19–20.

[12] Mot. for Leave to File Bill of Complaint, Texas v. Pennsylvania at 2, No. 155, Orig. (U.S. Dec. 11, 2020).

[13] Order, Texas v. Pennsylvania, No. 155, Orig. (U.S. Dec. 11, 2020).

[14] Mot. for Leave, *supra* note 12, at 2.

[15] Order, *supra* note 13.

[1] Kansas v. Nebraska, 574 U.S. 445, 451 (2015).

[2] *Kansas*, 574 U.S. at 461–64 Equity is "the system of law or body of principles originating in the English Court of Chancery." *Equity*, Black's Law Dictionary 656 (10th ed. 2014). Persons who sought equitable relief "sought to do justice in cases for which there was no adequate remedy at common law," A.H. Manchester, Modern Legal History of England

authority derives both from its "inherent authority" to apportion interstate streams between states equitably and from Congress's approval of interstate compacts.[3] As to its inherent authority, the Court noted that states bargain for water rights "in the shadow of" the Court's broad power to apportion them equitably and it is "difficult to conceive" that a state would agree to enter an agreement as to water rights if the Court lacked the power to enforce the agreement.[4] The Court similarly reasoned that its remedial authority "gains still greater force" because a compact between the states, "having received Congress's blessing, counts as federal law."[5] The Court stated, however, that an interstate compact's "legal status" as federal law could also limit the Court's enforcement power because the Court cannot order relief that is inconsistent with a compact's express terms.[6]

ArtIII.S2.C1.15 States and Citizens of Other States

ArtIII.S2.C1.15.1 Historical Background on Controversies Between a State and Citizens of Other States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court's decision in *Chisholm v. Georgia*[1] that cases "between a state and citizens of another state" included those where a state was a party defendant provoked the proposal and ratification of the Eleventh Amendment. Since then, controversies between a state and citizens of another state include only those cases where the state has been a party plaintiff or has consented to be sued.[2] As a party plaintiff, a state may bring actions against citizens of other states to protect its legal rights or in some instances as parens patriae to protect the health and welfare of its citizens. In general, the Court has tended to construe strictly this grant of judicial power, which simultaneously comes within its original jurisdiction, by applying the concepts of cases and controversies more rigorously than in cases between private parties.[3] Specifically, in these circumstances, the Court holds rigorously to the

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AND WALES, 1750–1950, at 135–36 (1980), i.e., cases in which the English courts of law could afford no relief to a plaintiff. While eventually courts of law and courts providing equitable relief merged into a single court in most jurisdictions, an equitable remedy refers to a remedy that equity courts would have historically granted. *See* 1 DAN B. DOBBS, DOBBS LAW OF REMEDIES: DAMAGES - EQUITY - RESTITUTION § 2.1(2), at 59–61 (2d ed. 1993). Compensatory damages are a classic "legal" remedy, whereas an injunction is a classic "equitable" remedy. *See* RICHARD L. HASEN, REMEDIES 141 (2d ed. 2010).

[3] *Id.* at 454–55.

[4] *See Kansas*, 574 U.S. at 455 (quoting Texas v. New Mexico, 462 U.S. 554, 569 (1983)).

[5] *Id.*

[6] *Id.*

[1] 2 U.S. (2 Dall.) 419 (1793).

[2] *See* the discussion under the Eleventh Amendment.

[3] Massachusetts v. Mellon, 262 U.S. 447 (1923); Florida v. Mellon, 273 U.S. 12 (1927); New Jersey v. Sargent, 269 U.S. 328 (1926).

rule that all the party defendants are citizens of other states[4] and adheres to congressional distribution of its original jurisdiction concurrently with that of other federal courts.[5]

ArtIII.S2.C1.15.2 Jurisdiction Confined to Civil Cases

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Cohens v. Virginia[1] includes dicta about whether the Supreme Court's original jurisdiction encompasses suits between a state and its own citizens. Long afterwards, the Supreme Court dismissed an action for want of jurisdiction because the record did not show that the corporation against which the suit was brought was chartered in another state.[2] Subsequently, the Court has ruled that it will not entertain an action by a state to which its citizens are either parties of record or would have to be joined because of the effect of a judgment upon them.[3] In dictum, Chief Justice John Marshall also indicated in *Cohens* that perhaps no jurisdiction existed over suits by states to enforce their penal laws.[4] Sixty-seven years later, the Court wrote this dictum into law in *Wisconsin v. Pelican Ins. Co.*[5] In *Pelican*, Wisconsin sued a Louisiana corporation to recover a judgment rendered in its favor by one of its own courts. Relying partly on the rule of international law that the courts of no country execute the penal laws of another; partly upon the Section 13 of the Judiciary Act of 1789, which vested the Supreme Court with exclusive jurisdiction of controversies of a civil nature where a state is a party; and partly on Justice James Iredell's dissent in *Chisholm v. Georgia*,[6] where he confined the term "controversies" to civil suits, Justice Horace Gray ruled for the Court that, for purposes of original jurisdiction, "controversies between a State and citizens of another State" are confined to civil suits.[7]

ArtIII.S2.C1.15.3 The State's Real Interest

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a*

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[4] Pennsylvania v. Quicksilver Co., 77 U.S. (10 Wall.) 553 (1871); California v. Southern Pacific Co., 157 U.S. 229 (1895); Minnesota v. Northern Securities Co., 184 U.S. 199 (1902).

[5] Wisconsin v. Pelican Ins. Co., 127 U.S. 265 (1888).

[1] 19 U.S. (6 Wheat.) 264, 398–99 (1821).

[2] Pennsylvania v. Quicksilver Mining Co., 77 U.S. (10 Wall.) 553 (1871).

[3] California v. Southern Pacific Co., 157 U.S. 229 (1895); Minnesota v. Northern Securities Co., 184 U.S. 199 (1902).

[4] *Cohens*, 19 U.S. (6 Wheat.) at 398–99.

[5] 127 U.S. 265 (1888).

[6] 2 U.S. (2 Dall.) 419, 431–32 (1793).

[7] *Wisconsin*, 127 U.S. at 289–300.

ArtIII.S2.C1.15.3
The State's Real Interest

State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Ordinarily, a state may not sue in its name unless it is the real party in interest with real interests. It can sue to protect its own property interests,[1] and, if it sues for its own interest as owner of another state's bonds, rather than as an assignee for collection, jurisdiction exists.[2] The Court refused to allow a state to sue when, to avoid Eleventh Amendment restrictions on suing states, the state had passed a statute to collect on another state's bonds held by one of its citizens.[3] Nor can a state sue citizens of other states on behalf of its own citizens to collect claims.[4]

ArtIII.S2.C1.16 Diversity Jurisdiction

ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction

Article III, Section 2, Clause 1:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Article III, Section 2, Clause 1, as interpreted by the Supreme Court, authorizes Congress to grant federal courts subject matter jurisdiction over controversies between citizens of different states—commonly known as "diversity jurisdiction."[1] Although Justice Joseph Story concluded in the early case *Martin v. Hunter's Lessee* that "the language of [Article III]. . . . is manifestly designed to be mandatory upon the legislature," such that "Congress could not, without a violation of its duty, have refused to carry it into operation,"[2] numerous subsequent Supreme Court decisions repudiated this stance, recognizing instead that Article III's grant of subject matter jurisdiction is permissive and subject to congressional discretion.[3]

Congress has invoked this authority and enacted legislation granting federal courts diversity jurisdiction since the Judiciary Act of 1789.[4] That statute conferred diversity jurisdiction only when a suit was between a citizen of the state in which the suit was brought

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[1] Pennsylvania v. Wheeling & B. Bridge Co., 54 U.S. (13 How.) 518, 559 (1852); Oklahoma *ex rel.* Johnson v. Cook, 304 U.S. 387 (1938); Georgia v. Evans, 316 U.S. 159 (1942).

[2] South Dakota v. North Carolina, 192 U.S. 286 (1904).

[3] New Hampshire v. Louisiana, 108 U.S. 76 (1883).

[4] Oklahoma *ex rel.* Johnson v. Cook, 304 U.S. 387 (1938).

[1] *See* Kline v. Burke Constr. Co., 260 U.S. 226, 233–34 (1922); Mayor v. Cooper, 6 Wall. 247, 252 (U.S. 1968). For more information about Congress's power to establish Article III courts and their jurisdiction, see ArtIII.S1.8.1 Overview of Establishment of Article III Courts.

[2] 14 U.S. 304, 328 (1816).

[3] *See supra* note 1; *see also, e.g.*, *Hertz Corp. v. Friend,* 559 U.S. 77, 82–83 (2010); Kentucky v. Powers, 201 U.S. 1, 24–25 (1906); Stevenson v. Fain, 195 U.S. 165, 167 (1902); Holmes v. Goldsmith, 147 U.S. 150, 157–59 (1893); *In re* Sewing Mach. Co. 85 U.S. 553, 563 (1873); Sheldon v. Sill, 49 U.S. 441, 449 (1850).

[4] *See* Act of Sept. 24, 1789, § 11, 1 Stat. 73. The statute also granted federal courts jurisdiction over suits between a citizen of a state and an alien. *See id.*

and a citizen of another state.[5] The Judiciary Act of 1789 further limited diversity jurisdiction to cases where the amount in controversy—that is, the value of the relief sought—was at least $5,000.[6] The Judiciary Act of 1875 eliminated the requirement that one of the parties be a citizen of the forum state, requiring only diverse citizenship and a minimum jurisdictional amount in controversy.[7] The current diversity jurisdiction provision is codified at 28 U.S.C. § 1332, and grants federal court jurisdiction in all civil actions between citizens of different states and between a citizen of a state and a subject of a foreign state if the amount in controversy exceeds $75,000.

Although the broad strokes of these requirements have remained the same since 1875, the statute has grown increasingly complex over the years. For instance, Congress amended the statutory provision via the Class Action Fairness Act of 2005 (CAFA).[8] Among other changes, CAFA expanded federal courts' jurisdiction over class actions by substituting in these cases a minimal diversity-of-citizenship requirement in place of the usual complete diversity requirement, which requires each plaintiff be a citizen of a different state from each defendant. Under the minimal diversity requirement, federal courts possess diversity jurisdiction over a class action when any one of the plaintiffs is a citizen of a different state from any defendant.[9] CAFA also imposed an amount-in-controversy threshold of $5,000,000 in class actions, and allowed plaintiffs to aggregate their monetary claims to calculate the statutory amount in controversy.[10]

The following essays do not cover the extensive case law interpreting the various statutory requirements for diversity jurisdiction.[11] They instead provide an overview of the constitutional parameters of diversity jurisdiction, including a historical perspective on the purpose of diversity jurisdiction; the Supreme Court's interpretations of the meaning of "citizens of different states" under Article III; and related federalism principles implicated by diversity jurisdiction.

ArtIII.S2.C1.16.2 Historical Background on Diversity Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The records of the Constitutional Convention do not shed substantial light on why the Framers included diversity jurisdiction among the judicial powers of the federal courts.[1] The

[5] *See Id.*

[6] *See id.*

[7] Act of Mar. 3, 1875, § 1, 18 Stat. 470.

[8] Pub. L. No. 109–2, § 4(a), 119 Stat. 9 (2005).

[9] *See* 28 U.S.C. § 1332(d).

[10] *Id.*

[11] *See, e.g.*, Hertz Corp. v. Friend, 559 U.S. 77, 91 (2010) (interpreting the meaning of "principal place of business" under 28 U.S.C. § 1332(c)(2)).

[1] *See* Henry J. Friendly, *The Historic Basis of Diversity Jurisdiction*, 41 Harv. L. Rev. 483, 484 (1928).

traditional explanation most often cited by judges and legal scholars is that the Framers provided diversity jurisdiction to address the concern that state courts would be prejudiced against out-of-state litigants, particularly if one party was an in-state resident.[2]

Writings and statements of several Framers support this traditional explanation. For instance, at the Virginia Convention, James Madison stated his belief that the diversity jurisdiction clause was "salutary," citing the possibility that "a strong prejudice may arise in some states, against the citizens of others, who may have claims against them."[3] In the *Federalist Papers*, Alexander Hamilton similarly argued that a national Judiciary "ought to preside in all cases in which one State or its citizens are opposed to another State or its citizens" to ensure "the inviolable maintenance of [the] equality of privileges and immunities to which the citizens of the Union will be entitled."[4] Hamilton contended that a federal court, "having no local attachments, will be likely to be impartial between the different States and their citizens."[5] Chief Justice John Marshall likewise explained in an early case that, while it might be true that state courts would "administer justice as impartially" as federal courts, "it is not less true that the [C]onstitution itself either entertains apprehensions on this subject, or views with such indulgence the possible fears and apprehensions of suitors" as to warrant the establishment of diversity jurisdiction in the federal courts.[6]

Historians have proffered other explanations for the Constitution's diversity-jurisdiction provision.[7] As the volume of diversity litigation in federal court has grown over the years, commentators continue to debate the purpose of diversity jurisdiction.[8] Given that contemporary society has evolved significantly from the conditions that existed in 1789, questions have arisen periodically concerning the continued need for diversity jurisdiction, including whether to retain, abolish, or curtail to some degree the statutory grant of this form of federal subject matter jurisdiction.[9]

ArtIII.S2.C1.16.3 Citizens of Different States and Diversity Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens*

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[2] *See, e.g.*, Burgess v. Seligman, 107 U.S. 20, 34 (1883); Barrow S.S. Co. v. Kane, 170 U.S. 100, 111 (1898). *See also* Friendly, *supra* note 1, at 492–93; Charles Warren, *New Light on the History of the Federal Judiciary Act of 1789*, 37 Harv. L. Rev. 49, 82 (1923).

[3] *Reprinted in* 3 Elliot's Debates, The Debates in the Several State Conventions on the Adoption of the Federal Constitution 533 (1836).

[4] *See* The Federalist No. 80 (Alexander Hamilton).

[5] *Id.*

[6] Bank of U.S. v. Deveaux, 9 U.S. 61, 87 (1809).

[7] *See, e.g.*, Friendly, *supra* note 1, at 496 (suggesting that "the desire to protect creditors against [state] legislation favorable to debtors was a principal reason for the grant of diversity jurisdiction"); 13 Wright & Miller, Federal Practice and Procedure: Jurisdiction and Related Matters § 3601 (3d. ed. Apr. 2021) (describing some commentators' views that the grant of diversity jurisdiction stemmed from "a desire to protect commical interests from class bias").

[8] *See, e.g.*, Lumbermen's Mut. Cas. Co. v. Elbert, 348 U.S. 48, 54 (1954) (Frankfurter, J., concurring) (commenting on "the mounting mischief inflicted on the federal judicial system by the unjustifiable continuance of diversity jurisdiction").

[9] *See* Wright & Miller, *supra* note 7.

of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

The constitutional grant of diversity jurisdiction extends to controversies between "Citizens of different States." Since Congress first exercised its constitutional prerogative to vest diversity jurisdiction in the federal courts in the Judiciary Act of 1789, the Supreme Court has considered the meaning of "Citizens of different States," and the constitutional reach of diversity jurisdiction, on numerous occasions.

In *Hepburn v. Ellzey*,[1] Chief Justice John Marshall confined the meaning of the word "state" as used in the Constitution to "the members of the American confederacy," ruling that a citizen of the District of Columbia thus could not maintain a suit against a citizen of Virginia in federal court on the basis of diversity jurisdiction. Chief Justice Marshall noted that it was "extraordinary that the courts of the United States, which are open to aliens, and to the citizens of every state in the union, should be closed upon [citizens of the District of Columbia].—But this is a subject for legislative not for judicial consideration."[2] The Court subsequently applied the same rule to citizens of the U.S. territories.[3]

Whether the Chief Justice had in mind a constitutional amendment or a statute when he spoke of legislative consideration remains unclear. Congress addressed the issue in 1940 by statutorily conferring on federal district courts jurisdiction over civil actions, not involving federal questions, "between citizens of different States, or citizens of the District of Columbia, the Territory of Hawaii, or Alaska and any State or Territory."[4] In *National Mutual Ins. Co. v. Tidewater Transfer Co.*,[5] the Court upheld that amendment in a 5-4 decision, but a majority of Justices could not agree on the reasoning. Two Justices thought that Chief Justice Marshall's 1804 decision should be overruled, but the other seven Justices disagreed. Three of the seven Justices thought the statute could be sustained under Congress's power to enact legislation for District of Columbia inhabitants, but the remaining four plus the other two rejected this theory. The statute was upheld because a total of five Justices voted to sustain it, although of the two theories relied upon, seven Justices rejected one and six the other. The result, attributable to "conflicting minorities in combination,"[6] means that *Hepburn v. Ellzey* is still good law insofar as it holds that the District of Columbia is not a state for purposes of Article III, but is overruled insofar as it holds that District citizens may not invoke federal diversity jurisdiction.[7]

In a typical two-party case, "diversity" exists if a citizen of one state sues a citizen of another state. In a multiparty case, Chief Justice Marshall established in an early case, *Strawbridge v. Curtiss*, that there must be complete diversity—that is, no party on one side could be a citizen of any state of which any party on the other side was a citizen.[8] In *State Farm Fire & Casualty Co. v. Tashire*, the Court clarified that this complete diversity requirement flows from the diversity jurisdiction statute, rather than from the constitutional grant of

[1] 6 U.S. (2 Cr.) 445 (1805).

[2] *Id.* at 453.

[3] City of New Orleans v. Winter, 14 U.S. (1 Wheat.) 91 (1816).

[4] Pub. L. No. 76–463, 54 Stat. 143 (1940). The relevant provision was later revised to read "The word 'States,' as used in this section, includes the Territories and the District of Columbia." *See* 28 U.S.C. § 1332(b) (1948).

[5] 337 U.S. 582 (1949).

[6] *Id.* at 655 (Frankfurter, J., dissenting).

[7] *See id.* The statute's provision allowing citizens of Puerto Rico to sue in diversity was sustained in Americana of Puerto Rico, Inc. v. Kaplus, 368 F.2d 431 (3d Cir. 1966), *cert. denied*, 386 U.S. 943 (1967), under Congress's power to make rules and regulations for U.S. territories. *Cf.* Examining Bd. v. Flores de Otero, 426 U.S. 572, 580–97 (1976) (discussing congressional acts with respect to Puerto Rico).

[8] 7 U.S. (3 Cr.) 267 (1806).

authority,[9] noting that Chief Justice Marshall, in *Strawbridge*, "purported to construe only '[t]he words of the act of congress.'"[10] Article III's diversity requirement, the Court held in *Tashire*, requires only that "any two adverse parties are not co-citizens" and thus "poses no obstacle to the legislative extension of federal jurisdiction" by requiring only minimal diversity.[11]

ArtIII.S2.C1.16.4 Citizenship of Natural Persons and Corporations

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

For purposes of diversity jurisdiction, state citizenship of an individual is determined by the concept of domicile[1] rather than residence.[2] While the Supreme Court's definition has varied across cases,[3] this generally means that a person is a citizen of the state that is his or her true, fixed, and permanent home and principal establishment, and to which he or she intends to return whenever he or she is absent from it.[4] Actions may disclose this intention more clearly and decisively than statements.[5] A person may change his or her domicile in an instant by taking up residence in a new place with the intention of remaining there indefinitely; he or she may obtain the benefit of diversity jurisdiction by making this change alone,[6] provided the change is more than a temporary expedient.[7]

Whether corporations, which are not explicitly referenced in Article III, should be treated as citizens of a certain state or states for purposes of diversity jurisdiction is a question with which the Supreme Court has long wrestled. The Court first directly addressed the issue in *Bank of the United States v. Deveaux*,[8] in which Chief Justice John Marshall declared: "That invisible, intangible, and artificial being, that mere legal entity, a corporation aggregate, is certainly not a citizen; and consequently cannot sue or be sued in the courts of the United States, unless the rights of the members, in this respect, can be exercised in their corporate name." Nevertheless, the Court upheld diversity jurisdiction in that case because the members of the bank as a corporation were citizens of one state and the opposing party was a citizen of

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[9] 386 U.S. 523, 530 (1967).

[10] *Id.* at 530.

[11] *Id.* When Congress enacted the Class Action Fairness Act of 2005 (CAFA), for instance, it expanded federal courts' jurisdiction over class actions by requiring only minimal diversity between plaintiffs and defendants. *See* 28 U.S.C. § 1332(d); *see also* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

[1] Chicago & N.W.R.R. v. Ohle, 117 U.S. 123 (1886).

[2] Sun Printing & Pub. Ass'n v. Edwards, 194 U.S. 377 (1904).

[3] Knox v. Greenleaf, 4 U.S. (4 Dall.) 360 (1802); Shelton v. Tiffin, 47 U.S. (6 How.) 163 (1848); Williamson v. Osenton, 232 U.S. 619 (1914).

[4] Stine v. Moore, 213 F.2d 446, 448 (5th Cir. 1954).

[5] *Tiffin*, 47 U.S. (6 How.) at 163.

[6] *Williamson*, 232 U.S. 619.

[7] Jones v. League, 59 U.S. (18 How.) 76 (1855).

[8] 9 U.S. (5 Cr.) 61, 86 (1809).

another. The holding that corporations were citizens of the states where their stockholders lived was reaffirmed a generation later,[9] but pressures were building for change. While corporations were assuming an ever more prominent economic role, the *Strawbridge* rule, which required complete diversity between each plaintiff and each defendant,[10] operated to close the doors of the federal courts to corporations with stockholders in many states.

The Supreme Court overruled *Deveaux* in 1844, when a divided Court held that "a corporation created by and doing business in a particular state, is to be deemed to all intents and purposes as a person, although an artificial person, an inhabitant of the same state . . . capable of being treated as a citizen of that state, as much as a natural person."[11] Ten years later, the Court abandoned that rationale, but it achieved the same result by "indulg[ing] in the fiction that, although a corporation was not itself a citizen for diversity purposes, its shareholders would be conclusively presumed citizens of the incorporating State."[12] "State of incorporation" remained the guiding rule for determining the place of corporate citizenship until Congress amended the jurisdictional statute in 1958.[13] Concern over growing dockets and companies incorporating in states of convenience led to a "dual citizenship" rule, whereby "a corporation shall be deemed to be a citizen of any State by which it has been incorporated and of the State where it has its principal place of business."[14] The right of foreign corporations to invoke diversity jurisdiction is not one that a state may require corporations to waive as a condition of doing business in that state.[15]

Unincorporated associations, such as partnerships, joint stock companies, labor unions, governing boards of institutions, and the like, do not enjoy the same status as corporations. The actual citizenship of each of its members must be considered in determining whether diversity exists.[16]

ArtIII.S2.C1.16.5 Insufficient or Manufactured Diversity

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made,*

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[9] Com. & R.R. Bank v. Slocomb, 39 U.S. (14 Pet.) 60 (1840).

[10] Strawbridge v. Curtiss, 7 U.S. (3 Cr.) 267 (1806).

[11] Louisville, C. & C.R.R. v. Letson, 43 U.S. (2 How.) 497, 558 (1844).

[12] United Steelworkers v. R.H. Bouligny, Inc., 382 U.S. 145, 148 (1965) (citing Marshall v. Balt. & Ohio R.R., 57 U.S. (16 How.) 314 (1854)). *See* Muller v. Dows, 94 U.S. 444 (1877); St. Louis & S.F. Ry. v. James, 161 U.S. 545 (1896); Carden v. Arkoma Assocs., 494 U.S. 185, 189 (1990).

[13] *See* Pub. L. No. 85-552, 72 Stat. 415 (1958).

[14] 28 U.S.C. § 1332(c)(1). In *Hertz Corp. v. Friend,* 559 U.S. 77, 84–86 (2010), the Court recounted the development of the rules on corporate jurisdictional citizenship in deciding that a corporation's "principal place of business" under the statute is its "nerve center," the place where the corporation's officers direct, control, and coordinate the corporation's activities. The Court concluded in *Black & White Taxicab & Transfer Co. v. Brown & Yellow Taxicab & Transfer,* 276 U.S. 518, 522–25 (1928), that diversity jurisdiction existed even though the plaintiff-corporation, a Kentucky corporation, created diversity by dissolving itself and obtaining a charter as a Tennessee corporation; the only change being the state of incorporation, while the name, officers, shareholders, and location of the business remained the same. In *Hertz*, the Court observed that, as a result of *Black & White*, a corporation could "manipulate federal-court jurisdiction" through its choice of the state of incorporation. *Hertz*, 559 U.S. at 85.

[15] In *Terral v. Burke Constr. Co.,* 257 U.S. 529 (1922), the Court resolved two conflicting lines of cases and voided a state statute that required the cancellation of a foreign corporation's license to do business in the state upon notice that the corporation had removed a case to a federal court.

[16] Chapman v. Barney, 129 U.S. 677 (1889); Great S. Fire Proof Hotel Co. v. Jones, 177 U.S. 449 (1900); Thomas v. Bd. of Trs., 195 U.S. 207 (1904); United Steelworkers v. R.H. Bouligny, Inc., 382 U.S. 145 (1965); Carden v. Arkoma Assocs., 494 U.S. 185 (1990). *Compare* People of P.R. v. Russell & Co., 288 U.S. 476 (1933), *with Carden*, 494 U.S. at 189–190, *and* Navarro Sav. Ass'n v. Lee, 446 U.S. 458 (1980).

under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

Historically, regardless of the parties' diverse citizenship, the Supreme Court has recognized two substantive exceptions to diversity jurisdiction: the domestic relations exception[1]—which precludes federal courts from issuing divorce, alimony, or child custody decrees—and the probate exception—which precludes federal courts from probating a will or administering an estate.[2] In *Ankenbrandt v. Richards*, the Court clarified that the domestic relations exception exists as a matter of statutory interpretation, and that Article III, Section 2 "does not mandate the exclusion of domestic relations from federal-court jurisdiction."[3] In *Marshall v. Marshall*, the Court similarly interpreted the probate exception as a matter of statutory construction, confirming its narrow scope as "reser[ving] to state probate courts the probate or annulment of a will and the administration of a decedent's estate," and "preclud[ing] federal courts from endeavoring to dispose of property that is in the custody of a state probate court."[4]

A litigant who, because of diversity of citizenship, has the option to sue in state or federal court, will generally consider the relative advantages and disadvantages of each forum in deciding where to pursue litigation. Where diversity is lacking, a litigant who perceives an advantage in the federal forum will sometimes attempt to create diversity. In the Judiciary Act of 1789, Congress exempted from diversity jurisdiction suits on choses of action in favor of an assignee unless the suit could have been brought in federal court if no assignment had been made.[5] Nevertheless, a person could create diversity by a bona fide change of domicile even if that is the sole motive of creating domicile.[6]

Similarly, one could create diversity, or defeat it, by choosing a personal representative of the requisite citizenship.[7] Most attempts to manufacture or create diversity have involved corporations. A corporation cannot get into federal court by transferring its claim to a subsidiary incorporated in another state.[8] For a time, the Supreme Court tended to look disapprovingly at collusory incorporations and the creation of dummy corporations for purposes of creating diversity.[9] As discussed further in the next essay, however, the Court, in *Black & White Taxicab & Transfer Co. v. Brown & Yellow Taxicab & Transfer Co.*,[10] upheld diversity in a case in which the plaintiff-corporation, a Kentucky corporation, dissolved itself

[1] *See* Barber v. Barber, 62 U.S. (21 How.) 582 (1858); *Ex parte* Burrus, 136 U.S. 586 (1890); Ankenbrandt v. Richards, 504 U.S. 689, 695–97 (1992).

[2] *See In re* Broderick's Will, 88 U.S. (21 Wall.) 503 (1875); Marshall v. Marshall, 547 U.S. 293, 299–31 (2006).

[3] *Ankenbrandt*, 504 U.S. at 695–97.

[4] *Marshall*, 547 U.S. at 331.

[5] Judiciary Act of 1789, ch. XIX, § 11, 1 Stat. 73, 78; *see also* Turner v. Bank of N. Am., 4 U.S. (4 Dall.) 8 (1799); Sheldon v. Sill, 49 U.S. (8 How.) 441 (1850). The present statute, 28 U.S.C. § 1359, provides that no jurisdiction exists in a civil action in which any party, by assignment or otherwise, has been improperly or collusively made or joined to invoke such court's jurisdiction of. *See* Kramer v. Caribbean Mills, 394 U.S. 823 (1969).

[6] Williamson v. Osenton, 232 U.S. 619 (1914); Morris v. Gilmer, 129 U.S. 315 (1889).

[7] Mecom v. Fitzsimmons Drilling Co., 284 U.S. 183 (1931).

[8] Miller & Lux v. E. Side Canal & Irrigation Co., 211 U.S. 293 (1908).

[9] *E.g.*, S. Realty Co. v. Walker, 211 U.S. 603 (1909).

[10] 276 U.S. 518 (1928).

and obtained a charter as a Tennessee corporation in order to file the action in federal court. At the time, federal courts applied federal common law rules that, compared to relevant state laws, were more favorable to the plaintiff.[11]

ArtIII.S2.C1.16.6 State Law in Diversity Cases and the Erie Doctrine

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Because a federal court's subject matter jurisdiction in diversity cases is predicated upon the fact that the opposing litigants are from different states, rather than upon questions of federal law, a foundational question in these cases is which law—federal or state—should apply. In the 1938 decision *Erie Railroad v. Tompkins*,[1] the Supreme Court set forth what is now commonly known as the *Erie* doctrine, which generally requires a federal court to apply state substantive law, unless the matter before it is governed by federal law. In so holding, *Erie* repudiated a prior body of jurisprudence based upon the Court's 1842 decision in *Swift v. Tyson*.[2] As legal commentators have noted, "[p]robably no Supreme Court decision rendered during the twentieth century has had as significant an impact on the distribution of judicial power between the federal government and the states as has [*Erie*]."[3]

In both *Swift* and *Erie*, the Supreme Court considered Section 34 of the Judiciary Act of 1789, which provided that "[t]he laws of the several states" should generally apply in federal courts unless applicable federal laws require otherwise.[4] In *Swift*, Justice Joseph Story ruled for the Court that state court decisions were not "laws" within the meaning of Section 34.[5] Thus, while such state decisions were entitled to respect, they were generally not binding on federal judges except with regard to matters of a "local nature," such as statutory interpretations pertaining to real estate and other things of permanent locality.[6] For nearly a

[11] *Id.* at 528–29.

[1] 304 U.S. 64, 80 (1938).

[2] 41 U.S. (16 Pet.) 1 (1842).

[3] 19 Wright & Miller, Federal Practice and Procedure: jurisdiction and Related Matters § 4503 (3d. ed. Apr. 2021).

[4] Section 34 of the Judiciary Act provided that "the laws of the several states, except where the constitution, treaties, or statutes of the United States shall otherwise require or provide, shall be regarded as rules of decision in trials at common law in the courts of the United States in cases where they apply." 1 Stat. 92. With some minor changes, the section now appears as 28 U.S.C. § 1652.

[5] 41 U.S. (16 Pet.) 1, 19 (1842). The issue in the case was whether a pre-existing debt was good consideration for an indorsement of a bill of exchange so that the endorsee would be a holder in due course.

[6] *Id.* Justice Joseph Story concluded: "The law respecting negotiable instruments may be truly declared in the language of Cicero, adopted by Lord Mansfield in Luke v. Lyde, 2 Burr. R. 883, 887, to be in great measure, not the law of a single country only, but of the commercial world." *Id.* The idea that the same law should prevail in Rome as in Athens was also used by Justice Joseph Story in DeLovio v. Boit, 7 F. Cas. 418, 443 (No. 3776) (C.C.D. Mass. 1815). For a more recent use, *see* United States v. Jefferson Cnty. Bd. of Educ., 380 F.2d 385, 398 (5th Cir. 1967) (dissenting opinion).

century after *Swift*, the Court issued a series of decisions that expanded the areas in which federal judges were free to construct a federal common law, while restricting the definition of "local" laws.[7]

Although there was some dissatisfaction with *Swift*,[8] it was the Supreme Court's decision in *Black & White Taxicab & Transfer Co. v. Brown & Yellow Taxicab & Transfer Co.*[9] that brought disagreement on these choice-of-law issues to its apex. In *Black & White*, a Kentucky corporation that sought the application of more favorable federal common law was permitted to create diversity jurisdiction by reincorporating in another state, even though the only change made to the corporation was its state of incorporation; the corporation's name, officers, shareholders, and location of the business all remained the same.[10] A Court majority, over a strong dissent by Justice Oliver Wendell Holmes,[11] found no collusion and upheld diversity jurisdiction. The resulting application of federal common law allowed the corporation to prevail on its claims when it would have otherwise lost under state law had it sued in state court.[12] Perhaps more than any other decision, *Black & White* precipitated *Erie*'s overruling of *Swift*.[13]

[7] The expansions included: Lane v. Vick, 44 U.S. (3 How.) 464 (1845) (wills); Chicago City v. Robbins, 67 U.S. (2 Bl.) 418 (1862) and Baltimore & Ohio R.R. v. Baugh, 149 U.S. 368 (1893) (torts); Yates v. City of Milwaukee, 77 U.S. (10 Wall.) 497 (1870) (real estate titles and riparian rights); Kuhn v. Fairmont Coal Co., 215 U.S. 349 (1910) (mineral conveyances); Rowan v. Runnels, 46 U.S. (5 How.) 134 (1847) (contracts); Lake Shore & M.S. Ry. v. Prentice, 147 U.S. 101 (1893). It was suggested that uniformity, the goal of Justice Joseph Story's formulation, was not being achieved, in great part because state courts followed their own rules of decision even when prior federal decisions were contrary. Felix Frankfurter, *Distribution of Judicial Power Between Federal and State Courts*, 13 Cornell L.Q. 499, 529 n.150 (1928). Moreover, the Court held that, although state court interpretations of state statutes or constitutions were to be followed, federal courts could ignore them if they conflicted with earlier federal constructions of the same statute or constitutional provision, Rowan v. Runnels, 46 U.S. (5 How.) 134 (1847), or if they were issued after the case had been tried in federal court, Burgess v. Seligman, 107 U.S. 20 (1883), thus promoting lack of uniformity. *See also* Gelpcke v. City of Debuque, 68 U.S. (1 Wall.) 175 (1865); Williamson v. Berry, 49 U.S. (8 How.) 495 (1850); Pease v. Peck, 59 U.S. (18 How.) 595 (1856); Watson v. Tarpley, 59 U.S. (18 How.) 517 (1856).

[8] Extensions of *Swift*'s scope were frequently rendered by a divided Court over dissents. *E.g.*, Gelpcke v. City of Debuque, 68 U.S. (1 Wall.) 175 (1865); Lane v. Vick, 44 U.S. (3 How.) 464 (1845); Kuhn v. Fairmont Coal Co., 215 U.S. 349 (1910). In *Baltimore & Ohio R. Co. v. Baugh,* 149 U.S. 368, 401–04 (1893), Justice Stephen Johnson Field dissented in an opinion in which he expressed the view that the Supreme Court's disregard of state court decisions was unconstitutional, a view endorsed by Justice Oliver Wendell Holmes in *Black & White Taxicab & Transfer Co. v. Brown & Yellow Taxicab & Transfer Co.,* 76 U.S. 518, 533 (1928) (dissenting opinion), and adopted by the Court in *Erie Railroad v. Tompkins,* 304 U.S. 64 (1938). Numerous proposals were introduced in Congress to change the rule.

[9] In *Black & White Taxicab & Transfer Co.*, 276 U.S. 518, Black & White contracted with a railroad to provide exclusive taxi service at the railroad station. Brown & Yellow began operating taxis at the same station, and Black & White wanted to enjoin that operation. It was a settled rule in Kentucky courts that such exclusive contracts were contrary to public policy and were unenforceable in court. Therefore, Black & White dissolved itself in Kentucky and reincorporated in Tennessee, solely to create diversity of citizenship and enable the company to sue in federal court. Black & White's effort was successful, and the Supreme Court ruled that diversity was present and an injunction should issue. In *McNabb v. United States,* 318 U.S. 332 (1943) *Mutual Life Ins. Co. v. Johnson,* 293 U.S. 335 (1934), the Court, in an opinion by Justice Benjamin N. Cardozo, appeared to retreat somewhat from its extensions of *Swift*, holding that state law should be applied, through a "benign and prudent comity," in a case "balanced with doubt," a concept first used by Justice Joseph P. Bradley in *Burgess v. Seligman,* 107 U.S. 20 (1883).

[10] *Black & White Taxicab & Transfer Co.*, 276 U.S. at 523.

[11] *Id.* at 532 (joined by Brandeis and Stone, JJ.). Justice Oliver Wendell Holmes presented his view that *Swift* had been wrongly decided, but he preferred not to overrule it but instead to "not allow it to spread . . . into new fields." *Id.* at 535.

[12] *Id.* at 523.

[13] Judge Henry Friendly wrote: "Having served as [Justice Louis Brandeis's] law clerk the year *Black & White Taxicab & Transfer Co. v. Brown & Yellow Taxicab & Transfer Co.* came before the Court, I have little doubt he was waiting for an opportunity to give *Swift v. Tyson* the happy dispatch he thought it deserved." H. Friendly, Benchmarks 20 (1967).

In *Erie*, a citizen of Pennsylvania sued a railroad incorporated in New York for injuries caused by the defendant's train while the plaintiff was walking along the tracks.[14] Relevant Pennsylvania law, according to the defendant, would have limited the railroad's liability because the plaintiff was a trespasser, while applicable federal common law would permit him to recover for negligence as a licensee who was allowed on the premise.[15] After the plaintiff sued and recovered in a New York federal court, the railroad appealed, eventually presenting the issue to the Supreme Court as to whether the matter concerned a question of "local" law under *Swift*.[16]

Writing for the Court in *Erie*, Justice Louis Brandeis overruled *Swift*. He explained that the *Swift* rule failed to bring about uniformity of decisions as intended.[17] Moreover, its application prompted those seeking to avail themselves to more favorable federal rules to create diversity jurisdiction, resulting in discrimination against citizens of a state by noncitizens.[18] Justice Brandeis further concluded the *Swift* rule was also unconstitutional because "Congress has no power to declare substantive rules of common law applicable in a State whether they be local in their nature or 'general,' be they commercial law or a part of the law of torts," and "[n]o clause in the Constitution purports to confer such a power upon the federal courts."[19] Justice Brandeis also clarified that the unconstitutional assumption of power was made not by Congress, but by the Court itself: "[W]e do not hold unconstitutional § 34 of the Federal Judiciary Act of 1789 or any other Act of Congress. We merely declare that in applying the doctrine this Court and the lower courts have invaded rights which in our opinion are reserved by the Constitution to the several States."[20]

As legal commentators have observed:

> It is impossible to overstate the importance of the *Erie* decision. It announces no technical doctrine of procedure or jurisdiction, but goes to the heart of the relations between the Federal Government and the states, and returns to the states a power that had for nearly a century been exercised by the federal government.[21]

Erie was remarkable in a number of ways aside from the doctrine it announced. It reversed a 96-year-old precedent, which counsel had specifically not questioned; it reached a constitutional decision when a statutory interpretation was available, though perhaps less desirable; and it marked the only time in United States constitutional history when the Court has held that it had undertaken an unconstitutional action.

The precise constitutional basis of *Erie* has been the subject of debate, however, with the Court at times seemingly distancing itself from *Erie*'s constitutional holding.[22] Nonetheless, in the years since the decision, the Court has reaffirmed the constitutional basis of *Erie* under which "neither Congress nor the federal courts can, under the guise of formulating rules of decisions for federal courts, fashion rules which are not supported by a grant of federal authority contained in Article I or some other section of the Constitution; in such areas state

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[14] Erie R.R. v. Tompkins, 304 U.S. 64, 69 (1938).

[15] *Id.* at 69–70.

[16] *See id.* 70–71.

[17] *Id.* at 74–75.

[18] *Id.* at 71–77.

[19] *Id.* at 78.

[20] *Id.* at 79–80.

[21] Wright & Miller, *supra* note 3, § 4503. *See also In Praise of* Erie—*And of the New Federal Common Law*, *in* H. Friendly, Benchmarks 155 (1967)

[22] *See* Guar. Tr. Co. of N.Y. v. York, 326 U.S. 99, 109 (1945) (referring to the "policy" embodied in *Erie* as opposed to its constitutional imperative).

law must govern because there can be no other law."[23] *Erie* ultimately appears to derive from the federalism principles embodied in the Tenth Amendment, which limits the federal government, including Congress and the federal courts, to the authority delegated to it by the Constitution and reserves those powers not so delegated to the states or to the people.[24]

Since the Supreme Court's landmark 1938 decision, *Erie Railroad v. Tompkins*,[25] the Court's jurisprudence on federal courts' application of state law in diversity cases has evolved. At first, the Supreme Court indicated that federal courts sitting in diversity were bound by state court decisions even when such decisions were not binding on other state judges. That is, federal courts sitting in diversity must follow not only the decisions of the highest court of a state, but also decisions of intermediate appellate courts[26] and courts of first instance.[27] The Court subsequently concluded that federal judges are to give careful consideration to lower state court decisions, but they generally must construe the state law themselves if the state's highest court has not spoken definitively on the question.[28] In the event of a state supreme court reversal of an earlier decision, the federal courts are, of course, bound by the later decision, and a judgment of a federal district court, correct when rendered, must be reversed on appeal if the state's highest court subsequently changed the applicable law.[29]

ArtIII.S2.C1.16.7 Conflicts-of-Law and Procedural Rules in Diversity Cases

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party;—to Controversies between two or more States; between a State and Citizens of another State, between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

In diversity jurisdiction cases that present conflicts-of-law issues—that is, in cases in which the laws of two or more states could apply to the dispute—the Court has reiterated that the district court is to apply the conflict-of-law rules of the state in which it sits. In other words, in a federal court case in State A in which the law of State B applies under State A's conflict-of-law rules, perhaps because a contract was made in State B or a tort was committed there, the federal court is to apply State A's conception of State B's law.[1]

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[23] Hanna v. Plumer, 380 U.S. 460, 471–72 (1965).

[24] *See* Intro.7.3 Federalism and the Constitution.

[25] 304 U.S. 64, 80 (1938).

[26] *See* West v. Am. Tel. & Tel. Co., 311 U.S. 223 (1940); Six Cos. of Cal. v. Joint Highway Dist., 311 U.S. 180 (1940); Stonerv. N.Y. Life Ins. Co., 311 U.S. 464 (1940).

[27] *See* Fid. Union Tr. Co. v. Field, 311 U.S. 169 (1940).

[28] King v. Ord. of Com. Travelers of Am., 333 U.S. 153 (1948); Bernhardt v. Polygraphic Co. of Am., 350 U.S. 198, 205 (1956) (1910 decision must be followed in absence of confusion in state decisions because there were "no developing line of authorities that cast a shadow over established ones, no dicta, doubts or ambiguities . . . , no legislative development that promises to undermine the judicial rule"). *See also* Commissioner v. Estate of Bosch, 387 U.S. 456, 465 (1967).

[29] Vanderbark v. Owens-Ill. Glass Co., 311 U.S. 538 (1941); Huddleston v. Dwyer, 322 U.S. 232 (1944); Nolan v. Transocean Air Lines, 365 U.S. 293 (1961).

[1] Klaxon Co. v. Stentor Mfg. Co., 313 U.S. 487 (1941); Griffin v. McCoach, 313 U.S. 498 (1941); Wells v. Simonds Abrasive Co., 345 U.S. 514 (1953); Nolan v. Transocean Air Lines, 365 U.S. 293 (1961).

The greatest difficulty in applying the *Erie* doctrine, which generally directs federal courts sitting in diversity to apply state substantive law but federal procedural law, has been in cases in which the distinction between substantive and procedural rules is blurred.[2] In 1945, in *Guaranty Trust Co. of New York v. York*, the Court held that a state statute of limitations, which was at times deemed a matter of "procedure" but would have barred suit in state court, applied to bar the case in federal court.[3] The Court regarded the substance-procedure distinction as immaterial. Instead, "since a federal court adjudicating a state-created right solely because of the diversity of citizenship of the parties is for that purpose, in effect, only another court of the State, it cannot afford recovery if the right to recover is made unavailable by the State nor can it substantially affect the enforcement of the right as given by the State."[4] This outcome-determinative standard, the Court explained, was compelled by *Erie*'s "intent," which was to ensure that, in all cases where a federal court is exercising jurisdiction solely because of the parties' diverse citizenship, "the outcome of the litigation in the federal court should be substantially the same, so far as legal rules determine the outcome of a litigation, as it would be if tried in a State court."[5]

The Supreme Court's application of the outcome-determinative standard created substantial doubt that the Federal Rules of Civil Procedure were valid in diversity jurisdiction cases.[6] In 1965, however, the Court, in *Hanna v. Plumer*, limited the standard's application in matters governed by the Federal Rules.[7] Under *Hanna* and its progeny, the outcome-determinative standard is not the proper test when the question is the application of one of the Federal Rules of Civil Procedure. Instead, if the rule is valid under the Rules Enabling Act—which authorizes the Supreme Court to prescribe general rules of practice and procedure and rules of evidence for the federal courts—and the Constitution, it is to be applied regardless of state law to the contrary.[8]

Some uncertainty remains as to which law to apply—state or federal—in the absence of a federal statute or a Federal Rule of Civil Procedure. In *Byrd v. Blue Ridge Rural Electric Cooperative, Inc.*, the Supreme Court said that "outcome" was no longer the sole determinant, and that countervailing considerations expressed in federal policy on the conduct of federal trials should be considered.[9] Under this balancing standard, the Court held that a state rule that requires a judge (rather than a jury) to decide whether a particular defense applied in a tort action had to yield to a federal policy favoring juries, as reflected by the Seventh Amendment.[10]

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[2] Notably, courts in diversity actions were free to formulate a federal common law, but were required by the Conformity Act, § 5, 17 Stat. 196 (1872), to conform their procedure to that of the state in which the court sat. *Erie* then ruled that state substantive law was to control in federal court diversity actions, while by implication matters of procedure in federal court were subject to congressional governance. Congress authorized the Court to promulgate rules of civil procedure, 48 Stat. 1064 (1934), which it did in 1938, a few months after *Erie* was decided. 302 U.S. 783.

[3] 326 U.S. 99 (1945).

[4] *Id.* at 108–09.

[5] *Id.* at 109.

[6] Cohen v. Beneficial Indus. Loan Corp., 337 U.S. 541 (1949) (state rule making unsuccessful plaintiffs liable for all expenses and requiring security for such expenses as a condition of proceeding in federal court); Woods v. Interstate Realty Co., 337 U.S. 535 (1949) (state statute barring foreign corporation not qualified to do business in the state applies in federal court); Ragan v. Merchs. Transfer & Warehouse Co., 337 U.S. 530 (1949) (state rule determinative when an action is begun for purposes of statute of limitations applicable in federal court although a Federal Rule of Civil Procedure states a different rule).

[7] Hanna v. Plumer, 380 U.S. 460 (1965).

[8] *See* Burlington N. R. Co. v. Woods, 480 U.S 1, 5–8 (1987); Bus. Guides, Inc. v. Chromatic Comm'ns Enterps., Inc., 498 U.S. 533, 551–52 (1991); Shady Grove Orthopedic Assocs. v. Allstate Ins. Co., 559 U.S. 393, 398–401 (2010).

[9] 356 U.S. 525 (1958).

[10] *Id.* at 537–38.

Later, in *Gasperini v. Center for Humanities, Inc.*, the Supreme Court considered whether to apply a state statute—which gave state appellate courts the authority to determine if a damages award is excessive or inadequate if it *deviates materially* from what would be reasonable compensation—or a federal court-created practice of reviewing awards to determine whether they were so exorbitant that it shocked the conscience of the court.[11] The Court first determined that the state statute was both substantive and procedural, and that substantial variation in damage awards would result depending on whether the state or the federal approach was applied.[12] It then followed the mode of analysis under *York*, emphasizing the importance of federal courts reaching the same outcome as would the state courts,[13] rather than what had been the prevailing standard under *Byrd*, in which the Court balanced state and federal interests to determine which law to apply.[14] The Court's evolving approach to deciding whether state or federal law applies in these cases reflects a continuing difficulty of accommodating "the constitutional power of the states to regulate the relations among their citizens" on the one hand, and "the constitutional power of the federal government to determine how its courts are to be operated" on the other hand.[15]

Although it seems clear that *Erie* applies in non-diversity cases in which the source of the right sued upon is state law,[16] it is also evident that *Erie* is not always applicable in diversity cases, regardless of whether the issue is substantive or procedural. For instance, it may be that there is an overriding federal interest that compels national uniformity of rules, such as a case involving the appropriate rule for determining a bank's liability for guaranteeing a forged federal check;[17] whether a tortfeasor is liable to the United States for hospitalization of a soldier and loss of his services;[18] or the validity of a defense raised by a federal officer sued for allegedly committing libel in the course of his official duties.[19] In such cases, when the issue is controlled by federal law, common or otherwise, the result is binding on state as well as on federal courts.[20] As a result, notwithstanding Justice Louis Brandeis's oft-quoted statement that there is "no federal general common law,"[21] there are areas of law where "federal judges may appropriately craft the rule of decision."[22] Nonetheless, because legislative power is

[11] 518 U.S. 415 (1996).

[12] *Id.* at 428–31.

[13] *E.g.*, Guar. Tr. Co. v. York, 326 U.S. 99,108–09 (1945).

[14] *E.g.*, Byrd v. Blue Ridge Rural Elec. Coop., 356 U.S. 525 (1958).

[15] 19 Wright & Miller, Federal Practice and Procedure: jurisdiction and Related Matters § 4511 (3d. ed. Apr. 2021).

[16] *See* Maternally Yours v. Your Maternity Shop, 234 F.2d 538, 540 n.1 (2d Cir. 1956) (noting, in a case in which the court exercises supplemental jurisdiction over a state law unfair competition claim, that "the *Erie* doctrine applies, whatever the ground for federal jurisdiction, to any issue or claim which has its source in state law"). The contrary view was implied in *Levinson v. Deupree,* 345 U.S. 648, 651 (1953), and by Justice Robert Jackson in *D'Oench, Duhme & Co. v. FDIC,* 315 U.S. 447, 466–67, 471–72 (1942) (concurring opinion). *See* Wichita Royalty Co. v. City Nat'l Bank, 306 U.S. 103 (1939).

[17] Clearfield Tr. Co. v. United States, 318 U.S. 363 (1943). *See also* Nat'l Metro. Bank v. United States, 323 U.S. 454 (1945); *D'Oench, Duhme & Co.*, 315 U.S. 447; United States v. Standard Rice Co., 323 U.S. 106 (1944); United States v. Acri, 348 U.S. 211 (1955); Ivanhoe Irrigation Dist. v. McCracken, 357 U.S. 275 (1958); Bank of Am. Nat'l Tr. & Sav. Ass'n v. Parnell, 352 U.S. 29 (1956). *But see* United States v. Yazell, 382 U.S. 341 (1966); O'Melveny & Myers v. FDIC, 512 U.S. 79 (1994).

[18] United States v. Standard Oil Co., 332 U.S. 301 (1947). Federal law applies in maritime tort cases brought on the "law side" of the federal courts in diversity cases. Pope & Talbot v. Hawn, 346 U.S. 406 (1953).

[19] Howard v. Lyons, 360 U.S. 593 (1959). Matters concerned with foreign relations also are governed by federal law in diversity. Banco Nacional de Cuba v. Sabbatino, 376 U.S. 398 (1964). Federal common law also governs a government contractor defense in certain cases. Boyle v. United Techs. Corp., 487 U.S. 500 (1988).

[20] Free v. Bland, 369 U.S. 663 (1962); Yiatchos v. Yiatchos, 376 U.S. 306 (1964).

[21] *See* Erie R.R. v. Tompkins, 304 U.S. 64, 78 (1938).

[22] *See* Rodriguez v. FDIC, No. 18-1269, slip op. at 4 (U.S. Feb. 25, 2020).

vested in Congress, federal common law plays a "necessarily modest role"[23] under the Constitution; such common lawmaking must be "necessary to protect uniquely federal interests."[24]

ArtIII.S2.C1.17 Land Grants by Different States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Constitution allows federal courts to exercise jurisdiction over controversies "between Citizens of the same State claiming Lands under Grants of different States."[1] The provision has its roots in the Articles of Confederation. The Articles of Confederation did not create an independent federal Judiciary, but provided that Congress would be "the last resort on appeal" in "controversies concerning the private right of soil claimed under different grants of two or more states" and could appoint commissioners or judges to constitute a court to resolve such disputes.[2] An initial proposal from the Constitutional Convention's Committee of Detail would have adopted a similar approach and granted the Senate the authority to resolve certain disputes, including "Controversies concerning Lands claimed under different Grants of two or more States."[3] That proposal was defeated in the Convention.[4] The delegates later added the current clause to the jurisdiction of the Federal Judiciary without reported debate.[5]

Congress has implemented the clause via legislation, vesting jurisdiction in the federal district courts.[6] The provision has produced few Supreme Court cases, and none since the early twentieth century. The Court has explained that the constitutional provision and its implementing statute apply only to disputes between citizens of the same state.[7] With respect to the reference to land grants "of different States," the Court has held that the provision applies even if one of the states at issue was previously part of the other.[8]

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[23] *Id.*

[24] Texas Indus., Inc. v. Radcliff Materials, Inc., 451 U.S. 630, 640 (1981) (quoting *Banco Nacional de Cuba*, 376 U.S. at 426) (internal quotation marks omitted); *see also, e.g.*, *Rodriguez*, 140 S. Ct. at 717–18 (concluding that a federal common law rule inappropriately developed by the lower courts concerning allocation of a refund to an affiliated group of corporations did not implicate any significant federal interests and did not necessitate discarding the application of state law with respect to the tax dispute).

[1] U.S. Const. art III, § 2, cl. 1.

[2] Articles of Confederation, art. IX.

[3] 2 Records of the Federal Convention of 1787, at 162–63, 171, 184–85 (Max Farrand ed., 1911).

[4] *Id.* at 400–01.

[5] *Id.* at 431–32.

[6] 28 U.S.C. § 1354. Earlier versions of the statute vested jurisdiction in the now-defunct federal circuit courts. *See* U.S. v. Sayward, 160 U.S. 493 (1895).

[7] Stevenson v. Fain, 195 U.S. 165 (1904). Disputes between citizens of different states may instead fall within the federal courts' diversity jurisdiction. *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

[8] Town of Pawlet v. Clark, 13 U.S. 292 (1815); Colson v. Lewis, 15 U.S. 377 (1817).

ArtIII.S2.C1.18 Foreign States or Citizens

ArtIII.S2.C1.18.1 Controversies Between a State or its Citizens and Foreign States or Citizens

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

Article III allows federal courts to exercise jurisdiction over controversies "between a State, or the Citizens thereof, and foreign States, Citizens or Subjects."[1] However, two post-ratification developments have limited the scope of federal court jurisdiction under this provision. First, the Supreme Court has applied the law of nations to hold that foreign states are generally immune from suit in U.S. federal courts without their consent.[2] That immunity extends to suits brought by American states against foreign nations.[3] Second, the Court has construed the Eleventh Amendment to bar suits by foreign states against a state of the United States.[4]

In addition to the foregoing limits, the grants of jurisdiction in Article III, Section 2, Clause 1 are not self-executing. Instead, the constitutional text sets the maximum extent of federal court jurisdiction and leaves Congress discretion to determine how much of that jurisdiction to grant.[5] Congress has always granted the federal courts less expansive jurisdiction than the Constitution authorizes, including with respect to cases involving foreign states or citizens. In 28 U.S.C. § 1332, Congress granted federal courts jurisdiction over disputes where "the matter in controversy" exceeds $75,000 between "citizens of a State and citizens or subjects of a foreign state" (except claims between citizens of a state and lawful permanent residents of the same state) or "a foreign state . . . as plaintiff and citizens of a State or of different States."[6]

Article III does not provide for federal court jurisdiction over disputes between one or more foreign states or their subjects to which no U.S. state or citizen is a party. However, suits that fall outside the scope of the constitutional and statutory grants of jurisdiction over suits

[1] U.S. Const. art. III, § 2, cl. 1.

[2] The Schooner Exchange v. McFaddon, 11 U.S. (7 Cr.) 116 (1812); Berizzi Bros. Co. v. S.S. Pesaro, 271 U.S. 562 (1926); Compania Espanola v. The Navemar, 303 U.S. 68 (1938); Guaranty Trust Co. v. United States, 304 U.S. 126, 134 (1938).

[3] Principality of Monaco v. Mississippi, 292 U.S. 313, 330 (1934).

[4] *Id.*

[5] This is true of all constitutional grants of federal court jurisdiction except for the limited grant of original jurisdiction to the Supreme Court. *Compare* ArtIII.S2.C1.11.3 Constitutional and Statutory Grants of Federal Question Jurisdiction *with* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction; *see generally* ArtIII.S1.6.1 Overview of Relationship Between Federal and State Courts.

[6] 28 U.S.C. §§ 1332(a)(2), 1332(a)(4). Another provision of the statute, 28 U.S.C. § 1332(a)(1), empowers the federal courts to hear "diversity" cases between citizens of different states. *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

between a state or its citizens and foreign states or citizens may proceed in federal court if they fall within another grant of Article III jurisdiction, for example because they involve questions arising under a federal law or treaty.[7]

ArtIII.S2.C1.18.2 Suits Involving Foreign States

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Constitution authorizes federal courts to hear certain cases involving foreign states, but does not expressly provide foreign states a right of access to U.S. federal courts. Nonetheless, the Supreme Court has held that "[a] foreign sovereign, as well as any other foreign person, who has a demand of a civil nature against any person here, may prosecute it in our courts."[1] The Court based that holding in part on general international law principles of comity[2] and in part on the fact that "[t]he Constitution expressly extends the judicial power to controversies between a State, or citizens thereof, and *foreign States*, citizens, or subjects, without reference to the subject-matter of the controversy."[3]

While foreign states may sue in U.S. court, the Supreme Court has repeatedly applied the doctrine of sovereign immunity to hold that a foreign state cannot be sued in federal court unless it consents to the suit.[4] The doctrine of foreign sovereign immunity is not rooted in the text of the Constitution, but instead derives from "the principle of comity."[5] Foreign sovereign immunity is not absolute. For instance, the Court has held that once a foreign government avails itself of the privilege of suing in the courts of the United States, it subjects itself to the procedures and rules of decision governing those courts and accepts whatever liabilities the court may decide to be a reasonable incident of bringing the suit.[6] Thus, the Court has held that a foreign nation instituting a suit in federal court cannot invoke sovereign immunity as a defense to a counterclaim arising from of the same transaction.[7] The Court has extended that holding to deny a defense of sovereign immunity on a counterclaim that was not related to the

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[7] Romero v. International Terminal Operating Co., 358 U.S. 354 (1959). The Foreign Sovereign Immunities Act of 1976, Pub. L. No. 94–538, 90 Stat. 2891, provides for jurisdiction over suits by and against foreign states and also appears to comprehend suits by an alien against a foreign state that would be beyond the constitutional grant discussed in this essay. However, the Court has construed the Act as creating a species of federal question jurisdiction. Verlinden B. V. v. Central Bank of Nigeria, 461 U.S. 480 (1983).

[1] The Sapphire, 78 U.S. (11 Wall.) 164, 167 (1871); *see also* Pfizer, Inc. v. Government of India, 434 U.S. 308 (1978).

[2] *Id.* (explaining that to deny a sovereign the privilege of access to court "would manifest a want of comity and friendly feeling").

[3] *Id.*

[4] The Schooner Exchange v. McFaddon, 11 U.S. (7 Cr.) 116 (1812); Berizzi Bros. Co. v. S.S. Pesaro, 271 U.S. 562 (1926); Principality of Monaco v. Mississippi, 292 U.S. 313, 330 (1934); Compania Espanola v. The Navemar, 303 U.S. 68 (1938); Guaranty Trust Co. v. United States, 304 U.S. 126, 134 (1938).

[5] *Guaranty Trust Co.*, 304 U.S. at 134.

[6] *Id.*

[7] *Id.*

sovereign's initial claim but that was limited to the amount of the sovereign's claim, so it functioned as a setoff to the non-sovereign defendant's liability.[8]

The political branches of the federal government, rather than the courts, are primarily responsible for determining when a foreign state may sue in federal court or claim sovereign immunity.[9] Only a government that has been recognized by the political branches as the authorized government of the foreign state may maintain a suit on behalf of a national sovereign in the courts of the United States.[10] Likewise, as the responsible agency for the conduct of foreign affairs, the State Department is generally responsible for suggesting to the courts that a sovereign be granted immunity from a particular suit.[11]

ArtIII.S2.C1.18.3 Limits on Jurisdiction

Article III, Section 2, Clause 1:

> *The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.*

The Supreme Court has narrowly construed the grant of jurisdiction over suits between a state or its citizens and foreign states or citizens. As in cases involving diversity jurisdiction,[1] suits brought in federal court under this provision must clearly state in the record the citizenship of the parties. In 1809, the Supreme Court ruled that a federal court could not take jurisdiction of a case where the record described the plaintiffs as aliens and subjects of the United Kingdom, while the defendants were described as "late of the district of Maryland" but were not designated as citizens of Maryland.[2] Twenty years later, the Court narrowly construed Section 11 of the Judiciary Act of 1789, which granted the federal courts jurisdiction over cases where an alien was a party, in order to keep it within the limits of this clause.[3] The Court held that the judicial power did not apply to private suits in which an alien is a party, unless a citizen is the adverse party.[4] The Court extended this interpretation in 1870, holding that if there is more than one plaintiff or defendant in a case, each plaintiff must be competent

[8] National Bank v. Republic of China, 348 U.S. 356, 361 (1955). In addition, certain of the benefits extending to a domestic sovereign do not extend to a foreign sovereign suing in the courts of the United States. For instance, while the United States and its member states are exempt from the operation of the statute of limitations, a foreign sovereign is not. Nor is a foreign sovereign exempt from costs or from giving discovery. *Guaranty Trust Co.,* 304 U.S. at 135, 137.

[9] Zivotofsky *ex rel.* Zivotofsky v. Kerry, 576 U.S. 1 (2015).

[10] *Guaranty Trust Co.,* 304 U.S. at 137 (citing Jones v. United States, 137 U.S. 202, 212 (1890)); Matter of Lehigh Valley R.R., 265 U.S. 573 (1924). Whether a government is to be regarded as the legal representative of a foreign state a political question. *See* ArtIII.S2.C1.9.6 Foreign Affairs as a Political Question.

[11] *Ex parte* Peru, 318 U.S. 578, 589 (1943) (distinguishing Compania Espanola v. The Navemar, 303 U.S. 68 (1938), which held that where the Executive Department neither recognizes nor disallows the claim of immunity, the court is free to examine that question for itself).

[1] Federal diversity cases involve disputes between citizens of different states. *See* ArtIII.S2.C1.16.1 Overview of Diversity Jurisdiction.

[2] Hodgson & Thompson v. Bowerbank, 9 U.S. (5 Cr.) 303 (1809).

[3] Jackson v. Twentyman, 27 U.S. (2 Pet.) 136 (1829).

[4] Romero v. International Terminal Operating Co., 358 U.S. 354 (1959).

to sue and each defendant must be liable to suit.[5] However, the Court has held that these rules do not preclude a suit between citizens of the same state if the plaintiffs are merely nominal parties and are suing on behalf of an alien.[6]

The constitutional grant of jurisdiction over suits between a state or its citizens and foreign states or citizens does not apply to suits involving Indian tribes. In *Cherokee Nation v. Georgia*, Chief Justice John Marshall concluded that the Cherokee Nation was "a state" in the sense that it was "a distinct political society, separated from others, capable of managing its own affairs and governing itself."[7] However, he concluded, the tribe was not "a state of the union"; nor was it a "foreign state" within the meaning of Article III's text, since it was a part of the United States and dependent upon it.[8]

Clause 2—Supreme Court Jurisdiction

ArtIII.S2.C2.1 Overview of Supreme Court Jurisdiction

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

Article III, Section 2, Clause 2 of the Constitution defines the Supreme Court's jurisdiction. The clause creates two types of Supreme Court jurisdiction that apply to different categories of cases. First, the clause grants the Court original jurisdiction over "Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party."[1] The constitutional grant of original jurisdiction over such cases means that they may be filed directly in the Supreme Court rather than reaching the Court on appeal from another court. The Supreme Court has held that its original jurisdiction flows directly from the Constitution and is therefore self-executing without further action by Congress.[2]

Article III, Section 2, Clause 2 also provides for Supreme Court appellate jurisdiction over all other cases subject to federal court jurisdiction, "with such Exceptions, and under such Regulations as the Congress shall make."[3] Known as the "Exceptions Clause," this provision allows the Court to review both decisions of the inferior federal courts and final judgments of state courts, if authorized by Congress.[4] The Supreme Court has generally indicated that the constitutional grant of appellate jurisdiction is not self-executing—meaning that Congress must enact legislation to empower the Court to hear cases on appeal—and Congress has exercised its power to implement the provision by granting the Supreme Court appellate jurisdiction over a subset of the cases included in the constitutional grant. Congress and the

[5] Coal Co. v. Blatchford, 78 U.S. (11 Wall.) 172 (1871). *But see* Lacassagne v. Chapuis, 144 U.S. 119 (1892) (holding that a lower federal court had jurisdiction over a proceeding to impeach its former decree, although the parties challenging the prior judgment were both aliens).

[6] Browne v. Strode, 9 U.S. (5 Cr.) 303 (1809).

[7] 30 U.S. (5 Pet.) 1, 16 (1831).

[8] *Id.* at 16–20.

[1] U.S. Const. art. III, § 2, cl. 2.

[2] *See* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction; ArtIII.S2.C2.3 Original Cases Affecting Ambassadors, Public Ministers, and Consuls.

[3] U.S. Const. art. III, § 2, cl. 2.

[4] *See* ArtIII.S2.C2.4 Supreme Court Appellate Jurisdiction; ArtIII.S2.C2.5 Supreme Court Review of State Court Decisions; ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

Court have also construed the Exceptions Clause to provide Congress significant control over the Court's appellate jurisdiction and proceedings.[5]

ArtIII.S2.C2.2 Supreme Court Original Jurisdiction

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

Article III, Section 2, Clause 2 of the Constitution grants the Supreme Court "original Jurisdiction" over "all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party."[1] When the Court has original jurisdiction over a case, it means that a party may commence litigation in the Supreme Court in the first instance rather than reaching the high court on appeal from a state court or an inferior federal court.

From the beginning, the Supreme Court has indicated that its original jurisdiction flows directly from the Constitution and is therefore self-executing without further action by Congress.[2] In *Chisholm v. Georgia*, the Court considered an action of assumpsit against the State of Georgia by a citizen of another state.[3] Congress in Section 3 of the Judiciary Act of 1789 had granted the Court original jurisdiction in suits between a state and citizens of another state, but had not authorized actions of assumpsit in such cases or prescribed forms of process for the exercise of original jurisdiction.[4] The Court sustained its jurisdiction and its power to provide forms of process and rules of procedure in the absence of congressional enactments.[5] In 1861, Chief Justice Roger Taney reviewed applicable precedents and stated that, in all cases where the Constitution grants the Supreme Court original jurisdiction, the Court has authority "to exercise it without further act of Congress to regulate its powers or confer jurisdiction, and that the court may regulate and mould the process it uses in such manner as in its judgment will best promote the purposes of justice."[6]

Under Supreme Court doctrine and long-standing congressional practice, the Court's original jurisdiction is not necessarily exclusive. In some cases, Congress has granted the lower federal courts concurrent jurisdiction, meaning that cases subject to original Supreme Court jurisdiction may either be filed directly in the Supreme Court or in one of the lower federal courts. Chief Justice John Marshall appears to have assumed in *Marbury v. Madison* that the Court had exclusive jurisdiction of cases within its original jurisdiction.[7] However, beginning

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[5] *See* ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction.

[1] U.S. CONST. art. III, § 2, cl. 2.

[2] But, in Section 13 of the Judiciary Act of 1789, 1 Stat. 80, Congress purported to grant the Court original jurisdiction. The statutory conveyance still exists today but does not encompass all cases included in the Constitutional grant of original jurisdiction. 28 U.S.C. § 1251.

[3] 2 U.S. (2 Dall.) 419 (1793). In an earlier case, the question of jurisdiction was not raised. Georgia v. Brailsford, 2 U.S. (2 Dall.) 402 (1792).

[4] 1 Stat. 80.

[5] The backlash of state sovereignty sentiment resulted in the proposal and ratification of the Eleventh Amendment. The Amendment did not affect the direct flow of original jurisdiction to the Court, although cases to which states were parties were now limited to states as party plaintiffs, to two or more states disputing, or to United States suits against states.

[6] Kentucky v. Dennison, 65 U.S. (24 How.) 66, 98 (1861).

[7] Marbury v. Madison, 5 U.S. (1 Cr.) 137, 174 (1803).

with the Judiciary Act of 1789, Congress gave the inferior federal courts concurrent jurisdiction in some such cases.[8] The federal circuit courts sustained the grant of jurisdiction in early cases,[9] and the Supreme Court upheld concurrent jurisdiction in the nineteenth century.[10] In another case from the late nineteenth century, the Court relied on the first Congress's interpretation of Article III in declining original jurisdiction of an action by a state to enforce a judgment for a pecuniary penalty awarded by one of its own courts.[11] Noting that Section 13 of the Judiciary Act referred to "controversies of a civil nature," Justice Horace Gray declared that it "was passed by the first Congress assembled under the Constitution, many of whose members had taken part in framing that instrument, and is contemporaneous and weighty evidence of its true meaning."[12]

Although Congress may allow the lower federal courts to hear cases subject to Supreme Court original jurisdiction, the legislature can neither expand nor contract the constitutional grant of original jurisdiction to the Court. Thus, in *Marbury*, Chief Justice Marshall invalidated a provision of Section 13 of the 1789 Act because he interpreted the statute to give the Court power to issue a writ of mandamus in an original proceeding, which the Constitution did not authorize.[13] In so holding, the Chief Justice did not defer to the constitutional judgment of the Congress that enacted the 1789 Act.

Although the Supreme Court has held that Congress lacks the power to expand or contract the Court's original jurisdiction, the Court has assumed significant latitude to interpret the jurisdictional grant itself. In some cases, such as *Missouri v. Holland*,[14] the Court has adopted a liberal construction of its original jurisdiction, but the more usual view is that "our original jurisdiction should be invoked sparingly."[15] The Court has thus held that original jurisdiction "is limited and manifestly to be sparingly exercised, and should not be expanded by construction."[16] The Court has emphasized that its exercise of original jurisdiction is not obligatory but discretionary, to be determined on a case-by-case basis on grounds of practical necessity.[17] The Court has explained that it will exercise original jurisdiction "only in appropriate cases."[18] It has further stated that "the question of what is appropriate concerns of

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[8] In Section 3 of the 1789 Act. The present division is in 28 U.S.C. § 1251.

[9] United States v. Ravara, 2 U.S. (2 Dall.) 297 (C.C. Pa. 1793).

[10] Rhode Island v. Massachusetts, 37 U.S. (12 Pet.) 657 (1838); Bors v. Preston, 111 U.S. 252 (1884); Ames v. Kansas *ex rel.* Johnston, 111 U.S. 449 (1884). Such suits could be brought and maintained in state courts as well. Plaquemines Tropical Fruit Co. v. Henderson, 170 U.S. 511 (1898); Ohio *ex rel.* Popovici v. Agler, 280 U.S. 379 (1930).

[11] Wisconsin v. Pelican Ins. Co., 127 U.S. 265 (1888).

[12] 127 U.S. at 297. *See also* the dictum in *Cohens v. Virginia,* 19 U.S. (6 Wheat.) 264, 398–99 (1821); Chisholm v. Georgia, 2 U.S. (2 Dall.) 419, 431–32 (1793).

[13] Marbury v. Madison, 5 U.S. (1 Cr.) 137 (1803). The Chief Justice declared that "a negative or exclusive sense" had to be given to the affirmative enunciation of the cases to which original jurisdiction extends. *Id.* at 174. Other cases have since followed this exclusive interpretation. *Ex parte* Bollman, 8 U.S. (4 Cr.) 75 (1807); New Jersey v. New York, 30 U.S. (5 Pet.) 284 (1831); *Ex parte* Barry, 43 U.S. (2 How.) 65 (1844); *Ex parte* Vallandigham, 68 U.S. (1 Wall.) 243, 252 (1864); *Ex parte* Yerger, 75 U.S. (8 Wall.) 85, 98 (1869). In *Ex parte Levitt*, 302 U.S. 633 (1937), the Court was asked to unseat Justice Black on the ground that his appointment violated Article I. § 6, cl. 2. Although the Court rejected the application, the Court did not point out that it was being asked to assume original jurisdiction in violation of *Marbury v. Madison*.

[14] 252 U.S. 416 (1920). *See also* South Carolina v. Katzenbach, 383 U.S. 301 (1966), and Oregon v. Mitchell, 400 U.S. 112 (1970).

[15] Utah v. United States, 394 U.S. 89, 95 (1968).

[16] California v. Southern Pacific Co., 157 U.S. 229, 261 (1895). The Court has frequently used the word "sparingly" in this context. *E.g.*, Wyoming v. Oklahoma, 502 U.S. 437, 450 (1992); Maryland v. Louisiana, 451 U.S. 725, 739 (1981); United States v. Nevada, 412 U.S. 534, 538 (1973).

[17] Texas v. New Mexico, 462 U.S. 554, 570 (1983).

[18] Illinois v. City of Milwaukee, 406 U.S. 91, 93 (1972). In this case, and in *Washington v. General Motors Corp.,* 406 U.S. 109 (1972), and *Ohio v. Wyandotte Chemicals Corp.,* 401 U.S. 493 (1971), the Court declined to permit adjudication

course the seriousness and dignity of the claim; yet beyond that it necessarily involves the availability of another forum where there is jurisdiction over the named parties, where the issues tendered may be litigated, and where appropriate relief may be had."[19] Although the Court has exercised its original jurisdiction sparingly, where claims are of sufficient "seriousness and dignity" and resolution by the Judiciary is of substantial concern, the Court will hear them.[20] In cases subject to concurrent original and appellate jurisdiction, the Supreme Court has discretion to decline to exercise original jurisdiction and instead require that a case first proceed through the lower federal courts.[21]

ArtIII.S2.C2.3 Original Cases Affecting Ambassadors, Public Ministers, and Consuls

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

The Supreme Court's original jurisdiction extends in part to cases affecting ambassadors and consuls. In addition to the general legal considerations relation to original jurisdiction discussed in the preceding essay, the Court has considered several legal questions specific to this grant of jurisdiction.[1] One question is whether the Court possesses original jurisdiction over cases where an ambassador or consul merely possesses an indirect interest in the outcome of the proceeding or whether such a person must be a party in interest. In *United States v. Ortega*, the Court ruled that a prosecution for violating international law and the laws of the United States by "offering violence" to a foreign minister was not a suit "affecting" the minister but rather a public prosecution for vindication of the law of nations and the laws of the United States.[2]

Another question is whether the Supreme Court can determine the official status of a person claiming to be an ambassador or consul. The Court has refused to review the decision of

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of environmental pollution cases within its original jurisdiction because the nature of the cases required the resolution of complex, novel, and technical factual questions not suitable for resolution by the Supreme Court in the first instance, but which could be brought in the lower federal courts. The Court has not barred all such cases, however. Vermont v. New York, 406 U.S. 186 (1972) (granting leave to file complaint). In other instances, notably involving "political questions," *cf.* Massachusetts v. Mellon, 262 U.S. 447 (1923), the Court has simply refused permission for parties to file bills of complaint without hearing them on the issue or producing an opinion. *E.g.*, Massachusetts v. Laird, 400 U.S. 886 (1970) (constitutionality of United States action in Indochina); Delaware v. New York, 385 U.S. 895 (1966) (constitutionality of electoral college under one-man, one-vote rule).

[19] *Id.* at 93–94.

[20] Wyoming v. Oklahoma, 502 U.S. 437, 451 (1982). The principles are the same whether the Court's jurisdiction is exclusive or concurrent. Texas v. New Mexico, 462 U.S. 554 (1983); California v. West Virginia, 454 U.S. 1027 (1981); Arizona v. New Mexico, 425 U.S. 794 (1976). *Cf.* Florida v. Georgia, 138 S. Ct. 2502, 2509 (2018) ("'This Court has recognized for more than a century its inherent authority, as part of the Constitution's grant of original jurisdiction, to equitably apportion interstate streams between States.' But we have long noted our 'preference' that States 'settle their controversies by mutual accommodation and agreement.'" (quoting Kansas v. Nebraska, 135 S. Ct. 1042, 1052 (2015); Arizona v. California, 373 U.S. 546, 564 (1963))).

[21] *See, e.g.*, Ohio v. Wyandotte Chemicals Corp., 401 U.S. 493 (1971); Georgia v. Pennsylvania R.R., 324 U.S. 439 (1945); Massachusetts v. Missouri, 308 U.S. 1 (1939).

[1] For discussion of other issues related to original jurisdiction, including the question whether Congress can vest concurrent jurisdiction in the Supreme Court and lower federal courts, see ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[2] 24 U.S. (11 Wheat.) 467 (1826).

the Executive Branch with respect to the public character of a person claiming to be a public minister and has laid down the rule that it has the right to accept a certificate from the Department of State on such a question.[3]

A third question is whether the grant of original jurisdiction extends to cases affecting ambassadors and consuls accredited by the United States to foreign governments. The Court has answered that question in the negative, holding that the clause applies only to persons accredited to the United States by foreign governments.[4]

In matters of particular delicacy, such as suits under the law of nations against ambassadors and public ministers or their servants, Congress until recently made the original jurisdiction of the Supreme Court exclusive of that of other courts.[5] By accepting Congress's distribution of exclusive and concurrent original jurisdiction,[6] the Court has tacitly sanctioned the legislature's power to make such jurisdiction exclusive or concurrent as it may choose.

ArtIII.S2.C2.4 Supreme Court Appellate Jurisdiction

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

Most Supreme Court cases fall within the Court's appellate jurisdiction rather than its original jurisdiction.[1] Congress has authorized Supreme Court review of decisions of the state courts and lower federal courts through two procedural mechanisms: appeals and petitions for a writ of certiorari.[2] The Court has discretion to grant or deny review via a petition for a writ of certiorari; by contrast, the Court is required to exercise jurisdiction over cases properly before it on direct appeal. Over time, Congress has limited the types of cases subject to direct appeal to the Supreme Court, rendering more cases subject to discretionary review via certiorari.[3] The Court has also issued rulings that limit the scope of direct appellate review and thus reduce the attendant burden on the Court.

For the first century of the Court's existence, most of its cases were direct appeals. Early decisions of the Supreme Court emphasized the mandatory nature of appellate review. Chief Justice John Marshall first implied that the Court is obligated to take and decide cases meeting jurisdictional standards in *Marbury v. Madison*.[4] The Chief Justice explained in greater detail in *Cohens v. Virginia*:

> The Judiciary cannot, as the legislature may, avoid a measure because it approaches the confines of the constitution. We cannot pass it by because it is doubtful. With whatever doubts, with whatever difficulties, a case may be attended, we must decide it,

[3] *In re* Baiz, 135 U.S. 403, 432 (1890).

[4] *Ex parte* Gruber, 269 U.S. 302 (1925).

[5] 1 Stat. 80–81 (1789). Since 1978, the Court's jurisdiction has been original but not exclusive. Pub. L. No. 95-393, § 8(b), 92 Stat. 810, 28 U.S.C. § 1251(b)(1).

[6] *See* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[1] For discussion of the Court's original jurisdiction, see ArtIII.S2.C2.2 Supreme Court Original Jurisdiction; ArtIII.S2.C2.3 Original Cases Affecting Ambassadors, Public Ministers, and Consuls.

[2] 28 U.S.C. §§ 1253–1257.

[3] *See, e.g.*, Act of June 27, 1988, Pub. L. No. 100-352, § 3, 102 Stat. 662.

[4] 5 U.S. (1 Cr.) 137 (1803).

> if it be brought before us. We have no more right to decline the exercise of jurisdiction which is given, than to usurp that which is not given. The one or the other would be treason to the constitution.[5]

The Supreme Court has repeatedly stated that courts only declare what the law is in specific cases[6] and are without will or discretion to make or change the law.[7] The early Court's statements that it could not decline to hear cases that fell within its jurisdiction rest on similar grounds as other Court holdings that embraced mandatory limitations of the judicial process, such as justiciability requirements that limit the federal courts' jurisdiction to certain cases and controversies.[8]

The broad grant of appellate jurisdiction in the 1789 Act and the Supreme Court's determination that the exercise of such jurisdiction was mandatory eventually caused overcrowding on the Supreme Court's docket. In 1891, among other reforms, Congress enacted legislation replacing mandatory Supreme Court direct review with the option to petition for a writ of certiorari in many types of cases.[9] In addition, while some modern cases echo Chief Justice Marshall's earlier rulings discussed above,[10] the Court has also adopted several discretionary rules that limit its exercise of judicial review.[11] The Court has applied prudential theorems limiting the scope of its review more or less strictly on a case-by-case basis.[12]

ArtIII.S2.C2.5 Supreme Court Review of State Court Decisions

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

The Supreme Court's appellate jurisdiction includes the authority to review decisions of both lower federal courts and state courts.[1] The current statute authorizing Supreme Court

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[5] 19 U.S. (6 Wheat.) 264, 404, (1821).

[6] *See, e.g.*, Justice George Sutherland in *Adkins v. Children's Hospital,* 261 U.S. 525, 544 (1923), and Justice Owen Roberts in *United States v. Butler,* 297 U.S. 1, 62 (1936).

[7] "Judicial power, as contradistinguished from the powers of the law, has no existence. Courts are the mere instruments of the law, and can will nothing." Osborn v. Bank of the United States, 22 U.S. (9 Wheat.) 738, 866 (1824) (Marshall, C.J.). *See also* Justice Roberts in *United States v. Butler,* 297 U.S. 1, 62–63 (1936).

[8] The political question doctrine is another limitation arising in part out of inherent restrictions and in part from prudential considerations. For a discussion of limitations utilizing both stands, *see* Ashwander v. TVA, 297 U.S. 288, 346–56 (1936) (Brandeis, J., concurring). *See generally*, ArtIII.S2.C1.2 Historical Background on Cases or Controversies Requirement.

[9] Act of March 3, 1891, ch. 517, 26 Stat. 826. In 1988, Congress enacted legislation that replaced direct appeals with discretionary certiorari petitions in almost all remaining circumstances. Act of June 27, 1988, Pub. L. No. 100-352, § 3, 102 Stat. 662. *But see*, *e.g.*, 28 U.S.C. § 1253 (authorizing direct appeal to the Supreme Court of decisions of a three-judge district court).

[10] Powell v. McCormack, 395 U.S. 486, 548–49 (1969); Baker v. Carr, 369 U.S. 186, 211 (1962); Zwickler v. Koota, 389 U.S. 241, 248 (1967).

[11] *See*, *e.g.*, Zucht v. King, 260 U.S. 174 (1922) (holding that the Court may decline to hear an appeal that does not present a substantial federal question).

[12] *See* Justice Louis Brandeis' concurring opinion in *Ashwander v. TVA,* 297 U.S. 288, 346 (1936). *And contrast* A. Bickel, *supra* note 3, at 111–198, *with* Gunther, *The Subtle Vices of the "Passive Virtues": A Comment on Principle and Expediency in Judicial Review*, 64 Colum. L. Rev. 1 (1964).

[1] For additional discussion of the relationship between state and federal courts, see ArtIII.S1.6.1 Overview of Relationship Between Federal and State Courts.

review of state court decisions allows the Court to review the judgments of "the highest court of a State in which a decision could be had."[2] This is often the state's court of last resort, but it may be an intermediate appellate court or a trial court, if its judgment is final under state law and cannot be reviewed by any state appellate court.[3] The Court has held that it may only review final state court judgments. Such a judgment "must be subject to no further review or correction in any other state tribunal; it must also be final as an effective determination of the litigation and not of merely interlocutory or intermediate steps therein. It must be the final word of a final court."[4] The object of this rule is to avoid piecemeal interference with state court proceedings; it promotes harmony by preventing federal intervention until the state court efforts are finally resolved.[5] For similar reasons, the Court requires that a party seeking to litigate a federal constitutional issue on appeal from a state court judgment must have raised the issue in state court at an appropriate time and with sufficient precision to allow the state court to consider it.[6]

When the judgment of a state court rests on an adequate, independent ground based on state law, the Court will not review any federal question presented, even if the state court decided the federal question incorrectly.[7] The Court has stated that the reason for this rule is "obvious" and "is found in the partitioning of power between the state and Federal judicial systems and in the limitations of our own jurisdiction."[8] The Court further explained, "Our only power over state judgments is to correct them to the extent that they incorrectly adjudge federal rights. . . . We are not permitted to render an advisory opinion, and if the same judgment would be rendered by the state court after we corrected its views of Federal laws, our review could amount to nothing more than an advisory opinion."[9] Thus, when deciding whether to review a state court judgment, the Court faces two interrelated decisions: (1) whether the state court judgment is based upon a nonfederal ground and (2) whether the nonfederal ground is adequate to support the state court judgment. It is the responsibility of the Court to determine for itself the answer to both questions.[10]

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[2] 28 U.S.C. § 1257(a). *See* R. Stern & E. Gressman, Supreme Court Practice ch. 3 (6th ed. 1986).

[3] Grovey v. Townsend, 295 U.S. 45, 47 (1935); Talley v. California, 362 U.S. 60, 62 (1960); Thompson v. City of Louisville, 362 U.S. 199, 202 (1960); Metlakatla Indian Community v. Egan, 363 U.S. 555 (1960); Powell v. Texas, 392 U.S. 514, 516, 517 (1968); Koon v. Aiken, 480 U.S. 943 (1987). In *Cohens v. Virginia,* 19 U.S. (6 Wheat.) 264 (1821), the judgment reviewed was that of the Quarterly Session Court for the Borough of Norfolk, Virginia.

[4] Market Street Ry. v. Railroad Comm'n, 324 U.S. 548, 551 (1945). *See also* San Diego Gas & Electric Co. v. City of San Diego, 450 U.S. 621 (1981); Flynt v. Ohio, 451 U.S. 619 (1981); Minnick v. California Dep't of Corrections, 452 U.S. 105 (1981); Florida v. Thomas, 532 U.S. 774 (2001). The Court has developed a series of exceptions permitting review when the federal issue in the case has been finally determined but there are still proceedings to come in the lower state courts. Cox Broadcasting Corp. v. Cohn, 420 U.S. 469, 476–487 (1975). *See also* Fort Wayne Books, Inc. v. Indiana, 489 U.S. 46 (1989); Duquesne Light Co. v. Barasch, 488 U.S. 299, 304 (1989); NAACP v. Claiborne Hardware Co., 458 U.S. 886, 907 n.42 (1982).

[5] Republic Natural Gas Co. v. Oklahoma, 334 U.S. 62, 67–69 (1948); Radio Station WOW v. Johnson, 326 U.S. 120, 123–24 (1945).

[6] New York *ex rel.* Bryant v. Zimmerman, 278 U.S. 63, 67 (1928); *See also* Bankers Life & Casualty Co. v. Crenshaw, 486 U.S. 71, 77 (1988); Webb v. Webb, 451 U.S. 493, 501 (1981). The same rule applies on habeas corpus petitions. *E.g.*, Picard v. Connor, 404 U.S. 270 (1972).

[7] Murdock v. City of Memphis, 87 U.S. (20 Wall.) 590 (1875); Black v. Cutter Laboratories, 351 U.S. 292 (1956); Wilson v. Loew's, Inc., 355 U.S. 597 (1958).

[8] Herb v. Pitcairn, 324 U.S. 117, 125–26 (1945). Whereas declining to review judgments of state courts that rest on an adequate and independent determination of *state* law protects the sovereignty of states, the Court has emphasized that review of state court decisions that invalidate state laws based on interpretations of *federal* law, "far from *undermining* state autonomy, is the only way to *vindicate* it" because a correction of a state court's federal errors necessarily returns power to the state government. Kansas v. Carr, 136 S. Ct. 633, 641 (2016) (quoting Kansas v. Marsh, 548 U.S. 163, 184 (2006) (Scalia, J., concurring)).

[9] *Id.* For additional discussion of advisory opinions, see ArtIII.S2.C1.4.1 Overview of Advisory Opinions.

[10] *E.g.*, Howlett v. Rose, 496 U.S. 356, 366 (1990); NAACP v. Alabama *ex rel.* Patterson, 357 U.S. 449, 455 (1958).

ArtIII.S2.C2.5
Supreme Court Review of State Court Decisions

The first question, whether a state court judgment is based on a nonfederal ground, may arise in several factual situations. A state court may have based its decision on two grounds, one federal and one nonfederal.[11] Alternatively, a state court may have based its decision solely on a nonfederal ground, but the federal ground may have been clearly raised.[12] In other cases, both federal and nonfederal grounds may have been raised but the state court judgment is ambiguous or is without a written opinion stating the ground relied on.[13] Or the state court may have decided the federal question although it could have based its ruling on an adequate, independent nonfederal ground.[14] For the Supreme Court to review a state court decision, it is necessary that it appear from the record that a federal question was presented, that the disposition of that question was necessary to the determination of the case, and that the federal question was actually decided or that the judgment could not have been rendered without deciding it.[15]

Several factors affect the answer to the second question, whether the nonfederal ground is adequate to support the decision. In order to preclude Supreme Court review, the nonfederal ground must be broad enough, without reference to the federal question, to sustain the state court judgment;[16] it must be independent of the federal question;[17] and it must be tenable.[18] Rejection of a litigant's federal claim by the state court on state procedural grounds, such as failure to tender the issue at the appropriate time, will ordinarily preclude Supreme Court review as an adequate independent state ground,[19] so long as the local procedure does not discriminate against raising federal claims and has not been used to stifle a federal claim or to evade vindication of federal rights.[20]

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[11] Fox Film Corp. v. Muller, 296 U.S. 207 (1935); Cramp v. Board of Public Instruction, 368 U.S. 278 (1961).

[12] Wood v. Chesborough, 228 U.S. 672, 676–80 (1913).

[13] Lynch v. New York *ex rel.* Pierson, 293 U.S. 52, 54–55 (1934); Williams v. Kaiser, 323 U.S. 471, 477 (1945); Durley v. Mayo, 351 U.S. 277, 281 (1956); Klinger v. Missouri, 80 U.S. (13 Wall.) 257, 263 (1872); *cf.* Department of Mental Hygiene v. Kirchner, 380 U.S. 194 (1965).

[14] Poafpybitty v. Skelly Oil Co., 390 U.S. 365, 375–376 (1968).

[15] Southwestern Bell Tel. Co. v. Oklahoma, 303 U.S. 206 (1938); Raley v. Ohio, 360 U.S. 423, 434–437 (1959). When there is uncertainty about what the state court did, the previous practice was to remand for clarification. Minnesota v. National Tea Co., 309 U.S. 551 (1940); California v. Krivda, 409 U.S. 33 (1972). *See* California Dept. of Motor Vehicles v. Rios, 410 U.S. 425 (1973). The Court has adopted a presumption that when a state court decision fairly appears to rest on federal law or to be interwoven with federal law, and when the adequacy and independence of any possible state law ground is not clear from the face of the opinion, the Court will accept as the most reasonable explanation that the state court decided the case as it did because it believed that federal law required it to do so. If the state court wishes to avoid the presumption it must make clear by a plain statement in its judgment or opinion that discussed federal law did not compel the result, that state law was dispositive. Michigan v. Long, 463 U.S. 1032 (1983). *See* Harris v. Reed, 489 U.S. 255, 261 n.7 (1989) (collecting cases); Coleman v. Thompson, 501 U.S. 722 (1991) (applying the rule in a habeas case).

[16] Murdock v. City of Memphis, 87 U.S. (20 Wall.) 590, 636 (1875). A new state rule cannot be invented for the occasion in order to defeat the federal claim. *E.g.*, Ford v. Georgia, 498 U.S. 411, 420–425 (1991).

[17] Enterprise Irrigation Dist. v. Farmers' Mutual Canal Co., 243 U.S. 157, 164 (1917); Ivanhoe Irrigation Dist. v. McCracken, 357 U.S. 275, 290 (1958).

[18] Enterprise Irrigation Dist. v. Farmers' Mutual Canal Co., 243 U.S. 157, 164 (1917); Ward v. Love County, 253 U.S. 17, 22 (1920); Staub v. City of Baxley, 355 U.S. 313 (1958).

[19] Beard v. Kindler, 558 U.S. 53 (2009) (firmly established procedural rule adequate state ground even though rule is discretionary). *Accord*, Walker v. Martin, 562 U.S. 307 (2011). *See also* Nickel v. Cole, 256 U.S. 222, 225 (1921); Wolfe v. North Carolina, 364 U.S. 177, 195 (1960). *But see* Davis v. Wechsler, 263 U.S. 22 (1923); Brown v. Western Ry. of Alabama, 338 U.S. 294 (1949).

[20] Davis v. Wechsler, 263 U.S. 22, 24–25 (1923); NAACP v. Alabama *ex rel.* Patterson, 357 U.S. 449, 455–458 (1958); Barr v. City of Columbia, 378 U.S. 146, 149 (1964). This rationale probably explains Henry v. Mississippi, 379 U.S. 443 (1965). *See also* in the criminal area, Edelman v. California, 344 U.S. 357, 362 (1953) (dissenting opinion); Brown v. Allen, 344 U.S. 443, 554 (1953) (dissenting opinion); Williams v. Georgia, 349 U.S. 375, 383 (1955); Monger v. Florida, 405 U.S. 958 (1972) (dissenting opinion).

ArtIII.S2.C2.6 Exceptions Clause and Congressional Control over Appellate Jurisdiction

Article III, Section 2, Clause 2:

> *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.*

Unlike the Supreme Court's original jurisdiction,[1] Article III provides that the Court's appellate jurisdiction is subject to "Exceptions" and "Regulations" prescribed by Congress.[2] Congress and the Court have construed this provision, sometimes called the "Exceptions Clause," to grant Congress significant control over the Court's appellate jurisdiction and proceedings. In addition, Congress possesses extensive authority to regulate the jurisdiction of the lower federal courts, and may limit the cases the Supreme Court can hear on appeal by generally stripping the federal courts of jurisdiction over certain cases.

Article III, Section 2, Clause 2 provides that the Supreme Court "shall have" appellate jurisdiction over certain matters, subject to regulation by Congress.[3] Since Congress first enacted legislation to structure the Federal Judiciary in the Judiciary Act of 1789, the legislature has often exercised this power by granting the Supreme Court appellate jurisdiction over a subset of the cases included in the constitutional grant.[4] Several decisions of the Court from the 1700s and 1800s considered the extent to which the Court could exercise appellate jurisdiction absent express authorization from Congress. In the 1796 case *Wiscart v. D'Auchy*, the Court considered whether it could review admiralty cases.[5] A majority of the Court held that it had jurisdiction to review admiralty cases because such cases fell within the scope of a statute authorizing review of federal circuit court decisions in "civil actions." In so holding, the majority stated that congressional authorization was necessary to create jurisdiction and that, if Congress provided for jurisdiction, the Court must accept it: "If Congress had provided no rule to regulate our proceedings, we cannot exercise an appellate jurisdiction; and if the rule is provided, we cannot depart from it."[6] By contrast, in the 1810 case *Durousseau v. United States*, Chief Justice John Marshall accepted the validity of legislation limiting the Court's jurisdiction but suggested that, in the absence of such congressional action, the Court's appellate jurisdiction would have been measured by the

[1] For discussion of the Court's original jurisdiction, see ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[2] U.S. Const. art. III, § 2, cl. 2.

[3] *Id.*

[4] *See, e.g.*, Judiciary Act of 1789, 1 Stat. 80.

[5] 3 U.S. (3 Dall.) 321 (1796).

[6] *Id.* at 327.

constitutional grant.[7] However, later cases have generally taken the view that "the Supreme Court possesses no appellate power in any case, unless conferred upon it by act of Congress."[8]

Congress has on occasion used its power to regulate Supreme Court jurisdiction to forestall a possible adverse decision from the Court. In *Ex parte McCardle*, the Court granted certiorari to review the denial of a petition for a writ of habeas corpus from a civilian convicted of acts obstructing Reconstruction.[9] Anticipating that the Court might void, or at least undermine, congressional reconstruction of the Confederate States, Congress overrode the President's veto to enact a provision repealing the statute that authorized the appeal.[10] Although the Court had already heard argument in the case, it dismissed the action for want of jurisdiction. The Court stated, "We are not at liberty to inquire into the motives of the legislature. We can only examine into its power under the Constitution; and the power to make exceptions to the appellate jurisdiction of this court is given by express words."[11] Since its decision in *McCardle*, the Supreme Court has upheld numerous legislative limits on its jurisdiction.[12]

Congress also possesses significant power to prevent Supreme Court appellate review by limiting the federal courts' jurisdiction over certain classes of cases, or even specific cases, a practice sometimes called "jurisdiction stripping."[13] The Constitution provides for the existence of a Supreme Court, but leaves to Congress the decision whether to establish inferior federal courts.[14] That broad grant of discretion has been interpreted also to grant Congress

[7] 10 U.S. (6 Cr.) 307, 313–14 (1810) ("Had the judicial act created the supreme court, without defining or limiting its jurisdiction, it must have been considered as possessing all the jurisdiction which the constitution assigns to it. . . . [I]n omitting to exercise the right of excepting from its constitutional powers, [Congress] would have necessarily left those powers undiminished. The appellate powers of this court are not given by the judicial act. They are given by the constitution. But they are limited and regulated by the judicial act, and by such other acts as have been passed on the subject."). *See also Ex parte* McCardle, 74 U.S. (7 Wall.) 506, 512–13 (1869) ("It is quite true . . . that the appellate jurisdiction of this court is not derived from acts of Congress. It is, strictly speaking, conferred by the Constitution. But it is conferred 'with such exceptions and under such regulations as Congress shall make.'"); United States v. More, 7 U.S. (3 Cr.) 159 (1805); *but cf. Ex parte* Bollman, 8 U.S. (4 Cr.) 75, 93 (1807) (Marshall, C.J.) ("Courts which are created by written law, and whose jurisdiction is defined by written law, cannot transcend that jurisdiction.")

[8] Barry v. Mercein, 46 U.S. (5 How.) 103, 119 (1847); *see also* Daniels v. Railroad, 70 U.S. (3 Wall.) 250, 254 (1865); Turner v. Bank of North America, 4 U.S. (4 Dall.) 8, 10 (1799).

[9] 74 U.S. (7 Wall.) 506 (1869).

[10] By the Act of February 5, 1867, § 1, 14 Stat. 386, Congress had authorized appeals to the Supreme Court from circuit court decisions denying a petition for a writ of habeas corpus. Previously, the Court's jurisdiction to review habeas corpus decisions, based in Section 14 of the Judiciary Act of 1789, 1 Stat. 81, was somewhat unclear. *Compare* United States v. Hamilton, 3 U.S. (3 Dall.) 17 (1795), *and Ex parte* Burford, 7 U.S. (3 Cr.) 448 (1806), *with Ex parte* Bollman, 8 U.S. (4 Cr.) 75 (1807). The repealing statute was the Act of March 27, 1868, 15 Stat. 44. The repealed act was reenacted March 3, 1885. 23 Stat. 437.

[11] 74 U.S. (7 Wall.) at 513. A few years after *McCardle*, in *Ex parte Yerger*, the Court held that the Judiciary Act of 1789 gave it the authority to review on certiorari a circuit court's denial of a habeas petition from of a person held by the military in the South, suggesting that the repeal at issue in *McCardle* did not deprive the Court of all jurisdiction over the matter but simply eliminated one possible statutory grant. 75 U.S. (8 Wall.) 85 (1869). *See also* Felker v. Turpin, 518 U.S. 651 (1996).

[12] *See* The Francis Wright, 105 U.S. 381, 385–386 (1882); Luckenbuch S. S. Co. v. United States, 272 U.S. 533, 537 (1926); American Construction Co. v. Jacksonville, T. & K.W. Ry., 148 U.S. 372, 378 (1893); United States v. Bitty, 208 U.S. 393 (1908); United States v. Young, 94 U.S. 258 (1876); Insurance Co. v. Ritchie, 72 U.S. (5 Wall.) 541 (1866); Railroad v. Grant, 98 U.S. 398 (1878); Bruner v. United States, 343 U.S. 112 (1952); District of Columbia v. Eslin, 183 U.S. 62 (1901); Patchak v. Zinke, 138 S. Ct. 897 (2018); *see also* Walker v. Taylor, 46 U.S. (5 How.) 64 (1847).

[13] For additional discussion of jurisdiction stripping, see generally Kevin Lewis, Cong. Rsch. Serv., R44967, Congress's Power over Courts: Jurisdiction Stripping and the Rule of Klein (2018), https://crsreports.congress.gov/product/pdf/R/R44967.

[14] U.S. Const. art III, § 1 ("The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish."); U.S. Const. art I, § 8, cl. 9 (allowing Congress "[t]o constitute Tribunals inferior to the supreme Court").

expansive authority to regulate the structure and jurisdiction of the lower federal courts.[15] Separation of powers considerations bar Congress from requiring courts to reopen final judicial decisions[16] or dictating a certain substantive outcome in pending litigation.[17] However, the Court has upheld legislation that deprives the federal courts of jurisdiction over certain matters, including legislation that removed jurisdiction over a specific pending case.[18] Jurisdiction stripping statutes may limit the Court's appellate jurisdiction; by contrast, Congress cannot enact legislation to limit the Supreme Court's original jurisdiction.[19]

In addition to regulating the federal courts' jurisdiction, since the early years of the Republic Congress has enacted legislation regulating court proceedings, for instance by setting the times and places for holding court, even of the Supreme Court, and limiting the courts' power to issue injunctions.[20] One striking example of regulating when the Court sits occurred following the repeal of the Judiciary Act of 1801. Congress enacted legislation changing the Court's term to forestall a constitutional attack on the repeal, with the result that the Court did not convene for fourteen months.[21] Examples of restrictions on injunctions include limitations on injunctions related to taxes[22] and the Norris-La Guardia Act, which limits the issuance of injunctions in labor disputes.[23]

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[15] *See, e.g.*, United States v. Hudson & Goodwin, 11 U.S. (7 Cr.) 32, 33 (1812); Rhode Island v. Massachusetts, 37 U.S. (12 Pet.) 657, 721–722 (1838); Cary v. Curtis, 44 U.S. (3 How.) 236 (1845); Kline v. Burke Constr. Co., 260 U.S. 226, 233–234 (1922); Ladew v. Tennessee Copper Co., 218 U.S. 357, 358 (1910); Venner v. Great Northern R. Co., 209 U.S. 24, 35 (1908); Kentucky v. Powers, 201 U.S. 1, 24 (1906); Stevenson v. Fain, 195 U.S. 165, 167 (1904); Plaquemines Tropical Fruit Co. v. Henderson, 170 U.S. 511, 513–521 (1898); The Mayor v. Cooper, 73 U.S. (6 Wall.) 247, 251–252 (1868); South Carolina v. Katzenbach, 383 U.S. 301, 331 (1966); Palmore v. United States, 411 U.S. 389, 400–02 (1973); Swain v. Pressley, 430 U.S. 372 (1977). A minority view, articulated by Justice Joseph Story in *Martin v. Hunter's Lessee*, argues that the Constitution requires Congress to create inferior federal courts and vest them with all the jurisdiction they are capable of receiving. 14 U.S. (1 Wheat.) 304, 329–336 (1816); *see also, e.g.*, Amar, *A Neo-Federalist View of Article III: Separating the Two-Tiers of Federal Jurisdiction*, 65 B.U. L. Rev. 205 (1985); Amar, *The Two-Tiered Structure of the Judiciary Act of 1789*, 138 U. Pa. L. Rev. 1499 (1990).

[16] Plaut v. Spendthrift Farm, Inc., 514 U.S. 211 (1995).

[17] United States v. Klein, 80 U.S. 128 (1871); *see also* Patchak v. Zinke, 138 S. Ct. 897, 905 (2018) (plurality opinion) (Congress cannot usurp the judiciary's power by saying "in *Smith v. Jones*, Smith wins.").

[18] Patchak v. Zinke, 138 S. Ct. 897 (2018); *cf.* United States v. Sioux Nation of Indians, 448 U.S. 371, 374 (1980).

[19] *See* ArtIII.S2.C2.2 Supreme Court Original Jurisdiction.

[20] Supreme Court Justices have, at times, opposed legislation that might regulate the Court or its procedures. *See, e.g.*, John G. Roberts, Jr., 2021 Year-End Report on the Federal Judiciary (2021); Letter from Charles Evans Hughes, C.J., to Burton K. Wheeler, U.S. Sen. (Mar. 21, 1937), reprinted in S. Rep. No. 75–711, app. c at 40 (1937). In addition, even absent clearly established constitutional limits on Congress's authority to regulate court proceedings, the legislature has often deferred to the courts, and especially the Supreme Court, to regulate their own procedures. For instance, the Rules Enabling Act, 28 U.S.C. § 2071–2077, authorizes the Supreme Court to make procedural rules for the inferior federal courts, subject to approval by Congress, and further allows the Court to make its own procedural rules without legislative oversight.

[21] 1 Charles Warren, The Supreme Court in United States History 222–224 (rev. ed. 1926).

[22] Act of March 2, 1867, 10, 14 Stat. 475, as amended, now 26 U.S.C. § 7421 (federal taxes): Act of August 21, 1937, 50 Stat. 738, 28 U.S.C. § 1341 (state taxes). See also Act of May 14, 1934, 48 Stat. 775, 28 U.S.C. § 1342 (state rate-making).

[23] 47 Stat. 70 (1932), 29 U.S.C. §§ 101–115. The Court has upheld the Act and applied it liberally through the years. *See* Lauf v. E.G. Shinner & Co., 303 U.S. 323, 330 (1938); New Negro Alliance v. Sanitary Grocery Co., 303 U.S. 552 (1938); Brotherhood of Railroad Trainmen v. Chicago River & I. R.R., 353 U.S. 30 (1957); Boys Markets v. Retail Clerks Union, 398 U.S. 235 (1970).

Clause 3—Trials

ArtIII.S2.C3.1 Jury Trials

Article III, Section 2, Clause 3:

> *The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.*

Article III, Section 2, Clause 3 is one of two constitutional provisions—the other being the Sixth Amendment—that provide a right to jury trial in federal criminal cases.[1] In addition to providing such a right generally in all criminal cases except impeachment cases,[2] this Clause also specifies the venue in which a trial must take place: in the state where the crime was committed, or at a place directed by Congress if the crime was not committed within any states.[3] The Sixth Amendment later further imposed other requirements related to the right, including that the trial be speedy and public, and that the trial take place before a jury summoned from the state and district in which the crime was committed.[4]

Section 3—Treason

Clause 1—Meaning

ArtIII.S3.C1.1 Historical Background on Treason

Article III, Section 3, Clause 1:

> *Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the testimony of two Witnesses to the same overt Act, or on Confession in open Court.*

The Treason Clause is a product of the Framer's awareness of the "numerous and dangerous excrescences" which had distorted the English law of treason. The Clause was therefore intended to put "extend[ing] the crime and punishment of treason" beyond Congress's power.[1] Debate in the Constitutional Convention, remarks in the ratifying conventions, and contemporaneous public comments make clear that the Framers

[1] The Supreme Court has held that the Sixth Amendment's right to jury, including the requirement that a jury verdict be unanimous, applies to states through the Fourteenth Amendment. Duncan v. Louisiana, 391 U.S. 145 (1968); *see also* Ramos v. Louisiana, No. 18-5924, slip op. at 7 (U.S. 2020) (holding that the Sixth Amendment's requirement of a unanimous verdict applies to states through the Fourteenth Amendment).

[2] The Supreme Court, however, has long held that the guarantees of jury trial under Article III, Section 2, Clause 3 and the Sixth Amendment do not apply to petty offenses because at the time of the Constitution's adoption, such offenses were tried summarily without a jury under common law. *See* Cheff v. Schnackenberg, 384 U.S. 373, 378–79 (1966).

[3] U.S. Const. art. III, § 2, cl.3.

[4] U.S. Const. amend. VI; *see generally* Amdt6.1 Overview of Sixth Amendment, Rights in Criminal Prosecutions.

[1] 2 Debates in the Several State Conventions on Adoption of the Constitution 469 (Jonathan Elliott ed., 1836) (James Wilson). James Wilson apparently drafted the clause as a member of the Committee of Detail and had some firsthand knowledge of how treason charges could be abused. See Cramer v. United States, 325 U.S. 1, 23 & note 32 (1944); J. Hurst, The Law of Treason in the United States: Selected Essays 90–91, 129–136 (1971).

contemplated a restrictive concept of the crime of treason that would prevent the politically powerful from escalating ordinary partisan disputes into capital charges of treason, as so often had happened in England.[2]

Thus, the Framers adopted two of the three formulations and the phraseology of the English Statute of Treason enacted in 1350,[3] but they conspicuously omitted the phrase defining as treason the "compass[ing] or imagin[ing] the death of our lord the King,"[4] under which most of the English law of "constructive treason" had been developed.[5] Beyond limiting Congress's power to define treason,[6] the Clause also limits Congress's ability to make proof of the offense of treason easy to establish[7] and to define the punishment for treason.[8]

ArtIII.S3.C1.2 Levying War as Treason

Article III, Section 3, Clause 1:

> *Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the testimony of two Witnesses to the same overt Act, or on Confession in open Court.*

Early judicial interpretation of the Treason Clause and the term "levying war" arose in the context of the partisan struggles of the early nineteenth century and the treason trials of Aaron Burr and his associates. In *Ex parte Bollman*,[1] which involved two of Burr's confederates, Chief Justice John Marshall, speaking for himself and three other Justices, confined the meaning of levying war to the actual waging of war. Chief Justice Marshall distinguished the offence of conspiring to levy war and the offence of actually levying war. In his view, "[t]he first must be brought into operation by the assemblage of men for a purpose treasonable in itself, or the fact of levying war cannot have been committed."[2] This "enlistment of men to serve against the government," according to him, "does not amount to levying war."[3]

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[2] 2 Records of the Federal Convention of 1787, at 345–50 (Max Farrand ed., 1911); 3 Records of the Federal Convention of 1787, at 102–03 (Max Farrand ed., 1911); *id.* at 447, 451, 466; 3 Records of the Federal Convention of 1787, at 209, 219, 220 (Max Farrand ed., 1911) ; The Federalist No. 43 (James Madison); *id.* No. 84 (Alexander Hamilton); The Works of James Wilson 663–69 (R. McCloskey ed. 1967). The matter is comprehensively discussed in J. Hurst *supra* note 1, at chs. 3, 4.

[3] 25 Edward III, Stat. 5, ch. 2. *See* J. Hurst, *supra* note 1, at ch. 2.

[4] J. Hurst *supra* note 1, at 15, 31–37, 41–49, 51–55.

[5] *Id.*; see also *id.* at 152–53 ("[T]he record does suggest that the clause was intended to guarantee nonviolent political processes against prosecution under any theory or charge, the burden of which was the allegedly seditious character of the conduct in question. The most obviously restrictive feature of the constitutional definition is its omission of any provision analogous to that branch of the Statute of Edward III which punished treason by compassing the death of the king. In a narrow sense, this provision perhaps had no proper analogue in a republic. However, to interpret the silence of the Treason Clause in this way alone does justice neither to the technical proficiency of the Philadelphia draftsmen nor to the practical statecraft and knowledge of English political history among the Framers and proponents of the Constitution. The charge of compassing the king's death had been the principal instrument by which 'treason' had been used to suppress a wide range of political opposition, from acts obviously dangerous to order and likely in fact to lead to the king's death to the mere speaking or writing of views restrictive of the royal authority.").

[6] The clause does not, however, prevent Congress from specifying other crimes of a subversive nature and prescribing punishment, so long as Congress is not merely attempting to evade the restrictions of the Treason Clause. *E.g.*, *Ex parte* Bollman, 8 U.S. (4 Cr.) 75, 126 (1807); Wimmer v. United States, 264 Fd. 11, 12–13 (6th Cir. 1920), *cert. denied*, 253 U.S. 494 (1920).

[7] By the requirement of two witnesses to the same overt act or a Confession in open Court.

[8] Cl. 2, "Corruption of the Blood and Forfeiture."

[1] 8 U.S. (4 Cr.) 75 (1807).

[2] *Id.* at 126.

[3] *Id.*

Chief Justice Marshall was careful, however, to state that the Court did not mean that no person could be guilty of this crime who had not appeared in arms against the country. He stated: "On the contrary, if war be actually levied, that is, if a body of men be actually assembled for the purpose of effecting by force a treasonable purpose, all those who perform any part, however minute, or however remote from the scene of action, and who are actually leagued in the general conspiracy, are to be considered as traitors."[4] But, Chief Justice Marshall emphasized, "there must be an actual assembling of men, for the treasonable purpose, to constitute a levying of war."[5]

Based on these considerations and because no part of the crime charged had been committed in the District of Columbia, the Court held that Bollman and Swartwout could not be tried in the District, and ordered their discharge. Chief Justice Marshall continued by saying that "the crime of treason should not be extended by construction to doubtful cases"[6] and concluded that no conspiracy for overturning the Government and "no enlisting of men to effect it, would be an actual levying of war."[7]

ArtIII.S3.C1.3 Trial of Aaron Burr

Article III, Section 3, Clause 1:

> *Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the testimony of two Witnesses to the same overt Act, or on Confession in open Court.*

After authoring the Supreme Court's decision in *Ex Parte Bollman*,[1] in which the Court ordered the discharge of two of Aaron Burr's associates, Chief Justice John Marshall presided over the treason trial of Burr. His ruling[2] denying a motion to introduce certain collateral evidence bearing on Burr's activities is significant both for rendering the latter's acquittal inevitable and for the qualifications and exceptions made to the *Bollman* decision. In brief, Chief Justice Marshall's ruling held that Burr, who had not been present at the assemblage on Blennerhassett's Island, could be convicted of advising or procuring a levying of war only upon the testimony of two witnesses to his having procured the assemblage. Because the operation had been covert, such testimony was naturally unobtainable. The net effect of Marshall's pronouncements was to make it extremely difficult to convict one of levying war against the United States short of the conduct of or personal participation in actual hostilities.[3]

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[4] *Id.*

[5] *Id.*

[6] *Id.* at 127.

[7] *Id*.

[1] 8 U.S. (4 Cr.) 75 (1807).

[2] United States v. Burr, 8 U.S. (4 Cr.) 469, Appx. (1807).

[3] There have been lower court cases in which the Government obtained convictions of treason. Following the Whiskey Rebellion, the Government obtained convictions of treason based on a ruling that forcible resistance to the Government enforcing revenue laws was a constructive levying of war. United States v. Vigol, 29 F. Cas. 376 (No. 16621) (C.C.D. Pa. 1795); United States v. Mitchell, 26 F. Cas. 1277 (No. 15788) (C.C.D. Pa. 1795). After conviction, the defendants were pardoned. *See also* for the same ruling in a different situation the Case of Fries, 9 F. Cas. 826, 924 (Nos. 5126, 5127) (C.C.D. Pa. 1799, 1800). The defendant was again pardoned after conviction. About a half century later, a court held that participating in forcible resistance to the Fugitive Slave Law was not a constructive levying of war. United States v. Hanway, 26 F. Cas. 105 (No. 15299) (C.C.E.D. Pa. 1851). Although the United States Government regarded the activities of the Confederate States as a levying of war, the President by Amnesty Proclamation of December 25, 1868, pardoned all those who had participated on the Southern side in the Civil War. In applying the Captured and Abandoned Property Act of 1863 (12 Stat. 820) in a civil proceeding, the Court declared that the

ArtIII.S3.C1.4 Aid and Comfort to the Enemy as Treason

Article III, Section 3, Clause 1:

> *Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the testimony of two Witnesses to the same overt Act, or on Confession in open Court.*

Since *Ex Parte Bollman*, the few treason cases that have reached the Supreme Court arose in the context of World War II and involved defendants charged with adhering to enemies of the United States and giving them aid and comfort. In the first of these cases, *Cramer v. United States*,[1] the Court considered whether the "overt act" at issue must itself manifest a treacherous intention or if it was enough that other proper evidence support such an intention.[2] The Court, in a 5-4 opinion by Justice Robert Jackson, in effect took the former view, holding that the Treason Clause's "two-witness principle" prohibited "imputation of *incriminating acts* to the accused by circumstantial evidence or by the testimony of a single witness,"[3] even though the single witness in question was the accused himself. "Every act, movement, deed, and word of the defendant charged to constitute treason must be supported by the testimony of two witnesses,"[4] Justice Jackson asserted. Justice William Douglas in a dissent, joined by Chief Justice Harlan Stone and Justices Hugo Black and Stanley Reed, contended that Cramer's treasonable intention was sufficiently shown by overt acts as attested to by two witnesses each, plus statements Cramer made on the witness stand.

In the second case, *Haupt v. United States*,[5] the Supreme Court sustained a treason conviction for the first time in its history. Although the overt acts that supported the treason charge—including defendant's harboring and sheltering of his son who was an enemy spy and saboteur, and assisting his son in purchasing an automobile and obtaining employment in a defense plant—were all acts that a father might naturally perform for a son, the Court held that this fact did not necessarily relieve such acts of the treasonable purpose of giving aid and comfort to the enemy. Speaking for the Court, Justice Jackson said: "No matter whether young Haupt's mission was benign or traitorous, known or unknown to the defendant, these acts were aid and comfort to him."[6] These acts, Justice Jackson continued, "were more than casually useful; they were aids in steps essential to his design for treason."[7] Thus, "[i]f proof be added that the defendant knew of his son's instruction, preparation and plans, the purpose to aid and comfort the enemy becomes clear."[8] The Court further held that conversation and occurrences

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foundation of the Confederacy was treason against the United States. Sprott v. United States, 87 U.S. (20 Wall.) 459 (1875). *See also* Hanauer v. Doane, 79 U.S. (12 Wall.) 342 (1871); Thorington v. Smith, 75 U.S. (8 Wall.) 1 (1869); Young v. United States, 97 U.S. 39 (1878). While *Sprott*, *Hanauer*, *Thorington*, and *Young* discussed concepts concerning adhering to the United States' enemies and giving enemies of the United States Aid and Comfort, these are not criminal cases. Instead, they dealt with attempts to recover property under the Captured and Abandoned Property Act by persons who claimed that they had given no aid or comfort to the enemy. These cases did not, therefore, interpret the Constitution.

[1] 325 U.S. 1 (1945).

[2] *Id.*

[3] *Id.* at 35.

[4] *Id.* at 34–35. Earlier, Justice Jackson had declared that this phase of treason consists of two elements: "adherence to the enemy; and rendering him aid and comfort." *Id.* at 29. A citizen, it was said, may take actions "which do aid and comfort the enemy . . . but if there is no adherence to the enemy in this, if there is no intent to betray, there is no treason." *Id.*

[5] 330 U.S. 631 (1947).

[6] *Id.* at 635.

[7] *Id.*

[8] *Id.* at 635–36.

long prior to the indictment were admissible evidence on the question of defendant's intent. And more important, it held that the constitutional requirement of two witnesses to the same overt act or confession in open court does not operate to exclude confessions or admissions made out of court if such evidence is merely corroborative and where a legal basis for the conviction has been laid by the testimony of two witnesses.

This relaxation of restrictions surrounding the definition of treason evoked obvious satisfaction from Justice Douglas, who saw in *Haupt* a vindication of his position in *Cramer*. In Justice Douglas's view, *Cramer* was wrongly decided because it departed from the rules that "the overt act and the intent with which it is done are separate and distinct elements of the crime"[9] and that "[i]ntent need not be proved by two witnesses but may be inferred from all the circumstances surrounding the overt act."[10] In Justice Douglas's view, "proof of treasonable intent in the doing of the overt act necessarily involves proof that the accused committed the overt act with the knowledge or understanding of its treasonable character."[11] He further opined that the *Haupt* decision was "truer to the constitutional definition of treason" by holding that "an act, quite innocent on its face, does not need two witnesses to be transformed into a incriminating one." [12]

In a third case, *Kawakita v. United* States,[13] the Supreme Court sustained a treason conviction against a defense that the defendant, a dual citizen of Japan and United States, had renounced his American citizenship. In that case, the defendant, who was a native-born citizen of the United States and also a national of Japan by reason of Japanese parentage and law, served during the war as a civilian interpreter of a private corporation producing war materials for Japan and was accused of brutally abusing American prisoners of war who were forced to work for the corporation. Upon his return to the United States following Japan's surrender, the defendant was charged with treason for his conduct toward American prisoners of war. In affirming the conviction, the Court concluded that the question regarding whether the defendant had intended to renounce American citizenship was peculiarly one for the jury and their verdict that he had not so intended was based on sufficient evidence. An American citizen, the Court continued, owes allegiance to the United States wherever he may reside, and dual nationality does not alter the situation.[14]

The vacillation of Chief Justice John Marshall between the *Bollman*[15] and *Burr*[16] cases and the vacillation of the Court in the *Cramer*[17] and *Haupt*[18] cases leave the law of treason in a somewhat uncertain condition. The difficulties created by *Burr*, however, have been largely

[9] *Id.* at 645.

[10] *Id.*

[11] *Id.*

[12] *Id.* at 645–46. Justice William Douglas cites no cases for these propositions. Justice Frank Murphy in a solitary dissent stated: "But the act of providing shelter was of the type that might naturally arise out of petitioner's relationship to his son, as the Court recognizes. By its very nature, therefore, it is a non- treasonous act. That is true even when the act is viewed in light of all the surrounding circumstances. All that can be said is that the problem of whether it was motivated by treasonous or non-treasonous factors is left in doubt. It is therefore not an overt act of treason, regardless of how unlawful it might otherwise be." *Id.* at 649.

[13] 343 U.S. 717 (1952).

[14] 343 U.S. at 732. For citations in the subject of dual nationality, *see id.* at 723 n.2. Three dissenters asserted that Kawakita's conduct in Japan clearly showed he was consistently demonstrating his allegiance to Japan. *Id.* at 746 ("As a matter of law, he expatriated himself as well as that can be done.").

[15] *Ex parte* Bollman, 8 U.S. (4 Cr.) 75 (1807).

[16] United States v. Burr, 8 U.S. (4 Cr.) 469 (1807).

[17] Cramer v. United States, 325 U.S. 1 (1945).

[18] Haupt v. United States, 330 U.S. 631 (1947).

obviated by punishing acts ordinarily treasonable in nature under a different label,[19] within a formula provided by Chief Justice Marshall himself in *Bollman*. There, Chief Justice Marshall opined that "Crimes so atrocious as those which have for their object the subversion by violence of those laws and those institutions which have been ordained in order to secure the peace and happiness of society, are not to escape punishment, because they have not ripened into treason."[20] In his view, "[t]he wisdom of the legislature is competent to provide for the case,"[21] and Framers must have intended this legislative approach in the punishment of such cases because such general laws would be "formed upon deliberation, under the influence of no resentments, and without knowing on whom they were to operate."[22]

Clause 2—Punishment

ArtIII.S3.C2.1 Punishment of Treason Clause

Article III, Section 3, Clause 2:

> *The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.*

Among other measures, the Confiscation Act of 1862 "to suppress Insurrection, to punish Treason and Rebellion, to seize and confiscate the Property of Rebels" authorized the President to confiscate certain Confederate property through court action.[1] Because of President Abraham Lincoln's concern that such authority raised concerns under the Punishment of Treason Clause, the act was accompanied by an explanatory joint resolution which stipulated that only a life estate terminating with the death of the offender could be sold and that at his death his children could take the fee simple by descent as his heirs without deriving any title from the United States.[2] In applying this act, passed pursuant to the war power and not the power to punish treason,[3] the Supreme Court in one case[4] quoted with approval the English distinction between a disability absolute and perpetual and a disability personal or temporary. Corruption of blood as a result of attainder of treason was cited as an example of the former and was defined as the disability of any of the posterity of the attained person "to claim any inheritance in fee simple, either as heir to him, or to any ancestor above him."[5]

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[19] *Cf.* United States v. Rosenberg, 195 F.2d 583 (2d. Cir. 1952), *cert denied*, 344 U.S. 889 (1952), holding that in a prosecution under the Espionage Act for giving aid to a country, not an enemy, an offense distinct from treason, neither the two-witness rule nor the requirement as to the overt act is applicable.

[20] *Ex parte* Bollman, 8 U.S. (4 Cr.) 75, 126 (1807).

[21] *Id.*

[22] *Id.* at 127. Justice Felix Frankfurter appended to his opinion in *Cramer v. United States,* 325 U.S. 1, 25 n.38 (1945), a list taken from the government's brief of all the cases prior to *Cramer* in which the Treason Clause was construed.

[1] 12 Stat. 589, § 5. This act incidentally did not designate rebellion as treason.

[2] 12 Stat. 627.

[3] Miller v. United States, 78 U.S. (11 Wall.) 268, 305 (1871).

[4] Wallach v. Van Riswick, 92 U.S. 202, 213 (1876).

[5] Lord de la Warre's Case, 11 Coke Rept. 1a, 77 Eng. Rept. 1145 (1597). A number of cases dealt with the effect of a full pardon by the President of owners of property confiscated under this Act. They held that a full pardon relieved the owner of forfeiture as far as the government was concerned but did not divide the interest acquired by third persons from the government during the lifetime of the offender. Illinois Cent. R.R. v. Bosworth, 133 U.S. 92, 101 (1890); Knote v. United States, 95 U.S. 149 (1877); Wallach v. Van Riswick, 92 U.S. 202, 203 (1876); Armstrong's Foundry, 73 U.S. (6 Wall.) 766, 769 (1868). There is no direct ruling on the question of whether only citizens can commit treason. In *Carlisle v. United States,* 83 U.S. (16 Wall.) 147, 154–155 (1873), the Court declared that aliens while domiciled in this country owe a temporary allegiance to it and may be punished for treason equally with a native-born citizen in the absence of a treaty stipulation to the contrary. This case involved the attempt of certain British subjects

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to recover claims for property seized under the Captured and Abandoned Property Act, 12 Stat. 820 (1863), which provided for the recovery of property or its value in suits in the Court of Claims by persons who had not rendered aid and comfort to the enemy. Earlier, in *United States v. Wiltberger,* 18 U.S. (5 Wheat.) 76, 97 (1820), which involved a conviction for manslaughter under an Act punishing manslaughter and treason on the high seas, Chief Justice John Marshall going beyond the necessities of the case stated that treason "is a breach of allegiance, and can be committed by him only who owes allegiance either perpetual or temporary." However, *see In re* Shinohara, Court Martial Orders, No. 19, September 8, 1949, p. 4, Office of the Judge Advocate General of the Navy, reported in 17 Geo. Wash. L. Rev. 283 (1949). In this case, an enemy alien resident in United States territory (Guam) was found guilty of treason for acts done while the enemy nation of which he was a citizen occupied such territory. Under English precedents, an alien residing in British territory is open to conviction for high treason on the theory that his allegiance to the Crown is not suspended by foreign occupation of the territory. DeJager v. Attorney General of Natal (1907), A.C., 96 L.T.R. 857. *See also* 18 U.S.C. § 2381.